



JAMAICA CONSTABULARY FORCE

National Police College of Jamaica Faculty of Initial and Probationer Training Manual - Precis

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PRECIS

**STANDING ORDERS 2000
JAMAICA POLICE ACADEMY**

RISE

The school day starts at 5:00 a.m. Students will get out of bed, tidy their dormitories have their ablutions and fall in at 5:30 a.m. for physical exercise for fifteen (15) minutes.

FATIGUE

Students will do fatigue between 5:45 a.m. and 6:25am Mondays to Fridays in the immediate area of their dormitories or as directed by the Duty Sub-Officers. Fatigue will be ordered from time to time as is necessary by the Sub-Officer i/c Support Services.

PARADES

Students will muster at 6:45 a.m. on weekdays for inspection and drill parade. They will fall in on all other parades as directed.

SICK PARADES

Sick students will report at the Surgery at 6:00am daily for treatment. Students excused drill parade will fall in on muster parade for checking except otherwise directed. Students becoming ill during the night should cause their illness to be reported to the duty Sub-Officer without delay.

ROLL CALL PARADE

Roll Call Parade will be held at 8:30am daily under the supervision of the senior duty Sub-Officer. Students will fall in neatly dressed in plain clothes. Emergency Roll Call Parades may be held at anytime as circumstance demand.

CHURCH PARADE AND SERVICE

On the third (3rd) Sunday of each month an inter-denominational church service followed by a parade, will be held. Students except those on duty must attend. Senior squads will be dressed in uniform and junior squads, not issued with uniform, will be properly dressed in plain clothes. Fall in 9:00 a.m.

PUNCTUALITY

Students will be punctual in falling in on all parades and obey all instructions given.

ISSUE-MARKING OF UNIFORMS

Students on being issued with uniform and equipment by the storekeeper will have them properly marked with regulation number with month and year of issue. These must be produced whenever students are called upon to do so.

DRESS

Students will parade in uniform at all times properly dressed. Identity badges will be worn on the right shoulder strap. The wearing of part uniform and part plain clothes is strictly forbidden. When going to the Dining Room. **NO SETTERS** should be worn in hair (females). Knee length walking shorts are allowed.

TIDING OF DORMITORIES

Students will clean and prepare their dormitories for daily inspection. Plain clothes must be locked away; civilian shoes must be clean and placed under cot properly aligned. Sub-Officers responsible for these dormitories will visit daily to see that a high standard is maintained. The dormitories are subjected to inspection from 9:00 a.m. to 4:00 p.m. weekdays and 9:00 a.m. to 1:00 p.m. on Saturdays.

GROOMING

All students should have their hair properly cut. A mouthstache may be worn but must be neatly clipped. No beards or sideburns are allowed. Nails are to be properly clipped and cleaned.

BAD TEETH

Students with bad teeth should immediately report to the Senior First Aid Instructor for Instructions.

LETTERS

All outgoing private letters will be stamped and left at an appropriate place in the Guard Room. The owners will post letters containing valuables. All mails will be collected and dispatched to the post office by a Force Driver. The inspector in charge of the General Office will arrange this. In-coming mails will be collected at the Guard Room. Stamps are sold at the Recruiting Office between 8:00am - 8:45am and 12md - 12:45pm and 4:00pm - 4:45pm daily.

VALUABLES

Students in possession of valuable personal property may from time to time hand them over to the Officer i/c Basic Area or Training Officer for safekeeping.

VISITORS

Visitors calling to see students will be met either at the Guard Room or Recreation Room. No visitor will be allowed in the area of the dormitories. Visiting hours will be 5:00pm - 8:00pm on weekdays and 1:00pm 8:00pm on Saturdays and Sundays.

SMOKING

Students will smoke in their dormitories and recreation room only, outside training periods. Smoking is not allowed in the classroom.

INSURANCE AGENTS

Agents are permitted to interview students in the Recreation Room and in the vicinity of the Guard Room by appointment daily between 5:00pm - 8:00pm. Agents are not allowed to enter dormitories and anyone found therein will not be permitted to return to the Academy to transact business. Students are advised to ensure that they pass the Final Stage Examination before purchasing insurance.

PASSES

Students will be divided into three groups on entering the Police Academy and the cycles of passes for each group will be as follows:-

- Each weekend one group on Saturday pass from 12md –10. p.m.
- One group on Sunday passes from 8:00am - 8:00pm.
- One group reserve in barrack for duty.

Students earning the Commandant's Award will proceed on week- end pass from 6:00am on Saturday to 8:00pm on Sunday. Consideration will also be given to students for weekend pass as applied for. With the exception of the Corporate Area and St. Catherine students proceeding on pass elsewhere should obtain the written permission of the Commandant.

STUDENTS ON PASS

In the event of a student on pass becoming sick or through any other circumstances is unable to get back to the Academy by the required time, he should do or cause the following to be done:-

- Telephone the Academy and report the circumstance.
- In the event the Academy cannot be contacted by telephone, he should telephone Police Radio Control 119, reporting the circumstances and ask that the Academy be informed or,
- Report the matter to the nearest police station asking them to inform the Police Academy.

OUT OF BOUNDS AREA

The quarters of officers and sub-officers as also the various operational departments and areas of the Police Academy are out of bounds to all students except on duty or official authority is obtained to visit them. The dormitories/Rooms of students are out of bounds to all Male/Female students unless on duty or so authorized by Senior Members of staff. No male/female is allowed to entertain or accommodate any person of the opposite sex in his or her dormitory. Modesty Gardens is strictly out of bounds to all male students, except with the permission of a senior member of staff.

LIGHTS OUT

All lights except security lights will be put out by 10:00pm. Students not in bed by then should immediately report to their class captains, reason for absence and their exact location on the compound. Students wishing to study after 10:00pm may use the classrooms in the basic area, but not after 12mn.

FOOD & DRINK

Students will not keep articles of food and drinks in their lockers or other sections of their cubicles.

ALCOHOLIC LIQUORS

Except for beer, stout and ales, the consumption of alcoholic liquors by students is strictly prohibited, and no more than two (2) pints of beer or malt liquor per student per week.

ARMOURY

Students issued with rifles will collect them from the armoury for muster parade between 6:20am and 6:35am. For evening drill, rifles will be collected between 2:45pm and 2:55pm. Students should not be in possession of a rifle other than when they are being used for authorized training. Rifles when not being used for training must be returned to the armoury forthwith.

ARMS & AMMUNITION

No student will have in his or her possession any arms and ammunition except during an authorized practice on the J.P.A. ranges or otherwise when on duty.

BASIC REQUIREMENT

Students on enlistment at the J.P.A. will purchase from the J.P.A. canteen the following articles if they are not yet in possession of these:-

- A two or three cell flashlight
- One standard size suitcase
- One weekend bag
- Blazer and crest (as approved)
- Grey flannel trousers
- Tooth brush
- Nail file and clippers
- Bath trunk and towel
- Pen, ruler and notebook
- A small dictionary
- Athlete support
- Two (2) pairs pyjamas
- One white long sleeve shirt
- Six hairnets for female students
- One necktie
- Jack Strap (males)

GOVERNMENT PROPERTY

Students will be held responsible for the care and protection of all government properties at J.P.A. Damage or depreciation caused by the negligence or carelessness on the part of students will incur the imposition of a damage tax of one thousand dollars (\$1000) to defray the expenses for replacement of same. The One Thousand dollars (\$1000) will be collected on the receipt of the student's first salary. If it is not utilized for the purpose above, it must be refunded to each student upon graduation and before posting from the Jamaica Police Academy.

TELEPHONE

Cellular Phones are prohibited and telephones at J.P.A. are for official use only. A public call box is situated at the Guard Room for the use of students. Emergency calls may be made or received by students on the official telephone when available, in which case a sub-officer's assistance should be sought to put through the call.

ENTERTAINMENT

Various entertainment in the form of quiz, debate or skit, will be arranged from time to time by the training officer to involve students and cadets.

GAMES

Organized games will be arranged on Wednesdays and Fridays between 3:00pm - 5:00pm for the students and cadets.

CLASS CAPTAINS

Class Captains are selected by a committee of classroom and drill instructors headed by the Group Inspector and approved by the Officer i/c of Basic Training or Training Officer. The wearing of identity badges on both shoulder straps will identify them.

COURT CASES

Students whilst undergoing training should avoid involvement in court cases. However, if they are involved, they should report the facts immediately to the Duty Sub-Officer on return to J.P.A.

ABSENCE

At all times the class captain should know the whereabouts of the students in the squads. It is the duty of the student to so inform the class captains. On no account should students leave J.P.A. compound without the knowledge and permission of the duty Sub-Officers.

FIRE

On the alarm of fire, students will immediately fall in on the double in front of the Guard Room and await instructions.

HYGIENE

Each student must have at least two (2) baths per day.

MESS

See Mess Standing Orders

CANTEEN

See Canteen Standing Orders

SENTRY

See Sentry Standing Orders

GYMNASIUM

See Gymnasium Standing Orders

PREVIOUS STANDING ORDERS

All previous Standing Orders are hereby cancelled

N.B.

Probationers are to be guided by the Standing Orders.

The above rules are subjected to amendment from time to time.

STANDING ORDERS

OBJECTIVE

The Jamaica Police Academy Gymnasium herein after referred to as the Gym, is operated to:

- Enhance the physical fitness
- Develop mental alertness and awareness, and
- Build proportionately all the muscles of the body of students, members of staff of the Academy and members of the force attending courses.

MANAGEMENT

The gym shall be managed by a committee consisting of:-

- The Commandant
- The Training Officer
- Sub-Officer in charge of Support Service The Chief Physical Education Instructor and one (1) member of staff to be named by the first four (4).

FUNCTIONS OF THE MANAGING COMMITTEE

The function of the committee is to administer and supervise all the affairs for the smooth running of the gymnasium. The committee will meet as regularly as necessary to carry out their functions.

OPENING HOURS

The opening hours of the gym shall be as follows:-

- WEEKDAYS - 10 a.m. - 12 m.d. & 4 p.m. – 7 p.m.
- SATURDAYS - 4 p.m. - 6 p.m.

The gym will be opened for use on Saturdays and on Public Holidays as the committee approves and as the necessity arises.

SECURITY

There must be static security for the gymnasium between 7pm to 6pm daily. The senior Duty Sub-Officer will arrange regular patrols to the gym between 6am to 7pm.

KEYS

Each member of the committee should be in possession of a set of keys to guarantee access to the gymnasium when necessary.

ENTRANCE

Entrance and exit to the gym should only be through the wooden door to the front of the building leading to the equipment room.

CUSTODY

Custody of the gym's equipment will be the responsibility of the managing committee. An inventory of all the equipment of the gym will be made and placed at a conspicuous place and each committee member furnished with a copy.

CARE & USAGE OF EQUIPMENT

It is the responsibility of all persons using the equipment to ensure that they are used for the purpose for which they are intended.

DAMAGE TO EQUIPMENT

Damage to equipment through negligence will incur from the person damaging the equipment the cost to either repair or replace it.

TECHNICAL SUPERVISION

The equipment when being used should be under the supervision of a person having technical knowledge of its use.

CLEANER

The committee will ensure the service of a person to clean the gym and its equipment on a daily basis.

STORAGE

All equipment after use should be replaced to its proper storage area.

RENTAL

The committee has the right to make the gym available for rentals to individuals and organizations at a rate to be agreed upon by the parties concerned. The gym should not be rented at a times specified to be used by J.P.A. personnel. The proceeds from the rental should be used for the maintenance of the gym.

FORMAL APPLICATION

Individuals or groups wishing to use the gym are required to make an application to the managing committee. Usage of the gym by persons or organizations other than J.P.A. personnel will be subjected to the discretion and approval of the committee.

INJURY

The managing committee of the gym or the administration of J.P.A. will not hold themselves responsible for liabilities arising out of injury sustained by any person using the gym. The managing committee subjects these rules to change, amendments, revocations and additions as the case may be.

Jamaica Police Academy

Sec. 4 Constabulary Force Act.

Oath of Office

I do swear that I will well and truly serve the people of Jamaica, in the office of Constable without favour or affection, malice or ill will, and that I will see and cause the People's Peace to be kept and preserved, and that I will prevent to the utmost of my power, all offences against the same, and that while I shall continue to hold this said office I will to the best of my skill, and knowledge, discharge all duties thereof, faithfully according to law.

SO HELP ME GOD

Jamaica Constabulary Force

Mission Statement

The Mission Statement of the Jamaica Constabulary Force and its Auxiliaries is to serve, protect and reassure the people in Jamaica through the delivery of impartial and professional services aimed at:

- Maintenance of Law and Order
- Protection of Life and Property
- Prevention and Detection of Crime and
- Preservation of the Peace

"We serve, we protect, we reassure with courtesy, integrity and proper respect for the rights of all."

Law Enforcement Code of Ethics

As a Law Enforcement Officer, my fundamental duty is to serve mankind, to safeguard lives and property, to protect the innocent against deception, the weak against oppression or intimidation and the peaceful against violence or disorder, and to respect the constitutional rights of all men to liberty, equality and justice

I will keep my private life unsullied as an example to all maintain courageous calm in the face of danger, scorn or ridicule, develop self-restraint, and be constantly mindful of the welfare of others. Honest in thoughts and deed in both m personal and official life, I will be exemplary in obeying the laws of my land, and the regulation of my department. What ever I see or hear of a confidential nature or that is confided to me in my official capacity will be kept ever secret unless revelation is necessary in the performance of my duty.

I will never act officiously or permit personal feelings, animosities or friendship to influence my decisions. With no compromise for crime and with relentless prosecution of criminals, I will enforce the law courteously and appropriately without fear or favour, malice or ill will, never employing unnecessary force or violence and never accepting gratuities.

I recognize the badge of my office as a symbol of public faith and I accept it as a public trust to be held so long as I am true to the ethics of police service. I will be constantly strived to achieve these objectives and ideas, dedicating myself before God to my chosen profession.....law enforcement.

JAMAICA POLICE ACADEMY

WORD ON BELT	<i>DIEU ET MON DROIT</i>
LANGUAGE	<i>FRENCH</i>
TRANSLATION	<i>GOD ON MY RIGHT</i>
WORDS OF HELMET PLATE & CAP BADGE	<i>UTRO QUE SERVE</i>
LANGUAGE	<i>LATIN</i>
TRANSLATION	<i>WHERE EVER I SHALL SERVE</i>

JAMAICA POLICE ACADEMY

“Motto”

JUSTICE	to all whom I encounter
PROFICIENCY	in all I do at work or play.
ACTION	in service to my God, my Country and my Fellowmen.

POLICE PUBLICATIONS

FORCE ORDERS

This is a weekly publication from Police Headquarters to members of the force. It is divided into two parts, i.e. Part 1 and Part 2

Part 1 deals with Administration and Notification e.g. direction from the Commissioner, Letters of Appreciation, Permission to hold raffle etc.

Part 2 deals with Personnel e.g. Enlistment, Dismissals, Promotions, Rewards, Marriages, and Punishment by way of Court of Enquiry, Announcements of Deaths etc.

POLICE GAZETTE

This is a confidential document and is published for the information of Police and Law officers only. On no account should the contents be communicated to unauthorized persons. Communication for the Police Gazette should be addressed to A.C.P. Crime, C.I.B. Headquarters P.O. Box. 462, Kingston

ESPRIT DE CORP

This is a weekly newspaper published by the Commissioner of Police through the Public Relations Division to members of the Force. This is not confidential and may be read by members of the public. It highlights messages from the Commissioner and or other distinguished persons to members of the Force: success of members of the Force in any particular endeavour, sports and other news affecting the force.

OTHER ISSUE

Patrol Book

The object of the patrol book is to enable member of the public particularly those in remote districts to record and report or complain that they may wish the police to take action.

Visit Sheet

The policeman on beat duty and some patrol duty carries this sheet. On this sheet is recorded the visit of his senior who will state whether or not the Constable found on the alert, the time of visit place seen and special remark he wish to make.

Identification booklet (Repeal vide F.O. 2871)

This is a booklet with the necessary particulars to identify the holder as a member of the Jamaica Constabulary Force or the Island Special Constabulary Force. It contains the holders photograph, right thumb impression, regulation number and name also signature of the Commissioner of Police or his agent.

New Identification Cards

The Minister of National Security gave approval for the issue and use of new Identification Cards by members of the Jamaica Constabulary Force, Island Special Constabulary Force and District Constables. The card was issue on a phase basis.

The Electoral Office of Jamaica (EOJ) will prepare the cards. They will be made of white Polyvinyl Chloride (PVC) material with an actual size of 2.5 x 2.5 cm and a thickness of 30 mm. Photographs and authorized signatures will be captured digitally and will be of high resolution. These photographs will be against red, blue and grey background for member of the JCF, ISCF and District Constables respectively. It will also contain the Jamaica Constabulary Force's Logo, personalized hologram and watermarks, which are unique security features.

All cards will contain the following:

Front

Employee's Name
Rank
Identification numbers (computer number)
Employee signature
Authorized signature (Commissioner of Police)

Reverse

Notice to members of the J.C.f, ISCF, District Constables and member of the public Expiry date

Issuance of Cards

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Rank and file members of the Jamaica Constabulary Force (sergeants and Constable) will be issued ID cards for five (5) years, the renewal of which will coincide with their re-enlistment. However where issuance takes place not more than one (1) years prior to re-enlistment, the card will have a life span of six (6) years maximum.

CONDUCT OF MEMBERS OF THE JAMAICA CONSTABULARY FORCE

Wearing of Denim (F.O. 2901 13.1.03)

It has been observed that many Police Personnel are breaching Force directives as they relate to the Wearing of Denims.

This unauthorized practice **must cease immediately**. Anyone found in breach of this directive will be severely dealt with.

The relevant directives as laid down in Force Orders 2615 Part I Sub. No. 1 dated 17.07.97 is republished hereunder.

"Blue denim is issued to certain members of the Jamaica Constabulary Force for example; Mobile Reserve, SACTF, Crime Management Unit and the Island Special Constabulary as fatigue dress and are **NOT** to be worn on ordinary duties. In cases where special operations are undertake in rough terrain, Commanding Officers may authorize the wearing of denim but the badges of rank and other insignia of the Force must be prominently displayed thereon.

Blue denim may also be worn by lock-up staff when actually on lock-up duties.

Commanding Officers are to ensure that these directives are adhered to since they will be held accountable for any breach of this order committed by personnel under their command.

Wearing of Head Dress

In spite of my directives in Force Orders No. 2702 Part I, Sub. No. 1 dated 22.04.99 dealing with the wearing of head dress by members of the Force and its Auxiliaries, some members continue to flout the directives.

The Force Order in question makes provisions for members of the Force and its Auxiliaries when in uniform not to wear head dress while driving or being driven in service vehicles.

However, if for any reason members have to leave the unit the head dress must be worn. Disciplinary action will be taken against any member found in breach of these Orders.

Conduct

The following extracts from the relevant Force Orders are hereby republished for general information and strict compliance.

- Force Order No. 2287 part I, Sub. 1, dated 04.04.91 (Chapter 6 of Force Manual)

Code No. 20

"All Members are prohibited from consuming beer, wine or any alcoholic beverage while on duty".

Code No. 31

"Respect for the police is of paramount importance and, for the most respect is predicated upon the appearance and personal grooming of a member. Based upon that premise, it is the policy of this Force that police personnel will be clean, neat and well groomed at all times.

- Force Orders No. 1875 and 2015 Part I Sub. No. 2 and 3 dated 12.05.1983 and 03.01.1986 respectively.

"It has come to notice tht despite this and previous orders on the subject some women police are still wearing certain jewellery in uniform such as chains, bangles, bracelets and earrings. In addition, lipstick and rouge are also being worn in uniform.

The latest development is the wearing of "braided hair". This practice is not in keeping with the proper standard of uniform dress and presents an unsightly picture.

Specimen – Leave Application

Jamaica Police Academy
Twickenham Park
St. Catherine

July 23, 2002

Sub Officer i/c
Squad # 6

Application of No. 10078 Student Constable Elsworth Robinson for Weekend Pass.

I hereby apply for weekend pass commencing;

From: 12:00 noon Saturday 27th July 2002

To: 8:00 p.m. Sunday 28th July 2002

For the purpose of proceeding to Lot 3456 Toledo Drive, Clarendon Park, to attending the Graduation Exercise of my 18 years old son from The Portmore Heart Academy, which will be held at the Pegasus Hotel, New Kingston, on Sunday 28th July 2002 starting at 11:00 a.m.

Sign:

Specimen – Constabulary Leave Pass

The bearer No. 10078 Student Constable Elsworth Robinson, has permission to be absent from training commencing;

From: 12:00 noon Saturday 27th July 2002

To: 8:00 p.m. Sunday 28th July 2002

For the purpose of proceeding to Lot 3456 Toledo Drive, Clarendon Park, to attending the Graduation Exercise of my 18 years old son from The Portmore Heart Academy, which will be held at the Pegasus Hotel, New Kingston, on Sunday 28th July 2002 starting at 11:00 a.m.

Recommended by

.....
Approved by
Commandant

DISCIPLINE

It is the means whereby a person exercises or is made to exercise restraint or control of his conduct. In the widest sense, it is the carrying out of a duty with the knowledge that the act done is in conformity with the principles that have been laid down.

Whatever personal feeling there may be and however distasteful the performance, the word discipline means to “obey”. It develops the character through strict mental and moral training.

In the Jamaica Constabulary Force discipline means strict regularity and unrelenting vigilance, the exercise of proper judgement by every constable in the performance of his duties and the proper regard for administrative orders given by an officer or sub-officer.

TYPES OF DISCIPLINE

There are two types of discipline:

SELF DISCIPLINE

This is the conduct of the individual in such a manner, which is beyond reproach. He or she is responsible for the conduct of his or herself. To maintain proper discipline one must set a standard and strive towards it.

GROUP DISCIPLINE

This is the conduct maintained within a group or organization to which one belongs by keeping the rules governing it.

HOW MAINTAINED

To maintain good discipline a standard should be set. There should be certain guiding rules or a set of daily routine to follow. The following principles should be upheld; Courtesy, Obedience, Honesty, Truthfulness, Pride in one self and the Force, Sobriety and Esprit De Corp.

ESPRIT DE CORP

It is the animated spirit of comradeship, which should exist in every group or organization. The term implies that each member of the Force should consider himself a link in the chain and that the chain is no stronger than its weakest link.

It also means pulling together one with the other for the benefit of the organization. Esprit de Corp is truly necessary in the Force if an efficient Force is to be maintained.

HISTORY AND STRUCTURE OF THE JAMAICA CONSTABULARY FORCE

INTRODUCTION

Police means and includes the organization formed in any civilized community for maintaining Order, preventing and detecting crime and enforcing the Law.

1671

The earliest record of the office of Constable in Jamaica was found in a letter from Charles II of England in 1671 advising the Provost Marshall to convene an assembly for the Government of the Island. The letter specified that it was the duty of the Citizens to volunteer for service in the office of Constable. The office was voluntary and unpaid with resulting reluctance on the part of citizens to volunteer for service.

1716

This situation was improved by an Act for the more easy serving of Constables. They were paid for the first time and accountable to Justices. Their services were the function of Civil Judicial Summons, as also to arrest persons committing offences, suspects and slaves without tickets. They were paid from the parish tax, and there is no evidence of formal training or the degree of discipline enforced.

1777

An Act of 1777 repealed the 1716 Act and provided for the appointment of Petty Constables under similar conditions but this time providing legal authority to discharge offending Constables for misbehaviour.

1832

The first attempt was made to form an organized permanent Police Force in response to an existing State of unrest and the threats of insurrections from runaway slaves assembling in the interior, committing crimes and inciting the slave population to rebellion. Samuel Sharpe led this during the Christmas week of 1831. The Reverent H. Bleby a Westleyham Missionary described Sharpe as the most remarkable and intelligent slave he had ever met. There was no organization adequate to deal with the situation and so the Act was passed in 1832 forming a permanent Police Force. The Police were empowered to take measures as were necessary to preserve the Public Peace. They were armed, clothed and equipped similar to the British Army. The Island was divided into townships each being served by a detachment accountable to the Justices.

1833

In 1833 an Act was passed resting powers in the Governors to import members from the Dominions for the purpose of establishing the Force. There were three separate bodies, Constables, Petty Constables and watchmen.

1856

Another Act was passed and the three services made into one Force. The Inspectors took instruction from the Governor and members being paid from the Public Fund. The duties were re-defined to include those previously performed by Parochial Constables, to attend Court, Preserve the Peace and apprehend offenders. Uniform was provided at public expense. The Force consisted of 15 Inspectors, 41 Sergeants and 406 Constables.

1865

In 1865 a rebellion broke out in Morant Bay, which required the services of the Force. This showed the entire absence of co-operation between the parishes and the lack of effective control of the Force.

1867

As a result of the event of 1865 a Law was passed in 1867 organizing the Jamaica constabulary Force, as it is known today. It was organized along the lines of the Royal Irish Constabulary. Discipline and drill were introduced on the Force on a semi-military line. A Central Training Depot was provided in Spanish Town for the training of recruits.

1938

In 1938 the efficiency of the organized Force was put to the test. Fortunately it showed a remarkable strength of character and enhanced its reputation by the splendid display of its members suppressing the Island wide Riots.

1946

At the end of the Second World War the increasing complex and difficult social and political conditions existing in the Island became too much for the Force. An Officer of the London Metropolitan Police (Mr. D. Calver) was engaged to enquire into and report on the organization. After submitting the report he accepted the post of Commissioner of Police with a directive to effect necessary reform. Under his command the Force took on a new direction with the establishment of the Women Police in 1947, the publication of a reference book called "The Jamaica Police Guide" and pocket book of "Duty Hints" for Constables.

Up until the early 1960's they were recruited from outside the Force. The Force now has all of its Officers coming from the ranks.

ORGANIZATION AND STRUCTURE OF THE CONSTABULARY

Constitution of the Force - Sec. 3 (1) of the Jamaica Constabulary Force Act

It shall be lawful for the Governor General to constitute a Police Force, which shall be called the "Jamaica Constabulary Force" which shall be partially under military organization and discipline.

Responsibilities

- ❖ Maintenance of Law and Order
- ❖ Prevention and Detection of Crime
- ❖ Protection of life and Property
- ❖ Investigations of alleged crimes
- ❖ The enforcement of all criminal Laws
- ❖ Assist in civil disputes
- ❖ Immigration Control
- ❖ Issue and renewal of Passports

These responsibilities will be dealt with under separate lessons.

Structure

- ✓ Constabulary Organizational Chart - Appendix one
- ✓ Duties and responsibilities of each of the portfolios.

Internal Security

The duties and responsibilities of the Assistant Commissioner of Police, internal security is to direct, control and co-ordinate all the activities of the Security Branch.

- ❖ Special Branch - This is under the command of An Assistant Commissioner of Police, who has responsibilities for matters of National Security. He also directs, controls and co-ordinates the activities of Immigration Divisions and Protective Services Division with special responsibility for V.I.P. (*very important person*) Security.
- ❖ The Special Branch has approximately 81 members. Seventy seven(77) Immigration Division members and 101 Protective Services members. The Immigration Division deals with the controls of persons entering and leaving Jamaica, also the issue and renewal of passports.
- ❖ The Protective Service Division provides security for VIP's Minister of Government, Foreign Head of States etc.

Crime

A Deputy Commissioner of Police, who has responsibility for all matters, heads this portfolio, pertaining to crime and criminal investigations throughout the Island.

- ❖ Criminal Investigation: This section has about 190 persons island wide, they wear plain clothes and investigate all crimes reported. This section includes Photographic, Fingerprint, Handwriting, Records, Fraud, Stolen Motor Vehicles, Flying Squad and Homicide.
- ❖ Forensic Laboratory: an Assistant Commissioner of Police who has a Staff of 5 comprising of Police Personnel and Civilians heads this section. They provide the Scientific evidence needed in Court, they collect, analyze samples of blood, urine etc. taken to them. They also deal with ballistic test (firearms).
- ❖ Criminal Intelligence: (National Firearms and Drugs Intelligence Centre, N.F.D.I.C.) This section collects data on Criminals, Criminal Activities to include Firearms and Drugs. This information is passed on to the Criminal Investigations for action.
- ❖ Narcotics: An officer who has 68 men under his command heads this section; their chief function is to fight against drugs.

Administration & Support Services:

A Deputy Commissioner of Police who has responsibility for co-ordination, control and direction of the administrative machinery of the Force as they relate to Training, Personnel and Finance heads this portfolio.

- ❖ Administration: A Deputy Commissioner of Police who directs all the activities of the Administration heads this branch.
- ❖ Personnel: an Officer who has responsibility for Personnel Records and Files as also Transfers heads this section.
- ❖ Training Branch: an Assistant Commissioner of Police who directs all the activities of the branch to include the Police Academy and Staff College heads this branch.
- ❖ Police Academy: This section is headed by a Senior Superintendent of Police who has the responsibility for the training of Sub-Officers and men and of maintaining the whole Force always in an effective state of drill and discipline.
- ❖ Police Staff College: This section is headed by a Senior Superintendent of Police who directs the activities of the College as it relates to the training of members of the Force above the rank of Inspectors.
- ❖ Planning and Research: a Senior Superintendent of Police with a Staff of 26 heads this branch. The activities of the branch include:-
 - Assisting the Commissioner of Police in the decision making process by providing specially analyzed and evaluated information based on research.
 - Assisting the Force in the areas of specialized planning for long and short-term purposes.
 - Developing and administering systematic feedback methods as evaluation devices for Administrative and Management control.
 - The Commissioner of Police may direct such other duties as he see fit.
- ❖ Services - This branch is headed by an Assistant Commissioner of Police who directs the activities of Transport and Repairs, Telecommunication, H.Q. Stores and Armoury, Detention and Courts and Energy Conservation
 - Transport and Repairs -This Division is headed by a Transport Manager (civilian) with a staff of about 100 men (Police and civilians). Their duties include ordinary distributing and maintaining vehicles for the Jamaica Constabulary Force.
 - Telecommunication - a Senior Superintendent of Police with a staff of about 60 heads this Section. Their duties include the installation and maintenance of Telecommunication in the Island of Jamaica.
 - Armoury and Stores - This Section is headed by an Assistant Commissioner of Police with a staff of about 11 to include civilians. Their duties include servicing the user departments in respect of the Divisions/Stations of the J.C.F. They provide uniform, equipment, arms/ammunition, buildings furniture and cleaning equipment with funding from Government.
 - Conservation – a Senior Superintendent of Police whose task is to supervise the usage of gasoline and oil, recommend and introduce methods of conservation without affecting the efficiency of the Force heads This Section.

Inspection

An Assistant Commissioner Police with a staff of about 10 heads This Branch. Its main functions are:

- To visit Police Formations and see to the proper maintenance of all records and property.
- Monitor the standard of work and discipline of all members of Force.
- Assist Divisional Officers and other Officers where necessary to interpret Headquarters policy guidelines.

Detention and Courts

A Superintendent of Police with a staff of about 15 heads this Section. The activities of the section includes:

- ❖ Co-coordinating all matters relating to the Courts and Police Lock-ups.
- ❖ Inspecting and reporting upon the condition, inmates and administration of all Police Lock-ups.

- ❖ Supervising all Courts as far as Police functions are concerned and liaison with Divisional Officers as necessary in this respect.
- ❖ Ensuring that the Courts and Police Lock-ups function efficiently, particularly in respect of security.
- ❖ Liaison with the Divisional Officers concerned on all matters connected with the preparation of jury list, jury process and presence of the juror in the Courts when necessary.

Services and Special Projects

This portfolio is headed by a Deputy Commissioner of Police who has the responsibility for the coordination control and direction of the activities of the Project Branch.

Operation and Mobile Reserve

A Deputy Commissioner of Police who has responsibility for the control heads this portfolio, direction and co-ordination of all the activities of the Operations and Mobile Reserve Branches.

- ❖ **Operations** - Commanded by a Deputy Commissioner Police with 54 personnel whose task includes policing of labour disputes, Policing major incidents (planned and unplanned) general supervision of Police Radio Control Center.
- ❖ **Traffic** - This Section is headed by a Senior Superintendent of Police with about 103 men island wide. Their duties include the control and regulation of traffic on the roads as also providing escorts to personnel (V.I.P local and foreign) and equipment.
- ❖ **Marine** - This Section has one Officer and fifty other ranks. Activities includes:
 - Anti-smuggling operations under the Customs Act.
 - General supervision of docking of vessels in ports.
 - Surveillance of Jamaica Coastal Waters.
 - Narcotics and Drugs Enforcement Agency.
 - Assistant to Government Agencies.
 - Search and Rescue operations.
 - Maintenance and liaison with J.D.F. Coast Guards, Harbour Masters Department and Beach Control Authority.
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- ❖ **Mounted Troop** - a Deputy Superintendent of Police with a staff of 19 men and 15 horses heads this Division. The main duties are crowd and traffic control, community patrol, displays to foster Police/Community relationship and criminal escort.
- ❖ **Canine** - a Deputy Superintendent of Police who has a staff of 47 men heads This Section. There are 49 dogs at this Section. Their duties include crime fighting, operational and detecting of drugs.
- ❖ **Special Anti-Crime Task Force** - This section was established as a direct response to, the upsurge in criminal activities, particularly gun crimes. This unit is headed by a Senior Superintendent of Police and is made up of specially selected personnel, who have received specific training, which focused on the recovery of guns and the apprehension of gunmen.
- ❖ **Motorized Patrol** - a Deputy Superintendent of Police with a staff of about 153 men and a fleet of about 75 cars heads This Section. Their functions are:
 - To assure the public of the presence of the Police by displaying marked Police cars on patrol in their particular area.
 - The granting of prompt action in cases of emergency or in any situation that requires this service. Their emergency number is 119.
- ❖ **Mobile Reserve** - an Assistant Commissioner Police who commands approximately 686 men and women to include Officers heads This Branch. Their functions are:
 - To quell public disorder.
 - Cordon and search high criminal activity areas.
 - Armed response to any incident.
 - Armed escort to VIP's cash, goods and high risk prisoners.
- ❖ **Band** - This Section is headed by a Superintendent of Police and has 42 other members. Their duties includes fostering good Police/Community Relations by playing music at public concerts as also general Police Duties in crimes or emergency.

- ❖ **Auxiliaries** - an Assistant Commissioner of Police who has a staff of about 10 men heads This Branch. The Assistant Commissioner of Police directs, control and co-ordinate all activities of the Auxiliary Forces.

DUTIES AND RESPONSIBILITIES OF THE COMMISSIONER OF POLICE

The Commissioner of Police has responsibilities for:

- ✓ The overall command and superintendence of the Force.
- ✓ Force objectives and general command.
- ✓ Questions in the House of Parliament and the Cabinet through the Minister.
- ✓ Rules and regulation of the Force.
- ✓ The Police Federation.

Some Past Commissioners are:

1.	Desmond Campbell	1977 - 1980
2.	Wilbert Bowes	1980 - 1983
3.	Joseph Williams	1983 - 1985
4.	Herman Ricketts	1985 - 1991
5	Roy Thompson	1991 - 1993
6.	Col. T.N.N. McMillan	1993 - 1996
7.	INCUMBENT -	Francis A. Forbes

DUTIES AND RESPONSIBILITIES OF THE DEPUTY COMMISSIONERS

He is in charge of a portfolio and responsible for its administration and operation. The Deputy Commissioners and their Current Assignments are as follows:

- a. Operations and Mobile Reserve
- b. Crime
- c. Administration and Services
- d. Special Projects

DUTIES AND RESPONSIBILITIES OF THE ASSISTANT COMMISSIONERS:

They are in-charge of various Branches and Administrative Areas. Jamaica is divided into five (5) Administrative Areas, each containing three (3) or more Divisions and numerous Stations and Sub-Stations. Each of the Administrative Areas is under the direction of an Assistant Commissioner of Police.

Area 1

Have the following Divisions each headed by a Superintendent of Police. Westmoreland (SP), St. James (SSP), Hanover (DSP) and Trelawny (SP), the Area Headquarters is in Montego Bay.

Area 2

Have the following Divisions each headed by a Superintendent of Police. St. Ann, Portland and St. Mary, the Area Headquarters is in Annotto Bay.

Area 3

Have the following Divisions each headed by a Superintendent of Police. Manchester, St. Elizabeth and Clarendon, the Area Headquarters is in Mandeville.

Area 4

Have the following Divisions each headed by a Superintendent of Police. Kingston Eastern (SP), Kingston Central, Kingston Western, St. Andrew Central and St. Andrew South, the Area Headquarters is at 1 West Street, Kingston.

Area 5

Have the following Divisions each headed by a Superintendent of Police. St. Thomas, St. Andrew North and St. Catherine. The Area Headquarters is at Constant Spring.

There are about 167 Police Stations within the 18 Divisions. Each sub-station or out-station is under the Supervision of a Sub-Officer.

RANKS:

- Commissioner of Police, (C.P.).

- Deputy Commissioner of Police, (D.C.P.).
- Assistant Commissioner of Police, (A.C.P.).
- Senior Superintendent of Police, (S.S.P.).
- Superintendent of Police, (S.P.).
- Deputy Superintendent of Police, (D.S.P.).
- Assistant Superintendent of Police, (A.S.P.).
- Inspector.
- Sergeant.
- Corporal.
- Acting Corporal (being phase out)
- Constables.

Ranks above Inspectors are called Gazetted Officers and are considered the Management Cadre. Inspectors, Sergeants and Corporals are considered Sub-Officers.

Strength of Personnel as at March 2000 stands at:

- Three (3) Deputy Commissioners of Police, (D.C.P.).
- Fifteen (15) Assistant Commissioners of Police, (A.C.P.).
- Thirty (30) Senior Superintendents of Police, (S.S.P.).
- Fifty-two (52) Superintendents of Police, (S.P.)
- One Hundred and Forty One (141) Deputy Superintendents of Police, (D.S.P.).
- Thirty One (31) Assistant Superintendents of Police, (A.S.P.).
- Four hundred (400) Inspectors
- One Thousand One Hundred and Nineteen (1,119) Sergeants.
- One Eight Hundred and Two (1,802) Corporals.
- Four Thousand Eight Hundred and Ninety Six (4896) Constables.

Total personnel of all ranks in March 2000 were 7098. Special Constables are about 1,800 and District Constables 1,398.

GAZETTED OFFICERS TITLE

- Commissioner of Police - one Laurel Wreath and one Crown on each shoulder strap.
- Deputy Commissioner of Police - One Laurel Wreath & 2 stars on each shoulder strap.
- Assistant Commissioner of Police - One Laurel Wreath on each shoulder strap.
- Senior Superintendent of Police - One Crown and one Star on each shoulder strap.
- Superintendent of Police - One Crown on each shoulder strap.
- Deputy Superintendent of Police - three stars on each shoulder strap.
- Assistant Superintendent of Police - two Stars on each shoulder strap.

SUB-OFFICERS TITLE

- Inspector Two Metal Bars on each shoulder strap.
- Sergeant Three Bar Chevron on right shirtsleeve.
- Corporal Two Bar Chevron on right shirtsleeve.

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FACILITIES IN THE FORCE

Following are some of the facilities afforded members of the Jamaica Constabulary Force:-

LEAVE: The question of leave for Sub-Officers and men are governed by Rules 98 -108.

VACATION LEAVE RULE 98: The Commissioner of Police is empowered to grant Vacation Leave to Sub-Officers and Constables as follows: -

- To all sub-officers or constable under five (5) years service - one (1) month during each biennial period, counting from the date of enlistment and not the date of resumption off last vacation leave.
- To all sub-officers or constable over five (5) years service - two (2) months during each biennial period counting from the date of enlistment and not from the date of resumption off last vacation leave.

Provided that:-

- The sub-officer or constable is well conducted and there is no disciplinary charge (s) pending against him (Rule 99 (2)).
- Not more than 5% of the total of the Division can be on Leave (Vacation or Short) during any one time.
- The sub-officer or constable has not been convicted of a default within 2 months of the date he visited to proceed on leave.

ACCUMULATED VACATION LEAVE:

A sub-officer or constable may accumulate vacation leave to a maximum of 105 days in the following manner for example:-

A Sub-Officer or Constable joined the force on the 28.2.70. He was granted 1 month vacation leave in 1974. In 1976 he applied for 2 months leave, but due to the exigencies of the service this was denied him.

In 1977 he became eligible for 3 months leave and applied for same. It was again denied him for the previous reason. In 1978 he becomes eligible for 4 months leave, but because of the fact that the maximum is 105 days this is all he can apply for.

Consequently if a member does not apply for this leave when he becomes eligible he is not entitled to accumulate.

SHORT (*Departmental*) LEAVE (RULE 99)

The officer in-charge of the Division may grant a sub-officer or well conducted constable Short Leave in periods of not more than 6 days each time to a total of 14 days each calendar year i.e. 1st January to 31st December. Sundays and Public Holidays are not counted in this leave.

SICK LEAVE RULE 103 – 106

Full pay sick leave not exceeding 28 days in each calendar year on Medical Certificate will be granted each sub-officer or constable place on sick list whether in hospital, barracks or quarters.

The Divisional Officer on behalf of the Commissioner of Police approves this leave.

At the end of this 28 days leave the member remains on the full pay sick list he will be granted half pay sick leave for a further period of 2 months.

At the end of this period if the member remains on the sick list, he should be placed before a Medical Board, which will examine him and decide on his fitness for further service in the Force. During this period the member shall be paid such salary (unusually 3/8) as the Commissioner of Police may recommend.

It should be noted that the periods just mentioned i.e. 28 days 2 months etc. apply to each calendar year. Consequently if for example a member goes on continuous sick leave on the 1st September he would be entitled to 28 days in September at full pay; the next 2 months from 29th September will be on 1/2 pay and thereafter to the 31st December on 3/8 pay. On the 1st of January he becomes entitled to 28 days full pay etc. until his case is decided.

INJURY ON DUTY:

When a member becomes ill because of injuries he received on duty, or as a result of the nature of his duties he shall be eligible to receive full pay for whatever period he may remain on sick leave. (F.O. 1444 dd. 6.2.75).

The Commissioner of Police makes the decision as to whether an injury or illness was contracted in the discharge of duty etc. when the member concerned applies for an entry of the injury or illness on the Medical History Sheet in accordance with Rule 473.

MATERNITY LEAVE (RULE 98B)

The Commissioner of Police may grant to a married female sub-officer or constable, leave for maternity purposes (in addition to any vacation leave for which she may be eligible).

- On full pay for a period not exceeding 1 month (to be known as special maternity leave) and in addition;
- Without pay for a period not exceeding 3 months.

An unmarried female sub-officer or constable shall not be eligible for special maternity leave but the Commissioner of Police may grant to such sub-officer or constable in addition to any Vacation Leave for which she may be eligible, leave without pay for a period not exceeding 3 months for maternity purposes.

Provided that such leave shall not be granted on more than one occasion.

STUDY LEAVE

When an officer undertakes any course of study in the interest of the Public Service, he will be required to utilize for this purpose, all Vacation Leave, accumulated Vacation leave and recalled leave to which he is entitled and he may be granted by Heads of Department such additional full pay study leave up to a maximum of six (6) months to enable him to complete the course. Should the above course of study, he may be granted a further period of half pay study leave not exceeding a maximum of twenty-four months. Any further leave required would be without pay.

RECREATION

On completion of a study course an officer may be granted with full pay, a half of what Vacation, accumulated Vacation Leave and recalled leave which he utilize whilst on the course of study. This leave is called recreation leave.

DAYS OFF

Days off shall be granted to well conducted sub-officers and constables subjected to the exigencies of the service on the basis of one day off in every eight days, and a weekend off in every six weeks. e.g.

Monday off this week, Tuesday off next week and in that order until Saturday is reached when the members would be given Saturday and Sunday off known as "Week-End".

LEGAL AID

Is the term applied to the legal assistance given to Servants of the crown (Public Servants). When civil suits are brought against them arising from acts done in the performance of their duties.

When a plaintiff files a suit or plaint a writ or summons containing particulars of the claim is issued against the defendants in case of the Force, the members concerned the Attorney General.

Immediately upon service of the writ upon him the member must make a full report to his sub-officer with the writ of summons attached.

This report should contain: -

- The date and time of service the writ upon him.
- All the facts and circumstances of the incident from which the writ arises.
- The sentence "I hereby apply for legal aid in this matter."

- The usual undertaking i.e. I agree to abide by the decision of the Attorney General in respects to any settlement that may have to be done in this case or as to any amount they may be assessed against me.

POLICE FEDERATION (C.F. ACT SECTION 72): -

Delegates are selected from each rank yearly. It represents members of the Force from Constables to Inspectors. Its functions are to look after welfare of its members regarding matters of pay, oppressive conduct, transfer and victimization.

ALLOWANCES:

Members of the Force are entitled to the following allowances: -

- **HOUSE ALLOWANCE- (section 52 (2))** This is paid to all members of the force on a rank structure. However trainees are not entitled to the allowance whilst in training until they have graduated it becomes payable automatically.
 - ❖ Married
 - ❖ Unmarried, but being a female, member have to live away from his/her station because of insufficient living quarters at the said station.

NOTE: The rates for allowance vary according to rank.

UNIFORM ALLOWANCE: This is paid to Officers and Inspectors.

PLAIN CLOTHES ALLOWANCE: This is paid to Detectives.

SUBSISTENCE ALLOWANCE: This is paid to members performing duties beyond 10 miles from his station for a period of 6 hours or more.

MOTOR VEHICLE & HORSE ALLOWANCE: This is paid to members who use their private motorcars, motorcycle or horse in the performance of their duties. This is subject to existing vacancies.

DUTY ALLOWANCE: This is paid to all members of the Force in lieu of overtime.

WASHING ALLOWANCE: This is paid to all members of the Force.

LOANS TO PURCHASE MOTOR VEHICLE, HORSE: This loan may be lent from Government (Interest free) by qualified members to purchase motorcar, motorcycle or horse for use in the performance of their duty.

PENSION & GRATUITY: See Sec. 53 of C.F. Act. and (Section 2 First Schedule)

Subject to the provision of this Act and these Regulations, every Constable who has been in the force for ten (10) years or more may be granted on retirement a pension at the rate of one five hundred and fortieth of his pay at the date of retirement for each complete month of service.

Provided however that if a Constable who has not been in the Force for ten years or more -

- (a) Retires in the circumstances described in paragraph (a) (ii) of subsection (1) of section 56 of this Act and it is certified on medical evidence to the satisfaction of the Governor-General that his infirmity makes him incapable of otherwise earning a livelihood; and
- (b) Such Constable is not eligible for any pension under regulation 4,

Such gratuity may be increased to such amount not exceeding twenty days' pay at the date of his retirement, for each complete six months of service as the Governor-General may determine.

However if his retirement is necessitated or materially accelerated by his injury and he has been in the force for less than ten years he may be granted a pension as if he were in the force for more than ten (10) years.

He may also be granted a disability allowance in addition pension.

Circumstances in which pension may be granted. (Section 56)

(1)

Subject to subsection (2), no pension, gratuity or other allowance, shall be granted under this Part -

- (a) To any Constable except on his retirement from the Force in one of the following cases –

Subject to Sub-Paragraph (iii)

- (i) On or after attaining the age of fifty-five years or, with the approval of the Governor-General, fifty years;
- (ii) On medical evidence, to the satisfaction of the Governor-General, that he is incapable of discharging his duties efficiently by reason of any infirmity of body that is likely to be permanent, or any infirmity of mind;
- (iii) At his option, after completing not less than 30 years of service or
- (b) To any person except on his retirement from public service in circumstances in which he is eligible for pension, gratuity or other allowance under any law or regulations which are applicable to such public service and where that person left the Force for the purpose of entering public service.

(2)

A person who left the Force in circumstances in which, having regard to the provisions of subsection (1), he was not entitled to a pension, gratuity or other allowance, may, on such terms and conditions as may be prescribed, be granted a pension, gratuity or other allowance on attaining the age of sixty years.

(3)

The provisions of subsection (2) shall not apply to any person who, having left the Force prior to the appointed day, was not in the Force on the appointed day, unless that person is re-appointed to the Force or to the public service after the appointed day; and any pension, gratuity or other allowance granted to any person pursuant to that subsection shall be computed in accordance with the provisions in force at the date when that person finally left the force or the public service, whichever is the later.

(4)

*****Notwithstanding the provisions of Sub-section (i) (a) (iii) and 57, the normal retiring age of any Constable shall be sixty years.*****

(5)

In this section "appointed day" means the 1st of April, 1972.

***** This section was amended: Pass in the House of Representative on 3.7.2002, Pass in Senate 12.7.2002, Signed into Law by Governor General 29.8.2002.*****

COMPENSATION:

- ❖ The Police Federation gives \$30000.00 as funeral grant according to law
- ❖ \$4,000,000.00 Gratuity from Government. This is when a Policeman dies in the execution of duty from injuries received in circumstances directly attributed to the nature of duty.
- ❖ Funeral grant of \$30,000.00 will be paid to the relatives of a Policeman who dies in the line of duty or \$10,000.00 Funeral grant; one (1) year salary by other cause

This money is paid by Government through the Police Department (Public Relations Division).

COURSE:

Refresher as well as specialized courses conducted locally and overseas are afforded members of the force from time to time.

ADVANCEMENT:

Promotional examinations are held yearly for promotion in the force. A well-conducted Constable on completion of four years service will be eligible to sit the promotional examination. Corporals on completion to two years in their ranks would be eligible to sit the promotional examination respectively.

ACCELERATED PROMOTION SCHEME:

This system is whereby members with five (5) years service or over are processed and selected for specialized training to equip them for promotion.

Successful candidates are given local and overseas courses after which rapid promotion may result to the Gazetted ranks.

GRADUATE ENTRY PROGRAMME:

This system is where persons within and outside of the force, who are graduates of tertiary institution in the field of; Telecommunication, Engineering, Psychology, Sociology, Computer Science, and Accounting, can become eligible for promotion to the rank of Assistant Superintendent of Police within eighteen (18) months.

AIDS TO STUDY METHOD OF LEARNING

INTRODUCTION

By joining the Jamaica Constabulary Force you have indicated your desire to be part of a large professional organization committed to serving the country in law enforcement.

On the Basic Training Course you will be one of a group of young people drawn from a variety of walks of life. Some will have good educational qualifications, others will have none; some will have recent experience of study, others will have not; some will find studying easy others will find it hard.

At the Jamaica Police Academy irrespective of your background you will undergo thirty two weeks of intensive training where a systematic method of study will be of paramount importance. The dedicated team of trainers is committed to giving you their best but they can only do so much. In the final analysis, the extent to which you develop and you will determine benefit from the course, yes you.

Policing is a very responsible job so in the Academy we will start by giving you some responsibility for your own training and development. If you cannot do that you will never be able to take on the high responsibilities of operational policing. It will not always be easy, often the work here will be very demanding, sometimes confusing, but we hope you will enjoy the experience and with hard work and determination show that in selecting you we made the correct choice. There is no place here for the lazy or work shy.

These notes have been prepared in an attempt to assist you with the task ahead.

How to Study

There is no quick fix answer on how to study. It is a very laborious exercise that takes:

- ✓ Energy, effort of will, discipline,
- ✓ Perseverance and ambition.

In return you will:

- ✓ Develop more self confidence,
- ✓ Appreciate one's self,
- ✓ Be able to participate in class,
- ✓ Know the facts,
- ✓ Pass exams, but most of all,
- ✓ Be able to do the job.

Learning is not an end in itself; it is a means to an end. The end is being a knowledgeable, competent, professional police officer. However you prefer to tackle your self - directed study you are going to need to organize yourself, sharpen your mind, and hone your study skills in order to get the best return on your time and energy investment.

Study skills are efficient ways of using your time and mind.

Adapt A Positive - Attitude Look on study as an opportunity to learn and develop, rather than as an unpleasant task to complete.

Create the climate - We all learn best in settings that fit our individual personalities those that reflect particular learning styles and preferences. Try to create the type of learning climate and space that most suits you. At the Jamaica Police Academy the options open to you are limited, and they may not be ideal, but you do have choices. Search out the place that suits you best.

Inside / outside
Classroom / dormitory
Quiet / background noise
Solitude / company -

Wherever you choose, ensure that it is relatively comfortable, and allows you the privacy and freedom from distraction that you will need to concentrate,

Manage your time

Managing your time begins by managing your personal clock. Are you a day person or a night person? Schedule your time to take advantage of your natural peaks of energy and attention. The same holds for deciding upon the length of your study periods.

If you are a slow starter then your study periods will need to be longer than those who quickly settle into systematic study just to cover the same ground. Remember, however, that your studying should take precedence over other activities during the period you have set aside. Study time should therefore be carefully selected and not be allowed to clash with duty detail or extra curricula activities.

Include leisure time

Do not overdo it. Remember, all work and no play makes Jack a dull boy". Put aside time for leisure when you can take a break from study. This applies particularly at weekends. Give yourself a break, the rest and change will do you good - refresh the mind and make the brain keen and alert for when you re-commence your study programme.

Steal time

Take every opportunity to steal time. Study while:

- ✓ travelling (even on a crowded bus).
- ✓ brushing your teeth.
- ✓ putting make up on.
- ✓ getting dressed.

Remember you do not need a book or your notes when stealing time. Turn over the material in your head, think out a problem, and recite important definitions and powers.

Rest your mind

The mind can be rested in a variety of ways in addition to stopping for a rest. Organise your studies so that they vary in gravity, length and text. "A change is as good as a rest" make study blocks and reward yourself with, say, a ten minute break in every hour.

Concentrate

If students lack concentration they will interrupt themselves more frequently than they are by external forces. This occurs through the drifting of thought. Concentration requires practice and determination, and can be improved if you become an active learner.

The basic principles of being an active learner are:

- ✓ Think about what you are studying - preview the material before hand and then mentally review it periodically.
- ✓ Repeat key facts or ideas to yourself.
- ✓ Generate mental pictures to graphically illustrate the information to yourself.
- ✓ Question and analyze the information presented.
- ✓ Try to understand what you read.
- ✓ Do not read passively hoping to remember at the end.
- ✓ Practice concentrating on a subject for ten or fifteen minutes, holding your mind on it alone. Gradually extend this period until you are able to concentrate for fifty minutes without a break. Consciously dismiss intervening thoughts.

Often our minds wonder because we are reading too slowly, so try and speed up the process by pushing your eyes down the page.

If the material is particularly difficult or challenging for you, take more frequent breaks and give yourself rewards for accomplishing smaller tasks. But don't reward yourself for day dreaming by taking a break when your mind wanders, work rapidly for a short time, then take a break to reward yourself for regaining your concentration.

What you do in your breaks also affects your concentration. Staying too long in one position saps both physical and mental energy, your body becomes stiff, your brain becomes dulled. Without sufficient stimulation your attention wanders, your concentration fades, your memory weakens, so don't let yourself go

longer than about one hour without moving around. Stretch, go for a walk, and give yourself a change of scenery.

You may want to change your mental scenery too. Look at a magazine article or a newspaper, listen to the radio or have a short chat with a friend. Then begin studying again. Remember though, no matter how much you practice maintaining concentration you will always have off days when it will be hard for you to concentrate. Don't panic tomorrow is another day.

Develop your memory

Your memory can be either short-term or long-term. Short-term memory can hold about seven items (like a telephone number) for only fifteen to twenty seconds. Unless you intentionally move the information into long-term memory you'll forget it quickly. Here are some useful strategies for making that transfer, no matter what your thinking and learning styles are.

- ✓ Employ "chunking", seek out any possible patterns and cluster pieces of information together. Pick out key words to remember.
- ✓ Repeat the fact or idea to yourself - or write it down - immediately after learning it. This is not reading the page but saying the information to you without cues.
- ✓ Use the information as often as you possibly can. Like, if you are introduced to someone for the first time, use his or her name as soon and as often as you can.
- ✓ Turn a new piece of information around, making it into a question, then answer that question by restating the information. For instance, "How does Larceny by trick differ from false pretences?" It differs - sleep on it. You forget least those things learned just before sleep. Review your notes before going to bed and then again when you wake up. Your unconscious and conscious minds will work together to implant the information in your long-term memory. This is particularly useful when you are studying for an exam or preparing for a presentation.

Use mnemonic devices as memory aids to lock new information into the long-term memory. Typical mnemonic devices include catchwords or catch phrases, acronyms, rhymes, tunes, rhythms and visual images. E.L.B.O.W.S is an acronym used to help you remember the important pocket book rules. Birth dates, ages, shoe sizes, house numbers can be useful mnemonics but the association must be relevant and sufficiently catchy to inject the mind.

Use the information in your regular day-to-day activities at home and at the Academy. When watching television, listening to the radio, reading the newspaper watch for police related issues. If offences are mentioned, "What are the points to prove?" what procedure should be followed? ", "What powers do I have? ", "How would I deal with that?"

Listen effectively

Just as we become distracted if reading too slowly, our attention also starts to wander if we listen too slowly. Our minds can process the spoken word at rates from 400 to over 800 words per minute, but people speak at only about 120 to 80 words per minute. This being so we have plenty of spare time to think whilst lectures or presentations are being made.

Do not waste this valuable time. Many of the concentration and memory techniques mentioned above apply to effective listening as well. Essentially, what you must do to get the most benefit out of listening as a learning strategy is to use your spare mental processing time to actively think about what you are hearing.

Here are some suggestions for effective listening:

- ✓ Before the lecture or presentation starts, "tune in" your mind by thinking about the topic "what does it mean to me?", "What do I know about it already?".
- ✓ As you are listening, do more than take notes ask yourself questions about the material, make links to other topics, compare and contrast, relate the information to your life experiences.
- ✓ Take the next step and think of ways the ideas and information can be applied.
- ✓ Visualize what you are hearing, when considering "burglary", what does a dwelling house look like.
- ✓ Review the material regularly, repeating key items to yourself, re-reading your notes.

Using your notes

Throughout this basic training course your main, but not exclusive, source material will be your individual copy of the very comprehensive student notes. Make full use of them and put them to good effect. Further enhance

their values by adding your personal notes, thoughts, experiences and examples. Do not be afraid to mark them to aid your learning and understanding.

Three types of book marking are often used - under/over lining, marginal notes, high lighting.

You may under/over lined, use asterisks, number in the margin, number of other pages in notes, circle key notes and phrases, write in the margin or top or bottom of page.

Coloured highlights pens or coloured pencils/pens can also be used to good effects, draw pictures.

Use your notes effectively. Consider Three R's - Review, recite, and reflect.

- ✓ Review your notes regularly more attention and concentration.
- ✓ Recite the most important points to yourself.
- ✓ Reflect or elaborate on what you have reviewed by thinking of examples, possible applications, and your personal experiences. Consider how the new information relates to your own ideas and other materials you have learned.

Practice What You Have Learned

Policing is a very practical profession. It does not matter how much you have learned in the classroom, if you cannot apply it you can never be an effective Police Officer. At every opportunity, practice what you have learned.

- ✓ Team up with one or more colleagues and practice interviewing each other.
- ✓ Set up little role-plays to reinforce a classroom activity.
- ✓ Take your duty squad seriously; apply all the principles of Policing. Check out properly, people and vehicles you come across in the Academy's grounds. Use the radio and the telephone in the way you have been taught. Set yourself high standards of professional behaviour.

Reflect on your performance. Critically assess your actions. Given another opportunity what would you do differently.

Concluding Comments

You have now come to the end of this comprehensive guide to study. How much of it do you remember? Go over it again and try to follow the advice given. We have taken the trouble to write it, take the time to follow it. ***IT IS TO YOUR BENEFIT.***

ROLE OF THE POLICE

INTRODUCTION

The role of the police all over the world has been traditionally seen within the basic context of: the Prevention and Detection of crime, Protection of life and Property and the Preservation of peace and good order. Today, although these functions have not changed, the police in all societies have to broaden their outlook in order to appreciate their role as one which embraces not merely the enforcement of law, but which also, in enforcing the law, takes into account the **SOCIAL, ECONOMIC AND POLITICAL CONSTRAINTS** of the environment in which they operate. In other words, to use a borrowed topic, "What are the Objectives of a Police System in a Free Permissive and Participatory Society?" The type of relationship that exists between the police and the public is of crucial relevance in this regard. If it is a hostile relationship, then the role of the police cannot be effectively carried out, but if it is one, which fosters mutual friendship and co-operation, then the police will be better able to perform their role. The police have a major role to play in gaining the confidence of the society, although the public also have a part to play.

There are ten basic guidelines taken from the book "From Policing Freedom" which provide a useful background against which the policeman can use his role in contemporary societies, namely: -

- ❑ To contribute towards liberty, equality and fraternity in human affairs.
- ❑ To help reconcile freedom with security and to uphold the Rule of Law.
- ❑ To facilitate human dignity through upholding and protecting human rights and the pursuit of happiness.
- ❑ To provide leadership and participation in dispelling criminogenic social conditions through co-operative social action.
- ❑ To contribute towards the creation and reinforcement of trust in communities.
- ❑ To strengthen the security of persons and property and the feeling of security of persons.
- ❑ To investigate, detect and activate the prosecution of offences within the Rule of Law.
- ❑ To facilitate the free passage and movement on highways, on roads and on streets and avenues open to public passage.
- ❑ To curb public disorder.
- ❑ To deal with major and minor crises and to help and advise those in distress, where necessary activating other agencies.

In order to live up to these ideals, the policeman has to see himself firstly, **as a servant of the people**, always to give of his assistance and guidance, and in turn he will gain their confidence and get their co-operation whenever it is needed.

His first approach to his society should be one of peace and love, showing understanding and lending a sympathetic ear to people's problems, rather than to be quick to oppress them for minor defaults.

The Policeman in today's world should be an integral part of the whole life of his society. He should be conversant with the social and economic problems of the society, in order that he may properly empathize with individual needs and problems.

He should possess some knowledge of the Constitution of his country, thereby understanding the "Rights and Freedoms" of the people in order that he may apply that understanding to his contribution to liberty, equality and fraternity in human affairs, and in upholding and protecting human rights and the pursuit of happiness. Although he should never be involved in Party Politics or show partisanship in his dealings with people, yet he should alert his mind to the political aspirations of the people in his community.

In the reconciling of freedom with security and upholding the Rule of Law, the policeman has to constantly remind himself that although he subscribes to the freedom of people, it is his duty to preserve the peace and not to support disorderly behaviour. He should take steps to firmly uphold the law when necessary, but he should do so fairly and impartially. He must be quick to investigate offences and to bring offenders to justice, thereby, giving his community a feeling of protection and security.

It is the duty of the policeman to allow for free movement of people in public places without molestation, to deal with major and minor incidents and to give of his help and advice to those who are in need of his help, contacting other departments on behalf of people when necessary.

It is the duty of the police to take quick action in dealing with all minor and major occurrences brought to their attention, remembering that in some instances, it is the minor occurrences when ignored, that lead to major problems and if the major occurrences are not expeditiously tackled, may inevitably lead to terrible loss of life, property and human suffering. The police in the society are regarded as the first line of defense and protection, to which citizens look forward for assistance and guidance. The policeman should be ever mindful of the fact that the

majority of the citizens in most instances have a high regard for him; they love and respect him and if he carries out his duty with the same amount of love and respect for the citizens, he will be contributing much to his organization and his society. However, he must remember that the only means by which he can gain and maintain the confidence of his society, is by displaying the highest degree of honesty and integrity at all times.

Therefore, no matter how trivial the report is or how humble the person making the report, the police should attach the same amount of importance to it, as though someone who is regarded as prominent in the society was making it. The same amount of respect and regard should be given to all citizens, irrespective of their economic positions, religious beliefs, political persuasions or social standing. Indeed, the policeman should be ever mindful that it is the poorest and less influential citizens in the society, who are more likely to need his assistance.

The policeman working in a society that is plagued by a number of social problems such as unemployment, juvenile delinquency and insufficient housing, must always be aware of these problems, and in enforcing the law, especially in cases where it relates to women, the aged and minors, not allow himself to be too drastic, but rather to temper justice with mercy.

Over the last two decades, crime and criminal activity have increased in sophistication and have now assumed alarming proportions. This upsurge in crime has drastically increased the work of the police, and the big question being asked in a number of societies is, "Can the Police Cope?". Certainly, the traditional role of the police as far as it relates to the detection of crime, and in dealing with modern criminals, has to be greatly improved. The police can no longer rely on eyewitnesses to come forward and give evidence.

The police therefore have to use modern methods of crime detection. In this regard, they depend to a great extent on Government to give them the necessary equipment and resources from public funds, if they are to effectively cope with modern criminals and crime. At this point it is useful to borrow the words from the "Royal Commission of Police in England 1962", which say:-

"The policeman works in a changing society, and there is nothing constant about the range and variety of police duties, just as there is nothing constant about the pattern of crime, the behaviour of criminals, the state of public order, or at deeper levels, the hidden trends in society that dispose men to crime, to civil and industrial unrest, or to political demonstrations."

Among the many important roles of the policeman in his society, is that of providing leadership. Many citizens look to the police for leadership in many important areas of community organizations and associations. This is one of the main avenues through which the fostering of a healthy relationship between the police and the public is achieved and maintained. The police, therefore, have to play positive roles in Citizens' Associations, Church groups and other bodies that bring people together. In addition to this, they have to initiate their own groups such as Police youth clubs in order to assist in giving leadership, discipline and guidance to the youth in their communities, and also to assist in dealing with the problem of juvenile delinquency, in the kindest way.

In order that they effectively perform their role in today's permissive society, great emphasis must be placed on the training of policemen. The traditional type of training given to policemen, whereby most of the emphasis was placed on knowledge of the laws and the powers of the police under each law, has to be revised. Some of the relevant social sciences such as sociology, psychology and civics are also necessary for police training.

Policemen should also be encouraged to join libraries, attend evening classes or take correspondence courses in order to expand their knowledge and improve their educational qualifications. In the meantime, Government is expected to provide in-service training and make provision for police to attend overseas courses in order to equip them for their different areas of specialization.

To cope with this changing society, the police force must also be aware of the need to modernise itself. Traditionally a stable body, conservative in outlook, it has been slow to accept innovation. Most changes in the outlook of the force have been brought about by pressure of outside circumstances, and not from within.

Policemen must now grasp the realization in their communities, that unless the force is properly manned, equipped, serviced and trained, it will not be able to effectively undertake its role in the society.

Finally, because of its complex nature, the role of the police in our present society has become almost indefinable. Although coming under increasing scrutiny in the last few years, most of the writing on the subject is woefully inadequate with regard to a true understanding of the position.

Any evaluation of the subject must take into account the historical background of the police, the traditional role they have followed and the society today referred to by many as permissive. The policeman's role may be summed up as one of tolerance, understanding, guidance and protection.

PRIMARY DUTIES OF A CONSTABLE

The extent of the duties of a Constable have not been, and cannot be defined, and no precise limit to his duties or activities have been fixed, but among their duties the Police efforts are principally confined to the following three (3) “Ps”.

- ❖ **PRESERVATION of PEACE AND GOOD ORDER.**
- ❖ **PROTECTION of LIFE AND PROPERTY.**
- ❖ **PREVENTION AND DETECTION of CRIME**

PEOPLE'S PEACE

Is that normal state of society, which ought to prevail in every civilized country and any interruption of that Peace is a breach of the peace.

How may a Constable preserve and maintain Law and Order:

It is lawful for a Constable to exert every effort and take every necessary step to preserve the peace and good order, and in the event of any behaviour which happens in his presence such as **disorderly conduct**, the **threatening abusive** or **insultive words** tending to provoke a breach of the peace, or likely to be occasioned, he may arrest the person without a warrant or take his name and address with a view of prosecuting.

PROTECTION OF LIFE AND PROPERTIES:

A Constable should always remember that he is a servant and guardian of the public, and as such he is required to protect and keep its members irrespective of their social standing, safe from all ills, which they may face.

Protection of Life:

The Constable should use his power of observation with a view to detect anything which is likely to become dangerous to the public and to request the appropriate authorities to remedy same, such as: -

- ❖ Old buildings hanging in a dangerous position.
- ❖ Waste water due to broken pipes.
- ❖ Escape of gas.
- ❖ Damages to or dugouts in roads.
- ❖ Broken or exposed electric cables.
- ❖ Open manholes in streets.
- ❖ Defective traffic signs.
- ❖ Vicious Dogs etc.

He should whenever necessary direct traffic with a view to protect persons from danger zones also to help children, sick and aged persons to cross-busy streets.

Protection of Property:

He should take every step to ensure the safety of all property.

- ❖ If left on the street accidentally, take same to the Police station if practicable for safekeeping.
- ❖ If property is left in buildings, protect it against theft and fire.
- ❖ If left on P.P.V., take same in charge.
- ❖ If in possession of persons incapable by reason of illness or accident, take possession and protect it. Constables are further charged with preventing persons from the destruction of property not their own and the illegal destruction of their personal property.

PREVENTION AND DETECTION OF CRIME:

Prevention:

It is the duty of every Constable to earnestly and systematically exert himself to prevent crimes, which he can make good by doing the following:-

- ❖ Keep a constant watch over premises at night to ensure that all doors and windows are securely fastened.

- ❖ Investigate lights and noises on premises at night with a view of capturing unlawful visitors.
- ❖ Pay attention to ladders left outside premises, which may offer easy access to buildings.
- ❖ Keep track of all local criminals and remove them when seen loitering.

Detection:

It is lawful for a Constable to detect crime, arrest criminals, and any person found committing any offence against the law. In order to effect this, the Police are empowered to stop, search and detain any person suspected of having or conveying anything stolen or otherwise unlawfully obtained, also vehicles in which there is reason to suspect that anything stolen or unlawfully obtained may be found.

ATTRIBUTES OF A GOOD CONSTABLE

Developing into a proficient, professional Constable should be the aim of all of you. To achieve that aim you will need to display certain attributes. These are considered below:-

HONESTY AND INTEGRITY

He must render an honest, faithful and speedy account of all monies and properties taken in his possession in the execution of his duty.

LOYALTY

Properly speaking a Constable is never off duty, as he is liable to be called upon at any time, and he shall be prepared for duty at a moment's notice.

IMPARTIALITY

A Constable should be impartial in the discharge of his duties, totally disregarding any political and sectarian prejudices and influences.

DIGNITY

He must be dignified without arrogance; he should possess self-esteem, remembering the oath of his office and the motto of his service.

TRUTHFULNESS

A Constable should always be ready to state truthfully all matters relating to or touching upon the discharge of his duties. If he makes a mistake it should not be hidden but admitted candidly before a court or his supervisors.

It is likely that a person makes mistakes, but a Police is never expected to make one; therefore it is upon his candid straightforward admission that he will be respected and trusted.

He should however endeavour to make as few mistakes as possible, and if discovered, it should be corrected as early as possible.

SOBRIETY

He must live a normal, sober and respectful life. He must be painstakingly clean in his appearance and dress thus, commanding the admiration and respect of others.

GOOD HEALTH AND HABITS

To maintain good health, personal hygiene should be strictly adhered to; daily bath, nails clean and clipped, hair trimmed and combed, teeth cleaned after each meal, physical training etc.

OBEDIENCE TO ORDERS LAWFULLY GIVEN

The Constable is placed under the immediate supervision of a superior rank, but in the execution of his duties as a peace Officer, he is frequently called upon to act on his own. He should therefore be a person of intelligence, sober habits and good temper. He should always obey his superiors. If any order he receives, aggrieves him, he should first comply then afterwards he can make a respectful statement to his seniors asking for redress.

KNOWLEDGE OF THE PROFESSION

The Constable should strive to acquire a thorough knowledge of his police work. A Constable who is ignorant of his powers and duties is worse than useless, and sometimes a danger to Society. Ignorance is also a bar to promotion in the police service as well as other walks of life: "Knowledge is power".

PROPER CONTROL OF TEMPER

He should be calm, cool and intrepid (free from fear) in emergencies and conflict. He must avoid altercations and display perfect control of temper under insults, provocation and other difficult circumstances.

HIGH STANDARD OF OBSERVATION AND LOCAL KNOWLEDGE

The Constable should cultivate his powers of observation. On joining his station he should set himself to acquire knowledge of every street, road or public place in the town or district in which he is stationed.

PERSONAL HYGIENE

The word hygiene carries its meaning throughout the world and where a number of men are living together it is highly necessary to keep their surroundings clean, both inside and outside. It is always important to keep your body clean, free from dirt and odour. Carry yourself clean and tidy.

- **INTELLIGENCE AND SELF CONFIDENCE**
- **EXERCISE OF TACT AND DISCRETION**

- CALMNESS ON ALL OCCASIONS
- DISPLAY OF BALANCED JUDGEMENT
- COURTESY UNDER ALL CIRCUMSTANCES
- HIGH STANDARD OF CLEANLINESS
- SYMPATHY FOR THE POOR, INFIRM AGED AND FOR CHILDREN
- APPRECIATION FOR SELF IMPROVEMENT
- GENERAL PRIDE IN THE FORCE
- INITIATIVE, BOLDNESS AND FIRMNESS

ETHICS AND ETHICAL BEHAVIOUR

INTRODUCTION

The need for honest, objective, professional law enforcement personnel is the same all over the world. There is no argument about this. History and our own common sense tells us that the people who enforce the must be honest and objective or they will lose the respect of the people. Moreover, since they are the most visible representatives of the Government, a dishonest or prejudiced police will cause the people to lose respect for the Government itself, if allowed to continue, this can result in unrest, chaos, anarchy and ultimately, revolution.

The issue here is not whether it is better to have an honest police organization. The question is how to develop and keep a police organization honest in the face of the temptations that are part of the job. You are familiar with part of the approach being used to combat these problems. The Police establishment spends a great deal of time and money to determine the character of those being considered for employment. As you know, detective conducted an antecedent investigation on each of you. These are for the specific purpose of examining your moral and ethical behaviour. The first step then is hiring honest, ethical people to enforce the law. This has been done. It is more a formidable challenge than it would at first appear. In your work as a Constable, you will be confronted with numerous temptations. These will include offer of gifts, free meals and coffee, discounts on purchases, free services, sexual favours and preferred treatment for yourself and your family. Moreover, you will tend to develop bias and prejudice against certain groups. It will require all your power and a constant vigilance to resist such offers and attitudes, but working together it can and must be done.

A second problem concerns the difference between value systems and the law. In making decision concerning who is "right" and who is "wrong" it is all too easy to mistake our personal values system for the law. Here, as in the preceding problem, we must constantly be on guard if we are to avoid the temptation to become the judge and the jury.

ETHICS AND ETHICAL BEHAVIOUR

Ethics is defined as "Standards of conduct and moral judgment; moral philosophy." In a profession it is further defined as, "A science dealing with moral duty".

This leads us to ask if law enforcement is a profession. Let us compare;

- ❖ A profession can be defined as an occupation, which exercises obligations to others. That is an occupation which seeks to serve or help or care for others. In a free society, law enforcement exist to serve and protect the public
- ❖ A profession characterized by special studies and expertise. Law enforcement personnel are required to undertake special studies and develop special areas of expertise.
- ❖ A profession utilizes a strict code of ethics and voluntarily monitors the behaviour of its members. Law enforcement has a code of ethics and requires that all members behave in an exemplary fashion on and off duty.
- ❖ The prime motive in a profession is service and not profit. The prime motive in law enforcement is service rather than money or profit. **(any profit is measured in terms of the benefits to the public)**

WHEN WE BECOME CONSTABLES, WE ARE DEDICATING OUR LIVES TO THE PROTECTION OF THE PUBLIC.

Based on the above we are a profession. As members we must then accept certain restrictions upon our own behaviour.

These restrictions are set out in the various law enforcement codes of ethics. Most include the following;

- Keep your private life unsullied as example to all
- Maintain a courageous calm in the face of danger, scorn or ridicule.
- Develop self restraint and be constantly mindful of the welfare
- Be honest in thought and deed in both your personal and official life.
- Be exemplary in obeying the laws of the land and the regulations of our Force at all times both on and off duty.
- Maintain all you see and hear of a confidential or official nature in strict confidentiality unless required in the performance of your duty.
- Never act officiously or permit personal feeling, prejudices, animosities or friendships to influence your decision or the manner in which you perform your duty.

YOUR WORST ENEMY IS STILL A CITIZEN AND AS SUCH MUST BE GIVEN THE SAME PROTECTION AND ASSISTANCE AS ANY OTHER CITIZEN.

- Never compromise or condone crime in any form and relentlessly pursue the apprehension and prosecution of criminals.
- Constantly seek to avoid even the appearance of compromise by refusing **ALL** gratuities in any form.
- At all times, enforce the laws courteously and appropriately without fear or favour, malice or ill will, never seeking to entrap the unwary or employing unnecessary force and violence to apprehend or coerce the violator.
- Recognize that your position carries with it the acceptance of public trust and humbly acknowledge the fact that it remains yours only as long as you are true to the ethics of the police service and the laws of your country.
- Commit yourself to constantly seeking to achieve these objectives and ideals, dedicating you before God to this our chosen profession.

THE PROBLEM OF GRATUITIES

A gratuity is defined as, “a gift for service rendered”.

- “A gift given”
 - is not evil in itself, **BUT**
 - it has a progressive nature
 - it builds expectations
 - it promotes preferences and removes objectivity
 - it leads to feelings of indebtedness
 - it leads resentment.
- For service rendered

SOMETHING IS ALWAYS EXPECTED IN RETURN

- Preferred service
- Increased protection
- Confidential information
- Expected to overlook minor infraction
- Expected to permit illegal operations

GRAFT, CORRUPTION AND EXTORTION

These insidious forms of criminal activity can and do occur in police organizations. These terms are often used interchangeably and are all equally damaging to the prestige and image of the police. The very suggestion that such activity is occurring will usually significantly reduce the ability of the organization to function effectively. This is because:

The public will no longer trust the police to perform their sworn duties

- They will no longer advise the police of suspicious activities
- They will no longer report certain types of crimes.
- They will no longer trust the police to protect them and their property and will take steps to install their own protection.
 - Fences, steel doors, steel bars on windows and doors, additional locks etc.
 - Purchase of weapons for personal defense
 - Hiring private security personnel

The informants will no longer provide information because they cannot be sure their identities will remain confidential.

Accepting gratuities usually is the first step towards crimes of this type.

Graft

The act of taking advantage of one's position to gain money, property or other advantage such as selling confidential information about people, prospective purchases or police operations.

Corruption

The act of engaging in evil, wicked or illegal practices such as accepting bribes or other incentives to lie about criminal activities or to provide advance notice regarding prospective police actions (such as raids etc).

To personally operate or become involved in the operation of illegal or questionable businesses such, brothels or gambling houses.

Extortion

The act of forcing individuals to pay for protection or services rendered. The act of requiring payment for overlooking criminal activities or for defining legal activities as illegal

PRACTICAL APPLICATION OF THE CODE OF ETHICS

The code of ethics applies to everyone

As law enforcement personnel you must live by the code.

- Do the right thing at the right time in the right way
- Avoid evil and even the appearance of evil

Living by the code means we must adhere to a far more restrictive Codes of Conduct than that expected from the average citizen.

- We will not always be able to live up to these standards
- At the minimum, the Constable must be totally honest
 - In performing his or her duty
 - In reporting crimes or other violations
 - When giving testimony

The Constable must be courageous

- True to the profession's philosophy of the serve and protect. A constable must always be ready and willing to place him or herself in danger to protect a citizen.
- Able to stand by his or her convictions, even when the decision is unpopular. A constable must be ready and willing to place him or herself in danger to protect a prisoner or a person who is suspected of committing a crime, no matter what the threat might be.

The Constable must be loyal

- First and foremost, to the rule of law, the principles of justice and the objectives of law enforcement.
- Second, to his or her organization

The Constable is and must always be held responsible

- His or her decisions
- For his or her conduct

VALUE SYSTEMS AND THE LAW

At the present time few institutions, beliefs, or values can be taken for granted

- People in their 60's tend to place greater value in the family with the male as the breadwinner and the female as the homemaker. They tend to have deep commitment and loyalty to both the job and their fellow workers.

- People in their 50's are similar to those in their 60's but tend to be more security oriented, more concerned with money and prefer to stay one place.
- In their 40's the values shift away from the family, more likely to travel.
- In their 30's people values are more materialistic and selfish, the value of the family is still lower, marriage is no longer required or highly valued.

Each of us has a set of personal values by which we judge the world and the actions of others, it is therefore vital that we understand “ **OUR PERSONAL VALUE SYSTEMS ARE NOT THE LAW AND OTHERS ARE NOT REQUIRED TO CONFORM TO THEM**”

We must serve all citizens even though we disagree with the way they think, talk, act or dress.

- They can still be victims of a crime
- They can still suffer loss
- If they are in danger, they are entitled to the same protection as any other citizen
- If they are injured they are entitled to the same level of care and assistance

All citizens must be treated with the same respect and courtesy. All citizens must be given every assistance possible. All citizens must receive the same protection from harm and danger. All citizens must be held responsible for their behaviour.

THAT IS THE JOB!!! INDIVIDUALS WHO CANNOT UNDERSTAND THESE REQUIREMENTS OR FEEL THEY MAY BE UNABLE TO MEET THESE STANDARDS SHOULD SEEK EMPLOYMENT ELSEWHERE.

OBSERVATION AND PERCEPTION

INTRODUCTION

The subject of observation is seldom discussed. Most people even the Police are of the opinion that young Constables are trained observers. Others believe that the ability is something, which a person has or does not have, and little can be done to change the situation. Many Police Academies offer minimal training in observation or disregard it entirely.

The fact is that observation is one of the most important and critical factors in Police work. Constables must be able to accurately observe events and communicate their observation to others. Any mistake in this area might lead to misunderstanding, unnecessary conflicts, unsolved cases, death or embarrassment in court.

Fortunately accurate observation is a skill and like any other skill it can be developed through training. In fact with proper training, virtually any person can become an extremely effective and accurate observer.

DEFINITION:

This is the habit of making a mental picture of what one sees with particular interest to small details or the cultivating of the mind and memory to be retentive, as well as to give practice to the eyes so that they may see things without much effort. Observation is seeing, retaining, reproducing. A Constable should develop his powers of observation by recording in memory everything he sees, hears, feels or smells.

OBSERVATION OF PERSON

Constable at nights especially during the early morning hours should carefully observe persons carrying bags, parcels, etc. under suspicious circumstances. If there are sufficient grounds such person should be invited to give explanation.

Special attention should also be paid to persons removing horses, cattle, poultry, and goats especially during morning hours and late at nights. It is the duty of every Constable to stop, search and detain suspected persons who may have or is carrying stolen article or articles unlawfully obtained whether on foot or in vehicles.

HOW TO DEVELOP POWERS OF OBSERVATION

One of the first steps to success and promotion in the Jamaica Constabulary Force is cultivation and development of the powers of observation.

These powers can be developed anywhere by a Constable whether in the town or even in small village, one can become observant by obeying the following:

- ❖ Cultivating an interest in job, and when on duty he may observe things
- ❖ Train the memory by reading short paragraphs from helpful books, magazines, get the gist of it, and then write it down from memory.
- ❖ Stand by a window mentally photograph everything seen, then move away and write down all that you had seen or observed, then check by returning to the spot and compare with the list- add score. Observation is the habit of making a mental picture of what one sees with particular reference to small details. Powers must be cultivated gradually and will afterwards become automatic. The cultivation of the mind, the training of the memory to make it retentive as well as to make the eyes alert, to enable them to observe quickly without effort these senses must work in collaboration to bring about the desired effect. On joining his station or a division a Constable should set himself to acquire knowledge of as many streets and public places in the town or district in which he is located.

VALUE OF OBSERVATION

- ❖ Observation aids in the prevention and detection of crime
- ❖ Successful identification of wanted person and articles
- ❖ It helps you to observe suspects on beat, premises etc.
- ❖ Prevention of accidents e.g. over hanging trees, defective building, open manholes, defective vehicles – at nights without park lights, and broken electric wires.
- ❖ Observation helps in giving proper information to the public.

N.B. It is hope that the reputation of the Jamaica Constabulary Force can be built upon observation.

First it is necessary to define the terms, as they will be used here

SEEING	To view, to look upon, to visually register a scene.
OBSERVING	To note, to visually notice, to focus upon, to visually become aware of information about a scene.
PERCEIVING	To interpret, to associate related information, to discriminate between non-significant and significant types of information.s

Most people see other people but do not observe them, as a result they can seldom describe their physical characteristics such as the colour of their eyes, the shape of their nose, clothing etc., unless other factors cause their attention to focus upon these things.

This is a major problem with eyewitnesses

The first problem in observing is obtaining an accurate view of the scene. Accurate observation is greatly influenced by a variety of external factors.

- Distance (being too far or too close to see)
- Sounds (such as that of a shotgun blast, glass breaking or screams)
- Size (a person who is a threat is perceived as larger than one who is not)
- Contrast (something out of the ordinary stands out and often causes all concentration to focus on it)
- Repetition (repeated actions or activity attracts attention)
- Odour
- Weather, such as rain, storms etc. will reduce concentration, as also the time of day.

The second problem is associated with the person's ability to determine which of the thousands of possible items in a scene to focus upon.

To deal with this problem, the individual usually seeks to locate the types of information, which are most meaningful. Such meaningful information is commonly based on the person's interests or job.

- Shoemaker
- Tailor
- Automotive enthusiast
- Karate expert
- Artist

If there is danger, the focus will be on the person or object, which is the source of the danger. Descriptions will vary with the fear of the person.

The perceptive process, a mental process in which the person tries to interpret what is observed, further complicates the ability to observe accurately.

- The mind uses internal factors, such as it's previous experiences, beliefs, fears, prejudices and biases to interpret what is seen.
- Based on these factors the mind can filter out information, which doesn't seem to agree with existing expectations or viewpoints.
- The mind can also change observed information so that it will fit previous experiences, beliefs, prejudices and biases. It may also protect itself from an unpleasant fact by repressing significant portions of the information entirely.

These are the reason eyewitnesses are a major problem, and identification parades must be run in a specific manner.

THE FOCUS OF THE CONSTABLE

The Constable is subject to these same influences. Yet, it is most important that his or her observations be as accurate as possible.

The secret is to reduce the affects of the external and internal factors as much as possible. At the same time the Constable, much like the shoemaker or the tailor must concentrate on those aspects, which are of particular importance to law enforcement. These include:

- ❖ Description of incident.
- ❖ Actions and demeanour of the suspect.
- ❖ Description of suspect.
- ❖ Actions and demeanour of the victim.
- ❖ Description of victim.
- ❖ Were elements of a crime present?
- ❖ Were witnesses present? Demeanour?
- ❖ Time, Statements made, etc.
- ❖ Danger to self or others.

There is no room for emotion, personal preferences or viewpoints here. These observations must be objective.

THE PROCESS OF OBSERVATION

As a process, observation is made up of 5 activities. These activities form the total observation process. These tasks are:

- ❖ Orientation
- ❖ Search (recognition, detection, description)
- ❖ Learning
- ❖ Retaining
- ❖ Reporting

For all intents and purposes, your ability to observe is based on your ability to perform this group of tasks properly.

ALL OF THE ABOVE TASKS MUST BE PERFORMED ADEQUATELY TO BE EFFECTIVE

If you perform any one of the tasks poorly, no amount of expertise in the other four will help. This is because all the tasks are interdependent and must operate as a unit. Due to the importance of this process, we will examine each task in the process individually.

LEARNING THE PROCESS

ORIENTATION

Orientation is a form of preparation. It starts you thinking about what is important, what is significant and how to deal with it.

Prepare yourself by deciding what types of information you should be looking for. (Specific information in the form of exhibits, evidence, mannerisms, actions, comments etc.)

- ❖ Decide what you should do if you find it.
- ❖ Prepare to protect yourself or someone else.
- ❖ What does the law say about this situation?
- ❖ Act or say certain things to encourage or discourage the activity.

Seek additional information from a certain person or in a certain place.

- ❖ Call for CIB or a supervisor.
- ❖ Arrest
- ❖ Decide how the information should be obtained, retained or reported?

SEARCH

Determine what form the information will take. Will it be in a combination of actions or words? Does the information look, sound, feel or smell a certain way.

- ❖ This type of attention to your surroundings should be part of your normal working attitude.
- ❖ This attention should always be functioning, whether you are alone or with a member of the public. When you stop a person on the street, when you stop a vehicle for speeding, when you are taking a report or just looking at buildings, whenever you are working, this alertness to your surroundings should be in operation.
- ❖ Some police say you should maintain this awareness even when you are off-duty.
- ❖ IT IS DONE WITH THE EYES ONLY!
Unless you find reasonable cause to react, question or conduct an actual search of premises or person.

Know the identifying clues (recognition). In other words, what constitutes a signal or sign that there may be a problem?

- ❖ Eye movements - e.g. Suspects eyes will be moving from one point or place to the other displaying signs of nervous tension, also perspiring failing to stare you in the eyes.
- ❖ Body posture or movements - e.g. Suspect will tend not to be relaxed, shifting his body weight from one foot to another and appear very tense.
- ❖ Bulges in clothes - e.g. Bulge with the appearance of a firearm in his pocket or in his waist. Some unusual feature about his pocket, shirt or around the waist.
- ❖ Hand movements - e.g. Suspect tend to fidget unnecessarily or play with his fingers.

Where certain items are usually carried?

- ❖ If drugs - In suspects' shoes, strapped to the body, behind the ears, in the anus, under the armpit etc.
- ❖ If weapons - Sometimes strapped to the body, dismantled and carried in different parcels etc.
- ❖ If stolen articles - concealed on his person, hidden in his home, concealed in outhouse, motor vehicle, buried, removal of serial number etc.

How do people act when they are hiding something? - Suspect fails to look you straight in the eyes when speaking with you, he becomes tense and nervous, and he fidgets. Suspect also gives different answers to the same questions.

Conduct visual search systematically (detection) In other words what are you looking for?

Quickly view the entire area of interest.

- ❖ Mentally note any potential identifying clues.
- ❖ After overall viewing return to examine potentially significant clues.

Always search in the same way, circle from centre out, divide person, house or area into sections, quadrants or rows.

- ❖ Section inside of a car
- ❖ Top to bottom on a person
- ❖ Quadrants at an accident scene
- ❖ Quadrants or rows at crime scene

Take advantage of the way the eye works

- ❖ Reflections
- ❖ Side lighting
- ❖ Hot breath (fingerprint searches)
- ❖ Looking to the side (peripheral vision)
- ❖ Non-verbal communications
- ❖ Tension indicators

- ❖ Potential threats
- ❖ Relationships between people

Mentally note description or makeup of exhibit, evidence, gesture, comment, or other characteristics of information located.

Preserve the description for future references, reporting purposes and if applicable, for the information and assistance of other Constables.

This procedure if practiced will provide you with an ability to observe activities and items around you, which are seldom seen by the average person. It will allow you to solve cases, recognize fugitives and perform your duties in a more effective manner. This is not all there is to observation however.

IF THE INFORMATION IS NOT SHARED OR PASSED TO THE PROPER UNITS OR INDIVIDUALS, MOST OF ITS VALUE IS WASTED

Further, since not all observations are made in a place where the data can be immediately recorded, some discussion of learning and retention is necessary.

LEARNING AND RETENTION

Since the information derived from observations is often not recorded at the time of the incident, the next problem is how to remember everything which happened, all the descriptions, and all the people involved, until you get a chance to write it down.

General technique

In most cases it is necessary to employ a system called "over learning". Over learning is defined as, "practice in remembering information beyond the point where you can recite all the material from memory the first time"

IT REQUIRES A CONSCIOUS ATTEMPT TO COMMIT THE MATERIAL TO MEMORY

The material must be put in a meaningful form, using the "whole, part, whole" method

- ❖ Events should be in sequence
- ❖ Small amounts - Whole. Large amounts - Parts
- ❖ Break information into parts
- ❖ Groups (witnesses, victims, buildings, people, men, women etc.).
- ❖ Make associations (looks like a friend, a friend's car, a house you know, etc.).
- ❖ Visualize scene, people, actions, locations of witnesses etc. Separate into quadrants with you (or incident) at the center.

Remembering a series of events is much easier by making up a series of questions about the event. For example:

- ❖ Who were victims? What was their demeanor?
- ❖ What happened to them (or it)?
- ❖ Who were the suspects?
- ❖ When did it take place?
- ❖ Where did it take place?
- ❖ Why did it happen?
- ❖ What exhibits were found? Condition?
- ❖ What was said?

Remembering disconnected words, data or activities

- ❖ Make up a story containing all information.
- ❖ Use first letter of each word to build another word (acronyms) the word should be pronounceable or usable in a sentence or rhyme.

Remembering Names

- ❖ Get correct spelling and pronunciation
- ❖ Use name immediately after introduction or as soon as possible after the name is given to you
- ❖ Recite the name to yourself while viewing person or while looking for person.
- ❖ Use the person's name again when finished with conversation or when leaving to contact person.

Relate characteristics of the name to person.

- ❖ Mr. Carpenter is not a carpenter.
- ❖ Mrs. Winston is not Churchill's wife.
- ❖ Mentally examine characteristics of name.
- ❖ Number of syllables
- ❖ Shape of word (tall and short letters)

Visualize name in relation to some object or area.

- ❖ Bloomfield - flowers blooming in a field.
- ❖ Johnson - a John and his son.
- ❖ Arrange lists of names so first letters spell something or develop a sentence using the first letters of the names.

Remembering Numbers

Look for a pattern or logic in the combination of numbers.

- ❖ All odd, all even etc.
- ❖ Make associations with the numbers.
 - ✓ Months, days, years
 - ✓ Birthdays (plus or minus X days)
 - ✓ Populations

Increase memory span for numbers by practice.

(The average university student can remember 6-8 numbers after one look, this can be increased to between 10 and 14 by practice) Practice using license plates (how many can you memorize?)

REPORTING

All information observed should be recorded in approved format as soon as possible.

- ❖ In personal pocket book.
- ❖ In station diary.
- ❖ Other books, diaries and registers as appropriate.
- ❖ In supplemental report.

If considered useful, the information should be disseminated to appropriate personnel or units.

LOCAL KNOWLEDGE

Definition:

Local knowledge is the general knowledge gained from local conditions affecting the area of the community in which one lives or is employed. It includes knowledge of the people, roads, water supply, geographical outlay, population, doctors, veterinary surgeons, nurses, surgeons, hospitals, fire alarms boxes, fire hydrants, fire brigade, transport post office and other public places i.e. hotels, guest houses, also knowledge of police area from the point of view of the Force

How Obtained

- By cultivating powers of observation
- By asking questions of persons capable of giving correct answers

Value of Local Knowledge

It helps a Constable in the performance of his duties, eg. Service of Summons and other processes

Criminal gamblers etc. and their Modus Operandi:- Mode of operation of these criminals and persons from whom information can be obtained. Much can be done through your local knowledge of criminals to bring an offender to justice more speedily.

A Constable should have friendly conversation with the inhabitants to enable him to acquire fair knowledge of the character of the people.

He should also be watchful and therefore be able to observe the movement of reputed thieves, idle and disorderly persons, etc.

BEAT DUTY

Beat

Beat is an area plotted out in a town or village for police purposes, to be patrolled by day and by night. A town beat corresponds favourable with a country patrol, but whether beat or patrol district, either is the unit upon which the covering of a police area is based.

Size of Beat

Beat varies in size according to the number of streets to be patrolled, the density of the population, the type of property, and the volume of business carried out.

Parading for Beat

Before going on beat duty, Constable should be properly dressed, having all their necessary equipment with them. Instruction of the day affecting his beat should be made known to him. He should also acquaint himself with the description of wanted persons, articles stolen or lost.

Manner of patrolling Beat

- The Constable should patrol along his beat and attend to all matters affecting his duty from time to time
- Be clean in his dress
- His manner and approach should be civil and courteous
- Pay compliments to all persons entitled to it

Patrolling Beat

Beat should be done a leisurely walking pace, and should be smartly done. After a time it may be done irregularly i.e. patrolling a portion then turn back so as to prevent wrong doers from checking on how soon you will return from the other end of your beat.

Deportment

The Constable should report to visiting Sub-Officers and Officers as to the state of his beat. He should also acquire knowledge of all persons entitled to salute and pay them the necessary respect.

Responsibilities on Beat by Day

- The maintenance of Law and Order
- Prevention of obstruction by crowd, vehicles, beggars, etc.
- Protection of life and property i.e. old, infirmed children, keep prostitute from sidewalk, Hawkers and Peddlers, putting out fires, summoning brigade, ambulance, etc.
- The prevention and detection of crime.
- General assistance to the public

Responsibilities by Night

- The protection of property.
- See to it that all doors and windows are securely fastened by locks, and if found open or unsecured, the owner or occupier should be contacted.
- Check persons carrying bags, parcels, and animals also vehicles parked or driven without lights.
- Prevent loitering on beat by suspicious persons.
- Special attention should be paid to empty houses, particularly those whose occupants are temporarily away.
- Investigate fire coming form locked buildings also any unusual light or sounds coming form premises.
- Surround premises if you suspect the presence of someone inside.

- Watch closely places where ladders are left outside premises as they provide easy access to inside of buildings.
- Investigate and clear up loud noises.
- Look for vehicles parked near corners and alleys.

Patrol

The same principles that are observed on beat should be applied to patrol duty, except that the sections given are enlarged into areas, taking up a number of places, Patrol duties are generally done at rural area stations

Responsibilities

The responsibilities thrown upon a Constable on these duties are very large and carry much weight. To discharge these duties efficiently the areas must be carefully studied, especially the psychology of the people.

How patrol is done

Patrol is done in various ways:

- In uniform - Regular Police
- In Plain clothes C.I.B. Personnel
- On bicycles, motorcars, motor cycles, boat, horse, foot and ambush

Persons entitled to salute

- Gazetted Officers of the J.C.F. and I.S.C.F.
- Commissioned Officers, J.D.F.
- Justices of the Peace
- Ministers of Government
- Governor General and Custodes
- Judges

STREET INCIDENTS

Street incidents, which are to be investigated by the Police, are quite frequent and confront chiefly the man on the beat.

Likely Causes

- Fruit skin on the street
- Holes in the road
- Greasy and oily roads
- Broken bottles in the street
- Rolling stones from hills
- Roads under repairs.
- Drivers not having animals under proper control while on the streets, these and many more are the likely causes of street incidents

How dealt with

The first Constable on the scene should approach the accident with confidence and intelligence

Enquire from the injured person the cause and nature of the injury and give assistance as follows:

- Render First Aid
- Obtain name and address of injured persons
- Send injured to hospital if necessary by ambulance or other convenient means.
- Note in pocketbook the nature or degree of injury
- Take care of injured person's property (if necessary) if injured person request you to do so.
- Deliver property to ambulance driver or attendant and obtain a receipt.
- If you take property, you should take it to the Police station for safekeeping.
- Take name and addresses of witnesses if any
- If possible, inform relatives of the injured person.
- Inform authorities concerned with the cause of the accident with the view of having it remedied, but during this time protect the public from danger by keeping crowd away telling them the cause of the accident.
- In case of minor injury, inform the injured to see a doctor.

INTRODUCTION TO CONSTITUTION LAWS

INTRODUCTION

study of constitutional law is in reality a study of the development of civilization. In early Roman times the term, "constitution" meant any form of regulation or ordinance. Later, it became the preferred term for a law issued by a sovereign. In England today as in the 18th century, "constitution" does not refer to any particular law but rather to the whole structure of a political society and the rights and duties of a subject in relation to the supreme power. Its meaning is quite different in most other countries. To fully understand these differences we must review the evolution of law itself.

Law can be defined as the regulation of social relations. In ancient times, what we now call laws were simply social customs based on a general desire to more or less conform to the will of the group. They were, in many cases, sacred in origin and usually involved a variety of punishments ranging from retribution to excommunication. As the groups grew larger and their associations more complex, the number of customs also increased. Eventually it became necessary to permit certain types of private retribution in order to avoid general conflict. This continued along much the same path until the introduction of social classes.

While there were always leaders, formal or otherwise, they had for the most part adhered to the same customs as the group. With the introduction of different classes, either through immigration or conquest, a governing aristocracy with a more formal monarch was born. Protected by the aristocracy, the monarch gradually accumulated more and more power over the group. Under the monarch, the adherence to customs eventually no longer guaranteed tranquility. Instead of the general will of the group, the monarch made the laws and his rule was supreme.

This approach to rule continued in most countries until well into the 18th century. Then one after another the people of various nations seceded or rebelled and the executive form of rule was replaced by written documents limiting the power of the government and guaranteeing the rights and privileges of the people. These were called constitutions. One of the few not involved in this upheaval was England.

Actions taken by rebellious barons, the church and foreign merchants led to the signing of the Magna Carta in 1215. In this agreement the King was made subject to law and required to respect the customs of his kingdom.

While it might be said that England underwent its own rebellion in 1688 with the events leading up to the addition of a new Bill of Rights, for the most part, England was spared the violent revolution and thus was not forced to develop a truly written constitution.

The Jamaican Constitution came into being in 1962; a group of people looked at the need of the country then and formulated our Constitution. Certain sections of our Constitution are entrenched and cannot be altered except by:

- ❖ **A two third majority in the House.**

- ❖ **By a referendum.**

Whether written or not, most constitutions of democratic nations today, can be understood as the central feature of the rules regulating the system of government.

The Constitution also deals with procedure as well as substance

- ❖ Procedures for holding elections.

- ❖ Substantive provisions of the Bill of Rights.

Set out guiding principles and goals for the government and the citizen, as well resolutions regarding the relationship between the government and the citizen.

Most constitutions of former British colonies in the Caribbean are of the "rigid" type. That is they: -

- ❖ Cannot be changed in the same manner as other laws i.e. entrenched.

- ❖ Possess the same general features as the British "constitution" or the "Westminster Model".

- Head of State is not the head of the Government.

- Effective head of Government is the Prime Minister who presides over a cabinet comprised of ministers, appointed and removed by him.

- Executive branch of Government is parliamentary and ministers must be members of the legislature.

The constitutions normally deal with the following areas:

- Citizenship
- Bill of Rights
- The Governor General
- Parliament
- Executive powers
- The Judicature
- The Public service
- Finance
- Miscellaneous matters

THE RULE OF LAW

A major feature of most constitutions is the "**Rule of Law**"

- This term indicates that the regular law of the land is derived from the individual's rights as interpreted by the courts.
- It is the highest rule of conduct and procedure.
- That no person, business or governmental agency is exempt from such rules (some exceptions as in the case of diplomats, etc.).
- All people are equally subject to the law as the courts administer it.

The Rule of Law also requires:

- That the Laws be published and made available to all citizens.
- There is a presumption of innocence.
- Trials are public except in certain cases involving sexual offences where in the interest of the complainant, the trial is held in camera i.e. only the persons that are involved are at the trial.
- No cruel punishments.
- Judicial reviews of administrative actions (oversight of Government officials by Parliament)
- Neither man nor Government is above the law. Government can be sued.

Limitations on the powers of the Government

- Judiciary must be independent.
- Discrimination is prohibited.
- Retroactive punishment is prohibited.
- Everyone must have freedom of conscience, assembly, association and speech.
- Everyone is entitled to due process of law.
- Government must be responsible to the people.

Special responsibilities given to certain public authorities

- ❖ To acquire property by statute (with due process).
- ❖ Special powers of arrest, search and seizure.
- ❖ To make legislation binding upon the citizen (rules, regulations etc.)

THE FUNDAMENTAL RIGHTS OF A CITIZEN UNDER THE CONSTITUTION (sec. 13)

Whereas every person in Jamaica is entitled to the fundamental rights and freedoms of the individual, that is to say, has the right, whatever his race, place of origin, political opinions, colour, creed or sex, but subject to respect for the rights and freedoms of others and for the public interest, to each and all of the following, namely:-

- ❖ Life, liberty, security of the person, the enjoyment of property and the protection of the law.
- ❖ Freedom of conscience, of expression and of peaceful assembly and association
- ❖ Respect for his private and family life.

No person shall be **DEPRIVED OF HIS OR HER LIFE ►► (sec.14)** except in the following cases:

- ◆ No person shall be intentionally deprived of his or her life except in execution of the sentence of a court in respect to a criminal offence.
- ◆ Or, if his or her life is taken in defense of any person from violence or for the defense of property.
- ◆ Or, in order to affect a lawful arrest or to prevent the escape of a person lawfully detained.
- ◆ Or, in order to lawfully prevent a commission of a criminal offence by that person.
- ◆ Or, for the purpose of suppressing a riot, insurrection or mutiny.
- ◆ Or, if he or she dies in an act of war.

No person shall be **DEPRIVED OF HIS OR HER PERSONAL LIBERTY (sec. 15)** except in the following cases:

- ◆ In consequence of his or her unfitness to plead to a criminal charge e.g. John Drummonds a great Jamaican Musician killed his wife. Doctors stated that he was unfit to plead. He was put in a mental institution.
- ◆ In execution of the sentence or order of a court.
- ◆ For the purpose of bringing him or her before a court in execution of the order of a court.
- ◆ Upon reasonable suspicion of his or her having committed or of being about to commit a criminal offence.
- ◆ For the purpose of education or welfare in a person who has not attained the age of twenty-one. For the purpose of preventing the spread of an infectious or contagious disease.
- ◆ In the case of a person who is reasonably suspected to be of unsound mind, addicted to drugs or alcohol, or a vagrant, for the purpose of his or her care or treatment or the protection of the community.
- ◆ If the purpose of preventing the unlawful entry of that person into the Country or for the purpose of effecting the expulsion, extradition or other lawful removal of that person from the Country.
- ◆ To such extent as may be necessary in the execution of a lawful order requiring that person to remain within a specified area within the country or prohibiting him or her from being with such an area.

Every Person shall be **INFORMED OF REASON FOR ARREST OR DETENTION (sec. 15 (2) & (3))**

Any person who is arrested or detained shall be informed as soon as reasonably practicable, in a language with which he or she understands, of the reasons for the arrest or detention (He shall be permitted at his own expense, to have a legal advisor of his choice and communicate with him in private. In the case of persons under the age of sixteen the opportunity to communicate with their parents or guardian should be given).

Persons arrested or detained for the purpose of bringing them before a court in the execution of court orders or upon reasonable suspicion of having committed a crime or being about to commit a criminal offence and who are not released on bail:

- ◆ Must be brought before the court as soon as is reasonably practicable.
- ◆ If not tried within a reasonable time they are to be released either unconditionally or upon reasonable conditions including such conditions to ensure his appearance at court at a later date (bond).

- ◆ Persons unlawfully detained or arrested shall be entitled to compensation therefore (unless detained during a period of public emergency).

PROTECTION FROM SLAVERY AND FORCED LABOUR

Persons shall not be held in slavery or servitude and shall not be required to perform forced labour. (***Does not include labour required in consequence of sentence or order of a court.***)

No person shall be **DEPRIVED FROM HIS OR HER FREEDOM OF MOVEMENT (sec. 16)**, and for the purposes of this section the said freedom means the right to move freely throughout the Country except as a result of lawful restrictions or detention as stated in the provisions of the laws.

- ◆ When required in the interests of defense, public safety, public order, public morality or public health.
- ◆ For the imposition of restrictions on the movement or residence of individuals who are not citizens of the Country.
- ◆ For the imposition of restrictions on the acquisition of use by any person of land or other property in the Country.
- ◆ For the imposition of restrictions upon the movement or residence within the Country of public officers, police personnel or members of the military services.
- ◆ For the removal of a person from the Country to be tried outside the Country for a criminal offence or to undergo imprisonment.

No person shall be **SUBJECTED TO TORTURE OR TO INHUMAN OR DEGRADING PUNISHMENT (sec. 17)** or other treatment

NO PROPERTY of any description **SHALL BE COMPULSORILY TAKEN POSSESSION (sec.18)** of except by provisions of a law that:

- Prescribes the principles on which and the manner in which compensation is to be determined and given over.
- Secures to any person claiming an interest in or right to such property a method of legal redress.

Except by his or her own consent, **NO PERSON SHALL BE SUBJECT TO THE SEARCH OF HIS PERSON OR HIS PROPERTY (sec.19)** or the entry by others to his or her premises. Provisions are made for such searches and entry by legal means when:

- In the interests of defence, public safety, public order, public morality, public health, public revenue, town and country planning or the development and utilization of any property in such a manner as to promote the public benefit.
- Such entry enables the established governmental authority to carry out work connected with any property or installation which is lawfully on such premises and which belongs to that governmental authority.

Whenever any person is charged with a criminal offence he or she shall, unless the charge is withdrawn, **BE AFFORDED A FAIR HEARING WITHIN A REASONABLE TIME** by an independent and impartial court established by law

- ◆ He shall be presumed innocent until proven guilty or have pleaded guilty; even the presiding Judge has a right to hear the case and see if in fact there is guilt.
- ◆ He shall be informed as soon as is reasonable of the nature of the offence with which he is charged (in language he understands).
- ◆ He shall not be compelled to give evidence against himself.

No person shall be hindered in the enjoyment of his or her **FREEDOM OF RELIGION, THOUGHT, BELIEF OR WORSHIP, PRACTICE AND OBSERVANCE** (freedom of conscience) (**sec.21**).

No person shall be hindered in the enjoyment of his or her **FREEDOM OF EXPRESSION, OPINIONS, IDEAS AND THE RIGHT TO RECEIVE AND IMPART SUCH INFORMATION** with out interference.

No person shall be hindered in his or her enjoyment of **PEACEFUL ASSEMBLY AND ASSOCIATION AND TO FORM OR BELONG TO TRADE UNIONS (sec. 23)** or other associations for the protection of his or her interests.

FREEDOM FROM DISCRIMINATION (sec.24) The Government can make no laws, which are discriminating either by itself or in its effect, and no person shall be discriminated against by any person acting by virtue of any written law or in the performance of any public office or authority.

DEFINITION OF TERMS

In order to fully understand the nature and intent of the law it is necessary to acquaint yourself with a number of legal terms. Further, knowledge of these terms are essential to your ability to perform the duties of a Constable. You will therefore be expected to know the meaning of each of the following words.

ACT	A decree, the product of a legislative action.
APPREHEND	To lay hold of, to arrest.
ARREST	The restraining of a person from his liberty by apprehension or taking into custody.
CIVIL LAW	Laws or rules concerning the rights and duties of citizens.
COMMON LAW	Law made up of general customs which have been accepted from time immemorial.
CRIME	A legal wrong, the remedy for which is punishment of the offender by the state.
CRIMINAL LAW	Laws defining acts or omissions that are prohibited.
EXECUTIVE BRANCH	Civil service, Cabinet, Chief Justice, Governor General - That part of government that executes the law.
FELONY	Serious crimes for which the law prescribes severe punishments such as death or penal servitude. Often referred to as indictable offences.
IN ACCORDANCE WITH THE LAW	In keeping with a legally sanctioned procedure, Act or Regulation governing an action or omission.
JUDICIAL BRANCH	Civil and criminal courts, Magistrates, Chief Justice - That part of Government that adjudicates and interprets the laws.
LEGISLATIVE BRANCH	The Houses of Parliament, the Cabinet, the Chief Justice - That part of Government which makes and amends the law.
MISDEMEANOR	Breaches of the criminal law which have not been classified as felonies. Usually referred to as minor summary offences. Both felonies and serious misdemeanors may be termed indictable offences.
ON VIEW	Observed committing or about to commit a crime.
ON SUSPICION	Suspected on reasonable grounds of having committed a crime.
ON CHARGE	Accused by a reasonable person of having committed a crime.
POWER	Authority.
RESTRAIN	To stop, to hold back or control.

STATUTE LAW	Laws that have been made by the legislature and sanctioned by the Governor.
TAKE INTO CUSTODY	Place under restraint, accept control over, arrest.
WARRANT	An order commanding the person to whom it is addressed to perform some act, usually an arrest.

CONSTITUTION

Any Established arrangement or custom.

Law

The principles and regulation established by a Government and applicable to the people whether in the form of legislature or of custom and policies recognized and enforced by a judicial decision.

Any written or positive rule or collection of rules prescribed under the authority of the State or Nation as by the people in its Constitution.

POLICE POWERS OF ARREST

Power means authority

Therefore the power of arrest is the authority to take someone's freedom away from him and to take control over his movements.

Authority for a Constable to make an arrest lays in common and statute law and in the authority provided by warrant.

Arrest

The restraining of a person from his liberty by apprehension or taking into custody to answer some specific charge or alleged offence in accordance with the law.

Powers of arrest at common law for a felony

On view

This is where an offence was committed in your view. Mary Jane uses a knife to cut John Brown on his left ear. This was in your view because you saw it taking place.

On suspicion

Tom Strokes has threatened to burn the house of Janice Jones to the ground. This arose out of a love affair gone sour. Should the house of Janice Jones be burnt down you could arrest Tom Strokes on suspicion because of the threat. The previous threat gave you grounds on which you had reasonable cause to suspect Tom Strokes of committing the offence.

On the charge of a third person

James Adams came to you and reported that he had seen Peter Snooks breaking into an unoccupied house and removing the toilet bowl. James Adams is a credible witness; after collecting James Adams' statement you can arrest Peter Snooks.

The powers of arrest at common law for a misdemeanor:

Found committing.

To prevent the immediate renewal of

Found threatening to commit (Constables only).

Anyone who willfully assaults resists or obstructs the Constable in the lawful execution of his duty under circumstances likely to cause a breach of the peace (Constable only).

Statutory powers of arrest

- ◆ Many Acts of Parliament confer powers of arrest without warrant.
- ◆ Powers of arrest are specific to the act or regulation involved.
- ◆ In some cases, the Power of arrest may be exercised by any citizen, designated individuals or only by Constables

Generally speaking, statutory powers of arrest fall into 4 broad categories.

Similar to a felony under common law:

- Committing
- About to Commit
- Suspected of committing
- Accused of committing
- Attempted to commit

Found Committing (Larceny Acts, Vagrancy):

- Immediate arrest
- On fresh pursuit

Name and address unknown (Road Traffic Act):

- When unwilling or unable to provide name and address
- When name and address provided is believed to be false

Offender is likely to abscond (Dangerous Drugs Act)

Arrest with warrants

Written authority rests with the Justice directing the arrest of a named offender.

Warrant must contain:

- The offence charged
- The authority under which the arrest is made
- Who should execute the warrant?

POLICE POWERS OF SEARCH

The police powers of search vary in much the same manner noted in the police powers of arrest. Arbitrary searches are forbidden under the Constitution with certain exceptions.

Under the Constitution a Constable has the power to enter private premises ***WITHOUT A WARRANT*** in order to prevent the commission of a felony or a breach of the peace.

Under the Constabulary Force Act, a Constable can enter private premises ***WITHOUT A WARRANT*** if he suspects stolen property is concealed on any premises occupied by ***PERSON PREVIOUSLY CONVICTED OF LARCENY OR RECEIVING STOLEN PROPERTY.***

Under the Dangerous Drugs Act, a Constable may ***WITHOUT A WARRANT*** stop and search any vehicle, its driver and any passengers ***WHEN THAT VEHICLE IS SUSPECTED OF CARRYING DANGEROUS OR PROHIBITED DRUGS.***

Other forms of searches may be legal under specific circumstances. Under common law, searches are only allowed incidental to an arrest and are only for the purpose of self-protection, the protection of suspect and/or the safekeeping of his property.

THE PROCESS OF GOVERNMENT

- Executive
- Judicial
- Legislative

The executive is broken down as:-

- Prime Minister
- Cabinet
- Attorney General
- Ministries
- Department and Statutory Bodies

The Judiciary is: -

- Court of Appeal
- Supreme Court

Resident Magistrate's Court

The Legislative is: -

Senate
House of Representative
Auditor General.

CONSTABULARY FORCE ACT

INTRODUCTION

The Jamaica Constabulary Force Act gives the Governor General the authority to establish a Police Force. Consequently instructions regarding Police duties, wide powers and procedures were formulated and put in place. This situation affords the Police the appropriate powers to handle social disturbances that may occur from time to time in the country.

Terms of Enlistment (Sec. 5)

Sub-Officers and Constables of the Force may be enlisted for a term of five years, and no Sub-Officer or Constable of the Force, so enlisted, shall be at liberty to withdraw himself from the Force until the expiration of that term; and no Sub-Officer or Constable of the Force who has not been enlisted for a term shall be at liberty to withdraw himself from the Force until the expiration of six months from the time he shall have given notice in writing of his intention so to do to the Officer under whose immediate orders he shall be; and if any Sub-Officer or Constable shall so resign or withdraw himself before the expiration of such term, without the permission of the Commissioner or without such previous notice, he shall for such offence, forfeit and pay a penalty not exceeding twenty dollars, on summary conviction; and it shall be lawful for the Court, in case such penalty shall not be paid, to commit such person to an adult correctional center with or without hard labour, for any period not exceeding three calendar months.

It is therefore very important that you resort to those powers when the situation demands it. The areas of discussion are:

- ❖ Police duties
- ❖ Police powers
- ❖ Police procedures

POLICE DUTIES (Section 13)

The duties of the Police under this Act shall be to keep watch by day and by night, to preserve the peace, to detect crime, apprehend or summon before a Justice, persons found committing any offence or whom they may reasonably suspect of having committed any offence, or who may be charge with having committed any offence, as well as serving and executing all summons, subpoenas, warrants notices and criminal processes issued from any Court or by a Justice in a criminal matter.

All other duties appertaining to the office of Constable

It is unlawful to employ any member of the Force in the service of any Civil Process, or in the levying of rents, rates, or taxes for or on behalf of any private person or incorporated company.

These duties are further explained in the lesson Primary duties of a Constables.

POLICE POWERS

- ✓ Powers of Arrest
- ✓ Powers of Search
- ✓ Traffic Control and Regulation
- ✓ The Power to grant Bail

Powers of Arrest:

Section 15

It shall be lawful for any Constable to apprehend without warrant any person found Committing any offence punishable upon indictment or summary conviction and take him forthwith before a Justice, who shall enquire into the circumstances of the alleged offence and either commit the offender to the nearest jail, prison or lock-up to be thereafter dealt with according to law or grant that person bail in accordance with the **Bail Act 2000**.

Section 18

It shall be lawful for a Constable to arrest without a warrant, any person known or suspected to be in unlawful possession of opium, ganja (Cannabis Sativa), morphine, cocaine or any other dangerous or prohibited drugs, or any paper or ticket relating to any game, pretended game or lottery called or known as peaka peow or drop pan, or any

other game of a similar nature and take him before a Justice who shall thereupon cause such person to be searched in his presence.

Section 16

Any warrant lawfully issued by a Justice for apprehending any person charged with any offence may be executed by any Constable at anytime notwithstanding that the warrant is not in his possession at the time, but the warrant shall on the demand of the person apprehended, be shown to him as soon as practicable after his arrest.

Powers of search

Persons (Section 17)

Any Constable may search any person on board any ship or boat within the limits of any port in this island (12 miles out at sea) or any person who shall have landed from any ship or boat, whether or not such person shall have traveled on such ship or boat, provided he shall have good reason to suppose that such person has any uncustomed or prohibited goods about his person, and if any person shall rescue, destroy or attempt to destroy and goods to prevent seizure or obstruct any Constable in going, remaining or returning from on board, or in searching such ship, boat or person or otherwise in the execution of his duty, every such person shall be liable to a penalty not exceeding two hundred dollars and in default to imprisonment for a period not exceeding twelve months.

Vehicles (Section 19)

It shall be lawful for any Constable without warrant to stop any vehicle suspected to be carrying any stolen or prohibited goods, or opium, ganja, morphine, cocaine or any other dangerous or prohibited drugs or any paper, ticket or token relating to any game, pretended game or lottery or known as peak a peow, drop pan or to any game of a similar nature or any instrument or appliances used for gambling within the meaning of the Betting Gaming and Lotteries Act of the island and to search the aforesaid vehicle and the driver or any person conveyed therein.

N.B. A female must search a female.

Traffic Control and Regulations

Traffic Congestion (Section 20)

It shall be lawful for any Constable to order any person in any public place or thoroughfare to move on, and keep on moving and any person failing to obey such order shall on summary conviction be liable to a penalty not exceeding one thousand dollars and in default of payment thereof to imprisonment not exceeding one month.

Traffic Control (Section 21)

It shall be lawful for a Constable in uniform to control traffic, and any person disobeying any instructions given or any signal, whether orally or by hand, or mechanical device, shall upon summary conviction, be liable to a penalty not exceeding one thousand dollars and in default of payment thereof to imprisonment for any term not exceeding one month.

Powers to Regulate Traffic (Section 22 (1))

Whenever in the opinion of the Commissioner of Police, a street is liable to be thronged or obstructed, it shall be lawful for him and for any Constable acting under his authority to: -

- ✓ Direct the route to be observed by carts, which are in use or are being driven or propelled in or near to such street, or by persons riding or driving any animal in or near to such street.
- ✓ Prevent carts or persons riding or driving any animal from going onto such street.
- ✓ Prescribe the line to be kept by persons riding, driving or walking in any such street, and to compel them to keep the line.
- ✓ Generally to do all that is necessary to prevent congestion of the traffic, and to provide for the safety and convenience of the public.

Powers to Grant Bail (sec. 23)

When any person apprehended by any member of the Force (a) that person shall be taken to a Police Station or Lock-up (b) subject to paragraph (c), an Officer in Charge of the Police Station shall grant bail to that person in accordance with the **Bail Act 2000** (c) if the person refuses or is unable to give any security required as a condition of such bail, it shall be lawful for the Officer or Sub-Officer to detain the person in custody until he can be brought before a Justice and dealt with in a like manner as is directed in the case of a person apprehended under this Act without warrant.

Procedure - Persons in custody without warrant (Sec. 24)

Where any person shall be in the custody of any Officer or Sub-Officer of the Force, in charge of the Police Station or lockup without a warrant of a Justice, whether such person shall have been originally apprehended by any such Officer or Sub-Officer in charge of a police station or lockup, or afterwards delivered into his custody or lodged in any police station or lockup under his care or superintendence, the Officer or Sub-Officer in charge of the Police Station

or Lock-up shall grant bail to that person in accordance with the Bail Act, 2000 unless the person in custody is on a charge of murder, treason or treason felony.

Assaults, Resist or Obstruct Police (Section 30)

If any person shall assault, obstruct, hinder or resist, or use any threatening or abusive and calumnious language or aid or incite any other person to assault, obstruct, hinder or resist any Constable in the execution of his duty, every such offender shall be liable to a fine not exceeding two thousand dollars.

Unauthorized use of Police Uniforms (Section 28)

If any person not being a member of the Jamaica Constabulary Force wears without the permission of the Commissioner of Police the uniform of the Force or any dress having the appearance or bearing of any of the distinctive marks of that uniform he shall on summary conviction be liable to a fine not exceeding twenty dollars and in default of payment to imprisonment with or without hard labour for a term not exceeding three months.

This Act also makes provision for: -

- ◆ Proper discipline (**sec. 26**)
- ◆ Pension and gratuities (**sec. 54**)
- ◆ Police Federation (**sec. 67**)
- ◆ Constabulary Force Band (**sec. 73**)

However these are expanded on in the lesson on Rules and Regulations of the Jamaica Constabulary Force.

If bail is declined (Sec. 25)

If any Officer or Sub-Officer in charge of a Police Station or lock-up shall, refuse to grant bail to any person in his custody and such person shall so required, it shall be the duty of such Officer or Sub-Officer in charge of the Police Station or lock-up, forthwith after being so required, to take or cause to be taken, such person before some Justice conveniently near, for the purpose of having such person dealt with by such Justice according to law; and all recognizance taken before any Justice for the appearance of persons apprehended without warrant shall be taken without fee or reward by any Justice or other person whatever.

STATION RECORDS

INTRODUCTION

The maintenance of records is a vital part of police work and each Constabulary station routinely records some 36 different types of information in connection with every day police operations. In addition to these, headquarters and a number of the specialized units maintain other records. (F.O. 2740 dated 09.12.99, Sub. 4)

Without records, much of what is accomplished by the Constabulary Force would be lost. There would be no official records of crimes, complaints, investigations, incidents, arrests or traffic violations. Furthermore, there would be no record of who was involved. From a legal standpoint, station records fix information in terms of time and preserve details, which, by passage of time, would otherwise become subject to doubt and question. They also provide permanent information about actions taken by personnel assigned to the station. As a management tool, records provide extremely valuable data concerning a number of areas.

These include information concerning the number, location and types of crimes being committed and the effectiveness of any crime prevention programs or personnel assigned to combat the crimes. As an investigative aid, records provide current information regarding the status and progress of ongoing investigations. Even personnel concerns such as workdays, annual leave, sick days and workload information are based on station records.

Therefore, one might say that records are of value in 6 different areas

- ✓ An official record of crimes, traffic accidents, violations and other incidents.
- ✓ A statistical record of the number of crimes and incidents, which have occurred.
- ✓ A source of legal verification for your personal notations, crime reports and accident reports, as well as your activities and any exhibits or property you may have confiscated or held for safekeeping.
- ✓ Information concerning the effectiveness of various programs.
- ✓ Current information on the progress and status of ongoing investigations.
- ✓ Personnel management information.

While in the near future most of the hand-written diaries, registers and record books will be converted into one or two types of computerized records, it is important that every Constable know the different types of records, the information they require and why they are used. Since the same information will be required for both systems, this lesson will permit you to work effectively both with today's system and with the computerized system being installed. We will discuss this new system in greater detail in our lesson on reporting and report writing.

Station Diary

It the number one (1) book at the station and is used to record all official matters in connection with Police Investigation and also to dispatch and return all personnel at the station. (*All reports received at the station and action taken must be carefully recorded in the Station Dairy*).

Crime Book

To record all schedule "A" offences that includes all serious crime and certain other offences. (A list of which can be found in Appendix to Force Orders No. 603)

Drivers Licence and Insurance Certificate Production Book

The purpose of this is to record the particulars of all drivers' licence and insurance certificate and registration booklet produced at the station.

Offence Register

To record all minor offences that is termed schedule "B" offences. These include Indecent Language

Traffic Offence Registers

To record exclusively all road traffic offences under the Road Traffic Law and Regulations

Charge and Prisoner Property Book

To record accurately the name and addresses of all prisoners, his charge and property in connection with the case found on him or elsewhere.

Prisoners Property Book

This book is use to record all properties taken from prisoners, which are their personal property and not likely to be used as exhibit in any case.

Exhibit Register

To record all articles which form the subject of charge, the name of accused if known and where possible name of the alleged owner

Lost Property

To record all property reported lost.

General Property Register

This book is used for the purpose of recording particulars of all property coming into Police custody such as lost and abandoned property, which is not connected with any offence.

Value Book

To record all document accompanied by cash or cheque received at the Station under registered cover which is either to be paid out or sent elsewhere.

Summon Book

To record all summons and subpoena received at the Station.

Traffic Accident Report Register

To record all traffic accident involving motor vehicles.

Sudden Death Register

To record all sudden death reported at the station

Prisoner Diet Order Book

From this book the order is made out and signed by the Station Officer or Sub-Officer in charge of the Station and handed to the person supplying diets to prisoners in custody.

Inward and Outward Correspondence Register

To record all correspondence received at the station also dispatched from the station

Prisoner Diet Book

To record all diets received and supplied to prisoners in custody.

Transfer of Property Receipt Book

This is used when property is to be transferred from station to another or to court or to some person. A receipt is made out in triplicate at the transmitting station. The original and the first copy is sent with the property. The person receiving the property will keep the copy, sign the original and return it to the transmitting station for filing.

District Constable Duty Book

To record all duties performed by District Constable attached to the station.

Special Constable Duty Book

To record all duties performed by Special Constable attached to the station.

Cattle Slaughter Register

To record the description and sex of all cattle slaughtered in the police area, also from whom they were bought.

Habitual Criminal Register

To record the name and addresses of all criminal living in the area

Commitment Register

To record all commitments received at the station, when, how and by whom executed.

Constable Medical Journal

To record all sickness reported by Constables

Prisoner Medical Journal

To record all sickness reported by prisoners in custody at the station

Court Book

To record all cases to be dealt with by the court

Warrant Book

To record all warrants received at the station, date received, date executed and by whom

Duty Roster

To record all duties performed by personnel at the Station from the rank of a Sergeant downwards.

Defaulters Register

For recording all cases of disciplinary charges preferred against a member of the Force from the rank of a Sergeant downwards to be dealt with at Orderly Room.

Prisoners and Detained Register

This register is to record all particulars in respect of every person taken into custody by the police whether charge or detained. (a) signs of injury (if any) (b) details of report of injury (c) any complaints or report of Assault whether against the Police or any other person (s).

Firearm Register

To record all issued of firearms and ammunition to personnel at the station stating date of issue, date returned, and number of ammunition, the condition of the weapon, the serial number and to whom it was issued. The signature of the person issuing and receiving is also recorded

APPENDIX TO FORCE ORDERS 2740 DATED 99.12.09

COLUMN HEADINGS OF STATION RECORDS

1. **PRISONER PRPOERTY**

Cons. No.	Date	Time	Name, age, Offences, Occupation & Address of Prisoner	Detailed Description of Prisoner's Property	Final Description of Property	Authority for Disposal	Remarks
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2. **WARRANT BOOK**

Cons. No.	Station Number	Date Received	Information Number	Disobedience of Summons	Coroner's Inquest	Distress	Ejectment	Search	Distringas and Capias	Bench	Arrest	Information	Name of Complainant	Name of Defendant	Address of Defendant	Offence	Justice Issuing	Date Executed	By Whom Executed
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3 **OFFENCE REGISTER**

Cons. No.	Day, Date, Time and Place of Offence	Day, Date, and Time of Report	Name, Address, Sex and age of Offender	Offence	Rank and Station of Arresting Officer	Arrest or Summon	Date of Trail	Result of Case	Remarks
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4. **DISTRICT CONSTABLE ATTENDANCE REGISTER**

Cons. No.	Name of District Constable	Time Commenced Duty	Diary Entry Number	Signature of District Constable	Time Concluded Duty	Diary Entry Number	Signature of District Constable	Nature of Duty	Remarks
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5. **TRAFFIC ACCIDENT REGISTER**

Cons. No.	Day, Date and Time of Accident	Location of Accident	Class of Vehicle Involved	Name and Address of Owner	Name and Address of Drivers	Sex and Age of Drivers	Drivers Licence Numbers	Date and Place of Issue	Extent of Damage	Degree of Injury "A" Fatal "B", Serious/Slight	Type of Road user	Sex and Age of Road user	Insurance Particulars	Apparent Cause of Accident	Investigating Officer	Traffic Accident Register	Remarks
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6. **TRAFFIC OFFENCE REGISTER**

Cons. No.	Diary Entry Number	Day, Date, and Time of Offence	Exact Location of Offence	Offence Including Section and Chapter of Law	Name and Address of Driver	Sex and Age of Driver	Drivers Licence Number and Place of Issue	By Whom Prosecuted	Arrested or Summon	Warning Notice Book	Date of Court	Result of Case
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7. **SUDDEN DEATH REGISTER**

Cons. No.	Date and Time of Report	Name and Address of Reporter	How Reported	Name and Address of Deceased	Details of Report	Name and Rank of Investigating Officer	Brief Report of Preliminary Investigation	Date Post Mortem Report Received	Date of Inquest	Cause of Death	Remarks
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8. **DUTY FORECAST**

Cons. No.	Reg. No.	Rank	Names	Sunday	Monday	Tuesday	Wednesday	Thursday	Friday	Saturday	Remarks
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9. **CHARGES AND PISONERS PROPERTY BOOK**

Cons. No.	Day, Date and Place of Arrest	Date and Time Brought to Station	Name, Age, Sex, Address and Occupation of Person Charged or Arrested	Name, Rank, No, and Signature of Arresting Officer	Offence or Suspected Offence for which Arrested (quote section and law) give summary of Circumstances of Arrest	Physical Condition of Person Arrested(Bruises, et) Condition of Clothing and Complaint Made	Name and Rank of Officer Informed of Arrest and Date and Time Informed	Station Registers Reference: C.B., O.R., T.O.R., T.A.R., F.P.R., P.T.R., S.D.R., Ex..Reg., M.J.	Bail or Release State Date and Time Bailed or Released. Signature of Person Releasing Name and Address of Surety	Property Taken from Prisoner		Remands (Signature of J.P. where Applicable)	Court Appearance (Date, Place, Etc.) and Result	Disposal of Property at (10) Signature of Owner and Storekeeper, Witness (es) and Date.
										10a	10b			
										Personal	Others			
										List all Items with Identifying Marks. Signature of Station Officer Receiving	List all Item with Identifying Marks Signature of Station Officer Receiving			

10. **GENERAL PROPERTY BOOK**

Cons. No.	Date and Time Brought to Station	Station Diary Entry Number	Detailed Description of Property Showing Serial Number of Other Visible Marks of Identity	Name, Age, Sex, Address and Description of Person Handing in Property	Circumstances under which Brought to Station	Signature of Person Handing in Property	Signature and Rank Receiving Property	Circulations	Details of Property Transferred	Details of Disposal; and Signature of Person to Whom Property has been Restored or Person Responsible, Signature must be Date and Witnessed	Authority of Disposal
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11. **CORRESPONDENCE REGISTER**

Cons. No.	File Description	Headquarters Number	Date Received	From Whom Received	Subject	Dispatch	Receipt	Dispatch	Receipt	Receipt	Dispatch	Receipt	Dispatch	Receipt	Dispatch
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12. **DRIVERS LICENCE AND INSURANCE PRODUCTION REGISTER**

Cons. No.	Date and Time Produced	Name and Address of Driver	Place Issued and Date	Date of Expiry	Type of Licence and Number	Class of Motor Vehicle	Insurance Company and Certificate Number	Expiry Date of Insurance	Certificate of Fitness	Expiry Date of Fitness	Registration Number	Signature of Officer Receiving Document	Remarks
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13. **COMPLAINT OF THE PUBLIC AGAINST THE POLICE**

Cons. No.	Date ,Time and Place Complaint Received	Name and Address of Complainant	Date, Time and Nature of Complaint	Particulars of Officer Complaint Against	Name of Investigating Officer	Date minute to Deputy Commissioner of Police	How Reported
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14. **EXHIBIT REGISTER**

Serial Number	Date Received	Full Description of Exhibit	From whom Received	General Property Book No. or Property Transfer Receipt No.	Date Take to Court	Signature of Bearer	Date Returned from Court	Signature of Storekeeper	Disposal including Property Transfer Receipt No.
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15. **PROCESS BOOK**

Cons. No.	Date Received	Date of Court	Summons	Subpoena	Juror Summons	Coroners Inquest	Medical Certificate Complaint	Complaint	Name of Defendant	Address of Defendant	Offence	Name of Witness	Name of Justice	By Whom Served	How served	Date Served	Remarks
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16. **DUTY ROSTER**

Cons. No.	Regulation Number	Rank	Name	Sunday			Monday			Tuesday			Wednesday			Thursday			Friday			Saturday			Total Hours
				Date	D/E	Hours	Date	D/D	Hours	Date	D/E	Hours	Date	D/E	Hours	Date	D/E	Hours	Date	D/E	Hours	Date	D/E	Hours	

17. **DEFAULTERS REGISTER**

Cons. No.	Station	Date Charged	Regulation Number	Rank and Name	Particulars of Charges	Complaint or Witness	Date Tried	Plea	Finding	Punishment
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18. **CRIME BOOK**

Serial No.	Date of Occurrence	Time of Occurrence	Date of Report	Time of Report	"A" Name of Detective acquainted and informed (B) Person Taking	Details of investigation made and action taken. this entry must be made,	"A" f Final Classification Crime report number, Date submitted (B) If transferred
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					Particulars (c) Name of Person deputed to carry out investigation by Senior Detective or Sub-Officer in charge of uniform Branch	signed and dated by the person deputed to carry out investigation in case of arrest appearance before court must be shown, the result, when the case has been disposed	to lost property Register (c) if not recorded as a crime reason to be given in column
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19. **TOLL CALL REGISTER**

Cons. No	Date Call Made	Time Call Made	Number Called	Name of Person Making Call	Rank	Destination of Call	Nature of Call (Private or Official)	Signature of Person Authorizing	Amount	Remarks
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20. **FIREARM REGISTER**

Date Issued	Firearm Number	Number of Rounds Issued	Diary Entry Number	Name of Person Receiving	Signature of Person Receiving	Signature of Person Issuing	Date Returned	Type of Firearm	Time Returned	Firearm Number	Number of Rounds Returned	Diary Entry Number	Signature of Person Retuning	Signature of Person Receiving	Remarks
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21. **MEDICAL JOURNAL (POLICE)**

Cons. No.	Regulation Number	Rank	Name	Age	Ailment	Station	Diagnosis and Treatment	Doctors Signature	Leave Granted if Any
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22. **PRISONER MEDICAL JOURNAL**

Cons. No.	Date	Name of Prisoner	Offence	Complaint	Hospital	Doctor's Remarks	Doctor's Signature
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23. **JUVENILE CAUTION REGISTER**

Cons. No.	Date and Time of Cautioned	Name and Address or Juvenile	Name and Address of Parent or Guardian	Police Station	School Attended	Circumstance under which Brought to Station	By Whom Cautioned	Remarks
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24. **CATTLE SLAUGHTER REGISTER**

Cons. No.	Date and Time of Report	Name and Address of Butcher	License Number	Permit Number	Description of Cattle	Name and Address of Vendor	Value of Cattle	Remarks
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25. **JUSTICE OF THE PEACE REGISTER**

Cons. No.	Name	Address of Applicant	Date Appointed	Remarks
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26. **TRAFFIC DIARY**

Cons. No.	Reference Number	Date	Subject	Nature of Occurrence	Signature
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27. **DETAINEE BOOK**

Cons. No.	Date, Time, and Diary	Name, Age and	Offence	Investigating Officer and	Sub-Officer in Charge of	Physical Condition of	Court Date and Result	Remarks
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	Entry #	Address of Detainee		Station	Lock-Up	Detainee		
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28. **HABITUAL CRIMINAL REGISTER**

Name	Criminal Record Office Number	Age	Address	Bate of Birth	Alias (es)	Height	Built	Relative(s)	Address (es)	Offence	Investigator	Previous Conviction (s)	Places Frequent	Associates
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29. **CRIME DIARY**

Cons. No.	Reference	Hour	Subject	Nature of Occurrence	Signature
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30. **ROAD BLOCK BOOK**

Cons. No.	Date	Time	Diary Entry Number	Subject	Nature of Occurrence	Remarks
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31. **DIET BOOK**

Cons. No.	Name of Prisoner	Date Came in Custody	Diary Entry Number	Meal Supplied	Offence	Date Released	Diary Entry Number	Meal Supplied	Number of Days In Custody	Number of Meals Supplied	Rate	Total Amount	Remarks
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32. **STATION DIARY**

Cons. No.	Reference No.	Hour	Subject	Nature of Occurrence	Signature
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33. **COURT BOOK**

Date of Court	Place of	Name of Arresting Officer	Type of Case	Name of Accused	State of Case
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34. **VALUE BOOK (IMMIGRATION DEPARTMENT)**

Date of Receipt	Number of Registered Slips	Letter Number	Particular	Content	Amount	Initial of Clerk Opening Letter	Initial of Cashier	Receipt Number of Cashier	Remarks
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35. **COMMITMENT REGISTER (COST AND FINE)**

Cons. No.	Date Received	Commitment Number	Name of Defendant	Address of		Date Convicted	Fine	Cost	Alternate Sentence	Time Allowed	Surety	Dated Executed	By Whom	Date Fine	Official Receipt	Remarks
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		Head Station	Out Station		Defendant			\$	C	\$	C						Paid To Courts Office	Number	
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(B) COMMITMENT REGISTER (STRAIGHT CUSTODIAL)

Cons. No.	Date Received	Information Number	Name of Defendant	Offence	Date Convicted	Sentence	Body Receipt Number	Date Sent to Prison	Remarks
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36. DEBIT CARD REGISTER

Cons. No.	Vehicle Registration No.	Date and Time (card issued)	Name of Person Issuing	Name of Person Receiving	Signature of Person Receiving	Odometer Reading	No. of Liters of Petrol Purchased	Unit Price of Petrol Purchased	Total Price of Petrol Purchased	Other Costs	Receipt No.	Balance on Card	Name of Service Station	Date and Time (Card Returned)	Name of Person Returning Card	Name of Person Receiving Card	Signature of Person Receiving Card	Remarks
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37. DIET ORDER BOOKSTATION

No..... Date.....2

To.....

Please supply the under mentioned Meals for Prisoners

Breakfast..... at \$

Dinner..... at \$

Supper.....at \$

Sick Diet.....at \$

STATION DUTIES

INTRODUCTION

Constables who have recently graduated from the Academy are often assigned to station duties. While this sounds like a boring job, it is really one of the most important duties in the Constabulary. Station duties consist of a variety of duty areas. Some of these jobs involve frequent contact with the public and opportunities to assist people who are in need. As a group, the station duties are probably the most instructive of all police activities. Valuable experience in dealing with the public, prisoners and professionals can be acquired quickly.

For those of you who approach station duties with a true desire to serve the public and enhance your police skills, this assignment will be of great value. You will have increased your ability to deal with the public and will have a more complete understanding of the way the system operates. You will find these are attributes, which will significantly increase your effectiveness as a Constable throughout your career.

RANGE OF DUTIES

Station duties consist of a wide range of tasks, most of which fall under the duty assignment of Station Guard. The work includes, taking complaints from citizens, maintaining the station diary, performing sentry duty, providing assistance to people seeking licenses or to contact various offices or police personnel, maintaining radio contact with central control and local Constables, controlling prisoners and maintaining jail cells, assigning court processes for service or execution, transporting prisoners to and from courts and/or other locations, briefing oncoming shifts regarding activities during previous shift, accepting, recording and safeguarding property of prisoners, found property, etc., accepting, recording and safeguarding exhibits, issuing firearms and other Constabulary equipment, conducting routine patrol in the local area, performing point duty during high traffic periods.

In small stations and during the less active times of the day, a single person may perform all of these duties. On the other hand, in larger stations or during more active times of the day, one or more Constables may be assigned to each of the above jobs.

Due to the broad range of possible duties and the requirements of each, it is necessary to examine each duty category within the station guard assignment individually.

STATION SENTRY

A primary duty of the station guard is to safeguard all Government property and the Station compound.

The station sentry must be in full uniform clean, properly dressed and fully equipped. The station sentry should determine the location and functions of all licensing agencies, investigative units, traffic sections and other service areas at and near the station so that he or she will be able to provide directions and information regarding their location and services provided.

While on duty he should make himself or herself available to the public who may wish to ask directions or have appointments with other members of the Constabulary at the station. While ensuring the security of the compound, the sentry must bear in mind the fact that the station is public property. As such, all persons must be treated with courtesy and politeness.

Be prepared to assist in ensuring that personnel in the barracks are awakened on time for their shift. Assist in observing prisoners in custody and protecting against any possible escape attempts by prisoners in the cells or individuals who have been arrested and brought to the station.

The station sentry should not leave the public area of the station without advising the Sub-officer or the Constable acting as station guard. If it becomes necessary to be absent for more than 15 minutes, arrangements for a relief sentry should be made.

STATION GUARD

These duties are primarily those associated with the administrative functions of the Station Guard.

This is a uniformed position, all personnel should report in full and correct uniform, clean and with full equipment. He or she is in charge of all keys to the station and should keep them on his or her person at all times unless it is necessary to send personnel for supplies or equipment. The station guard must accurately record the movements of all personnel at the station going on and off duty or otherwise.

Record all activities and reports in the station diary; personally ensure that investigations requiring urgent attention are brought to the notice of the station Officer and/or Sub-officer. Personally assist, or see that other personnel at the station assist citizens wishing to report incidents, ask advice or seek help politely answer all telephones and radio messages and cause appropriate action to be taken.

Maintain current records of incidents and prisoners in custody. This includes the station diary, prisoners in custody book, prisoner's property book, crime book, and all other books and diaries located at the station. (Others handling those particular assignments in the larger stations may complete Books).

In the absence of a superior, to report the state of the station with regards to the number of prisoners in custody, serious crimes, motor vehicle accidents, fires, sudden deaths, labour disputes, demonstrations and disturbances etc. which occurred during the previous 24 hour period to his or her Divisional Inspector, Divisional Officer or any other officers visiting the station, in the absence of a superior, conduct briefings regarding the events of the past 24 hours to personnel coming on shift.

Prisoner must not be questioned about the offence for which he/she is charged.

Juveniles Offenders are not to be placed in the same cell with adults. Females prisoners must be separated from males and female attendants must be present in a case of females.

All reports must be investigated however trivial

CELL GUARD

The station guard is charged with the responsibility for the safe custody of all prisoners in custody. Upon taking over duty he will make a physical check of all prisoners in custody to ensure that they are alive and that the cells are free of dangerous weapons and instruments.

A complete count of the number of prisoners in custody should be forwarded to the station guard as soon as possible after the beginning of the shift.

The cell guard shall see that all persons to be placed in custody are properly searched (detail search) prior to being confined to a cell. (Female prisoners must be searched by female guards out of sight of the public, male prisoners or male Constabulary personnel). Mentally unbalanced persons should be placed in a cell alone.

All property belonging to the prisoner shall be taken for safekeeping. A list of all such property and monies shall be made in duplicate and signed by both the cell guard and the prisoner. (all money records should include the serial numbers of the bills) One copy of the list must be furnished to the prisoner.

Stolen property found in the possession of the prisoner shall be appropriately labeled: (Found in the possession of H. Henry by arresting Constables, and atam/pm2..... When arrested at (location) referenceVs..... burglary,(identification number) (date) Signedarresting Constables (Date) and delivered directly to the exhibits storekeeper).

All cells must be visited at least once every hour. Cells containing drunks, mentally unbalanced, and suspected murderers should be visited every 30 minutes. During the night (7:00 p.m. to 5:00 am) cells should be visited 3 times each hour. The station guard should be advised of each visit so that it can be recorded in the station diary.

Cells should not be visited alone. No weapons should be worn while visiting cells.

The number of prisoners in each cell should be uneven. Convicted prisoners and prisoners awaiting trial should not be placed in the same cell. If this becomes necessary, an entry indicating this action and its justification must be placed in the station diary.

Except in exceptional cases the cells will not be visited alone and on no account without a baton. Prisoners must not leave the station for any un-authorized purpose.

Keys to the cells should be kept on the person of the cell guard at all times.

Do not handcuff prisoners unless there is a significant chance the prisoner will attempt to escape. Handcuffs should never be used on women or old and infirm men.

Prisoners must not be asked questions regarding their offence.

Prisoners wishing to confess should be cautioned according to the Judges Rules and sign a document indicating they have been cautioned prior to making their statement.

Solicitors who have been retained by prisoners should be allowed to confer with their clients out of earshot of any police personnel. The prisoner should not, however be permitted out of sight at any time.

Prisoners may receive food from outside at the discretion of the guard. Relatives and friends bringing food for prisoners must partake of some of the food before it is given to the prisoner. Further, the food must be examined for hidden weapons or drugs before passing to the prisoner. Intoxicating beverages are strictly forbidden at all times.

Special attention must be paid to the diets of mentally unstable or ill prisoners. The recommendations of the Medical Officer shall be determined and carried out in such cases. Diets ordered for a prisoner before his release or transfer should be served before he is released.

Juvenile prisoners must not be placed in the same cell with adult prisoners, female prisoners must not be placed in the same cells with male prisoners and female cell guards must be present if there are female prisoners.

Clothing sent for prisoners should be carefully searched.

Mails for prisoners should be read by a Constable prior to delivery to ensure they contain nothing that may interfere with the interests of Justice should read mail for prisoners.

The cell guard should bear in mind that prisoners are also citizens and are entitled to the same assistance and protection as every other citizen. As such, every effort should be made to see that the cells are clean, sanitary and habitable at all times. Further, every effort should be made to see that all prisoners are safe from attack and as comfortable as possible. Attempts to physically or mentally demean, degrade or otherwise abuse or mistreat prisoners will not be tolerated.

When escorting prisoners to other locations (these recommendations will be covered during the lesson on handling prisoners):

- ❖ Avoid going through busy streets.
- ❖ Keep the prisoner within an arms length at all times.
- ❖ Do not allow the prisoner to get behind you.
- ❖ Do not use public transportation.

- ❖ The use of handcuffs is preferred (However, check with the magistrate as to whether handcuffs are allowed on the prisoner while in court).
- ❖ Watch for self-destructive behaviour.
- ❖ Use a minimum of two Constables to transport a prisoner.
- ❖ If transporting under a writ of habeas corpus, regulations say you must have at least one Constable and one Sub-officer for each prisoner.

EXHIBITS STOREKEEPER

Usually in only the larger stations

- ❖ Accepts and records the receipt of exhibits and evidence associated with various crimes and incidents in the exhibits logbook. The entry must include the date received, name of the Constable submitting the exhibit, the status of the exhibit and a complete description of the item(s). (Force Order 2235).
- ❖ Stores exhibit in a manner, which best preserves, both the evidentiary value and the monetary value of the exhibit.
- ❖ Personally submits or oversees the submission of exhibits to the forensic laboratory when such material was not submitted directly. In such cases, the storekeeper shall prepare a "Exhibits for the Police Forensic Laboratory" form and shall include all prior custody information such as:

Name of person last having custody of the item.

Date and time of submission

Date and time of receipt in the Laboratory

Name and signature of the person in the laboratory receiving the exhibit

Receiving person's functional responsibility

Reason for transfer

Synopsis of event

Examinations desired

Accepts found (or lost) property for safekeeping

Records the receipt of same in both the station diary and the lost property register

Completes and attaches a JCF property card

Notifies owner if owner is known, if owner is not known, makes every reasonable effort to determine owner (if ownership not determined within 3 months, procedures outlined in the Force Act, Chapter 71, Section 45 (1) shall be carried out).

Official documents such as licenses and passports shall be turned over to the appropriate agency or embassy. (If such action is taken, a property transfer receipt shall be filled out with one copy to the person receiving the item and one copy retained for Force records).

Accepts property for safekeeping as a service upon request of the owner or for the protection of the owner.

Property held for safekeeping shall be labelled with the use of a JCF property tag.

Property will be turned over to the owner at his request and/or when the purpose for the safekeeping has been satisfied.

Property held by the Force for safekeeping shall not be turned over to the owner if release of the property would constitute a threat to the owner or another person.

Property authorized to be held for safekeeping by the commissioner or the courts cannot be released without prior approval of the Commissioner or the court. (Force Order 2235)

Returns property and exhibits to owners when authorized or when exhibits are no longer needed for use in the investigation or prosecution of a case.

When returning property, a property transfer receipt shall be filled out with one copy going to the person receiving the item(s) and one copy retained for JCF records. (Disposition of property should also be entered in the exhibits book with reference to the original entry).

Accepts property and drugs for destruction

Material not in evidence or no longer needed for trial shall be handled in the following manner:
Depending on the quantity, place in an evidence envelope or some appropriate container.

Record acceptance in the exhibits/property logbook including facts on possession

Notify the Sub-officer in charge of the investigating Constable's district that the Chief Internal Auditor's office of the Minister of National Security and Justice must be advised that such drugs are available for destruction. Await their determination as to how the drugs shall be destroyed.

Send a copy of the above to the Deputy Commissioner of Police, Crime.

Money seized in drug cases

Specific procedures are required for the handling of money seized in drug cases.

Record the exact amount in the exhibits register, including individual denominations, serial numbers and country of origin.

If possible, copy each bill and place the copies in the investigation file. Place all money in a property envelope and seal in presence of witnesses.

Storekeeper and all witnesses must sign property envelope.

Submit copies of the incident report detailing all information pertaining to the investigation and the money seized to the Director of Public Prosecution and the Internal Auditor's section of the Minister of National Security and Justice.

Following any use in a trial or prosecution, a copy of the investigating Constable's report detailing the Judge's final disposition of the money should be sent to the Internal Auditor's section.

Vehicles taken into police custody (F.O. 2230)

It is the policy of the JCF to impound or seize motor vehicles in a manner, which is within the constraints of the laws of Jamaica, and in the interests of the citizens of Jamaica and the owners of the vehicles involved.

Impoundment. (Towing the vehicle under circumstances where the vehicle may be released to the owner subsequent to payment of the towing bill).

On arrest of the operator when no other person is present who can lawfully assume custody of the vehicle.

When the vehicle is parked unattended on the highway and presents a hazard.

When the vehicle is disabled as a result of an accident or mechanical breakdown.

When the vehicle is parked or stopped in the vicinity of a fire or emergency scene and constitutes a hazard or interferes with the police operation.

When the vehicle has been abandoned for more than 5 days on public property or on private property without the consent of the property owner

When the vehicle obstructs movement from any premises, driveway, or other parking area without the owners' permission

A recovered stolen vehicle

When a vehicle is taken for safekeeping.

Seizure

Towing when the vehicle cannot be released to the owner without the authority of the Director of Public Prosecution or the court

The vehicle constitutes evidence

The vehicle was used to transport stolen property

The vehicle was used to transport drugs

The vehicle is an instrument of any crime

Vehicles towed by the JCF will undergo a complete inventory of their contents except when the owner is present to arrange for the safekeeping of any personal property within (see F.O. 2230)

Towing and inventory records

Whenever a vehicle is towed and an inventory conducted, the following information shall be recorded in the station diary and or the property/exhibit logbook.

Date and time of towing and inventory

Police person assigned to case.

Location and reason for tow

Make, model, year, colour and VIN number, License Number and location stored.

Name of towing company

Notification of owner every effort shall be made to notify the owner of the vehicle in a timely manner. If arrested, the owner will be advised at the time of arrest where the vehicle will be stored.

The owner shall be responsible for any towing or storage charges (except where the vehicle has been seized) (If the owner is not notified of the location of a towed vehicle in a timely fashion, the Constabulary is liable).

See Force Order Number 2230 for information on hit and run vehicles, stolen vehicles, and vehicle release procedures.

Firearms taken into police custody (F. O. 2233)

Specific procedures are set out in Force Order Number 2233, dated 22/3/90 regarding Firearms.

Firearms used in any crime are held as an exhibit.

Placed in a clean sanitary plastic bag. (with care so that no evidentiary value is lost).

A JCF "Exhibits for Police Forensic Laboratory" form shall be attached.

Any and all bullets shall be placed in a separate plastic bag and a second Exhibits form attached.

The weapon(s) will be maintained with all required forms and/or incident reports.

The weapon will be maintained in a secure location of the exhibits store.

PROCESS CLERK

Usually only in large stations they receive, assigns and returns various court process papers.

On receipt of a process paper

Carefully examines it to establish that is genuine (checks seal and/or signature of Magistrate.

Checks name, address, offence if any, including law and section

Checks date, time and place specified for appearance in court.

If a warrant, checks the instructions to determine if they are clear.

Records receipt of process in appropriate register with date, address, name, offence and name of issuing Justice in the prescribed columns

Follows or causes to be followed the directives of the process. (Have paper served or executed).

Endorses where applicable, or verifies the endorsement on the original or copy stating manner of service or execution, date, time, place and by whom.

Records in the appropriate register, when and by whom the process was served or executed, how served, number of miles travelled and any remarks.

Summons, subpoenas and warrants, after endorsement, should be returned to the courts office before the scheduled date of the hearing, If a warrant is not executed, it should be returned to the courts 6 months after it was received.

PROPERTY STOREKEEPER

Usually only in the larger stations, issues equipment and supplies

Issues firearms. Completes the firearms issue register recording all issue of firearms and ammunition to personnel at the station. Notes date of issue, date returned, number of rounds of ammunition, the condition of the weapon, the serial number and to whom issued. The signature of the person receiving the weapon is also recorded.

Issues other equipment as needed.

Assigns vehicles and motorcycles as needed.

DUTY OF POLICE AT FIRE

ON THE REPORT OF A FIRE - The officer or sub-officer of Police in District or Town where the fire breaks out must immediately proceed to the scene with a strong force of Police as possible as may be necessary and are available to maintain Law and Order.

DUTIES

The following are the duties:-

- ✓ Guard fire engines and hoses
- ✓ Keep away crowd from operation of the engine and danger zone
- ✓ Divert traffic if necessary
- ✓ Save life and attend to injury by rendering First Aid
- ✓ Give the fire fighters as much assistance as possible
- ✓ Assume responsibility of putting out fires if no Brigades is available
- ✓ Preventing looting and destruction of other property

Police Investigations

The cause of the Fire unless obviously due to accident must be investigated by the police as follows;

- ✓ Examine any salvage for trace of any oil, or inflammable materials
- ✓ Note if place was fired in many places.
- ✓ Note the nature of business carried on
- ✓ Question the owners, servants, occupiers or even neighbours
- ✓ Enquire in to the characters, previous history and circumstances of the owner; that is if he is in debt or arrears of rent or a drunkard or gambler
- ✓ Ascertain whether any goods were removed recently
- ✓ Obtain witnesses, which may be of great help of importance

LOST PROPERTY

Definition:

Lost property is property missing from one's possession without his knowledge but which has not been stolen or otherwise dishonestly taken away.

Where property can be found and how to dispose of them:

Private Premises:

Property found on private premises should be handed over to the owner occupier of the premises without delay.

In Public Place

This should be reported to the police within twenty four hours

The finder has no obligation to hand over it to the police if he knows the owner

The police must take a full description of the property also where and when it was found, name and address of the finder and anything else that may be of use in helping to find the owner.

Property handed over to the police should be tagged.

The particulars of the property should be recorded in the station diary and other appropriate records

On Public Passenger Vehicles

Properties found on public passenger vehicle should be handed over to the conductor or any other person in charge of the vehicle without demand for a reward

Under the Road Traffic Regulation it is the duty of the conductor to search vehicle either immediately before or on termination of a journey.

Property found should be handed over as soon as possible or at any rate within twenty-four hours of the receipt of such property to the Police Officer in charge of the parish or area through which the vehicle operates.

If someone should claim it to the satisfaction of the conductor, he may hand it over to such person without claim or reward.

In such a case the conductor should get the name and address of such person claiming the property and report the facts to the operator or his representatives.

The Police should retain all lost property until claimed or disposed of under the J.C.F. Act Chapter 72 within the prescribed time of three months (Sec. 45 (1))

Official documents such as licences, passports etc. should be handed over without delay to the appropriate Government Department or the office of issue.

If the name and address of the owner is known he should be notified to come and claim it.

LOST CHILDREN

Lost children should be taken to the police station for safety. If his parents, relatives or guardians addresses are known, they should be notified so that they may take him home as soon as possible. If the child is unable to give intelligent information and the parents or guardians are unknown, a full description should be taken and circulated to all police stations, the media. (Electronic)

If the child is not claimed he or she should be medically examined and sent to a Place of Safety

TREASURE TROVE

Treasure Trove is property of great wealth, which includes gold; silver, coins, plate or bullions found in the earth, in buildings or premises and is not the property of anyone.

Treasure Trove is the property of the State. Anyone who finds same and conceals it commits an offence against the State. The Police upon hearing of a Treasure Trove should obtain a search warrant, enter the premises and seize it. A Coroners Inquest will be held to determine if it is a Treasure Trove and what percentage, if any, the finder should get, also to determine the finder.

N.B. Wreckages washed up by the sea within the limits of Jamaica, which is twelve miles out at sea should be reported to the receiver of wrecks who is the collector of taxes for the area.

INFORMATION

Proper information of all valuable articles should be sent to Police Headquarters on the required CIB 8 form so that the property can be circulated in the police Gazette

Jamaica Constabulary Force
Missing Person Form 1

.....Division
.....Station

Criminal Investigation Branch
P.O. Box 462
Kingston

Diary Entry No.....of.....2.....
Missing Person Book No.....of ...2.....

C.I. Ref. No.....of.....2.....	C.R.O. Ref. No.....of.....2.....
<u>Remarks</u>	<u>Remarks</u>
N.B. C.I.B. H.Q. Staff Only	C.R. O. Staff Only

Particulars

Name:.....Address.....

Alias Name.....Place Frequent.....

.....N.B. Overseas Travel : Yes / No / Unknown

Occupation.....Date of Birth.....Age.....Sex.....

Place of Birth.....Nationality.....

Complexion.....Marks.....

Face Hair Head

Nose LipsMouth.....

Teeth.....Ears Hands

VoiceDress when last seen.....

.....Weakness.....

Date / Time missingDate / Time Reported Missing.....

Place from which reported missing.....

Reason for Reporting.....

Marital StatusNo. of Children.....Age (s).....

Name of Children.....

School Children attend.....

.....Religion.....

Next of King.....Address.....

Other Relatives.....

Voter Registration I.D..... Other.....

Last Place of Employment.....Bank.....

Indebted: Yes / No To whomAmount.....Period.....

If Insured Name of CompanyValue of Policy.....

Hospital, Sickness and Frequency

Name and Address of person making report.....

.....
Investigating Officer

.....
Officer in charge

.....
Date

.....
Date

NOTE TAKING AND POCKET BOOK

INTRODUCTION

Of all the tasks performed by police, perhaps the most common and most boring is that of taking notes about an alleged crime, incident or situation. When one thinks of law enforcement or watches a movie about police, little if any attention is given to the job most often performed by the Constable. Taking notes and writing reports are usually not exciting or challenging and in some cases not even interesting. Yet, the taking of notes and the writing of reports is one of the most important jobs in police work.

It is vital that everything told to you about a crime, an incident or a situation, which might be of interest to the police, is written down. This is true even though it may not seem to be an important fact at the time. Fortunately note taking, like many other skills, is a matter of developing a habit of writing things down when you hear them. It is not a hard skill to learn but it does require practice.

Taking notes about a crime or other incident is very similar to taking notes in class. In both cases you cannot write everything said. People can talk much faster than you can write. Further, much of what is said is of little value or is said simply to illustrate a point. You must determine which facts are important enough to record. Yet, your notations must include every piece of information, which may be needed later. Moreover, you must organize your notes in such a way as to be able to understand them at a later date.

This is the reason you are required to take notes in all of your classes. Not only will you be required to keep notes in all your classes but you will also be required to keep them in a legible, organized manner. They must be in either outline or topical heading form and if necessary printed. Finally, the notes for each class will be expected to begin with the topic, day, time, and the name of the instructor. It will also be necessary to periodically hand in your notebooks for inspection.

GENERAL FORMAT FOR CLASSROOM NOTES

As a general rule, the topic, date, time, classroom and instructor's name should be placed in the upper right hand corner of the first page of notes for each class. Some prefer to write the topic in the center at the top of the page. This is also acceptable.

The most common format for keeping notes is the outline. In this format each major subject discussed becomes a primary heading. Information concerning that topic is then written below the heading.

NOTE TAKING IN THE FIELD

To a great extent, you will use this same format when you are taking notes about crimes, incidents or situations. Whenever you take notes on any subject, first write the date, time and location in the upper right or left hand corner. Then add the title of the notation. This might be a crime, such as a burglary, a complaint about the actions of a citizen, or a barking dog. It may be hard to give some information a title and you may wish to call it, "suspicious circumstances" or "unknown problem." The information described above constitutes the "heading" of your notation. The complete entry would be made up of:

❖ **Heading** (title of your notation)

- ✓ Date, time and location.
- ✓ Name and address of person giving information.

Description of crime, incident or occurrence (include all available information, elements of crime etc.)

When did it happen (How does person giving information know this)?
Where did it happen (diagram)?
How did it happen?

❖ **Who was involved**

Who was victimized?
Names and addresses of each
Describe any injuries, damage or losses.

❖ **Who did it**

Names and addresses of each
Descriptions of each
Descriptions of any vehicles used.
Where did suspect go after incident.

❖ **Who witnessed it**

Names and addresses of each
What was their location at the time?

❖ **Description of any articles stolen or damaged during the incident.**

Complete descriptions of stolen articles
Obtain serial numbers if possible

Actions taken

Depending upon the circumstances, it may be necessary to take some type of action at the same time or after you gather the information for your notes. The type of action taken will depend on the situation. However, any action you take should be recorded in your notes along with the time the action was taken. These actions may include, but are not limited to, the following: (Discuss each).

Advising the radio dispatcher to tell everyone to watch for a certain person or vehicle

Calling for a supervisor

Calling for a CIB Constable

Making an arrest

Gathering names of witnesses to the incident for interviewing

Protecting a crime scene

Giving first aid to an injured person (and calling an ambulance).

Recording the incident in the station diary and/or other registers and diaries.

Preparing a written report concerning the incident.

Protecting exhibits found at the scene (Describe locations in your notes).

Placing personal mark on exhibits so you can identify them later (describe in your notes).

Drawing diagram/sketch of crime or accident scene (draw rough sketch in your notes --include measurements).

NAMES AND DESCRIPTIONS

Particular attention must be given to obtaining the correct names and descriptions of all concerned. Because of the records system and the cross indexing of information, names that are spelled wrong and addresses, which are not exact, will be indexed wrong. When a name or an address is incorrectly indexed, it will not be matched with other information about the same person or place. This may result in a suspect not being identified or the loss of other important information about the suspects or the victims

ALWAYS ASK THE PERSON TO SPELL HIS OR HER NAME

(Discuss the various ways to spell certain names, Smith, Berry, Reed, Leonard, Kline etc.).

ALWAYS ASK THE PERSON FOR THEIR COMPLETE ADDRESS

An accurate address can provide a method of finding a case when the names are not remembered. It can also provide information about previous complaints or activities at that location.

POCKET BOOK

A pocket book or note book is an official and confidential document issued to a Constable in which he is required to record accurately day, date, time and place names and addresses, statement made by accused persons and other matters coming under his view from time to time in connection with his duties.

OBJECT OF THE POCKET BOOK

The main object of providing a Constable with a Pocket Book is to enable him to give evidence accurately by using it to refresh his memory.

KEEPING OF THE POCKET BOOK

The Pocket Book is kept in accordance with Box Plan or Code Letters (**E.L.B.O.W.S.**)

- E** - No erasure to be done.
- L** - No leaves to be torn out.
- B** - No blank pages or spaces to be left out.
- O** - No over writing or obliteration to be done.
- W** - No writing between lines.
- S** - Statements to be in the original words of the maker, providing they can be understood.

POINTS TO BE OBSERVED WHEN MAKING ENTRIES

- Notes to be made at the time of occurrence or as soon as possible afterwards.
- Strict accuracy to be observed.
- Notes to be made independently and without consultation.
- Notes to be made in order of sequence chronology. (Arrange in order of time as they happen).
- If notes are made on another piece of paper and transferred to the original Pocket Book, the original notes should be preserved.
- If notes appear insufficient, fuller notes may be made and cross-referenced with the previous one.

GENERAL

No paper or other material to be kept in the Pocket Book.

Always remember to note any statement made by persons arrested, before and after the arrest.

Notes may be made even though prosecution is not contemplated. So long as an offence has been disclosed

If warning was given in respect of any offence it should be clearly stated

KEEPING OF THE POCKET BOOK RE: APPENDIX TO FORCE ORDERS # 444

- Each entry to be ruled off on completion
- Each entry to be consecutively numbered in the margin, showing year, e.g. 14/02 (**Expires 31st December each year**)
- Each entry starts with day, date, time and place, open spaces to be pinpointed with permanent object or fixtures such as mile post etc.
- Next part of the entry to show offence if any
- Remainder of notes to give brief detail of facts, statements made and measurements taken etc. These are to be made in sequence of occurrence.
- Additional entry to be crossed referenced with the original.

- Entries to be initialed by Sub-Officer on return to the station; entry to show the Station Diary Number and number of other records
- As far as possible pencil should be used to make entries

SPECIMEN ENTRY

#10/02	Thursday January 12, 2002 about 8p.m. along Young Street, Spanish Town, St. Catherine in front premises no. 11 Indecent Language . Arrested and charged Frank Smith age 27 years, Tailor of 4 Railway Lane, Spanish Town in the parish of St. Catherine for using the following words to wit "Man move you rass claat from mi yah". Cautioned, said "Officer beg you a chance". Witness Mary James of 10 French Street, Spanish Town. Handed over prisoner to the Police at Spanish Town, St. Catherine about 8:30p.m. in what appears to be good physical condition.....
D/E 12 12/01/02	
O/R 5 12/01/02	

CLASSROOM NOTE TAKING

INTRODUCTION

You have been assigned to this training school for the purpose of obtaining information and learning the skills you will need as a member of the Constabulary. The success or failure of this school will depend upon your ability to retain this knowledge and use it in the field.

It is practically impossible for anyone to sit in a classroom and absorb all the information, which will be presented during the lesson without some organized or systematic method of recording it. Therefore, it is necessary that you learn to take notes -- they will be your written record of learning. The purpose of this bulletin is to offer you a practical and simple method of keeping and organizing a notebook for your notes.

THE VALUE OF NOTES

The notes you take during class will be of great value to you for several reasons. Perhaps the best reason is that the taking of notes provides a good basis for learning. Frequently, when you listen to a discussion or a lecture, the words flow into your ears, but the meanings are not always retained or properly digested by the mind. The process of note taking itself stimulates the mind and tends to increase your interest and attention.

A second reason for taking notes is that they provide a ready basis for reviewing the material presented in class. Newly acquired data may be compared or contrasted with what you already know - by reviewing notes the subject matter is more deeply engraved into your mind. Notes are also invaluable when studying for course tests or quizzes.

Taking notes stimulates the mind and increases your level of interest and attention

The notes also provide a permanent record of vital information and a source book for hard-to find-facts. By taking notes in each class, you accumulate on paper important ideas that will be of the utmost value in carrying out your duties as a Constable. Your notes will contain information on sometimes hard to find policies and procedures, which will be of value for years to come. Such notes will represent a ready source of reference material, available at all times for your consideration, direction and study. The lecture material is often based on considerable study and is the result of years of experience by many Constables. The instructor has collected it from many sources. In many cases, the classroom is the only source of this type of information.

The notes also provide a reliable basis for action. By the study and review of your notes, you can firmly imprint in your mind what course of action you would follow when confronted with a given non-criminal or criminal problem. The latest techniques and most modern methods of handling police problems will be instantly available to you in your notebook. Further, you can be assured that the techniques recommended have the approval and backing of the Constabulary and/or the Public Prosecutor.

Classroom notes provide a permanent source of information on recommended policies and procedure

Finally, Taking notes in class is a practical method of developing your skills for taking notes in the field pertaining to crimes and other incidents. Writing in the brief but organized manner necessary is somewhat different from the usual forms of writing. Taking notes regarding crimes and activities require that you obtain all necessary details while at the same time determining what is important and what isn't important. The same is true in the classroom. You cannot write everything down. You must learn to distinguish the information you will need from other interesting but less valuable material.

EQUIPMENT

A full size loose-leaf notebook is usually best for taking classroom notes. This type notebook permits you to organize and reorganize your notes. New and important material may be added and poorly organized notes can be discarded or rewritten. This approach will assure notes which are always up-to-date and in correct form. Many students take their classroom notes on loose notebook paper and then rewrite the notes in an organized manner before adding them to the notebook. This rewriting of the notes also tends to fix the information more permanently in the mind. It is important to remember however, that notes taken in connection with your official duties in the field must be recorded in a permanently bound notebook. This is to forestall any charges that notes taken at the time of an incident were destroyed or replaced by other modified information.

It is usually best to use a pen to take notes. Notes made with a pencil tend to become smudged and illegible over time. Further, notes made with ink are easier on the eyes and there is less effort involved in writing. Using a pen is good practice for when you will be taking notes regarding the results of interviews and activities on the job. Since notes can be used to refresh your memory in the courtroom, it is wise to use a pen. When using a pen, there is never a question as to whether the notes were changed at a later date.

A SAMPLE OUTLINE

Heading (title or name of topic)

Date of lecture and name of instructor

First main point

First significant information regarding the first point being made in the class

First important item related to the information about the point (A)

Second important item related to A

First important point about the second item (2)

Second important item related to 2

Third important item related to A

Second significant point regarding first main point (I)

Second main point

The Outline continues in this manner until all-important points are covered

ORGANISING YOUR NOTES

Probably the best method of organizing your notes is to use the outline method. This is a very simple method of grouping related information together. It is recommended that the above format be used for setting up your notes.

Do not attempt to do the numbering and lettering during the lecture (unless the instructor writes an outline on the blackboard or otherwise furnishes an outline of the material to be covered). Do plenty of indenting. Try to indent the main ideas and the sub-ideas correctly, without attempting to letter or number them. Then, when the lecture is finished, you should go back and put in the outline guides. Leave plenty of space between the various ideas.

This way when you go back over your notes you can fill in additional ideas which you did not have time to write down during the lecture or which may occur to you after the lecture has been completed. Leave adequate margins at the top and left of the notes to permit additions, corrections and comments. (The size of the left margin should be consistent with the format used in writing reports)

WHEN AND WHAT NOTES TO TAKE

Listen to the instructor; observe his emphasis on an idea. If the speaker has correctly organized his or her material, the main points will be revealed by certain phrases, the tone of voice or repetition. Write down the main ideas and sub-ideas as soon as you hear them. Leave extra lines to fill in the details later. As a general rule, dates, amounts, statistical data, examples, and illustrations should be included in your notes.

Always include references to Force Orders with both the number and the date. Use simple, complete sentences. Restate ideas in your own words. Eliminate all unnecessary or confusing words. Number your pages. Do not hesitate to ask the instructor questions. Remember his or her whole purpose is to ensure you learn the material. When you don't ask questions, it is assumed you understand the material. Always ask for clarification of any doubtful points. However, when asking questions, wait until there is a break in the lecture. Do not interrupt in the middle of a statement. Finally, try to determine the pattern the instructor is following - his or her outline. When you have an idea of the instructor's outline, yours will be very easy to construct.

REVIEW OF NOTES

Review your notes immediately after writing them. This will help to fix the subject matter more permanently in your mind. It will also enable you to recall the comments and information you did not write down in class.

Revise your notes before they become cold and add any new information that is pertinent to the subject being studied. The practice of rewriting and reorganizing the material will make it more valuable for future reference.

Apply the information in your notes to practical problems. Try to make up situations and then utilize the information in your notes to resolve the problem. If the notes do not reveal the solution to the problem, seek out information in the books on the subject at the library. Then confer with your instructor.

INDEPENDENT STUDY

Do not hesitate to seek out information and techniques on your own. The Academy library is at your disposal. Reading additional material will open a whole new world for you. You will become aware of the many different approaches to typical police problems and the philosophies behind them. It has been said that books, periodicals and other printed material can be used as stepping-stones to success. This is true.

When you read, take notes. Look upon the material you read as a lecture on the subject. Use the outlining technique, which is set out above. Always have a dictionary available to you. Do not skip over words, which are not familiar to you. Look them up. Learn them.

Do not however, adopt a new technique or procedure for handling a police problem until you have discussed it with the appropriate instructor and he or she has approved and authorised the approach.

Reference

John Peper reprinted the material presented in this training bulletin in part from a monograph and Frank Boolsen entitled, **A Study Manual and Bibliography for Peace Officers**. This document was prepared in connection with the California Peace Officers Training Program and was published by the California Department of Education as California Peace Officers' Training Publication No. 52 (undated).

HANDLING PRISONERS

INTRODUCTION

The handling of prisoners is one of the more difficult and demanding tasks of a Constable. This is because of three distinct and somewhat incompatible requirements. First, the Constabulary is completely responsible for each prisoner's health and safety. When holding a person against his or her will, the Constabulary assumes liability for their safety and welfare. Further, most of the prisoners are awaiting trial, they have not been convicted of any crime. Therefore, they are legally innocent and are entitled to the same humane and considerate treatment as any other citizen.

This includes the right to be advised of his or her rights under the Constitution before any questioning. Even so, prisoners are suspected of committing various crimes and any one or all may be considering the possibility of escape. This, in spite of the fact that such an escape may involve injury or death to another. Moreover, the punishment for permitting a prisoner to escape while in your custody is severe.

Because of these conflicting requirements and the potential seriousness of any infringement, it is necessary to look at both the rights of the prisoners as well as the most effective methods for handling them.

PUNISHMENT OF CONSTABLES RE: ESCAPE OF PRISONERS

Every case where a prisoner escapes is regarded as serious by the department and in most cases neglect of duty. A court of enquiry will be convened to investigate the charge and if negligence is proved on the part of the Constable he will be seriously punished. Vigilance should never be relaxed when dealing with prisoners.

RIGHTS OF PRISONERS

The Constable is responsible for the correct and considerate treatment of any person who is his prisoner.

This is not limited to the Constable who made the arrest but extends to the Station Guard or Cell guard and by implication to the entire chain of command.

By further implication, the Constable is even responsible for the safety of those prisoners who attempt to injure themselves or are injured by another prisoner.

This is the main reason for restrictions on who and/or how many persons go in each cell and the frequent prisoner checks.

Prisoners have the right to expect the safe custody and return of all personal property taken during the arrest and incarceration process.

This is normally ensured through the use of a Prisoners Personal Property Register where a detailed list of all personal property taken into safekeeping is kept.

The prisoner is asked to sign the register, which must be witnessed.

Prisoners are allowed on request one telephone call to contact their solicitor or family.

Where the family has no telephone, the information of his arrest and where he is being held must be sent without delay to at least one person named by him. Where some delay is necessary in the interest of the investigation to prevent a crime or to allow the apprehension of additional offenders, the information must be sent with no more delay than is necessary.

Prisoners are allowed immediate contact with legal advisers and friends if it does not hinder the process of the investigation or the administration of justice.

Facilities must be provided for communication with legal advisers, friends, relatives or sureties for bail.

Facilities for communication with attorney must be outside the hearing but within view of the Constable.
(In a secure room provided).

Facilities for communications with friends, relatives and sureties must be within both the hearing and view of the Constable.

The number of visitations is limited only by considerations of safety, potential for escape and the rights of other prisoners.

The prisoner's physical condition and reasonable comfort must be considered. He must:

- Be given sufficient food.
- Be allowed to be clean.
- Be given access to sanitary facilities.
- Be given medical attention where necessary.
- Be presentable when placed before the court.
- Be maintained.

Prisoners are to be allowed writing material if so desired, and all letters forwarded in a timely fashion after censorship.

Prisoners are allowed to receive mail after censorship.

Prisoners are to be allowed food and clothing brought to them by relatives and/or friends after examination

Prisoners are not to be photographed or finger printed without their consent. (Until after conviction).

The prisoner must be advised of his or her right to object to the taking of photographs or fingerprints.

Prisoners have the right to be charged and taken before the court as soon as possible.

The prisoner must be cautioned about whether he/she wishes to make a statement in answer to the charges (Judge's rules).

All discussions with, and questioning of, the prisoner, whether casual or formal, dealing with the cause of the arrest, must be preceded by a caution in conformance with the Judge's Rules.

Persons in custody should be informed orally of the rights and facilities available to them.

No prisoner shall be held in custody longer than is believed absolutely necessary.

The possibility of bail should be given careful consideration in all cases of minor offenses.

The setting of bail by police may also be considered in many major cases. (Except murder and manslaughter).

SAFE CUSTODY OF PRISONERS

Safe custody begins as soon as the prisoner is arrested and the following points should always be observed.

Preliminary search must be effected to ensure he has no dangerous weapons or substance in his possession, which may be used to injury himself or the arresting Constable and also any incriminating evidence which may be in his possession and which he may destroy.

SAFE CUSTODY DURING ESCORT

The following precautions should be observed when escorting a prisoner from one place to another.

- Continuously watch the prisoner; never allow him to get behind you.
- Always keep the prisoner within one arm's length in front of you.
- Avoid taking prisoners through busy streets.
- If possible never take prisoners on public buses.
- Take special care that the prisoner makes no attempt to commit suicide such as taking poison, throwing himself under a motor vehicle, jumping over high bridges or over precipices.
- Use handcuffs if necessary.
- If prisoner refuses to walk or is too drunk to do so, he should be conveyed to the Police Station by transport, but the prisoner should never be allowed to drive the vehicle he is travelling in.
- Prisoners being transported under writ of ****Habeas Corpus** should be escorted by a Sub-Officer and at least one Constable. NB. ******(See page 180 for definition)

- When there is more than one Constable escorting a prisoner, place him in the rear passenger side of the vehicle. The second Constable should sit in the rear driver's side seat.

WHEN ARRESTED

- Effect brisk preliminary search
- Use handcuffs if necessary
- Ensure safe custody during journey to the station

SAFE CUSTODY AT POLICE STATION

The Station Guard is charged with the responsibility for the safe custody of all prisoners in custody and on taking over duty he will make a physical check of the prisoners in custody to ensure that they are all alive and that the cells are free from any dangerous weapons and instruments. All prisoners are to be properly searched before confining them to the cells. He should always keep the cells keys on his actual person and pay particular attention to the following:-

- Cells doors to be kept lock.
- Relatives and friends coming to visit prisoners can be allowed to do so, only in the presence and hearing of a Constable who should make sure that nothing is discussed that might assist escape or interfere with the interest of justice.
- Solicitors who have been retained for the defence of a prisoner in custody should be allowed to interview such prisoner out of the hearing of the Constable, who, however, must have the prisoner in sight and take all possible precautions against escape.
- Letters written by prisoners or addressed to them should be read by the Constable to ensure that they contain nothing to interfere with the interest of justice. They should be allowed writing material.
- Clothing sent for prisoners should be properly searched before handing over to them.
- Food taken for prisoners should be thoroughly examined and the bearer ask to partake of some. If he refuses, and the Constable becomes suspicious, the food should be parcelled, labelled and sealed in the presence of the bearer, and taken to the Government Analyst. A record of the incident should be recorded in the Station Diary.
- An odd number of prisoners should be placed in each cell.
- Only one lunatic/drunk to be place in a cell at a time.
- Where a prisoner is found with a prescription on being searched, the M.O. must be contacted. The Station/Cell Guard should see to it that the prisoner takes his medication as prescribed.

N.B.

Before a prisoner is released from custody after serving short term, or before being sent off to prison, diet is to be served. Diet ordered before a prisoner is released should be served before released.

- Prisoner in custody must be visited once every hour between 7 p.m. & 5 a.m., after an entry must made in the Station Diary. In the case of drunks or lunatic at least twice every hour.
- Females should be kept in a separate cell from males. Juveniles should be kept separate from adult prisoner and not kept in the Police lockup.
- Belts, ties, some shoes strings, high-heeled shoes and any other property which could be used to harm himself or others should be taken from him.
- The search should include a complete examination of all clothing, ears, nose and mouth with any dentures removed. Any large or suspicious bandages, cast or other covered area should be checked. If there is reason to believe the person is carrying drugs or other contraband, all body cavities should be checked.

USE OF HANDCUFFS

There is no rule directing that a prisoner must be handcuffed, he should not be handcuffed unless there is reason to believe that violence may be used or escape attempted.

PERSONS WHO SHOULD NOT BE HANDCUFFED

- A woman unless circumstances render it absolutely necessary.
- Old and infirmed men
- Juveniles, unless circumstances render it necessary.
- When a person is blind.
- A seriously ill or injured prisoner
- The physical impairment of the prisoner is of such that he is unable to injure himself or others and is incapable of escaping, as he is unable to operate without the assistance from another person. e.g. A cripple (F.O. 2279 Dated 7.2.91)

USE OF BATON

Batons are supplied to enable Policemen to defend themselves if violently attacked but should only be used in extreme cases when they are likely to be over powered and lose their prisoner.

If possible aim at the arms, and legs rather than the head, so as to disable the prisoner without inflicting serious injury, but if the Policeman cannot stop the prisoner's onslaught (fierce attack) he is justified in hitting him on the head.

After every occasion on which the baton is used the facts are to be reported to the Officer or Sub-Officer in charge and an entry made in the Station Diary to the effect. The fact that the baton was used should be mentioned when giving evidence in court

REGULATIONS REGARDING PRISONERS

Most of the following rules have been devised for the purpose of ensuring the prisoners rights while at the same time protecting against escape or possible harm to members of the Constabulary.

PROCEDURES FOR HANDLING PRISONERS

Conducting a complete search of the prisoner.

The search should be conducted as soon as possible after an arrested person is brought to the station.

The prisoner should be watched carefully at all times prior to the search.

There should be at least one witness to the search. However, the search should be conducted in a location, which provides the prisoner privacy.

Females should search females.

Belts, ties, some shoe strings, high heeled shoes and any other property which could be used to harm himself or others should also be taken from him.

The search should include a complete examination of all clothing, ears, nose and mouth with any dentures removed. Any large or suspicious bandages, casts or other covered areas should be checked. If there is reason to believe the person is carrying drugs or other contraband, all body cavities should be checked.

- All examination of property and clothing should be done in the presence of the prisoner.
- Whenever possible surgical gloves should be worn when conducting any complete search.
- Special attention should be given to the presence of TB sputum containers, ulcerated needle tracks, lice, fleas, ulcers which are suppurating or from which there is an odour, insect infested injuries, coughing blood, acetone body odour or other similar indicators of serious illnesses. The Police Surgeon should immediately examine such people.

Prisoners of questionable age

Offenders falling in the doubtful age group should be treated as a juvenile and steps should be taken by the arresting Constable to ascertain their correct age.

If it cannot be determined, the prisoner should be:

- Bailed with proper surety (if appropriate).
- Taken to a place of safety.

Prisoners falling into the doubtful age group should be treated as juveniles and should be separated from adults whilst in police custody, until:

- They are proven to be adults.
- They are declared to be adults by the court.

Prisoners of doubtful age should be brought before the court as soon as possible, the situation should be explained and the court asked to make a ruling.

BAIL ACT 2000

As Law Enforcement officers it is imperative that we are conversant of the new Bail Act which was passed in the year 2000. When a person is in police custody and bail can be considered we must follow the Law relating to the issue. It is with this in mind that you will find the information below to be more than useful. It seeks to give specific guidelines in relation to persons charged or convicted.

Bail

A recognizance or bond taken by a duly authorized person to ensure the appearance of an accused person at an appointed place and time to answer to the charge made against him.

Object of Bail

Is to prevent keeping an accused unnecessarily long in custody and ensure his attendance at the trial. Bail should not be withheld as punishment.

Recognizance

Is an obligation or bond under which a person acknowledges that he owes the crown a certain sum of money if the condition(s) specified in the recognizance is not carried out.

Section 2 (1)

DEFINITIONS

Bail Centre

Means any facility declared by the Minister pursuant to section 20 to be bail centre for the purpose of this Act.

Bail in Criminal Proceedings

Means bail which may be granted-

- ✓ In or in connection with proceedings for an offence, to a person charged with or convicted of the offence
- ✓ In or in connection with proceedings for an offence, to a person who is under arrest for the offence or for whose arrest a warrant (endorsed for bail) has been issued;

Child

Any person under the age of fourteen (14) years of age

Conviction Includes

- ✓ A finding of guilty
- ✓ A finding that a person is not guilty by reason of insanity
- ✓ A conviction of an offence for which an order is made placing the defendant on probation or discharging him absolutely or conditionally

Court

Includes a Judge or Resident Magistrate

Judge

Means a Judge of the Supreme Court or the Court of Appeal

Police Officer

Means an arresting officer or an officer or sub-officer in charge of a police station or lock-up

Surrender to Custody

Means in relation to a person released on bail, surrendering himself into custody of a court or the police at the time and place appointed for him to do so.

Vary

In relation to bail, means imposing further conditions after bail is granted or varying or revoking conditions imposed in relation to the grant of bail.

Young Person

Means a person who has attained the age of fourteen (14) and is under the age of seventeen (17) years.

Section 2 (2)

Reference in section 3 (3) and 4 (1) and (4) to imprisonment does not include a committal in default of payment of any sum of money, or for want of sufficient distress to satisfy any sum of money, or failure to do or abstain from doing anything required to be done or left undone.

Entitlement to Bail and who may grant it section 3 (1)

Every person who is charged with an offence **shall** be entitled to be granted bail by

- Court
- A Justice of the Peace
- A Police Officer

Sec. 3 (2)

Person charged with an offence shall not be held in custody for longer than twenty-four (24) hours without the question of bail being considered.

Sec. 3 (3)

Subject to section 4 (4) bail shall be granted to a defendant who is charged with an offence which is not punishable with imprisonment

Sec. 3 (4)

A person who is charged with murder, treason or treason felony **may** be granted bail **only** by a Resident Magistrate or Judge

Section 4 (1)

Circumstance when bail may be denied for offence(s) punishable with imprisonment;

- The Court, Justice of the Peace or the Police Officer is satisfied that there are substantial grounds for believing that the defendant, if granted bail will;
 - Fail to surrender to custody
 - Commit offence while on bail
 - Interfere with witnesses or other wise obstruct the course of justice, whether to himself or to other person
- The defendant is in custody in pursuance of a sentence of a Court or any authority acting under the Defence Act;
- The court would need more time to obtain sufficient information to take the decision of granting bail
- The defendant absconded bail and was arrested
- The defendant's case has been adjourned for the purpose of conducting inquiries or for a report to be completed and the court is satisfied that it is impracticable to complete the process without keeping the defendant in custody

Section 4 (2)

To decide whether or not any of the circumstances mentioned at 1 above exist in relation to the defendant, the Court, A Justice of the Peace or Police Officer shall take into account;

- The nature and seriousness of the offence
- The defendant's character, antecedents, associations and community ties
- The strength of the evidence or having failed to surrender to custody
- Whether the defendant is a repeat offender, having three previous convictions punishable with imprisonment
- Any other factor which appears to be relevant including defendant's health profile.

Section 4 (3)

Bail may be denied if it is the appropriate authority is satisfied that it is for the protection of the defendant or, where he is a child or young person, for his own welfare.

Section 4 (4)

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Bail may be denied in relation to offence which is not punishable with imprisonment if

- It appears to the Court or Justice of the Peace that, having been granted bail in criminal proceedings on previous occasions, the defendant failed to surrender to custody, in view of that failure, it is believed that the defendant is not likely to surrender to custody.
- The Court of Justice of the Peace is satisfied that it is for the defendants own protection, where he is a child or young person for his own welfare;
- The defendants is in custody in pursuance of a sentence of a Court or any authority acting under the Defence Act’;
- The defendant abscond bail and was arrested for same.

Section 5 (1)

Restriction on the Condition of Bail

Where a person is granted bail the conditions specified in subsections (2) and (3) of section 6 shall not be imposed unless;

- It is for preventing the occurrence of any of the events referred in section 4
- To enable inquires or a report to be made in to the defendant’s physical or mental condition

Section 6 (2)

General Provision Relating to Bail

A Court Justice of the Peace or Police Officer may, in accordance with regulations made under section 21, require any person to whom bail is granted to provide, at the person’s option, as a condition for bail before his release

- A surety to secure his surrender to custody; or
- A payment of such amount as may be required

Section 6 (3)

A person to whom bail is granted **may** be required to

- Surrender his travel documents to the Court
- Inform the Court if he intends to leave Jamaica
- Report at specified times and dates to a police station
- Comply with any other requirements imposed by the court
 - Surrender to custody
 - Does not commit any offence while on bail
 - Does not interfere with witnesses
- Attend at a bail center at such times as t he Court may specify

Section 6 (5)

Where a parent or guardian of a juvenile consent to be the surety for a juvenile for the purpose of this section, the parent or guardian may be required to ensure that the juvenile complies with any conditions imposed on him/ her as mentioned in subsection (3).

If the juvenile will attain the age of seventeen years before he is to surrender to custody, **no** condition shall be imposed on the parent or guardian.

The parent of guardian shall not be required to secure compliance with any condition to which consent did not extend, or be bound in sum greater than fifty thousand dollars (\$50,000.00) in respect to the conditions he consented.

Section 6 (6)

Where the court has granted bail in criminal proceedings it may on application

- By or on behalf of the defendant or his representative

- By the prosecutor or the Police Officer

Vary the conditions, or impose conditions

Section 7 (1)

Where bail is granted in criminal proceedings by a Court or Police Officer, all the conditions in relation to the bail shall be recorded by the Court or Police Officer based on the decision. Where a request is made by the defendant a copy of the decision shall be given to him as soon as possible after the decision is made.

Section 7 (2)

Where bail is granted in criminal proceedings by the endorsing of warrant of arrest, the Police Officer who releases on bail the person arrested shall make the record required by sub section (1) instead of the Judge or Magistrate who issued the warrant.

Section 9

Where the Resident Magistrate Court refuses bail for a defendant is not represented by counsel, the Court shall inform him of the right of appeal.

Section 10

The appeal is made to the Judge in Chambers (High Court)

Section 12 (1)

Where an application for bail is refused by a Justice of the Peace or Police Officer, such refusal shall be review by the R.M. on the defendant's first appearance in Court in relation to the relevant offence.

Section 12 (2)

A R.M. shall carry out, at least once per week a review of cases involving defendants who were unable to take up such bail.

Section 14 (1)

Offence Absconding Bail

A person who has been released on bail in criminal proceeding and has failed to surrender to custody is guilty of an offence unless he has reasonable cause for his failure to surrender to custody.

Section 14 (2)

A person shall also be guilty of an offence if he was released on bail in criminal proceeding and failed to surrender to custody with reasonable cause, or if he fails to surrender to custody at the appointed place as soon after the appointed time as is reasonably possible.

Section 14 (3)

It shall be for the defendant to prove that he had reasonable cause for failure to surrender to custody.

Section 15

Penalty for absconding attracts a fine not exceeding five hundred thousand dollar (\$500,000.00) or to imprisonment for a term not exceeding two years (2)

Section 16 (1)

Liability, Arrest for Absconding or Breach of Condition

The Court may issue a warrant for a person who fails to surrender to custody at a time appointed for him to do so after being released on bail.

Section 16 (2)

Where a person has been released on bail in criminal proceeding absents himself from the Court without the leave of the Court, at any time after he has surrendered to custody of the Court and before the Court is ready to begin or resume the hearing of the proceedings, the court may issue a warrant for his arrest.

Section 16 (3)

A person who has been released on bail in criminal proceeding may be arrested without a warrant by a police officer where

- The police officer has reasonable grounds for believing that the person is not likely to surrender to custody
- The police officer has reasonable grounds for
 - Believing that the person is likely to breach any conditions of his bail or

- Suspecting that the person has breached any of those conditions
- In the case where the person was released on bail with a surety, the surety notifies the police officer in writing that;
 - The person is unlikely to surrender to custody; and
 - For that reason the surety wishes to be relieved of his obligation as surety

Section 16 (4)

A person arrested in pursuance of subsection (3) shall be brought as soon as practicable (being not later 24 hours after his arrest or at least the next sitting of the court)

- Before a Resident Magistrate for the parish in which he is arrested; or
- Where he is arrested within 24 hours of the time appointed for him to surrender to custody, before the court at which he is to surrender to custody.

Section 16 (5)

Where the Resident magistrate before whom a person is brought under subsection (4) is of the opinion that the person

- Is not likely to surrender to custody
- Has committed or was about to commit another offence or
- Has breached or likely to breach any condition of his bail

The Resident Magistrate may remand him in custody or commit him to custody, as the case may require, or grant him bail subject to the same or different conditions, but where the Resident Magistrate is not of any such opinion, the Resident Magistrate shall grant him bail subject to the same conditions, if any as were originally imposed.

Section 17 (1)

Bail with Surety

This section applies where a person is granted bail in criminal proceedings on condition that he provides surety for the purpose of securing his surrender to custody.

Section 17 (2)

In considering the suitability of a proposed surety

- A regard shall be had to such factors as the Court thinks fit, including
 - The surety's profession, occupation trade or business
 - Character and previous conviction, if any
 - His proximity, whether of kinship (blood relation), place of residence or otherwise, to the person whom he is to be surety and
- The surety is required to make a declaration in the form set out in the schedule

Section 17 (3)

Schedule Dealing with Declaration

Who may make the Declaration?

Where a surety is required, a declaration in the prescribed form shall be made by a Justice of the Peace or a member of the Jamaica Constabulary Force not below the rank of Sergeant, a Minister of Religion or a principal of an education institution other than a pre-primary school, as to his knowledge of that surety's address and good character.

Section 17 (4)

A Court, Justice of Peace or Police Officer shall not refuse a surety unless there is some regulation made by the Minister subsequent to this Act, or in the opinion of the Court is otherwise unsuitable for the purpose.

Section 17 (5)

Where a person is offered bail and is unable to take up such offer because of no surety or no suitable surety is available, the Court, Justice of the Peace or police officer shall fix the amount in which the surety is to be bound.

Section 17 (6)

A recognizance of the surety under section (3) may be entered in to before such of the persons or description of person as the Court may by order specify, or if it makes no such order, before any of the following persons.

- Where the decision is taken by a Resident Magistrate's Court, it must be done before and Resident Magistrate or Clerks of the Courts;
- Where the decision is taken by the Supreme Court or the Court of Appeal, before any the persons specified in paragraph (a) or where the rules of the Court provide.

Section 17 (7)

Where the surety is denied the opportunity to take recognizance because the authorized person is not satisfied as to the surety suitability, the surety may apply to;

- The Court which fixed the recognizance; or
- The Resident Magistrate in the parish in which the surety resides

For the Court to take his recognizance and the Court shall, if satisfied as to his suitability, take his recognizance.

Section 17 (8)

Where pursuant to subsection (6), a recognizance is entered into other wise than before the Court that fixed the amount, the recognizance shall have full force and effect as if it has been entered into before the court.

Section 17(9)

Any person who in any declaration required under this section, makes a statement which he knows to be false in a material particular shall be guilty of an offence. **PENALTY** – Fine not exceeding Three Millions (\$3,000,000.00) or to imprisonment not exceeding two (2) years.

Section 18 (1)

Forfeiture of Security of Recognizance

Where a person has provided a security for the purpose of securing a person's surrender to custody and that person fails to surrender to custody, the Court may order the forfeiture of the security. The Court may also declare that the forfeiture extends to such amount less than the full value of the security as it thinks fit to order.

Section 19(1)

Release of Surety of Refund of Payment

Circumstances-

- Where the court grants release on application
- Where a no order or Nolle Prosequere is entered
- Where the matter is adjourned sine die or dismissed
- Where the defendant is acquitted or convicted

Section 19 (2)

Responsibilities or Obligation of Sureties

A person on bail with surety is by law in the custody of his surety and the surety may arrest without warrant if he believes he is going to escape. A surety who wishes to be released from his obligations under a recognizance shall;

- Apply in writing for such release to the Court
- May attend before the Court for the hearing of such application

However if a surety hands over his prisoner to Constable is obliged to receive him and place him in custody and a appropriate entry made in the Station Diary. The bond should be cancelled by the person granting bail.

Section 19 (3)

Where the surety is released, the defendant shall be notified forthwith and he should be taken into custody until he provides other surety or sureties.

Section 19 (4)

Any amount paid in respect of bail shall be refunded as specified in paragraphs (a) to (d) of subsection (1), however if a fine is imposed on conviction of the defendant that amount **may**, with the defendant's consent, be applied towards the payment of the fine.

Section 22

Procedure on Arrest or Detention

Where a person is arrested or detained is not charged within twenty four (24) hours after such arrest or detention, he shall be brought forthwith before a Resident Magistrate or a Justice of the Peace who shall order that the person be released or make such other order as they think fit, having regard to the circumstances.

ESTREATING BOND

If a prisoner who was properly bailed failed to appear at the appointed place and time, the recognizance may be forfeited and the court may order it estreated, and a warrant issued for the arrest of the prisoner on the original charge.

When the bond is estreated the sureties become debtors to the crown in the sum in which they were bound, or such less sum as the court may order.

PROCEDURE IN ESTREATING BOND (PRISONER)

Before estreating the bond the court will make certain that the bond was properly made out i.e. signed by the prisoner, surety and person granting bail. After this is found to be in order, the Judge should order the Constable to estreat the bond.

Once the bond has been estreated for the prisoner, the Judge will then made a (1) *Distringas and Capias* order which is served by a Bailiff (2) order money be paid (3) time be served

The Constable shall within the precincts of the court say the following in a loud tone of voice.

".....appear and answer to your name as you are bound to do this day, or else you shall forfeit your recognizance."

".....appear and answer to your name as you are bound to do this day, or else you shall forfeit your recognizance."

".....appear and answer to your name as you are bound to do this day, for now you have forfeited your recognizance."

SURETY

".....appear and produce the body ofas you are bound to do this day, or else you shall forfeit your recognizance."

".....appear and produce the body ofas you are bound to do this day, or else you shall forfeit your recognizance."

".....appear and produce the body of as you are bound to do this day for now you have forfeited your recognizance."

ADVANTAGES OF BAIL

- ✓ It prevents congestion in the cells.
- ✓ It minimizes risks of escape.
- ✓ It gives the prisoner a chance to prepare his defence and get witnesses.

PERSONS WHO SHOULD NOT BE ACCEPTED AS SURETIES

- ✓ Persons who are not able to answer the required sum for bail
- ✓ Persons under 21 years of age
- ✓ Persons who have been convicted for infamous crimes

- ✓ Persons in custody
- ✓ Solicitors for the accused
- ✓ Police and clergy not recommended
- ✓ Persons who are bankrupt

NOTICE OF RECOGNIZANCE

In the Resident Magistrate Court

for the parish of S.t Catherine

Take Notice - that you Kerine Laing
of Line tree lane

are bound in sum of \$

and

your sureties

of

in the sum of \$

each to appear at the

court for the parish of

to be holden at

on the

day of

now next, and at every time

and

place to which the

Proceedings may from time to time be adjourned, and unless you personally make your appearance accordingly, the recognizance entered into by yourself and sureties will be forfeited and the amount thereof levied on you, goods and chattels and in default of sufficient goods and chattel that you and each of you may be imprisoned for such period as the Courts may think just not exceeding six months.

Dated this

day of

20

Prisoner:

Sub-Officer in Charge:.....

Surety:

Name:.....

Date:.....

PETTY SEESION FORM R-BAIL BOND

JAMAICA S.S

BE IT REMEMBERED, that on the _____ day of _____
20 _____ of _____
in the parish of _____ and _____
of the same place, _____ personally came, before the
undersigned one of Her Majesty's Justices of the Peace in and for the said parish of _____
and severally acknowledge themselves to owe to our Sovereign Lady the Queen the sum of _____
Dollars each of good and lawful money of
this island to be made and levied of their several Goods and Chattels, Land and Tenements, respectively, to
the use of our said Lady the Queen, Her Heirs and Successors, if he, the said
_____ shall fail in the following condition.

THE CONDITION of the above written Recognizance is such , that if the said
_____ shall personally appear on the _____ day of _____ **20** at
the ten o'clock in the forenoon, at the Court House at _____
in the parish of _____ before such Justices of the Peace for the said
parish as may then be there, and at every time and place to which the proceedings may from time to time be
adjourned, to answer further to the information of _____
exhibited against the said _____ and to
be further be dealt with according to Law, the said Recognizance to be void, or else to stand in full force and
virtue.

Taken and acknowledge the day and year first abovementioned, at the parish of _____
before me.

Prisoner..... **Sub-Officer in Charge**.....
Surety..... **Name**.....
Date

FORM 2

(Regulation 6 (2))

Declaration by Justice of the Peace, Member of the Jamaica Constabulary Force, Minister of Religious or Principal of and educational institution, pursuant to section 17 (3) of the Act.

I _____ of _____

hereby declare that:

(a) I am Justice of the Peace/member of the Jamaica Constabulary Force/Minister of Religious/Principal of

(Name if educational institution)

(b) _____ has offered himself/ herself as surety for _____ defendant.

In the case R.v. _____

(c) I have been acquainted with the surety for _____ years.

(d) The nature of my acquaintance with the surety is:

(e) To the best of my knowledge, the surety resides at:

(f) I regard him/her as a responsible person of good character who is likely to fulfill his obligations as surety.

I am aware that if I make, in this declaration, any statement that I know to be false in a material particular, I am liable to a fine not exceeding Three Million Dollars or to imprisonment for a term not exceeding two years, or to both such fine and imprisonment.

Signed _____ This _____ day
of _____, 200



MINISTRY OF NATIONAL SECURITY AND JUSTICE

TELEPHONE: 922-0080

No.

12 OCEAN BOULEVARD,
KINGSTON MALL,
P.O. BOX 472
KINGSTON,
JAMAICA.

(Section 17)

Parish.....

I the undersigned of.....

*I / We have agreed to offer * **myself/ourselves**; as surety for...../

defendant in the case Regina vs.....

In this regard * I/ **We** acknowledge to owe to the Crown the sum of

to be levied on * **my/our** several movable and immovable property if the said.....

.....fails in the conditions of the recognizance to

be entered before.....* **Magistrate/Justice** of the Peace.

State property and value thereof, relied on in support of sum specified above.

I/ We hereby declare that no criminal charge is pending against * **me/us.**

Signed.....

Declarant / Declarants

I/We make this declaration conscientiously believing the same to be true and according to the Voluntary Declarations Act, and * **I/We** am/are aware that if there is any statement in this declaration which is false in fact which I/We know or believe to be false or do not believe to be true, * **I/We** am/are liable to fine not exceeding \$1 million dollars or to imprisonment not exceeding 2 years or both.

Signed.....

Declarant / Declarants

Declared before me this _____ day of _____ 20____

Signed.....

Magistrate, Justice of the Peace
Clerk of the Courts, Registrar

* Strike whichever in inapplicable

THREAT

Definition

Threat is the offer, written or verbal, to do harm to someone else.

Threat to Murder

To maliciously send or utter directly or indirectly any letter or writing, threatening to kill or murder anyone is a felony.

Punishment

Imprisonment not exceeding 10 years

Threat to Gain

Threatening to publish any libel on any person is provided for under the Larceny Law. (1) Extortion (2) Blackmail.

How Dealt With

When a case of threat is reported to the Police the following should be the procedure;

The name, address, age and occupation of the person reporting as also that of the accused should be reported in the Station Diary, together with the nature of the threat.

This should be indexed “I” in red ink under the subject threat and at the back of the Station Diary.

Complainant should be advised to take civil action or proceedings and should also be assured that the person will be warned as early as possible not to carry out the threat.

POLICE ACTION:

A Constable should be dispatched immediately or as early as possible to warn the accused not to carry out his threat, which had been reported against him.

The Constable should record or cause to be recorded in the Station Diary, on his return, the result of his enquiries. The entry must be cross referenced.

STATION DIARY ENTRY (SPECIMEN)

Page 20

CONS #	REF. #	HOUR	SUBJECT	NATURE OF OCCURRENCE	SIGN.
55	62	10:00 a.m.	Threat “ I “	Mary Jones, age 28 years old , dressmaker of 15 Browns Lane Kingston 13, reported a case of threat against Ben Lewis, Mechanic of the same address, Jones alledged that Lewis used the following words to her “ A gwine buy a lass fi chop you up later ,” She was advised to take civil action and that a Constable would be sent out to warn Lewis, not to carry out his threat.....	Has to put Day , date and time in diary entry
62	55 120	10:10 a.m.	Enquiries	Dispatched Constable M. Brown to 15 Browns Lane to warn Ben Lewis re case of threat reported against him by Mary Jones. Brown was neatly dressed in plain clothes and armed with s/Revolver # D766054 and 12 rounds. 38 Cartridges. only when a person made a threat against a crown witness. arrest him else warn him	
120	62	10:50 a.m.	Enquiries	Cons. Brown returned from 15 Browns lane and reported that he had warned Ben Lewis not to carry out his threat against Mary Jones. When Lewis warned said “A was just a run a little joke Officer “. Brown returned S/Revolver # D 766054 and 12 rounds.	

INDEX AT BACK OF DIARY

OFFENCE	PAGE	DIARY ENTRY

Threat	20	55
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INTERVIEWING TECHNIQUES

INTRODUCTION

As Constables the majority of your service will be spent in either writing or talking to people. The writing in most instances is simply for the records. The key to achieving success in gathering effective information is by asking questions.

You will be talking to people from all walks of life. These people are not all criminals nor accused but, may be either victims, complainants, witnesses, informants, relatives, friends, business associates, onlookers, disinterested parties, homeowners, shopkeepers, neighbours, dignitaries, homeless people, people who appear suspicious and (some do not) men, women and children.

Of all the skills a Constable needs the most important is the ability to effectively ask questions. For a person who has been talking to people and asking question of them, it may come as a surprise that effective questioning can be a most difficult process. For one to be skilful he/she will have to utilize one's concentration, have a desire to learn and practice constantly. This will require self-analysis and the ability to adapt ones personality to that of the person with whom you are talking, remembering that each person is an individual. Each individual has a different outlook, values, hope, fears and must be approached differently.

DEFINITIONS

As is the case in many skill areas, there is a group of terms that are used to describe the characteristics and procedures used in interviewing. It is necessary to understand these terms in order to learn from the experiences of others and to develop your own abilities.

Attitude	The level of emotion resulting from being asked questions, also, the interviewer's level of emotion. In either case, these emotions may be due to the type of crime, the actions of the other person or some unrelated circumstance.
Barriers	Psychological barricades between the interviewer and the person being interviewed. These include dark glasses, desks, chairs, doors, noise, space, temperature, fear etc.
Fantasy	Something that is imagined. Also a belief based on a trick of the mind such as an unconscious desire for punishment.
Interrogation	To question formally, especially to question a person suspected of having committed a crime, also, the questioning of a person who is reluctant to reveal information. Because of historical abuses, the term interrogation has come to refer to an illegal coercive gathering of information. It should not be used.
Interview	To obtain information by asking questions, a conversation with a purpose.
Rapport	In interviewing, rapport refers to a certain degree of harmony between people. A level of common ground or comfort with the person to be interviewed
Supposition	In interviewing, supposition refers to what the person thinks must have happened.
Truth	In interviewing, the truth is what the person actually remembers about an incident or occurrence.

THE PURPOSE OR OBJECTIVES OF THE INTERVIEW

The primary purpose or objective in all interviews is to obtain information from the person interviewed. More specifically:

- To obtain the facts pertaining to a case or any matter under Police investigations
- To determine the identity of the victim and the person who committed the crime
- To record the facts for later testimony

- To obtain a confession
- To validate information already obtained

THE IMPORTANCE OF THE INTERVIEW

- The importance of effective interviewing cannot be over emphasized. It is the basic tool of the investigator and the Constable alike. Research has suggested that interviewing solves some 99% of all crimes
- The interview is the most direct and economical method of obtaining information.
- Interviewing is the primary activity in an investigation and produces the most factual information of any technique.
- Interviewing can gather information and enhance public relations between the police and the community at the same time.
- Since the person who committed the crime is usually interviewed during an investigation, an unsolved case generally means a breakdown in the interviewing process.

QUALITIES OF A GOOD INTERVIEWER

Good interviewers are made not born. In spite of the fact that people naturally like to talk, most individuals are unable to take advantage of this trait. Although wide ranges of personality types are able to become good interviewers, they seem to have certain things in common:

They know their job

- The principles of interviewing
- Criminal procedure
- The logical steps associated with solving a crime

They know practical psychology

- Individuals are all different.
- The nature of motives and drives
- The nature of emotions such as fear, anger, pleasure and jealousy
- The frustrations associated with growth and development

They have certain common traits

- They always behave like a lady or a gentleman.
- They are excellent actors and are capable of completely hiding any feelings they may have regarding the crime or the person being interviewed.
- They always present an image of being friendly, interested, understanding and tolerant.
- They do not become emotionally involved in the case.
- They are very good listeners.
- They tend to be people who are calm and methodical in their work and cannot be rushed or hurried.

QUALITIES OF A GOOD INTERVIEWEE

The most important qualities of an interviewee depend upon:

- The extent to which the knowledge or information sought was actually perceived (not hearsay or assumption).
- Their ability to remember
- Their ability or willingness to give the information to you
- Your ability to assist them in being accurate, complete and truthful

TYPES OF INTERVIEWEES

Normal co-operative type: - When seeking information, most people are willing to provide that information if approached in a friendly, courteous manner.

The extremely helpful type: - Fairly common, these people will go out of their way to be of assistance. At times this type is so anxious to help that their imagination creates additional information usually based on supposition.

The wordy type: - Members of this group tend to speak in generalities and are hard to pin down to the specific types of information needed. A great deal of patience is usually required.

The Close-mouthed type: - The closed-mouth type never volunteers information. When questioned, they tend to give very short answers with little detail. This is a part of their personality and it is not intended to be a slight or an implication that they have something to hide. A skilled interviewer with patience can obtain all information available from this type.

The professional type: - This type gives the impression that they are too important or too busy to be interviewed. Many times they are cordial but furnish little information. This is not because they have something to hide, but because they do not want to spend the time giving you the information. The skilled interviewer using tact and salesmanship can obtain the information.

The unco-operative type: - Some people are by nature unfriendly, they do not wish to talk to you or anyone else and they certainly do not want to become involved in someone else's business. This attitude is not directed at you but at the world in general and shouldn't be taken personally. It requires considerable skill on the part of the interviewer to get this type to co-operate.

Women: - While women may also be any of the above types, the fact that she is a woman will sometimes require a change of tactics. Interviews of women should be handled with care and adequate preparation.

Children: - The interviewing of children requires a special technique and involves considerable patience and understanding together with a liking of children.

Experienced witnesses: - On occasion, it will be necessary to interview individuals who are experienced in providing details in specialized areas. When you are seeking information within these areas, it is wise to have the person write out their information and any opinions they may have concerning the data.

Privileged witnesses: - Many people because of their relationship with another cannot provide information within certain legal boundaries.

These include husband-wives, lawyer-clients, doctor-patients, and priest-confessants. Here it is important to know exactly what those boundaries are. All of these privilege areas are quite narrow. For instance, a priest cannot testify as to what he was told **ONLY** when the person gives him the information during confession. Given at any other time, this information is not privileged.

REASONS FOR NOT GIVING INFORMATION

It is very important to be aware that most people do not come forward with information. There is reluctance on the part of the average person to become involved in something that they believe to be none of their business. There are several good reasons for this:-

- Fear of reprisal
- Fear (or hatred) of the police
- Fear of becoming involved
- Don't want to be a "tattle tail"
- No confidence in the police

- Embarrassment
- Desire to protect the suspect
- Because they feel partially to blame
- Because they are involved in some way

REASONS FOR GIVING INFORMATION

While there are a number of reasons for not giving information, there are also several reasons for providing the police with information. These include:

- Desire for revenge
- To protect their own interests or the interests of friends and neighbours
- Desire to please
- Desire for recognition
- Sense of duty
- Relieve guilt feelings of their own

As you can see from the above, the motives for giving information cover a lot of territory. Another motive for giving information defies definition. This is the apparent compulsion some people have to talk about themselves and others. Many criminals feel a great need to talk about their crimes after they commit them. Voluntary confessions are quite common. Why this is so, is a mystery. Some feel it is the desire to share experiences. Others feel it is to relieve the guilt feelings caused by committing the crime. Whatever the reason, you must be alert for this possibility for several reasons.

- When a person tells you he has committed a crime, you must stop him to caution him. This must be done before he is allowed to proceed (See your handout on the New Judge's Rules).

The person who confesses to a crime may not have committed the crime.

- This is a common problem in major crimes such as murders. Individuals will frequently come in and confess to the crime. The ability to eliminate these people is one reason we never release all the facts about a major crime.
- If, when the perpetrator confesses to a major crime or a crime involving sexual misconduct such as exhibitionism, the confession is not taken seriously and he is not placed in custody, he may well commit suicide.

COMMON TYPES OF INTERVIEWS

We will examine the various types of interviews in detail later in the course, but it is important that you have a clear picture of the various types of interviews you will be conducting as Constables when you leave the Academy.

Interview of complainant

This is usually the first information received about a crime or incident and as such, it is most important to get as much information as possible to work with.

The complainant may or may not be the victim. Considerable sympathy and understanding must be part of your approach and you should not hurry the interview.

Interview of witnesses

Here again, at the onset of the interview, you do not know the relationship between the witness and the crime. The witness may be a victim, a passer-by who saw nothing, someone who saw everything or even the suspect.

Great care must be taken to avoid giving the witness information about the crime. Further, you must be very alert for any indications of deception.

Door-to-door interviews

This is the basic preliminary investigative work in which you go door-to-door in an attempt to find additional witnesses or persons with knowledge about the crime.

Since the status of the person being contacted is unknown, it is very important to be alert to their actions and to develop some sort of rapport before questioning.

Many householders are quite reluctant to provide information concerning events or crimes occurring close to their homes. For this reason care should be taken to use rapport and patience in conducting these interviews.

Violator interviews

These include peddlers operating without a licence, drivers of motor vehicles who are violating the road traffic laws, individuals who have been in accidents and people who are behaving in a suspicious manner.

- Because you do not know what other types of activities the person may have been engaged in before you came in contact with him, you must be particularly careful.
- The person may have committed a crime just before you arrived and he or she may believe you are aware of it. Therefore you must be particularly careful to:
- Phrase your questions in a manner which will allow him to make admissions if he is so inclined (remember if he starts to make an admission you must caution him in accordance with the Judge's Rules). Remain alert to his manner and actions during the interview.
- Here, as in most types of interviews, a calm objective approach combined with considerable patience will usually result in a successful interview.

Suspect interviews

Suspect interviews include individuals who may have committed any number of crimes. If you suspect the person at the onset of the interview, it will be necessary to caution him concerning his rights under the constitution.

If you do did suspect the person of wrong doing at the beginning of the interview, but based on information provided during the interview you now consider him a suspect, you must caution him before you continue (refer to the lesson on RULES OF EVIDENCE).

ELEMENTS OF INTERVIEWING

There are basic rules and procedures associated with the art of interviewing. These are contained in the following elements.

P-PREPARING O- OPENING L- LISTENING I -INTERVIEWING T-THINKING E-ENDING

The first letters of each of the elements of a good interview reveal the final element - You must always be POLITE. This fact may seem odd considering the power and authority vested in the Force. But using force or the, "third degree" as it is sometimes called, will not result in as much information as being polite and courteous. Further, when no coercion is used, the information received will be more accurate.

Constables who attempt to gain information by being authoritative and dominant will usually end up with only enough information to complete a report. There will be no information volunteered because the Constable has given them no reason to do so.

A useful approach is to simply remember that we are employed by the public to protect and preserve their life and their property. The public includes all citizens both criminal and non-criminal. If we conduct our business and ourselves in a professional manner they, as our employers, will have confidence in us and will assist us whenever possible.

If we do not do so, they will have no confidence in us and will not help even when they can. Not helping even when they can is as close as the average citizen can get to firing us for incompetence.

THE PURPOSE OF INTERVIEW

The basic purpose of an interview is always the same, to obtain information. As such, the interviewer must always obtain answers to the five W's and the H. This is true no matter what kind of a crime or incident has occurred. Planning for this should be fairly simple.

You should never forget to get enough information to answer these questions:

- What - What is the crime or incident?
- When - When did it occur?
- Where - Where did it occur?
- Why - Why did it happen?
- Who - Who caused it to happen?
- How - How did it happen?

These questions look easy enough! But, let us look at each a bit closer. A complete answer to the question is sometimes more difficult than it first appears.

WHAT IS THE CRIME?

The answer to this question includes, was a crime committed? If so what crime was it?

What are the elements of the crime? Are all the elements present? Do you have information on each? Who is the complainant? What is his or her address? What is his relationship to the victim? Who was the victim(s)? What is their address? What was the extent of the damage? Is there any way to verify the extent of the damage or identify the missing items? What is the value of the damage or missing items? Were the items insured? Who saw it happen? What is their address?

Answers to the above engender additional questions, which should be kept in the back of your mind. Such questions might be; What kinds of physical evidence is left by a crime like that? If so, is there any? Will the exhibits need to be preserved? If something stolen was insured, was the insurance for more than the items were worth?

WHEN DID IT OCCUR?

In order to fully answer this question you must determine:

When did the criminal activity begin? How long did it last? When did it end? Is it still going on? Did time have anything to do with the crime?

The answers to these questions will provoke additional questions such as; Was there anything else going on at the same time? Are the other happenings related to the crime?

WHERE DID IT HAPPEN?

One would think this would be simple question to answer. It is not?

Where did it begin? Where did each part of the crime happen? Where did it end? How did the crime move from one place to another? What was the reason for the movement? What happened during the movement? Are the first parts of the crime and the last part related or are they actually separate incidents Will the crime scene (s) need to be preserved?

The additional questions resulting from the above answers are particularly thought provoking; Is this actually more than one crime happening to the same victim? Is it actually more than one crime involving different victims but the same suspect? If the crime involves different places and different suspects, are the elements of the crime still intact for any of the suspects?

WHY DID IT HAPPEN?

The answers to this question include the following questions:

Was the crime or incident deliberate? What was the motive? Did the victim contribute to this incident? Were there strong emotions involved? Was this the result of another incident? Was this the intended victim? Who stands to gain the most because of this crime?

Of course the answers to the above questions result in more questions such as; from the criminals point of view, was the crime successful? Was the crime planned or was it actually the result of things getting out of control?

WHO CAUSED IT TO HAPPEN?

By this time you have caught on to all the potential questions that must be addressed in order to fully answer the above. Tell me what questions is part of this one.

Was there a particular person who caused it to happen? Was there more than one? What are their addresses? Did he or she come here for that purpose? Was there a relationship between the victim and the person(s) who caused it to happen? Did the suspect bring anything with him to assist him in committing this crime?

The above questions engender additional questions such as; how long has there been a relationship between the suspect and the victim? Did something happen recently to change that relationship? If the suspect brought something with him to commit the crime, where is it?

HOW DID IT HAPPEN?

What are the questions that must be answered here?

What precipitated this incident? What was the first thing that happened? What was the sequence of events? Is this a common sequence? Is it a modus operandi? What evidence or exhibits demonstrates this sequence? Was this the sequence of events intended? What happened to change the sequence? What tools or strength (or speed etc.) would be required to accomplish this sequence of events? Did the suspect(s) have the ability or things, which are required? Do they still have them? If they do not have them who does? What was the last thing that happened?

Questions resulting from the answers to the above include; why was it done in that sequence? What other sequences were possible? Does this fit with everything else?

Is there another way of doing it, which would leave the same evidence and cause the same result? Could anyone else have done it and made it look this way? Could this have been the result of a business deal between the victim and the suspect?

PLANNING FOR THE INTERVIEW

The above questions form the basics of the interview. They are the minimum that should be obtained when the Constable is asking questions about an incident or crime. In many cases, there is no specific method of preparing for this type of interview. Normally, you are approached and advised that a crime or incident has occurred or you respond to a request for assistance and discover that there has been a crime. Planning, under these circumstances involves simple preparations.

- Have the necessary writing materials to record the information (at all times and under all conditions).
- Utilize a standard, systematic approach to ensure you ask each of the above questions and obtain complete answers.
- With the exception of checking the injured and obtaining descriptions of the suspects so they can be broadcast, always ask the questions in the same order. Begin with, WHAT HAPPENED?

If you are gathering information about a crime or incident that is already being investigated, planning for an interview requires considerably more preparation.

You must have a clear understanding of every aspect of the case.

- Nature of the case, and what is now known (or believed) to have occurred
- Date and time of occurrence
- Crime scene and surrounding area
- Modus operandi
- All evidence developed and exhibits located.
- Incriminating facts and any potential suspects.

What are the most common motivations for committing this type of crime? When interviewing people, the motivations must be kept in mind. Those with clear motivations are usually the persons most likely to commit the crime.

- Money
- Revenge
- Jealousy
- Fear
- Power and recognition
- Sex

You must do a complete background check on the person you will be interviewing

- Personal history
- Family background
- Physical and mental condition
- Habits, attitudes, hobbies, pleasures
- Any previous contact with the police

As a suspect (What kind of a crime? Was it similar to the current crime or incident?), as a complainant or victim (What were the circumstances? Was it a similar situation?), as a witness (Was it a similar situation? Were the people involved in that incident the same as those in this problem)

In planning for the interview, determine exactly what you wish to learn by talking to this particular person.

- Write out the primary questions you wish to ask
- Decide on the best approach based on your knowledge of the person
- Decide on an alternate approach in case the first does not work
- Think about the areas where he may be reluctant to answer your questions prepare a method of countering the reluctance

Plan the best time for the interview.

It should be as soon as possible (but not before you are fully prepared)

- It should be at a time when the person can talk without being disturbed
- It should be at a time when he or she is alone (except juveniles). What are the rules regarding interviewing juveniles?
- Under normal circumstances, the morning is the best time for conducting interviews
- Nighttime should be avoided unless the nature of the case dictates it
- Making an appointment is often extremely effective

Thought should be given to the location of the interview.

- You will need privacy.
- He has a psychological advantage if he is on his own home ground. In the case of a victim or witness this is not a major consideration
- Place of employment is usually good, providing there is privacy (use care here to avoid causing an employment problem).

Other Miscellaneous considerations

- How many interviewers? Which **ONE** will do the interviewing? Who will take the notes? How should the furniture be arranged? How should the seating be arranged?

OPENING THE INTERVIEW

When beginning an interview with a person who is a complainant or when first meeting a victim or witness at the scene, each of the above should be taken into account.

Your need for a particular style of seating or privacy should be based on what you are going to ask. Often the difference in the information received is significant. Unfortunately, there are often few alternatives available. Nevertheless, try make use of what you have available.

When you open an interview, always make sure they know who you are.

- If not in uniform, exhibit your identification. Shake hands and give your name. Always be polite and courteous.
- Explain the purpose of the interview, be straightforward and direct
- Begin with questions the person should not be afraid to answer such as; name, address, employment, any mutual friends or acquaintances, interests etc.
- Use a calm conversational voice. Do not be judgmental - you are not a judge. Do not express emotions - all people are presumed to be telling the truth and even the perpetrator is innocent until proven guilty.

- Do not use police terms or words the person will not understand.
- Take your time. Do not be rushed!

THE BODY OF THE INTERVIEW

Once you have completed the opening sequence of the interview, you should talk only as much as is absolutely necessary. Your partner should not talk at all, except to answer direct questions.

Ask the person to tell the whole story or give you everything he knows about the incident in his own words and at his own rate of speed. **N.B.** You should make notes and listen intently.

Do not interrupt to clarify a point or to have him skip over something you already know. Do not ask any questions until he has completed his statement. This technique:

- Provides an opportunity to tell the truth.
- Does not allow the person to change his statement based on cues you provide by asking pointed questions.
- Increases the probability that he will say what he considers most important (rather than what he thinks you want).
- Listen closely. Do not allow yourself to be thinking of other questions to ask while he is talking. Wait until he has finished before formulating additional questions. Do not get in a hurry.

INTERVIEWING OR QUESTIONING

Say nothing for a minute or so after he has completed his statement. Use this time to formulate additional questions. This delay will also often result in additional information. Give him ample time to add to the statement before you continue.

- Listen to the pronouns used. Note any changes in them and where they occur (my wife, the wife etc.)
- Listen for gaps in the statement. Note where they occur (A gap might be jumping from one location to another when his earlier pattern was to mention each street as he passed it)
- Try to determine what portion of the time is spent on activities before, during and after the incident. Particularly in reference to the persons reactions, feelings, and responses after the incident. (The lack of such information after witnessing an emotional crime may suggest deception)

Ask all questions in an open-ended format.

Interviewee: "Where do you want me to start?"

Constable: "Start at the beginning".

Constable: "I am not quite clear on what happened, you arrived at the location and--".

Constable: "Now you go across the street and ---".

Constable: "I have you leaving the building then ----".

If the person being interviewed is considered a suspect, always administer the **caution** statement in accordance with the Judge's rules, and then if permitted, continue the interview. (***Remember that an interview log must be maintained if the person is considered a suspect.***)

Always start with non-threatening questions. Always ask open-ended questions of a general nature to avoid indicating specific sensitive areas.

If you have additional questions about a certain part of the statement, ask the person to repeat his story again starting at a point somewhat before the area of interest. Again, always let him use his own words - ***DON'T PUT WORDS IN A PERSON'S MOUTH***

At some point, always ask the person why he or she committed the crime. Ask it directly without emotion or rancour (without bitterness). Pursue any answer except "I did not do it".

Never ask a leading question. Don't say: "You were there weren't you?" etc., don't bluff or try to deceive the person.

INTERVIEWING WOMEN AND CHILDREN

When interviewing women or children always have 2 persons present, preferably a women Constable.

Always treat women as ladies regardless of who or what they are.

When investigating a crime involving sexual overtones, use either two females or a man and a woman as interviewers.

Women are less likely to confess to a crime if they have been given the opportunity to make repeated denials of guilt. Don't ask until you are ready.

Treat all women with consideration, understanding and sympathy, show that you are interested in their welfare. Flattery is sometimes effective, as is a certain level of emotion, particularly if it indicates an understanding of why they might have committed the crime.

Children are **NOT** little adults. They do not think, act or respond like adults. They are much more likely to be truthful and frank. However, privacy is important for the child as well as the adult. It is better to avoid interviewing them in front of their parents or teachers. However, in most cases the policy requires that a parent be present. A child who is a suspect should never be interviewed alone. If the parents are not available it may be permissible to request that a responsible adult who is not a government employee sit in on the interview. It is of course always preferable to find someone known to him present.

If a child is uncooperative or very frightened, make no attempt to interview him without the parents being present.

THINKING

Before ending the interview you will need to pause and think. Have I done all that I am supposed to do? Have I asked all the relevant questions? Have I got all the information I require?

- Have I all the points to infer that a crime has been committed?
- Think about the M.O. of the suspect and the opportunity afforded him
- What were the thoughts of the suspect before and after the crime?
- Think of your approach to the victims, witnesses and suspects

ENDING THE INTERVIEW

Always end an interview in a friendly manner

Give name and telephone number to person so that he or she can contact you if they remember more details

After you have thanked the person for his or her time and co-operation and are on the way out, consider asking a key question (NOT whether they did it or not). Often their guard is down and they will answer without thinking.

STATEMENTS AND SIGNED STATEMENTS (refer Judge's Rules notes while considering this section).

The subject of statements and signed statements has been covered in the lesson on **RULES OF EVIDENCE**; however, because it is often used in connection with interviews it seems appropriate to review the principle points again.

A statement is simply a written record of what a person has said about a given subject, it is a standard method of recording information received in serious cases.

If the statement is from a suspect in the case, it should contain the following introduction:

"I _____ WISH TO MAKE A STATEMENT. I WANT SOMEONE TO WRITE DOWN WHAT I SAY. I HAVE BEEN TOLD THAT I NEED NOT SAY ANYTHING UNLESS I WISH TO DO SO AND THAT WHATEVER I SAY MAY BE GIVEN IN EVIDENCE".

The statement is written in the presence of the person giving the information.

During the taking of the statement the Constable should attempt to set out the exact words used by the person.

If a suspect, no questions other than those of clarification should be asked during this process.

It is important that the information be placed in a natural sequence and that the pages be numbered.

Include any direct statements in quotations.

It is usually best to prepare a statement in ink rather than pencil, however, in any case, if a mistake is made do not erase it. Cross it out and re-write it correctly. When you have completed the statement, have the person initial each correction and sign each page.

Do not leave any lines empty or any undue space at the bottom or top of the statement. If you have such spaces, have the person initial them.

The person may write the statement if he or she so wishes. If a suspect, no suggestions should be given as to what information is material to the case. If the person is considered a suspect, the statement should contain the following introduction.

"I make this statement of my own free will. I have been told that i need not say anything unless i wish to do so and that whatever i say may be given in evidence.

SIGNED STATEMENT

Finally, when the statement has been completed and the person is satisfied with it's accuracy, have him sign and date the statement at the end. **THIS CONSTITUTES A SIGNED STATEMENT.** If the person is a suspect, he should write the following:

"I have read the above statement and i have been told that i can correct, alter or add anything i wish. this statement is true. I have made it of my own free will"

Signed

Date

REFUSAL OF A SUSPECT TO SIGN A STATEMENT

As you will recall from the lesson on **RULES OF EVIDENCE**, if the suspect refuses to sign a statement or add the above certificate, the senior Officer present should record on the statement what has happened. This should be done in the presence of the person making the statement.

If the person cannot read or write or is otherwise unable to sign, the Constable preparing the statement should ask the questions orally, and then certify to the circumstances and what he has done.

If at all possible the person should make his mark, usually an (X) at the end of the statement.

You should then add the appropriate certificate and your name.

INTERVIEW LOGS

Some type of log should be kept to document the interview

An interview log is a chronological record of the events, which occur during the interview. It usually includes; time, date and location when the interview started and the names of all people present.

- Caution of suspect - Time.
- Refreshments offered - Time
- Break in the interview so suspect could go to the toilet - Time
- Remember if a break is taken in the interrogation of a suspect, he or she must be cautioned again on proceeding
- Time interview started again
- Caution of the suspect - Time
- Confession of the suspect - Time

- Suspect signed written statement - Time
- Time interview terminated

The interview log is normally maintained in the investigative case file with a copy of the statement.

EVALUATION OF THE INTERVIEW

- No matter what type of an interview it was, always critically review your work
- Were all the facts obtained?
- Did you establish rapport with the person?
- What, if anything, hampered the interview - can it be avoided in the future?
- Did you learn anything or any approach, which seemed to assist in the interview? Can you use this same approach in future interviews?

RECORDING THE INFORMATION

Remember even a perfect interview is of no value if the information is not properly recorded and disseminated.

How should information received from a witness at a crime scene be recorded? Who should receive copies?

- Should information received from complainants, victims and witnesses be recorded in the station diary?
- Should a separate report be made out which contains this information?
- Who should get this information?
- Whose responsibility is it to see that the proper people get the information you received?

STATEMENT WRITING

Definition:

A statement is a story told by a person in connection with any matter under Police Investigation and taken down in writing.

Statements are given voluntarily, as well as forming an official record for future references.

Points to be observed:

A statement should be written on foolscap paper with a margin of a quarter of the width of the paper to the left

It should be written in ink when practicable

It should begin with the name; occupation, age and address, if a female state whether married or single

It should be taken in order of sequence of events stating day, date, time and occurrence

Distance between relevant places should be stated

Value of article stolen and identifying marks should be stated

It should be read over to the maker or given to him to read

The maker immediately below the last line of the statement should sign it. If unable to write, he should make his mark “ **X** ” which must be witnessed. If there are any mistakes, have them corrected and initialled by the maker

The declaration should appear immediately below the maker certificate and signed. If unable to write, the same procedure above applies

Certificate of the taker must be made at the end of the statement

Method of Taking a Statement

The method of taking a statement is contained in the Box Plan (acronym) “**H.U.R.T.**”

H **Hear** the story of the witness and make notes, do not disturb unnecessarily.

U **Until** you are sure you are in the possession of the facts in proper sequence, do not take the statement.

R **Remember** to start at the very beginning

T **Take** the statement in the person's own words providing they can be understood

Reason for Taking a Statement

The reasons for taking a Statement are contained in Box Plan (acronym) “**J.U.D.G.E.**”

J **Justify** action taken by the Police

U **Uncover** all information in possession of the witness

D **Decide** what action to be taken by the Police

G **Gain** all available facts for the proper authority

E **Ensure** proper examination of the witness

TAKING STATEMENTS

A statement is simply a description of an incident or occurrence. In most cases the incident is under police investigation and the description is orally given to a Constable who takes it down in writing.

The information provided, varies considerably. Whatever the circumstances, when a statement is written and signed by the person giving the statement, it is considered legally superior to any oral information, provided the Constable who at some later time or date records it in his pocket book or otherwise commits it to writing.

WHY WOULD THIS BE TRUE?

As indicated the information provided by a statement may be almost anything, commonly it falls into one of the following categories:

- It may be a statement denying knowledge or involvement in a crime.
- It may be a statement admitting to some involvement or guilty knowledge in some portion of the crime. (an Admission).
- It may be a statement admitting to the commission of a crime. (a Confession).
- It may be a statement concerning events leading up to, actions taken during, or circumstances in existence throughout the occurrence of an incident
- It may be a statement regarding something, which was observed (or not observed) during the commission of a crime.
- You may wish to take a statement to ensure the proper examination of the witness in court or simply to gain all available facts for the proper authority.
- You may on occasions wish to prepare a statement of your own concerning an occurrence. Such a statement should be prepared when it is or will be necessary to justify your actions, the actions taken by other police in your presence or anytime you wish to permanently record your action or observation.

Preparing the written statement

A written statement simply means a written document containing information received from a person who has some knowledge about an incident, accident or crime. On occasions you will hear this statement referred to as a voluntary statement. This is simply a matter of habit. All statement must by law be completely voluntary and given without coercion. Forced statements are not only unlawful but are of no value in a court of law.

Certain standard procedures are required when preparing a written statement. These are:

- Place the statement on paper with a left margin of 1/4 of the width of the paper
- If it is the statement of a victim or witness, it should begin with the name, occupation, age and address. If a female, state whether married or single
- Organise the information in a sequence of events, stating the day, date time and place of occurrence and the time between events
- Include details of the identification of offender and particulars of the circumstances under which the identification was made. To include distances, lighting, length of time of observation, any obstruction to vision and whether the offender was known to the victim or witness before, and for what period
- Distances between relevant locations should be included and the value of any articles stolen along with their identifying data.
- Leave no empty lines or section in the statement, number the pages and do not erase. If you make a mistake, neatly cross it out write in the correct version and continue.
- After writing, read the statement to the maker or allow him to read it. Have him make any changes he wishes in the statement. Make sure the person giving the statement signs all corrections on each page of the statement
- When he or she is satisfied with the statement, have them sign and date the statement immediately after the last line
- A certificate of the taker should be made at the end of the statement

Examples:

Taken by me this 10/8/92 at about 11:30 a.m. at the Spanish Town Police Station. It was read over by the maker who signed his/her name to its correctness.

Name, Rank, Number
Date

Taken by me this 10/8/92 at about 11:30 a.m. at the Spanish Town Police Station. It was read over to the maker who made his/her mark to its correctness.

Name, Rank, Number
Date

If the maker is unable to write he must make his mark usually with an (X) which must be witnessed.

If, when preparing to make a statement, you begin to suspect that the statement will contain admission of guilt you must immediately stop. When confronted with the probability of admission or confusion, immediately caution the person or cause him to be cautioned before asking any further questions relating to the offence.

Your decision to stop will be based on:

When you feel you have **evidence**, which would afford reasonable grounds to **suspect** that the person has committed an offence **REFER TO JUDGE'S RULES (II)**

The caution shall be in the following terms:

YOU ARE NOT OBLIGED TO SAY ANYTHING UNLESS YOU WISH TO DO SO, BUT WHAT YOU SAY MAY BE PUT IN WRITING AND GIVEN IN EVIDENCE.

After you have cautioned the suspect, you should record the caution, the date and the time in your pocket book and immediately begin what is often referred to as an interviewing log.

USING AN INTERVIEWING LOG

This log is simply a record of time and activities associated with the interview. An interview log must always be prepared whenever the person being interviewed is suspected of committing a crime. (See Judge's Rules III-C). The interview log should include the name of the person being interviewed, time the interview began, any breaks taken, the names of everyone present, the fact that the person was cautioned, when (the time) he was cautioned and the caution statement used. The location of interview and the time it was completed should also be included.

If the suspect is charged or informed that he will be prosecuted for an offence, the caution statement shall be as follows:

"DO YOU WISH TO SAY ANYTHING? YOU ARE NOT OBLIGED TO SAY ANYTHING UNLESS YOU WISH TO DO SO, BUT WHATEVER YOU SAY WILL BE TAKEN DOWN IN WRITING AND MAY BE GIVEN IN EVIDENCE.

If, after being cautioned, the suspect elects to continue with the statement, you should note that fact and record the time the questioning continued, who was present and the time the questioning ended.

When taking a voluntary statement from suspect additional rules apply.

Any inducement, threat or promise made by a person in authority over the prisoner which may give the accused person reasonable grounds for supposing that he will gain some advantage by making a confession, makes that confession inadmissible.

The Constable writing the statement must either begin the preface on the statement itself or prepare an additional document, which contains the following caution. If a separate document is prepared, keep this document with the statement.

"IWISH TO MAKE A STATEMENT. I WANT SOMEONE TO WRITE DOWN WHAT I SAY. I HAVE BEEN TOLD THAT I NEED NOT SAY ANYTHING UNLESS I WISH TO DO SO AND THAT WHATEVER I SAY MAY BE GIVEN IN EVIDENCE."

Do not prompt or ask questions of the suspect while writing the statement, but take down his or her exact words (make changes if necessary to make statement rational and /or legible).

When the statement has been written and the suspect is satisfied with it's accuracy, he should be asked to write the following certificate and sign it:

“I HAVE READ THE ABOVE STATEMENT AND I HAVE BEEN TOLD THAT I CAN CORRECT, ALTER OR ADD ANYTHING I WISH. THIS STATEMENT IS TRUE. I HAVE MADE IT OF MY OWN FREE WILL”

Signed

Date

N.B. SEE AMENDMENT TO EVIDENCE ACT F.O. # 2505

Refusal of suspect to sign a statement

If the suspect refuses to sign a statement or make the above certificate, the senior Constable present should record on that statement itself and in the presence of the person making it, what has happened

If the person cannot read or write or is otherwise unable to sign, the Constable preparing the statement should ask the questions orally, and then certify to the circumstances and what he has done.

A statement made on oath before a Justice, taken down in writing in the presence and hearing of the accused, which facts should be therein set forth and signed by the person making it (called the deponent by the Justice)

- Given by witnesses at preliminary inquiries.
- Witnesses who are seriously ill
- Victims who are injured when the accused is in custody

Sworn Statement. a variation of the deposition.

Used when a victim or witness is dangerously ill and the doctor is of the opinion that he is not likely to recover, and the accused is not available at the time

If possible a Justice of the Peace should take the statement

NOTE

Deposition	Taken by Magistrate in presence and hearing of the accused
Dying Declaration	Taken by anyone
Voluntary Statement	Taken by Police
Sworn Statement	Taken by Justice of the Peace

When a person who did not take the original copies statements, the following certificate should be made and signed.

“Taken down by Constable Tom Strokes # 0123 at 10:00am 12/03/99 at the Amityville Police Station, St. Andrew and copied by me at 1:30pm. 15/0499 at Amityville”

SPECIMEN OF STATEMENT

Reg. vs John Sinclair, age 25 years of age, Auto Mechanic of Cumberland Road, Spanish Town, St. Catherine for the offence of **Indecent language**, contrary to section 3 (L) of the Town and Community Act, committed on Sunday 26th June 2002, about 8:30 a.m. along Young Street, in the vicinity of Young's Funeral Parlour St. Catherine.

Carlene Morrison
Constable/JCF
Spanish Town Police Station
St. Catherine

States,

On Sunday 26th June 2002, about 8:00 a.m., I commenced foot patrol duties in the Spanish Town Area. Constable Velma Higgins accompanied me; we were both dressed in uniform.

Around 8:30 a.m. we were proceeding along Young Street in an easterly direction towards the Spanish Town shopping centre, when upon reaching the vicinity of Young's Funeral Parlour, 1a Young Street, I saw and heard the accused man uttered the following words to wit: I gwine limb up you Blood Claat, if you nuh han over my bumbo claat money". I draw Constable Higgins' attention to the situation, when she replied that he heard the comments as well.

I then went over to the accused and pointed out the offence of Indecent Language to him. A young lady who was standing in the presence of the accused was asked what happened when she replied, "A owe him three hundred dollars, offica". She then identified herself as Gloria Palmer, dressmaker of 23 Ffrench Street, Spanish Town.

I then arrested and charged the accused man for the offence of Indecent Language, when cautioned by me he said, "offica beg you a chance, if I did see you a would a neva dweet." He later identified himself as John Sinclair; age 25 years of age Auto Mechanic of Cumberland Road, Spanish Town.

I then searched him and with the assistance of my colleague, he was safely escorted to the Spanish Town Police Station, where he was handed over to the Station Guard in what appeared to be good physical condition.

Sign
Date

This statement consisting of $\frac{3}{4}$ page signed by me is true to the best of my knowledge and belief and I make it knowing that if it is tendered in evidence, I shall be liable to prosecution if I have willfully stated in it, anything that I know to be false or do not believe to be true.

Sign
Date

Appendix 'E' to Force Orders # 2515 dated 17th August 1995

Certificates for Statements

Makers Certificate

On _____ at _____ pm I attended the _____ Police
Station in the parish of _____ where I gave this statement to the Police. The Statement
was read to me/by me and I sign same to be true and correct to best of my knowledge and belief.

Sign

Date

Declaration

This statement consisting of _____ page(s) each signed by me is true to the best of my
knowledge and belief and I make it knowing that if it is tendered in evidence I shall be liable to
prosecution if I have willfully stated in it anything that I know to be false or do not believe to be true.

Sign

Date

Takers Certificate

Taken by me this _____ day of _____ at _____ pm at the
_____ Police Station in the parish of _____ the statement was read over to/by the
maker who indicated that he understood. The declaration was read over to/by the maker who signed
both the Statement and Declaration as true to the best of his/her knowledge and belief.

Sign

Date

These certificates must be at the end of each statement written or taken by a Police Officer.

REPORT AND REPORT WRITING

INTRODUCTION

For many years the documenting of observations, knowledge obtained from various sources, incidents, complaints, crimes, crime scenes, the finding of exhibits and other forms of information was not considered an important element of police work. The population was small and the Constable knew virtually everyone personally. When a crime was reported, this information was simply compared with the Constables knowledge of the local criminals and a probable suspect was picked up. In the rare instance when it was necessary to involve a detective, the necessary information was given to him verbally.

There were few major crimes. Thus, when the criminal was brought before the court, both the Constables and the detectives were easily able to recall and testify to the details of the incident. Any information required by the defense lawyer, if there was one, was also furnished verbally on request.

Today, there is a large population and it is very mobile, particularly in the main towns and resorts. Constables and detectives no longer know all the people and the criminals living in their areas. There are also many crimes being committed. So many that no one can possibly remember all the details about all of them. In addition, the rules of the courts regarding testimony and the admission of exhibits and evidence have changed. Detailed, accurate information is required regarding every observation, every action taken and every interview. Specific details are even necessary concerning the recovery of all exhibits, who saw them before they were moved, who picked them up, who took custody of them, and how long each person had such custody.

Finally this information must be made available to many different people. While in the investigative phase it must be available to other Constables and detectives, perhaps many of them in different parts of the country. At the time of the trial, the public prosecutor and perhaps several of his or her assistants will need the information as will the lawyers who will defend the suspect.

THE PURPOSES OF REPORTING AND REPORT WRITING

To preserve knowledge

Reports serve as the memory of a police agency. If reports were not maintained in a readily available form, information concerning activities, complaints, and minor offences would only be available if personnel were able to remember the incidents.

To provide accurate details

No one can remember all the details of an incident: what was said; what was stolen; who was suspected; the location of a witness; which witness said what. In the report such information is safe, it remains accurate and available until needed.

To document activities

Often the victims, witnesses, or the police respond to an incident in a manner, which, if the circumstances were not known would be suspect. Good records document what happened at the scene, what was said and what was done.

To make information available

Unless the information collected is readily available, it is of little value. This has been one of the Constabulary's main problems in the recent past. Because of the chronological format of our diaries and registers it is necessary to know the date something happened in order to find the record. Fortunately this problem is currently being addressed with the addition of the new computerized records and communications system.

THE LEVELS OF REPORTING

Pocket book

Obviously, it is necessary to record all complaints, reports of crimes and incidents encountered during your tour of duty along with the necessary details.

The details of what must be placed in your pocket book were covered in the lesson on **NOTE TAKING**.

Station diary

Here too, it is necessary to document all incidents, complaints, reports of crimes, arrests, court activities and calls for assistance. In addition a great deal of personnel activity information is recorded. This includes such things as personnel reporting on duty and going off duty, personnel appearing for court, etc. This material is covered in detail in your lesson on **STATION RECORDS**.

Crime diary and other diaries and logs

Refer to above statement. Review the circumstances requiring entries in the crime diary.

Formal report.

Reports are to be written whenever the Constable undertakes an investigation or other police activity.

PREPARING A FORMAL REPORT

The formal report is defined as,

"A WRITTEN ACCOUNT OF ANY MATTER UNDER POLICE INVESTIGATION OR IN CONNECTION WITH POLICE DUTIES"

Format

Must be written on foolscap paper, with a left margin 1/4 the width of the paper itself

Must begin with the location, and date in the upper right hand corner

Must be addressed immediately below the location and date on the left side

Title

After the address, the body of the report must begin with a title containing the topic of the report, e.g.:

"RE: STREEET INCIDENT WHICH OCCURRED ON 20/1/02 ABOUT 10:00 A.M. ALONG BURKE ROAD, SPANISH TOWN ST. CATHERINE.

Synopsis

If the report is over 2 pages long, it should include a one-paragraph summary of the incident immediately after the title.

Suspects arrested or wanted

In an effort to avoid overlooking prisoners or persons arrested in connection with cases, it is important to list any individuals arrested immediately after the synopsis (or if there is no synopsis, immediately after the title.

Possible investigative leads.

Any investigative work not completed should be set out on the front page to ensure it is not overlooked.

Property stolen

Placing a list of property stolen in the same location on every report greatly assists clerical personnel in recording the stolen property.

Exhibits recovered

Witnesses

Details of crime or incident

Certification and Signature

Essential details to be included

- Who
- What
- When
- Where
- How
- Why

Names, addresses and descriptions

Spelling of names
Accurate addresses
Complete descriptions

Persons
Stolen property

Value placed on the property

Name of insurance company if items were insured
Any identifying information about the stolen items

Serial numbers.

Make and models.

Scratches, dents, other identifying marks

Photographs of the items (common in the case of expensive jewellery)

Locations of exhibits found

Methods of measurement

Sketch of the crime scene showing the locations and measurements

Points of impact

Methods of measurement

Sketch of the accident scene showing all tire tracks, rubber burns, and any debris, which might suggest a point of impact.

Descriptions of exhibits found.

Locations.

Identities of Constables who saw exhibits before they were moved

Method used to mark the exhibit for future identification.

Location of the mark

Facts as opposed to hearsay, speculation or beliefs

No speculation or unconfirmed data should be included in a report. Such information should be held for verbal discussions about the case.

Method submitted.

Hand written.

Due to the lack of typewriters, almost all reports are submitted in hand written form. Because of this, it is necessary to practice writing in a completely legible form at all times.

Type written.

Due to the lack of typewriters, only a small number of reports are submitted in type written form. This is due mainly to the unavailability of typewriters and typing skills among Police personnel.

SPECIMEN OF REPORT WRITING

Constabulary Station
Spanish Town
St. Catherine

Sub-Officer i/c
Spanish Town

Re: Street Incident that occurred on Friday July 5, 2002, about 10:15 a.m. along Burke Road, Spanish Town, St. Catherine in the vicinity of the hospital involving Rebecca Thomas, 45 years of age teacher of Monk Road, Spanish Town, St. Catherine.

Reporting that on Friday July 5, 2002, about 10:15 a.m., I commenced investigations into a street incident involving Rebecca Thomas a 45 years of age teacher of Monk Street, Spanish Town, which occur along Burke Road, Spanish Town St. Catherine in the vicinity of the hospital.

The facts are that whilst on patrol duties in the Spanish Town area and accompanied by Constable Nicole Pearson, we responded to an assignment given from the police station.

Upon my arrival about 10:15 a.m., we observed three males adults helping Rebecca Thomas, whom I knew before the time of incident, out of a manhole.

We intervened and examined her; she had received a fractured right leg, which I attended to. She was then taken to the Spanish Town Hospital, where she was admitted. I secured her belongings and handed them over to heujr grandson Jason James whom I had contacted shortly after the incident occurred.

From information received and observations made, Ms. Thomas was proceeding westerly along the sidewalk heading towards the Spanish Town Plaza when she stumbled and fell into the manhole that was uncovered.

Statement was recorded from Peter Williams, 26 years of age Technician of Digicel, and residing a 12 upper Chisholm Street in Greendale Spanish Town, who witnessed the incident.

We have since covered the hole with a piece of red metal and contacted the National Works Agency, Mr. Rupert Randolph, Operation Manager, promised to have the situation remedied.

The Police will follow up to ensure that the Public is protected, and the situation looks after at the earliest possible time.

Submitted for your information and appropriate action.

Sign

Date

DEAD BODIES / SUDDEN DEATH

DEFINITION: A body is said to be dead when life is extinct.

Whenever there is the possibility that a crime has been committed, the first Constable (first responder) proceeding to the site must determine if the person is indeed dead, and further, if the death was from natural or unnatural causes. If it is suspected that the death was from unnatural causes, the Constable must also protect and preserve the crime scene.

Determine if the person or persons are dead

Death defined - An individual is said to be dead in a medical sense when the three vital functions are no longer performed by the body, namely; **respiration, cardiac activity and central nervous system activity.**

All deaths must be verified by a licensed physician Medical Officer.

PRESUMPTIVE SIGNS OF DEATH:

- ✓ Cessation of breathing i.e. no movements of the chest or moist breath to dim a looking glass placed over the nose or mouth
- ✓ Cessation of heart beat i.e. no pulse against the side or no pulse beating in the arteries
- ✓ Eyes may be open and unseeing eyeball dim and glossy, pupils dilated
- ✓ Jaws clenched
- ✓ Tongue appearing between the teeth
- ✓ Frothy mucous about the nose and mouth
- ✓ Fingers half clenched or closed
- ✓ Surface of body pale and cold, skin clammy
- ✓ Body rigid
- ✓ Lack of flushing in nail beds when pressure on nail is released.
- ✓ Body totally relaxed (if death is recent), with possible release of bowels and urine.

Bear in mind that certain conditions are known to simulate the appearance of death. Some of these conditions are:

- Electrical shock
- Prolonged immersion in liquids
- Poisoning from certain narcotic drugs
- Barbiturate poisoning
- Prolonged exhausting diseases such as typhoid fever
- Certain rare mental diseases

If the person has any vital signs or other indications of life, administer CPR or other appropriate first aid procedures immediately. Cause an ambulance to be called immediately

POLICE ACTION AT SUDDEN DEATH

Determine if the death was from natural or unnatural causes.

NATURAL CAUSES: - (Courses of nature) Includes all types of diseases, physical conditions and certain accidents)

- ✓ Proceed to the scene and satisfy yourself that the person is dead.
- ✓ Examine the body carefully for marks of violence.
- ✓ Note the position of the body i.e. how body is situated - sitting, lying etc.
- ✓ Establish identity
- ✓ Collect statement describing the incident
- ✓ Cause the body to be removed to the morgue or other convenient place near at hand i.e. if body is found in the street or other public place or a case of suicide, the body should be removed after certified by a Doctor.
- ✓ Submit a report to a Justice of the Peace who will order burial or a post mortem on the prescribed forms. This can only be done when a death certificate has been issued by the attending physician; or order a Post Mortem examination on the prescribed form.

UNNATURAL CAUSES: - (Includes all causes other than diseases, or physical disorders other than by course of nature)

- ✓ The first Constable on the scene is to satisfy himself that the body is dead and shall have command and control authority until relieved, regardless of the location, nature or extent of the crime scene/disaster scene, and he shall:
- ✓ Take charge of the body and make certain it is not touched by, by-standers
- ✓ Inform Officer or Sub-Officer and Doctor
- ✓ Carefully note its appearance, and everything surrounding it, also the exact position of the body, description and condition of clothing
- ✓ Cordon off area, and endeavour to establish identity
- ✓ (Preserve foot prints, and) examine scene for signs of struggle
- ✓ Check for clues, i.e. blood stains, or any other exhibits that can be taken
- ✓ If footprints are found, they should be preserved, and cordoned off so that casts can be taken if necessary
- ✓ Hand over the situation to Senior Officer on his arrival. All articles found there, and coming in possession of the Police should be carefully noted, labelled and listed in notebook
- ✓ No unauthorized person shall be permitted within the scene.
- ✓ No physical object shall be moved or evidence collected for any reason other than safety or to ensure it's preservation until directed by:
 - The Constable assigned to the investigation of the case.
 - Persons from the Police Forensic Laboratory or the CIB Scene of Crimes Unit
- ✓ Scenes involving establishments open to the public shall be closed if access to any part of the establishment interferes with the security of the scene.
- ✓ Carefully note the appearance of the body and everything surrounding it. Also note the exact position of the body and condition of the clothing.
- ✓ Do not touch anything unless necessary to protect it from weather, traffic or bystanders. If anything is moved, carefully note and record its location before moving.
- ✓ Use only one route in and out of the crime scene to avoid accidentally stepping on possible evidence or exhibits.
- ✓ Note any evidence suggesting forced entry or the lack of it.

Take steps to identify the body if it can be done without disturbing the scene.

Ask witnesses if they know the deceased.

Note any records, property, clothing or other articles which appear to belong to the deceased.

Be alert for medicine bottles, alcoholic beverages, weapons, letters, valuables, signs of struggle, or other items which might indicate the type of activity before death.

Be alert for information which may suggest he or she was not alone.

If it is necessary to remove ropes or straps from the body (such as in the case of a suicide) do not untie knots. Cut the material at another location and preserve the exhibit with the knot intact.

Names of all persons entering or exiting the crime scene. (Includes all law enforcement personnel).

Names and addresses of all witnesses identified

Actions taken to preserve exhibits

Indicate weather conditions and temperature, lighting (natural and artificial), etc

Prepare a rough sketch of the scene showing the locations of the various exhibits noted

The scene of suicide should be handled in the same manner as a possible murder

Pay particular attention to the appearance of the body.

If death is by hanging, note the appearance of the face and head, the marks on the neck, possible marks near where the ligature was tied indicating previous attempts.

Is location and look of the body consistent with the method used to commit suicide?

Is the causal agent or weapon present at the scene?

Unexplained deaths are handled in the same manner as a possible murder

Protection of the crime scene is of the utmost importance

All witnesses and individuals in the vicinity must be identified and interviewed

LETTERS FOUND ON DEAD BODIES: -

Should be handed over to the Senior Officer unopened, and if any is addressed to the Coroner it should be handed over to him unopened.

N.B. Contents of letters should not be given to the press.

CASES OF SUSPECTED POISONING: -

In case of suspected poisoning all bottles and receptacles capable of being used, also remainder of food, vomit, and utensils should be taken with a view of being examined by an expert.

UNIDENTIFIED BODIES: -

If there is any difficulty as to identifying of any dead body it should be photographed, fingerprinted and the body carefully searched and described and published. (Radio and Press) All marks whether natural or otherwise should be given in such description. If the body is to be photographed it should be dressed as neatly as possible, just as it was in lifetime, and every article of clothing should be kept by the Police.

If photographing is not possible a minute search should be made of clothing i.e. lining of coats, cuffs of pants or laundry marks which may assist in establishing identity.

POST MORTEM

Definition

This is an examination carried out on a dead body of a human being by a Medical Officer to find out the cause of death.

WHO MAY ORDER POST MORTEM

- ✓ The Coroner for the parish
- ✓ A Justice of the Peace for the parish
- ✓ Officer or Sub-officer of police for the parish

WHEN CAN P.M. BE ORDERED

A Post mortem may be ordered when it is made known that a dead body or part of a body is lying in their jurisdiction and that there is a reasonable cause to suspect that such person has died from violence, or from unnatural causes or the person died in prison or under such circumstances as shall require an inquest.

DUTIES OF POLICE AT POST MORTEM:

- Be at the appoint place in time.
- Take two (2) anatomical jars for viscera if any.
- Take foolscap paper, pen, ink, book to write on, sealing wax, cord and matches.
- Get a booth or rough shelter built if necessary.
- Prepare a rough dissecting table.
- Have water, soap and towel ready for use by the doctor.
- Collect all necessary statements in connection with death.
- Remove all idlers while the Post Mortem is being performed.
- Take disinfectant to sprinkle around body e.g. dettol, camphor, and cattarhozone for personal use.
- Make a rough sketch plan showing position of body.
- Get someone to identify the body, preferable relative of deceased and collect statement.
- In cases of suspected murder, or manslaughter do not remove body until the M.O. has completed his examination. If it is to be removed, note should be made as to the original position.
- After the Post Mortem is performed the body should be handed over to a relative if possible. If the person is a stranger or has no one to bury him or her, the parish council or K.S.A.C. should be asked to take care of the burial. If done by the Police, the cost must be borne by the Parish Council or K.S.A.C.

EXHUMATION

Definition:

This is the unearthing of the dead body of a human being for the purpose of having a post mortem or re-examination.

WHO MAY ORDER EXHUMATION?

An exhumation shall only be carried out on the written order of a Coroner for the parish.

WHEN SHOULD THE ORDER BE MADE

If at a Coroners inquest the jury is not satisfied that the cause of death is satisfactorily ascertained or explained by the Medical Officer who performed the Post Mortem they may request the Coroner to summon in writing some other Medical Officer (to be named by them) to perform a further examination on the body of the deceased, also if fresh evidence has been discovered, or rumours or suspicion of foul play.

DUTIES OF POLICE AT EXHUMATION

When the Police receive the exhumation order, the matter should be placed in the hands of an experience Sub-Officer who will get sufficient men to assist him.

Great care should be taken to avoid hurting the feelings of relatives or offending public decency. This should therefore be performed during the night between 10:00 p.m. & 4:00 a.m. Funds should be provided for paying diggers and other helpers, also for supplying stimulants and smoking for the company.

THE CORONERS ACT
The Coroners (Amendment of Schedule)
Regulations, 1984
Form D

CERTIFICATE OF CORONER

DEATH IN THE DISTRICT OF.....

PLACE OF DEATH	USUAL RESIDENCE OF DECEASED
Particulars of Deceased	Cause of Death
Date of Death.....	1. (Immediate Cause) due to
Full Name.....	(a).....
.....	(b).....
Sex.....	(c).....
Age.....	2. (Contributory).....
Marital Status	
Single	
Married	
Widow/Widower	Certified by.....
Divorced	Qualification

Name and address of person who found or identified body.....
.....

I certified that the above particulars have been determined by me upon a report received from
.....and upon other evidence
available to me.

Signed.....
Coroner

JAMAICA CONSTABULARY

FORM OF ORDER FOR POST MORTEM EXAMINATION

WHEREAS I am informed that the body of.....

.....is now lying dead at.....

.....in the parish of.....

under circumstances which deem to me likely to require the holding of a Coroner's Inquest, these are therefore to certify that in accordance with the powers conferred on me by chapter 436 of the Revised Laws, I authorize and require you to make a post mortem examination of the body of the said..... there lying dead, and report thereon to the Coroner: and for so doing this is your Warrant.

Given under my hand at.....this

.....day of20.....

Justice of the Peace

.....

For the parish of.....

To Dr.....

NOTE: It is requested that a dissection of the body be not made if the cause of death can be ascertained otherwise.

JAMAICA CONSTABULARY

FORM OF ORDER FOR POST MORTEM EXAMINATION

WHEREAS I am informed that the body of.....

.....is now lying dead at.....

.....in the parish of.....

under circumstances which deem to me likely to require the holding of a Coroner's Inquest, these are therefore to certify that in accordance with the powers conferred on me by chapter 436 of the Revised Laws, I authorize and require you to make a post mortem examination of the body of the said..... there lying dead, and report thereon to the Coroner: and for so doing this is your Warrant.

Given under my hand at.....thisday

of20.....

Justice of the Peace

.....

For the parish of.....

To Dr.....

NOTE: It is requested that a dissection of the body be not made if the cause of death can be ascertained otherwise.

Constabulary Station
Black River
St. Elizabeth

Date:

Sub-Officer i/c
Black River

Sudden death of Beryl Brown, 60 years old Pensioner late of Barbury Hall District, St. Elizabeth on Monday January 1, 2002, about 7 a.m. at Barbury Hall.

Reporting that on Monday the 7th day of January 2002, about 7 a.m., Beryl Brown 60 yrs old pensioner late of Barbury Hall District, St. Elizabeth was found dead in one bed room dwelling house at Barbury Hall District.

Allegations are Brown who has a heart problem, complained of feeling severe chest pain to her son namely Paul Salmon 34 yrs old Carpenter of Barbury Hall District, St. Elizabeth. Shortly after Salmon found Brown in her bedroom, not breathing and appears to be dead.

As a result of this discovery he reported the matter to the Black River Police, who commenced investigation.

On arrival at the home of the deceased, the body of a female was seen lying on its back on a bed in the dwelling house. It was clad in a grey night gown. No marks of violence were seen. The body was later identified by her son to be that of Beryl Brown. The body was later removed to the Black River Hospital, where the body was pronounced dead by Dr. Andre Hamilton, and later removed to the Morgue for Post Mortem Examination.

Post Mortem Examination was ordered by Mr. Melvin Harris, Justice of the Peace for the parish of St. Elizabeth, after a reported was submitted to him.

On Friday the 11th day of January 2002, about 3 p.m. Paul Salmon identified the body of a female, adult human being to Dr. Hamilton, in my presence to be that of his late mother Beryl Brown.

Dr. Hamilton then performed a post-mortem examination of the body. The body was dissected, however no viscera was taken. The doctor is of the opinion that the cause of death is due to heart attack.

Burial Order was issued to Paul Salmon and the body was then handed over to him for burial.

Submitted for you information please.

Sign.....

Constabulary Station
Port Antonio
Portland

February 15, 2003

S.O. i/c
Port Antonio

Re: Sudden Death of George Henry, age 16 yrs old, student of Titchedfield High School and 12 West St. Portland which occurred on Friday 17th January 2003 about 11:30 a.m.

Reporting that on Friday 17th January 2003 about 11:30 a.m., I was on reserved duty at the station when Mrs. Daisey Henry, age 53 yrs old Higglers of 12 West St. Port Antonio attended the station and reported the Sudden Death of her son George Henry of said address.

From information received deceased and his mother had breakfast at home together that morning. About 7:30 a.m. he left with his friends to the Rio Grande River on a trip. They are Omar Allen and Trevor Shaw, brothers of 10 West St. Port Antonio.

They all went into the river and were swimming when George got into difficulty and drowned before help could have reached him. The body was subsequently found about 40 meters down stream from where he was swimming and taken from the river and placed on the river bank.

As a result of this report Cpl. Pepper of the Scene of Crime Unit and myself visited the scene. The body was examined for marks of violence by both of us and none was found, hence no foul play suspected. Cpl. Pepper also photographed the body.

I then caused the body to be removed to the Port Antonio Hospital where the body was pronounced dead by Dr. Orion and then removed to the Mizpah Funeral Home for storage and Post Mortem Examination.

Statements were collected from Omar and Trevor and submitted to Ms. Hazel Greene, Justice of the Peace for the Parish of Portland who ordered a Post Mortem Examination. The order was served on Dr. David Brown late that day for Post Mortem on February 14, 2003.

On Wednesday 14th February the Post Mortem was held at the Mizpah Funeral Home. The body was identified by Ms. Daisey Henry mother of the deceased in the presence of Dr. Brown and myself. Dr. Brown then proceeded to do the Post Mortem, no viscera was taken. He then concluded that death was due to Asphyxia caused by excess water in the lungs.

The body and burial order was then handed over to Ms. Daisey Henry for burial.

This report is submitted for your information and further action. Kindly find enclosed the following documents;

Report
Officer Statement
Witness Statement
Post Mortem Order Form
Coroner Certificate
Post Mortem Examination Report

Signed
Date

NAME:

AGE:

OCCUPATION:

ADDRESS:

Onthe.....of.....
.....2.....about.....I attended a Post Mortem
Examination at the Spanish Town Funeral Home.

This Post Mortem was performed by Dr.....and
was held on the body of.....whom I
identified in the presence of the Police and the Medical Officer to be that of
my.....

On conclusion of the Post Mortem, I was informed by the Doctor that death was due
to.....

On.....the.....of.....
I gave this statement to the Police, it was read over to me and I signed my name to it to be true and
correct.

Sign.....

Date.....

This statement consisting ofpage(s) each signed by me is true to the best of my
knowledge and belief and I make it knowing that if is tendered in evidence I shall be liable to
prosecution if I have willfully stated in it anything that I know to be false or do not believe to be true.

Sign.....

Date.....

Taken by me thisday of2.....pm at the

The statement was read over to/by the maker who indicated that he understood. The declaration
was read over the maker who signed both the Statement and Declaration as true to the best of
his/her knowledge and belief.

Sign.....

Date.....

COUNTERFOIL

To be completed by Coroner, Justice of the Peace or Officer or Sub Officer of the Constabulary who issued the order to bury and to be retained by him.

Registration
District.....

Name of
Deceased.....

Age.....* Date of
Death.....

* Place of
Death.....

Post Mortem Examination
made by

Cause of
Death.....

Order given to.....

at.....

Date.....

- Or finding of body

Part A
NOTIFICATION TO REGISTRAR

This portion of the form must be sent by the person who signs the Order for Burial to the Registrar of Births and Deaths of the district in which the death took place or in which the body was found.

To the Registrar of Births and
Deaths.....District

Name of
Deceased.....

Age.....* Date of
Death.....

Place of Death.....

Post Mortem Examination Made by.....

Cause of
Death.....

I the undersigned, hereby give notice that I have today signed an order for the burial of the above named deceased and given the same

Order

of.....(Address)

Date.....

Signed.....

Qualification.....

- Or finding the body
- Write "No P.M." if no examination made

Note:- Form of order for burial to be delivered by a Coroner, Justice of the Peace, Officer or Sub-Officer of Constabulary to the person causing the body to be buried (Section 33 (2)).

Form O
THE REGISTRATION (BIRTHS AND DEATHS) LAW

PART B

ORDER OF BURIAL

This portion of the form, with Part C attached must be delivered to the Person effecting the Burial (see back). The burial may be stopped if it is not so delivered.

Name of Deceased.....Age.....

* Death took Place }
* Body was found } at

in the parish of.....on.....2.....

WHERE NO POST MORTEM EXAMINATION IS HELD

Whereas it appears to me after investigation of the circumstance of the death of the abovementioned deceased that no circumstance of the death was such as to require the holding of a Post Mortem Examination under the Coroner's Law, I, the undersigned, DO HEREBY AUTHORISE THE BURIAL of the body of the said deceased.

(Signed).....

Date.....2.....*Qualification.....

WHERE A POST MORTEM EXAMINATION IS HELD

I the undersigned, having directed that a Post Mortem Examination of the body of the above named deceased be made, under the Coroner's Law, by.....

(Name of Medical Practitioner)

of.....and such examination having been
(Address)

duly made on.....2.....DO HEREBY

AUTHORISE THE BURIAL of the body of the said deceased.
(Signed).....

Date.....2.....*

Qualification.....

* Delete whichever does not apply

This Order must be signed by a Coroner, a Justice of the peace, or an Officer or Sub-Officer of the Jamaica Constabulary.

THE REGISTRATION
(BIRTHS AND DEATHS)
LAW

PART C

Notification of Burial

This portion of the form must be detached by the Person effecting the Burial and By NO ONE ELSE and sent to the Registrar of Births and Deaths of the district in which the death took place or in which the body was found.

To the Registrar of Births and

Deaths

District.....

This is to notify that the body

of.....

who died*
whose body was found on.....

.....2.....

At.....

Was buried on.....2.....

In the

.....

(Signature).....

Date.....

* Delete whichever does not apply

Having reason to believe tht death may have been caused or accelerated by poison I have		
Placed the following substances in separate	which I have carefully	POST MORTEM EXAMINATION RECORD
Stoppered and secured and handed to		
For transmission to the Government Analyst at	I hereby report that on	day of
a.	2	I viewed and examined the body of
b.		in the parish of
c.	and have noted the following particulars after careful enquiry and examination	
d.	PARTICULARS OF ENQUIRY	
e.	a. When, where and by whom	
	The body was discovered	
Information obtained respecting the		
History and symptoms observed before		
Death	b. The position of the body	
	When discovered and its	
	surroundings	
SUMMARY OF OPINION AS TO THE CAUSE OF DEATH		
From the above mentioned information and appearance I am of the opinion the		
	c. If the body had been moved	
	The object thereof and by whom	
	caused	
(signed).....		
D.M.O.		
	d. The name, address, calling	
Place	sex, age and colour of the	
	deceased	

e.	The name, calling and address Of the person identifying the Body	The particulars that I have been able to ascertain by enquiry and external examination of the body being insufficient to enable me to determine for legal purpose the cause of death such dissections as were necessary and have observed and noted the following Appearance
		c. 1. The head, brain, spinal Cord, organs of special
PARTICULARS OF THE EXAMINATION		
f.	The time and place of the examination And the number of hours after Death	
		2. The Thorax and contents
g.	The result of the examination of The position of the clothing Or covering and of the external Appearance of the body with Special reference to any marks Or signs of violence or injury	
		3. The abdomen and contents
		4. The extremities

PERSONAL DESCRIPTION

INTRODUCTION

Police circulates every day descriptions of persons wanted or missing throughout the world. In some cases the descriptions are good and give an accurate "world picture" of the wanted or missing person. Others are hardly worth circulating because so much detail is lacking that it could be the description of a hundred and one others. Some descriptions are valueless and show that generally people only see and note things that either interest them or are brought to their notice in one way or another.

In view of this, it is essential that Police are trained to make accurate and detailed descriptions. To do this they must be taught to observe properly. Once an Officer is able to make a description of someone he has seen, he will find it easier to assist and guide a witness from whom he is taking a description of another. This latter (taking a description from a witness) will be dealt with later in your notes.

The first thing to remember is that it is useless to look at a person casually, as by so doing much important detail will be overlooked. A proper sequence of examination must be followed in order to save time and miss nothing. The sequence of examination is to commence looking from the top of the head and working down to the soles of the boots. In the process of doing so the eyes will range from right to left and nothing should be missed. This is the normal procedure an Officer follows when inspecting a subordinate on parade.

The sequence outlined above will not necessarily follow the order of various Police Forces official descriptive forms, but once seen an officer will remember detail such as colour of eyes, hair, etc. and he will be able to complete the form. Indeed, he must be trained to remember such detail.

From the foregoing it will be seen that to ensure you are able to describe people properly you must be well trained. Exercises will have to be carried out where subjects are put up for description until it is definite that you are proficient.

Naturally, before subjects are put up for description, personnel must be schooled in the method of examining a person and taught exactly what to look for and how to describe various parts of the body. In practice the items to note are personal details such as - full name, including Christian names, aliases and nicknames if any, the home address, if known, and last address, also race, Nationality, occupation and last known place of work. (People very often even though wanted, carry on in the same type of work).

DETAILS OF DESCRIPTION:

Sex: Male/ Female: Can usually be granted from the name, but not always e.g. Carol, Shirley, Pat etc.

Age: Not always easy to estimate. Probably best to compare with friends or relatives whose age you know. Women are probably more difficult than men to estimate age as, unlike men, they have a tendency to try to look older when young and younger when older. The age estimated will obviously be an approximate one and is therefore known as (e.g. 35 yrs. approx.)

Build: Can be described from one of the following groups.

Proportionate: Should be self explanatory, where every portion of the body looks in proportion to the others.

Well Built: inclined to be heavy but not Stout, Corpulent or Thick Set, Slim, Slouches, Stoops, and Round Shouldered. (See C.I.B. 7).

Height: Estimating the height of someone else should not present any real difficulty. The best method is to make a comparison with yourself or someone near an object. This is shown as (e.g. 5 ft. 10 ins. approx.) (See Taking Descriptions from Witnesses)

Hair: Type - Short or long, style of dressing i.e. parted, unparted, brushed back etc., etc. Whether turning grey, bald or going bald, receding, curly or wavy, frizzy, straight, sideboards.

Women's' hairstyles are more difficult to describe and can be changed easily. Styles usually have a name, if not, describe.

Dyed Hair - Both sexes dye their hair nowadays (not all by any manner or means) this can be detected when it is noted that the colour near the root is different from that on top. When noted mention the fact that hair is dyed.

This can generally be noted in a different way, black, dark brown and brown hair usually go with brown or hazel eyes whereas fair, blond or auburn (red) hair more often go with blue or grey eyes. A study should be made of hair colours.

Forehead: Height: Medium, High, Low
Width: Broad Narrow
Slope: Prominent, Vertical, Receding, Bulging.

N.B. Scars, wounds etc. should be noted and described. (e.g. Two-inch scar, bright red, right eyebrow to right temple). Prominent wrinkle should also be noted.

Eyebrows: Medium, Thin, and Sparse
Thick, Bushy, Meet in Center,
Arched.
Plucked, Penciled

Eyes: Colour: (The main colours are black, brown blue grey with varying shades of the latter three)

The shape of the eye depends on the eyelids. Damage to one or both eyes to be noted - cast, blind, missing, glass eye etc., and of course state which eye is affected.

If spectacles used, describe them, type of frame, bi-focal or otherwise. Whether used habitually for reading and/or long distance only.

Eyelashes should be mentioned if especially long. Setting of eyes: Medium: Close: Wide apart.

Ears: Sizes - Medium, small, large.

Protruding - Close to head, lobe less or large lobes. The ear may appear square, triangle, and round, note this shape.

Any damage - Note, e.g. cauliflower, part missing, etc.

Nose: Size - Medium, small, large.

Width - Medium, flat or broad.

Shape - Straight, hooked, turned-up, concave, roman.

Damage - Broken, bulbous.

Lips: Size - Medium, thick, thin.

Shape - Short upper, long upper, protrude, lower protrudes.

Damage - Hare lip.

Mouth: Moustache - Colour, describe thickness, shape, etc.
Size - Medium, small, large.

Habitually open, close shut (This latter usually goes with thin lips).

Teeth: Appearance - Clean, discoloured, decayed, fillings, gaps, gold crown, etc. In the latter four, state where and which jaw.

Shape - Widely spaced, regular, irregular, overlap, buff.

Dentures - Because of modern dental practice, these are not always easy to detect as such. Obviously if they cannot be seen as dentures, they will be described in the normal manner.

Chin: Shape - Round, pointed, square, protruding, receding, double (this latter usually with people inclined to degrees of obesity).

Unusual Features - Cleft dimple.

Beard, colour, describe shape, thickness, etc.

Face: Shape - Round, square, long, oval.

Features - Wrinkled, fat, sunken cheeks, high cheekbone.

Expressions - Pleasant, scowling, vacant.

Head: Round, bulging back, domed, egg-shaped, etc. etc., described as seen using local expressions.

Complexion: As described in Territory

Marks: Scars, birthmarks, moles, warts, tattoo marks, etc. Describe exactly where they are. (Usually only those visible when clothed, but include those not visible when clothed if known).

Voice: Accent and dialect melodious, gruff, high-pitched, deep, loud, soft, effeminate, affected, lisps, stammer, other impediments, difficulty in pronouncing certain words or letters.

Dress: Describe clothing in detail, missing nothing. Get to know texture and type of cloth and patterns. Styles of clothing vary from place to place throughout the world and the modern trend is towards change. Keep abreast of these changes. Always use local terms when describing clothing:-

Jewellery: Described in detail and where worn.

Unusual Feature: Mannerisms and or habits (e.g. pulls lobe or right ear with right index finger and thumb frequently), nervous cough, habitual use of certain words and or phrase, peculiar gait or walk, etc. are life long habits and cannot be changed. A person wanted or missing may disguise himself, nowadays plastic surgery can completely change the contours of the face, there are other simple methods of disguise. These naturally enough make identification difficult or impossible, but habits, because they are habits, are done without thinking and cannot be eradicated and are therefore essential to a description. Accomplishment such as process at particular games, piano playing, conjuror, etc. is good points.

Drinking and smoking habits are only worth mentioning if out of ordinary, i.e. asks for uncommon brand, habitual smoker or drinker, etc.

Fingers missing, arm, leg, or part missing say where

PLACE FREQUENTED, ASSOCIATED ETC:

Only worthy of mention if the subject really spends a great deal of time in such places or with such people (Bars, race track, dance halls, ice rinks, etc.) (Bookmakers, cricket players, prostitutes, etc.)

GENERAL:

It will be appreciated that this is quite a wide subject and this treatise will serve only as a guide. The nomenclature use in describing the various parts of the body are fairly full but there are others, there will be a local term for some of these, when they exist use them.

Remember you are building a 'word picture' of someone, therefore be as accurate as possible and describe as you see.

No mention has been made of such things as Tribal Markings and other characteristics, which may be common, place in some Overseas Territories. Naturally enough when these exists they will be described, in some cases they are excellent points for identification.

The Appendix to these notes is a guide, as to how to estimate the size of various parts of the body (e.g. medium, small, large) and also to recognize shapes.

The use of the word 'Normal' in a description is deprecated as more often than not this is used for want of a better word and very frequently as a cover up for something which has not been noticed.

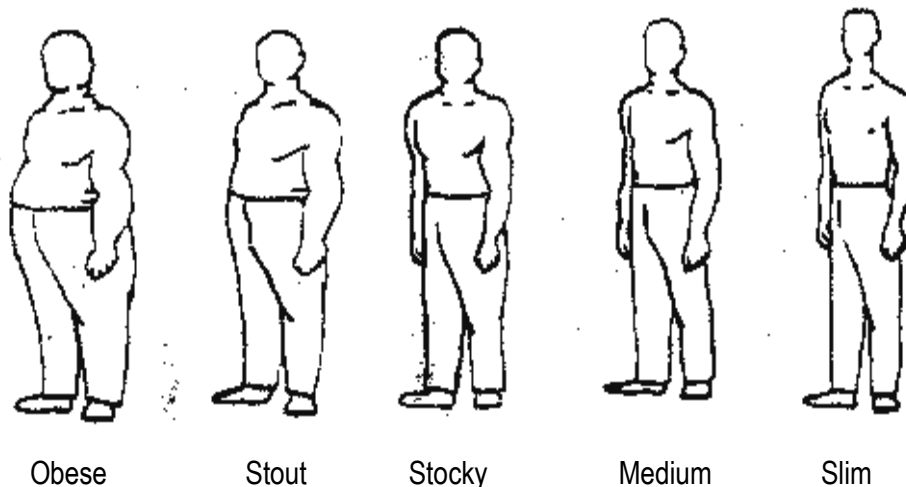
TAKING A DESCRIPTION FROM A WITNESS:

Someone who is good at making a description can really do this. Follow the sequence outlined earlier. Use photographs and or drawings so that witness can point out items of resemblance (e.g. similar nose, ears, mouth, etc.). N.B. photographs of suspected person(s) **must not** be used.

When taking the age and height some witnesses will no doubt know both, therefore they will be exact and not approximately as when estimating either of these. In these circumstances, it is possible for witness to say 39 years but looks either older or younger, (if such is the case). This is important and will be shown.

Add CIB 4 and 7 forms

Add descriptive diagrams



Description Techniques

The investigator makes descriptions to convey to others either his own observations or the observations of witnesses as reported to him. Such descriptions will normally be written or verbal, but may include signs, gestures, obstacles, and other means of imparting information. It is essential that the investigator be proficient in both written description (for report writing) and verbal description (for appearances as a witness in legal proceedings)

Persons

Every individual has some distinguishing characteristic or combination of characteristic which sets him apart from other persons. These distinctive features are the most important part of the description of a person.

It is important that the investigator be able to describe persons so completely and accurately that others will be able to readily recognize the individuals described. As in the case of observation, accurate description is facilitated by following a pattern which normally proceeds from general characteristic to specific characteristic.

General Characteristics

The following commonly accepted and understood words, terms and methods are recommended for use in describing general characteristics of a person.

Sex

Race – Caucasian, Negroid, American, Indian, Mongolian or Malayan

Height - Exact or estimated, when the height is estimated, this should be clearly indicated. A convenient method of estimating heights involves simply comparison with own height. For purposes of simplification, estimated height may be stated in 2-inch block, such as 5' 8" to 5' 10", 5' 10" to 6'

Build (including posture)

General – Large, average or small

Specific - Obese, (very stout), stout, stocky

Medium or slim (slender).

Posture – Straight (erect) medium or stooped.

Females – In describing the build of a woman, the investigator should bear in mind that, while the descriptive terms listed above are equally applicable and may be employed, there are basic differences in build and body proportions between the male and the female figures. The female figure is normally smooth and rounded, while the male figure tends to be angular with distinct muscular definition. An important part of the description of the build of a female is the appearance of the bust, which should be described as flat medium or heavy.

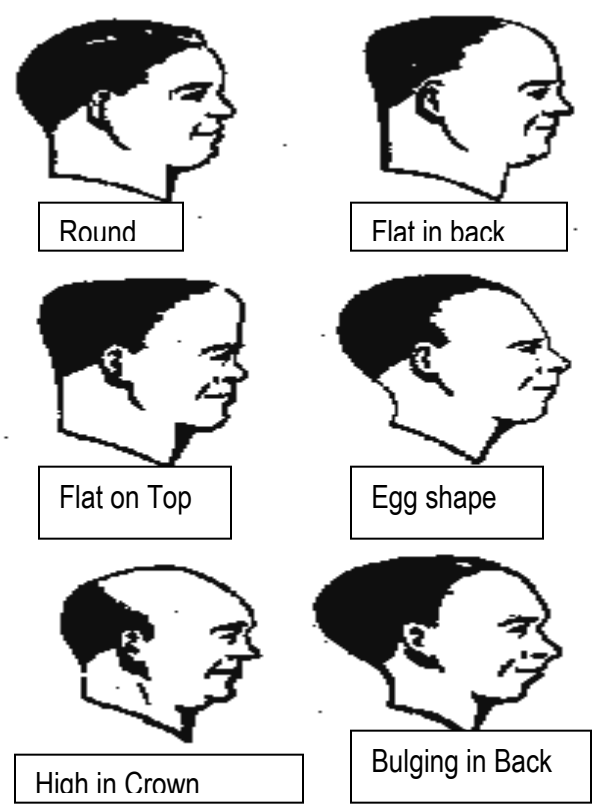
Weight – Exact or estimated. When the weight is estimated, this should be clearly indicated. As in estimating height, a convenient method for estimating weight is by comparison with the investigator's own weight. Estimated should be stated in 10 lbs increments such as 160 to 170 lbs, 170 to 180 lbs.

Age – Actual or estimated, when the age is estimated this should be clearly indicated. For convenience, age may be estimated in multiples of 5 years. In describing a person’s age, it may often be of particular importance to indicate not only the actual age but also the general age indicated by appearance.

Complexion – Pale, fair, dark, ruddy, Sallow (sickly-pale) or florid (flushed).clear, pimpled, blotched, freckled, pockmarked, etc. in the case of a female the description should include makeup habits, such as none, light, heavy or other applicable term or phrase. For persons of the Negroid race, complexion should be described as light brown, medium brown, dark or olive.

Specific characteristics - in the interest of thoroughness and uniformity, the investigator should pattern both his observation and his description of the specific characteristic of a person along systematic lines, normally beginning with the head and progressing downward.

The following words, terms, phrases and methods are recommended for standard use in describing specific personal characteristic.



Head Shapes

Head

Size and Shapes – Large medium, or small, long or short; broad or narrow, round, flat in back, flat on top, egg-shaped, high in crown, bulging in back, etc.

Profile- Divide mentally into three parts or sections. Each third is then described in its relationship to the whole and in separate details. Except in the case of peculiarities, the description of the profile is not normally as important for identification purposes as is the description of the frontal view of the faces.

Face – Round, square, oval, broad, or long (as seen from the front).

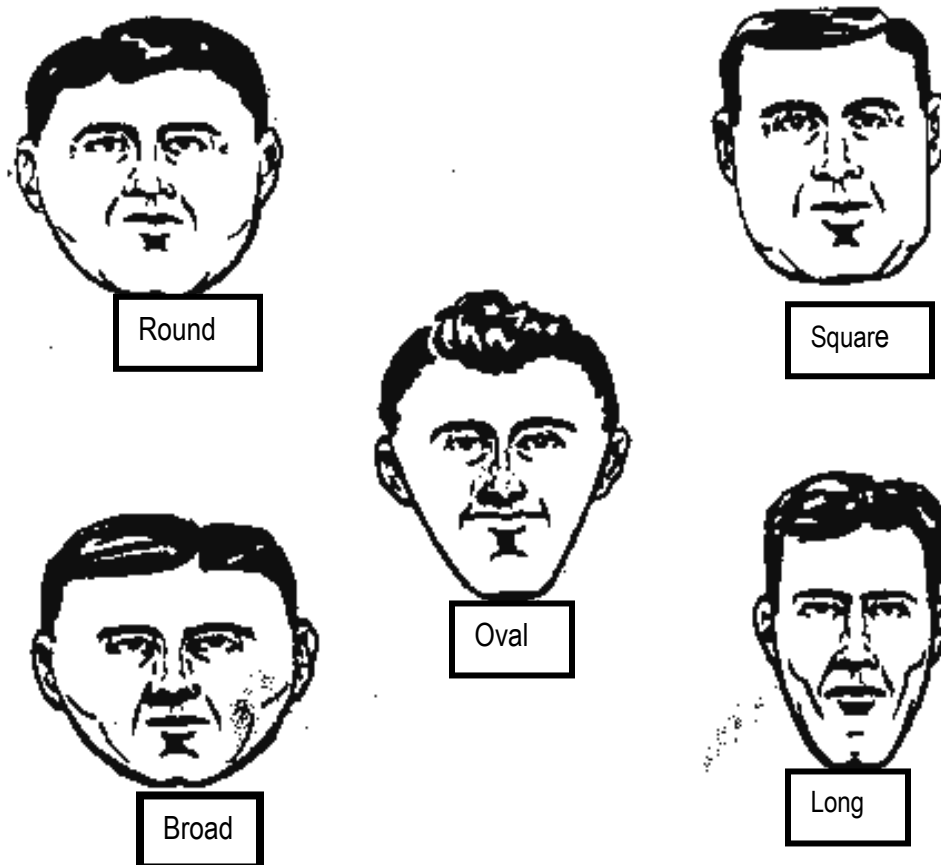
Hair – Colour as blond (light or dark) brown (light or dark) red (light or dark) sunburn, grey, streaked with grey, or white. In the case of bleached, tinted, or dyed hair, both the artificial and the natural colour should be indicted when possible. Density as thick, medium thin or sparse. Hairline as low, medium, receding, receding over temple etc. Baldness should be described as complete, whole top of head, occipital, frontal, receding, or the appropriate combinations of types. Hair type as straight, wavy, curly, or briskly. Hair texture as fine, medium or coarse. Appearance as neat, bushy, unkempt, oily or dry. Hair style as long, medium, or short, parted on left, parted on right, parted in center, or not parted. Current descriptive term of hairstyles which are readily and widely understood should be used as appropriate. Wigs, toupee, hair pieces should be described carefully and be detailed.

The careful observer can often determine whether a person is wearing a toupee or other hairpiece from such indications as difference in hair texture, colour, density, types or appearance. Furthermore, the arrangements of false hair will often be too nearly perfect and the edge of the hairpiece will often be evident upon close scrutiny.

Forehead – High, medium, or low. Slope as receding, medium, vertical, prominent or bulging. Width as wide, medium, or narrow, wrinkle or age lines or none, light, deep, horizontal, curved, up or down or vertical.

Eyebrows – Colour, including any difference from hair colour. Slant from center (horizontal, slanted up slanted down) line as straight or arched, separated or connected. Texture as heavy, medium, or thin. Hair short, medium, or long, plucked, penciled,. In describing females, it is often important that both the natural and the artificial appearance and contour of the eyebrows be indicated.

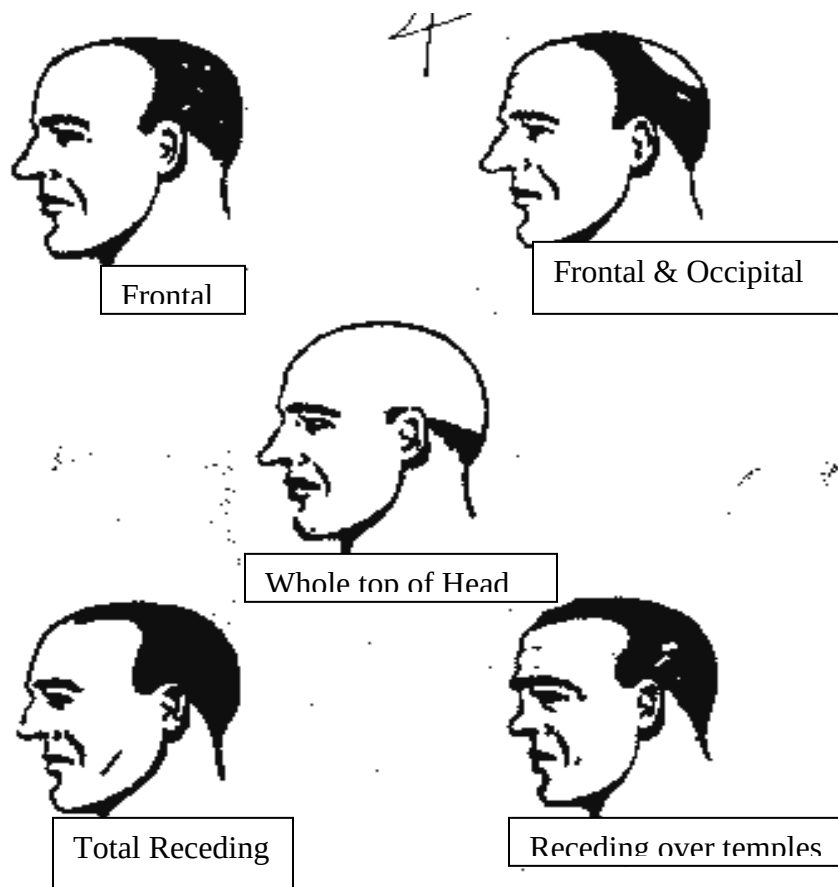
Eyes- Deep set (sunken), medium or bulging. Separation as wide, medium or narrow. Crossed, watery, red or other noticeable peculiarity. Colour of iris. Eyelids as normal, drooping, puffy, red, etc. eyelashes as to colour, long, medium, or short straight, curled or drooping. Eye shadow as none, light, dark, or irregular. In describing females, the normal eye makeup habits should be noted as to colour, type and extent.



Shape of Faces

Eyeglasses – Eyeglasses should be described in detail to include style and colour of frames, types and colour of lenses and method of attachment to face. Contact lenses may prove difficult to observe. However, the careful observer will note such indications of the presence of contact lenses as watery eyes and excessive blinking. Special types of eyeglasses, such as monocles, pince-nez, and bifocal should be carefully noted.

Nose - Length as short, medium or long. Width as thin, medium or thick. Projection as long, medium or short. Base of the nose as turn up, horizontal or turned downward.



Types of Baldness

Chin Shapes and Characteristics



Jutting or Protruding



Receding



Normal



Small or Pointed



Large or Square



Double



Dimpled or Cleft

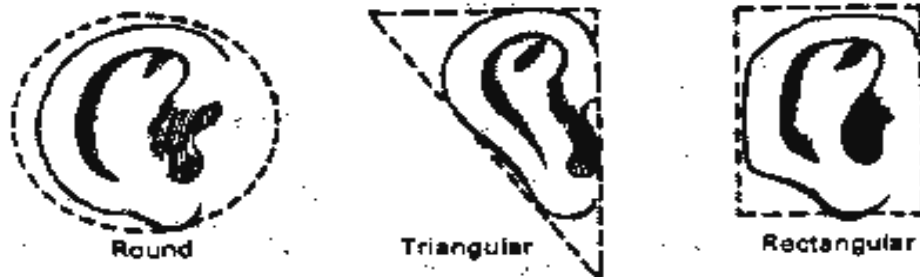


Long Pointed



Small-Short

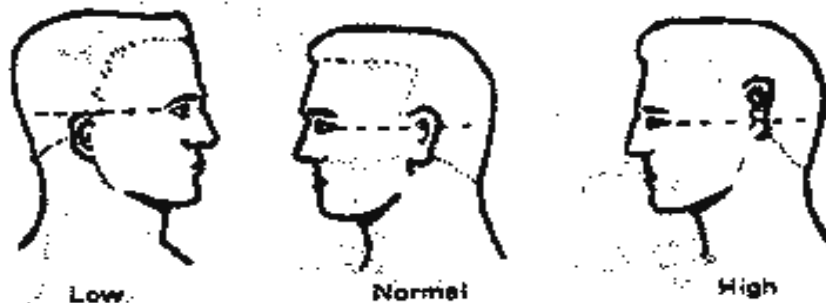
Shapes of Ears



Ear Lobe Characteristics



Setting of Ears



Hearing aids – Hearing aids should be described in details as to type (such as inside the ear, behind the ear, with cord, cordless, etc.), color and ear in which worn.

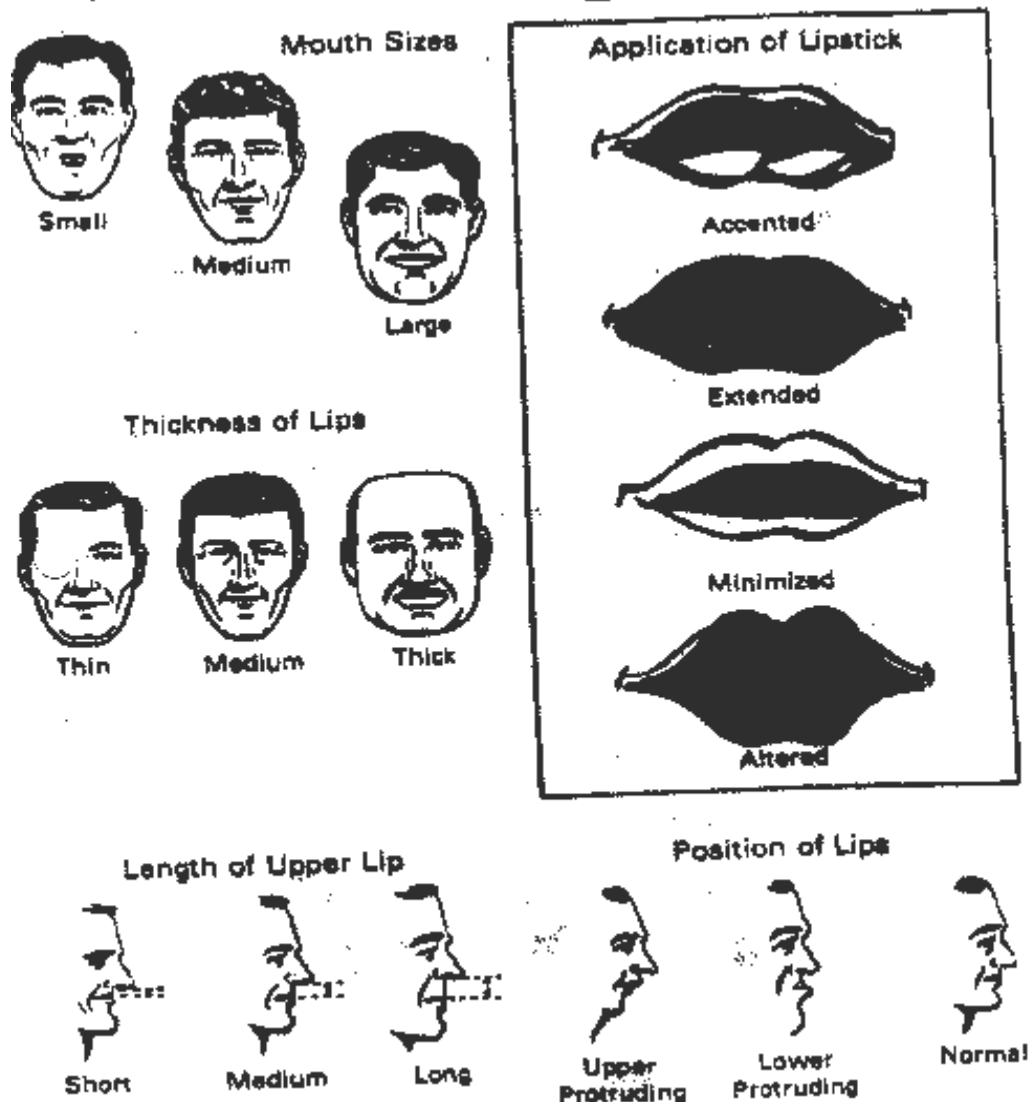
Cheeks – Full, bony, angular, fleshy, sunken or flat. Cheekbones as high (prominent), medium or receding. In the case of women, makeup habits should be noted.

Ear – Small, medium or large. Shapes as oval, round, triangular or other appropriate term. Lobe as descending, square, medium or gulfed. Separation from the head should be described as close, normal, or protruding; and setting (based on a line extended horizontally back from the outside corner of the eye, which crosses the normally set ear at the upper third) should be indicated as low, normal or high.

Legs - Long, medium, or short in comparison to rest of the body (average or medium legs combined with the hips constitute about half the body length); straight, bowed (bandy), or knock-kneed; musculature as slight, medium or heavy.

Feet – Small, medium or large in relation to body size. Deformities and peculiarities, such as pigeon-toed, flat footed, clubfooted, etc. should be carefully recorded.

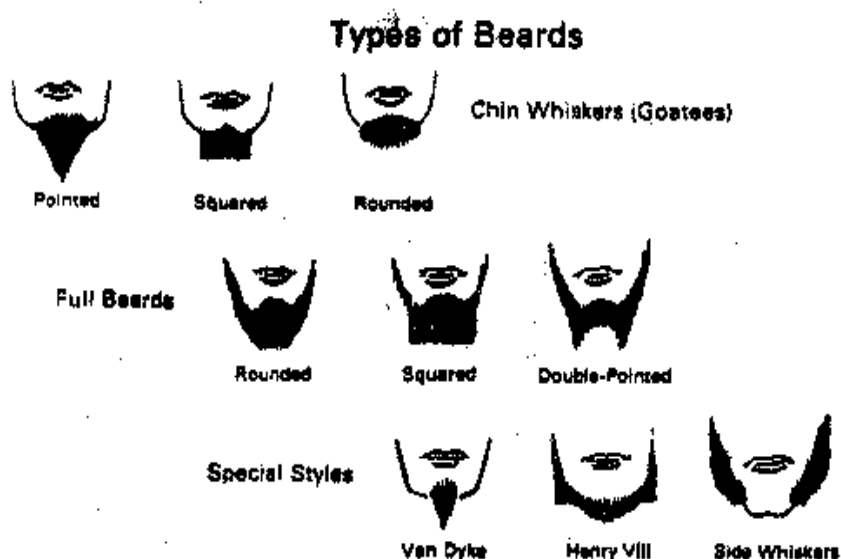
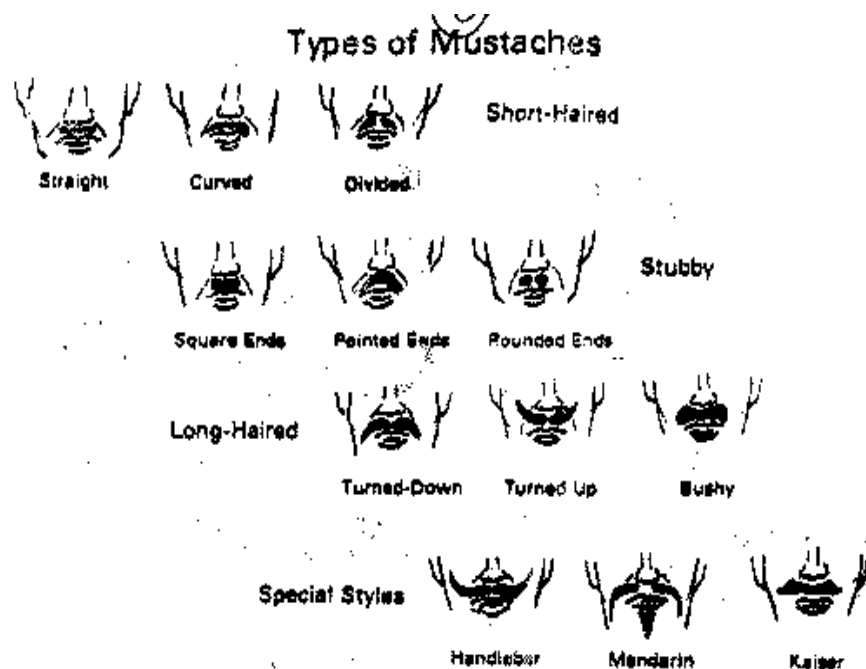
Marks and Scars – Such identifying marks as birthmarks, moles, warts, tattoos, and scars should be clearly described as to size, color, location on the body and shape.



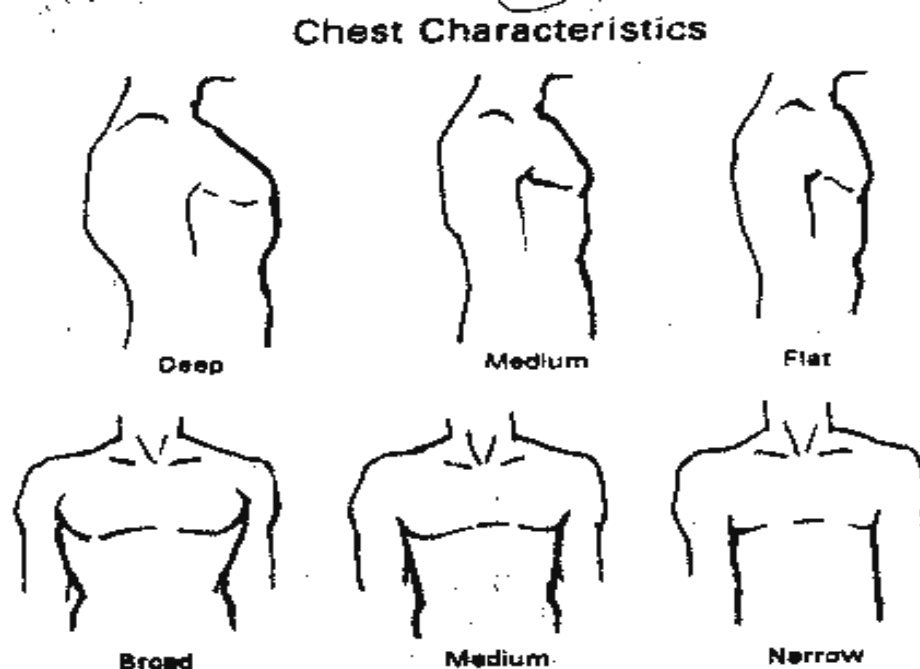
Speech - The tone and manner of a person's speech may often be a very important aspect of his complete description. His habitual tone should be indicated as low, medium, or loud; soft or gruff; or by other descriptive qualities. His manner of speaking should be indicated as cultured, vulgar, clipped, fluent, broken English, with accent (identified whenever possible) or non-English speaking (language specified when possible). Such peculiarities as stuttering, nasal twang, pronounced drawl, or a mute condition should be clearly indicated and explained.

Dress - Since a person may change clothing he was wearing, its value for descriptive purposes is limited. Noticeable habits in manner of dress, such as neatness, carelessness and preferences of style should be indicated. Clothing worn by a person at the time of an offence or when last seen should be described in detail, such as military (service or fatigue), civilian, mixed military and civilian, colors (s) and conditions (clean, soiled, torn, ragged, greasy, or bloodstained).

Neck - Short or long, straight or curved; thick or thin. Adam's apple as large (prominent), medium or small.



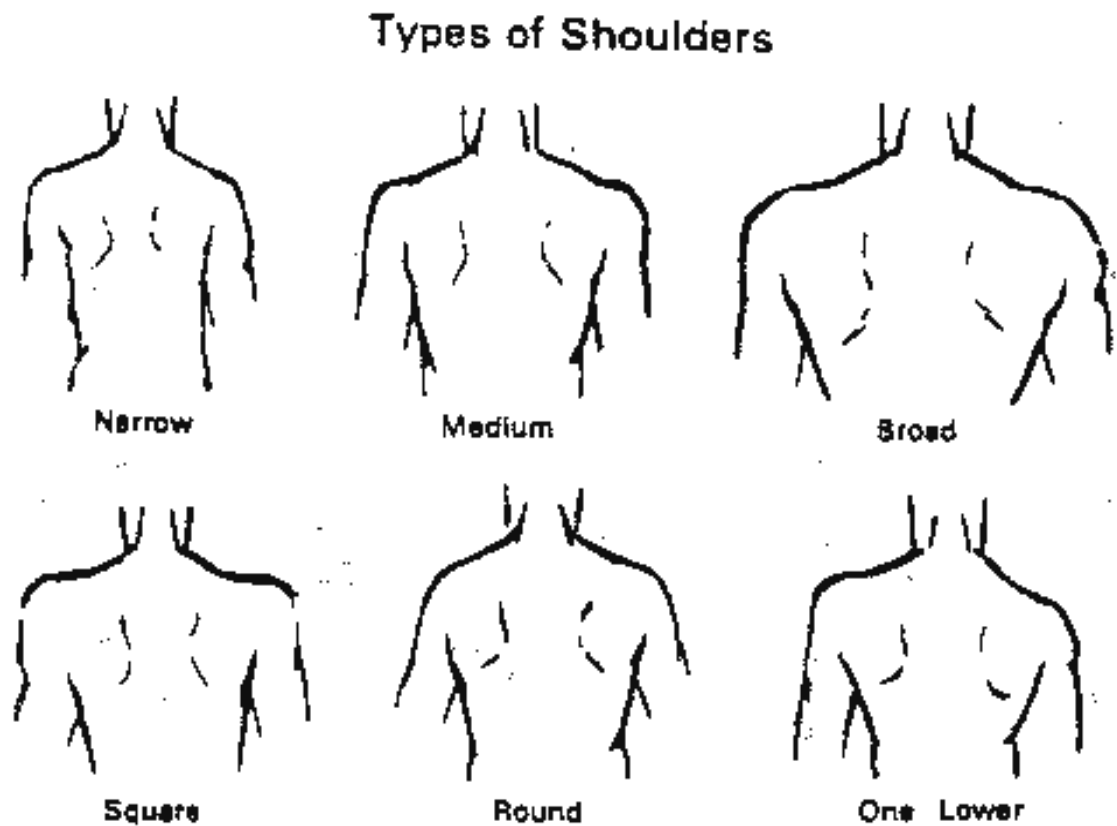
Arms - Long, medium, or short in comparison to rest of the body (average or medium arms terminate with the heel of the hand about halfway between the hips and the knee when the arms are hanging naturally). Musculature as slight, medium or heavy.



Hands and Fingers

Hands – Small, medium or large in relation to the size of individual. Peculiarities should be noted in detail.

Fingers- Long, medium or short, thin, medium or thick (stubby). Deformities, such as missing fingers, disfigured nails, crooked fingers, etc. should be carefully indicated.



Trunks

Overall – Long, medium, or short (in relation to rest of the body)

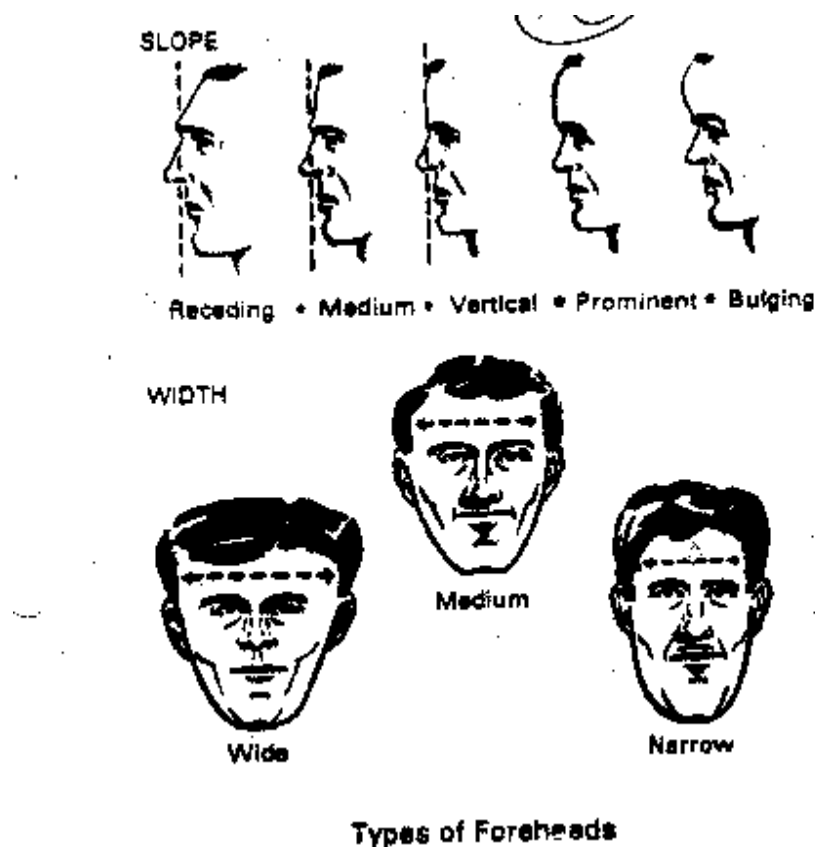
Chest – Deep, medium or flat, as seen in profile, broad, medium, or narrow, as seen from back to front

Back- Straight, curved, humped, bowed, etc. as viewed in profile, straight or curved, as view from the rear.

Waist- Small, medium, or large

Abdomen – Flat, medium or protruding.

Hips- Broad, medium, or narrow, as seen from the front; small, medium, or large as seen in profile. In this connection, the observer should keep in mind the basic difference between male and female figures as discussed earlier in this section



The root of the nose (juncture with the forehead) should be described as flat, small, medium or large, and the line of the nose should be described as concave, straight, convex (hooked), roman or aquiline. Nostrils should be indicated as medium, wide or narrow, large or small, high or low round, elongated or flaring. Peculiarities, such as broken, twisted to right or left turned up, pendulous, hairy, deep-pored, etc, should be carefully noted and reported.

Mouth – Size (as viewed from front), small, medium or large. Expression as stern, sad, (corners drooping), pleasant or smiling. Peculiarities, such as prominent changes made when speaking or laughing, twitching, habitually open, etc., should be indicated.

Lips – Thin, medium, or thick (as viewed from front); long, medium, or short (as viewed in profile). Position as normal, lower protruding, upper protruding, or both protruding. Color, appearance as smooth, chapped, puffy, loose, compressed, and tight (restricted over teeth) moist, dry, etc. Harelip and other peculiarities should be carefully noted. In the case of females, colour, type and extent of lipstick should be described. In this connection, the careful investigator will be alert for the use of lipstick to alter or accent the natural appearance of the lips.

Mustache and Beard – Colour, including any difference from hair colour. Style and configuration, and state of grooming (unshaven).

Teeth – Colour, receding, normal, or protruding, large, medium, or small, stained, decayed, very white, broken, false, gold flared, uneven, missing, or gaps between teeth.

Chin – Normal, receding, or jutting (as viewed in profile) short, medium, or long (as viewed from the front) small, large, pointed, square, dimpled, cleft, or double.

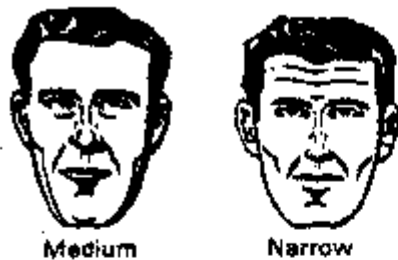
Personal Appearance – Neat or untidy, well groomed or unkempt, refined or rough.

Mannerism and Habits – Often the peculiar mannerism or traits of a person will constitute the major or key parts of his description. This investigator must be alert to record in description such characteristics as follow:

- Feminine traits in men and masculine traits in women.
- Peculiarities in walking, moving or talking
- Outward emotional instability, nervousness or indecision
- Type of companion preferred
- Subconscious mannerism, such as scratching the nose, running the hand through hair, pulling on an ear, hitching up the pants, jingling keys or flipping coins.
- Facial tics, muscular twitches, and excessive talking with the hands.
- Kinds of recreation preferred or hobbies pursued
- Jewelry worn and types of jewelry preferred.

Types of Noses

WIDTH



Medium

Narrow

PROJECTION



Long

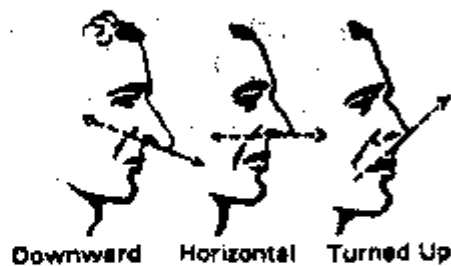
Medium

Short



Wide

BASE



Downward

Horizontal

Turned Up

LINE



Aquiline

Roman

Convex

Straight

Concave

Teeth—Color, receding, normal, or protruding; large, medium, or small; stained, decayed, very white, broken, false, gold flared, uneven, missing or gaps between teeth.

Chin—Normal, receding, or jutting (as viewed in profile); short, medium, or long (as viewed from the front); small, large, pointed, square, dimpled, cleft or double.

ROOT



Large

Medium

Small

Flat

JAMAICA CONSTABULARY

Form C.I.B.

Division

To
The Criminal Record Office,
Criminal Investigation Branch,
P.O. Box 482,
Kingston

Date

In every case of conviction for any felony or indictable misdemeanour this Form must be completed in respect of each person and forwarded to the above address without delay.

PARTICULARS OF PRESENT CONVICTION

Sentence

Court Date

Offence

Where offence committed

Name of person arresting

DESCRIPTION OF PERSON

(1)
Name, Aliases or Nick-
names.

Address

Place and date of birth

C.R.O. No. (if known)
[See (3) 1]

Height ft in Occupation Birth

Complexion Face

Hair Hair on Face

Head Forehead

Eyebrows Eyes

Nose Mouth

Lips Teeth

Chin Ears

Hands Voice

Marks

Dress

Unusual features and Deformities

(2)
Peculiarities of gait, etc.,
Speech or Figure, Known
Habits or Weaknesses and
any other information

Names and addresses of
Relatives, giving relation-
ship.

(3)
Number of previous convic-
tions (if known). Where
C.R.O. number unknown
Give date of last convic-
tion

(4)

**Full Details of Method used
in committing Offence**

In case of larceny, housebreaking etc. all the points (a) to (g) should be answered, if known. In all cases in which there is fraud, the false pre-tence and the character assumed by the suspect, together with the replies to (d) and (e), should be fully described.

(a) Class of person and property attacked (e.g. mansion, hotel, villa, etc.)

(b) Mode of entry, including manner of approach to premises.

(c) Means used (tool, etc)

(d) Date and time of day (including special circumstance, e.g. week-end, church time, market day, etc.).

(e) Character assumed by criminal, story told and description of confederate, if any (giving name and C.R.O. number if known)

(f) Mode of travelling or removal of property (i.e., bicycle, van, cart, etc.).

(g) Peculiar act (poisoning dog, partaking of food, drink, etc.).

(5)

How and to Whom he usually dispose of stolen property.

(6)

Usual associates other than those at 4 (e) giving C.R.O. numbers, if know, and addresses.

(7)

Districts and Places usually frequented by the person.

(8)

Methods used in committing previous offences, if known. Please give this as fully as possible.

(9)

Names and addresses of persons who stood security for accused's Bail.

(10)

Specimen of handwriting

To
The Criminal Record Office
Criminal Investigation Branch
P.O. Box 462
Kingston

7

Division

PARTICULARS OF A PERSON

WANTED
SUSPECTED (who may be wanted elsewhere)
IN CUSTODY

(Delete as necessary)

Police Station..... C.R. Book No.....Diary No.....

If in custody, date and place of remand or trail.....

WARRANT ISSUED OR NOT?

Particulars of offence for which wanted, suspected, or in custody, giving place where and date when confirmed and modus operandi

If property involved give full description on form C.I.B and attach.

8

Name in which wanted or Charged.....

Registered name and alias

C.R.O. NO..... Supplement A reference (when known).....

Previous circulation in Police Gazette

Place and date of birthOccupation.....

Heightft.....in.....Build.....

Complexion.....Face.....

Hair.....Hair on face

HeadForehead.....

Eyebrows.....Eyes.....

Nose.....Mouth.....

Lips.....Teeth.....

Chin.....Ears.....

Hands.....Voice.....

Marks.....Relatives.....

Unusual Features.....

Dress.....

Places frequented.....

INSTRUCTIONS: Duplicate by inserting carbon. Ascertain the minutest facts under each heading. The smallest thing may lead to detection. Peculiarities are as important as the normal description; if there is suspicion that disguise has been used, say so. Use the Notes on the back of this page to assist witnesses, who seldom tell all they know without careful questioning. Do not copy details from the descriptive for. If a feature cannot be described, the relevant space should be left blank – such expression as usual, ordinary, normal or average should not be used. Do not confine description to the suggestions in the Notes. Specimens of handwriting and photographs are of material assistance.

Date Officer in case Officer incharge.....

(See description guide overleaf)

NOTES

FOR USE IN C.R.O.

Name: Whether known to correct; include nickname and aliases, a married woman, her maiden name also.

Age: Exact date of birth, if ascertainable, otherwise approximate, whether older or younger looking.

Occupation: Present, past or possible

Hobby: Fishing, bird shooting, hunting (wild hogs) etc.

Height: Exact, if known, otherwise approximate; looks taller or shorter

Build: Proportionate stout, corpulent, heavy thick set, thin, slim, well built, military bearing, erect, slouches, stoops, round shouldered.

Complexion: Swarthy, ruddy, fair, sallow, blotchy, pimply, coal black, black, light black, dark brown, brown, light brown, yellow, Indian looking.

Face: Round, oval, long, wrinkled, flabby, fat, thin, high cheek bones, expression-vacant, scowling, pleasant.

Hair: Colour, turning grey, going bald, wavy, permanent waved, straight, curly, frizzy, parted, unparted, brushed back, long, short, how cut, greased, unkept, wear wigs, bleached, dyed.

Hair on Face: Beard, (shape and colour), mouthache, (size, shape, colour, waxed), dark chin, sideboards, whiskers.

Head: Large, small, narrow, square.

Forehead: High, low, broad, narrow, wrinkled, bulging, receding.

Eyebrows: Colour, thick, thin, bushy, plucked, penciled, arched, meet in the centre, sparse.

Eyes: Colour, cast, blind, missing, glass, red-rimmed, long lashes, wears spectacles (for reading or habitual-horn-rimmed, pince-nez, bi-focal, shape of lens or frame), eyelids droop, diseased, injured.

Nose: Large, small, long, short, hooked, irregular, turned up, flat, Jewish, broken, bulbous, broad base, wide or narrow nostrils.

Mouth: Large, small, habitual open, close, shut.

Lips: Thick, thin loose, hare-lip, well shaped, upper or lower protrudes.

Teeth: Clean, discoloured, decayed, widely spaced, irregular, overlap dentures, fillings, gaps, gold-crowned, toothless.

Chin: Dimpled, cleft or doubled, pointed, round, or protrudes, recedes, square jaw.

Ears: Large, protrudes, small, cauliflower, lobules, large lobes, pierced.

Hands: Long, short, broad, long fingers, short fingers, well kept, rough nails, long, short, bitten, dirty, manicured, varnished (colour)

Voice: Accent, gruff, melodious, high pitched, deep, loud, soft, effeminate, affected. Lisp, stammer or other impediment, difficulty in pronouncing certain words or letters.

Marks: (especially those visibly or on the forearms-commence at the top of the head and work downwards) scars, birth marks, moles, freckles, tattoo, deformities amputations, limps.

Unusual features: Mannerisms (such as strokes nose or ear when speaking) nervous cough, habitual uses a particular haze or phrases, peculiar walk (rolling, swinging, slouching) speaks of some particular part of the world or country, of rich relatives, experience, prowess at games: accomplishments (plays piano or other instruments, performs conjuring tricks or acrobats feats) smokes (if a pipe, shape or make, gold or silver brands, brand of tobacco; if cigarettes, brand, chain smoker, makes own, peculiar manner of holding it) ; drinks beer, wine or spirits- favourite brand; associates with prostitute; takes ganja

Places frequented: Dance halls (good or low class), bicycle, race tracks, horse, horse racing, flat race courses, cock-fighting, dirt – tracks, billiard saloons- any brothel, particular bar, class of hotel – uses lounge or bar, gambling dens, cinemas taverns Rastafari huts, balm yards, cross roads.

..... Division.

To:

Police Gazette
Criminal Investigation Department
P.O. Box 462
KINGSTON.

PARTICULARS OF

*LOST
STOLEN
FOUND

PROPERTY.

(Including Animals strayed and missing)

Police Station Crime Book No. Diary No.

Date of Occurrence

Place.....

Date and time reported to Police.....

Owner's name and address.....

.....

Value.....

If property covered by insurance.....

FULL DESCRIPTION OF PROPERTY

The Make, Colour, Registered No. Mechanism, Initials, Marks of identification of all Articles should be given whenever possible.

.....

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.....

.....

Date.....

.....
Sub-Officer in case

*Delete where necessary

THE CRIMINAL JUSTICE SYSTEM

INTRODUCTION

The Criminal Justice system of Jamaica is composed of the Constabulary Force, the Director of Public Prosecution, and the Clerk of the Courts, various courts and the personnel and facilities of the Corrections department. Each of these organizations plays a vital part in the security and welfare of the people. Each of the agencies has their duties and responsibilities but they are all directed toward the overall objectives of protecting the lives and property of the people of Jamaica. In order to better understand how the system operates, it is necessary to look at the goals and objectives of each of the agencies.

THE GOALS AND OBJECTIVES OF THE CONSTABULARY FORCE

The goals and objectives of most law enforcement agencies are quite similar. They are:

- ✓ The preservation of the peace
- ✓ The prevention and detection of crime
- ✓ Protection of person and property
- ✓ Maintenance of good order

The protection of life and property, the preservation of public tranquility and the absence of crime will prove whether or not the police are successful in their duties.

Every member of the Force must realize that his duty is to protect and help members of the public, and when necessary apprehend those committing themselves against the state. He must always be prompt to prevent crime and arrest offenders.

However, the police must look upon themselves as servants and guardians of the general public and as such, must treat all law-abiding citizens **WITH PATIENCE AND COURTESY** irrespective of the citizen's social and political position. Discourtesy or lack of respect will not be tolerated.

GOALS AND OBJECTIVES OF THE DIRECTOR OF PUBLIC PROSECUTION

The overall goals and objectives of the Director of Public Prosecution and the Crown Counsel are the same as those of the Constabulary. However, their duties and responsibilities are:

- ✓ To prosecute the offender
- ✓ To see that persons who have committed crimes are brought before the court and convicted as a result of a fair and impartial trial

The D.P.P. can institute and undertake criminal proceedings against any person before any court other than a court-martial. He can take over and continue any such criminal proceedings that may have been instituted by any other person or authority.

GOALS AND OBJECTIVES OF THE CLERK OF THE COURTS

The Governor General, in each parish for which a Magistrate is appointed appoints the Clerk of the Courts

- ✓ He or she has signing power as a Justice of the Peace and for a Magistrate as indicated on some official documents (**Ex Officio** – by virtue of ones office)
- ✓ Takes information and administers oaths
- ✓ Issues summonses, warrants and subpoenas for defendants and witnesses at Petty Sessions
- ✓ Issues all other processes related to summary proceedings or indictable offence
- ✓ Admits suspects and defendants to bail
- ✓ He attends all Courts of Petty Sessions and assists the Justices

- ✓ Performs duties related to offence or matters of a public nature

Does not have authority to take the preliminary examination, or depositions on indictable offence under the Justices of the Peace Jurisdiction Act.

Clerk of the Court or Deputy Clerk of the Court will often lead in the prosecution of cases in Petty Sessions Court or for misdemeanors in the Resident Magistrates Court.

GOALS AND OBJECTIVES OF THE COURTS

Jamaica's legal and judicial systems are based on English common law and practice. The administration of justice is vested in the courts. Courts assist in the judicial function of Government. Their main function is seeing that justice reaches people who have been wronged. They therefore manage disputes and conflicts, which may come about while working towards the achievement of the goals outlined by the executive.

The purposes of the Courts are to see that the laws of Jamaica are properly interpreted and followed. They also function to ensure that the law is administered in a just and equitable manner. In some cases they also determine guilt or innocence and impose such penalties as are prescribed by the law.

There are eleven (11) types of courts in Jamaica. These are:

The High Court of Justice

- Supreme Court
 - Supreme Civil Court
 - Supreme Criminal Court
- Appeal Court

The Resident Magistrate Court

- Resident magistrate Civil
- Resident magistrate Criminal
- Traffic Court (Corporate areas)

The Petty Session Court

The Coroners Court

The Juvenile Court

The Family Court

The Gun Court

- Resident magistrate division
- High Court division (Supreme Court Judge)
- Circuit Court division (Supreme Court Judge)

Industrial Dispute Tribunal (I.D.T.)

Night Court

Drug Court (Montego Bay only, all island in the near future)

Revenue Court

Caribbean Court of Justice (To enact shortly) will replace the UK Privy Council as final place of Appeal.

Constitution and functions

The High Court of Justice: -

This comprises (a) Appeal Court, (b) Supreme Court.

Appeal Court:

The court of appeal consist the President of the Court of appeal, the Chief Justice (who sits at the invitation of the president) and six judges of the court of appeal. This court is a superior court and hears appeals against convictions. A person dissatisfied with a decision given at any of the other courts, except Petty Session can appeal to this court.

The Governor General specially appoints these Judges (as well as the President of the Court of Appeal is appointed by the Governor General on the advice of the Prime Minister in consultation with the Opposition) he is also a member of the Judicial Service Commission.

In the court of Appeal three Judges of the High Court, with the senior as president, hears all criminal appeals, no new evidence is received on appeal, nor is witnesses heard again, or seen by the court. The Lawyers represent their argument s as to whether the judgement given in previous court should or should not be reversed and answer question propounded by the judges.

The court deals with cases decided by the Supreme, Resident Magistrate, in which there is contested verdict or sentence. The function of this court is to hear submissions from counsels, review evidence given in any of the lower courts, on the basis of which the judges are empowered to: -

- Dismiss the Appeal.
- Increase or decrease the original sentence.
- Allow the appeal.
- Order a new trial.

Supreme Court:

This comprises of a Civil and Criminal Court each presided over by a Justice of the High Court, who tries cases with or without Jury. The judge in a Supreme Court works along with Jury in criminal cases usually with 12 in murders cases or seven in other cases. Civil cases are usually without jury.

Supreme Civil Court:

This deals with matters of a Civil or private nature, such as Divorce Suits, Claiming Damage, issues involving Real Estate, Wills, Deeds, Negligence, Breach of Contracts, and Guardianship of infants etc.

Supreme Criminal Court:

This deals with Criminal matters such as Murder, Manslaughter, Treason, Burglary and other serious crimes. (Indictable Offence) which comes to Circuit Court through committals by Resident Magistrate.

When these courts are held in the parishes they are called Circuit Courts or Court of Assize; and sit three times per year as under: -

- **Hillary Session:** 7th January to Friday before Good Friday
- **Easter Session:** Wednesday after Easter to 31st July.
- **Michealmas Session:** 16th September to 20th December.

N.B. Dates and places are published in the Jamaica Gazette.

Resident Magistrate Court:

This consists of the Resident Magistrate Civil and Resident Magistrate Criminal, both of which are presided over by the Resident Magistrate for the parish. This court also conduct preliminary inquires for more serious criminal cases. A court exists in each parish and is usually situated in the capital or major town. The judge who presides over the court usually lives in the parish. He or she also administers the Court of Petty Session for the parish.

Resident Magistrate Civil

This deals with cases of a private nature but minor to those dealt with by the Civil Supreme Court.

Resident Magistrate Criminal

This court deals with both indictable and summary cases, and the Resident Magistrate sits as Judge and Jury.

Traffic Court (Corporate Area):

This court deals with all offence committed under the Road Traffic Act and Assurance. Third Party Risks Act within the corporate area. The Resident Magistrate sits as Judge and Jury. Traffic breaches in other parishes is dealt with in the Resident Magistrates Court

Petty Session Court

This court deals with cases of a minor offence that are punishable by Statute Law (Statute Laws, written and established by Parliament), and is presided over by a Resident Magistrate, or at least two Justices of the Peace, cases such as cruelty to animal, drunkenness, malicious injury to property assaults etc., and appeals from petty session lies with a judge in chamber.

One Justice of the Peace may preside in a Petty Session Court to take a plea, but if the case is to be tried by one Justice the defendant's consent must be obtained.

Coroners Court

This is presided over by the Resident Magistrate who is the Coroner, and in his absence the Clerk of the Court who is Deputy Coroner, and a Jury if required. This court deals with enquiries into death due to suspected or apparent misadventure, and treasure thrown. It has the power to order exhumation, give verdict as to cause of death or to commit a defendant to the Supreme Court.

Juvenile Court

This is presided over by the Resident Magistrate who is chairman and two Justices of the Peace, one of whom must be a female.

This court deals with persons committing offence who are above the age of 12 years and under 17 years, and are not charged jointly with an adult in a case of a criminal nature.

The Family Court

This court is presided over by a Resident Magistrate (male or female) and has jurisdiction over all matters (except divorce proceedings) relating to family problems, also matters relating to Juveniles delinquency, custody and guardianship of children, adoption and married women's property.

Industrial Tribunal

This is a special court for the resolution of disputes referred to the Ministry of Labour. This court hands down decisions that are binding by law.

Revenue Court

The Revenue Court Act of 1971 established this court; the presiding judge is a junior Puisne judge of the Supreme Court. This court has jurisdiction to hear appeal under the Customs Act, Excise Duty Act, The Valuation Act, the Income Tax Act, the Land Development Duty Act and the Transfer Tax Act.

The Gun Court (divided into three (3) Divisions)

In 1974 the Gun Court was established with certain divisions being superior courts of records. In these divisions, certain firearm offences attracting mandatory life imprisonment are tried.

- **Resident Magistrate Division**

This is presided over by a Resident Magistrate who has the power to conduct preliminary hearing relating to firearm offences, which is a capital offence, and commits the accused to the Circuit court division of the court.

- **High Court Division**

This is presided over by a Supreme Court Judge sitting without Jury, to hear and determine;

Any firearm offence other than a capital offence

Any other offence specified in the schedule of the Gun Court Act

- **Circuit Court Division**

This is presided over by a Supreme Court Judge exercising jurisdiction of a Circuit Court i.e. a Supreme Court Judge sitting with a Jury.

This court deals with cases coming from the Resident Magistrate Division of the Gun Court.

Chief Lay Magistrate (or Justice of the Peace)

- . Appointed by the Governor -General.

- . No legal training is required.

- . Sits in Petty Sessions Court (normally two will preside over the court).

Chief Lay Magistracy (Customs Rotulorum - Custodes)

Representative of the Governor-General within the parish his duties include receiving the Sovereign or other important personage in the absence of the Governor-General.

Chief Magistrate of the parish

Maintains roster of Justices of the Peace

Chairman of committee, which advises Governor-General regarding suitable candidates for Justice of the Peace

Resident Magistrate

Puisne Judge (Senior Judge)

Chief Justice

Prosecutors

Clerk of the Court or Deputy Clerk of the Court

Police Constable if no Clerk of the Court is available (Must be Sergeant or above)

Crown Counsel, works under the direction of the Director of Public Prosecutions

GOALS AND OBJECTIVES OF THE CORRECTIONS DIVISION

The purpose of the prisons and detention camps is to confine those convicted of crimes and to carry out the orders of the Courts. In some cases, the prisons also attempt to provide a basic education and a skill to offenders so that they will have an occupation when they are released. In many correctional systems there is a probation function in addition to the confinement objective.

Prison and detention camps

Number and location of each of the confinement centers in the country

- ✓ Tower Street Adult Correctional Centre Tower Street Kingston
- ✓ St. Catherine Adult Correctional Centre, white Church Street Spanish Town
- ✓ Tamarind Farm Adult Correctional Centre, Spanish Town
- ✓ Fort Augustus Adult Correctional Centre (Women only) Port Henderson, St. Catherine
- ✓ Richmond Farm Adult Correctional Centre, Richmond, St. Mary
- ✓ South Camp Rehab Centre, South Camp Road Kingston
- ✓ Sunset Rehab Centre, Woodlands Manchester (Old male convicts are held there)
- ✓ Horizon Remand centre, Spanish Town Road (Operated by Warders)

Duties and Responsibilities of Prison Warders:

They are not Police personnel but are appointed under the correction Act and their duties are separate and apart from those of the Police.

Normal duties

To carry out the order of the court by way of keeping those persons committed to prison in safe custody for the duration of the time ordered by the court.

When there is an escape - As soon as this is discovered the following must be done;

- ✓ The Superintendent in-charge of the police to be informed

- ✓ The Senior Person on duty at the prison to be informed
- ✓ An alarm must be raised
- ✓ The Commissioner of Correctional Services must be informed
- ✓ The Police to be informed and assisted in every possible way in ensuring that the escapee(s) is recaptured

The Police will distribute Island wide description of the escapee(s) by means of Police radio (Control) Commercial radio, Television and Police Gazette. The Police for the purpose of capturing the escapee(s) will make an Island-wide search. Departmental action is taken against anyone found to be negligent.

When there is a riot - An alarm is to be made alerting all on duty. Steps will be taken to quell the riot.

The following people are to be informed.

The Commissioner of Correctional Services

The Superintendent in-charge Institutions.

The Police and Army - They will be on standby outside the prison walls and will only move in if requested. They are withdrawn as soon as normalcy is restored.

Probation

Probation is a period of good behaviour required by the Court in lieu of incarceration

Duties of the Probation Officer

To supervise the probationers, Counsel, advice and assist him within the terms of his probation order. Offender can be confined if rules are violated, if the offender violates the term of his probation he can be brought before the court and may be sentenced to any term of imprisonment, which the court would pass if the probationer had just been convicted before the court for that offence.

REMAND CENTRE (located at Metcalf Street)

The Remand Centre functions as a collection point and processing station for persons arrested of serious crimes as well as person awaiting trial/sentencing

Persons convicted and sentenced to prison are taken to the Remand Centre by police constables

The Remand Centre was operated by the Constabulary and falls under the Services and Inspection portfolio, this centre is now a permanent base for the JDF since June of 2002, whilst the duties and prisoner are now transferred to the New Horizon Remand Centre on Spanish Town Road, operated by the Correctional Services.

HOW AN OFFENDER GOES THROUGH THE SYSTEM

The manner in which an offender proceeds through the system depends on the type of offence committed.

Serious crimes

- ✓ Arrest (Bail or Lock-up)
- ✓ Arraignment (Resident Magistrates Court), (Dismiss or commit)
- ✓ Mentioned date (Bail or lock-up).
- ✓ Trial (Circuit or Supreme Court) (Dismiss, not guilty, guilty)
- ✓ Sentence (Fine, probation, lock-up, prison)

Misdemeanor

- ✓ Arrest (bail or lock-up)
- ✓ Trial (Resident Magistrates Court) (Dismiss, not guilty, guilty)

- ✓ Bail or lock-up
- ✓ Sentencing (Resident Magistrates Court) Fine, probation, Lock-up, prison

Minor Offence

- ✓ Arrest (bail or lock-up)
- ✓ Trial (Petty Sessions Court) (Dismiss, not guilty, guilty)
- ✓ Guilty (fine, probation, lock-up)

Juveniles

- ✓ Offence (Warn, arrest)
- ✓ Arrest (bail, place of safety lock-up in emergency)
- ✓ Mentioned date (bail, place of safety)
- ✓ Trial (Dismiss, not guilty, guilty)
- ✓ Guilty (fine, supervised probation, approved school)

COURT PROCEDURE AND PROCESS

INTRODUCTION

You have all received information on the various types of courts in Jamaica. Knowledge of what courts exists and the types of cases they accept is very important. Perhaps even more important however, is how they work. Each court has its own way of operating; yet, they do follow the same general procedure. If you are to be successful as law enforcement professional you will need to know this procedure. These notes will concentrate on how the courts work.

We will review the differences between civil and criminal cases and examine the steps associated with the arrest and conviction a criminal suspect. As we look at these areas we will also learn the meaning of some of the terms used by the courts in its day to day operations. It is most important that you memorize these terms and understand the court procedures and will be expected to know the terminology as soon as you leave the academy. Moreover, you will need this knowledge to understand many of the lectures between now and when you graduate.

PROCEDURE IN A CRIMINAL CASE

From the court's perspective, there are two groups of offences. These are Indictable Offences, which includes both felonies and misdemeanours and are of the type, which can be indicted. The second type is Summary Offences, in non-indictable

Steps of an indictable offence are as follows: (tried by judge and jury)

- ✓ A complaint is received
- ✓ The complaint is determined to be valid
- ✓ The wrong is found to be a criminal offence
- ✓ All elements of the offence are present
- ✓ Information is laid before the court (Magistrate or Justice of the Peace) information is a statement of charges containing adequate information to show that a crime has been committed and there is a good reason to believe that a particular person or persons committed the crime.
- ✓ The information is given by anyone familiar with the facts (usually a constable)
- ✓ The information should be in writing and under oath. If not in writing or under oath, no warrant can be issued only a summons.
- ✓ Based on a review of the information the court (Magistrate or Justice of the Peace) issue an arrest warrant for the suspect.

The information does not have to prove that the suspect committed the crime; it must only show probable (reasonable) cause to believe he or she committed the crime.

The arrest of the suspect is then made based on the warrant

Arraignment (Preliminary inquires Resident Magistrate Court)

The prisoner is then called to the bar of the court by name where he is read the indictment and asked if is guilty or not of the offence charged.

His opinions are stating his plea includes answering by standing mute or demurring. If this occurs, the court will determine the necessary action to be taken.

There is potential of "plea bargaining" at this point (the practice of offering to plead to a lesser offence rather than going to trial).

Sometimes the order of the arraignment and the commitment for the trial are reversed.

Commitment for trial

A commitment for trial

Is a preliminary court proceeding to determine if there is sufficient evidence to bring the suspect to trial? In these proceedings

The Prosecutor opens the case.

Witnesses for the prosecution are called to testify and may be cross-examined by the accused or his Attorney.

Any statements given at the Preliminary Enquiry are read over to the witnesses by the Magistrate and then signed by both the witness and the Magistrate.

The accused representative may submit that the prosecution has not presented a case and ask for dismissal. There can be arguments and the Magistrate then rules

The Magistrate caution prisoner using Judges Rule 2, the accused may:

1. Reserve the defense
2. Make a statement from the dock.
3. give evidence himself or call witness.
4. Call witness but not give evidence

The Accused may respond to the charges if he so desires he may remain mute.

The accused is asked if he wishes to give evidence himself or bring forth witnesses on his behalf

Usually there is a statement (speech) by the representative for the accused

Finally, the Magistrate decides whether there is the foundation for a case against the accused (prima facie case).

If there is, a trial date will be set and bail will be considered.

Prosecution (CIRCUIT COURT TRIAL)

The indictment is framed and signed by the proper authority and preferred.

In some instances the arraignment is conducted after the completion of the commitment for trial.

Jury Sworn

If the accused pleads not guilty or the court directs a not guilty plea, a jury is empanelled.(Picked, examined, chosen and sworn).

Trial is conducted. (Within the trial itself, there is a specific procedure followed. This is both for consistency and to ensure a fair trial is conducted.

Witnesses are called and testify for the prosecution, (direct examination or examination in chief). This is followed by cross-examination of the witness by the accused attorney and sometimes a redirect examination by the prosecution.

Prosecution reads any replies made by the accused to the two cautions given to him by the magistrate during the previous phases of the investigation.

The accused may defend himself or be defended by counsel. When acting in the defence of the accused, an opening statement may be given, witnesses may be called and the accused may elect to testify on his own behalf.

Summing up and verdict

When all witnesses and closing statements have been heard, the judge sums up the case and again explains the law to the jury. The jury is then asked to render a verdict.

PROCEDURE IN A SUMMARY TRIAL

Most cases, which are scheduled to be presented in a summary trial, are minor in nature. These include violations of the traffic acts, licensing laws and other regulatory acts.

The clerk of the court states the charge to the accused and asks him whether he pleads guilty or not guilty.

If the prisoner pleads guilty, the prosecutor outlines the facts of the case, and the Magistrate passes sentence.

If the prisoner pleads not guilty, the trial proceeds with the calling of witnesses. The accused may cross-examine witness if he so desires. At the conclusion, guilt is determined and the Magistrate either releases the accused or passes sentence.

COURT PROCESSES

The term process, as used here, refers to the means by which a court enforces strict obedience to its orders. This includes the service of summons and subpoena and the execution of warrants and commitments. Generally speaking there are 3 types of process, they are summons, subpoena and the warrant.

Summons

A summons is a written order signed by a Resident Magistrate or Justice of the Peace directing a person to appear in court at a specific time and place.

A Summons may be issued by a Resident Magistrate or a Justice of the Peace

On information or a complaint laid before him that a person has committed an offence or act for which the person is liable to be imprisoned, fined or otherwise punished.

On complaint made upon which he has authority to make an order for the payment of money or otherwise

Types of Summons

- ✓ Criminal
- ✓ Civil
- ✓ Affiliation

Contents of a Summons

- ✓ Issued in duplicate, known as the original and the copy.
- ✓ Both must be exactly the same in all respects.
- ✓ Must contain the name and address of the person charged, the date and place of the offence, the offence committed (including the statute creating the offence) and the signature of the Justice.

Serving a Summons

On receipt of a summons at the station, carefully check to ensure the summons is complete and correct in terms of content.

Check to make sure duplicates is identical; all information is contained in the document and the Justice issuing the document signs both copies. The issue date should also be on the summons.

Note date in which the person being summoned is required to appear in court. Serve the summons as soon as is practical and at the least 3 days prior to the date of appearance.

Make entry in station diary dispatching you with the summons. When the person is located, read the summons to him and give him the copy.

The method of service may vary.

Personal Service - Giving the copy directly to the person or reading the contents to him and throwing it at his feet if he refuses to accept it.

ENDORSMENT FOR PERSONAL SERVICE

Served personally by me this..... day of2..... aboutam/pm, at in the Parish ofon the within namedwhom I knew /did not know before the date of service ,(but was pointed out to me). It was read over and handed to him. He took and said that he understood it. (It was thrown at his feet and his attention brought to it).

Signed.....

Date.....

Inmate Service.
Leaving copy of summons with a person over 16 at his home, for the person whom the summons is intended for.

ENDORSEMENT FOR INMATE SERVICE

Served inately by me on this..... day of.....about.....am/pm, on.....age.....(relationship to addressee) of defendant It was read over to him. He accepted it and said he would deliver it to the defendant on his/her return from later the same day.

Signed.....

Date

In the event you are unable to serve the summons, the following endorsement should be used.

ENDORSEMENT FOR NON-SERVICE

Taken out by me thisday of2..... and not served. From information received, defendant has and may be reached at that location / and his current location is unknown.

Signed

Date

Subpoena (Specimen included in lesson)
A subpoena is an order commanding the attendance in court of a witness on a date and place mentioned in the subpoena.

The subpoena is served and endorsed in the same manner as the summons.

Definitions

Jury	Number of men and women selected according to law and sworn to inquire into or to determine facts and to declare the truth according to the evidence legally.
Plead	to admit or deny guilt
Plea Bargaining (not yet introduce in Jamaica)	The practice of offering to plead to a lesser offence rather than going to trial
Prosecution	The process of exhibiting formal charges against an offender before a legal tribunal. The party by whom criminal proceedings are instituted. Eg. Clerk of Court
Charge	To accuse/impeach. What is alleged or brought forward by way of accusation
Trial	To examine judicially. To be subjected to the examination and decision or sentence or a tribunal
Verdict	Judgement. The answer of a jury given to the court
Sentencing	Judgement, decision pronounced by a court or judge upon a criminal
Probation	A period of time during which a delinquent must report at regular intervals to a Probation Officer. A period of good behaviour
Incarceration	Imprisonment
Habeas Corpus	A writ that a person be brought before the court at a stated time place to establish legality of his detention or imprisonment
Arraignment	to bring a person before the court, read the indictment to him and ask him/her how he/she pleads
Plea	A statement made by or on behalf of a defendant in answer to charges showing why he should not be required to answer
Commitment to trial	A preliminary court proceedings to determine if there is sufficient evidence to bring the suspect to trial
Information	A statement of charges containing adequate information to show that a crime has been committed and there is good reason to believe that a particular person or persons committed the crime
Indictment	A formal accusation or charge against a person. Written accusation
Civil injury	Is disobedience of the law, which is a wrongful act, injuring some person or persons but which does not disturb the community in general.
Criminal	An act of disobedience of the law forbidden under pain of punishment. Eg. Death or loss of liberty or money penalty

Specimen of Summon (inside)

18

PETTY SESSION-FORM Y

Summons to Person Charged

JAMAICA SS.

Parish of

To

of the said parish

Whereas Information hath this day been laid before the undersigned, one of her Majesty's Justices of the Peace in and for the said parish of that you

on the day of in the year of Our Lord 2

at the said parish of and within my jurisdiction

against the form of the Statute in such case made and provided and against the Peace of Our Sovereign Lady the Queen. Her Crown and Dignity.

These are therefore, to require you in Her Majesty's name to be and appear on the day of 2 at ten o'clock in the forenoon at The Court House at before such Justices of the Peace for the said parish of as may then be there to answer to the said complaint and to be further dealt with according to Law.

Given under my hand this day of in the year of Our Lord 2 at the parish aforesaid.

Clerk of the Court

(Outside)

In the
Court of Petty Session, holden the
day of
2

REGINA
against

Summons

JAMAICA S.S.
Parish of
1

Constable, do swear that on
the
day

Of
2

at
o'clock in the
noon at

In the parish of
I served upon

Of the parish of

a copy of the within Summons (now marked) dated the

day of
2

and issued by
Esquire, Clerk of the Courts

on the information of the

against the said

at the time I served

the said copy Summons on the said

I read over the within Summons to h

Before the day of the said

Personally

Taken and sworn to before me at

in the parish of

This
day of
2

INFORMATION

Parish of

The information and Compliant of _____ of the parish of

made and taken upon oath before the undersigned this

day of _____ in the year of Our Lord

20 who saith that on _____ the day of

in the year of the aforesaid one

of the said parish of

with force

at

and within jurisdiction of this Court

Against the form of the Statute in such case made and provided, and against the Peace of Our Sovereign Lady the Queen Her Crown and Dignity, and thereupon the said Complaint prays that the defendant may be summoned to answer unto the said Complainant according to Law.

Taken and sworn to before me at

in the parish of

this

day of

20

.....
*Justice of the Peace or Clerk of the Court
 for the parish of*

In the Parish of

REGINA

Vs

Information of

In the Parish of

REGINA

Vs

Information of

For

Tried on

Before

Guilty

Sentence

* Here fill in place at which Court held

Specimen Subpoena (inside)

6

PETTY SESSIONS FORM B.

JAMAICA SS.

Parish of

To

in the said parish

Whereas Information was laid (or complaint was made) before the undersigned one of Her Majesty's

Justices of the Peace in and for the said parish of

for that

of the said parish, to wit, on the day of

in the year two thousand at the parish of

and it hath been made to appear to me (upon oath) that you are likely to give material evidence on behalf

of the in this behalf.

These are therefore, to require you to be and appear on the day of

at ten o'clock in the forenoon, at the Court House at

in the said parish of before such Justices of the Peace for the said Parish to

testify what you know concerning the matter of the said Information or Complaint.

Given under my hand this day of

in the year of Our Lord two thousand

at in the parish aforesaid.

Inf. No

In the

of Petty Sessions holden the

day of

200

200

REGINA

against

Summons

to

Witness

AFFIDAVIT OF SERVICE OF SUBPOENA

JAMAICA SS.

PARISH of

I,

Constable, do swear that on the

day of

two thousand

at

o'clock

a.m., at the parish of

I served upon

of the parish of

a copy of the within Subpoena

(now marked) dated

day of

200

and issued by

Esquire

one of Her Majesty's Justices of the Peace in and for the

said parish on the information of

against

for

At the time I served the said copy subpoena on the said

I read over the same to h

before the day of the said service. I

the said

personally

Taken and sworn to at

this

day of

200

before me.

Warrant (Specimen included at end of notes)

A warrant is a written order and authority, issued by a Justice under hand and seal, directing a specific person or persons to take some action with regard to an offender.

- ✓ Arrest Warrant (**Warrant on information**), Bench Warrant are both issued in order to have an offender arrested to be dealt with according to law
- ✓ Warrant to remand/commit, warrant to commit in default is issued to commit a prisoner to prison
- ✓ Distress Warrant is to levy distress for the non-payment of legal penalty
- ✓ Search Warrant issued to search premises of defendant or suspect

Obtaining a Warrant

A Magistrate or Justice issues a warrant

A Police Officer desirous of obtaining a warrant must ensure that the following is done by him/her:-

- ✓ Complete the appropriate warrant form (he writes the circumstance of the case on the form)
- ✓ Swear to the information on the form by signing his name, rank and number
- ✓ Take it to the Justice who will satisfy him/herself as to the authenticity and affix his signature to the form

When a warrant is received for execution, it should be read over carefully to see what is required, and to ensure that the particulars are correct (if a warrant is found to have mistake enclose in it, it should not be executed but should be returned to the issuing Magistrate without delay)

It is extremely important that the warrant contains all required information. (Name and address of the person to be arrested, the offence charged, including the statute reference if any) the signature of the justice and date signed).

A warrant remains in force until it is executed recalled or otherwise

- ✓ From an administrative point of view, the execution of a warrant is handled much like that of a summons.
- ✓ Sign yourself (and partner) out to execute the warrant, and then record the results
- ✓ It is legal to arrest a person known to be the subject of an outstanding warrant, even if you do not have the warrant in your possession at the time. However, if requested, you must produce the warrant for inspection by the arrested person at the first opportunity.
- ✓ Follow the instruction on the warrant to the letter. Do not deviate. When the execution is completed and the instructions of the court are carried out, return the warrant to the station.

Specimen (warrant on Information) inside

Petty Session (Form G)

Warrant on Information

Jamaica SS
Parish of

To the Constables of

Officers of the Parish of



and to all other Peace

Whereas Information hath this day been laid down before the undersigned one of her Majesty's Justices of the Peace in and for the said parish of for that of the said parish, to wit, on the day of in the year of Our Lord 2 at the said parish and within my jurisdiction

and oath being now made before me, substantiating the matter of such information.

These area therefore to command you in Her Majesty's name, forthwith to apprehend the said and to bring h before some one or more of Her Majesty's Justice of the Peace in and for the said parish to answer to the Information and be further dealt with according to Law.

Given under my hand this day in the parish of in the year of the Our Lord 2 aforesaid.

in the Court of

Party Sessions

Regina
against }

Warrant to
apprehend.

Clerk Party Session.

JAMACA SS.

To the Constable of Kingston and to all other Peace Officers in the Parish of Kingston

is deposited in a certain premises, to wit:

THESE ARE THEREFORE to command and authorise you

Given under my hand this _____ day of _____ in the year of
Our Lord two thousand and _____ in the pansh of Kagalnur

Justice of the Peace for the Parish of Kingsbury

Specimen (bench warrant)

3229

JAMAICA S.S.

Parish of

BENCH WARRANT

To the Constables of

and to all other Her

Majesty's Peace Officers within the parish of

and to

every one of them whom it may concern. These are to will and require, and in Her Majesty's name to

charge and command you upon sight hereof, to bring before me, one of Her Majesty's Resident

Magistrate for the parish aforesaid, at the Resident Magistrate's Court now holden at

in the parish of

the body of

whom stands indicted before me at this same court for

if the court be then and there sitting, or if not, before me or some other of her

Majesty's Justices of the Peace of the same parish, to find sufficient sureties for h personal

appearance at this court to answer the said indictment, and all such other matters as on Her Majesty's

behalf shall be objected against h , and if he cannot be taken during this present Court, that then as

soon after as he shall be taken, you bring or cause h to be brought before me or some other of Her

Majesty's Justices of the Peace of the said parish, to find sufficient sureties that is to say

in \$, for h personal appearance, at the next sitting of the Resident

Magistrate's Court for the said parish, to answer as aforesaid, and further to be dealt with according to

Law.

Hereof you are not to fail at your peril.

Dated in open Court at the Court House at

aforesaid, this

day of

in the year 2

Resident Magistrate

SEARCH WARRANT

Petty Session (form G)

JAMAICA SS.

To any Lawful Constable of the Parish of

WHEREAS it appears to me
Her

Esquire, one of

Majesty's Justices of the Peace in and for the Parish of

by the

Information and Complaint on oath of

that there is good reason to believe that Dangerous Drugs to wit:

kept and concealed on the premises of

in the Parish of

THESE ARE THEREFORE in Her Majesty's name, to authorize and command you with
proper assistance to enter to

go to the said premises of the said

in the day or night time and there diligently search for the said dangerous Drugs and if any articles
of Dangerous Drug be

found after such search, that you will bring the Dangerous Drugs so found and the body of the said

some other of before me, or

Her Majesty's Justices of the Peace for the said Parish of
be disposed

to

of and dealt with according to Law.

Given under my hand and seal at
parish

in the

aforesaid, this

day of

200

.....
Justice of the Peace for the Parish of

(Warrant where Summon is disobeyed)

JAMAICA SS

To the Constables of the parish of

and to all other Peace

Officers in the said parish of

WHEREAS on the _____ day of _____ last past
information was laid (or complain was made) before the Deputy Clerk of the Courts in and for the said
parish, for that

at the said parish and within jurisdiction being a person duly rated and assessed in respect of certain
taxes and duties, together with the surcharge thereon, payable in respect of certain property in the
parish aforesaid, in the occupation and possession of the said

and being required by the Collector of Taxes for the parish aforesaid, to pay the sum of

Being the amount of
such taxes, duties and surcharge, payable as aforesaid, pursuant to Laws 30 of 1867 and 32 of 1867
and the other Laws providing for the payment of taxes and duties, unlawfully has not paid the said
sum.

against the form of Statute in such case made and provided.

AND WHEREAS he then issued his summons to the said
_____ Commanding h _____ in Her Majesty's
name, to be and appear on _____ the _____ day of _____ 2
_____ at the Court House at _____ at ten o'clock in the
forenoon, before such Justice or Justice of the Peace for the same parish as might then be there, to
answer to the said information (or complaint) and to be further dealt with according to Law.

AND WHEREAS the said
Hath neglected to be or appear at the time and place so appointed in and by the said summons,
although it hath now been proved to the Court upon oath, that the said summon, was duly served upon
the said

THESE ARE THEREFORE TO COMMAND YOU, in Her Majesty's name, forthwith to
apprehend the said _____ and to bring h _____ before
me or some one or more of Her Majesty's Justices of the Peace in and for the said parish to answer to
the said information (or complaint) and to be further dealt with according to Law.

Given under my hand this _____ day of _____
the year of Our Lord two thousand and _____

at

in the parish aforesaid

for the parish of

Jamaica Constabulary

Division:.....

Station:.....

Date:.....

RECORD OF PERISHABLE GOODS

Whereas application was made before the undersigned one of Her Majesty’s Justices of the Peace for the Parish of.....for written record of perishable goods, I do hereby certify that I have examined the perishable goods and have prepared this written record of such goods.

Quantity	Description of Goods

Given under my hand this.....day of.....2...
at.....in the parish

.....
Justice of the Peace
for the parish of.....

Specimen (Distress Warrant)

5068

No. 21 – Warrant of Distress on Application of Collecting Officer

In the Resident Magistrate's Court for the parish of

To the Constables of and to all other Peace Officers
of the said Parish:

Whereas by Affiliation order made at a Resident Magistrate's Court holden at

On the day of
one of

In the Parish of was adjudged to be the putative
father of a bastard child name
then lately born of the body of one

of in the parish of and in and

by the said Order it was ordered that the said

should pay to the Collecting Officer for the Parish aforesaid the sum of

Dollars and cents per week until such child attains the age of years:

And where as the said

has made default under the said Order and there is due thereunder the sum of

in respect of the period ending

and where as the said Collecting Officer has applied that a warrant may issue directing that the
said last mentioned sum together with the cost attending such warrant be recovered by distress and sale
of the goods and chattels of the said

These area to command you, in Her Majesty's name, forthwith to make cistress of the goods and
chattels of the said

and if within the space of five days after the making of such distress the said sum of \$

together with the reasonable charges of taking and keeping the said distress shall not be paid then that
you do sell the said goods and chattel so by you distrained and do pay the money arising from such sale
unto the said Collecting Officer that he may pay and apply the same as by Law directed and may render
the surplus, if any, on demand to the said.

Given under my hand at in the Parish of

this day of 2

Resident Magistrate

General Notes

When executing a warrant to commit in default, the defendant should be asked for the amount. If he produces the amount involved, no arrest should take place. The required amount should be taken and a receipt given to the defendant. The warrant should be endorsed to show the action taken. The money should be turned in with the warrant. ***Installments should and must not be accepted.***

When the defendant is committed to prison, a receipt for him should be obtained and turned in with the warrant.

In the execution of a distress warrant take care to seize only that amount of property and/or money, which is sufficient to satisfy the warrant. Make sure the property belongs to the defendant. Wearing apparel, bedding of the defendant and his family, equipment of his trade, crops not removed fro the soil ***should not*** be seized. Do not break into premises. Do not execute such warrant between sunset and sunrise.

Search Warrant

These usually authorize the person to whom it is addressed to enter by force **if necessary** and arrest the person in possession of the articles found.

BE SURE YOU HAVE THE CORRECT ADDRESS WHEN EXECUTING A SEARCH WARRANT

In the case of any crime occurring in the district, the district Constable shall make and enquiry into the circumstances, and shall immediately send notice of the occurrence to the Constabulary Station to which he is attached, and if he shall suspect that stolen property is concealed in the house, premises, or land, occupied by any person who has ever been convicted of larceny, or knowingly receiving stolen goods, he shall have power, without a search warrant, to enter upon premises and lands and if the result of his enquiry or his search, shall be to give him good reason to suspect that any person has committed the crime or being accessory thereto before or after the fact, he shall have power to take such person to the nearest Justice to be committed, held to bail, or discharged, or to the nearest Constabulary Station, to be brought before a Justice.
(Section 6 the Constable (district) Act) (Act 42 of 1969 3rd Schedule).

Always record exactly what property is taken or seized. Provide the defendant with a receipt copy of the list.

Take particular care to preserve and protect any property taken in a search or result of distress warrant.

Do not attempt to conduct searches or seizures alone. Additional personnel not only are of great assistance but also are witnesses to all transaction and activities.

WARRANTS ENDORSEMENTS

Arrest Warrant

Executed by me thisday of2.....at.....by arresting the
within named defendant.

Signed.....

Date.....

Warrant of Default

Executed by me this.....day of.....2....about.....am/pm at.....parish
of..... The full fee of.....received.

Signed.....

Date.....

Search Warrant

Executed by me No.Cons.....on the.....at the within mentioned premises or place
and the following articles are found.

One gold ring on dresser

One Sanyo camera in bed head

Signed.....

Date.....

DISTRESS WARRANT

I Cons #.....of Linstead in the parish of St. Catherine, do hereby certify to James Brown one of her Majesty’s Justice of the Peace for the said parish, that by virtue of this warrant I have made diligent search for the goods and chattels of the within mentioned Charles Mayne, and that I can find no sufficient goods or chattels of he said Charles Mayne whereon to levy the sum within mentioned.

Witness by me this2....

.....

J.P. St. Catherine

WARRANT ENDORSEMENT FOR BENCH WARRANT AS AT WARRANT

COURTROOM DEMEANOR AND TESTIMONY

INTRODUCTION

The overall purpose of law enforcement in a democratic society is to protect and serve the public. As a practical matter, the Rule of Law does this. Laws are made to allow everyone equal access and opportunity to live and work in a society. To the extent that laws attempt to stop one person from injuring or taking advantage of another, laws are restrictive. While laws are far from perfect, it is only by enforcing these laws that we are able to provide protection for the public. Accordingly, a primary function of law enforcement is to identify those who break the law and bring them before the courts. It is then the job of the courts to punish the lawbreakers. This includes both making sure the person appearing before the court is the individual who broke the law and examining any mitigating circumstances involved.

The courts examine mitigating circumstances and determine if it is the right person based on information received through testimony. However, since testimony is usually based on an individual's memory and beliefs, it can often be distorted, biased or inaccurate. Careless handling or improper storage can change the meaning of an exhibit. A confession can even be totally false due to ulterior motives on the part of the suspect or because of the manner in which it was obtained. Therefore, the courts must examine all testimony and exhibits to determine how accurately the information describes or explains who was involved and/or what really happened. As you might imagine under these circumstances,

TESTIMONY FROM INDIVIDUALS WHO APPEAR TO BE BIASED, UNCARING OR OPINIONATED WILL OFTEN BE DISCOUNTED EVEN IF IT IS ACCURATE.

As members of the Constabulary, it is vital that you prepare yourself carefully for any testimony before the court. You must be ready to fully describe and explain your actions and to submit any exhibits you may have obtained in the case. You must present your information in an accurate, unbiased manner with strict adherence to the facts as you know them. Finally, you must dress and conduct yourself in a manner, which reflects a true respect for the law and the courts and an objective, impersonal, professional attitude toward the case.

WHAT ARE THE REGULATIONS?

Court attendance

The usual police policy states that all members of the Force having business before the court will be in the courtroom on or before the appointed time. Personnel who fail to appear or are late for their court appearance will be subject to severe disciplinary action.

Preparation for testimony

It is the responsibility of each Constable appearing before a court to ensure that their case (or their portion of the case) is ready for presentation with all pertinent exhibits available and suitably arranged for presentation. Further, every Constable must follow and remain current on the status of any of his or her cases pending before the courts at all times.

Dress and conduct in court

A Constable when testifying shall not chew gum and shall conform to the court's wishes concerning dress. All members are required to tell the truth at all times. They are expected to testify with strict accuracy and with complete objectivity characterized by either overstatement or understatement.

Regulations regarding recommending an attorney or bondsman to suspects or persons arrested.

No recommendations can be made unless the suspect is a relative and has asked for assistance in contacting legal assistance or a bail bond.

Testifying for the defense

Only under subpoena, if a member receives a subpoena to testify for the defense, the member's superior must be notified.

Civil Court

A member shall not volunteer to testify in civil court. He or she may testify under subpoena only. The member's superior must be notified of any pending appearance before the courts.

Use of position to gain advantage in civil court

No member shall use his or her position to intimidate or otherwise influence the actions of persons with a view to achieving a more favourable outcome.

Attendance at pre-trial conferences

All members shall at all times be available for attendance at a pre-trial conference if the prosecutor requests one. In the event of a request, the member shall, prior to the conference, review his or her involvement in the case, including all actions taken, people interviewed, diagrams made and exhibits found and/or other activities.

PREPARING FOR TRIAL

Preparation must begin when you first are made aware that an incident or crime has occurred.

Proper notations in your pocket book

- ✓ Names, descriptions, statements made, dates and times
- ✓ Nature of incident, articles stolen, etc
- ✓ Crime scene sketches, diagrams and exhibit locations
- ✓ Suspects arrested, application of new judges rules
- ✓ Interview times and locations, who present
- ✓ Signed statements and confessions received
- ✓ Exhibits and witnesses located
- ✓ Personal marks placed on exhibits for identification

Proper recording of incident in the station diary and/or other logs and diaries

- ✓ Recording information in appropriate logs and diaries
- ✓ Recordings to be made in a timely fashion

Proper preparation and dissemination of reports covering all of the above listed data

- ✓ Copies for Criminal Investigators for their assistance in any necessary follow-up investigation
- ✓ Appropriate reviews of any previous records concerning either the victim or the suspect
- ✓ Copies for scene of crime units so they are aware of the nature of the crime and any possible suspects
- ✓ Copies for the prosecutor for his or her assistance in prosecuting the defendant
- ✓ Copies for the defense attorney if they are requested for his or her use in preparing a defense

Keep current regarding status of case

- ✓ Maintain contact with Court unit.
- ✓ Keep all notes regarding the case. Make no changes in the information. Refer to the notes on occasion to refresh your memory of the incident.

PRE-TRIAL CONFERENCES

With Court (formal pre-trial conference)

Criminal procedure governing pre-trial conferences

- ✓ Witnesses to be produced
- ✓ Advise of certain defenses (insanity etc.).
- ✓ Stipulations
- ✓ Plea bargaining

With prosecutor (informal meeting)

Prosecutors often have very large caseloads. They are frequently forced to appear in court every day to prosecute defendants on a great variety of crimes.

Often their schedule does not permit them time to carefully read and evaluate the merits of every case or the value of each of the witnesses. When this happens, it is usual to call for a pre-trial conference. This conference is for the specific purpose of providing the prosecutor an understanding of the case. Much of his actions in court will be based on the results of the conference. These include:

Deciding what questions the prosecutor will ask

Rehearsal of the manner in which testimony should be given

Reviewing the testimony of other witnesses

- ✓ Identifying how each witness's information can contribute to an understanding of what happened
- ✓ Determining what exhibits are involved with each witness (and making sure those exhibits are available)
- ✓ Preparing a general outline of each witness's testimony
- ✓ Reviewing the background of each witness

Have they been convicted of crimes in the past? Will these convictions have any bearing on their credibility?

Does the witness know the defendant? Is there any ulterior motive for offering the information regarding the defendant?

Does the witness have any physical or emotional disabilities, which might render his or her testimony invalid?

Preparing for a pre-trial conference with the prosecutor, be prepared to discuss:

- ✓ Evidence obtained from witnesses not scheduled to appear.
- ✓ Background of defendant
- ✓ Elements of the crime
- ✓ Locations of exhibits found at the scene.
- ✓ Locations of articles recovered.
- ✓ Forensic evidence.
- ✓ Potential cross-examination questions.

PREPARATION FOR TESTIMONY

For yourself as well as other witnesses, review facts of case, familiarize yourself and if necessary the witnesses with trial procedures, the purpose of direct and cross-examination etc, if necessary sit in on another trial to see what goes on. If appropriate, make certain you are able to recognize the defendant, be sure you have all documents and exhibits needed, be sure you know the time and place of the crime, examine your notes to refresh your memory, discuss any anticipated problems with prosecutor.

DRESSING FOR COURT

Dress in the manner desired by the court, if a choice is given, dress in civilian clothes.

- ✓ Conservative business suit, well fitting
- ✓ No sports clothes
- ✓ Remove everything from shirt and jacket pockets
- ✓ No lodge or fraternity pins
- ✓ Hair cut neatly, clean shaved

ARRIVAL AT COURT

- ✓ *Should arrive well before the time specified If unable to reach court on time, immediately advise prosecutor*
- ✓ *Immediately inform the proper personnel of your arrival*
- ✓ *Ask where to wait*
- ✓ *Do not become involved in long discussions while waiting*
- ✓ *If in courtroom do not whisper to others*
- ✓ *Do not discuss case or your testimony with others during breaks (the prosecutor is an exception)*
- ✓ *On entering the courtroom, make sure your clothes are in proper order*
- ✓ *Do not cross legs while in the courtroom unless there is a solid banister or railing between you and the court.*

TESTIFYING

Voice

Use a clear, calm voice in a tone loud enough for all to hear.

Entering the witness box

When entering the witness box, stand at attention. If you are in uniform, wait until you have the attention of the court, salute and then take off your hat

When taking the oath, do it carefully and sincerely, do not mutter or lower your voice

If allowed to sit, sit at attention, do not cross your legs or slouch down in the box

Conduct and demeanor during testimony

Show respect in all answers. Respond to all questions possible with either a "yes, sir" or "no, sir" refer to the judge as, "Your Honour" or as the court requires.

When listening or answering a question, do not laugh, frown or reveal your personal feelings in any way.

Be objective, your mission is to tell what happened, what the defendant did or what you did, nothing more.

IT IS NOT YOUR DUTY TO JUDGE THE DEFENDANT

Do not reveal your distaste for cross-examination questions or the approach taken by the defense. You are not there to convict.

Do not use technical words, slang, curse words, jargon, or other words, which can be misunderstood or misinterpreted. Do not make "wise" remarks or interject additional comments of any type.

If there is a jury, look at them when you answer questions requiring an explanation if it is possible, otherwise direct your answers toward the Judge.

EXAMINATION IN CHIEF

It is the examination of a witness by whichever party that produces him/her or the first person to give evidence whether for prosecution or defence. It is also called the witness direct examination.

Giving direct testimony

Normally you will be a witness for the prosecution. Under these circumstances, you will be called to the stand by the prosecution. He or she will ask you to relate such facts as you may have concerning the case. This is usually referred to examination in chief or giving direct evidence. However, whether you are giving direct evidence, being cross-examined or giving testimony under re-examination, your technique of answering questions should be the same.

Take your time. If you cannot remember the answer to a question, it is permissible to check your notes to refresh your memory.

While it is permissible, it should be avoided if possible.

Be Responsive to the question if possible. Keep your answers as short as possible. Do not add information not requested. If at all possible answer questions with a simple "yes, sir" or "no, sir".

Do not guess. It is perfectly all right to not know the answer to something. If you don't know the answer, say so.

Do not state exact figures unless you know you are right.

Relate facts in sequential order.

- Easier to remember

- Easier to understand

If you make an error in your testimony, correct it as soon as you realize it.

Hearsay

Do not testify to things you are not personally aware of, or did not witness.

Opinions

Do not state or testify to either your opinion or that of another person.

Demonstrations and illustrations

If it is necessary to give a demonstration or use illustrations, stand in a position that will allow the jury and/or the judge to view your activities. Do not attempt to testify to an illustration or demonstration until you have finished preparing it.

Introducing Exhibits

Be sure you are able to identify all exhibits and that your personal mark is on them. You should have records concerning the location of the mark. This should be checked before court. Examine the exhibit and locate your mark before you identify the exhibit.

CROSS-EXAMINATION

Cross-examination merely means that the defense wishes to obtain additional information or detail concerning your testimony. The Defense is also interested in whether you have accurately and objectively presented the facts, as you know them. Further, they wish to determine if there is a reasonable basis for what you have stated and to ensure you obtained the knowledge in a legal manner.

Types of questions asked:

- Regarding pre-trial conferences

- Authority to carry firearms, etc

- Hypothetical questions

Techniques used

- Attempts to anger the witness:

- Mispronounces name.

Repeating the witnesses' testimony incorrectly.
Staring at the witness.
Comparing minor details in several witnesses' testimony.

Acting Overly friendly

Attempts to get you to lower your voice.
Treats witness as an inferior person.

NEVER, NEVER ARGUE WITH THE DEFENSE ATTORNEY

Never show any animosity toward him or her. This is their job, and the defendant's right under the constitution.

Understand the above techniques, this is what the defense does for a living; do not take the questions personally

Always wait a moment before answering. This will allow you to consider your answer and permit the prosecutor to object to the question if he wishes.

If at all possible, answer the questions with a simple "yes, sir" or "no, sir" do not elaborate unless it is necessary for clarification.

In spite of the fact that defense attorneys will occasionally demand a one-word answer, such as "yes" or "no," some questions cannot be answered in that manner. When this happens, simply tell the Judge you cannot answer the question correctly with only one word.

OBJECTIONS

Purpose of objections
Delays in answering questions to permit objections

RE-EXAMINATION

Occasionally, the prosecution will wish to clear up some confusion or emphasize some point after the cross-examination has been completed.
Providing additional testimony for the prosecution after the defense has completed cross-examination is called Re-examination or re-direct

Re-examination normally consists of one or more questions regarding your statements during your initial testimony. Usually the purpose is to clear up some confusion, which may have resulted from responses made during cross-examination.

No new material or information can be brought up during re-examination

LEAVING THE STAND

When your testimony is completed. Wait until the judge says you may step down. On leaving the witness stand, seat yourself in the public area of the courtroom, do not talk or nod to acquaintances in the courtroom, do not express any emotions.

COURT DUTIES

INTRODUCTION

Court duty is a form of protective duty. Constables assigned to court duties are expected to see that everyone affords the court proper respect. However, Constables on duty in the courts are also there to protect the judge and members of the court, the witnesses, the jury and see that the defendants do not escape. This is a considerable responsibility.

For many, this assignment is boring. There is seldom a major problem and the better you do the job the less likely a problem will arise. Yet, it is excellent practice. This is perhaps the best possible place to learn the art of maintaining a constant level of alert watchfulness. Such a skill is of great value when you are on patrol or when you are functioning as a bodyguard for some dignitary.

Every Court is under the immediate command of a Sub-Officer. It is his or her responsibility to be in court at least 15 minutes before the opening of the court. It is also his or her responsibility to ensure that the following duties are performed.

- All Constables assigned to court duties are accounted for and properly posted
- All prisoners who have been on bail and who have surrendered themselves for the purpose of appearing before the court are taken into custody
- All exhibits, returns of summons and subpoenas, regulations and records of previous convictions are checked off and ready for use by the court
- The court is opened with the appropriate proclamation
- Order and silence is maintained in the courtroom while the prisoner is being charged, during witness testimony and while the magistrate is speaking
- Entry and exit from the courtroom during the times stated above is restricted
- Ensure the courtroom is not overcrowded and that all passageways remain clear
- Keep unauthorized people from sitting in reserved seats, such as those for the witnesses, the Judge, jury or at the court table
- Ensure that all persons charged with criminal offenses are guarded by a Constable while they stand before the court

Dress

All personnel assigned to court duties are required to wear prescribed dress. This includes:

- White dress shirt or tunic
- Blue uniform trousers or skirts
- Red (or Blue) sash
- Short baton
- Handcuffs
- Pocket book

CONSTABLE ASSIGNMENTS

Judge's Orderly

As the Judge's orderly, a Constable is expected to meet the Judge upon his arrival at the court, escort him to his chambers, and to the courtroom itself. During the time the court is in session the Constable will remain in the courtroom and assist in the proceedings by passing documents, exhibits and other items between members of the court and performing other duties as designated by the magistrate that will expedite the judicial function.

- Remember the primary duty is to protect the Judge
- Assisting in the function of the court is secondary
- At all times be alert and watchful for any unusual activity, movements, or non-verbal signals which may indicate preparations for an attack upon the judge, members of the court or witnesses
- Depending on the number of Constables assigned, you may also be asked to call and swear witnesses

Dock duty

Dock duty consists of guarding the prisoner when called for trial. This is done both to keep him from escaping and to ensure his safety. Duties associated with dock duty include:

- Ensuring that all prisoners in custody are dressed and ready for court.
- Accepting all prisoners at the expiration of their bail.
- Ensuring that all prisoners are in the court for trial.
- Maintaining control of the prisoner's dock at all times during the trial.
- Ensuring all prisoners is returned to their cells after trial.

Door duty

Constables assigned to door duty are to ensure free passage, maintain order, call names and see that no unauthorized persons enter or leave the court while prisoners are being charged, the Magistrate is speaking or a witness is being sworn.

- The courtroom should always be searched for suspicious packages and briefcases before being opened to the public for the day.
- Court never is never to become overcrowded, by visitors
- Persons should not be allowed to stand during the trial. They should either be seated or be asked to leave the courtroom.
- Members of the public have no authorization to go into the area occupied by the members of the court or sit at the court table and should be restrained from doing so.
- During adjournment, the courtroom should be cleared for airing. During this time, you should again check for suspicious packages and briefcases
- You may be called upon to guard juries while deliberating (usually 2 Constables). If so, it will be necessary for you to be sworn.

Exhibits duty

The primary duty of the exhibits guard is to protect the exhibits and records of the court. This includes:

Ensuring that all exhibits needed for a trial are at the court and ready for presentation. Further that the exhibits correspond to the case.

See to the safety of all exhibits during recess and adjournments.

Ensure that all exhibits are returned to the exhibits room and stored properly when the trial is over. Procedures for the disposal of exhibits are outlined in Force Orders relating to Control of Crime Scenes and Evidence (2230 dated January 3, 90 appendix C), Firearms taken into Police Custody (2233 dated 22.3.90), Vehicles coming into Police Custody (2230 dated 1.3.90 appendix A) and Custody of Drugs (2250 dated July 1990)

Collection of Fines and Costs

The duty of the Constable (or Sub-Officer) in charge of collecting fines and court costs consists of accepting payment, recording the receipt of such payments and making out receipts. Additional duties often include:

- Calling witnesses. (Repeat the names of witnesses and defendants read by the Clerk of the Court when they are being called to testify to respond to the court)
- Maintaining the court book and recording the results of cases brought before the court (see also Force Order 2274 dated January 3, 1991 appendix B page 18)
- Recording the names of S.O.S. and men who attended court
- Preparing witness expense forms for Crown Witnesses
- Maintaining control over all commitments for convicted prisoners and warrants for safekeeping of prisoners remanded in custody.
- Ensuring that the jury list is displayed in each courthouse and station (see also Force Order 2104 dated October 1, 1987 appendix A).
- You may be called upon to swear witnesses and Constables who are going to guard juries while they are deliberating.

Enquiries Desk

Personnel assigned to the enquiries desk are there to assist the public in locating the right courtroom or court personnel.

- All personnel assigned to the enquiries desk should be thoroughly familiar with the function of the Courts and the offices of all court personnel. This should include knowledge concerning the location of the public prosecutor, and the defense counsel.
- Personnel assigned to the enquiries desk constitute the first line of defense against outside threats to the courts. These include:

Attempts to free prisoners
Attempts to attack prisoners
Attempts to attack members of the court

As such they should be particularly alert to individuals carrying briefcases, packages, overcoats or other material capable of hiding weapons.

Always make sure the metal detector is working. If it is not, you must search all briefcases and packages by hand.

You must also search all individuals who are wearing clothing capable of hiding a weapon. When the metal detector is not working, there should be a female Constable present to search females.

Holding section

At least one Constable should be assigned to the holding section to take care of abandoned children and females in custody.

Strong room

At least two Constables should be assigned to the strong room for the proper care and control of prisoners awaiting trial or awaiting return to their cells.

Liaison Duty

At least one Constable must be assigned to liaise with childcare agencies, contact places of safety for the placement of juveniles and contact the various parishes out of the corporate area regarding re-affiliation and maintenance orders.

RESPONSIBILITY FOR COURT SECURITY AND FUNCTIONS

The Clerk of the Courts and the Officer or Sub-Officer in charge of the station are the personnel in charge of presentation of all cases for trial at the court. Therefore, if a Constable is assigned to court duties and is not sure what his duties are or how he should act, he should contact one of the above.

OATHS AND PROCLAMATIONS

Constables are required to administer oaths and proclamations for the court:

- *An oath is a solemn appeal to God or a revered or dreaded person or object in witness that a statement is true or a promise shall be kept.*
- *A proclamation is an official announcement*

Proclamations are made for the openings and closing of the various courts and for instructions to the people in the courtroom. Oaths are used to swear people who are to give testimony before the courts or who will judge the testimony of witnesses.

- Each of the different courts has a separate proclamation for the opening and closing ceremony
- The oaths taken by witnesses and jurists differ in the various courts

A type of presentation is occasionally used to express the importance of telling the truth by witnesses and others who appear before the court. It is called an **affirmation**

An affirmation is a solemn declaration, but not an oath, permitted to be taken by a person who has a conscientious objection to taking oaths.

You will be expected to know which proclamation and oath to give at each court

PROCLAMATIONS AND OATHS

A Proclamation is an official notice to the public. Proclamations are used to open and close court sessions and to make other announcements as necessary. They differ greatly from an Oath. An Oath is a solemn appeal to God or a revered or dreaded person or object in witness that a statement is true or a promise shall be kept. An Affirmation is much the same as an oath and is used when the person has a sincere and conscientious objection to the taking of an oath. The following are the various proclamations, oaths and an affirmation used by the courts.

PROCLAMATIONS

Opening of the Supreme Court

"Oyez! Oyez! Oyez! All manner of persons having anything to do or say in this Her Majesty's Supreme Court of Judicature of Jamaica, now to be held here this day before Their Lordships the Chief Justice, and the Judges of this Court, let them come forth and give their attendance, and they shall be heard. Oyez! Oyez! Oyez! God save the Queen."

Opening of Circuit Court:

"Oyez! Oyez! Oyez! All manner of persons having anything to do or say at this Her Majesty's Court of Assize, Oyer and Terminer and Jail Delivery, now to be held here this day before His Lordship (name the Judge) (Chief Justice of the Supreme Court of Judicature in Jamaica or, one of Her Majesty's Judges of the High Court of JCF National Police College of Jamaica Faculty of Initial and Probationer Training Manual - Precis
JCF/NPCJ-FIPT/MAN/SFs/0022/2022

Jamaica) let them come forth and give their attendance and they shall be heard. Oyez! Oyez! Oyez! God save the Queen."

Opening of Coroner's Court

"Oyez! Oyez! Oyez! You good men of this Parish duly summoned to appear here this day before His Honour, (name the Magistrate) Coroner for the parish of (St. Ann), to enquire for our Sovereign Lady the Queen when, how, and by what means ("Roy Wilson") came to his death; answer to your names as you shall be called, every man at the first call, upon the pains and perils that shall fall thereon, Oyez! Oyez! Oyez! God save the Queen."

Opening of Resident Magistrate's Court

"Oyez! Oyez! Oyez! All manner of persons having anything to do or say at this Her Majesty's Resident Magistrate's Court to be held here this day before His Honour (name the Magistrate) Resident Magistrate for the parish of (St. Ann); let them draw near and give their attendance and they shall be heard. Oyez! Oyez! Oyez! "God save the Queen."

or

"Oyez! Oyez! Oyez! All manner of persons having anything to do or say at this Her Majesty's Resident Magistrate's Court and **Court of Petty Session** to be held here this day before His Honour (name the Magistrate) Resident Magistrate for the parish of (St. Ann); let them draw near and give their attendance and they shall be heard. Oyez! Oyez! Oyez! God save the Queen."

or

Oyez! Oyez! Oyez! All manner of persons having anything to do or say at this Her Majesty's Resident Magistrate's Court to be held here this day before His Honour (name the Magistrate) Resident Magistrate for the parish of (St. Ann); now **exercising jurisdiction** over the parish of St. Catherine let them draw near and give their attendance and they shall be heard. Oyez! Oyez! Oyez! God save the Queen."

Opening of Petty Sessions Court

"Oyez! Oyez! Oyez! All manner of persons having anything to do or say at this Her Majesty's Court of Petty Sessions to be held here this day before their Worships, (name the J.P's.), two of Her Majesty's Justices of the Peace for the Parish of (St. Ann), let them draw near and give their attendance and they shall be heard. Oyez! Oyez! Oyez! God save the Queen."

Opening of Special Sessions (spirit licence)

"Oyez! Oyez! Oyez! All manner of persons having anything to do or say at this Her Majesty's Court of Special Sessions to be held here this day before His Honour (name the Magistrate) Resident Magistrate for the Parish of (St. Ann) and their Worships (name the J.P's. two of Her Majesty's Justices of the Peace for the Parish of (St. Ann) for the purpose of (granting Licences under the Spirit Licence Act; provisionally or finally, settling the Jury List, etc.). Let them draw near and give their attendance and they shall be heard. Oyez! Oyez! Oyez! God save the Queen."

In Case of Murder after the Prisoner has been given in Charge of the Jury

"Oyez! Oyez! Oyez! If any person or persons can inform His Lordship, the Queen's Justice or.....the Director of Public Prosecutions on this Inquest to be taken between our Sovereign Lady the Queen and the Prisoner at the Bar, of any Felony, Treason, Murder or Misdemeanour committed or done by him, let them come forth and they shall be heard, for the Prisoner stands at the Bar for his deliverance, and all those that are bound by recognizance to give evidence against the prisoner at the Bar, let them come forth and give their evidence otherwise they will forfeit their recognizance. Oyez! Oyez! Oyez! God save the Queen."

For Silence after Verdict of "Guilty" in Murder Case

"Oyez! Oyez! Oyez! All manner of persons are strictly commanded to keep silence upon pain of imprisonment whilst His Lordship the Queen's Justice passes sentence of death against the prisoner at the Bar. Oyez! Oyez! Oyez! God save the Queen."

Closing of Circuit Court

"Oyez! Oyez! Oyez! All manner of persons having anything to do or say at this Her Majesty's Court of Assize, Oyer and Terminer and Jail Delivery now held here this day before His Lordship the Chief Justice of Jamaica let

them now depart and return on (" the 17th September, 1975") when they shall be heard. Oyez! Oyez! Oyez!
God save the Queen."

Closing of other Courts

"This Court now stands adjourned Sine Die, or until a stated date and time."

OATHS

Swearing of Witness at the R.M. Court

I swear by Almighty God that the evidence I shall give to this Court shall be the Truth, the whole truth and nothing but the truth.

Swearing of Witness in Coroners Court

I swear by almighty God that the evidence I shall give to this inquest touching the death
.....shall be the truth whole truth and nothing but the truth.

Swearing of Witnesses at Circuit Court

"I swear by Almighty God that the evidence I shall give to this Court and Jury sworn between our Sovereign Lady the Queen, and the Prisoner at the Bar shall be the truth, the whole truth and nothing but the truth."

Swearing of Prisoners a Circuit Court

"I swear by Almighty God that the evidence I shall give to this Court and Jury sworn between our Sovereign Lady, the Queen, and me upon my trial, shall be the truth, the whole truth and nothing but the truth."

Swearing True answers (Circuit Court)

"I swear by Almighty God that I shall true answers make to all such questions as this Honourable Court shall demand of me."

Swearing of Jurors (Circuit Court)

"I swear by Almighty God that I will faithfully try the several issues joined between our Sovereign Lady, the Queen, and the prisoner at the Bar and give a true verdict according to the evidence."

Hindu Oath

(While pouring some water into the witness's hands, the oath is recited to him, he drinks some of the water and wets his head with the remainder).

"I swear by this water which represents the River Ganges, according to the custom of my country and my religious belief, that I will speak the truth in this case, the whole truth and nothing but the truth."

ury-Where the Prisoner is Mute

"I swear by Almighty God that I will faithfully try whether (Name) the Prisoner at the Bar, who stands charged with Felony, is mute of malice or by the visitation of God, and give a true verdict according to the evidence."

Jury--Where Prisoner is Insane

"I swear by Almighty God that I will diligently enquire and a true presentment make for and on behalf of our Sovereign Lady, the Queen, whether (Name) the defendant who stands indicted for Felony be insane or not and a true verdict give according to the best of my understanding."

Scotch Oath

(The witness holds up his right hand and repeats the oath recited by the Officer as follows).

"I swear by Almighty God as I shall answer to God at the great day of judgement, that I shall tell the truth, the whole truth and nothing but the truth, in so far as I know, and shall be asked in this cause."

Chinese Oath

(A lighted match or a candle is given to the witness and he blows it out while the officer recites the oath as follows):

"You shall tell the truth in this case, the whole truth, and nothing but the truth: You have blown out the flame, and if you do not tell the whole truth, your life will be extinguished like the flame."

(Another form is to give him a saucer, which he breaks, the officer then says)

"You shall tell the truth in this case, the whole truth and nothing but the truth; (the saucer is cracked), and if you do not tell the whole truth, your soul will be cracked like the saucer."

Swearing in an Interpreter (English into any other language).

"You shall well and truly interpret the evidence which is given in the English language into the (Cuban) language and the (Cuban) language into the English language to the best of your skill and ability."

Swearing an Interpreter

(To speak to one who is Deaf and Dumb).

"You shall well and faithfully interpret the evidence given and all other matters and things touching the present case, from the signs made to you by (Name) into the English language to the best of your skill and ability."

Retirement of Jury (Swear 2 Constables)

"You swear by Almighty God that you shall keep this Jury in some private and convenient place. You will not suffer anyone to speak to them, neither will you speak to them yourself, unless it be to ask them if they have arrived at a verdict."

Foreman, Juror (Coroner's Oath)

"I swear by Almighty God that I shall diligently enquire and a true presentment make of all such matters and things as are here given me charge on behalf of our Sovereign Lady, the Queen, touching the death of the deceased, and shall without fear or favour, affection or ill-will, a true verdict give according to the evidence and to the best of my skill and knowledge."

Other members of the Jury

"The same oath which our Foreman has taken on his part we and each of us shall well and faithfully observe and keep on our part."

Swearing of Witnesses

"I swear by Almighty God that the evidence which I shall give to this Inquest touching the death of shall be the truth, the whole truth and nothing but the truth."

AFFIRMATION

"I, (Name) do solemnly, sincerely and truly declare and affirm that the evidence which I shall give to this Court, shall be the truth, the whole truth and nothing but the truth." (Every person objecting to the taking of an oath may make an affirmation).

RULES OF EVIDENCE

INTRODUCTION

Evidence and the Rules of evidence are of particular importance to the constable. The collection and presentation of useable evidence is the most fundamental element associated with the effective enforcement of the law. Unfortunately, in recent years the police training emphasis has been placed on other aspects of the profession. Clearly criminal identification procedures, the development of a more sophisticated communication system, computerized records and better response capabilities are important areas. However, the identification and capture of criminals is of little value if they cannot be convicted of their crimes. When the police know and abide by the Rules of Evidence, the man or woman who commits a crime is more likely to be found guilty when arrested and placed on trial.

Evidence and the rules of evidence are complicated subjects and a full understanding comes only after concentrated study. Nevertheless, it is a critical area for law enforcement personnel. You must know the rules!

CONSTABLES WHO DO NOT KNOW THE RULES OF EVIDENCE CANNOT PERFORM THE JOB IN A SATISFACTORY MANNER.

Those who do not know the subject become a liability. Even more, they become a hazard to the public and a potential danger to the Police Force itself. The police are sworn to protect the public, all the public. Moreover, if a police organization knowingly permits untrained or ineffective personnel to enforce the law, they themselves become vulnerable to civil and criminal action.

WHAT IS EVIDENCE?

Evidence is defined as: "That which is evident or manifest or which supplies proof. The means by which any fact or point in issue or question may be proved or disproved in a manner complying with the legal rules governing the subject"

Evidence consists of the;

- Testimony
- Hearsay
- Documents
- Things
- Facts

Which the court will accept as evidence of the facts in issue, and may divided into: *Direct Evidence*, *Circumstantial Evidence*, *Primary Evidence* and *Secondary Evidence* which will be discussed in details in the lessons.

The facts in issue in a criminal case are those facts which the prosecution must prove or disprove in order to succeed, or for the defence to established in order to defeat the prosecution case. The prosecution must present its **best evidence**. Any failure to establish the essential ingredients of the charge can results in a defence submission that there in no case to answer.

What does this means?

Evidence refers to all the things that can be used to prove or disproved something; this includes all possible things and is not limited to any group or type of element, idea or item

The purpose of evidence is to determine the truth of a situation, circumstance, incident or action.

What are the "Rules of Evidence"?

The Rules of Evidence refer to the rules governing whether the evidence offered is of a type, which should be considered by the court. Certain types of evidence have been found to be less relevant or have a

tendency to confuse the matter rather than assisting in the determination of the truth. The Rules of Evidence exist to screen out this type of evidence.

TO BE ADMISSIBLE

EVIDENCE MUST BE BOTH MATERIAL AND RELEVANT TO the case at hand and not rendered inadmissible because it infringes an exclusionary rule. For example Hearsay, opinion etc.

Material

The truth or fact, which is proven by the evidence, must be an issue in the case. Evidence that proves something not related to the case is irrelevant. For example your birth certificate proves you are a certain age. Even so, it would not be material in a burglary case in which you were the arresting Constable.

Relevant

Evidence to be relevant must seek to prove the truth of a fact at issue. For example, in a trial charging a person with bombing a store, information that he had been trained in explosives is relevant. Information that he had graduated from college may not be relevant.

Primary Rule of Evidence (Taylor's Rules of Evidence)

- The evidence must correspond with the pleading or particulars of the claim. This means that it must be proven that a crime or tort has occurred. (Corpus delicti)
- The evidence must be confined to the facts at issue. (Information not related to the case cannot be entered -- stops people from using the witness stand to make political statements etc.)
- The burden of proof rests with the plaintiff in a civil case or the prosecution in a criminal case. (The defendant does not commit a crime, he is presumed to be innocent until found to be guilty)
- The best evidence must be produce (This reduces the problem of tampering or contamination and the confusion of opinion or gossip as facts)

TYPES OF EVIDENCE

There are many different types of evidence, some of the major ones are:

Direct Evidence: Evidence that directly establishes the main facts in the question, usually the element of the crime.

The element of the crime

Elements are the circumstances, required which when taken together make up the criminal act.

By law each crime is composed of one or more of these elements. Some of these might be:

- | | |
|-------------------------|---|
| ▪ Knowingly | (The person knew he or she was doing the act) |
| ▪ Maliciousness. | (The person did it deliberately or intentionally to harm or injure the victim) |
| ▪ With aforethought | (The person planned or thought about it before they committed the act) |
| ▪ Entered. | (Actually went in, passed the entry point. Note: a hand or object used for entry May suffice) |
| ▪ A Dwelling structure) | (A home or house as opposed to a business, warehouse or other structure) |
| ▪ For the purpose of | (The person acted with intent) |
| ▪ Committed a crime | (The act was illegal). |

If even one element is missing no crime, for example, burglary is a felony, which is committed by any person who ***in the night, breaks*** and ***enters*** the ***dwelling*** of ***another*** with ***intent*** to ***commit a felony***

In this case, if the element "entered" is missing, a crime of burglary has not been committed. (although it may constitute an attempted burglary in this instance).

Circumstantial Evidence. Evidence, which establishes a circumstance or factor from which other relevant and material facts can be reasonably inferred.

For example, John and Jim were seen getting into a car. A cry from the same car is heard and Jim is seen leaving the car with a knife in his hand. John is found on the car seat bleeding from stab wound. While no witness saw Jim stab John, the circumstantial evidence infers that Jim stabbed John.

Real Evidence. Real evidence refers to evidence that is tangible. That is, visible and with substance. Exhibit, etc.

Real evidence requires no explanation. The court only needs information concerning where and when it was found and identification by the finder that the exhibit presented is the exhibit which was found at the location described.

Secondary Evidence. Evidence offered when no direct evidence exists.

A deposition or signed statement

This would be admissible as best evidence in a case where the person giving the deposition is absent from the island, too ill to travel, insane or has since died. Depositions are often taken from foreign tourists for this reason.

A true copy of an original document

This is best evidence in situations where the original is not available or no longer exists. (Often used in birth and death certificates, licences, diplomas, etc.).

An exact model of the original article or item

This is best evidence in situations where it is not feasible to bring the item to court. (The room of a house in which a murder took place or a model of an intersection where a fatal accident took place)

Corroborative Evidence - Evidence, which is independent of but tends to support the truthfulness or accuracy of evidence already given. (May be almost any type of evidence, real, circumstantial or secondary) Often it is evidence given by the second, third, fourth and fifth witness of a crime or incident.

Hearsay Evidence - Evidence given by a witness about what he or she heard from someone other than the defendant about what the defendant said or did.

Evidence normally not allowed.

- This is because the person who told the witness about what the defendant said or did was:
- Not under oath and,
- Cannot be cross examined about other possible meanings or motives for making the statement or doing the act.

However, there are circumstances in which it can be admitted. These exceptions for the most part fall under the term, RES GESTAE or “part of the story”.

- Dying Declaration
- In sexual assaults, when the crime is reported at the first opportunity by the victim
- Statement made by a victim concerning his or her feeling or mental state
- Written records of statement made by a deceased person in the regular course of duty or business.
- Other public documents, certificates, plans and records made during the normal course of business.
- When words are part of the act or transaction. (Words of impression of intention used by the defendant at the time he committed an assault and any words accompanying and explaining the act.

Presumptions

There are two types of presumption

- Presumption of facts – enables a jury to determine the an accused, by his actions intended that a certain thing should occur. By section 8 of the Criminal Justice Act 1967, it must be proved that the

accused did intend or foresee the result, **not** that it was natural and probable consequence of his actions. Presumptions of fact are rebuttable.

- Presumption of Law
 - Rebuttable
 - Irrebuttable

Presumptive Evidence - Virtually the same as circumstantial evidence, when proof of one fact infers the existence of another fact, the second fact is said to be presumed

Presumption - A justifiable inference. When one party, such as the prosecution presents a presumption in court it forces the other party to established facts, which are contradictory to that presumption.

Irrefutable or conclusive presumptions – A presumption that cannot be challenged

- A child under 12 years of age is incapable of committing a crime (differs in different countries)
- A male under 14 years of age cannot commit rape
- A female under 16 years of age cannot give consent.

Refutable presumption - Presumptions that can be contradicted on the basis of evidence. (A person is presumed to be sane and in possession of all his faculties).

Evidence of Character - (After conviction) In most cases, information regarding a person's character and reputation is not admissible. However, an exception is made for prior convictions. Evidence of character consists of the record of any previous convictions and the results of enquiries made and what the constable testifies can depend of his own personal knowledge. Evidence of previous convictions is based on the production of a conviction sheet.

Judge and Jury

- The Judge determines question of Law
- The Jury determines questions of facts
- The judge may however by an exception be able to direct a jury to discharge an accused if the prosecution has failed to establish their case.

CRIMINAL INVESTIGATION BEREAU

WITNESSES AND WITNESS TESTIMONY

A witness is a person who is believed to have knowledge, information, objects, documents or other evidence that may be of value in determining the truth of a case. A person can be called a witness for the prosecution (a "prosecution" witness) or the defence (a "defence" witness). Generally speaking they may give this evidence in three ways.

- Oral testimony. The relating of information orally on the witness stands
- Submission of real evidence - While the real evidence speaks for itself, oral testimony is required to identify it and shows its relationship to the case.
- Submission of documentary evidence - This is a special form of real evidence and requires that oral testimony identify it, establish its relationship to the case, authenticate it and in most cases read it to the court.

TYPES OF WITNESSES

The Lay Witness

A person who claims to no special training related to the evidence to be given. The lay witness is normally not permitted to give his or her opinion as testimony. However there are several exceptions to this rule in that opinion testimony is often allowed in the following areas:

- Whether a person was intoxicated
- The approximate speed of the vehicle

- Estimates of a person's age
- Opinion about a person's emotional state
- Physical properties, weight, height, size, visibility, colour, distance, the physical condition of a person etc

The Expert Witness

A person who has more than the usual knowledge in an area of testimony, this might be medicine, drugs, ballistics, fingerprints, blood, weapons or virtually any other field.

- Can testify to the same things as a lay witness and in addition
- Can give expert testimony (opinions) about things, which fall, within his or her area of expertise, must satisfy the court that he has the expertise
- Expert testimony (the opinion of the witness) is only used on matters of such a technical nature that the court requires an explanation so that the meaning of an exhibit or an act can be understood.
- Expert testimony may constitute proof

Competence and attitude of the witness

The competence of a witness depends on the opinion of the court, generally speaking an idiot, lunatic, felon under sentence of death, or a drunken person is considered incompetent of giving evidence but a child who is too young to understand the nature of an oath, may give evidence if the court is satisfied that the witness is sufficient intelligence, and understand the duty of speaking the truth, but for a conviction there must be material corroboration of such evidence, also deaf and dumb person may give evidence if they can be communicated with either by means of signs, token, or writing and appear to have intelligence.

Hostile witness

A person who shows himself to be opposed to the side that called him as a witness may be regarded as a hostile witness. This is not an automatic designation. The decision is up to the court. If considered a hostile witness, a change in the questioning is allowed:

- Leading question.
- Cross-examination.
- Contradict testimony using other evidence.
- Discredit testimony.

Unwilling witness

A person who refuses to give evidence without just reason is classified as unwilling witness. In extreme cases, the court may hold such a witness in contempt of court. Contempt of court is a violation of law in that the person refused to obey one or more orders of the court. A fine, imprisonment or both can punish it.

Points to be observed by the perfect witness

- He should relate in ordinary language what he has seen, heard of felt, etc
- He should confine himself to facts, avoiding inferences, opinions and beliefs
- He should tell the story in the actual order of sequence of events as they occurred
- He should speak from memory, expressing himself clearly and accurately
- He should not produce his note book and read his evidence
- He should listen to questions carefully, make certain he understands them and give an intelligent and proper answer to the best of his ability
- He should answer the questions put to him promptly and in as few words as possible
- He should never lose his temper under cross-examination, but should always reply politely even to offensive questions
- He should not show partisanship or prejudice, but should give his evidence fairly and impartially, giving all the evidence in favour as well as against the accused

- If he does not remember or know something he should say so
- He should tell the truth, the whole truth and nothing but the truth

Privileged information

Knowledge or information that a witness is not required giving. Usually, privileged information is given to the witness in confidence and as such confidence is a required aspect of the work or profession. The court determines what is privileged.

- Usually, privileged information includes:
- Information given to a priest in the act of confession
- Testimony of a wife or husband against the spouse
- Communication between a lawyer and his or her client
- Communication between a doctor and his or her patient
- The defendant is not required to answer any questions, which might expose him to the risk of showing that he committed a crime other than the one for which he is being tried.

Dying Declaration taken by a competent witness

This is the statement of a person who knows that he or she is dying of injuries and there is no hope of recovery. The declaration is limited to the facts and circumstances that caused his injuries

Any person can take a dying declaration but a Justice of the Peace is preferred.

The declaration is admissible if:

- The person actually dies
- It is shown that he is in fact aware that there is no hope of recovery
- Had he not died would have been a competent witness
- The trial is for the charge of murder or manslaughter
- The statement was taken in the exact words of the dying person.
- The statement concern facts or circumstances of the injury received by the dying person
- Record the actual words of the dying person

Include the comments of the dying person, which proves he knows he is dying

If the accused is present give the dying person the opportunity to identify him (or her).

Deposition (usually taken by a magistrate)

AMENDMENT TO EVIDENCE ACT

The Evidence was recently amended to allow for, inter alia, the written statement of a witness to be admissible in evidence. By this means, the Act seeks to address the common experience of the problem of witnesses being killed or kept out of the way by fear or threats of bodily harm.

In order for the statement to be admissible however, it must be recorded in conformity with the Act, which imposes the requirement, that it must be accompanied by a declaration by the person who made it. This declaration should record at the foot of the statement in the following form:

“This statement consist of pages, each sign by me, is true to the best of my knowledge and belief and I make it knowing that if it is tendered in evidence, I shall liable to prosecution if I have willfully stated in it, anything, which I know to be false or do not believe to be true”.

Deposition vs Dying Declaration

Must be under oath	Oath not necessary
Must be in writing	May be oral or written
Must be taken by a magistrate	Taken by any one
Accused must be present or given notice	Accused need not be present
About and indictable offence	Regarding injuries to self
May be at trial only if deponent is; dead, insane, or so ill he/she cannot travel or be absent for the island	May be given by the person taking it or a person present while it was being taken. (Only for trial of Murder or Manslaughter for the declarant)
Should be signed by Witness and Magistrate	Need not be signed

THE NEW JUDGE'S RULES

The aims and objective of the new Judges Rules:

- A:** afford safe guard for suspects from bias and unjust treatment
- S:** standard procedures for all Forces and countries
- P:** protect any person (Police) from any form of allegations of wrongdoing

Guiding Principles

- C:** citizens have a duty to help the police to discover and apprehend wrong doers
- A:** arrest, which is the only means by which the police can compel any person to or remain at the station
- S:** solicitors must be allowed to communicate and consult with his/her client privately at any stage of the investigation
- E:** evidence whenever there is sufficient evidence to prefer a charge against any person. That person should be charge or informed that he/she may be prosecuted with out delay.
- S:** statements, made by any person should be voluntary; this should not be obtained by use of fear, threat or force, prejudice or promises by any person in authority. (Police)

These rules supersede the rules previously made by the Judges.

NOTE: The above rules do not affect the principles:

Those citizens have a duty to help a police officer to discover and apprehend offenders

That police officers, otherwise than by arrest, cannot compel any person against his will to come to or remain in any police station

Every person at any stage of an investigation should be able to communicate and to consult privately with a solicitor. This is so even if he is in custody provided that in such a case no reasonable delay or hindrances is caused to the process of investigation - the administration of Justice by his doing so.

That when a police officer who is making enquiries of any person about an offence has enough evidence to prefer a charge against that person for the offence, he should without delay cause that person to be charged or informed that he may be prosecuted for the offence.

That it is a fundamental condition of the admissibility in evidence against a person equally of any oral answer given by that person to a question put by a police officer and of any statement made by that person, that it shall be voluntary, in the sense that it has not been obtained from him by fear or prejudice or hope of advantage, exercised or held out by a person in authority or by oppression.

The principle set out in paragraph (c) above is overriding and applicable in all cases. Within that principle the above Rules are put forward as a guide to Police Officers conducting investigations. Non-conformity with these Rules may render answers and statements liable to be excluded from evidence in subsequent criminal proceedings.

The New Judges Rules made by Her Majesty's of the Queens' Bench Division were published in England on 24th January 1964, and came into operation on 27th January 1964. These Rules were adopted by Judges of the Supreme Court of Jamaica and shall go into operation on 1st May 1964. The following are the Rules:

(1)

When a Police Officer is trying to discover whether, or by whom, an offence has been committed he is entitled to question any person, whether suspected or not, from whom he thinks that useful information may be obtained. This is so whether or not the person in question has been taken into custody so long as the person has not been charged [or] informed that he may be prosecuted for it.

(2)

As soon as a Police Officer has evidence which would afford reasonable grounds for suspecting that a person has committed an offence, he shall caution that person or cause him to be cautioned before putting to him any questions, or further questions, relating to that offence.

The caution shall be in the following terms:

"You are not obliged to say anything unless you wish to do so but what you say may be put into writing and given in evidence."

When after being cautioned a person is being questioned, or elects to make a statement, a record shall be kept of the time and place at which any such questioning or statement began and ended and of the persons present.

(3a)

Where a person is charged with or informed that he may be prosecuted for an offence he shall be cautioned in the following terms:

"Do you wish to say anything? You are not obliged to say anything unless you wish to do so but what ever you say will be taken down in writing and may be given in evidence."

(3b)

It is only in exceptional cases that questions relating to the offence should be put to the accused person after he has been charged or informed that he may be prosecuted. Such questions may be put where they are necessary for the purpose of preventing or minimizing harm or loss to some other person or to the public or for clearing up an ambiguity in a previous answer or statement. Before any such questions are put, the accused should be cautioned in these terms:

"I wish to put some questions to you about the offence with which you have been charged or about the offence for which you may be prosecuted. "You are not obliged to answer any of these questions, but if you do, the questions and answers will be taken down in writing and may be given in evidence."

Any questions put and Answers given relating to the offence must be contemporaneously recorded in full and the record signed by that person or if he refuses by the interrogating Officer.

(3c)

When such a person is being questioned, or elects to make a statement, record shall be kept of the time and place at which any questioning or statement began and ended and the persons present.

All written statements made after caution shall be taken in the following manner:

(4a)

If a person says that he wants to make a statement he shall be told that it is intended to make a written record of what he says.

He shall always be asked whether he wishes to write himself what he wants to say; if he says that he cannot write or that he would like someone to write it for him, a police officer may offer to write the statement for him. If he accepts the offer the police officer shall, before starting, ask the person making the statement to sign or make his mark to the following:

"I _____ wish to make a statement. I want someone to write down what I say, I have been told that I need not say anything unless I wish to do so and that whatever I say may be given in evidence."

(4b)

Any person writing his own statement shall be allowed to do without any prompting as distinct from indicating to him what matters are material.

(4c)

The person making the statement, if he is going to write it himself, shall be asked to write out and sign before writing what he wants to say, the following:

"I make this statement of my own free will. I have been told that I need not say anything unless I wish to do so and that whatever I say may be given in evidence."

(4d)

Whenever a police officer writes the statement he shall take down the exact words spoken by the person making the statement, without putting any questions other than such as may be needed to make the statement coherent, intelligible and relevant to the material matters: he shall not prompt him.

(4e)

When the writing of a statement by a police officer is finished the person making it shall be asked to read it and to make any corrections, alterations or additions he wishes. When he has finished reading it, he shall be asked to write and sign or make his mark on the following Certificate at the end of the statement:

"I have read the above statement and I have been told that I can correct, alter or add anything I wish. This statement is true. I have made it of my own free will."

(4f)

If the person who has made a statement refuses to read it or write the above-mentioned certificate at the end of it or to sign it, the senior police officer present shall record on the statement itself and in the presence of the person making it what has happened. If the person making the statement cannot read, or refuses it the officer who has taken it down shall read it over to him and ask him whether he would like to correct, alter or add anything and to put his signature or make his mark at the end. The police officer shall then certify on the statement itself what he has done.

(5)

If at any time after the person has been charged with, or has been informed that he may be prosecuted for an offence a police officer wishes to bring to the notice of that person any written statement made by another person who in respect of the same offence has also been charged or informed that he may be prosecuted, he shall hand to that person the true copy of such written statement, but nothing shall be said or done to invite any reply or comment. If that person says that he would like to make a statement in reply, or starts to say something, he shall at once be cautioned or further cautioned as prescribed by rule 3(a).

Persons other than police officers charged with the duty of investigating offences or charging offenders shall, so far as may be practicable comply with these rules.

HANDLING DISTURBANCES

INTRODUCTION

Disturbances are one of the more common types of problems Constables are required to handle. They are also one of the most potentially dangerous. As used here, a disturbance refers to some type of disagreement or argument between two or more people. This may be a domestic situation, a dispute between landlord and tenant, a situation arising out of the dismissal of an employee, a bar fight, a dissatisfied customer or merchant, an illegal march of some type, or any of a number of different situations. In all these types of situations, the Constable is usually called to the scene by one of the participants or by a witness to the event. Usually this is after the problem has reached a crisis stage. Early attempts by the participants to reach an agreement or come to terms have already failed and their emotions are very high.

While some will expect you to work some type of miracle and resolve the situation to everyone's satisfaction, you will never be able to satisfy everyone. In fact, in many cases, it will appear to be a "no-win" situation. The emotions and attitudes of the people involved almost guarantee this will occur. For one side, your arrival is looked on as re-enforcement for their position. This is particularly true in the case of the person who requested the police. For the other side, you are seen as the enemy or an unwanted meddler in their private affairs. In spite of these expectations, you must avoid taking sides.

The police objective at any disturbance is always the same - to protect life and property and preserve the peace. Based on this objective, your duty is clear, when you first arrive on the scene, your primary job is to restore order, protect the people involved from each other (or themselves) and arrest anyone found violating of the law. Once this has been accomplished, you must attempt to de-fuse the situation. This is not a simple task.

Handling a disturbance is one of the more dangerous jobs you will be expected to perform. There are two reasons for this. First, it is something you do so often it tends to become routine. When responding to disturbance calls, you will encounter the same people over and over again and eventually you come to expect certain types of behaviour. Second, highly emotional individuals are very unpredictable. A person may behave non-violently on any number of occasions then suddenly launch a violent attack against you.

In spite of the danger, it is vital to completely de-fuse a disturbance or it will just erupt again. For this reason, it will be necessary to discuss both safety and conflict mediation techniques.

Threats

Another very common type of offence encountered when handling disturbances is the threat, It is defined as: The offer, written or verbal, to do harm to someone else

Types of threats

Threat to murder

To maliciously send or utter directly or indirectly any letter or writing threatening to kill or murder anyone it is a felony

Threat to gain

To maliciously threaten to publish any libel on any person is provided for under the Larceny Law. (See a also extortion and blackmail)

Dealing with a threat

Obtain the name, address, age and occupation of the person reporting and the person accused. These should be recorded in the station diary, along with the nature of the threat and any other pertinent data such as witnesses, etc.

Index "I" in red ink under the subject threat and at the back of the Diary

The complainant should be advised to take civil action or proceedings and should be assured that the person will be warned as early as possible not to carry out the threat.

A Constable should be dispatched immediately to warn the accused not to carry out the threat. Record this warning and the result of the inquiry in the station diary. Cross-reference this entry with the threat entry.

SAFETY PROCEDURES FOR HANDLING DISTURBANCE CALLS

The basic philosophy for handling a disturbance safely is to control the situation. Charles Remsberg (Northbrook, IL describes such a process in the book, The Tactical Edge. USA: Calibre Press, 1988). As set out by Remsberg, this process involves:

JCF National Police College of Jamaica Faculty of Initial and Probationer Training Manual - Precis
JCF/NPCJ-FIPT/MAN/SFs/0022/2022

Developing a tentative plan of action before you arrive

Using extra caution and care when approaching the scene

Safely entering the location

Physically placing everyone involved in specific locations

Calming the people involved

Exploring the reasons for the dispute

Determining and conducting the police action most likely to prevent further argument

Departing safely from the location.

Evaluating your performance

Developing a tentative plan of action before you arrive.

Obtain as much information as possible from the dispatcher.

What are the relationships of the people involved? Is it a family, landlord - tenant, etc.

Has anyone been injured? Has an ambulance been called?

Has anyone had previous contact with the police? Previous disturbances? Assaults? Arrests? Etc.

Are there weapons involved?

Have any of the people been drinking or taking drugs?

Is the dispute still going on?

Based on the above information and any other background data, available form a tentative plan about where you will park, whether you should ask for additional assistance, etc. The plan should include:

How can you best appear at the door without unnecessarily exposing yourself as you approach?

Park vehicle so it cannot be seen from door or window?

What about going to the rear door instead of the front door?

Walk on other side of street until you are at the location?

Are there children, fences, dogs etc.?

Which Constable will make the first contact?

Who will act as cover and protection, during the first phases of the contact?

Use extra caution and care when approaching the scene.

Watch shadows, bushes, fences, etc. as you approach location.

Watch for people looking at you through windows, doors, etc. at the location.

Mentally determine a possible escape route for use if you are fired on.

The Constable who is going to make contact first should stand to the KNOB side of the door (any one answering your knock will have to open the door wider to see you).

Listen before knocking (or entering). Do not get in a hurry at this point.

If you are met by the victim,
Verify the name in low tones and

Immediately ask the location of the suspect.

Then ask –

If they are in danger, and

If the victim needs medical attention

Make sure you understand the answers before you continue.

Safely entering the location

If it seems safe to enter the premises, ask that any dogs be tied up, placed in a bedroom, etc.

The observing Constable should wait 3-4 seconds before following the contact Constable into the location.

Close the door when both are in the location.

Be friendly and cordial but cautious, particularly if you cannot see a person's hands. If you wish to see behind a person, The contact Constable should slowly move around the person while talking to him so that the observing Constable can see if the person is hiding a weapon.

You may wish to conduct a preliminary search for weapons. If so, use a friendly approach, such as "You don't have any cannons, bombs or missiles on you do you? You don't mind if I look, it's regulations you know".

Once in the location, the two Constables should stay well apart from each other. If there are only two people involved, one Constable should talk to each.

Physically placing everyone involved in specific locations

The first step in calming a dispute is usually to separate the people involved.

Separate them visually as well as physically. However, the Constables should maintain visual contact.

One system is to move into positions where the persons involved must face away from each other to talk to the Constables, while the Constables can observe each other at all times.

Another system is to place the individuals around the corner or in different rooms from each other so neither can see the other while the Constables take up a position, which will allow them to monitor each other.

Do not stand or sit too close to the person and do not touch the person unless it is absolutely necessary.

If you want them to move to a particular place or stop them use a "cow herding" gesture, spreading your arms to the side and waving in the direction you wish them to go.

Try not to position the people in a kitchen or a bedroom or bathroom. Too many possible weapons are available at their disposal

Calming the people involved

Turn off any radios, TV or any other source of noise

Speak in short simple sentences; calmly repeat them over and over again, until they respond. "Sir, please calm down, I want you to sit down here"

If there are small children crying in the house have them taken next door or into another room and out of sight.

Ask any neighbours, friends or guests to leave the premises (at least until you have left)

Use calculated distractions, comment on obvious personal interests, ask them to call the station for you, ask when they moved to this location, etc. Another technique is to start by asking questions that can be answered by a "no" and then go to questions likely to be answered by a "yes"

Whether you are sitting or standing, remain alert and prepared.

Never let any of the people involved leave the room alone. If they wish to go to the toilet, go with them or tell them they must wait.

DO NOT JUST TELL THEM TO STOP FIGHTING OR YOU WILL ARREST THEM - IT WILL NOT SOLVE THE PROBLEM. In fact it may make the problem much worse.

Exploring the reasons for the dispute

Once the individuals are to some extent calmed down, determine the reason behind the disturbance

Do not take sides, but listen to what they have to say

Do not minimize the problem. Something that is minor to you may be a major problem to them

Determining and conducting the police action most likely to prevent further argument

Try to get the people involved to come up with a way of preventing further argument (for the time being). Often it is best to discuss the negative aspects of continuing the argument and asking if they can think of a way to avoid being arrested, etc

Do not try to give them long term solutions to their problems, refer them to others qualified to do this

Departing safely from the location

When departing, the Constable the greatest distance from the door should leave first

Try to get the most emotional person to open the door for you

Tell them if there are more problems, to call and ask for you personally

Do not directly threaten to arrest if you return

Evaluating your performance

What were your mistakes?

Did you keep each other in view?

Discuss what worked and what didn't

Take a minute to unwind and relax

CONFLICT MEDIATION - UNDERSTANDING THE PROBLEM

The heart of handling any disturbance involves calming the people and causing them to deal with the problem in a peaceful manner. To do this effectively, we must learn about conflict, what causes it, what keeps it going and what resolves it. We must not only examine conflict itself but also how we as Constables can affect the process in negative or positive ways.

Definitions

Conflict: - Any action or activity that is incompatible between two or more persons

Mediation: - A process by which individuals in a conflict attempt to settle their differences with the assistance of a Constable

The levels of conflict

- ✓ Conflict within one's self
- ✓ Conflict between two or more people
- ✓ Conflict within a group
- ✓ Conflict between two or more groups

Types of conflict

Relationship conflicts (disagreements between immediate family, friends, neighbors, etc.). Characterized by:

- ✓ Strong emotions

- ✓ Mis-perceptions
- ✓ Mis-communication
- ✓ Poor communication
- ✓ Tends to be repetitive and re-occurring
- ✓ Arguments are circular in nature. (They keep coming back to the same complaint)

Data conflicts

(Disagreement on what is known or believed). Characterized by:

Misinformation

Lack of information

Overload of information (Too much information related to subject but not necessarily applicable to what is or is not true)

Interest conflicts

(Disagreements on how something should be done - agreement may already exist on what should be done). Characterized by:

Interests focus on procedures, not content. (Often associated with employer - employee disputes in cost vs quality, etc.)

Trying to deal with too much at once - there are usually too many areas of conflict to permit compromise.

(It must be broken down into small units to be handled)

Often based on each individual's vested interests

Structural conflicts

(Disagreements about what should or should not happen based on the perceived status of those involved). Characterized by:

Lack of communication concerning basis for restrictive rules or directives (Parent - child, landlord - tenant, employee - employer, etc.)

Rule or directive is usually disadvantageous, or perceived to be disadvantageous for the person with the least amount of power.

Value conflicts

(Disagreements on personal or professional values such as religion, work performance, choice of friends, attention to family etc.). Characterized by:

Agreement of the nature of the problem but not on what types of behaviour is appropriate types of responses to the problem. (Often the source of relationship conflicts)

Interpreting the behaviour of persons in conflict

The behaviour of others (and ourselves) can be interpreted by the use of an awareness wheel, a method of determining the level of emotions reached during a conflict. It can also be used to monitor your own level of emotions while dealing with conflicts.

Sensing. (Using the senses) - Is the person responding to what their senses are telling them? (Not feeling pain, discounting threats, not seeing obvious weapons, drugs or injuries, etc.)

Doing. (Actions) - What is the person doing? A word, actions, body language, tone of voice, is he depressed, outraged, threatening, fearful? What about your own actions? Are they helping to calm the situation?

Wanting. (Desires) - What does the person seem to want? To kill the other person? To make them pay for what they have done? To get away from the other person? What do you want? To get out of the house? To punish the person for something they may have done? To become friendlier with one of the people involved?

BE SURE YOUR DESIRES ARE NOT INCREASING THE PROBLEM

Feeling. (Emotions) - What is the primary emotion seen, anger, fear, frustration, embarrassment?

Address yourself to the primary emotion when talking. Monitor your own feelings while working to calm those involved.

IF YOU BECOME EMOTIONAL YOU WILL NOT BE EFFECTIVE

Thinking. (Beliefs) - What does the person seem to believe? Is it that husbands should be allowed to date other women? Is it that the man doesn't think a wife should work? Is it that the employee thinks the employer should care for his employees? Is it that a landlord should not raise the rent on a tenant without notice? Are these beliefs the reason for the conflict?

DO NOT LET YOUR PERSONAL BELIEFS INTERFERE WITH YOUR ABILITY TO REMAIN OBJECTIVE AND NEUTRAL DEALING WITH THE PROBLEM

DO NOT TELL THE PERSONS WHAT THEY CAN OR CANNOT DO. IN THE LONG RUN IT WILL NOT WORK

Use problem solving questions and listen to their answers. Press for specifics

"What is the problem?"

"What is causing the problem?"

"What are the possible solutions?"

"Realistically, what is the BEST solution?"

In the beginning of the interview, use "open ended" questions - these are questions that cannot be answered with a yes or no answer

"Tell us what happened today"

"Whom did you speak with today?"

To gather specific information and facts, ask "closed ended" questions - Questions that can be answered with very short responses

"Did he give you warning that the rent would be raised?"

"What exactly did they tell you?"

EFFECTIVE PERSUASION AND APPEAL

The most effective methods of persuasion are to redirect the communication between those involved toward a solution using one of several styles of appeal. George Thompson in his book, Verbal Judo sets out four different types of appeals that seem to work

Ethical - Reassure the people involved that the Constables are present to assist them and redirect the focus of the conflict from the issue to one of the ethics involved.

Rational - Use common sense, reason, and logic as the basis of the discussion Reassure the people that they are logical and OKAY persons. Switch to other issues to demonstrate their rationality. When they begin to see their own rationality work, return to the original issue.

Practical - Use whatever works to relate to the person on his or her level. Do not concern yourself with permanent or long-term solutions, work for a truce. Then suggest locations where the problem can be objectively examined.

Personal - Convince the person that it is, "in his or her best interests," to come to some sort of temporary and mutually acceptable arrangement until the problem can be properly addressed.

Verbal and non-verbal considerations

Problem-solving language - Create a positive image by using positive adjectives such as creative, enthusiastic, productive, intelligent, gentle, kind, respected, valued, leading, prestigious, etc.

Negotiate - Use the principle of giving in order to receive, see to their comfort as you begin the interview, ask if all the stoves are off, if electrical appliances are turned on, if the children are all right, if there is someone they would like you to call, etc.

Direct their attention to determining other methods of achieving their goals.

Determine if they really prefer their stance in the dispute or if there might be a stronger argument.

Ask them how they would handle the problem if they were on the other side of the dispute.

Ask about various possibilities for compromise.

Lower the expectations of the person. They may not get an apology because of pride, but they can understand that the person may still feel he has made an error and want to find a honourable, (face saving) way of correcting it.

Don't make statements about the facts or the incident; put all information in a question format, this avoids the appearance of taking a side.

Determine what the person **THINKS** the other person really means - look for unrealistic interpretations.

Summarize the information obtained, "Let me see if I understand what you just said," repeat the data and ask for verification, then ask for details in various areas.

Handling the impasse

An impasse is a point where everything seems to stop. No one is willing to compromise any further or risk losing face. Sometimes they would prefer arrest to losing face. When this happens, it is necessary to restart the communications.

Use a hypothetical future event or example - "What if next week.....how would you view that?"

Use multiple issues, "Lets say that he.....but at the same time they..... and his mother was..... how would you react to that situation?" Then change the issues and ask again, keep this up until they tire of it.

SUMMARY OF MEDIATION STRATEGY

Introduction

Separate and position as previously indicated, with each person accompanied by a Constable. Have the person sit down. Set the ground rules, (only one person talks at a time, we are going to listen carefully to everyone, etc.)

Ventilation

Let the people talk about the situation, don't interrupt unless it begins to look like they are getting worked up again.

Problem Identification

What did they say during the information stage? Repeat the statement of the problem, ask them to repeat the details, ask, "What will it take to make you feel better?" Then ask, "Are there any other possible solutions?"

Problem solving

Identify any common ground - they all want to find a solution, everyone only wants what they are due, etc.

Seek areas for at least a temporary compromise?

Agreement and closure

Set out any agreed upon conditions, repeat any areas still to be negotiated. Ask for alternative solutions, do not pay attention to wise remarks, continue to press them for alternatives they can live with. Compliment them for reaching a compromise in such a difficult situation.

DOMESTIC DISTURBANCES

Based on statistics around the world, the handling of a domestic disturbance is one of the more dangerous calls a Constable can handle. The high level of emotion is the primary source of the danger. However, there are other factors that must be considered.

- ✓ At least one and possibly both of the persons involved usually consider this a private matter
- ✓ Both of the principles are embarrassed that the police were called
- ✓ The relationship between close relatives is such that often they feel they can yell at each other, but they will not let anyone else do so.
- ✓ Both are almost always mad at themselves as much as they are each other. Depending upon how long they have been arguing, they may be very depressed and possibly suicidal - that is, they really don't care what happens to them at that moment.
- ✓ They will often bitterly resent anyone else telling them what to do. Attempts to tell them what to do will often result in a smoldering anger that will only break out again later.
- ✓ Follow the procedures for safely responding and handling any disturbance call. Use conflict mediation.
- ✓ Do not get in a hurry to resolve the conflict. Take enough time to make sure the problem is at least temporarily handled. Otherwise, you will just be coming back later and may have to make an arrest.
- ✓ Do not take sides. Provide information as to where they can get assistance that will help resolve the problem.
- ✓ No matter how many times you go to the same location to stop a family oriented disturbance, do not assume you can predict the actions of the people involved. Always keep alert and follow the rules while approaching the location, check for weapons and be prepared at all times.
- ✓ Watch out for attacks by both the husband and wife. Watch out for attacks by the children.

CRUELITIES TO ANIMALS ACT 69/60 VOL. 4

INTRODUCTION:

The Cruelty to Animals Act was introduced to safeguard against the general maltreatment of Animals. Also to give Police powers to take the appropriate action as regards to the suffering of animals.

DEFINITION ANIMAL:

Under the cruelty to Animals Act

The term animal means any horse, mare, gelding, colt, filly, bull, cow, ox, steer, heifer, calf, mule, ass, ram, ewe, sheep, lamb, boar, sow, borrow, hog, pig, goat, kid, dog, cat or any other animal whether of the kind of species particularly mentioned, or of any other kind or species whatsoever, and whether a quadruped or not.

OFFENCES:

To cruelty beat, ill-treat, starve, overdrive, overload, abuse torture, or otherwise maltreat any animal.

To work or cause to be worked any animal in such a condition as to be unfit for work, suffering from emaciation, gall sores disease, deficient feeding or otherwise.

To cause any injury or suffering to any animal by willful negligence.

To encourage, aid or assist at the fighting or baiting of any bull, dog, cock, or any other kind of animal whether domestic or wild, or to keep use, arrange or permit any place to be used for the purpose of fighting or baiting animals or to receive any money for admission to any place used or kept for such purpose.

To convey, carry or place any animal in any cart, vehicle, vessel, boat or otherwise in such manner as to cause unnecessary pain or suffering.

To use employ, or permit to be used etc. in any manner of work, any animal which is brought or delivered for the purpose of being destroyed, or to be found using or employing such animal.

To willfully, carelessly or negligently cause unnecessary suffering in killing any animal

To use any animal under the age of 2 1/2 years in any cart, plough or carriage, or as a beast of burden

To willfully nick or dock the tail of any horse, mare, gelding, colt filly or mule, any such person into whose possession is found any animal so docked or nicked shall be "**Prima Facie**" deemed to be the person who docked or nicked such animal. (PRIMA FACIE MEANS - AT A FIRST VIEW)

To procure, have in possession, or deliver, any bird, or animal for the purpose of being used for trap shooting (s. 12 (a)).

To secure or cause to be secured the tongue of any animal in such a manner as to cause unnecessary suffering or pain - "\$5 or 3 Months.

POLICE POWERS:

POWER TO SEIZE OR DETAIN

It shall be lawful for any Constable to seize or detain for the purpose of taking before courts as exhibit any animal in respect of which an offence against this law has been committed, whether the offender is arrested, or prosecuted (S. 14). If the owner of the animal is convicted he may be ordered to pay in addition, reasonable costs of maintenance (including the seizure to the date of conviction).

SMALL ANIMAL

It shall be lawful for any Constable to slaughter or destroy with or without the consent of the owner any of the smaller animals which he sees to be severely injured or in such a condition that it cannot without undue suffering be removed.

LARGE ANIMALS

When larger animals are seen so severely injured or in such a condition that it cannot without undue suffering be removed, and the owner is not present or is present but refuses to give consent for its

destruction the Constable should obtain a certificate from a Veterinary Surgeon or a J. P. to slaughter such animal causing as little pain as possible.

SECTION: 19

DETENTION OF ANIMAL BY ORDER OF COURT AND MAINTENANCE OF SUCH ANIMAL:

On any conviction under this act for cruelty in respect of any animal, the court may, if it thinks such animal is unfit to work, direct that it be detained in any place which shall have been notified in the Gazette as set apart by the Jamaica Society for the Prevention of Cruelty to Animals for that purpose for any period not exceeding thirty days and the owner of such animal shall be liable to the society for any reasonable cost of maintaining the animal during such period, to be recovered summarily as a civil debt.

POWERS OF ARREST SECTION 13

It shall be lawful for any Constable to arrest without warrant any person who commits any offence of cruelty to animals against their Act.

- ✓ Upon his view
- ✓ Upon the information of any other person who states that he has seen such cruelty and gives his name and address. But in either case the Constable should only arrest if the name and address of the Offender is unknown and cannot be ascertained.

DISPOSAL OF UNCLAIMED ANIMAL SECTION 21

If animal detained is not claimed within 48 hrs after the expiration of the detention it may be sold at auction or destroyed, but only after 7 days, notice published in the Jamaica Gazette.

THE TRESPASS ACT

Trespass means to enter not having lawful business on the premises of any private residence or upon any enclosed or cultivating land.

Part I. Trespass upon Premises

If any person shall commit a trespass by entering, without lawful authority, the premises of any private residence or upon land belonging to any proprietor or occupier-

Which is closed; or

Which is in any manner cultivated or on which any agricultural activity is being carried out, he shall be guilty of an offence.

Any person who is found guilty of an offence against subsection (1) shall be liable to summary conviction in a Resident Magistrate's Court-

Where the offence was committed at night, to a fine not exceeding two thousand dollars or three times the value of the damage done during the course of the trespass, whichever is the greater, or in default of payment thereof to imprisonment for a term not exceeding two years; or

Where the offence was committed by day, to a fine not exceeding one thousand dollars or three times the value of the damage done during the course of the trespass, whichever is the greater, or in default of payment thereof to imprisonment for a term not exceeding one year.

If any person shall enter and trespass upon the premises of any private residence, or on any land of any proprietor or occupier, without lawful authority, or without the leave or permission of such proprietor or occupier, it shall be lawful for such proprietor or occupier, or his or her servants, to require the person or persons so trespassing forthwith to quit the premises, or the land whereon he, she or they shall be trespassing, and also to tell his or her Christian name, surname and place of abode; and in case such trespasser shall; after being required, refuse to tell his or her real name and place of abode, or shall give a false or illusory account of himself or herself, or shall willfully continue upon, or return to, the said premises or land, or any part thereof, it shall be lawful for the proprietor or occupier, and his servant, to apprehend such offenders, and cause him, her or them forthwith to be taken or carried before a Justice of the parish in which such offence is committed, who is hereby empowered to bind him, her, or them over to appear before a court of summary jurisdiction, and every offender aforesaid shall be liable on summary conviction in a Resident Magistrate's Court to a penalty not exceeding five hundred dollars, together with the cost of the conviction.

Any person who shall be charged with entering on any unenclosed land, for the purpose of trespassing thereon to damage or destroy tree, or to cut wood, or to steal and take and carry away any fruit, or root used for food of man or beast, or to cut grass, and also who shall fix or place or knowingly allow to be fixed or placed upon any pole, tree or land without the consent of the proprietor or occupier of the said land any spring trap or other engine, instrument or contrivance design to capture, destroy or cause bodily injury to any bird coming into contact therewith shall be liable on summary conviction thereof, in a Resident Magistrate's Court to a penalty not exceeding one thousand dollars or three times the value of them damage done during the course of the trespass, whichever is the greater, or in default of payment thereof to imprisonment for a term not exceeding one year, together with the cost of the conviction.

If any person shall be found passing along any private road through any private lands or premises of any proprietor or occupier, with a gun or lighted torch, during the night, without the consent of the proprietor or occupant, every such person shall be liable on summary conviction in a Resident Magistrate's Court, to a penalty not exceeding five hundred dollars, together with the cost of the conviction.

If any person shall enter upon and occupy any lands belonging to, or in the possession of, any person, without the leave of the proprietor or person in lawful possession thereof, it shall be lawful for any Justice of the parish in which the offence was committed, by warrant under his hand and seal, and which warrant the said Justice is hereby required to grant, upon oath being made before him charging any trespasser with having, without just claim, or apparent title, entered upon and occupied such lands, to cause such trespasser which is hereby authorized and empowered, on conviction, to cause such trespasser to be removed from the possession of the said land, and to inflict a penalty, not exceeding five hundred dollars, upon such offender, together with the cost of conviction.

No Court shall proceed to convict any person named of being a trespasser, or inflict any fine upon, or give any order to dispossess such occupier, by or under the authority of this Act, if it shall appear to the said

Court that the party or parties against whom such complaint is made hath or have been, by himself or themselves, or by those under whom he or they claim title, in the quiet possession of the land or premises mentioned or referred to in any such information for one year before the date thereof; or that such party or parties hath or have any just claim, or apparent title, to such lands, or the occupation thereof.

In the foregoing sections, the word "proprietor", or "occupier", or either of them is used, it shall be held to include and be applicable to tenants, lessees, and procuration attorneys, and agents, as well as to proprietors or occupiers.

Entering Lands with Firearms

If any person whatsoever shall with firearms, cutlass, or dogs, commit any trespass by entering upon the premises of any private residence, or upon any land without leave of the proprietor, tenant or occupier, for the purpose of hunting, shooting, or otherwise, such person shall, on being summarily convicted in a Resident Magistrate's Court thereof of the instance of such proprietor, tenant, or occupier, on proof on oath by one or more credible witness or witnesses, or confession of the offence, or upon legal evidence, be liable, where the offence was committed by day, to a fine not exceeding one thousand dollars or in default of payment thereof to imprisonment for a term not exceeding one thousand dollars or in default thereof to imprisonment for a term not exceeding one year.

Assault by Trespassers

If any person, being in the act of committing a trespass, shall resist by violence, or assault, any persons occupying private premises or land, or the servant of either of them, or any person authorized by either of them, such person, on summary conviction in a Resident Magistrate's Court on proof on oath by one or more credible witness or witnesses, or confession of the offence, or upon any legal evidence, shall forfeit and pay a sum not exceeding one thousand dollars over and above any penalty which he may have incurred by contravening this Act; and in default of payment thereof at such time as to the court may seem fit, shall be imprisoned, with or without hard labour, for a period not exceeding one year.

Definition: Stock - This means and includes horse kind, cattle, sheep, pigs, goats and poultry.

Cattle Trespass

It shall be the duty of the proprietor of any stock to take proper and effective measures to prevent such stock from trespassing on to the land of other persons, and subject to the provision hereinafter contained, such proprietor shall be responsible in damage in respect of any injury done by such stock trespassing unto the land of other persons:

Providing always that within forty-eight hours of the discovery of such injury the party aggrieved shall give notice of the nature thereof to the proprietor or person in charge of the stock causing the same, and shall thereafter allow him and his valuers free ingress to the land at all reasonable times for the purpose of inspecting the same; and shall, if required, point out the location of the damage complained of, and if, on the hearing of any action brought to recover any such damage as aforesaid, it shall appear that the plaintiff has obstructed the defendant or his valuers in their inspection alleged damage, the plaintiff shall be non-suited.

No person in occupation of any land abutting on a public road shall be entitled to recover any damages in respect of any trespass on such land by any stock while the same are being lawfully driven on such road, under care and control, unless such land is secured by a fence along such road sufficient to keep out ordinary stock of the class of animals committing the trespass.

The onus of showing that any stocks were being so driven as aforesaid shall lie on the owner of the stock.

If in any action brought to recover any damages under this Act, the owner of the stock shall prove that his land is enclosed by good and sufficient fences, and that he has adopted all other reasonable and proper precautions for the confinement of his stock, and that they have nevertheless, through some cause or accident beyond his control and which he could not reasonably have provided against, escape from his land, the party complaining shall not be entitled to recover any sum unless he can show that he has fenced his land with a fence sufficient to keep out ordinary tame cattle and horse kind.

Any person who shall willfully open or leave open any gate, or break down or injure any fence or other contrivance provided for the purpose of confining any stock, with intent to allow such stock to trespass off the land on which the same is confined, shall be liable on conviction in a Resident Magistrate's Court, to imprisonment with or without hard labour for a period not exceeding two years or to a fine not exceeding one thousand dollars or three times the value of the damage done, whichever is the greater.

TOWN AND COMMUNITIES ACT

The Town and Communities Act

In this Act

“Carriage” shall be deemed and taken to mean any wagon, wain, sledge truck, cart, dray, carriage, chaise, or any other description or wheel carriage drawn by horses, cattle or any kind of animals;

“Town” shall comprehend all cities and villages;

“Public place” in section 11 shall mean and include and apply to every road, street, footpath, court, square, lane, alley or thoroughfare of a public nature opened and used by the public as a right, and to every place or public resort so opened or used.

The words “public place” also include any - Public building, park, garden, reserve or other place of public recreation or resort; railway station, platform, or carriage, public wharf, pier or jetty; passenger ship or boat plying for hire; church, chapel, or other building where divine service is being publicly held; public hall theatre or room in which any entertainment is being held or performed, market, open bars in any premises licensed under the Statutes regulating the sale of spirits; auction room, or place, while a sale by auction is then proceeding, race course, cricket ground, or other such place, to which the public have access free, or on payment of any entrance money.

What not to be done in thoroughfare or highways

Section 3 subs (a)

Every person who –

Shall in any thoroughfare in any town, or on any highway, feed or fodder any horse or other animals, or show any caravan containing any animal, or any other show or public entertainment, or shoe, bleed or farry any horse or animal (except in cases of accident), or exercise, train or break any horse or animal, or clean, make or repair any part of any cart or carriage, except in cases of accident where repair on spot is necessary;

Sub (b)

Shall in any thoroughfare in any town, turn loose any horse or cattle, or suffer to be at large any unmuzzled ferocious dog, or shall in any place, willfully set on or urge any dog or other animals to attack, worry, or put in fear any person, horse or other animal;

Sub (e)

Shall in any thoroughfare in any town, ride or drive furiously, or on any thoroughfare or highway ride or drive so as to endanger the life or limb of any person, or to common danger of the passengers therein.

Sub (g)

shall lead or ride any horse or other animal, or draw or drive and carriage upon any footway, or fasten any horse or animal so that it may stand across, or upon, or impede any foot way; and every person who shall, along any thoroughfare or highway, in, or on any carriage, carry or convey any timber, lumber, iron or thing made of any material whatsoever in such a manner as that the same or any part thereof shall extend across the carriage two feet beyond the wheels;

Sub (j)

Shall without the consent of the owner or the occupier affix any bill or other paper against or upon any building, wall, fence, or pale, or write upon, soil, deface, or mark any such building, wall, fence, or pale in any other way whatsoever;

Sub (k)

Shall in any thoroughfare or public place indecently expose his or her person;

Sub (l)

Shall sell or distribute, or offer for sale or distribution, or shall mark on any fence, wall or other building, any obscene figure, drawing, painting, or representation, or sing any profane, indecent or obscene song or ballad, or write or draw any indecent or obscene word, figure or representation, or use any profane, indecent or obscene language;

Sub (m)

Shall use any threatening or abusive and calumnious language to any other person publicly, or shall tend to provoke a breach of the peace; or shall use such language, accompanied by such behaviour to any person publicly, as shall tend to a breach of the peace;

Sub (n)

Shall in the streets, lane or squares of any town or in any thoroughfare or highway, wantonly discharge any firearm, or to make and bonfire or throw or set fire to any firework; or who to the danger and annoyance of any passenger or inhabitant, shall throw or discharge any stone or other missile, or who shall fly kite, or play any game;

Sub (o)

Shall willfully and wantonly disturb any inhabitant by pulling or ringing any doorbell, or knocking at any door, without lawful excuse, or who shall willfully and unlawfully extinguish the light of any lamp, or shall unlawfully enter into any dwelling house, building or premises to the annoyance of any person therein;

Sub (p)

In any thoroughfare in any town, or in any highway, shall tyre any wheel, or burn, dress, or cleanse any hoop, or cleanse, fire, wash or scald any cask or tub, or shall willfully make any fire on or in any prohibited place;

Sub (q)

Shall burn any wood, shaving, rubbish, or sweepings in any street, lane or road;

Sub (r)

Shall loiter in any public place and solicit any person for the person for the purpose of prostitution;

Shall be guilty of an offence

Section 4

It shall be lawful for a constable to take into custody, without warrant, any person who shall commit any of the offences herein before mentioned within view of any such constable; and in like manner, when the offender is unknown, without warrant to take into custody any such offender who shall be charged by any other credible person with recently committing any of the said offences, though not committed within view of such constable, but within view of the person making such charge

Section 5

Every person who

Sub (a)

In any highway or thoroughfare in any town, shall to the annoyance of the inhabitants or passengers, expose for sale or show, except in a market or place lawfully appointed for that purpose, any goods, wares and merchandise or any animal; or clean or dress any animal; or hew, saw, bore or cut any timber or stone; or slack, sift, or screen any lime; or make or dress up or paint any article or material; or wash or cleanse any utensil whatsoever; or wash or hung or spread any clothes or linen; provided that a complaint be made by any inhabitant residing near the place where the offence shall be committed;

Sub (c)

In any thoroughfare, shall beat or shake any carpet, rug or mat, (except door mat) before the hour of eight in the morning, or cause any offensive matter to run from any manufactory, slaughter house, butcher's yard, or dunghill, into any thoroughfare, or any uncovered place whether or not surrounded by a wall or fence; but it shall not be deemed an offence to lay sand, litter, or other material in any thoroughfare in case of sickness to prevent noise, if the party laying any such thing shall cause them to be removed as soon as the occasion for them shall cease;

Sub (e)

Shall keep any pigsty to the front of any thoroughfare within any town, not being shut off from such thoroughfare by a sufficient wall or fence or who shall keep any swine in or near any street, or in any dwelling, so as to be a common nuisance;

Sub (g)

Shall be the negligent use or management of fire in improper places, damage any property, or injure any person;

Sub (h)

Shall willfully disturb any meeting or assembly or any congregation assembled for religious worship, or for any religious service or rite in any burial ground, or disturb or molest any person thereat;

Shall be guilty of an offence and shall be liable to a penalty not exceeding four dollars.

Section 6

Every person, who in any thoroughfare, while drunk, shall be guilty of any riotous or indecent behaviour in any public place, shall be liable on summary conviction to a penalty not exceeding six dollars for every such offence, or to imprisonment for a term not exceeding ten days.

Section 7

It shall be lawful for any constable to take into custody, without a warrant, all drunken, loose and disorderly person whom he shall find disturbing the public peace, or disturbing any inhabitant or passenger, and all person who he shall find between the hours of nine at night and six in the morning lying or loitering in any highway, piazza, or other open place, and not giving a satisfactory account of themselves. All such person shall be guilty of an offence against this Act.

Section 8

Every person, who in any town, shall be found drunk lying about the streets or other public places therein, or in any piazza, open or enclosed, shall be deemed to have committed an offence, and shall on conviction, be liable to a fine not exceeding four dollars; and in default of payment, to imprisonment for not more than ten days.

Section 9

Every person who shall commit any of the following offences shall be liable upon a second or any subsequent summary conviction to a penalty not exceeding six dollars; or to imprisonment with or without hard labour, for a period not exceeding thirty days -

Sec. (a)

Every person who shall, in any thoroughfare, or in any town, ride or drive furiously, or, in any thoroughfare or highway, ride or drive so as to endanger the life or limb of any person, or to the common danger of the passengers therein;

Sec. (b)

Every person who shall, in any thoroughfare or public place, indecently exposes his or her person;

Sec. (c)

Every person who shall make on any fence, wall or other building, any obscene figure, drawing, painting, or representation, or sing any profane, indecent, or obscene song or ballad, write or draw any indecent or obscene word, figure, or representation, or use any profane, indecent or obscene language publicly;

Sec. (d)

Every person who, in any thoroughfare, while drunk, shall be guilty of any riotous or indecent behaviour in any public place;

Sec. (e)

Every person, who, in any town, shall be found drunk, lying about the streets or other public places therein, or in any piazza, open or enclosed.

Section 11

Every person who shall, in any town, or in any public place, conduct himself in a noisy and disorderly manner, to the disturbance of peace and good order, or to the annoyance, discomfort, or obstruction of members of the public, shall be deemed violators of the public peace, and on conviction shall be liable to a penalty not exceeding four dollars, or to imprisonment for a period not exceeding thirty days, or in default of payment of any pecuniary penalty to imprisonment with or without hard labour for period not exceeding thirty days.

The Noise Abatement Act

Repeals and replaces (**Section 12**) of the "Towns and Communities Act" which also sought to control the problem of noise. Under section 12 of the "Towns and Communities Act", the penalties were inadequate and the procedures for prosecuting were unduly cumbersome. This made provision under that section ineffective.

The Noise Abatement Act retains some of the features of Section 12 of the Towns and Communities Act". It also simplifies the procedures of prosecuting offenders and imposes more meaningful penalties for breaches of the provisions.

Scope of Offence

The first aspect of the offence relates to the **noise level**. This is measured in terms of the **distance from which the sound is heard**.

The second aspect is whether the **sound is reasonably capable of causing annoyance to persons**. Both aspects must be examined before it can be considered that an offence has been committed.

The second aspect will depend on factors such as the area in which the noise activity is taking place, the time of day and the nature and duration of the activity. In this case, the Police may act on their own initiative and assessment of situation.

Where the noise occurs in the vicinity of any dwelling house, hospital, hotel, infirmary, nursing home or guesthouse between 2 a.m. and 6 a.m. on Saturday or Sunday morning and it audible beyond a distance of 100 metres, it will automatically be presumed that the noise causes annoyance. The same applies from midnight to 6 a.m. of the following morning on Sunday, Monday, Tuesday, Wednesday or Thursday.

Public and Political Meetings – Use of Loudspeakers

The cut-off time for public meetings is 11 p.m. while the cut-off time for political meetings is 12 midnight.

Political and public meetings are exempt from both aspect of the offence mentioned above as long as the cut-off time is observed.

Offence # 1

Under the new Act, it is an offence for a person to sing or play any noisy instrument, at any time of night or day so that the sound can be heard beyond a distance of one hundred metres and can be reasonably capable of causing annoyance to person in the vicinity.

Offence # 2

It is an offence for a person to operate or cause to be operated, and loudspeaker, microphone or any other device for the amplification of sound on any private or public place, at any time of night or day so that the sound can be heard beyond a distance of one hundred metres and can be reasonably capable of causing annoyance to person in the vicinity.

Penalty

Any person found guilty of these offences shall be liable on conviction in a Resident Magistrate's Court to a fine not exceeding fifteen thousand dollars or imprisonment for a term not exceeding three months.

A second offence attracts a fine not exceeding thirty thousand dollars or imprisonment for a term not exceeding six months.

Subsequent offences attract a fine not exceeding fifty thousand dollars or a term of imprisonment not exceeding twelve months.

Offence # 3 – Musical Instrument

If a person plays a musical instrument or operates any equipment in the vicinity of any dwelling house, hospital, nursing home, infirmary, hotel or guest house between the hours of 10 p.m. in the evening and 6 a.m. the following morning so that it is reasonably capable of causing annoyance to persons in the vicinity and he is asked to reduce or discontinue the sound and he fails to comply, he shall be guilty in a Resident Magistrate's Court to a fine not exceeding twenty thousand dollars or imprisonment for a term not exceeding six months.

Offence # 4

If an operator is asked to reduce or discontinue the sound because of the serious illness of any person or for any other reasonable cause and he does not comply with the request, a police officer, from the rank of Sergeant up, may seize and detain any equipment used in the commission of the offence. Such seizure and detention shall only be necessary for the purpose of any investigation, trail or enquiry. The prosecution can apply to the court for the forfeiture of equipment.

Forfeiture

If there is an application from the prosecutor, the court may also order the forfeiture of the equipment used. The owner/operator can apply to the court to have the forfeiture revoked giving reasonable explanation why this may be so.

The person occupying the premises on which an offence was committed will be held liable if the court is satisfied that he was present at the time of the offence and did not take all possible steps to prevent the offence.

The owner or operator of the equipment is also held liable if the court is satisfied that he was present at the time of the offence and did not take all possible steps to prevent the offence.

How to Apply

If a person wants to put on a stage show or a dance in a public place where the noise would be reasonably capable of disturbing any person residing in the vicinity, then that person should make a written application to the Superintendent of Police in charge of the division in which the activity will be held, for permission to do so.

This should be done no later than 10 days before the proposed date for the activity. The application should set out the nature and purpose of the proposed of the, the venue and the hours during which it will be held.

The Superintendent may grant permission, subject to conditions, which he may specify in writing. If the person objects to the Superintendent's refusal to grant permission or any of the stipulated conditions, he may then appeal in writing to the Commissioner of Police within seven days after the date of the decision. The commissioner of Police may in turn, revoke, vary or confirm the decision.

Refusal to Comply

Any person who fails to comply with any condition imposed by the Superintendent of Police or by the Commissioner of Police shall be guilty of an offence and be liable on conviction in a Resident Magistrates Court to a fine not exceeding one hundred thousand dollars or imprisonment for a term not exceeding six months.

The Noise Abatement Act was brought into force in March 1997.

(5) Nothing in this section shall apply to anything done at and in the course of any political meeting.

Section 19

It shall be lawful for any Justice on complaint of any constable or other person, that any house, room, shop, or place in any parish of this island is a place of common resort for idle and disorderly person, to order such house, room or place to be entered by any constable; and it shall be lawful for such constable to take into custody any person or persons gambling in such house, room or place and carry him or them before any Justice, who shall hold such person or persons to bail to appear and answer any charge touching such offence that may be brought against him or them ; and in default of security, shall commit such person or persons to the common goal, there to remain until he can be brought before the Justices in Petty Sessions for trial

Section 20

It shall be lawful for any constable to take into custody any idle and disorderly person who may, at any time, be found assembled in any thoroughfare, street, lane or public place, or in front, or about, or in the neighborhood or any house, wharf, tavern, or other premises, or in any street or other public place in any city or town in this Island, who, upon being desired by such constable to retire or disperse, and leave the place in which they shall have so assembled, shall refuse or neglect immediately to do so, and carry such persons, or any of them, to bail, to appear and answer any charge touching such offence that may be brought before the Justices in Petty Session for trial.

Section 26

Every person who by committing any offence herein forbidden, shall have caused any hurt or damage to any person or property, who shall not upon demand make amends for such hurt or damage to the satisfaction of the person aggrieved, shall, upon conviction for the offence, pay such sum not exceeding twenty dollars as shall appear to the Justices before whom he shall be convicted to be reasonable amends to the person aggrieved, besides any penalty to which he may be liable for the offence; and the evidence of the person aggrieved shall be admitted in proof of the offence:

Provided, always, that if the person aggrieved shall have been the only witness examined in proof of the offence, the sum ordered as amends shall be paid and applied in the same manner as the penalty.

Section 31

The prosecution for every offence punishable on summary conviction by the Act shall be commenced within three calendar months after the commission of the offence, and not otherwise.

THE MECHANICS OF ARREST

INTRODUCTION

Making an arrest has always been one of the most dangerous aspects of the Constable's job. Many, if not most, of the legal problems and injuries result from an attempt to make an arrest. Further, if an arrest is to be made, it is vital that Constables know how to make an arrest with the least possible danger to themselves, any citizen in the area and the person being arrested.

In this lesson we will examine the circumstances under which a Constable can make a legal arrest. We will also discuss the basic procedures for making the arrest. These procedures include the approach, the stance, statements which must be made to the suspect, commands given and the use of the voice to control the suspect. The lesson will also consider the techniques for handcuffing, conducting a preliminary search and transporting the arrested person. Finally, we will discuss the proper removal of the hand cuffs, searching the vehicle, the procedure for conducting a detailed search and the safe storage of the suspect's personal property. (Also any stolen property recovered.)

Definition

Arrest is the procedure whereby a person is put under restraint for the purpose of initiating criminal proceeding against him / her. Arrest in the Criminal Sense is the apprehending or restraining of a person in order that he or she shall be forth coming to answer an alleged or suspected crime.

Note: - **An Arrest can be made with or without a warrant.**

Arrest made with a warrant,

- A warrant has been issued by a court or judicial officer with instructions to arrest the person and bring him or her before the Court.
- The arrest is based on the order of the court or a judicial officer
- The Constable need not have personal knowledge of any offence committed by the subject of the warrant.

Arrest made without a warrant.

Any Constable may arrest without a warrant at common law:

If a Policeman arrests without a warrant upon reasonable suspicion of a felony, or of other crime of a sort which does not require a warrant, he must in ordinary circumstances inform the person arrested of the true ground of the arrest. He is not entitled to keep this reason to himself or to give a reason which is not true reason. In other words a citizen is entitled to know on what grounds he is being arrested.

- **On his or her view**
When a felony, treason or breach of the peace is committed or attempted in the presence of an officer, for example Murder, Robbery, Larceny.
- **On the Charge of a Third Person**
It is the duty of a Constable, on a reasonable charge of felony being made to him by a private person against anyone else to the offender in to custody. (Hedges vs. Chapman 1825). When a person request a Constable to take another into custody alleging such person is guilty of treason or felony, the Constable, if the charge is reasonable and made by a person of credence is entitled to arrest the person so charged.

If the case later proves to be unfounded, the person making the request and not the Constable will be liable, because in such a case it was his duty to act and not deliberate, Hedges vs. Chapman.
- **On his or her suspicion**
When a Constable knows a felony has been committed and a particular person has been suspected of committing it, or if the constable has reasonable grounds to suspect a particular person of having committed a felony." Any Constable may arrest a person upon reasonable suspicion of his having committed or being about to commit a criminal offence. (F.O. 1986)
- **Under the Road Traffic Act**

When the offender fails to give his or her name and address, or if the constable is not satisfied with either.

Procedure in effecting the Arrest

- *If you are in plain clothes disclose and identify, i. e. (by showing your Identification Card, if practical)*
- *Inform the offender of the offence for which he is being Arrested, whether on warrant or not.*
- *If on warrant, have it ready to produce and read. (If possible)*
- *Lay hold of the prisoner arrest and charge him.*
- *Administer the caution.*
- *Make a brisk preliminary search.*
- *Take necessary precaution for safe custody to the station.*

PURPOSE OF AN ARREST

When arrest is with a warrant, the purpose is to bring him before the court.

Without a warrant, an arrest is usually to apprehend in order:

- To prevent the continuation of an offence
- To prevent the immediate renewal of the offence
- To prevent an escape

PERSONS IMMUNE FORM ARREST

- *The reigning Sovereign*
- *Foreign Sovereigns, i.e. Ambassadors of Foreign Countries, their household and members of their Staff, except for an attempt on the life of the Sovereign by one of the above mentioned.*
- *A child under twelve (12) years of age.*
- ***Members of the household of Representative or of the Senate for anything SAID or DONE in the house or Senate whilst they are in session***

N.B. Re: ** this immunity does not apply to Criminal process.

WRONGFUL ARREST

Arrest made for other than the above stated reasons are wrongful arrests and the arresting Constable may be held liable to civil action and if detained only for interrogation, may be released by the officer or sub-officer in-charge of station.

ARREST OF MILITARY PERSONNEL

Although a Soldier is not immune from arrest, the Force's (JCF) policy as published in Force Orders #1509 dated 6th May, 1976, should be strictly complied with.

- Military Personnel will not be arrested by the Police except for the most serious offences since they are easily identified and available for any Court if necessary.
- If a member of the Jamaica Defence Force, not in uniform, is arrested for an offence and at the time fail to identify himself, but upon arrival at the Police Station his identity is established, the

military should be contacted by informing immediately the **Defence Officer, Headquarters Jamaica Defence Force, Up Park Camp, Tel: 926-8121.**

- The principle to be established is that if there are any troubles whatsoever involving members of the J.D.F, Headquarters, Up Park Camp should be immediately contacted and requested to take over the matter.
- Except in serious cases, prosecutions of Military Personnel should be referred to Headquarters before any information is laid.

THE USE OF FORCE

Whenever the topic of arrest is discussed, it is necessary to talk about the use of force.

- It is the policy to the Constabulary Force to use only that degree of force absolutely necessary to arrest the suspect.
- Under no circumstances may deadly force be used during an arrest unless the life of the Constable or another person is in **IMMEDIATE** danger.
- Deadly force may NOT be used to apprehend a fleeing misdemeanor.
Deadly force may be used to stop a fleeing felon if all other means have been exhausted AND if the felon is believed to pose a significant threat to human life should escape occur.
- According to the policy of the Constabulary Force, **NO WARNING SHOTS WILL BE FIRED.**

MAKING THE ARREST

When an arrest is planned, the position of each Constable is determined beforehand. Lack of planning is the primary reason for injuries to both law enforcement personnel and suspects at the time of an arrest. In the planned arrest every possible contingency is examined and each person is positioned to counter any attempts to flee. Manpower superiority is always the most effective method used to reduce the probability of resistance.

The approach

- Body space
- Seeking a Superior Position
- Protecting your weapon

The Stance

- Should be used under most circumstance
- Feet slightly apart, strong leg back app. ½ of a step, place sidearm away from suspect
- Hands held chest high
 - Hold notebook up high
 - If civilian clothes, grasp lapels
 - Lightly cross arms over chest
- Stand to weak side of suspect
 - Move as suspect moves
 - Stand approximately 6 feet from suspect
 - Stand in the way of the most obvious escape route

Voice control and commands

- Advise the person that he or she is under arrest
- If not in uniform, clearly identify yourself
- If person is moving command that they halt

- Use strong, firm, no nonsense tone of voice
- While firm, it should not be aggressive or emotional
- State reason for the arrest
- Give clear understandable directions

Empty hand control

- Always talk suspect into position without touching
- Gentle apply pressure on the person to move in the direction commanded
- Used quite often when a person is not resisting but is not complying with your commands
- Shows no emotions, but remain alert for active resistance when you touch the touch

Place the suspect in General Position for Preliminary Search

Leaning against wall

- Must be completely off balance
- Feet must be spread

Leaning against vehicle

- Same procedure as wall
- Keep suspect away from open window

Standing up

- Have person lean back as far as possible
- Have person clasp hand behind head

Laying face down on ground

- Hands clasp behind
- Feet together

Kneeling position

- Hands clasp behind head
- Legs cross or close together

Handcuffing Suspect

- Handcuffing a suspect is a temporary form of restraint. Always handcuff the suspect with his hand or her hands him them. (Females are not normally handcuffed).
- Always place the handcuffs on with the keyhole facing down, as well as always remember to double lock the handcuffs, so they cannot be tightened
- If suspect complains about handcuffs being too tight', check them and note your actions in your pocket book.

Restraining devices shall not be used when:

- The physical impairment of the prisoner is of such that he is unable to inquire himself or others and is incapable of escaping as he is unable to operate without assistance from another person e.g. a cripple.
- When a person is blind.
- A seriously ill or injured prisoner.
- Old and infirm men.

- A woman – unless circumstances render it absolutely necessary.
- Juveniles – except in very grave and exceptional circumstances.

Members of the Force and Auxiliaries are to be aware of the exceptional circumstances when prisoners may not be restrained whilst being transported from one place to another. They shall familiarize themselves with the functions of the restraining devices used by the Force and other Government Agencies as also the regulations governing the use of such devices.

CONDUCTING THE PRELIMINARY SEARCH (FRISK)

- Remain in a balanced position.
- Don't be embarrassed and don't get careless.
- Develop a standard procedure for the search.

Always start at the same place and end at the same place i.e. Start at top of the head and work down or start at right hand and work across.

Always include check of hair, mouth, palms of hands, under belt and under pants at belt.

Do not put your hands in pocket or under clothes unless you have felt something while patting down the outside of the clothing.

Use **extreme care** when placing hands in pockets or under clothing. Watch for open knives, razor blades, hypodermic syringes, tuberculosis coughing cups etc.

During the preliminary search, remove only potential weapons and exhibits from person, other articles will be removed during detail search at station.

PLACING SUSPECT IN VEHICLE

Placing suspect in rear passenger side seat of vehicle (4 doors)

Assist suspect into vehicle so that no injuries are received.

The second Constable should sit behind the driver (4 doors) and should sit behind the suspect in a 2-door vehicle. (try to avoid).

Always put the suspect in the seat belt. (Move your firearm).

REMOVING THE SUSPECT FROM THE VEHICLE

Remove seatbelt and assist the suspect from the vehicle.

A second constable should be in the vehicle on the other side of the suspect while he or she is being removed.

Record the time the suspect was placed in the vehicle and the time he or she was removed at the station.

Once the suspect is in the station, the second constable should search the vehicle for any exhibits, which the suspect may have hidden.

REMOVING THE HANDCUFFS

Care should be taken in removing the handcuffs.

- *Bear in mind that the handcuff can be used as a weapon.*
- *With suspect facing away from you and leaning forward, remove the handcuff on the weak hand first.*
- *Maintain control of the suspect by holding the strong hand.*
- *Remove the handcuff on the strong hand last.*

Recording your personal notes the time the suspect was handcuffed and when the handcuffs were removed. Note the condition of the wrist after removal and record this information.

CONDUCT DETAIL SEARCH OF SUSPECT

Request that suspect remove all personal properties from his / her pockets and clothing.

Systematically search suspect.

If necessary conduct strip search (usually only felons)

- Check all body cavities.
- Consider surgical gloves.

All females suspect should be searched by female constables

MAKE OF LIST OF ALL PROPERTIES TAKEN FROM SUSPECT

Place in a property envelop and seal for safekeeping

Place suspect name on outside of envelop

Have the suspect signed the property list indicating it to be correct

RECORD, MARK AND STORE ALL STOLEN PROPERTY

Record in the stolen property book

Record in your personal diary

Mark for future identification

Store according to regulations

REMEMBER ONCE YOU HAVE ARRESTED A SUSPECT, YOU ARE TOTALLY RESPONSIBLE FOR HIS OR HER PROTECTION AND SAFETY.

ROAD TRAFFIC ACT

INTRODUCTION

The increased number of motor vehicles using the roads has created a serious problem for the citizen. `Traffic jams and congestion are now common in the cities. There are a great many accidents and many people are injured each year. The use of a motor vehicle has become much more important in the last decade. People are living further from their work and travelling further for recreational purposes. Owning a motor vehicle has become a status symbol for some and a necessity for others. Unfortunately, our road system was not designed to handle the amount of traffic now using it and the results are daily congestion and accidents.

The Government is constantly working to improve the roads, but it is a slow and expensive undertaking. In the meantime, the number of accidents and the level of congestion can be held at a minimum by enforcing the provisions of the Road Traffic Act.

The current responsibility for ensuring the enforcement of this law rests with the Island Traffic Authority. The authority is made up of the Director of Public Works, the Commissioner of Police and another member appointed by the Minister of Communication and Works.

Basically, the law seeks to accomplish 3 objectives. These are:

- ✓ Ensure that all vehicles are safe to drive.
- ✓ Ensure that all drivers know how to drive and know the rules for safe driving.
- ✓ Ensure that all drivers follow the rules for safe driving.

These three objectives make up the three main sections of the law; licensing and registration of vehicles, licensing of drivers and the laws designed to ensure safe driving.

DEFINITIONS

There are a number of terms associated with the Road Traffic Act which are not in common use. Therefore, it is necessary to define these terms so that there will be no misunderstandings as we go through the lesson.

Articulated Vehicle

A motor vehicle with a trailer attached to the drawing vehicle so that a part of the trailer is superimposed on the drawing vehicle and when the trailer is uniformly loaded, part of the weight of the load is borne by the drawing vehicle.

Chauffeur

A person who drives a motor vehicle and receives compensation

Classification of Road Licence

Carriers Licenses (Commercial Carriage)

Entitles the holder to use a Commercial Carriage for the purpose of conveying goods for hire in connection with any trade or business carried on by him. Two types:

- **Private carriers license**
Holder may use the vehicle for carriage of goods in connection with any trade carried on by him. Cannot be used to carry goods for hire.
- **Public Carriers license**
Holder may use the vehicle to carry goods for hire or for the carriage of goods in connection with his own business.

Road Licence

An additional license required before a person may use (or cause to be used) a motor vehicle as a public passenger vehicle (**PPV**).

Public Passenger Vehicle (Section 60)

Vehicles used to carry passengers for hire. These include:

- ✓ **Stage Carriage** - A motor vehicle carrying passengers for hire at separate fares and stopping to pick up and set down passengers along a specific line or route.

- ✓ **Express Carriage** - Motor vehicles carrying passengers for hire at separate fares from one or more specified points to one or more common destinations.
- ✓ **Contract Carriage** - Motor vehicles carrying passengers for hire (as a group) under contract for the use of the entire vehicle.
- ✓ **Hackney Carriage** - Motor vehicles carrying passengers for hire on any road or public area with a seating capacity of 8 or less passengers.

Driver's licenses Section 16(Subsection a,b,c)

Certificates issued to verify that the holder has fully passed a driving test which is broken into **3** classes:

- **Private driver's licence**
Entitles the holder to drive Invalid carriages, motorcars and trucks, which are not Commercial Carriage or Public Passenger. Does not allow the holder to drive for hire.
- **General driver's licence**
Entitles the holder to drive whether for reward or otherwise such classes of motor vehicles that are specified on the license
- **Motorcycle driver's licence**
Entitles the holder to drive a motorcycle

Provisional Drivers Licence

Entitles the holder to drive a motor vehicle for instructional purposes. When driving, he/she must be seated beside a person with a regular drivers license (not a motorcycle license) and must display a large "L" in red on a white background from both the front and rear of the vehicle (He should not carry passengers or freight while under instruction).

Emergency Vehicle

Any motor vehicle carrying Officers, Firemen, fire fighting equipment or members of the JCF to and from a fire; any hospital ambulance carrying patients to or from a place where a person is in need of immediate medical attention, or any ambulance approved by the Minister of Health performing the above duties. Any JCF vehicle on escort duty, going to an accident, disturbance, crime scene or area of traffic congestion (Vehicles should pull to the left and remain stationary until the emergency vehicle has passed. Further, vehicles should remain at least 500 feet from an emergency vehicle).

Invalid Carriage

A motor vehicle especially built for the use of an invalid and weighing less than 5 Cwt. The vehicle should be marked invalid carriage.

Motor Car

A motor vehicle possessing 2 axles and constructed solely to carry not more than 7 passengers and their effects (inclusive of the driver).

Motorcycle

A motor vehicle possessing two or three wheels and a weight of less than 5 Cwt

Children under 16 yrs

Where children not exceeding 16 years of age are carried on a Public Passenger Vehicle any three such children shall be reckon as two passengers and no child under 5 years of age shall be reckoned as a passenger.

Private Motor Car

Motor vehicles whether "trucks" or "motor cars" within the meaning of this section (not being vehicles classified as commercial cars) constructed solely for the carriage of passengers and their effects and used exclusively for personal purposes.

Tractor

A motor vehicle not constructed to carry loads but which carries water, fuel, accumulators, tools, and equipment for its own propulsion. It is also a vehicle used for agricultural work on many estates. When it is not used on public roads outside the estate it is not licensed.

Trailer

A vehicle without motive power designed or used to carry goods, freight or persons and is constructed to be drawn by a motor vehicle.

Truck

A motor vehicle not being classified as a motor car, possessing 2 or more axles and constructed for the purpose of carrying loads or passengers or both.

CONSTITUTION AND FUNCTIONS OF ISLAND TRAFFIC AUTHORITY (Section3)

The island traffic authority shall be the Chief Technical Director, the Commissioner of Police and one other member appointed by the minister, two to form a quorum, and there shall be attached to the authority such officers and servants as the Governor General shall from time to time appoint.

- There functions are as follows;
 - To regulate and control traffic on the road
 - To inspect all motor vehicle from time to time
 - To test applicants for Driver's Licence as to their competence and mechanical knowledge
 - To grant certificate of fitness for vehicles to be licenced
 - To keep records of all endorsement on Drivers licence
 - To keep records of all accidents on the roads
 - To ensure the provisions of the road traffic law and regulations
- Section 5

LICENSING AUTHORITY

This comprises of the Collector Taxes for any licensing area or person appointed by the Minister. It looks after the Licensing Duties which the law requires to be paid on motor vehicles before they are used on the roads. This authority is divided into five (5) areas;

- Central
- Kingston, St. Andrew, St. Catherine and St. Mary
- Southern
- Clarendon, Manchester and St. Elizabeth
- Western
- Hanover and Westmoreland
- Northern
- Trelawny, St. Ann and St. James
- Eastern
- Portland and St. Thomas

EXEMPT FROM LICENCE

No licence duty is required on the following vehicles

- ✓ Fire engine
- ✓ Ambulance from government hospitals
- ✓ Army vehicles
- ✓ Road Rollers
- ✓ Tractors used exclusively within the limits of Estate to which it belongs or upon any public road running through estate.

CERTIFICATE OF FITNESS (section 10)

Procedure in obtaining a Certificate of Fitness

- ✓ Pay the prescribed fee to the Collector of Taxes and obtain a receipt.
- ✓ Take the receipt along with the vehicle to the Traffic Area Authority.
- ✓ A Motor Vehicle Examiner will test-drive the vehicle and if found fit to operate on a public road, issue a certificate of fitness.

- ✓ A Traffic Area Authority may at anytime revoke a Certificate of Fitness issued by the Authority.
- ✓ The Area Authority has the power to inspect a Motor Vehicle if it appears that vehicle, shall cease to have effect, unless a new certificate of fitness is issued.
- ✓ Any person who contravene the foregoing shall be guilty of an offence

ENSURING VEHICLES ARE SAFE TO DRIVE

The registration and licensing of Motor Vehicles is handled by the Licensing Authority

- ✓ There are 5 offices of the Licensing Authority. They are located in the Central, Southern, Western, Northern and Eastern areas
- ✓ Two registration plates and a license disc of the appropriate type are provided for vehicles when they have passed inspection. The intended use of the vehicle is often indicated by the colour of the plates or disc.
- ✓ The registration plates must be affixed to the front and rear of the vehicle in a manner that makes them clearly visible from 20 yards.
- ✓ The disc must be placed inside the windscreen in a conspicuous position where it can be seen for at least 5 yards.
- ✓ The disc contains information regarding year and date of expiration. The year is painted in bold numbers and the expiration month is perforated.
- ✓ Some vehicles, such as fire trucks, ambulances from Government hospitals, Army vehicles, road construction equipment, and farm tractors do not require licenses.
- ✓ It is the duty of the Force to ensure that vehicles are being used as intended. The vehicles are inspected according to the stated use and misuse can be quite dangerous to other drivers, citizens and passengers.
- ✓ Pay particular attention to the number of passengers being carried by buses and other commercial vehicles. Over crowding can result in serious injuries.
- ✓ Be alert for trucks and other vehicles carrying excessive loads. Such loads are dangerous to other vehicles, increase congestion because they must drive so slowly and often lose portions of the load.
- ✓ Be alert for vehicles that are no longer safe. Vehicles with faulty equipment, no brake lights, and other defects are a serious hazard to other drivers on the road.

ENSURING DRIVERS ARE QUALIFIED

Driver's licenses are usually obtained from the regional licensing Authority in conformity with (**Section 18**) of the Road Traffic Act. They require:

- ✓ Must be able to read and write English
- ✓ A Certificate of Character from a Justice of the Peace or a Gazetted police officer for the Parish.
- ✓ Medical Certificate (for a general Drivers license) or a Declaration of Physical Fitness (for a private drivers license or a motorcycle license)
- ✓ Successful completion of the driving test, and a Certificate of Competence
- ✓ At least 17 years of age (private or motorcycle) or 21 years of age (for a general--allows driving of CMC and PPV)
- ✓ Two passport sized photographs.

APPLICATION FOR REGISTRATION PLATES

The Licensing Authority shall issue and deliver to the applicant two similar registration plates of metal, which shall be of such colour and shall be marked with such letters and numbers as shall serve to identify the motor vehicle according to its classification and use:

Provided that, in the case of trailer of any class, only half the number of registration plates shall be delivered.

Registration plates shall be issued to and remain in the name of the owner of each vehicle registered upon payment by that owner of a fee of one thousand dollars, and: -

If the owner acquires another vehicle (hereinafter referred to as replacement vehicle) within the same classification and use, the registration plates may be transferred by the owner from the vehicle for which the plates were issued to such replacement vehicle; or

If the owner acquires another vehicle not within the same classification or use or changes the classification or use of the vehicle, the registration plated may, subject to paragraph (5), be surrendered to the Licensing Authority in exchange for registration plates appropriate to the classification and use of the replacement vehicle or as 5the case may be, the new classification and use of the original vehicle.

Where action is taken under paragraph (4) (b), a fee of one hundred dollars shall be payable by the owner in respect of the exchange of registration plates.

Upon a sale or other disposition of a motor vehicle the owner shall remove the registration plates there from.

No registration plates shall be temporarily or permanently attached to any replacement vehicle without the owner applying to the Licensing Authority for transfer of such registration plates to the replacement vehicle.

No person shall change, whether by mutilation, alteration or change of colour or in any manner, the original appearance of any registration plates when officially issued for and assigned to any motor vehicle".

Types of Licence Plate

- **P.P.V** - Red background white writing
- **CC** - Green background white writing
- **Private Plate** – White background blue writing
- **Temporary Plate** Blue background white writing
- **DC Plate** Blue background white writing
- **DT Plate** Blue background white writing
- **SS Plate** White background red writing
- **Government plates** Yellow back ground black writing

Assignment – Students are required to research all Foreign licence places including Countries and Series

The principal Regulation are hereby amended by deleting regulation 25B and substituting therefore the following:-

"Personalized plates"

25B - (1) The Licensing Authority may, upon application by any owner of a motor vehicle in the form T2 or T3 (as the case may require) in the first schedule, and upon payment by the owner of a fee of one thousand dollars, issue to the owner, in lieu of the registration plates referred to in paragraph (3) of regulation 25, two similar registration plates (hereinafter referred to as "personalized plates") upon which shall be marked such letter and number as the owner may specify in this application:

Provided that:-

- ✓ The same combination of letters and numbers shall not be issued to more than one application and
- ✓ The number of characters shall: -
 - In the case of plates issued to individuals for private motor vehicles, not exceeding six
 - In any other case, not exceeding twelve

The Licensing Authority may in its discretion refuse any application made under paragraph (1) if it considers the combination of letters and numbers requested to the obscene or otherwise objectionable.

Instruction for applying for Personalized Registration Plates will be issued to owners of private motor cars, motor cycles and trucks upon request from owners who submit applications and the required fees.

Personalized registration plates shall consist of two types of plates as follows:

A plate imprinted with capital letters only. Such plates shall consist of capital letters "A" through to "Z" and shall be limited to a total of six of the same or different capital letters. A hyphen or space may be added to the six letters e.g. Cindy -L or Cindy L.

A plate may be imprinted with both capital letters and numerals, which must not consist of more than six characters total, including both numerals and capital letters in any combination such as - DOC 123 or 123 DOC. A hyphen or space may be used in addition to the six characters, if desired.

E.g. DOC-123, JO-DOE2 or Don B12.

In completing this form, therefore, applicants should show three choices for the required plates, in order of preference and should limit each to six (6) letters or combination of letters and numerals.

INSTRUCTION FOR APPLYING FOR PERSONALIZED ORGANIZATION REGISTRATION PLATES

Personalized organization registration plates may be used for private motor vehicles, motor cycles and trucks registered in the name of an organization, at the request of the head of or an authorised person in the organization and on receipt of the required application and prescribed fees.

Personalized organization registration plates shall consist of one type of plates as follows:

Plates issued to and bearing the names of organization may be imprinted with both capital letters and numerals not exceeding a total of 12 digits. A hyphen may be used, only if it is part of the organization's name. Each plate can accommodate two lines with a maximum of eight characters or spaces per line and maximum of 12 characters for both lines.

The name of the organization as recorded on the application form must be the same as that shown on the relating Motor Vehicle Certificate of Title or on the Motor Vehicle Registration Certificate. Cost for personalized plate is **\$12000.00**

PROCEDURE WHEN LICENSE AND REGISTRATION VIOLATIONS ARE NOTED

When Vehicles are found without a valid registration or license, or a license, which is not appropriate for the vehicle, a set procedure is to be followed:

- ✓ Seize vehicle and take it to Police Station for safekeeping
- ✓ Prosecute owner or driver

When vehicles are found to have too many passengers, or defective equipment the following procedure should be followed:

- ✓ Prosecute
- ✓ Have vehicle examined by a Motor Vehicle Examiner. If found defective, have plates removed and kept in the possession of the police until the defect is corrected. Driver or owner may be prosecuted.

When drivers are found without a current driver's license or the license is not appropriate, you should:

- ✓ Require exhibition of any current licences.
- ✓ Prosecute

ENSURING SAFE DRIVING

Ensuring that all vehicles are driven in a safe manner is a part of the Constable's fundamental duty to protect the life and property of all citizens

Observing the driving habits of law enforcement personnel significantly influences the manner in which the public drives. Therefore the first rule of law enforcement is:

PERSONNEL DRIVING FORCE VEHICLES MUST NEVER VIOLATE DRIVING REGULATIONS UNLESS EMERGENCY EQUIPMENT IS OPERATING

This is an extremely important rule. Like it or not, as a Constable you are a role model for many citizens. This is particularly true for children. If you are seen violating safe driving practices, speeding, cutting in front of other vehicles, going through stop signs or stop lights, you are encouraging others to do the same.

Violating the traffic laws when the emergency equipment is not operating implies that members of the Force feel they are not subject to the same laws as the regular citizen. This is translated by many to mean that the Government believes itself to be above the law and better than the average citizen.

This attitude makes law enforcement much more difficult because it reduces the public's willingness to assist the Force in fighting crime.

AUTHORITY OF A CONSTABLE TO ENFORCE TRAFFIC LAWS

The Road Traffic Act gives Constables full authority to enforce all stated driving rules.

- ✓ You have full authority to **STOP** a vehicle. You need only to communicate your desire to the driver.
- ✓ If you are on foot, raise your right hand as a signal for the driver to stop.
- ✓ If you are in a vehicle or on a motorcycle, you should turn your emergency equipment on and motion for the driver to pull over.

Power to Arrest

Section 34 of the Road Traffic Act

It shall be lawful for any Constable to arrest without warrant any person in any public place or road, any person who drives or attempts to drive or is in charge of a motor vehicle whilst under the influence of drinks or drugs to such an extent as to be incapable of having proper control of the vehicle. (**fine \$ 20,000.00 on conviction**)

Section 34a

A person shall not drive or attempt to drive or be in charge of a motor vehicle on a road or other public place if he has consumed alcohol in such a quantity that the proportion thereof in his breath or blood exceeds the prescribed limit. (0.35mg of alcohol on 100ml of breathe) (**First conviction \$10,000.00, second \$20,000.00**)

Section 27 (Dangerous)

It shall be lawful for any Constable in uniform or on showing his authority to arrest without warrant any person who drives a motor vehicle on a road dangerously or at a speed or in a manner which is dangerous to the public, having regard to all the circumstances of the case, including the nature, condition and use of the road and the amount of traffic which is actually at the time or which might reasonably be expected to be on the road at the time. (**First conviction \$20,000.00**) (**Second conviction \$30,000.00**)

Section 45

It shall be lawful for a Constable to arrest without a warrant any person who takes and drives away any motor vehicle without having either the consent of the owner thereof or other lawful authority. (**First Conviction t \$ \$100,000.00**) (**Second conviction \$200,000.00**)

Section 32 (less serious) (Careless)

If any person drives a motor vehicle on a road without due care and attention or without reasonable consideration for other persons using the road shall be guilty of an offence. (**Fine \$5000.00**) *** May arrest the person who fails to give his name and address or if the officer have reasonable cause to believe the name and address given is not true or believe it to be false****

Power of Seizure

It is not licensed or registered

It is operating in a manner contrary to the terms of its license

If the registration plates or license is obscured or unreadable

If the Registration plate is not affixed or kept affixed.

Vehicles operating as PPV or CC with out a Road License

USERS OF MOTOR VEHICLES TO BE INSURED AGAINST THIRD-PARTY RISKS

Subject to the provision of the Motor Vehicle Insurance (Third Party Risks) Act, it shall not be lawful for any person to use a motor vehicle on a road, unless there is in force in relation to the user of the vehicle by that person or that other person, as the case may be, such a policy of insurance or such a security in respect of third-party risks as complies with the requirements of this act.

PRODUCTION OF CERTIFICATE OF INSURANCE

Any person driving a motor vehicle on a road shall, on being required by a Constable, give his name and address and the name and address of the owner of the vehicle and produce his insurance Certificate, and if he fails to do so he shall be guilty of an offence and shall on summary conviction thereof before a Resident Magistrate be liable to a penalty.

Provided that if the driver of a motor vehicle within five days after the date on which the production of the Certificate was so required, produce same in person at such Police Station as may have been specified by him at the time it's production was required, he shall not be convicted of an offence, by reason only of failure to produce his Certificate to the Constable.

PRODUCTION OF DRIVER'S LICENCE TO CONSTABLE ON REQUEST

Any person driving a motor vehicle on a road or accompanying a learner in a motor vehicle on a road, or being so required by a Constable, produce his drivers licence for examination so as to enable the Constable to ascertain the name and address of the holder of the licence, the date of issue and the issuing authority by which it was issued, and if he fails to do so, he shall be guilty of an offence and on conviction, liable to a fine not exceeding one hundred dollars.

Where the aforesaid person is unable to produce his driver's licence when so required but is able to satisfy the Constable by other means as to his name, address and identity, that Constable shall, if otherwise satisfied to the credentials of that person, permit him to produce such licence in person within five days thereafter at such Police Station as may be specified by that person at the time its production was required. If the licence is produced that person shall not be convicted of an offence.

You should prosecute the owner or driver of a vehicle being used without insurance coverage.

If you feel a motor vehicle is in a defective condition, you may require that the vehicle be taken to the nearest Certifying Officer at any Traffic Area Authority for examination. If find defective, you should issue a certificate of defects and require the person in charge of the vehicle to take it to the nearest place for repairs.

You may have a vehicle weighed either laden or unladen (provided the person in charge of the vehicle does not have to unload the vehicle or proceed more than 3 miles (one way) out of his way to have the vehicle weighed).

POWER TO STOP MOTOR VEHICLE (SECTION 45)

It shall be lawful for any Constable in uniform to request verbally the driver of any motor vehicle on any public road or place to stop the vehicle or to raise the right hand as a signal to stop. Such vehicle should be immediately stopped and kept stationary as long as may be necessary for the proper execution of his duty.

OCCASION WHEN A VEHICLE MUST STOP

- At the request of a Constable in uniform
- On the request of a School Crossing Warder, properly displaying school sign, **"Stop Children Crossing"**
- At the request of persons in command of troops
- At the approach of a properly erected traffic sign
- At the request of a person in charge of animal
- On the approach of a traffic light when showing red
- On the approach of a funeral procession, when your path takes you directly across such procession
- On the approach of a "Pedestrian Crossing" when in use

BREATHALISER SYSTEM (AMENDMENT TO ROAD TRAFFIC ACT 1995)

These amendments augment the existing Section, which deals with Drugs or Alcohol. It allows the police to carry out a Breath Analysis and require blood sample of persons suspected of having the blood level exceeding the prescribed limit.

Driving under the influence of drink or drug (Section 34)

The Police Medical Officer, or the driver's personal Physician must examine persons arrested as soon as possible if he so wishes.

If the driver refuses to submit to a medical examination, the Police Medical Officer should observe the driver and report the results of his observations.

Two samples of urine or blood should be taken with his consent. One for the police and the other for the accused.

The police sample should be sent to the police laboratory for analysis.

Section 34 A (1)

Driving or being incharge of a vehicle while blood alcohol level exceeds the prescribed limit (0.35mg of alcohol on 100ml of breath)

A person shall not drive or attempt to drive or being incharge of a motor vehicle on a road or other public place if he has consumed alcohol in such a quantity that the proportion thereof in his breath or blood exceeds the prescribed limit.

NB. The suspect must be the driver of the vehicle.

Section 34B (1)

Breath Test

Where a Constable in uniform or upon showing his authority as a member of the Constabulary Force has reasonable cause to suspect;

- That a person driving or attempting to drive or incharge of a motor vehicle on a road or public place has alcohol level in his breath exceeding the prescribed limit or is in breach of section 34 or
- That a person has been driving or attempting to drive or been in charge of a motor vehicle on a road or public place with an alcohol level in his breath exceeding the limit that the person still has alcohol in his breath; or
- That a person has been driving, attempting to drive or been incharge of a motor vehicle on a road or public place and has committed an offence against this Act, he may subject to subsection (4), require him to provide a specimen of breath for a breath test.

(2)

No requirement may be made by virtue of paragraph (b) or (c) of subsection (1) unless it is made as soon as reasonable after the commission of the offence.

(3)

If a traffic accident occurs owing to the presence of a motor vehicle on a road, a Constable in uniform or on showing his authority as a member of the Constabulary Force may, subject to subsection (4), require any person whom he has reasonable cause to believe was driving or attempting to drive the vehicle at the time of the accident to provide a specimen of breath for a breath test either at or near the place where the constable thinks fit, at a police station specified by him being a police station in reasonable proximity to that place.

(4)

If a driver is at a hospital as a patient he may be required by the constable to give a specimen of breath at the hospital but no such requirement may be made unless the medical practitioner in charge of his case –

- Is given prior notice of the proposal to make the requirement; and
- Does not object to the provision of a specimen on the ground that its provision or the requirement to provide it would be prejudicial to the proper care or treatment of the patient.

(5) Offences

A driver who, without reasonable excuse, fails to provide a specimen of breath under subsection (1), (3) or (4), is guilty of an offence. Fine not exceeding three thousand dollars, in default a term not exceeding six months.

(6) Power of Arrest

A constable may arrest without warrant any person who, as a consequence of a breath test, is found to have a proportion of alcohol in his breath exceeding the prescribed limit but no such arrest may be made while the person is at the hospital.

(7)

If a person required by a constable under subsection (1) or (3) to provide a specimen of breath for breath test fails to do so and the constable has reasonable cause to suspect that the person has alcohol in his breath or blood above the prescribed limit the constable may, without prejudice to section 34 (3), arrest the person without a warrant but no such arrest may be made if the person is at the hospital as a patient.

(8)

A person arrested under this section or under section 34 (3) shall, while at the police station, be given an opportunity to provide a specimen of breath test at the police station.

N.B. Suspects are to be tested by authorized persons of the Constabulary Force.

(3)

a) Persons suspected shall not be required to undergo a breath test if the person is hospitalized, and the medical practitioner in immediate charge of the suspect is not notified, or he objects on the ground that the compliance therewith would be prejudicial to the proper care or treatment of that person; or

b) If it appears to that member that it would, by reason of injuries sustained by that person, be dangerous to that person's medical condition to undergo a breath test or submit to a breath analysis; or

c) At the persons usual place of abode.

OCCASIONS WHEN THE SUSPECT MAY SUBMIT TO A BREATH TEST AT HIS USUAL PLACE OF ABODE

a) If the person was involve in an accident within two hours resulting in death or serious injury, and at the time it is believe that the alcohol level in his breath exceeded the prescribed limit; and

b) It was not feasible for a constable to require the person to submit a breath test at the scene of the accident.

(4)

Any person who fails to submit to a breath test, or willfully does anything to alter the concentration of alcohol in his breath or blood between the time of the event and the time that he undergoes that test, or he is require to submit to a breath analysis, the time he submits to that analysis. He shall be guilty of an offence.

The constable who administered the breath analysis shall deliver to the accused a statement in writing signed by the constable specifying –

The concentration of alcohol determined by the analysis and the time and date when the analysis was done.

Section 34 D (1)

Laboratory Test

It shall be lawful for a constable during the course of an investigation as to whether a person has committed an offence under section 34 or 34A to require a person under investigation to provide a sample of blood for a laboratory test, if the person is unable, by reason of his physical conditions, to provide a sample of breath for a breath test

(2)

However that person shall not be required to provide a specimen of blood if he is in hospital as a patient and the medical practitioner who is immediate in charge of his care is not first notified of the propose requirement or if he objects to the provision if such specimen could prove prejudicial to the proper care or treatment of the person.

(3)

It shall be unlawful for a constable to require a subject to submit to giving a specimen of blood for blood analysis if he knows a breath analysis has been carried out in respect of the subject and the results is available.

(4)

Where a person is required a specimen of blood, such specimen shall be taken only –

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- a) with the consent of that person;
- b) at the hospital; and
- c) by a medical practitioner or a qualified laboratory technician.

N.B. Even though it is not an offence to refuse to give a specimen of blood for testing, evidence of the refusal may be given to support the prosecution.

Stopping after an accident

It is the duty of every person to stop after any accident. The stop must be long enough to give particulars and not just a momentary stop.

If required by any person having reasonable cause, the driver must give his name and address and the identification marks of the vehicle. If these were not done, the accident should be reported to a Constable within 24 hours.

DRIVING OFFENCES

- Driving in excess of the speed limit i.e. over 30 m.p.h. in built up areas and over 50 m.p.h. on Highways.
- Failing to stop at stop signs or stop lights showing red.
- Failure to yield right of way, e.g. driving from a minor road onto a major
- Refusing to give name and address i.e. driver committed a Road Traffic offence and refused to give name and address when required by a Constable.
- Disorderly conduct on a Public Passenger Vehicle
- Not stopping at the sound of a siren i.e. on the approach of an emergency vehicle
- Parking at bus stop i.e. parking within 40 feet of a bus stop
- Riding on the outside of a vehicle
- Not renewing drivers licence
- Driving whilst disqualified
- Parking within 20 feet of an intersection
- Obstructing Traffic
- Driving contrary to the terms of a provisional licence i.e. conveying passengers etc., whilst under instruction.
- Defective tyres i.e. driving the vehicle along a public road with the tyre so worn that a portion of the breaker strip becomes visible.
- Putting a motor vehicle in motion i.e. putting an engine in motion without permission of the owner
- Mechanical defects i.e. drive or permit to be used or driven a motor vehicle in a defective condition, as to be a source of danger to occupants or members of the public
- No road licence i.e. use a vehicle as a Public Passenger Vehicle without there being in force a Road Licence
- Body protruding i.e. permitting a part of the body to protrude along the main side of the body of the vehicle
- Failing to pay fare on a Public Passenger Vehicle
- No lights

- Unlicensed Motor Vehicle i.e. driving a vehicle on public road without it being licenced
- Disobeying Police signal i.e. failed to obey the signal stop given by a Constable in the lawful execution of his duty. The foregoing and many more are offences committed under the Road Traffic Act

RESTRICTIONS AND PROSECUTION

DANGEROUS AND CARELESS DRIVING

A distinction is drawn in respect to dangerous and careless driving on one hand and careless on the other. Dangerous is really serious, whilst careless is less serious and due merely to lack of care. Any person who drives a vehicle in a reckless manner or in a manner which is dangerous to the public having regard to all the circumstances of the case including the nature, condition and use of the road and the amount of traffic which is or might reasonably be expected to be on the road at the time. eg. Driving a motor vehicle 60 M.P.H. along King Street, Kingston on a Saturday afternoon.

Whilst, Careless driving is without due care and attention or without reasonable consideration for other users of the road (failure to signal stops or turns, splashing people, passing on the wrong side, driving and gazing). Where a person is prosecuted for the offence of dangerous and careless driving or exceeding the speed limit he shall not be convicted unless either:-

- ✓ He was warned at the time of the offence was committed that the question of prosecuting him for one or more of the above mentioned offences would be taken into consideration. (Warning formula) or
- ✓ Within 14 days of the commission of the offence Summons for the offence was served on him/her or
- ✓ Within 14 days a notice of intended prosecution specifying the nature of the alleged offence and the time and place where it is alleged to have been committed was served on him.

Provided that -

Failure to comply with this requirement shall not be a bar to the conviction of the accused in any case where the court is satisfied that:-

Neither the name and address of the accused nor the name and address of the registered owner of the vehicle, could with reasonable diligence have been ascertained in time for a summons to be served or for a notice to be served or sent as aforesaid, or

The accused by his own conduct contributed to the failure, and the requirement of this section shall in every case be deemed to have been complied with unless the contrary is proved.

REPORTING DRIVING OFFENCES

What forms of reporting are required?
When are formal reports required?

PROSECUTING DRIVING OFFENCES

What is the most common procedure for prosecuting a violator of traffic laws?

FACTS ABOUT SEAT BELTS

A large percentage of the accident occurring on the roads in Jamaica results in death or serious injuries. This no doubt is due to factors such as poor road conditions, driver indiscipline resulting in dab driving habits and the importation of high powered vehicles.

Similar situations occur in other highly motorized countries and they are forced to develop and implement devices to minimize death and serious injuries resulting from road accidents.

Seat Belt

One such device is the seat belt which if used correctly can reduce traffic fatalities per (1000) one thousand to one fifteenth of the level in accidents which the occupants are not wearing seat belts (66). The effectiveness of seat belts has been proven beyond doubt.

HOW IT WORKS

When a motor vehicle is involved in a head-on collision or subjected to abrupt deceleration, if you are not wearing a seat belt you could be thrown forward with such force that striking the steering wheel, dashboard or windscreen could cause death or serious injuries.

On the other hand if the body is restraint by a seat belt an occupant of the vehicle may sustain primary injuries which are usually minor.

It is the dynamic energy built up by the body in a moving vehicle which when stopped suddenly causes inertia to throw the body forward and if not restraint the secondary injuries caused by impact can be fatal or serious.

Simply put if you are involve in a vehicle going at 30 M.P.H. and in a head –on collision if you are not wearing a seat belt your body will continue forward at 30 M.P.H.

The serious thing however is the dynamic energy built up by your body causes your weight to be increased six to seven times so that a person weighing 150 lbs will find that the weight of the body impacting on the steering wheel, dashboard or windscreen will be 1050 lbs.

RESEARCH

A research was done in Jamaica in 1994 and from the results it was recommended that Government should legislate the mandatory use seat belts.

HILIGHTS OF THE LEGISLATION

DEFINATIONS

CHILD

Includes any person whose size, height or built is such that the person experiences or is likely to experience problems or difficulty with the upper anchorage point to a seat belt.

CHILD RESTRAINT SYSTEM

means a seat belt, or other restraint system or devices or combination of devices designed to _____ the risk of injury to child, in the event of a collision or of abrupt deceleration of a vehicle, _____ limiting the mobility of the body of the child, being a device or combination of devices which –

- is designed either to be fixed directly to a suitable anchorage or to be used in conjunction with an adult seat belt and held in place by restraining action of that belt; or
- is fitted in the vehicle by the manufacturer and is of a type which complies with such standards as may be prescribed by the minister by regulation in respect of the shape, quality, construction, instillation and assembly of seat belts and other safety belts assemblies and anchorage and child restraint systems;

FRONT SEAT

In relation to a motor vehicle, means a seat which is wholly or partially in front of the vehicle;

REAR SEAT

In relation to a motor vehicle, means a seat which is wholly or partially in the rear of the vehicle;

SEAT BELT

Means many arrangement or assembly of straps with a securing buckle, adjusting device and an attachment which is anchored to a point to the structure of the seat of the motor vehicle by appropriate means and is designed to diminish the risk of injury to its wearer, in the _____ event of collision or of abrupt deceleration of the vehicle, by limiting the _____ mobility of the body of the wearer.

Vehicles to be equipped with seat belts.

Contrary to the belief that every passenger in every seat in every class of vehicle must wear seat belt, the laws sets out the vehicle that must be equipped. While the law implies that a motor vehicle shall not be used on the road unless it is equipped with seat belts, it clearly states that;

- **Trucks** constructed to carry passengers as defined by law must have seat belts on the **Front Seat only**. Your vehicle's registration will help you to know if it is a truck. For the records, trucks include buses, pick-ups and vans of a certain weight. It means therefore that the laws required only the driver and the front seat passenger in a bus for example to wear seat belt.
- **Motor Cars, Private motor cars and invalid carriages** are to be fitted with seat belts in the front seats and rear seats.

- **Public Passenger Vehicles**

Stage Carriages; On the front seat only. These vehicles are usually buses

Express Carriages; On the front seat only: These too are usually buses

Contract Carriages: Except for trucks, on the front and rear seats. This class of public passenger vehicle can either be truck (buses) or cars hence the exception

Hackney Carriages; On the front and rear seats. This class of carriage is what is referred to as taxi.

Exemption from wearing Seat Belt

There are exemptions in the law setting out the conditions under which one would not be committing an offence if he were not wearing a seat belt.

- A Child is being conveyed in a child restraint system
- A driver while he is reversing
- A person who holds a valid certificate of exemption prescribed by the minister and signed by a registered medical practitioner.
- A person riding in a vehicle while it is being used for fire bridged or police purposes.
- A person driving or riding in a vehicle constructed or adopted for the delivery of goods or mail to consumers or premises as the case may be, while engaged in the delivery to or of such goods or mail from customer to premises not further than sixty metres from each other.

SAFETY HELMETS

The laws require that any person riding or driving a motor cycle shall wear a protective helmet of the shape, quality construction or standards prescribed.

This implies that the driver of the motor cycle as well as the pillion passenger must wear helmets.

WHO WILL BE CHARGED FOR BREACHING THE LAW

No seat belt on seat in a motor vehicle - **The driver of the vehicle**

Driving without wearing a seat belt - **The driver of the vehicle**

This implies that if a person is driving a motor vehicle without a seat belt installed then he can be charged with two offences, that is no seat belt and not wearing a seat belt.

Not causing a child to wear or be conveyed in a child restraint system in a moving vehicle - **The driver of the vehicle**

Riding in a motor vehicle without wearing a seat belt if one is not installed - **The passenger will be prosecuted if that passenger is an adult.**

Not wearing protective helmet whilst driving a motor cycle - **The driver**

Not wearing protective helmet whilst being a pillion passenger - **The pillion passenger will be charged unless he is a child in which case the driver will be charged.**

OFFENCES AND PENALTIES

For no seat belt in a motor vehicle as specified

If convicted before a Resident Magistrate for the first offence two thousand dollars **(\$2000)**, for the second or subsequent offence Five thousand dollars **(\$5000)**. This offence attracts two demerit points.

Driving or riding in a vehicle without seat belt where the vehicle is fitted with seat belts.

If convicted before a resident Magistrate for the first offence Two Thousand dollars **(\$2000)** each for driver and passenger. For the second or subsequent offence attracts two demerits points for the driver.

Not causing a child to be conveyed in a child restraint system.

If convicted by a Resident Magistrate the fine is Five Thousand dollars **(\$5000)** plus a demerit point. The driver will be charged.

Not wearing safety helmet by driver or rider.

If convicted before a Resident Magistrate for the first offence a fine of Two Thousand dollars **(\$2000)**. For a second or subsequent offence a fine of Five Thousand dollars **(\$5000)**. This attracts two demerit Points for the driver.

TICKETING SYSTEM REDUCES FINES

In spite of fines referred to above it is to noted that if the offending driver or passenger opts to pay the fine at the office of taxes he will only be required to pay Five Hundred dollars (\$500) for each offence stated except for the offence of not causing a child to be conveyed In a child restraint system. In this case the driver will be required to pay One Thousand dollars (\$1000) to the Collector of Taxes.

In all cases however, the demerit point remain the same as if it was a conviction before a Resident Magistrate.

Specimens

Duplicate

Form E 1

ROAD TRAFFIC ACT

CC No. 53000

CERTIFICATE OF DEFECTS

I HEREBY CERTIFY that the undermentioned Motor Vehicle is not in a fit condition to run on the road:

.....

I issue this certificate in the account of the following defects:-

.....

.....

.....

and I am of the opinion that these defects **can / cannot** be remedied.

Date:.....

.....
Certifying Officer

Form E 2

Duplicate

ROAD TRAFFIC ACT

B No. 09101

CERTIFICATE OF DEFECTS REMEDIED

THIS IS TO CERTIFY that I have examined the undermentioned Motor Vehicle.....

.....

and find that the defects in Certificate No.....have been remedied, and the

Motor Vehicle is now in a fit and proper condition to run on the Road.

Date.....

.....
Certifying Officer

Form No. S3		LA 694298		
MOTOR VEHICLE REGISTRATION CERTIFICATE This is to certify that the vehicle described below has been duly registered and licensed to the expiry month indicated hereunder in Act and Regulation				
Owner's Name		Owner 's Address		
Fortune Corporation		44 Constant Spring Road, Kingston		
Type of Vehicle	Make	Year	Colour	Body Type
M - Car	Nissan	1999	Grey	Sedan
Model / Mfg.Type	Seating	Engine	ChassisNo.	
Primera	5	SR18949706	P1173738091	
C.C. Rating	Fuel	Unladen Weight	Expiry Date	Fee Paid
1838	Petrol		Feb.04	4000.00
Reg. Plate No.	Issuing Officer Signature		Date issued	
4401 DY			2003.03.21	

Form No. A1		TAA 001498		
CERTIFICATE OF FITNESS ROAD TRAFFIC ACT No. 2465956				
This is to certify that the vehicle described below has been examined and under section 10 of the Road Traffic Act and that the date of the examination thereof, complied with the statutory requirements prescribed by the Regulation under the said Act. The vehicle is in a fit and proper condition to be licensed as a private motor car/commercial motor car/ public passenger vehicle. This Certificate of Fitness, shall unless sooner revoked remain in force until 2004 December 29				
Reg. Plate No.	Owner 's Address			
4401 DY	44 Constant Spring Road, Kingston			
Type of Vehicle	Make	Year	Colour	Body Type
M - Car	Nissan	1999	Grey	Sedan
Model / Mfg.Type	Seating	Engine	ChassisNo.	
Primera	5	SR18949706	P1173738091	
C.C. Rating	Fuel	Unladen Weight	Laden Weight	Speedometer Reading
1838	Petrol			28217
S/Permit No.	M.V.R. No.			Date issued
	1589185	Transport Area Authority		2002.10.18

LIGHTS ON MOTOR VEHICLE

(Including Drivers of Animals)

INTRODUCTION

Serious or fatal accidents occur on our public roads, because of motorists operating and parking on our roads without adequate lights or at times no lights.

As a result of this, the regulation in regards to "**Lights on Motor Vehicle**" was enacted to regulate and control motor vehicles using the roads at nights without proper lightening.

We, the Police are charged with the responsibility of enforcing this Law. Hence it is very important that we study these specifications and ultimately preserve life and protect property.

LIGHTS ON MOTOR VEHICLE

Lighting up time is defined as **night** under the Road Traffic Act as that period between half hour after sunset and half hour before sunrise the next succeeding day.

As a consequence of the foregoing let us now discuss:

Lighting Requirements (section 40) (a)

Every motor vehicle is to have affixed two similar headlamps, one on either side, so constructed and placed in front of the vehicle so as to cast when lighted in the forward direction, in which it is proceeding a white light **only**, sufficiently clear and strong as to afford adequate means of signaling the approach and position of such vehicle on the road and

(b)

A lamp on the back and on the right side thereof or the back and right side of the last vehicle attached thereto, so constructed and placed as to exhibit when lighted a red light visible from behind and also a white light sufficiently clear and strong to illuminate the letter and number of the registration plate. This should be visible from a distance of about 20 yards from behind.

2a

Motorcycles

These must have one headlamp so as to exhibit when lighted, a white light so as to indicate its approach and position on the road. It must also have a red light visible from the rear at a reasonable distance. At times sidecars are attached to the motorcycle when this is done; an additional headlamp is to be affixed to the sidecar.

3a

Bicycles and Tricycles

These can be quite hazardous; hence it is a must that each be fitted with one lamp exhibiting a white light to indicate the approach and position of the unit and a tail lamp or a reflector to the rear of the unit

4a

Carts, Wagons and Drays

These must be fitted with one lamp exhibiting a white light to indicate the approach and position of the vehicle.

A red light to indicate the rear position

They should also have two white reflectors on the forward end of the shaft (The two long pieces of wood between which the horse is hitched to wagon or dray) and two red reflectors at the rear.

Those in the rear should not be more than 3.5 feet from the ground.

You will appreciate the fact that because of the length of "Trailers" correct judgement from the driver's point and from other motorists is of paramount importance at night hence Trailers should have a red light to the rear and off side (right side) in addition to requirement of No. 1 motor vehicles.

Handcarts

These are mostly and widely used in commercial areas. They should have two red reflectors, each one placed not more than 12 inches from the extreme side and at the rear of the cart no more than 15 inches from the ground.

Stationary Vehicles parked on roads during the night are potential death traps therefore the following parking requirements are to be met:

Two lamps in front to show white light

One lamp to the rear to show a red light, this lamp must be on the right or offside of the vehicle

As you are aware animals on our roads contribute to many serious and fatal accidents, hence the regulation for:-

Drovers of animals

Person in charge of droves of animals on a road during the dark should carry one light in front and one to the rear of such droves.

Any person in charge of such drove must not be below the age of 18 yrs. old.

Where the animals exceed fifteen in number at least three such persons shall be present.

TRAFFIC CONTROL AND REGULATION

INTRODUCTION

A major objective of the Constabulary is to assist the public in the pursuit of their personal interests. One aspect of this duty is to ensure that the public is able to move safely and easily from one place to another. With the constant increase in the number of motor vehicles, traffic has become a major problem throughout Jamaica. Not only are there more vehicles, but also there are more pedestrians. The existing roads and traffic control devices are no longer capable of handling the higher volumes of traffic. In addition, people are driving faster; they are more likely to take chances and are less tolerant of others. The results are traffic congestion, delays and accidents.

The Constabulary cannot reduce the amount of traffic, fix the roads or control the traffic devices. However, we can assist the public when there is unusual congestion. Such congestion usually occurs during rush hours, around accidents, when traffic devices malfunction or other similar circumstances.

POINT DUTY

Point duty is an assignment where your job is to control and direct traffic. This is often a formal duty such as when you are assigned to direct traffic at an intersection because of the volume of traffic during rush hour. However, you may also find it necessary to perform point duty as a result of an accident, a funeral, a march, a demonstration or because of some type of road repair work. Finally, you may come upon a situation where you feel traffic needs assistance because of a traffic hazard such as a malfunctioning stoplight.

Point duty, according to the **Police Manual** is, "performed by any member of the Jamaica Constabulary Force or Island Special Constabulary Force or Traffic Warden on any public road in Jamaica." The manual adds, ***"At the time of performing such duty (you) must be dressed in uniform and are required to give clear signals so as to regulate the free flow of traffic"***.

OBJECTIVES

The objectives of traffic control are to prevent obstructions; these include accidents, traffic congestion which may occur at your immediate location or at other locations and intersections, as well assisting emergency vehicles as well as official vehicles that use our roads from time to time.

To prevent traffic offences from being committed: The mere presence of a Motor Cycle Cop on patrol serves as a deterrent to potential traffic offenders.

RESPONSIBILITIES

All police are: "required from time to time to perform such duty at various points in order to regulate the flow of traffic and prevent congestion." This means:

When a Constable sees a traffic problem developing, he or she should determine the cause of the problem and report it immediately.

If in the judgement of the Constable, the problem is, or will become a traffic hazard; the Constable should request permission to manually direct traffic until the problem is corrected or until relieved.

As soon as the Constable begins directing traffic he or she becomes responsible for:

- The smooth flow of traffic
- Prevention of any additional traffic hazards
- Any accidents that might occur

REMEMBER, ACCIDENTS, WHICH OCCUR AS A RESULT OF CONFUSING OR CONTRADICTIONARY HAND SIGNALS, ARE CONSIDERED THE CONSTABLE'S RESPONSIBILITY!

RECOGNITION OF A POSSIBLE TRAFFIC PROBLEM

All Constables must remain alert to the possibility of a traffic problem arising whether he or she is performing patrol duties, working traffic duties, investigating crimes or even when being off duty.

Constables encountering a traffic problem should attempt to determine the cause of the problem and if the problem is or will soon constitute a traffic hazard.

A traffic hazard is any traffic problem that significantly increases the probability of an accident or constitutes a danger to motor vehicles and/or their occupants.

Once the problem is determined, the Constable should advise the Police Control or his/her immediate supervisor of the situation.

On determination that the problem constitutes a traffic hazard, Constables in uniform and not on another assignment, should ask permission to perform point duty until the traffic hazard is removed or until relieved. Constables on another assignment or not in uniform should advise the Police Control that traffic hazard exists and request that point duty be performed.

PERFORMING POINT DUTY

Basically, performing point duty is simply telling drivers and pedestrians how, when and where to move. The difficult part is to make sure everyone understands what you want them to do. This lesson is concerned with how to make people understand you.

Basic rules for performing point duty

- All Constables performing point duty must be in uniform.

- All Constables must use the same hand and arm signals.

While some motorists would probably understand if you used your own personal hand signals, others would become confused.

Do not move your hands and arms unnecessarily. Do not slouch or become emotionally involved. ***Yelling, gesturing, or verbally correcting a motorist is confusing to others and makes you look unprofessional.***

Stand in the centre of the intersection or street or wherever you are in the motorist's line of sight. Do not attempt to direct traffic when not clearly in the motorist's line of sight.

Try to break traffic at normal gaps whenever possible.

Do not attempt to direct traffic with your hands while keeping your arms at your side. If your arms become tired, leave your position and rest or request temporary relief.

Always stand with your side towards those vehicles you wish to move. Always face (or present your back to) vehicles you wish to stop or remain stopped.

Use your whistle to emphasize your signals whenever possible.

Do not leave the area unless the problem has been resolved, you are relieved or you have orders to do so.

Stopping Traffic:

Face the traffic to be stopped. Point your arm and **index finger** at the vehicle to be stopped. When seen, raise your palm towards the vehicle until the vehicle stops. If there is more than one lane of traffic, repeat the procedure for vehicles in each additional lane. Do not count on stopping all vehicles at once. ***MAKE SURE THE DRIVER SEES YOU.*** Once traffic is stopped from one direction, turn to the other direction and repeat the procedure.

Starting Traffic

Stand sideways to the traffic. Point with your arm and index finger toward the vehicle you wish to move until you get the driver's attention. Then, turn your palm up and swing your forearm toward your head. Bend your arm only at the elbow. To start vehicles from the opposite direction, drop the first arm and start traffic in the same manner using the other arm.

Left Turn

Signals for a left turn are seldom used at an intersection. If such signals do become necessary, the proper procedure is to point toward the driver of the vehicle with both your arm and index finger, get the driver's attention and then point to where you wish the driver to go.

Right Turn

In assisting drivers who wish to make right turns, it is usually necessary to first stop all traffic coming from the opposite direction. To accomplish this, stop traffic from the other direction by pointing your arm and index finger at them and when you have their attention, turning your palm toward them so that your fingers point up into the sky. However, in this instance, do not turn your body to face them. (This is because you are not stopping all traffic going in the two directions) Once they have stopped, use your other hand to point your index finger at the driver of the vehicle wishing to turn right and when you have the driver's attention, move your arm and hand so that your index finger points towards where you wish the driver to go.

In intersections where one lane is available in each direction, a driver wanting to turn right can hold up a number of vehicles wishing to go straight. It is sometimes wise to signal the driver to pull the vehicle into the intersection while waiting for an opportune time to turn right. This is done by pointing at the driver of the vehicle and when you have the driver's attention, pointing at where you wish the vehicle to stop. This procedure will both allow the vehicles behind him to continue and place the driver in a better position to turn right.

Do not permit vehicles to turn right from the curb lanes of multi-lane streets. To signal this, point at the driver of the vehicle and when you have the driver's attention, shake your head, "no" and point in the direction you wish the vehicle to go.

Using 2 Constables to direct traffic

Occasionally it is advantageous to have 2 Constables direct traffic when sporting events are over or when employees of a large industrial plant are leaving work. While there are variations, one Constable is usually stationed at the location where the people will enter the main road and the other is in the center of the main road. The main point is that one Constable must make all the decisions about stopping or starting traffic. The other Constable merely assists in making sure the motorists are aware of the first Constable's signals. In the above case, the Constable in the center of the main road would be the first Constable.

Using the Whistle

The whistle is used to get the attention of the drivers and pedestrians. While the voice is seldom used in traffic control, both motorists and pedestrians can usually hear the whistle. However, the whistle should not be used without arm and hand signals. When using the whistle always use the same sound with a particular hand and arm signal.

The authorized whistle sounds are as follows:

- STOP One long blast
- GO Two short blasts
- ATTENTION 3 short blasts
 (Used when the motorist or pedestrian does not respond to hand and arm signals).

Use of the flashlight

Directing traffic at night is difficult and the proper use of a flashlight can be of great assistance. However, do not attempt to use the flashlight as a substitute for your arm and hand signals. The flashlight is best used for stopping traffic and calling the motorist's attention to you. The procedure is to slowly move the flashlight back and forth with the beam directed towards the street 10 to 15 feet in front of you and in the path of the approaching vehicle. This results in an elongated spot of moving light that is easily seen by the motorist while not blinding him. (Do not stand directly in the path of the approaching vehicle) Once the vehicle has come to a stop, use the standard arm and hand signals in the usual manner. They will be visible in the headlights of the vehicle.

Using gloves

The use of white gloves during the day and white or reflective gloves at night is highly recommended. When using gloves, your arm and hand signals are more noticeable. However, they can be a problem. Highly noticeable gloves attract the attention of the motorist to the point that they often will miss the signal. Therefore when using gloves, extra care should be used to make the signals slowly and carefully.

DIRECTING TRAFFIC AT INTERSECTIONS WITH SIGNALS

Constables direct traffic at an intersection equipped with traffic signals only when:

- There has been an accident
- The signals are not working

- The signals are not adequate to handle the traffic

When directing traffic after an accident, it is usually necessary to disregard the mechanical signals or to turn them off temporarily.

Traffic is directed in the usual manner when disregarding the signals, however, make your hand and arm motions very clear. Do not attempt to hurry the motions. Often during daylight hours it is helpful to nod your head to emphasize your signals. **Slow the traffic down to 5 or 10 miles an hour if possible.**

Remember that the sight of the accident will distract the motorists and it will often be necessary to give signals more than once. Judicious use of the whistle is of great help on these occasions.

Pay close attention to the signals at the next intersection. Whenever possible try to co-ordinate vehicle movements with those signals.

If possible, turn off the mechanical signals while you are directing traffic.

When the cause of the congestion is an inadequate signal, it is best to turn the signals on manual and control traffic by manually switching the lights. When doing this be careful to give oncoming traffic an adequate warning time with the use of the yellow light. The supervisor should have the key to the signal.

EMERGENCY VEHICLES

An important aspect of traffic control is providing assistance for emergency vehicles to get to and from a location.

Take up a clearly visible position in the intersection well before the emergency vehicle arrives. Assist any existing traffic through the intersection and slow down all vehicles so that they can stop quickly when the emergency vehicle approaches.

As the emergency vehicle approaches the intersection, **STOP ALL TRAFFIC** and open a lane for the vehicle.

Once the emergency vehicle is through the intersection, manually direct traffic until the intersection is clear and the traffic is no longer congested.

REPORTING SIGNAL MALFUNCTIONS, STREET DEFECTS AND TRAFFIC ENGINEERING PROBLEMS

All signal malfunctions and traffic hazards or congestion caused by engineering or road surface defects should be reported immediately.

Signal malfunctions are handled by the Kingston And St. Andrew Corporation and should be reported to Engineering Dept.

Street surface defects are handled by the Public Works Department and should be reported to Maintenance Dept.

Traffic engineering problems are handled by the Kingston And St. Andrew Corporation and should be reported to Engineering Dept.

ADVISE PERSONNEL COMING ON DUTY OF ANY TRAFFIC PROBLEM

Whenever a traffic problem is encountered, it should be noted in your personal pocket book and the Station Diary. If the problem is still there at the end of your shift, or if it might become a problem again during the next shift, you should also personally advise your supervisor and the Constables who will be working your beat on the next shift.

TRAFFIC ACCIDENT INVESTIGATION

INTRODUCTION

The importance of conducting a proper investigation at the scene of a motor vehicle accident cannot be over emphasized. The number of people killed or injured in accidents increases every year. Further, the annual cost to the public in terms of repairs, increases in insurance premiums and general inconvenience is tremendous. We investigate accidents for various reasons. First, investigation of an accident is a basic function of police - the protection of life and property. We also seek to determine the cause and to gather evidence for the prosecution of those who have violated the Traffic Code. But, more than that, accident investigation is a public service to both the people and the nation. An accidents report provides the only authoritative source of information for problems associated with road design, speed limits and traffic controls. Traffic architects and managers can use this data to construct safer roads, develop more effective controls and introduce laws that will reduce accidents while at the same time reducing congestion.

Accident investigation is also a challenging type of work. The constable is confronted with all forms of potential human and mechanical problems, under all types of circumstances. Because most times accidents lack the element of intent and are usually a surprise to those involved, they are most difficult to investigate. Under such circumstances, the need for obtaining all possible information and evidence is vital and preservation of the scene is the most important.

In spite of the difficulties however, the work is important. Your findings may ultimately contribute to changes that will in the future save many lives. In addition, fast action on your part may result in the opportunity to save a life at the scene of the accident.

As a new constable, you will not normally be responsible for actually handling an accident investigation, these are done by more experienced constables. Nevertheless, in law enforcement you will never know what your next assignment may be and it pays to be prepared. You will be expected to respond to an accident scene, care for any injured, locate witnesses and preserve any exhibits.

DEFINITIONS

Traffic

Under the Road Traffic Act, traffic includes bicycles, tricycles, motor vehicles, vehicles of any description, processions, bodies of troops, and all animals being ridden, driven or lead on the road or in any public place.

Traffic Accident.

A traffic accident is any accident, which occurs on any public road or public place and involves motor vehicles, bicycles, animals and animal drawn vehicles and pedestrians. (P.116, Jamaica Police Manual)

Hit and Run Accidents

A traffic accident in which the driver of one of the vehicles involved left the scene without providing the other parties or the police with the necessary information concerning his or her identification.

Roadway

That portion of the road improved, designed or ordinarily used for vehicular travel exclusive of the shoulder.

Traffic way

The entire width of the road from traffic line to traffic line

Public Road or Area

Any portion of any road owned or maintained by the city or country. Includes public parking lots and areas, but does not include parking areas on private property.

Pedestrian

Any person on foot

Right of way

The legal right of one vehicle or pedestrian to proceed while another must yield.

GENERAL RESPONSIBILITIES

Traffic accidents of a serious nature and those, which involve injury, must be investigated by the police, accidents of a minor nature (slightly damage only) may not be investigated by the police if the vehicle or vehicles involved are not the property of the Government of Jamaica.

Accidents that require a police response

- Serious (death and serious personal injury) accidents
- Hit and run accidents.
- Accidents involving impairment of an operator due to alcohol or drugs
- Accidents involving hazardous materials
- Accidents resulting serious traffic congestion.
- Accidents involving damage to the extent that towing is required
- Any accident involving a government or Force vehicle

Citizens' responsibilities when a police respond are not required

Drivers who are involved in minor accidents are required to stop and exchange the following information; (RTA section 39)

- Their name and addresses
- The names and addresses of the owners of the vehicles involved
- They must produce their Drivers Licenses for inspection by the other parties involved
- They must produce the Insurance Certificate for the motor vehicle involved for inspection by the other parties
- They must report the accident within twenty four (24) hours at the most convenient police station

If while on duty you should see an accident, or be told to go to an accident to determine if there have been injuries, you should go immediately to the scene.

On arrival, you should determine if the accident is serious enough to require a report (and advice central control of your findings).

If the accident is one, which requires police response, you should follow the procedure set out below for the first constable on the scene.

If the accident is of a type that does not require police investigation you should ensure the drivers exchange information as required. If however, they request a police investigation, you should follow the procedures set out for the first constable on the scene.

Whether a police response is necessary or not, since you are on the scene, you should determine if any of the vehicles are in any way a hazard to traffic. If so, they must be moved to safe location as soon as possible. If the vehicles are so disabled that it will require towing you must advise the driver to have it removed it immediately. (If towing is required a police response will be necessary).

If the driver is unable to have the vehicle towed, you are required to impound the vehicle (see Appendix A, Force Order No. 2230 dated March 1, 1990).

FIRST DUTIES AT THE SCENE

When travelling to the scene of an accident, the first duty is to arrive on the scene without causing additional accidents. If you are driving a vehicle, do not exceed the speed limit. The accident has already happened and there is nothing you can do to prevent it. When it is known or suspected that injuries have occurred, Police Control will indicate you have authority to use blue lights and siren. **Be aware however, that the use of emergency equipment is in itself hazardous and is not a license to drive dangerously, if anything, when using emergency equipment you must drive much more carefully.** When you arrive at the scene park in a location, which will not impede traffic. (You will however, wish to use the blue flashing lights to warn motorists of a problem).

- Park the police vehicle in such a manner to provide protection of the scene without endangering the public.

- Take a moment to observe the entire scene. Your primary interest at the time is to determine if the scene is safe. Are there pedestrians in the roadway in danger of being hit by other vehicles travelling on the road?

Are the vehicles and people involved in the accident in danger from passing motorists? Individuals are often thrown from the vehicles and found lying in the roadway. Others may be wandering around dazed and unable to see oncoming traffic.

Is there gasoline or other flammable substances on the roadway? Watch for onlookers who are smoking. Advise them of the danger and ask them to go to a safe location and extinguish their cigarettes.

DO NOT SIMPLY TELL THEM TO PUT OUT THEIR CIGARETTE. THEY WILL AUTOMATICALLY DROP IT ONTO THE GROUND WHERE THEY ARE STANDING.

Is there any fire or smoke coming from the vehicles or other damaged structures in the area? Have any water mains, electrical lines, natural gas lines or other utilities been damaged? Try to find individuals on the scene who can help you control the traffic and/or tend to the injured. If necessary, ask someone to call the police for additional assistance.

Check for injured persons, conduct a preliminary survey of the victims, and check for breathing, pulse and for any arterial bleeding.

Administer emergency first aid to the injured

- Utilize competent bystanders if possible. (Remember however that you may be the only trained first-aider on the scene).
- Send the injured off to hospital by earliest means of transportation.
- Request ambulances by communicating with police station for the district or Police Control Centre if in the Corporate Area of Kingston and St. Andrew.
- Attempt to determine the identity of all involved. Ask the injured to identify any fatalities. Determine who should be notified.
- Try to get some idea of what happened.

Once you have evaluated the scene and the victims are stable, conduct an assessment of the situation to determine needs for assistance in protecting the scene and controlling traffic. If additional investigative skill is required, summon appropriate assistance.

Conduct a secondary survey of the victims, check vital signs. Check the area for additional victims who might have been thrown clear or crawled some distance.

Use chalk and grease pencil to draw lines around the front tires of each vehicle (indicating r. front and l. front wheels and the direction the vehicle was pointed), the estimated point of impact and the locations of any victims found on the ground, then have the vehicles removed so that traffic can be restored (if the accident involves a fatality, the vehicles should be left in place until photographs are taken whenever possible).

If the driver(s) are unable to have the vehicle(s) towed, you are required to impound the vehicle. (See Appendix A, Force Order No. 2230 dated March 1, 1990).

To the extent possible, clear the scene of the accident and protect any valuables which might be in the vehicles or thrown out during the crash.

Protect the scene by using traffic flares, cones or the police unit's emergency lights (blue flasher lights) if equipped, to alert approaching traffic. If no other method is available, use bystanders, standing some distance from the scene in either direction, to alert approaching motorists of the hazard ahead (**THE PROBLEMS ASSOCIATED WITH HANDLING CONGESTION WILL BE DISCUSSED IN MORE DETAIL LATER**).

If necessary, detour all traffic to another street

Collect and preserve evidence, which may be damaged while waiting for the investigator. (If no accident investigator is coming to the scene, collect all relevant items and material).

Identify those involved and any witnesses and record the accident information in Accident Report Booklet starting from the front in a consecutive manner. If your superior or an accident investigator is coming to the scene, ask everyone with information to remain at the scene until contacted by the investigator.

Check for hazardous material on the scene, e.g. gasoline, oil, caustic substances or debris and summon the appropriate authority responsible to deal with matters of this nature.

Ensure that the road is cleared of vehicles, persons and debris and it is safe for vehicular traffic before leaving the scene. This may well involve seeing that the street is swept clean.

WHO IS IN CHARGE OF THE SCENE

The following procedure determines the accident scene:

The first policeman to arrive on the scene shall be in charge until completion of operation and shall not surrender charge of the scene to non-law enforcement personnel;

If more than one member of the Force are at the scene and they are of the same rank, the most senior in service shall be in charge;

If authorized emergency medical service personnel arrive on the scene, the authority for the care of injured persons shall be entrusted to them. This activity shall in no way prevent police personnel retaining charge of the scene.

If a senior member arrives on the scene, e.g. Supervisor, although he is not actively engaged in the investigation, by virtue of his rank he is in charge. The investigator shall acknowledge his presence by reporting to him, giving a briefing on the situation, action already taken etc., as soon as possible. Immediately he leaves his scene, the first investigator shall take charge;

All police personnel who at any time have to deal with a traffic accident shall remain as familiar as possible with the operations and practices of other agencies (non-law enforcement) that may have occasion to respond to an accident scene. Full cooperation shall be given by the police as far as is practicable.

HANDLING THE CONGESTION AT THE SCENE

There is always a congestion at the scene of an accident which requires quick action from the police. It shall be imperative therefore, for the police to direct and control the movement of traffic at accident scene for the purpose of:

- Protecting the scene;
- Preventing additional collision;
- Clearing the roadway; and promoting the safe movement of traffic

The following procedure shall be followed in directing and controlling traffic at accident scene:

- The first police personnel to arrive on the scene shall assess the situation and identify what is required on the scene to help restore a normal flow of traffic;
- Inform Police Control Centre and the station concerned, then make request for what is required, police reinforcement, barriers, traffic cones etc.;
- Make use of bystanders (volunteers) by placing them at a distance in either direction away from the scene to slow down or divert traffic where necessary until police reinforcement arrives;
- If a service vehicle is available and so equipped, park same in a manner that it helps to protect the scene, and use its overhead lights to alert approaching traffic;
- To prevent congestion and permit emergency vehicles to move freely and safely, the police should direct the vehicles (emergency and otherwise) to be parked off the road way as soon as practicable;
- As soon as barriers and traffic cones arrive, use them to cordon off the scene;

- The police will use tact and consideration in directing passerby except witness (on) to leave the scene;
- The police shall be alert to actual and potential dangers at the scene e.g. spilled gasoline, oil and other flammable material and divert the traffic away from the scene;
- The police shall conduct accident scene traffic direction and control activities until the road is cleared and safe to restore a normal flow of traffic.

DETERMINING THE CAUSE OF THE ACCIDENT

The job of determining the cause of the accident usually rests with an accident investigator. But as the first Constable on the scene your actions to preserve the exhibits and obtain information are particularly important. Then too, there will be times when there is no accident investigator available. When this happens, you as the Constable on the scene, will be responsible for conducting the investigation

PLEASE UNDERSTAND THAT DETERMINING THE CAUSE MEANS CONDUCTING A COMPLETE ACCIDENT INVESTIGATION

Much of the evidence at an accident scene is perishable. That is, it does not last long. If not collected and preserved quickly other vehicles usually destroy it. To make it easier to conduct a complete investigation, the accident is broken down into 3 categories, the people involved, the vehicle or vehicles and the road or area of the accident. Each must be checked for information leading to the cause of the accident.

Witnesses, drivers and passengers

The condition of the drivers and the passengers of, the vehicle may well indicate the cause of the accident, the driver may have been intoxicated or under the influence of drugs, the driver and the passengers may have been talking, arguing or fighting or may have been engaged in other activities which reduced the driver's ability to control the vehicle.

ALWAYS INTERVIEW EACH PERSON SEPARATELY AND OUT OF THE HEARING RANGE OF OTHERS. THIS APPLIES TO THE DRIVERS, PASSENGERS, AND ALL WITNESSES

A detailed statement regarding the accident should be obtained from each witness. They are usually the most reliable source of information concerning the accident. However, it is wise to determine if the witness knows any of the people involved in the accident. If they do, record that fact.

Each driver should be asked to give a detailed statement as to the cause of the accident. Irregularities and conflicting information in the statements should NOT be pointed out at this time. (If a driver starts to make an admission he should immediately be **cautioned**)

Each passenger should be asked for a detailed statement concerning the cause of the accident. Again irregularities should **NOT** be pointed out.

The vehicles

The nature and extent of the damage to a vehicle can be most revealing when closely examined. Frequently, it is found that a vehicle has been damaged in previous accidents, that it was traveling without lights, that the brakes or the steering wheel was defective or that worn tyres contributed to the accident.

All identifying information about the vehicles should be recorded, this includes the license plate number, vehicle identification number (VIN), owner, insurance certificate, etc.

The headlights, brakes, break lights; mirrors, tyres, steering mechanisms and other mechanical devices should be checked if possible (this is usually handled by a Traffic Examiner).

Any decals, toy animals, clothing or other material, which may act to obscure the driver's forward or rearward visibility, should be noted.

The roadway

The physical conditions of the road and the surrounding area are very important to a clear understanding of the accident. The Constable at the scene should examine and record information on a variety of conditions.

Always include the name of the roadway, the distance from the nearest address or intersection and the presence (or absence) of any holes or loose gravel on the road surface. Weather conditions, lighting and information as to the location and type of any traffic control devices should also be included.

Any obstruction to the driver's vision should be recorded. These might include the presence of an unusual amount of dust, such as is found in construction areas or near cement plants, hedges, trees, poles, signboards, sunlight, the visibility of any traffic-control devices (and if they are operating properly) and warning signs. (Record all observations from the driver's perspective).

A sketch should be drawn as a means of preserving the exact location of the accident and any markings left by the vehicles themselves. This sketch should include a drawing of the roadway itself, the shape and width of the road, any intersection, direction the vehicles were travelling, the exact location of the point of impact, and the final resting place of the vehicles (and any occupants of vehicles who were not in the vehicles). The location of any skid marks and their length should be carefully noted and the location of any traffic control devices and any fixed objects which were struck or may have obstructed the driver's view.

The direction and distances of each item from the point of impact and / or from some fixed object should also be included in the sketch.

- Use Triangulation, coordination or combination of the two methods to ensure correct measurements.
- Coordination involves taking 2 sets of right angle measurements from a fixed point to the left or right front and rear tires of each vehicle.
- Triangulation involves taking measurements from the exhibit to any two fixed objects (preferably widely separated). A combination of the two procedures is preferred.
- Be sure a second Constable or an independent person is present and verifies each measurement. Both you and the other person should sign the sketch, "Measurements as pointed out by"
- Water from the radiator, oil and gasoline spills should also be included. If the evidence is under the vehicle, the vehicle should be treated as transparent for the purpose of the sketch.
- Be sure to include measurements to any traffic control device
- Particular care should be given to measuring the length of skid marks and drag marks. This is because the approximate speed of the vehicle can be determined by using mathematical formulas. Be careful to draw the exact shape and angles of the marks in your sketch.
- If the roadway where the accident occurred is on a hill or a curve, include the degree of incline and the angle of the curve involved. These can easily be determined by the use of a protractor, a clipboard and a compass.
- When drawing the vehicles indicate on the drawing the location of any damage, particularly that damage which appears to have resulted from the initial collision.

Be sure to indicate the location of any evidence such as drugs, or open containers of intoxicants found in or around the vehicles.

WHEN A BREACH OF THE ROAD TRAFFIC ACT IS APPARENT

The under mentioned guidelines shall be followed whenever a Breach of the Road Traffic Act is detected during accident investigations:

- All police personnel who have to investigate traffic accidents shall take positive enforcement action whenever such investigation produce probable cause to believe the Road Traffic Act has been violated;
- Where a fatal accident occurred, whether on private property or public thoroughfare, and the investigator establishes all elements or points to
- Prove the appropriate charge e.g. manslaughter and in addition, there is additional corroborating evidence. This may include statements or admissions, statements of independent witnesses,

accident scene measurements and/or physical evidence, which confirm the charge. The warning formula shall then be administered. (Formula is discussed below).

PHOTOGRAPHING THE SCENE OF THE ACCIDENT

In those accidents where there are a number of serious injuries or fatalities, the Constable on the scene should request that the scene be photographed. This is usually handled by a CIB photographer; however, if you know what pictures will be required you will be better able to make sure the scene is preserved correctly. The photographs should include:

- A picture of the overall scene from each of the driver's viewpoints
- A picture of the point of impact, (close up and from a distance)
- A picture showing the location and condition of any traffic control devices (including any obstructions to seeing such devices)
- A picture showing any serious defects to the roadway itself
- The final position of the vehicles, victims, and any parts of the vehicles after the impact
- Any blood, hair, flesh, clothing, bruises, paint transfers, or scrape-marks on the victim and/or the vehicle (particularly useful in hit and run accidents).
- All skid marks, drag marks, tyre marks and footprints
- The damage to the vehicles and any pre-existing vehicle defects noted
- License numbers of the vehicles for identification purposes.
- An overall picture of the same area of the roadway after the accident has been cleared away.

If no Photographer is available or authorization for photograph is not given, the report should include a narrative, description of each of the above areas. The report should also include the fact that photographs were requested but were not authorized or no photographer was available.

WRITING THE REPORT

In most cases you, as the Constable on the scene, will be relieved by a superior or a traffic investigator. Depending upon the severity of the accident you may also be tasked to assist in handling some portion of the investigation or the traffic.

Usually your report will consist of one or more entries in the Daily Diary and the Traffic Accident Register. At some large stations you may also be required to make an appropriate entry in the Traffic Diary. You may also be expected to assist in giving the Sub-Officer in charge of the Station a formal report as early as possible.

You will, on occasion, be required to complete the Accident Report Book. This is a complete report regarding the accident and it is important that you not only know what it is, but also how to fill it out correctly.

The report book is normally filled out at the scene of the accident and as the statements are taken. Please note particularly the section on page 19, which deals with damage to other property and owner's particulars. This is required where some other articles are damaged as a result of the accident. This damage should not be confused with damage to the vehicle but refers to any damage that might occur to property, produce or equipment, which was in the vehicle at the time of the accident.

You should note as close as possible the extent of the damage, the approximate value and the owner's name and address.

If you are functioning as investigating Constable you must give your findings to the cause of the accident on page 10 of the form. Be particularly accurate in your statement here. A Codebook is available for your use at each station and it may be wise to take the assistance of a Senior Constable or one who frequently handles accidents.

On completing the Report Book, the Constable should administer the Warning Formula to the driver or drivers involved.

Warning Formula

The warning formula should be applied to every driver involved in an accident. If this is not done on the scene, then a summons or warning notice must be served on them within fourteen (14) days of the accident.

“You will be reported on for the question to be considered of prosecuting you for one or more of the following offences; careless, dangerous driving or exceeding the speed limit.”

If you conducted the investigation into the cause of the accident, you will be expected make a detailed entry in the station diary as to the investigation and any action taken. You will also give

(DISCUSS THE WRITING OF THIS ADDITIONAL REPORT)

WARNING NOTICE

THE ROAD TRAFFIC LAW CHAPTER 346 SECTION 29)

To.....

Take notice that it is intended to prosecute you for the reported offence (s) of (a) Careless Driving, (b) Dangerous Driving and (c) Exceeding the Speed Limit, committed by you at.....on.....the.....

Signed.....

Superintendent or Sub-Officer of Constabulary

Date.....

(Done in duplicate and the original served on driver, whilst the copy is endorsed for the file)

Specimen

Traffic Accident Report

Constabulary Station
Barrett Town
St. James

Sub-Officer i/c
Barrett Town

Report re Traffic Accident, which occurred on 02..07.10 about 3 pm along the Lilliput Main Road in the parish of St. James. Two persons injured.

Reporting that on Wednesday 10th July 2002 about 3 p.m., I investigated a traffic accident that occurred along the Lilliput main road in the vicinity of the Wyndham Hotel involving white Toyota Corolla motorcar registered 1531 BB, owned and driven by Arnold Frazer age 38 years, chauffeur of 12 Brunswick Avenue, Spanish Town and grey Nissan Bluebird motorcar registered 4322 AN by Leroy Thomas age 45 years business man of Mount Peto Hanover and driven by Neil Wray age 42 years old bartender of Ramble Hanover.

Facts are that both vehicles were travelling in opposite direction, the corolla towards Falmouth and the Bluebird towards Montego Bay. On reaching about two metres from the Wyndham Hotel towards Falmouth, the corolla swerved to the right to avoid a pothole, the vehicle got out of control and collided with the Bluebird on the other side of the road, causing extensive damages to the front of both vehicles.

As a result of the accident, the driver of the Bluebird received slight injuries to his right hand whilst John Lake, 38 years farmer of 2 Seaway Close Falmouth, a passenger in the Bluebird sustained a broken right leg. They were both taken to the Cornwall Regional Hospital where Lake was admitted while Wray was treated and sent home.

I took measurement and statements were collected from both drivers and John Lake. The certifying officer of St. James, Mr. Frank Doorman, examined both vehicles and the drivers of both vehicle served copies of warning notices. As well both were given a breath test that proved negative.

Kindly see attached statements from both drivers, passenger John Lake, copies of warning notices, ARB's copies of certificates of Defects and certifying officer's statement.

Submitted for your information and appropriate action.

Sign

Date

 TRAFFIC TICKET POLICE DEPARTMENT		A 9999999	
		DATE	TIME ☐ AM ☐ PM
NAME (PRINT) FIRST LAST		MIDDLE	
ADDRESS TICK HERE		IF DIFFERENT THAN ON DRIVERS LICENCE	
ADDRESS BUSINESS			
SEX ☐ M ☐ F	BIRTHDATE	TELEPHONE NO.	DRIVERS LICENCE (TYPE & NUMBER)
TYPE OF VEHICLE		YEAR & MAKE	EXPIRY DATE
MODEL		COLOUR	
REGISTRATION PLATE NUMBER	LICENCE DISC NO.		EXPIRY DATE
LOCATION OF OFFENCE			PARISH

YOU ARE CHARGED WITH HAVING COMMITTED THE OFFENCE INDICATED BELOW BY A CHECK MARK :

TICKETING OFFENCES	DEM. PTS.	TICKETING OFFENCES	DEM. PTS.
☐ EXCEEDING THE PRESCRIBED SPEED LIMIT BY:		☐ FAILURE TO REPORT AN ACCIDENT	6
☐ I) 10 - 20 mph / 17 - 34 km/h	2	☐ OVERTAKING IN A MANNER TO CAUSE OBSTRUCTION TO ONCOMING VEHICLES	6
☐ II) 21 - 30 mph / 35 - 50 km/h	4	☐ CROSSING SO AS TO OBSTRUCT TRAFFIC	3
☐ III) 31 OR more mph / 51 OR more km/h	6	☐ DRIVING UNTO ONE ROAD FROM ANOTHER AND CAUSING TRAFFIC OBSTRUCTION	3
☐ CARELESS DRIVING	4	☐ DRIVING ON TO A ROAD FROM A PLACE NOT A ROAD CAUSING OBSTRUCTION	3
☐ RACING OR SPEED TRIALS ON A ROAD	6	☐ OVERTAKING WITHOUT A CLEAR VIEW	6
☐ CARRYING MORE PERSONS ON A MOTORCYCLE THAN THE NUMBER PRESCRIBED	3	☐ NO TAIL LAMP ON VEHICLE	4
☐ DRAWING MORE TRAILERS THAN THE NUMBER PRESCRIBED	3	☐ NO HEADLAMPS ON VEHICLE	6
☐ FAILURE TO COMPLY WITH A SCHOOL CROSSING PATROL	6	☐ FAILURE TO COMPLY WITH RED LIGHTS AND STOP SIGNS	6
☐ FAILURE TO OBSERVE PROVISIONS CONCERNING PEDESTRIAN CROSSING	4		
☐ DRIVING WITHOUT REGISTRATION PLATES	4		

T.O. CODE

OFFENCES NOT LISTED ABOVE OR COMMENT PERTAINING TO OFFENCE

☐ THIS TICKET DOES NOT REQUIRE A COURT APPEARANCE IF THE FINE OF _____DOLLARS (\$.....) IS PAID AT ANY COLLECTORATE NOT LATER THANPOINTS ASSIGNED.....

☐ THIS TICKET REQUIRES A COURT APPEARANCE AS INDICATED BELOW

COURT HOUSE TO ATTEND	COURT DATE	
	COURT TIME	
NAME AND RANK (POLICE) (PRINT)	COMPUTER NUMBER	STATION

I ACKNOWLEDGE RECEIPT OF THIS TICKET

X SIGNATURE OF OFFENDER

White Copy for Court, Green Copy (ACR) Record, Yellow for Complainant, Blue for Data Processing

INFORMATION FOR GUIDANCE: ALL PERSONNEL ISSUING TRAFFIC TICKETS VIDE
 FORCE ORDERS 2574 DATED 03.10.96 REPUBLISHED VIDE FORCE ORDERS **2884 DATED**
12.09.02 FOR STRICT COMPLIANCE.

Area	Court	Court Days
1	St. James – Montego Bay	2 nd & 4 th Tuesday of each month
	Trelawny- Falmouth	3 rd Tuesday of each month
	Hanover - Lucea	1 st Wednesday of each month
	Westmoreland - Sav- la-mar	4 th Thursday of each month
2	Portland- Port Antonio	2 nd Thursday of each month
	Buff Bay	3 rd Wednesday of each month
	Manchioneal	3 rd Thursday of each month
	St. Ann- Claremont	4 th Thursday of each month
	Ocho Rios	2 nd & 3 rd Monday of each month
	Browns Town	1 st Friday of each month
	St. Ann’s Bay	4 th Monday of each month
	Moneague	4 th Tuesday of each month
	St. Mary- Port Maria	2 nd Thursday of each month
	Annotto Bay	2 nd Tuesday of each month
	Gayle	1 st Friday of each month
	Richmond	2 nd Wednesday of each month
3	Manchester – Mandeville	2 nd Thursday of each month
	Porus	3 rd Monday of each month
	Cross Key	1 st Monday of each month
	Christiana	2 nd & 4 th Tuesday of each month
	Spauldings	4 th Tuesday of each month
	Mile Gully	2 nd Monday of each month
	Clarendon – May Pen	Wednesday
	Lionel Town	Fridays
	Chapleton	Wednesday
	Frankfield	1 st & 3 rd Tuesday of each month
	St. Elizabeth - Santa Cruz	2 nd and 4 th Friday of each month
5	St. Catherine – Spanish Town	Monday & Wednesdays (except last Wednesday)
	Old Harbour	Fridays
	Linstead	3 rd Mondays of each month
	St. Thomas – Yallahs	1 st & 3 rd Mondays of each month
Corporate Area	Kingston Traffic Court	Mondays to Fridays each week

Collector of Taxes

.....

.....



Police Station

.....

.....

Dear Sir/Madam

RE LOSS OF DRIVER'S LICENCE / REGISTRATION CERTIFICATE / REGISTRATION PLATE
/ LICENCE DISC / CERTIFICATE OF FITNESS AND TITLE

This undermentioned has reported the loss of his / her
to the Police. The following are relevant particulars obtained through investigation.

Name.....

Address..... Tel. No.....

Office address.....Tel. No.....

Occupation.....

Driver's Licence No.....Date Issued.....

Collectorate.....Class.....

Date Expired.....Insurance Certificate No.....

Insurance Company.....

Date Issued.....Date Expired.....

Registration Certificate No.....

Date Issued.....Date Expired.....

Licence Disc No.....Date Issued.....

Date Expired.....Date Lost.....

Where Lost.....

Breif Statement by Complainant.

Yours Truly

Signature.....

Collector of Taxes

.....

.....

.....

Certified Correct

.....

.....

.....

.....

Officer / Sub-Officer i/c

NB. Form must taken to the appropriate authority immediately

JUVENILE MATTERS

INTRODUCTION

Juveniles commit many crimes. In some crimes, juveniles commit significant proportions. Why this occurs is open to discussion. The theories attempting to explain why this happens are numerous and varied. They cite poverty, family abuse or neglect, lack of discipline, lack of education, peer pressures, poor role models, need for status and a host of other reasons. While these reasons may or may not cause crime, every attempt must be made to deal with the problem based on current knowledge

The Jamaican Government recognizes the fact that behaviour patterns of juveniles are not fully formed and are capable of change. They feel that because of their youth, juveniles are more easily drawn into a variety of immoral and illegal activities. As a result, it is the position of the Government that juveniles be protected whenever possible and not always be held fully responsible for their acts. The Juvenile Act of 1973 reflects this thinking

THE CONTENTS OF JUVENILE ACT OF 1973

The purpose of the act was to repeal all previously existing laws related to children and to provide a modern, comprehensive law for dealing with persons under the age of **17 years**.

DEFINITIONS:

ADVISORY COUNCIL	A council consisting of 10-15 of various social, cultural, educational and religious leaders (e.g.) Association of Local Government; Island Probation Service; Jamaica Council of Churches; Juvenile Welfare Commission; British Medical Association; Roman Catholic Church; etc.
APPROVED SCHOOL ORDER	An order made by a Court sending a juvenile to an approved school
APPROVED SCHOOLS	A school approved by the Minister and published in the Jamaica Gazette
CHILD	A person under the age of 14 years
CHILDREN'S HOME	Any institution, dwelling house or other place where four (4) or more children are boarded and maintained other than by a parent or lawful guardian either gratuitously or for reward
CONTRIBUTION ORDER	Any order made by a Court requiring any person to make a contribution in respect of any juvenile committed to the care of a fit person or to an approved school
DOLLE INCAPAX	No child under the age of twelve shall be conclusively presumed guilty of any offence
GUARDIAN	Means in relation to juvenile, includes any person who in the opinion of the Court having cognizance of any case in relation to the juvenile or in which the juvenile is concerned has for the time being the charges of, or control over a juvenile

FIT PERSON	Means and includes the Minister, any local authority children's home or any association of persons whether corporate or incorporate
JUVENILE	A person under the age of 17 years
JUVENILE COURT	Any Court established in accordance with the provisions of the Juvenile Act
JUVENILE OFFENDER	A person of the age of 12 and under the age of 17 years who is charged with an offence
LOCAL AUTHORITY	The Parish Council of any Parish or in the case of Kingston and St. Andrew, the K.S.A.C.
MANAGERS	The persons who for the time being have the management or control of any approved school established or taken over by a local authority
NIGHT WORK	Work in any industrial undertaking during portion of the period of eleven (11) consecutive hours including hours of 10 pm and 5 am the following day
PLACE OF SAFETY	Any place appointed by the Minister to be a place of safety, any hospital or other suitable place where the occupier is willing to receive juveniles
PROBATION OFFICER	Any person appointed under the Probation of Offenders Act to be a probation officer
THE COUNCIL	The advisory council for the care and protection of juveniles

Juvenile Act in need of care and protection (section 2)

- ✓ Juveniles who, having no parent or guardian, or having a parent or guardian unfit to exercise care and guardianship, or not exercising proper care and guardianship, is either falling into bad associations or exposed to moral danger or beyond control; or
- ✓ Any juveniles who in respect of whom any offence mentioned in the First Schedule has been committed or attempted to be committed; or
- ✓ Who is a member of the same household as a Juvenile in respect of whom such offence has been committed; or
- ✓ Who is a member of the same household as a person who has been convicted of such an offence in respect of a juvenile

Juveniles in moral danger

- ✓ Any juvenile who is found destitute
- ✓ Any juvenile found wandering without any settled place of abode and without visible means of subsistence
- ✓ Any juvenile found begging or receiving alms (whether or not there is any pretence of singing, playing, performing or offering anything for sale), or
- ✓ Any juvenile found loitering for the purpose of begging or receiving alms, should, with out prejudice to the generality of this provision, be evidence that he is exposed to moral danger.

Restriction on Employment of Juveniles (Section 71)

No child under 12 shall be employed save as is provided by subsection (2)

A child under the age of twelve years may be employed by his parents or guardians; (a) in light domestic, agricultural or horticultural work; (b) in any prescribed occupation;

Provided that no child under the age of twelve years shall be employed in night work or in an industrial undertaking.

Section 72

No juvenile shall be employed;

If under the age of 15 years in any industrial undertaking; or in or upon any ship other than a ship where only members of the family are employed or

If under the age of 16 years in any night work

Section 75

No person shall employ, for reward or otherwise, any boy or girl juvenile under 16 years of age in or about the feeding or working of a sugar mill.

Section 62 (Spirit Licence Act)

Every person under this who is the holder of licence under this act;

Shall not knowingly employ any person under the age of 18 to sell or assist in the selling of spirits in any licensed premises; or

Serves or permits to be served or sold to any person under the age of sixteen years any alcoholic liquor for consumption on the premises.

Persons under the age of 18 years may not take pledges.

FUNCTIONS OF THE JUVENILE COURT

Most of the functions of the Juvenile Act are performed by the Juvenile Court.

Juveniles are brought before the court by any Constable, persons appointed by the Minister or the parents (or guardians) if the juveniles with approval of the Minister.

CONSTABLES SHOULD AT ALL TIMES BE ON THE ALERT FOR JUVENILES IN NEED OF ASSISTANCE OR PROTECTION

The Juvenile Court sits in the Parish of its circuit on prescribed dates to hear and determine all cases affecting juveniles and also to seek for their welfare and training.

There are 4 circuits including:

- ✓ The **HOME** circuit (Kingston, St. Andrew, St. Catherine and St. Thomas)
- ✓ **EASTERN** circuit (Portland, St. Mary and St. Ann)
- ✓ **NORTHERN** circuit (Trelawny, St. James, Hanover and Westmoreland)
- ✓ **WESTERN** circuit (St. Elizabeth, Manchester and Clarendon)

Conduct of the Court

The Court sits in private

Only Officers of the Court, The Minister and/or Advisory Council, parties to the case, media representatives and others authorized by the Court may be present.

Methods of dealing with Juveniles Offenders (section 27)

Where a juvenile has been found guilty of any offence before a juvenile court, that court may, subject to the provisions of this act, make an order;

- Dismissing the case
- Being a probation order under the protection of Offenders Act
- Placing the offender, either in addition to or without making any other order under this section for a specified period not exceeding three years, under the supervision of probation and after care officer or some other person to be selected for the purpose by the Minister.
- Sending the offender to a juvenile correctional centre.
- Committing the offender to the care of any fit person, whether a relative or not, who is willing to undertake the care of him
- Where the offender is a young person, ordering the offender to pay a fine, damages or costs
- Ordering the parent or guardian of the offender to pay fine damages or costs
- Ordering the parent or guardian of the offender to enter into a recognizance for the good behaviour of such offender

CONSTABULARY POLICY REGARDING JUVENILES

It is the Constabulary policy to protect the community against delinquent acts by juveniles and where they proliferate, to reduce them.

At the same time, the welfare and safety of the juveniles are of the highest concern. These dual responsibilities must be met with an awareness of the necessity for co-ordination between the Constabulary and other agencies, primarily the Family Court and the ministry responsible for youth.

To fully implement this policy, the Constabulary has established a Juvenile Unit within the Community Relations Branch of the Force. It is the duty of this unit to:

- Co-ordinate all matters relating to juveniles coming to police notice.
- Investigate and/or follow-up non-criminal cases involving juveniles.
- Assist in diverting juveniles from the criminal justice system when applicable.
- Design and implement programmes intended to prevent and control delinquent and criminal behaviour by youths.
- Maintain liaison with other agencies and organizations interested in juvenile matters such as probation and aftercare officers or children's officers.
- Assist the Force in the development, implementation and annual evaluation of all juvenile delinquency programmes.
- Assist the Force in the annual evaluation of all enforcement and prevention programmes relating to juveniles.

ALTERNATIVES FOR HANDLING JUVENILES

Four alternative approaches are available for use when dealing with juveniles

- Outright release without further action
- A voluntary programme of counselling, which may be prolonged, necessitating the assistance of social services officers.
- Police counseling treatment consisting mainly of supervision on a voluntary basis agreed to by parents or guardian.

- Referral to the Juvenile Court

Police personnel dealing with juveniles should use the least forceful or coercive among the reasonable alternatives.

The alternative chosen should be consistent with preserving public peace, good order and individual liberty.

ARRESTING AUTHORITY AND POLICY FOR JUVENILES

Constables have full powers of arrest when dealing with juveniles.

- It is the policy of the Constabulary to arrest all juveniles who commit acts, which, if committed by an adult, would be a crime.
- It is the policy of the Constabulary to limit such powers of arrest in cases where the acts committed would be lawful if committed by an adult but are offenses when committed by a juvenile (i.e. a juvenile exposed to moral danger).
- Notification of parents or guardians

When a juvenile is arrested, notification of the parent or guardian will be made as soon as reasonably possible.

- It is preferred that the notification be made by the arresting Constable.
- The parent must be advised of actions, which caused the juvenile to be in police custody.
- Where the juvenile is to be brought before the court or is being detained in a remand centre until appearance before the court, the parents or guardian should be warned that their presence in such court is required during all stages of the proceedings.

Separation in Police Stations (Section 17)

Arrangements shall be made by the Commissioner of Police for preventing a juvenile while detained in a Police Station, or while being conveyed to or from any criminal court, or while waiting before or after attendance in any criminal court, from associating with any adult, not being a relative, who is charged with any offence other than an offence with which the juvenile is jointly charged.

Interviewing Juveniles

Prior to any interview of any suspect in a crime, that person must be cautioned in conformance with the Judge's rules.

In addition when the suspect is a child or a young person, **HE OR SHE SHOULD ONLY BE INTERVIEWED IN THE PRESENCE OF A PARENT OR GUARDIAN** (Whether or not he is a suspect in a crime)

If the parent or guardian cannot be found, the child or young person should be interviewed in the presence of someone who is not a member of the Constabulary and is of the same sex as the juvenile.

Juveniles should not be arrested or interviewed at school if this can be avoided. If interviewing is essential, it should be done only with the knowledge and consent of the headmaster, his teacher or nominee and the parents or guardian, if not present, should be informed of the need to interview the juvenile.

BAIL OR DETENTION OF JUVENILES (Section 18) (1)

Early release from custody;

Where a person apparently a juvenile is apprehended, with or without warrant, and cannot be brought before a court, the Officer or Sub-Officer in charge of the police station to which he is brought shall enquire into the circumstances of the case and may release him on recognizance being entered into by him or his parents or guardian (with or without sureties) for such amount as will in the opinion of the officer or sub-officer, secure his attendance upon the hearing of the charge, and shall so release him **unless-**

- The charge is one of homicide or other grave crime or
- It is necessary in his/her interest to remove him/her from association with any criminal or prostitute

- The Officer or Sub-Officer has reason to believe that his release would defeat the cause of justice

Where the person apparently a juvenile is apprehended and is not released under section (1), the officer or sub-officer of police in charge shall cause him to be detained in a juvenile remand centre until he can be brought before the court.

A vehicle, driver and an escort party should be on standby duty day and night to transport juveniles to a safe place. **(See Force Order No. 1647 dated 17th August 1978).**

Juveniles not released by recognizance

- Juveniles not released from custody should not be maintained in police lock-ups
- Juveniles in custody should be detained in a juvenile remand centre until brought before the court
- Photographs and fingerprints should not be taken of juveniles in custody unless ordered by the court.
- Parents and/or guardians must be promptly notified that the juvenile has been detained, the circumstances which led to the detention and warned to appear in court during all stages of the proceedings.

JUVENILES BROUGHT BEFORE THE COURT (Section 21)

Whenever any juvenile is to be brought before any court charged with an offence or is being brought before a juvenile court as being in need of care or protection, the person bringing such juvenile before the court shall cause notice of the grounds on which such juvenile is to be brought before the court and of the date on which such matter will be heard to be served (a reasonable time before such date)-

- If the juvenile is to be brought before the court as being in need of care and protection on a children's officer and
- In any other case, on the probation and after-care officer, if any, of the district

Section 20 (1) (2) (3)

The parents or guardians must be promptly advised of the fact that the juvenile will be brought before the court, the charge or reason for the appearance and the date the matter will be heard.

- The parent or guardian is to be warned that his presence is required during all stages of the proceedings
- A summons may be issued for the purpose of enforcing the attendance of the parent or guardian.

DIVERTING JUVENILE CASES FROM JUDICIAL PROCESS

The decision to divert a case from the judicial process should be based on the following factors.

- The nature of the offence should not be a scheduled offence (see below)
- The age and circumstances of the offender
- The alleged offender's record
- Willingness to participate voluntarily in community based rehabilitation programmes where these are available.
- Knowledge of the character of the juvenile, which firmly indicates that the judicial process could be counter-productive, and the other alternative approaches are likely to be productive.

Cases where prosecution is recommended

- All delinquent acts, which if committed by an adult, would be felonies and all cases involving serious assault and battery
- All delinquent acts involving weapons

- All serious gang related delinquent acts.
- All delinquent acts committed by juveniles on parole or probation or any with cases pending.
- All delinquent acts repeated during the last 12 months
- Juveniles who were diverted into non-judicial process but subsequently refuse to participate
- Cases mentioned in the first and third schedule of the Juvenile Act

THE DECISION TO ADMINISTER A CAUTION

When appropriate, the police may administer an official caution to a juvenile.

Cautions are administered in connection with the Caution Committee or the Family Court in cases of:

- Petty offenses
- Acts of truancy
- Acts of uncontrollable behaviour
- Other similar misdemeanors

The Caution committee will maintain a record of the caution and give guidance to the police whenever necessary.

When administering a caution

A comprehensive record will be kept in the Caution Register (**see Force Order No. 2247 dated 28th June 1990 Appendix "A" for headings**).

A Caution form must be completed describing the action taken and the subject of the caution (See Force Order 2247 dated 28th June 1990 Appendix "B" for format).

SCHEDULE OFFENCE

First Schedule:

- Murder or manslaughter of a Juvenile
- Infanticide
- Cruelty to Juvenile
- Causing any Juvenile to beg
- Abandoning or exposing child whereby life is endangered
- Carnally knowing a girl under twelve years
- Carnally Knowing a girl above twelve years old but under fourteen years
- Householder etc. inducing or encouraging defilement of young girl on his premises
- Abduction of girl under sixteen years
- Encouraging prostitution of a girl under sixteen years
- Allowing persons less than sixteen years to be in brothels
- Child stealing
- Any Offence involving bodily injury of a Juvenile

PRIVATE AND CONFIDENTIAL

THE JUVENILES LAW, CAP. 189

NOTIFICATION FROM POLICE THAT CHILD IS TO APPEAR BEOFRE COURT

Note: This Form when completed is to be forwarded (one copy each) to the respective Officers for the area, of the Juveniles Authority and the Probation Officer Sec. 21 (1)

Notification of case to be heard at the

Court at..... a.m. / p.m. onthe.....day2.....

(1) Name of Juvenile (under 17 years)	(1).....
(2) Address	(2).....
(3) Date of Birth or Age	(3).....
(4) School attending or attended: Postal address of School	(4).....
(5) Name and Address of Parent (s) or Guardian	(5).....
(6) Offence charged or section laid for care and protection	(6).....
(7) Date of offence (if any)	(7).....
(8) Date of Apprehension	(8).....
(9) Any observations regarding previous character, if known to police or on enquires	(9)
(10) If charged with any other person, state if adults or juvenile, and particulars	(10)
(11) State particulars as to Bail or Custody, as regards sureties or place	(11)
(12) Complainant	(12)

Signed..... Officer or Sub-Officer i/c Station 18(1)

Date..... Date.....

SPIRIT LICENCE ACT
42 / 69 VOL. 17

INTRODUCTION

The objective of the Spirit Licence Act is to regulate and control the manufacture, purchase and sale of intoxicating liquors.

DEFINITIONS Section (2)

ALCOHOLIC LIQUORS:

This means spirit, wine or beer, or any mixture beverages, or preparation containing the same.

RETAIL and RETAILER:

This is the trade of selling alcoholic liquor for consumption on or off the licenced premises without restriction as to quantity and the person carrying on such a trade respectively;

SPIRITS:

This means any liquid containing any alcohol, the product of distillation, including the spirit known or sold as rum, gin, brandy, whisky, holland and arrack and all other distilled spirit whether usually sold under any of the aforesaid name, and this term includes other mixtures intended for drinking and prepared from or mixed spirits and all beverages, whether purporting to be wine, beer, or other fermented liquors or not, containing a greater proportion than forty (40%) per centum of proof spirit either due to fermentation or added.

BEER:

This means liquor ferment from malted barley or other malted grains. This term also includes ale, stout, porter, spruce beer, black, beer, and any description of beer and also any liquor which is made or sold as a description of beer or substitute for beer containing more than 2 percent of proof spirits.

TRAVELLER:

This means a person who within prohibited hours may be lawfully served with intoxicating liquors by a retailer of spirits or wine, a person who when so served is not less than five kilometers distance by the nearest public thoroughfare from the place where he lodged the previous night.

WINE: This means fermented grape juice and all other liquor sold or offered for sale as wine or under any other name by which wine is known and for the purpose of this Act wine include cider, perry and fermented juice of any fruit.

GUEST:

This means any person using any licenced premises for lodging during the night or taking meal therein.

HOTEL:

This is a house where the business of providing adequate lodging and boarding for guests, also sufficient stabling or garage accommodation is the principal business carried on, and where the sale of liquor is carried on only as a subsidiary to such business.

DESCRIPTION OF LICENCE (section 5)

WHOLESALE

This type of licence entitles the holder to sell in quantities of not less at any one time than the following (1) Rum 225 litres (2) Imported Spirits (except liqueurs and compounds) 115 litres in bulk, or one dozen reputed litres or two reputed half litres bottles. (3) Liqueurs and Compounds in one case containing nominally four and half litres. (**Cost \$7500 / 4000**) see first schedule of act.

TOWN RETAIL

A town retail licence shall entitle the holder to sell spirits in any quantities not exceeding those mentioned above (wholesale) but only in and on the house named in the licence as that in respect of which the licence is granted and for consumption on or off the licenced premises; (**\$1600 / 1000**)

VILLAGE RETAIL

A village retail licence shall entitle the holder to sell spirits in any quantities not exceeding those mentioned in paragraph (a) (wholesale) but only in and upon the house named in the licence as that in respect of which the licence is granted, and for consumption on or off the licenced premises. (**\$300**)

TAVERN

A tavern licence shall entitle the holder to sell spirits but only in and upon the house named in the licence, as that in respect of which the licence is granted and for consumption on the licence premises. **(\$2000)**

HOTEL LICENCE

A hotel licence shall entitle the holder to sell spirits but only in and upon the house named in the licence, as that in respect of which the licence is granted and for consumption on the licence premises and only to guest or bona fide travelers arriving thereat in need of refreshment. **(\$3000 / 1500)**

CLUB LICENCE

A club licence shall entitle the holder to sell spirits in and upon the club premises named in the licence, as those in respect of which the licence is granted and for consumption on the club premises. **(\$3000 / 1600)**

N.B. Club means proprietary club

OCCASIONAL SPECIAL LICENCE (Section 30)

It shall be lawful for the Minister to authorize the Commissioner of Customs, without an application to or grant by the Licensing Authority, to issue to **(a)** the General Manager of the Railway or any person nominated by him in respect of the sale of spirits at any station or on any train of the Jamaica Railway Corporation; **(b)** the Harbour Master or Kingston or any person nominated by him in respect of the supply to passengers of spirits during the actual passage on board any passengers coasting steamer plying between ports or places in Jamaica.

TOWN OFF LICENCE

A town off licence shall entitle the holder to sell spirits in any quantities not exceeding those above mentioned (town retail) but only in and upon the house named in the licence as that in respect of which the licence is granted and for consumption only off the licenced premises. **(\$2000 / 1000)**

SPECIAL HOTEL LICENCE (section 31)

This type of licence is granted by the chairman of the Licensing Authority on the authority of the Minister of Trade or the joint certificate of the Commissioner of Police and the Collector General to a hotel where there is a bar, and other drinking accommodations open to the public and in respect of which there is a hotel licence under the law, kept mainly for bona-fide entertainment of guest visiting such hotel for the purpose of sleeping or taking meal therein. This licence authorizes the sale of spirits for consumption on the premises without distinction to whom or what part of the premises it is sold. This licence does not authorize the sale of alcoholic liquors to persons other than guests at hours other than those permitted for the sale of such to the public generally. **(\$5000/2500)**

SPECIAL LICENCE FOR PUBLIC ENTERTAINMENT ETC (section 32)

A licenced retailer of spirits may apply to the chairman of the Licensing Authority for special licence on the occasion of any public entertainment, festivities or meeting to carry on his trade at the place of such entertainment festivity, or meeting within the district in which his licenced premises are situated and the chairman, by certificate under his hand, may at his discretion grant such special licence for the hours and to the extent that may be deemed necessary for the public convenience ; provided that –

- Provided that sufficient notice of such application shall have been given to the Superintendent who may oppose the same;
- No such licence shall be granted in any case to extend beyond the occasion in respect of which the same is granted;
- Such licence shall not unless specially permitted therein be deemed to permit any sale of alcoholic liquors except between the hours during which the same may be by law, allowed to be sold on the premises of the applicant,
- The prescribed fee of ten **(\$300)** dollars is paid.

PERMIT TO SELL SPIRIT AT RACE MEETING ETC (section 33)

The Licensing Authority may grant permission to the holder of Tavern or Town retail Licence to sell alcoholic liquors in a tent, booth or temporary structure at race meeting etc., providing the applicant submit his application through the Chief Police Officer in charge of that parish at least three days before such meeting etc., and that the name of the licence and the number of the licence is exhibited above the entrance of the tent or booth.

THE LICENCING AUTHORITY (section 12)

For the purpose of dealing with applications for licences other than wholesale and occasional licences and for carrying out the provisions of this act the Minister shall constitute in each parish a Licensing

Authority and shall appoint, not less than five or more than seven justices to be members thereof who shall-

- Be resident in the parish for which they are appointed
- Hold office for a period of one year from the date of appointment and
- Be eligible for re-appointment

(Sub section 1a)

A justice who -

- ✓ Is licensed to sell spirits within the parish or
- ✓ Is directly or indirectly pecuniarily () interested in any licence or in any application therefore, or for a transfer thereof under this act;
- ✓ Is in any manner directly or indirectly interested in the manufacturing or sale of spirit

Shall not be competent to be appointed or sit as member of a Licensing Authority.

(Subsection 2)

The Minister shall appoint one of the members of the Licensing Authority to be the chairman thereof and another to be the vice-chairman who shall preside at all meetings in the absence of the chairman.

(Subsection 3)

Three members including the chairman or vice-chairman shall form a quorum for the transaction of business and for the exercise of the powers of the Licensing Authority.

Licensing Session

Section 13 (1)

For the purpose of dealing with applications for licences other than wholesale, special hotel and occasional licences and also for transfers of licences under Spirit Licence Act, the licensing authority of each parish shall hold such number of sessions for such parish at the court house as the head station thereof or as such other convenient court, as is necessary for the proper exercise of the function of the licensing authority, so, however that at least one session shall be held in each quarter of each year.

(Subsection 2)

The holding of any such session shall be notified by the clerk in the Gazette and in a newspaper printed and circulating in the island at least one month before the day of the session.

(Dates of session is determined by the clerk)

APPLICATION FOR LICENCE – (Section 16)

Any applicant to the Licensing Authority for the grant of any of the following licence:-

- A Town Retail Licence
- A Town Off Licence
- A Village Retail Licence
- A Hotel Licence

Shall not less than 21 days before the date fixed for a session of the Licensing Authority on which the application is made delivered or cause to be delivered to the Clerk a written application for the licence desired, addressed to the Licensing Authority. In the written application the applicant shall set forth:-

- The nature of licence applied for.
- A full description for the premises for which the same is desired and as nearly as may be.
- Whether he has ever before held a licence under this Act, or Law 31 of 1905 which is now repealed and if so, when and where and whether his licence was at any time forfeited.
- Whether the premises for which the licence is desired have, within the twelve months immediately preceding the application been licenced under this Act.

- Whether he is able to read and write the English Language and keep accounts book in English.
- Whether he has at anytime within five (5) years prior to the application been convicted of any offence against this Act.

The applicant shall also declare the truth of the several statements by Statutory Declaration.

Section 17

The applicant shall also, not less than twenty one (21) days before the day fixed for a session of the Licensing Authority on which the application is to be made, deliver a copy of his application to the Superintendent of Police for the parish.

The applicant should exhibit continuously for the period on the premises, a placard in letters in not less than 23 millimetres (one inch) in height announcing his intention of applying on the day so fixed a licence of the particular kind to which his application refers.

(Subsection 2)

The Clerk shall prepare and cause to be delivered to the publisher of the Gazette, not less than sixteen (16) clear days before a session of the Licensing Authority, a notice of the holding of the session together with a list of all application which have been made for licences indicating in each case, as clearly as may be the nature of the licence applied for and the position of the premises for which the licence is desired.

Every such list shall be published in the following issue of the Jamaica Gazette, and it shall be duty of the Superintendent to cause a copy of the Gazette to be exhibited and kept exhibited outside every Court House and Police Station from the Monday following the publication of the list in the Gazette until the session of the Licensing Authority is held.

N.B.

Wholesale is granted by the Clerk of the Courts on the presentation of a receipt from the Collector of Taxes.

OBLIGATION OF LICENCEES (Section 37)

Every person holding a licence granted by the Licensing Authority shall cause a board to be affixed on the front of his licenced premises over the door towards the public street, lane or road wherever the same shall be situated, with his name, or when the trade is carried on by a company or firm, the name or style of the company or firm and after the words "**LICENCED**" adding there to the words necessary to expressed the trade for which the licence has been granted. The particulars required by this section shall be printed in white letters fifty millimetres in size on a black ground and shall also state the number of the licence.

The particulars required by this section shall be printed in white letters, two inches in size on a black background and shall also state the number of the licence.

REQUIREMENT OF PREMISES - RETAIL, SPIRIT TOWN AND VILLAGES (Section 19) (1)

No premises shall be deemed to be fit for the purposes of a town or village retail shop which contains any dwelling or living room having an internal communication with the shop door, window, jalousie passage or otherwise or in which the separating partition is not close boarded or built up to the roof and unless it complies with the following requirements

- The building must be solidly and substantially built, and constructed with weather proof roof.
- It must be floored throughout with timber, mortar or pavement of bricks, stones, and tiles or asphalted.
- It must be in good repairs.
- It must have no internal communication with premises licenced under the Law, except where the premises is holding a wholesale licence, which also has a Town Off Licence.
- It must also have good sanitary convenience (except Town Off and Wholesale)

N.B. No internal communication with any dwelling or living room by way of any window, door, jalousies, passage, etc.

TAVERN (Subsection 2)

No building shall be deemed to be fit for the purpose of a tavern unless in addition to the foregoing requirements (a) to (d) in subsection (1) it has under the same roof, at least three bedrooms properly furnished and one public separated from the bar. As of Town and Village Retail, also with at least three bedrooms properly furnished, and one public room separated from the bar.

HOTEL (Subsection 3)

No building shall be deemed to be fit for the purpose of a hotel which does not comply with the requirements mentioned in subsection (1) lettered (a) to (d) inclusive and which has not at least eight bedrooms properly furnished and devoted to the use of guests with a minimum of eleven square metres flooring space to each bedroom, and also two public rooms separated from the bar, namely a sitting room and dining room, each being not less than eleven square metres in area and three metres high and properly furnished.

N.B. Public Health Officers will visit premises and issue appropriate certificate.

DUTY OF POLICE OFFICER ON RECEIPT OF APPLICATION (section 18)

In every case in which an application is made for a licence, other than a wholesale licence, it shall be the duty of the Superintendent

- ✓ To inspect such premises personally, or when for reasonable causes, he is prevented from making such inspection personally, to depute an Assistant Superintendent, Inspector, or Sergeant of Police to make such inspection
- ✓ To make enquiry as to the character of the applicant and also such other enquires as may appear to him necessary; and
- ✓ To endorse on the application the following particulars-
 - An estimate of the annual value of the premises referred to in the application
 - The result of his enquiries, a statement as to whether the premise is fit for the purpose for which the licence is required
 - The result of his enquires as to the character of the applicant and of such other enquires as have appeared to him necessary.

It shall be the duty of the Superintendent to forward to the Clerk of the Courts the endorsed application at least three days before the session. The superintendent shall also in every case attend at the session of the Licensing Authority and give such oral information on oath as may be required.

OPENING HOURS (Section 34)

- **Town Retail** 7:00 a.m. - 9:00 p.m. at nights weekdays only.
- **Village Retail** 7:00 a.m. - 9:00 p.m. at nights weekdays only.
- **Tavern** 7:00a.m. - 11:00p.m. at nights on weekdays and
 - 3:00p.m. - 6:00p.m. in the afternoon on Sundays
 - 8:00p.m. -10:00p.m. at nights on Sundays
- **Hotel** 7:00a.m. - 12m.n. on weekdays and Sundays
- **Wholesale** 8:00a.m. - 4:00p.m. Weekdays only.
- **Town Off** 8:00a.m. - 4:00p.m. Weekdays only.
- **Proprietary Club** 10:a.m. - 4:a.m. weekdays;
 - 10: am - 12m.n. on Sundays.

What is proprietary club
- **Members Club** 8:a.m. - 4:a.m. on weekdays;
 - 8:a.m. - 12m.n. on Sundays.

EXEMPTION FROM LICENCE (Section 51)

Any person in charge of any estate where spirits are manufactured subject to the Law relating to rum duty.

Any person who shall sell his stock or supply of spirit not exceeding 50 gallons amongst his effects at any sale thereof on departing from or otherwise winding up his affairs in this Island.

Any licenced retailer who transfer business and sells the whole stock or any part thereof; though such stock shall comprise spirits exceeding the amount which vendor in terms of his retail licence is authorized by Law to sell.

Any Officer or person who sells any spirit under any process of the Law

Personal representatives of any licensee who has died or become bankrupt selling spirit which came to them under the same restrictions as the licence could have done under his licence had he not died or become bankrupt.

Personal representatives of any person not licenced under the law, who has died or become bankrupt, leaving amongst his assets or estate, a private or supply of spirit.

Any person who has had his licence forfeited or failed to obtain a renewal, selling out his stock of spirit in bulk within one month of the forfeiture or failure.

OBLIGATION OF LICENCE (Section 21)

The Police Officer or any householder in a parish may oppose a licence. In such a case a notice of the objection setting out such grounds, should be served on the applicant at least ten days before the date of the session. A copy of such notice duly endorsed shall be forwarded to the Clerk of Court of the Courts at least seven (7) days before the session.

GROUND FOR REFUSAL (Section 20)

Applicant is of bad character.

Premises unfit or undesirable;

Premises so situated that it cannot be kept under effective Police control

Failing to comply with the provision of the Law

Sufficient licenced premises already in the area

Applicant has not attained the age of 21 years

Premises likely to become a nuisance to the behaviour

That the applicant having within five years been the holder of a licence in any part of the licence in any part of the Island, allowed his premises to become a nuisance to the neighbourhood.

The licence cannot be legally granted.

That premises do not comply with **Section 19**

Not conducting sufficient business in the opinion of the Licensing Authority.

That his licence has been endorsed of forfeited under this Act or Law 31 of 1905.

OFFENCES (under the spirit license act)

Selling spirit without a licence (**section 3**)

To open and sell spirit other than permitted hours (**section 36**)

Failing to have a signboard affixed on premises (**section 37 (2)**)

Having signboard, which falsely represents the true trade, carried on.

Failing to keep and produce stock book (**section 38**)

Knowingly employing any person under the age of 18 years to sell, assist in selling spirits (**section 2 (a)**)

To serve or permit to be sold any alcoholic liquor to any person under the age of 16 years for consumption on the premises (**section 62 (b)**)

To serve or permit to be served intoxicating liquors to any Constable whilst on duty or any person in charge of any public vehicle whilst on duty, whether on payment or otherwise.
Improper conduct (**section 58 (a)**)

Being found in spirit licence premises during closing hours (**section 58 (C)**)

POWER OF SUPERINTENDENT TO GRANT SPECIAL LICENCE (Section. 35)

It shall be lawful for the Principal Police Officer in charge of any parish to grant any Licence Retailer, or Tavern Keeper a Special Licence to keep his premises open until midnight for any special reason or on weekday.

POWER TO INSPECT BOOKS (Section 38)

It shall be lawful for any Superintendent of Police or any Constable specially deputed by him for the purpose to inspect bills etc., supporting any entry therein in respect of spirit received in his premises, from whom date received etc.

POWER OF ARREST

Section 42

It shall be lawful for any Constable to arrest any person selling or exposing for sale any spirit in any manner or place prohibited by Law, also to seize the spirit and take the offender and spirit before a Resident Magistrate to be dealt with according to law.

Section 59

It shall be lawful for any Constable to arrest without warrant any person found in a Spirit Licence premises during closing hours, not being employed nor having lawful business thereon, but unless the offender refuses to give his name and address or if he gives his name and address which the Constable has reasonable cause to believe is false and the offender fails to give evidence of its correctness.

N.B.

Such spirit may also be lawfully seized by a private person and handed over to the Police who should proceed as though the offence was committed in his view.

POWER OF SUPERVISION AND ENTRY (Section 52)

It shall be lawful for any member of the Force of and above the rank of Corporal either alone or assisted by Constables or private person to enter upon any spirit licenced premises (except clubs and hotels) by day or by night for the purpose of preservation of order or decency, inspection and preventing or detecting breaches of the Law. Any person charge of such premises at time, who fails to admit such member of the Force, commits an offence.

POWER TO TAKE SAMPLE SECTION 60 (2))

It shall be lawful for any Constable at any time to enter any spirit licence premises under this Law, and search for and take samples of any alcohol which must be paid for, and inspect books, invoices, permits and certificates relating to the trade.

POWER TO EXPEL DRUNKEN PERSON (Section 63)

It shall be lawful for any Constable to request any person who is drunk, violent, quarrelsome, disorderly or gambling on spirit licence premises to quit, and if he refuses he commits an offence. Any Constable on demand of the licensee, his servant or any member of his family, shall expel or assist in expelling such person using such Force as may be necessary.

POWER TO CLOSE SPIRIT LICENCE PREMISES IN CONNECTION WITH RIOT (Section 64)

It shall be lawful for any member of the Force of and above the rank of Assistant Superintendent of Police to order the person in charge of any retail or tavern licenced premises in or near any place where a riot is in progress or is expected, to close such premises and if necessary such Police Officer may use force for the purpose of closing the premises.

POWERS PROVIDED BY THIS LAW IN RELATION TO BEER AND WINE PREMISES (Sec.72)

It shall for any member of the Force to utilize their powers of entry, supervision, search and taking samples, conferred upon them by this Law, to all premises to sell wine and beer and also to all persons having relation to such premises.

Process for Applying for Spirit Licence

- ✓ Pay Prescribe fee at the collectorate and obtain a receipt
- ✓ Obtain certified Photograph
- ✓ Shall not less than 21 days, apply on prescribed form to chief Police Officer and Licensing Authority
- ✓ Photograph and receipt attached to application
- ✓ Inform applicant of obligation of section 19 of spirit licence act
- ✓ Inform applicant of requirement of premises under section 17 of spirit licence act.

SPIRIT LICENCE FORM

KINGSTON

.....
TO THE CHIEF PUBLIC HEALTH INSPECTOR FOR THE PARISH OF KINGSTON
Marescaux Road
Kingston 5

Sir:

As it is my intention to apply to the Justices at the next licensing Session to be held at Sutton Street Court in and for the said Parish of Kingston for a

.....
Licence under Law Chapter 364, I beg to inform as follows:-

- Nature of Licence
- The premises for which licence is desired, stating as nearly as may be the position of same
- Whether the applicant has ever before held a Licence under this Law or any other Law, repealed thereby, and if so, when where Licence was at any time forfeited.
- Whether of not the premises for which the Licence is desired has during the past twelve (12) months been Licence under this or any other Law.
- Where the applicant is able to read and write and keep accounts book in English.
- Whether the applicant has at any time within five (5) years prior to the application been convicted or any offences against this Law repealed by this Law and I request that you will cause the premises to be inspected.

I remain

Sir

Your Obedient Servant

.....
Applicant

Indorsation of the Results of Inspection on the fitness or unfitness of the House or Premises.

TO THE LICENSING AUTHORITY FOR THE PARISH OF KINGSTON

Sir:

This is to certify that I have inspected the above premises and find that premises conforms/ does not conform with the requirements of the Public Health Law and also the Regulations of the Kingston and St. Andrew Corporation.

Dated.....day of.....2.....

.....
Chief Public Health Inspector

.....
Medical Officer (Health)

.....P.O.

.....2.....

TO THE SUPERINTENDENT OF POLICE FOR THE PARISH OF

.....

Sir

As it is my intention to apply to the Justice at the next Licensing Sessions to be held at
in and for the said parish
 of.....for aLicence under Law
 Chapter 189

I beg to inform as follows:-

- Nature of Licence
- The premises for which licence is desired, stating as nearly as may be the position of same.
- Whether the applicant has ever before held a Licence under this Law or any other Law, repealed thereby, and if so, when where Licence was at any time forfeited.
- Whether of not the premises for which the Licence is desired has during the past twelve (12) months been Licence under this or any other Law.
- Where the applicant is able to read and write and keep accounts book in English.
- Whether the applicant has at any time within five (5) years prior to the application been convicted or any offences against this Law repealed by this Law;

and I request that you will cause the premises to be inspected.

I remain

Sir

Your Obedient Servant

.....

Applicant

Indorsation of the Results of Inspection on the fitness or unfitness of the House or Premises.

To the Licensing Authority for the Parish of

Sirs:

I have inspected the above premises and estimate the annual value at \$.....and I find
 that they arefor aLicence.

I have also inquired into the character of the applicant and find that he bears a

character and isfitand proper
 person to have aLicence.

I remain

Sir

Your Obedient Servant

.....

To the Licensing Authority for the parish of

Gentlemen,

- Nature of Licence
- The premises for which licence is desired, stating as nearly as may be the position of same. }
- Whether the applicant has ever before held a Licence under this Law or any other Law, repealed thereby, and if so, when where Licence was at any time forfeited. }
- Whether of not the premises for which the Licence is desired has during the past twelve (12) months been Licence under this or any other Law. }
- Where t he applicant is able to read and write and keep accounts book in English. }
- Whether the applicant has at any time within five (5) years prior to the application been convicted or any offences against this Law repealed by this Law; }

The receipt of the Collector of Taxes is enclosed herewith

Am, Sir,

Your obedient Servant

Do solemnly and sincerely declare that

The above statements are true; and I make t his solemn declaration conscientiously believing the same to be true and by virtue of the provision of an Act made and passed in the sixth year of her Majesty’s reign entitled an “Act to abolish oaths and affidavits , except in certain cases, and to substitute declarations in lieu thereof, and to suppress voluntary and extra judicial oath and affidavits”.

Taken and acknowledge before me

Justice of the peace for the parish of.....

Note: This application must be made not less than 21 days before the Licensing Session meets.

CRIMES AND CRIMINALS

INTRODUCTION

Violent crimes in Jamaica have in recent times reached endemic proportions. The sharp escalation in crimes of violence has continued unabated for decades, despite several state of emergency declared by the Government and the Suppression of Crimes Act which gives the Police extraordinary powers of search and detention.

This persistent specter of violent crimes has helped to transform the whole physical and social landscape of the country. Burglar bars and barb-wire-topped metal fences have become an accepted part of the architecture in urban areas. The private security firms represent one of the fastest growing segments of our economy.

In recent years we have seen the emergence of ghetto heroes of the "Rankin" or the "Don", men who live by and with the gun, but who are esteemed and are protected by many of the communities from which they emerged.

It becomes very expedient therefore, that as Law Enforcement Officers we equip ourselves in a practical way with the knowledge as set out in this lesson on Crimes and Criminals.

Before we examine the Laws of Crime and Criminal it is very important that we discuss the definitions:-

- Crime
- Civil Injury.

CRIME

According to the Criminal Law by Smith and Hogan Crime is defined as: - a Public and moral wrong whose sanction is punitive and is in no way remissible by any public person, but is remissible by the Crown.

Crime is crime because its consists of wrong doing which directly and in a serious degree threatens the security or well being of society, and because it is not safe to leave it redressable only by compensation of the party injured.

What is punishment? - Punishment in the criminal sense is death or loss of liberty or money penalty

CIVIL INJURY

According to the book entitled Law of Torts by R.F.V. Heuston Tort is defined as:- A species of Civil Injury or Wrong. A civil wrong is one which gives rise to civil proceedings, that is to say, which have as their object the enforcement of some right claimed by the plaintiff as against the defendant.

It is to be noted that although Tort is a Civil Injury, not all Civil Injuries are Torts, for no Civil Injury is to be classes as a Tort unless the appropriate remedy for it is an action for damages. Thus a public nuisance is not a Tort merely because the civil remedy of injunction may be obtained at the suit of the Attorney General, but in those exceptional instances in which a private person may recover damages for loss sustained by him in consequences thereof.

Is defined as a disobedience of the Law, which is a wrongful act, injuring some person or persons but which does not disturb the community in general.

There are many rules governing the conduct of affairs that are not criminal in nature. That is, they are wrong but do not have criminal punishment. A civil offence or Tort is distinguished by the following:

DISTINCTION BETWEEN CIVIL INJURY AND CRIME

The distinction between Crime and Civil Injury depends on the nature of the appropriate remedy provide by the Law.

<u>Tort</u>	<u>Crime</u>
In Tort the victim is the plaintiff (Prosecution)	Prosecution by the people.
Fines and damages go to the victim.	Fines and damages go to the public.
The theory is redress for the wrong.	The theory is punishment.
There are many settlements outside the Court.	There are few settlements outside the courts
Contributing negligence is a good defense.	Contributing negligence is a good defense

WHY DO WE HAVE CRIMINAL LAW

- To forbid and prevent conduct that unjustifiably and inexcusably inflicts or threatens substantial harm to individual or public interest.
- To subject to public control persons whose conduct indicates that they are disposed to commit crimes
- To safe guard conduct that is without fault from condemnation as criminal
- To give fair warning to the nature of the conduct declared to be an offence
- To differentiate on reasonable grounds between serious and minor crimes

ELEMENTS OF A CRIME

It is a general principle of criminal law that a person may not be convicted of a crime unless the prosecution has proved beyond reasonable doubt both;

- That he has caused a certain event or that responsibility is to be attributed to him for the existence of a certain state of affairs, which is forbidden by Criminal Law, and
- That he has defined state of mind in relation to the causing of the event or the existence of the state of affairs is called **ACTUS REUS** and the mind **MENS REA** of the crime.

A crime for the purpose of analysis may be divided into two elements:-

- ✓ Actus Reus - Which is the guilty act forbidden by Law
- ✓ Mens Rea - Which is the blameworthy state of mind which is necessary to constitute the crime.

ACTUS REUS

Actus Reus includes all the elements of the crime except the accused mental element, it follows that the actus reus is not merely an act. It may indeed consist in a “state of affairs”, not including an act at all. Much more tht often, the actus reus requires proof of an act or omission (conduct). Usually, it must be proved that the conduct has a particular result. In murder for example, it must be shown that the accuser’s conduct caused the death.

“Actus Reus includes.....the absence of any ground of justification or excuse whether such justification or excuse be stated in ay statute creating the crime or implied by the Courts in accordance with the general principle”

Simple put actus reus is the guilty act or state of affairs prohibited by law.

MENS REA

Mens Rea is the mental element required by the definition of the particular crime-typically, intention to cause the actus reus of that crime, or reckless whether it be cause.

The word “rea” refers to the criminality of the act.

Simply put mens rea is the blameworthy state of mind or recklessness prescribed by law.

Malice

Division of criminal offence

Within the criminal codes there are two major divisions of crimes these are:-

- ✓ Felonies - are serious crimes, which are tried by a Judge and Jury. These are usually punishable by a fine and / or minimum one year imprisonment.
- ✓ Misdemeanours are minor offences and are tried by Resident Magistrate or Justice of the Peace.

It is the evil intent beforehand to do harm. Intent being the person’s intention or purpose, Malice is two kinds;

- Express Malice – This is the actual intent or illwill to do harm to someone.
- Implied Malice - Which is the malice the law regards as existing when a wrongful act is done voluntarily and without excuse. The law presumes that a person intends the natural consequences of his acts and if harmful consequences result from an act the law considers that the doer intended harm.

PARTIES TO CRIME

Within the criminal Law there are parties to Crimes. This refers to all the people involved in the commission of a crime such as:

Principal in the First Degree

This is the actual offender who may have personally commits the act with his own hands. In murder, for example he is the man who, with mens rea, fires the gun or administers the poison which causes death.

A person who employs an innocent agent is liable as a principal in the first degree although he is not actually present at the completion of the transaction nor does anything with his hands.

Example (innocent agent)

Devon intending to kill Paul, gives Paul's daughter a poison, which, he says, will cure Paul's cold, and she innocently administers the poison causing Paul's death. Devon is guilty as the principal offender.

Principal in the Second Degree

This person helps the actual offender at the very time the offence is committed, as well he may be present at the commission of the felony, he may be near at hand watching or helping in some way in the commission of the felony.

Example

Andrew and Desiree decided to break into a store; Andrew breaks and enters while
Desiree stands guard at the entrance to the store.

Accessory Before the Fact

A person who somehow becomes involved before the commission of a crime, he / she

- Procures, counsels, commands or abets another to commit a felony
- Is not be present at the time the felony is committed
- If he/ she were to be present he/ she would be a principal)

Example

Alton counsels' Byron to poison Calvin and Byron shoots Calvin; Alton is an accessory before the fact to the murder.

Accessory After the Fact

Becomes involved after the commission of the Crime, knowing that a crime was committed:

- Receives, relieves, comforts or assists the felon.
- Assists in such a way that the offender might escape from Justice.

N. B.

The only exception to the above rule is a wife who assists her husband to escape knowing that he has committed a felony.

DEFENCES OR EXCUSES FOR CRIME

The Law presumes that every person is sane and is accountable for his actions. When charged with an offence it is for the accused to prove he is not responsible in Law for his illegal act because he has no intention or wish to do harm. The defenses or excuses are:

Infancy

In Jamaica the age of criminal responsibility is twelve (12) years. Thus children below this age are completely exempt from criminal liability. There is the conclusive presumption that the child is **doli incapax**. So even though there is clear evidence that the child under 12 years had caused the actus reus with the necessary mens rea, he/she cannot be convicted once it is proved that at the time of committing the offence he had not attained the age of 12 years.

Walter vs. Hunt (1951) 2 All E.R. 645; *Parents were charged with receiving from their son (age 7) a tricycle, knowing that it was stolen. The parents were acquitted on the grounds that the child could not steal the tricycle; therefore the tricycle was not stolen.*

Insanity

A person of unsound mind may be arrested and charged with an offence. Evidence must show that he was labouring under such a defect of reason, due to the disease of his mind, that either he did not know the nature and quality of the act, or if he did know it, that he did not know it was wrong. The decision rests with the Courts.

An accused person's sanity may become relevant at two stages before trial on indictment. In preliminary proceedings, the effect of a finding of insanity is to prevent the accused from being tried at all. The accused may be sent to a mental institution or incarcerated where he will be treated until he is fit to answer to the charge.

The issue of insanity may be raised by the Judge, the defence or the prosecution. Where neither party raises the issue, the judge should do so if he/she has doubts about the accused's fitness to plea.

The legal rule governing insanity as a defence for crimes, are known as the M'Naughten Rules. The rules are in fact answers given by Judges to a series of questions put to them by the House of Lords.

In 1843 Daniel M'Naughten was tried for murder. For years he had suffered from delusions that he was being followed and persecuted by his enemies. He saw his persecutors as the Tories (political party). He killed the Prime Minister's secretary. At his trial various witnesses testified concerning his delusions. Five eminent doctors presented evidence to his mental disorder. He was found not guilty on the ground of insanity.

M'Naughten Rules

- Did the accused know at the time of committing the offence that he was acting contrary to Law? The question is not whether he could distinguish between right and wrong but whether he was able to appreciate the wrongness of the particular act at the specific time when he was doing it.
- The jurors ought to be told that in all cases that every man is presumed to be sane, and to possess a sufficient degree of reason to be responsible for his crimes, until the contrary is proved.
- It must be clearly proved that at the time of committing the act the accused was labouring under such a defect of reason, caused by a disease of the mind, as not to know the nature and quality of the act he was doing; nor if he did know he did not know what he was doing was wrong.
- If a person is under an insane delusion as to existing facts, commits an offence in consequence thereof, if he is to be excused? It depends on the nature of the delusion....but he must be considered in the same situation as to responsibility as if the facts with respect to which the delusion exists were real.
- Can a doctor be asked his opinion regarding the sanity of the accused at the time of committing the offence? These are not ones merely upon a matter of science. It is for the jury to decide as they are the tribunal of fact.

A successful defence will lead to an order that the defendant be held at the Governor General's pleasure in prison. Where the defendant puts his mental state in issue, the question as to whether he has raised the defence of insanity is one of Law and therefore not for the Judge to decide.

Case in Point

R Vs Windle (1952) 2 Q. B. 325 - Harry was unhappily married to a woman who was always speaking about committing suicide and who according to a medical evidence given at the trial, was certifiable insane. Harry obsessed with this and discussed it with his fellow workers until they were tired of hearing him. On one occasion one of them suggested that he should give her a dozen aspirin. He gave her 100 aspirin, which was fatal. He was charged with murder. He told the police that he supposed that he would be hanged for it.

At the trial he raised the defence of insanity and asked that the jury return a special verdict. The trial judge ruled that the insanity should not be left to the jury. There was however some evidence that he suffered some defect of the reason or disease of the mind. Both the prosecution and the defence called medical doctors who testified that when the appellant was administering the poison to his wife he knew what he was doing was wrong and he knew the Law forbade it. He was convicted for murder and his appeal was dismissed.

Drunkenness

This is concerned with the impairment of the mind by drinks or drugs at the time of committing the offence.

Voluntary drunkenness is not an excuse for criminal misconduct. It is no defense for the accused to show that his self control was lessened by intoxication, except when it is involuntary i.e. contrived deliberately by other persons e.g. if it is caused by a practical joke, or by fraud, the person so made drunk will be excused to the extent as in the case of insanity. Involuntary intoxication negates mens rea.

Self Induced Intoxication:

Where the prosecution has to prove recklessness as an element of the offence, if due to self- induced intoxication the accused as aware of a risk which would have been obvious to a sober and reasonable man in his position, he is to be treated as if he has been aware of that risk. This applies where the intoxication has been induced by alcohol or drugs providing, in the case of drug, there had been an element of recklessness in self administering it, such as would normally be the case when the drug is well known for being liable to cause unpredictability of aggressiveness.

Case in Point

R vs Hardie - he took valium to calm his nerves. There was no evidence that he knew, or that it was generally known, that the taking of valium in the quantity taken, would be liable to render a person aggressive or incapable of appreciating risk to others or have other side effects such that its taking would itself contain an element of recklessness. He was charged with one count of criminal damage. (Arson) his conviction was overturned.

Ignorance or Mistake

Ignorance of Law will not justify any breach, even when committed by a foreigner or person who could not possibly hear about the Law. e.g. A sailor at sea. The excuse of ignorance or mistake may excuse a crime if the intention of the person committing the act was not unlawful. The excuse of ignorance or mistake would not be a defense in the case of acts completely forbidden by Law; for instance the sale of intoxicants to a drunken person.

Case in Point

D.P.P. v Morgan (1976) AC 182

It is a defence where it prevents the accused from having the mens rea which the Law requires for the crime with which he has been charged. Where the law requires intention or recklessness with respect to some element of the Actus Reus, a mistake, whether reasonable or not, which precludes both state of mind and the guilty act.

Example: Henry had sexual intercourse with Pat, having formed the mistaken belief that Pat consented. Recklessness could not be proved, thus he is not guilty of rape.

Where the Law requires negligence, then only a reasonable mistake can afford a defence; for an unreasonable mistake, by definition is one, which a reasonable man would not make and is therefore negligent.

Accidents

Must occur during the performance of a lawful act carried out with due care e.g. Where a man is working with a hatchet and the head by accident flies off and hit a person who was standing near by.

Compulsion / Duress

This excuse known as coercion or duress would probably hold good in the case of a person compelled by direct physical compulsion to commit an offence e.g. "Andrew" seizes the hand of "Brad" and compels "Brad" to stab "Charles". No criminal offence by "Brad" because the act of stabbing "Charles" is not his act.

It is also to be noted that a person has a legal duty to obey he may have a defence if the order is not manifestly illegal.

Dress of threat is a general defence except that it does not apply to some form of treason or murder, whether as a principle or secondary party.

Once the Judge has ruled that there is evidence of duress. It is for the Crown to prove beyond reasonable doubt that the defendant was acting under duress.

Case in Point

R vs Bone 52 Cr. App. R 546

The Court of Appeal held that the test that should be applied is: Was a threat of physical harm to the person (including possibly imprisonment) made, which was of such gravity that it might well cause a sober man of reasonable firmness sharing the defendants characteristics and placed in the same situation would act in the same way as the defendant acted?

Married Women

The Criminal Justice Act 1946 makes it a defence for a woman who commits certain offences in the presence of her husband and under his coercion, once she can prove same. This is not a defence in cases of Treason or Murder

Justification: -

Self Defense

In which the accused does the prohibited act in the defense of himself or his property or in order to prevent the commission of a crime of violence against himself or a third party. A person may lawfully use force in defence of human life or property. If he has used such force as he may lawfully use, then he will have a defence to any charge which may be brought against him of homicide, or any other offence against the person or of criminal damage.

Case in Point:

R v McInnis 55 Cr. App. R. 551

It is both good and in common sense that a man who is attacked may defend himself" it is good law and common sense that he may do, but may do only, what is reasonably necessary". Everything will depend on the particular facts and circumstances. Of these a jury may decide. The judge directed the jury that for the defense to succeed the force used must not be by the way of revenge and he must have believed on reasonable grounds that the force used by him was necessary to prevent or resist the attack and in deciding whether it was reasonably necessary to have used such force as was used, regard must be had to all circumstances of the case. The accused in this case was found guilty of murder. He appealed to Privy Council. The appeal was dismissed.

There is no rule that a man must wait until he is attacked before striking in self-defence. If another strikes at him he is entitled to get his own blow in first if it is reasonably necessary to do so in self- defence. R v Deana 2 Cr. App. R. 75 CCA.

Preservation of Others

This can be illustrated by the case of a doctor who sacrifices the life of a baby in order to preserve the life of the mother.

This situation is expressly provided for by the Infant Life Preservation Act 1949 which states that:
"A person shall not be convicted of 'Child Destruction' unless it is proved that the Act which caused the death of the child was not done in good faith for the purpose only of preserving the life of the mother"

Having examined the excuses or defenses for crime, we will now examine:

Attempt to commit a crime

An attempt to commit a crime is an act done with intent to commit the crime and forming part of the series of acts which if not interrupted would result in the actual commission of the crime. The act must however be immediately connected with the intended offence so that it would be an actual cause of the offence. All acts of perpetration e.g. buying a box of matches will not be attempted arson.

To incite someone to commit a crime is a criminal offence. Incitement of Crime: The incitement or using some one to commit a crime is a misdemeanour at Common Law. The offence is committed even though the other person does not commit the suggested crime.

ROVOCATION:

Where on a charge of murder there is evidence on which the jury can rely that the person charged was provoked (whether by things done, said or both) to cause him to lose self control suddenly, the question whether the provocation was enough to make a reasonable man do as he did shall be left to the jury to decide. In determining that question the jury shall take into account everything both said and done according to the effect which, in their opinion, it would have on a reasonable man.

The section assumes the existence of a dual test;

- Was the defendant provoked to lose his self control? A subjective question , and
- Was the provocation enough to make a reasonable man do as he did? An objective question.

This is a limited defence and only in a case of murder. Provocation reduces murder to manslaughter. once there is evidence from any source, sufficient to be left to the jury on the issue of provocation, the onus is on the prosecution throughout to prove the absence of provocation beyond reasonable doubt. Sudden temporary loss of self – control is the essence of provocation.

AN ATTEMPT TO COMMIT A CRIME:

An attempt to commit a crime is an act done with intent to commit the crime and forming part of these acts which if not interrupted would result in the actual commission of the crime. This act must however, be immediately connected with the intended offence so that it would be an actual cause of the offence.

INCITING SOMEONE TO COMMIT A CRIME:

This incitement or using someone to commit a crime is a misdemeanour at Common Law. The offence is committed even though the other person does not commit the suggested crime.

ASSAULT

Definition

An assault is an attempt or offer by force or violence to do bodily harm to another when the aggressor by some physical act, intentionally causes the other to believe that such force is about to be inflicted upon him. It is a misdemeanour at Common Law.

Definition

Battery is the actual application of unlawful force to another and any hostile touching, no matter how slight is battery.

NB.

In practice attempt or offer to do injury to another as well as the actual application of force is regarded as an assault.

CLASSIFICATION

Excusable Assault

Is when an assault is committed by misadventure or accident. The intention to assault is material as an accidental injury does not amount to an assault in the criminal sense e.g.

- A man steps on another foot while standing in a line
- Mutual Consent – Boxing or Wrestling

Justifiable Assault

Is when no blame is attached to the person committing the assault, e.g. Police arresting a prisoner or striking a violent prisoner.

- Self defence of one's property
- Authority of Law – Whipping
- Moderate correction of a child, by parent, teacher, or guardian

NB

If assault is not excusable or justifiable it is unlawful

UNLAWFUL ASSAULTS

Is an offence and provisions are made for under the offence against the person Law Chapter 268 and at Common Law.

TYPES OF UNLAWFUL ASSAULTS

1

Common Assault

Is an assault of a minor nature in which no wound or serious injury is inflicted, and is usually dealt with on the complaint of the person assaulted e.g.,

- Spitting on another person
- Pushing another person
- Pointing finger in one's face

Police Powers

Any Constable may arrest for common assault provided the offence was committed in his view and the person assaulted gives the offender in custody and goes to the Police Station and swears to information, but the Constable should only arrest if a further breach of the peace is contemplated, otherwise he should obtain the name and address of the offender and advise civil action.

2

Aggravated Assault

Is an assault accompanied by circumstances of an aggravated nature committed on a female or boy under the age of fourteen (14) years of age.

- Mr. Simpson punched Jason who is under 14 years of age
- Andrew punched Christine in her chest

Police Powers

A Constable may arrest any person charged by another with having committed an aggravated assault if he has good reason to believe such an assault has been committed although not in his view, and there is no time to obtain a warrant. If in his view he should arrest.

3

Assault Occasioning Actual Bodily Harm:

This is an assault accompanied by injury, e.g. Fracture, Burning (slight).

4

Assault Causing Grievous Bodily Harm

This assault includes any injury which seriously interferes with health or comfort e.g. , maiming, disfiguring _ (causing permanent injury) as rubbing pepper in one's eye , throwing acid in one's face.

Definition:-

Maiming means to injure a person in any manner which renders him less capable of fighting.

Disfigure means to mar the figure appearance or beauty of to deform or deface.

Police Powers

A constable may arrest on view, information or warrant.

5

Indecent Assault.

This is an assault accompanied by some act of indecency or an indecent assault upon a female, or any attempt to have carnal knowledge of a girl under the age of 14 years, or mentally defective.

N.B.

In the case of a mentally, defective or a girl under the age of 14 years, it is no defence to prove that she consented to the act of indecency (2 years with flogging).

Police Powers:

A constable may arrest on view, information or warrant.

6

Assault at Common Law:

This is an attempt or offer by use of a firearm or any dangerous weapons within striking distance to do bodily injury to another e.g.

- Pointing a gun at another person
- Using a knife or other instrument within striking distance.

Police Powers:

Any constable may arrest if the offence was committed in his view, or if a breach of the peace is likely to be occasioned or renewed.

⑦

Assault on Police:

This includes District Constables, Special Constables, and Special District Constables and is punishable on indictment or summary conviction.

Note: The assault must be committed on the Constable in the actual execution of his duty,

Other Assaults

- Assaulting a Clergyman in the performance of his duty by threats of force.
- Striking a Magistrate when he is preserving any vessel in distress or the goods of effect stranded or cast ashore from such vessel.
- Unlawfully and with force hindering any seaman or person working on board any vessel from working at his trade.
- Using violence to deter a person from buying or selling.
- Assault with intent to commit felony (Sec 36).

OFFENSES AGAINST FEMALES (RAPE)

INTRODUCTION

There are a number of offenses against women listed in the Offenses against the Person Act. All of them are serious crimes. One however, is particularly damaging to the victim. This is forcible rape. We will spend the majority of this lesson discussing this crime.

Rape is one of the most horrible and humiliating experiences to which a human can be subjected. Not only is the rape itself extremely painful but in many cases it is followed by a brutal beating and possibly death. The emotional pain of the attack is so overwhelming that survivors often suffer the affects for years. For some, the affects never wear off and they are emotionally crippled for the rest of their lives.

In the past many police agencies have looked upon rape as a lesser crime. This may have been because most police were males or because they were unaware of the level of horror to which the victims were subjected. In many cases, police doubted the description of the incident given by the victim. Often the victim was suspected of having changed her mind or of concealing her true activities from her husband. In most cases, the reputations of the victims were ruined by these attitudes.

It is true that sometimes women will falsely accuse a man of rape, but we have found that in the majority of instances this is not the case. The woman is a blameless and innocent victim of a devastating crime.

It is our job not only to prevent this crime whenever possible, but to do our utmost to ensure that the criminal is apprehended. It is also our job to see that the victim suffers no more humiliation than is absolutely necessary.

THE OFFENSES AGAINST THE PERSON ACT - CHAPTER 268

Chapter 268 of the Act contains the various criminal acts associated with crimes against women. These include:

- ✓ Aggravated assaults on women and children
- ✓ Indecent assault
- ✓ Rape
- ✓ Defilement of females
- ✓ Procuration
- ✓ Abduction
- ✓ Unlawful detention with intent to have carnal knowledge
- ✓ Abortion
- ✓ Concealment of birth
- ✓ Abandoning of child
- ✓ Incest

As previously indicated, we will spend most of our time discussing the crime of rape.

RAPE (section 44)

According to the law, rape is the act of:

"Having unlawful carnal knowledge of a female by force, fear or fraud against her will." It is a felony under both common and statute laws.

The elements

Having carnal knowledge

There must have been penetration of the male penis into the female's vagina. Any penetration however slight is sufficient.

The law does not include anal or oral penetration. These are covered under the Unnatural Offenses section of the Offenses against the Person Act.

Of a female

The victim must be female. While the rape of a male is possible and is frequently committed - particularly in jails, it is not covered under this act. Here again, such crimes are covered under the section on Unnatural Offences.

Against her will (No Contest)

How is the will of the victim established?

- ✓ Statements
- ✓ Good reputation
- ✓ Reporting the offence without delay
- ✓ Making an outcry at the scene of the crime and at the time of the act
- ✓ Signs of struggle at the scene
- ✓ Marks of violence on the victim's person
- ✓ Damage done to the victim's clothing
- ✓ Submitting readily to a medical examination

Corroboration of the victim's story

By force, fear or fraud

Resistance by force is not required if:

The victim was placed in fear of her life, injury or bodily harm.

What if she feared for the safety of another, who may be killed, injured or raped if she did not submit?

The victim submitted due to a trick or deceit on the part of the attacker.

Subsection (1)

Whosoever shall be convicted of the crime of rape shall be guilty of felony, and being convicted thereof shall be liable to imprisonment for life.

(2)

A person who is convicted of an attempt to commit rape – where at the time of the attempt he was armed with a dangerous or offensive weapon or instrument shall be liable to imprisonment for a term not exceeding ten years.

DUTIES OF THE CONSTABLE ON THE STREET

Remember, actually rape is not about sex. It is about control and humiliation. There have been many myths about why men rape women. Some say the act was committed in a moment of passion; others say the man was oversexed, or just being a man. Still others blame the women by saying she was dressed seductively or was in a bar "Looking for it." In reality, rape is a crime of violence in which sex is used as a weapon.

Almost all rapists are "losers." They often feel inadequate or inferior and are unable to control their lives or are angry with their spouse or mother. Since they do not dare injure their spouse or mother, they take their frustrations out on any women they can find. For many, the humiliation of the victim is a way of getting back at their "loved" ones.

Virtually all rapes are really ways of venting the rapists' anger, satisfying his need for power, or satisfying his need to humiliate a woman as much as possible.

When investigating a rape it is often easy to determine which type of rape is involved. The anger rape almost always involves a brutal physical attack on the woman. The power rape usually uses only the amount of force necessary to accomplish the rape and often asked if it was pleasurable. His attack is usually verbal and is meant to control. The sadistic type of rape usually involves tying up the victim and subjecting them to torture, abuse, perverted acts and/or bizarre threats. Taking time to determine the type of rape will assist you in both understanding the emotional level of the victim and apprehending the suspect.

On arrival at the scene, there are a number of things that must be done. Remember it must be proven that:

THERE WAS PENETRATION

Intercourse is deemed to be complete when there is proof of penetration only

IT WAS AGAINST HER WILL

THE ACCUSED WAS OVER 14 YEARS OF AGE

THERE IS CORROBORATION FOR HER STORY BY OTHER WITNESSES OR EVIDENCE

Provide emergency first aid to the victim and consider her emotional welfare.

Do not permit the victim to clean up.

Request an ambulance if required

Arrest the suspect if he is still at the scene.

Identify the crime scene. Carefully choose and use only one access route into and out of the area - this will avoid destroying any exhibits that may be at the scene.

Cover and/or protect all exhibits and evidence at the scene.

Request additional Constable supports including a female Constable and ask that CIB Scene of Crimes Unit and the Forensic Laboratory be notified.

Conduct a "brief" preliminary interview with the victim. (In private and with another female present)

- Get all available information on suspect(s).
- Get all information on any type of vehicle used by the suspect(s).
- Get all information about how the suspect(s) were able to attack her.
- How her home was entered, how attack occurred, etc.
- Advise Control of any information that may assist others in identifying or locating the suspect(s).

If appropriate, accompany the victim to the hospital. (Have a female Constable or other female with you). If complainant is under 16yrs. of age obtain parents or guardians consent before medical examination.

If there are no CIB personnel there to take the case, confer with the physician prior to any examination and request the following:

- A release form so that you can get a copy of the examination.
- That all abrasions, lacerations and bruises be recorded and if possible, photographed.
- That the head and pubic area be combed and all hair obtained from each placed in a separate container.
- That a sample of the victim's head and pubic hair be obtained and placed in separate containers.
- That swabs be taken of the mouth, vaginal and anal areas and each swab placed in a separate container.

That any samples of blood found be secured and each placed in a separate container with identifying information as to the part of the body it came from.

That a check for communicable diseases be made.

That fingernail scrapings be taken from the victim and placed in separate containers.

Take possession of all containers and immediately mark each with your initials, date and name of victim or case number.

Personally deliver or see that all exhibits and evidence are delivered to the Forensic Laboratory.

If you are detailed to interview the victim, make sure you have a female present. If the other female accompanying you is not a Constable, get identifying data.

- Make a judgement regarding the victim's emotional state. Do not interview her if she is hysterical or withdrawing. Interviews at these times will increase the damage done to her.
- Take your time. This is an extremely sensitive type of interview.
- Remember, she may be feeling guilty thinking that she had possibly lead the person on in some way. Do not make her feel guilty. Simply write down what she says. Reassure her if it is appropriate, but do not judge her actions either verbally or non-verbally.
- An inconsiderate word or gesture might significantly increase the amount of emotional damage the victim will suffer.

If you do not accompany the victim to the hospital, remain at the scene to protect all exhibits until relieved by CIB personnel or your superior. If you are advised to handle the scene do the following:

- Request that other Constables contact neighbours and passers-by to locate any witnesses or persons who can corroborate the victim's story or parts of the story.
- Search, identify, collect and mark all exhibits and fingerprints noted.

Watch for any objects, weapons, clothing, rope or other items, which would tend to prove (or disprove) the victim's story.

Collect all stains, foreign objects, towels, broken glass, anything that might contain fingerprints, etc.

If possible, mark each item with your initials.

Carefully place each exhibit in a separate bag or container. Mark each container with your initials, the date, and the name of the victim or the crime report number.

Sketch the crime scene in detail. The sketch should show the locations of all exhibits such as hair, clothing, stains, etc.

Record in your personal diary all that was said to you, your actions as well as the exhibits you found, how you marked them and what you did with them.

Personally take all exhibits to the Forensic Laboratory as soon as possible. Get a receipt.

If the suspect was arrested, obtain all clothing from him. Obtain fingernail scrapings and record the location of all lacerations and bruises. Get samples of pubic hair and head hair. Preserve all exhibits in separate containers and be sure each is correctly labelled.

AGGRAVATED ASSAULTS ON WOMEN AND CHILDREN

Refers to an assault of greater than normal violence upon a women or a child of under 14 years of age.

N.B. Aggravated means made worse in respect of violence but not in respect of decency.

INDECENT ASSAULTS (Section 53)

Whosoever shall be convicted of any indecent assault upon any female, or of any attempt to have carnal knowledge of any girl under sixteen but not under twelve years of age shall be liable to be imprisoned for a term not exceeding three years.

Refers to an assault that is accompanied by acts of indecency.

WHAT IS AN ACT OF INDECENCY?

DEFILEMENT OF FEMALES (Section 47)

Any person who unlawfully and carnally knows or attempts to have carnal knowledge of any female idiot, or imbecile woman or girl, under circumstances which do not amounts to rape but which proves that the offender knew at the time of the commission of the offence that the woman or girl was an idiot or imbecile, shall be guilty of a misdemeanour. (3 yrs)

Refers to unlawful carnal knowledge of a female who is:

- An idiot or imbecile (Misdemeanor)
- The male must know her mental status
- A girl under the age of 12 (Felony)
- A girl over 12 but fewer than 14 years of age (Misdemeanor)

N.B. (2) and (3) are the form of charges for Carnal Abuse.

Carnal Knowledge is mere act of having sexual intercourse, while in rape it is having sexual intercourse without consent.

- ✓ Points to prove Defilement of Female a, b, c.
- ✓ Unlawful carnal knowledge penetration of the male's penis into the vagina of the female
- ✓ Complainant must be a female idiot or imbecile.
- ✓ Accused knew at the time that the complainant was an idiot or imbecile.

Unlawful carnal knowledge - as at (a) (1) above

Complainant under the age of twelve years

Unlawful carnal knowledge - as at (a) (1) above

Complainant must be above twelve years and under fourteen years.

PROCURATION (Section 58)

- Any person who procures or attempt to procure any girl or woman under 18 years of age not being a prostitute or of known immoral character, to have unlawful carnal connection either within or without this island, with any other person or persons or
- Procures or attempts to procure any woman or girl to become, either within or without this Island, a common prostitute or
- Procures or attempts to procure an woman or girl to leave this Island, with intent that she shall become a prostitute, or an inmate of, or frequent a brothel elsewhere, or
- Procures or attempts to procure any woman or girl to leave her usual place of abode in this Island (such place not being a brothel) with intent that she may, for the purposes of prostitution become an inmate of or frequent a brothel within or without this island. (3 yrs)

N.B. The evidence of one witness is not sufficient, for a conviction, unless corroborated.

Powers of Arrest

Any member of the Jamaica Constabulary Force Above the rank of Corporal may arrest without warrant any person whom he shall have good cause to suspect of having committed, or attempting to commit, any of the above four offences.

Procuring Defilement of Female by Threats, Fraud, Etc. (section 59)

It is a misdemeanour for any person who;

- By threats or intimidation procures or attempts to procure any woman or girl to have any unlawful carnal connection, either within or without this island; or
- By false pretence or false representations procures any woman or girl, not being a common prostitute or of known immoral character, to have any unlawful carnal connection within or without this Island or
- Applies, administer to, or causes to be taken by, any woman or girl any drug, matter or thing with intent to stupefy or overpower so as thereby to enable any person to have unlawful carnal connection with such woman or girl;
- Has or attempts to have, unlawful carnal connection with any female when partially or entirely stupefied or overpowered as aforesaid.

N.B. The evidence of one witness is not sufficient for conviction unless corroborated.

ABDUCTION (Section (60))

Refers to forcibly taking away or detaining a woman of any age against her will, with intent that she should be married or carnally known (Felony)

HOW DOES THIS DIFFER FROM KIDNAPPING? (In kidnapping the sex and age is immaterial, also a reason is attached.)

Any person who with intent that any unmarried girl under the age of 18 yrs should be unlawfully and carnally known by any man, whether such carnal knowledge is intended to be with any particular man or generally takes or causes to be taken such girl out of the possession and against the will of her father or mother or any other person having the lawful care or charge of her. (Misdemeanour 3yrs)

N.B.

It is sufficient for the accused to prove that he had reasonable cause to believe that the girl was of or above the age of **18** years.

UNLAWFUL DETENTION WITH INTENT TO HAVE CARNAL KNOWLEDGE (section 61)

Refers to the detaining of a female against her will (Misdemeanor)

In or upon any premises with intent that she be unlawfully and carnally known, by any man, whether any particular man or generally or in any brothel (3yrs)

ABORTION (Section 72)

Every woman, being with child, who with intent to procure her miscarriage, shall unlawfully administer to herself any poison or other noxious thing, or shall unlawfully use any instrument or other means whatsoever with like intent, and whosoever with intent to procure the miscarriage of any woman, whether she be or be not with a child, shall unlawfully administer to her, or cause to be taken by her, any poison or other noxious thing, or shall unlawfully use any instrument or other noxious thing or shall unlawfully use any instrument or other means whatsoever with the like intent, shall be guilty of a felony. (Life imprisonment)

Three Type of Abortion

- Natural - car accident, accidental pushing of female, being hit by flying object.
- Criminal – any killing of foetus under 7 months once not done to save life of mother
- Therapeutic – Done in consultation with the opinion of two doctors to save the life of the mother.

Child Destruction is 7 months and over if the act done were to discontinue the life of the child, once it is deemed the child would have been born alive.

Classes of person who may be involved in the commission of offence

The Woman

It is a felony for any woman being with child and with intent to procure her own miscarriage, unlawfully to take any poison or any noxious thing or use any instrument or other means whatsoever. (Section 72)

N.B.

It is immaterial if she does not miscarry. The offence is complete on the attempt to procure - only. If the woman is not pregnant, it is no offence even if she believes she is.

The person administering

It is a felony for any person with intent to procure the miscarriage of any woman whether she be or not be with child unlawfully to administer to her or cause to be taken by her; any poison or noxious things or use any instrument or other means whatsoever (Section. 72).

N.B.

If death results, the offence is murder. In practice Manslaughter is charged.

The person supplying

Whosoever shall unlawfully supply or procure any poison or other noxious thing, or any instrument or thing whatsoever, knowing that the same is intended to be unlawfully used or employed with intent to procure the miscarriage of any woman, whether she be or be not with child. (Misdemeanour 3yrs) (Section 73)

General

When a woman is charged with abortion it is necessary to show that the woman was actually with child, but which is not necessary where another person is charged with the offence, but she may be charged with **CONSPIRING** with others to commit the offence although she was not in fact pregnant.

A person who consents to a person using an instrument upon her with intent to procure a miscarriage can be convicted of aiding and abetting the felony, although there is no allegation in the indictment that the accused was with child at the time of the offence.

Taking a thing in the belief that it is capable of procuring abortion, though in fact it is not, is an attempt to commit the crime.

Evidence of the use of instrument with intent to procure abortion on previous occasions was admitted to prove a systematic course of conduct on the part of the prisoner, and the intent with which the prisoner used the instrument.

Action of the police:-

In cases of supposed abortion, immediate search should be made for bottles or boxes which contain, or may have contained medicine or medical matter, or any suspicious mineral or vegetable matter lying about, also for any instruments by which the offence may have been committed, as also for correspondence or advertisement leading up to it.

N.B.

Caution must be used when investigating such cases, as miscarriage may be perfectly natural or caused through misadventure and the presence of abortifacient and medicines in a dwelling house is no conclusive proof, though combined with other circumstances it may go far as corroborative evidence.

Common Abortifacient

Ergot, Quinine, Lead Pills, Aloes, Oil of Penny Royal, Oil of Rue, Oil of Savin pitution etc.

Police Power

As for felony it is a misdemeanor to knowingly supply or to procure the means of inducing a miscarriage

CONCEALMENT OF BIRTH (section 74)

If any woman shall be delivered of a child, every person who shall by any secret disposition of the dead body of the said child, whether such child died before, at or after birth, endeavour to conceal the birth thereof shall be guilty of a misdemeanour. (2 yrs)

ABANDONING CHILD (section 28)

Whosoever shall unlawfully abandon or expose any child, being under the age of 2 years whereby the life of such child shall be endangered, or health of such child shall have been or shall be likely to be permanently injured, shall be guilty of a misdemeanour (3 yrs)

Points to Prove

- That a woman was delivered of a child
- That the body is that of a child

- That there was a secret disposition of the dead body of a child
- That the child was being capable of being born alive

DIFFERENCES BETWEEN OFFENCES

ABANDONING CHILD • Child must be alive and under two years	CONCEALMENT OF BIRTH • Child must be dead
INFANTICIDE • Only by the mother can this be committed • Child must be born alive and under twelve months • Felony • Child died by some willful act, or omission of the mother	CONCEALMENT OF BIRTH • Can be committed by any person • Child need not be alive • Misdemeanour • The child was born alive or died naturally
RAPE • No true consent • Any female • Felony	DEFILEMENT • Consent immaterial • Must be a female lunatic, idiot, imbecile or a female under 14 years • Felony - misdemeanour

INCEST

Incest is the crime of having sexual connection with a close relative and is committed when the male person have carnal knowledge of his mother, daughter or sister, or for female person to permit her grandfather, father, son or brother to have carnal knowledge of her. (Section 2 of Chapter 155)

Incest is sexual intercourse between two persons related with prohibited degree of marriage.

Originally a felony punishable by death, incest was subsequently left to the spiritual courts but legislation lapsed on the restoration and is was not until 1908 by an Act now repealed that it revert to criminal offence.

Criminal incest is now govern by Section 2(1), (2), (3) and 4 of Chapter 155.

By Section 2 (1), it is an offence for a man to have sexual intercourse with a woman he knows to be his grand-daughter, daughter, sister or mother. Triable at Assizes only. If with a girl under twelve years, life imprisonment; otherwise seven years. The attempt by a man on a girl under 13 years is punishable with a maximum of seven years; otherwise 2 years.

By Section 11, it is an offence for a girl of the age of 16 years or over to permit a man who she knows to be her grandfather, father, brother or son to have sexual intercourse with her by her consent. Triable by Assizes only. Seven years. Attempt 2 years.

Brother and sister include half-brother and half-sister, whether or not the relationship is traced through lawful wedlock. Consent at all times is immaterial.

For a female to be liable she must be of the age of eighteen years and over and a consenting party.

Exercise care to distinguish between consent and submission. It is open to the jury to believe that the female offered some resistance and eventually submitted, without consenting in the sense of acting on her own free will. There is a distinction between submission and permission. (R.V. Dimes 1911) 7 Chap. 43. Submission does not make a woman an accomplice.

If separate count in an indictment charge, incest against a man and a woman, a verdict of guilty against one only may be returned. The female may be innocent on the grounds that she did not know that the man was her brother. (R. v. Gordon 1925 19 Chap. 20).

On indictment for incest by a man alternative verdict lies under (Section 42 and 43 of Chap. 20).

Where a female is under the age of 16 years, her age must be shown on the charge and proved strictly. If a birth certificate can be produced, evidence must be given identifying the girl with the child whose birth was certified.

Proof of fact, which constitutes rape, does not entitle the prisoner to be acquitted of the charge of incest.

Prosecution for incest, or attempted incest, may not be commenced without the sanction of the Attorney General, except by or on behalf of the Director of Public Prosecution.

All offences of incest must be reported to the Director of Public Prosecution. In practice, the Director of Public Prosecution prosecutes in all cases of incest and the practical effect of point 14 above is that it is the Director's Consent that is required.

Proof of the fact, which constitutes rape, does not entitle the prisoner to be acquitted of rape.

Prosecution of incest or attempted incest may not be commenced without the sanction of the Attorney General, except by or on behalf of the Director of Public Prosecutions.

Corroboration is not essential in Law but is required in practice under the general necessity of corroboration of the complainant in all-sexual cases.

Corroborative evidence is evidence which shows, or tends to show that the story of the complainant that the accused committed the crime is true, not merely that the crime has been committed but that it was committed by the accused.

A confession in Law needs no corroboration but in practice there is usually some. Existence of corroboration or not is a question for the jury.

An indictment charging incest on divers day between two stated days is bad as it charges more than one offence. (R. v. Thompson (1914) 24 Cox. C.C. 43) but evidence of relations between the same parties on dates other than that charged is admissible to prove guilty passion and to rebut a defence of innocent association (R. v. Ball (1911) A.C. 47).

A consenting female over the age of 16 years may be an accomplice and if called as a prosecution witness needs to be corroborated. Even if she did not consent she would need corroboration.

POINTS TO PROVE

Relationship between the parties

Knowledge of such relationship by the accused

Sexual intercourse or the attempted sexual intercourse

On conviction for a man for committing or attempting to commit incest against a girl under 21 years the court may divest him of all authority over her. Sec. 47 Chap. 68.

Upon receipt of complaint do not hesitate to interview suspects.

Where surrender to Police and confess incestuous conduct, do not charge and bail under the Constabulary Force Law or the Resident Magistrate's Court Act, as either course begins proceedings without authority. Take detailed statement (under caution), verify the name and address and allow surrender party to go. Treat enquiries as urgent and lay report and statement before D.P.P. as early as possible. Take all necessary steps to keep parties to the offence apart.

Be ready with description of premises where offence has been committed and conditions under which the parties have been living, often asked for by judges.

If parties have been living together in a hotel, boarding house or furnished rooms, obtain statement regarding tenancy and sleeping accommodation. Where hotel register is kept, arrange for production at court.

HANDLING ABNORMAL PEOPLE

INTRODUCTION

A Constable has many contacts with mentally disturbed persons due to the nature of the profession. Such people tend to come to the attention of the police because of conflicts with others, actions which frighten those around them or the inability of their family to adequately care for them. Dealing with people exhibiting abnormal or unusual behaviour can be particularly difficult. The person may be suffering from a mental disorder, some physical illness, drug or alcohol induced misconduct, mere eccentricity or any variety of disabilities. Therefore, the purpose of this lesson is to increase an awareness of the general indicators of mental disorders so that appropriate handling procedures can be utilized.

As a Constable you have many responsibilities when dealing with the mentally disturbed. However, your primary responsibilities are always the same:

- ✓ Protect the Public
- ✓ Protect yourself
- ✓ Protect the person (from himself or others)
- ✓ Protect property

Please note the order of the list of responsibilities. It is correct and all actions must be taken in terms of that order.

DEFINITIONS

The study of abnormal behaviour is quite complex and requires considerable study of the mind and its functions. To do this effectively, it is necessary to become familiar with a number of psychological terms. These include:

ABNORMAL	something that is not normal, as used here abnormal refers to behaviour that is inappropriate, non-functional and illogical based on the facts.
AGITATION	a state of disturbance, emotional dissatisfaction, anxiety, nervousness, or unrest, ready to explode
ANXIETY	an emotional state marked by fear, cautiousness and withdrawal.
COMPULSION	an overriding needs to act in a certain way or do a certain thing.
DELIRIUM	A state of extreme mental excitement marked by restlessness, confused speech and hallucinations.
DELUSION	A belief in something which is contrary to fact or reality.
DEPRESSION	An emotional reaction marked by sadness, loneliness, rejection, failure, and/or hopelessness.
EMOTIONS	Complex psychological feelings or attitudes such as love, hate, anger, fear, jealousy, greed, lust etc
FUNCTIONAL	Refers to the way something works. Usually used to mean a disease or condition that is not caused by something physical.
HALLUCINATION	Seeing, hearing, feeling, tasting or smelling things, which are not present
HYPERSENSITIVE	Overly sensitive to someone or something, often results in a reaction which is totally inappropriate or out of proportion.
IRRITABLE	Easily aroused to anger, quick to take offence etc.

MANIA (Manic)	A emotional state marked by continued uncontrollable activity in the form of excessive rapid speech, high spirits, need to achieve an end, sometimes very destructive behaviour, often not reactive to pain.
NEUROSIS	A group of mental disorders which result from the mind's attempts to resolve some inner emotional conflict about you - guilt, fear, anger, hate etc.
NORMALITY	Behaving in a manner, which is acceptable to the majority of the people
OBSSESSION	An uncontrollable, overriding interest in something or someone.
ORGANIC	Refers to the organism usually used to mean that a disease or condition is caused by something, which is physically wrong
PARANOID	A state of illogical suspiciousness, concern with being attacked by others or being plotted against either to take property or to destroy their minds, kill them or sexually abuse them.
PSYCHOSIS	A severe mental disorder, usually involving delusions and hallucinations.
REALITY	That which is true to life, real, actual, a true fact or existence.
TOXIN (toxic)	Refers to poison usually used to mean diseases or conditions, which are caused by chemicals, drugs, or poisons given off by viruses etc.
WORD SALAD	Talking which seems to have no purpose or logic, marked by lack of sentences, punctuation or structure.

WHAT IS ABNORMAL?

The difference between normal and abnormal behaviour is sometimes hard to determine. We tend to make judgments based on our own moral standards and values. This is a very subjective approach and one, which is very often in error. What is conventional and acceptable in one society or culture is sometimes not tolerated in another. Examples of this might be appearing nude or relieving oneself in public view. Pinching the buttocks of women walking on the street, bizarre styles of dress, various eating habits and much other culture related actions. Being different, unusual or socially non-conforming is not sufficient to label someone mentally disturbed.

As a general rule

TO BE CONSIDERED MENTALLY DISTURBED, A PERSON MUST BE ACTING OR BEHAVING IN A MANNER THAT IS INAPPROPRIATE FOR HIS OR HER POSITION OR BACKGROUND.

The behaviour must have no real potential for achieving the stated goal. Moreover, the person must, when given accurate information continue to behave in an inappropriate manner.

WHAT CAUSES MENTAL DISORDERS?

In many cases we do not know what causes a mental disorder. There are lots of theories and possibilities but no one has actually been able to determine specific cause of all the different types of mental illnesses.

There are 3 general types of causes

Organic

Mental illnesses are sometimes caused by an accident, another disease or some condition which causes damage to the brain.

Toxic

Mental illnesses are sometimes caused by chemicals which change or damage the brain or the way it works, these include hormones, glandular defects, alcohol, drugs, certain types of glue or paints, cleaners like carbon tetrachloride and others.

Functional

Some mental illnesses seem to have no physical basis. They appear to be the result of the persons attempts to cope with stresses, fears or anxieties or other things which have occurred in their past.

Whatever the cause, as a Constable you will come into contact with many people who are suffering from a mental disorder. Dealing with them can be quite difficult. However, a basic understanding of their behaviour and the way they act will allow you to care for them in a safe and considerate manner.

COMMON SIGNS OF MENTAL DISORDERS

There is no real way for the Constable to determine whether a person is truly mentally ill. There are however, a number of behaviours that are characteristic of the more common mental illnesses. The more profound types of disorders are marked by delusions and hallucinations and the inability to separate what is real from what is imaginary.

Other disorders are characterized by anxiety and the need to do or not do certain things in order to deal with the anxiety. Finally, there is a group of disorders that are really different ways of thinking or seeing the world. A word of caution however,

EVEN THE MOST SEVERELY ILL PEOPLE SOMETIMES ACT AND FUNCTION IN A NORMAL MANNER.

In the major disorders, the hallucinations and delusions are often easy to recognize. Listen to what they are saying and the way they are acting. Frequently, they will make references to their delusions or hallucinations.

They will state that they have committed horrible or sinful deeds.

They will say that their body is rotting away from the inside or being eaten away from the inside.

They will say they are being attacked, controlled, sexually drained, etc. by some famous person or organization, aliens or other powerful forces.

They will say others are plotting against them, neighbours, famous people, etc.

They will say they are actually a very powerful general, etc. working undercover, or that they are the reincarnation of some famous person in history.

They will describe things they hear, see, or feel which are outside the realm of possibility.

They will take up a rigid pose or position and not move or respond to questions or orders.

Elderly people will wander away from their homes and have no idea who they are or where they live.

They will stand on a street corner and loudly warn the people of the end of the world, their sins etc. or argue with themselves about the Government etc.

In the types of mental disorders where they remain in contact with reality, common types of behaviour include:

Repeatedly perform certain acts, say certain words, or even commit certain crimes (usually sex related) in exactly the same way.

Exhibit extreme fears about going up high, going into a small room, walking over a bridge, being in crowds, touching other people, even talking to other people.

Refuse to leave their residence for any reason (individuals are known to have stayed in their homes for over 15 years without leaving).

Disorders involving the basic manner in which people think are quite different and much harder to recognize.

They are not a disease or illness in the usual sense of the word. Fortunately, people afflicted with most of these disorders do not come to the attention of the police. There are exceptions, however. This is because some of them do not feel they are bound by the laws, or by the rules of other people.

GENERAL SUGGESTIONS FOR CONTROLLING MENTALLY DISTURBED PERSONS

While different types of mentally disturbed people require a variety of techniques, there are several suggestions, which seem to apply to all people with mental disorders. These include:

Take your time. Don't rush anything. Unless the person is acting in a manner, which is endangering himself or herself or someone else, try to learn something about the person before deciding what to do. The more calmly you act, the more calmly the other person will act.

Get as much information as possible about the person.

Avoid abuse or threats. This cannot be overemphasized. Don't try to order them around. It will not work.

Be as honest as possible with the person.

Remain objective. You as a Constable will be something of a target for verbal abuse. Do not become upset or angry at such abuse. It is not really personal. It is a part of the illness and the person cannot control it.

Do not restrain the person unless it is absolutely necessary. The restraint will cause the person to become even more upset.

Should it become necessary to place a mentally disturbed person in a cell, remember the regulations state that mentally disturbed persons must not be placed in a cell with other people.

If possible, it is better to take a mentally disturbed person directly to the hospital.

If the person must be placed in a cell, he or she should be checked on a frequent basis.

DEALING WITH DIFFERENT TYPES OF MENTAL DISORDERS

The 3 most common groups of mental disorders are psychoses, psychoneuroses or neuroses and personality disorders. Each of these are actually groups of disorders which are similar in one or more respects. Within each of the groups are certain illnesses which cause the person to come to the attention of the police. Even so, it is most important to remember that,
GENERALLY SPEAKING, A MENTALLY ILL PERSON IS PROBABLY LESS DANGEROUS THAN A NORMAL PERSON.

The same is true for the mentally retarded. Most are not dangerous. There are exceptions however, and because of these exceptions it is important to learn about the different types of mental illnesses and to deal with them.

The most severe group of mental illnesses are called psychoses. Within this group are several types of Schizophrenia (basically meaning a shattered mind), Manic and Depressive illnesses, Paranoid and Paranoid like illnesses and several disorders associated with the change of life and with the birth of children. Each of these illnesses has unique characteristics which can help you recognize them and assist you to deal with them in an effective manner.

Schizophrenia

This is a group of functional disorders marked by hallucinations, delusions and loss of contact with reality. There are 4 primary types, Simple, Hebephrenic, Catatonic and Paranoid. Of the 4, you are most likely to come into contact with the simple, the catatonic and the paranoid.

Simple type

This type of schizophrenia usually attacks young men and women as they are entering adulthood. As the disorder progresses, the person becomes more and more non-social. He loses interest in others and in his own appearance, loses ambition and seems to lose all feelings about anything. He withdraws from the world and apparently enters a fantasy world of his own making.

Eventually he loses all sense of responsibility and becomes a homeless drifter or in some cases a prostitute.

From the police point of view this person is often seen as a drifter who is unkempt, dirty, and unresponsive to commands.

It is important to understand that often the person actually does not hear your commands and so does not react to them. On other occasions, his reaction time is so slowed; it appears that he has not heard you.

He should be treated in an unhurried, calm, non-authoritative manner, contact can be made and the person will comply (even though the person may not outwardly respond).

DO NOT BECOME ANGRY OR IMPATIENT WHEN THEY SEEM TO BE IGNORING YOU, THEY ARE LISTENING

While a person afflicted with this disorder may also be a thief, do not automatically make that assumption. Most are neither thieves nor criminals.

Hebephrenic

In many ways similar to the simple type, however, from a police perspective they are different in that they are more communicative. That is, they will describe voices accusing them of immoral sexual, religious or physical practices, talk rapidly in the form of word salad using made up words, laugh or giggle at illogical times, report fantastic forms of attacks upon their bodies (usually sexual in nature).

The reporting of sexual attacks is a primary area of contact with the police. This most often occurs at night when they are alone.

When taking a report get the name and address and listen patiently to the complaint. Advise that proper precautions will be taken and thank them for calling.

DO NOT AGREE WITH THE PERSON OR ARGUE, JUST ACKNOWLEDGE THE INFORMATION

Record the name and address and the nature of the call for future reference. If the attacker is an individual other than a public figure, record the data and advise CIB.

Individuals with this disorder also have a tendency for self-abuse. This is particularly true if they are placed in a cell.

Because of this, if you arrest people who are behaving in the manner described, be sure you advise the Constable in charge of the cells to watch him closely.

Catatronics

Constables most frequently come into contact with this type when asked to assist in placing a person in a mental institution. However, it is possible to find one sitting in the middle of the street or sidewalk seemingly totally oblivious to their surroundings. This type is characterized by their tendency to become mute, immobile and staring whenever they encounter stressful circumstances. They may assume any position and they may be quite stiff or very flexible while in the position.

Catatronics can come out of their stupor into a state of extreme excitement without warning. In the extreme state they are unbelievably strong and uncontrollable.

When dealing with a Catatonic take off your weapon before you approach. Move slowly, take off your hat, and talk to the person. Even when they do not appear to be listening, they are. Tell them who you are, why you are there and what you are going to do. Ask them to assist you in doing this (do not expect assistance) Do not lie to them. They are listening closely.

Take your time. Do not attempt to hurry. Explain every detail of your intentions. Talk in a low, calm tone of voice. It will often take 20 minutes to 30 minutes to introduce yourself, and tell him why you are there.

DO NOT TOUCH THE PERSON UNTIL YOU HAVE COMPLETELY EXPLAINED WHAT YOU INTEND TO DO AND WHY.

Have adequate assistance near but not in the room or beside you (at least 5 Constables)

Since this type often return to a functional state after a short period away from stress, it is quite possible to deal with the same person a number of times. Treat them with care, they remember!

Paranoid

Paranoid Schizophrenia is the most common type of schizophrenia. It tends to become a problem at a later age than the simple or hebephrenic types.

The most obvious characteristic is suspiciousness and an inability to deal with others. Almost all seem to feel they are being persecuted, watched, followed, poisoned, talked about or made subject to various torture devices. Others tend to have feelings of grandeur. They say they are some famous person in history, or some powerful monarch, they dress and act as though they are:

Paranoid Schizophrenics are often homeless drifters and come in contact with the police because of their homeless status. Taken to a shelter, they will seldom stay because they are afraid of the others.

This type often becomes a concern due to their tendency to stand on a street and shout religious messages, warn the public about coming catastrophes or loudly arguing with themselves over political viewpoints.

While they may sound quite angry and vocal, they are actually indifferent to what is going on around them. When slowly approached and gently handled they can be moved at will.

DO NOT TOUCH UNTIL YOU HAVE FULLY EXPLAINED WHAT YOU INTEND TO DO AND WHY.

If you can avoid touching, do so.

The primary source of danger is the voices they hear. On occasion, the voices will tell them to attack or kill and they will do so. Under careful questioning they will readily admit to such crimes.

Manic- Depressive psychoses

This group of disorders are seldom a problem to the Constable on the street. This is true, even though both occasionally violate the law and are capable of committing very serious crimes.

The Depressive disorders

People with depressive illnesses are often suicidal. This coupled with some other forms of behaviour is the reason they occasionally come into contact with the police. When talking to a depressed person, they seem particularly sad, fatigued, worthless, and guilty. They have an inability to concentrate or to sleep. This is usually a cyclic type of disorder where they will be quite depressed for a time and then normal or even somewhat overactive.

Due to their inability to sleep they will occasionally be seen driving aimlessly around the town or area.

They sometimes attempt to commit suicide in a public area and their attempts will prompt calls.

When dealing with a person attempting suicide, try to get them to talk,

DO NOT TELL THEM EVERY THING IS FINE OR THAT EVERYTHING WILL BE ALL RIGHT.

Try to understand their motivation and discuss their problem. Suggest that there may be alternative ways of handling a problem or that they might be mistaken in their assessment of a situation, try to call them by name, show an interest in them, suggest that they delay their decision so that they can re-examine alternatives, talk about the inability to change their mind after the act.

Take your time, do not attempt to give orders or use your authority to make them stop.

If possible try to remove the means to committing suicide, get personal data.

Involutional melancholia (senility)

This type of problem occasionally comes to the attention of the police when an elderly man or woman wanders away from their home and becomes lost. A significant characteristic is the fact that this disorder becomes much worse when the person is afraid, tired or upset. They may be perfectly lucid in the morning and out of contact with reality later in the day.

Always be alert to older people walking alone at odd times or in unusual places. This is particularly true if they are dressed in an unusual manner or only partially dressed.

Always talk to them. Try to determine if they know where they are and where they live. They may suspect you of being an attacker, do not frighten them by quick movements or rapid questions. Take your time.

Do not raise your voice or ask complicated questions. Remember, the person may be very upset and completely disoriented. Ask simple straightforward questions in a quiet conversational tone.

If there is a nursing home in your area, stop and talk to them. Get to know the staff and any residents who are known to wander away from the home.

SENILITY IS THE MOST COMMON DISORDER YOU WILL ENCOUNTER.

Paranoia

Constables working as station orderlies or on foot patrol occasionally encounter another form of paranoid behaviour. This is a person afflicted with the disorder called paranoia. It is quite similar to paranoid Schizophrenia except that the person has no hallucinations and their description of a problem seems well organized and logical - if you accept the basic premise.

Due to their lack of hallucinations and the fact that their delusion is usually only in one area, they are quite capable of holding a job.

Their delusion centers on someone being out to "get" them, do them harm, take their property etc.

They frequently call the police to stop the other person (frequently a neighbour) from doing them or their property harm.

They are constantly suing other people because they believe they have been wronged. They are prolific letter writers.

When a complaint about a neighbour sounds irregular or extreme, be sure to talk to the and several other neighbours as well.

Psychoneuroses (Neuroses)

The second group of disorders, the psychoneuroses or more commonly the neuroses leaves the mind intact and in contact with reality but they can be extremely restrictive for the person. Basically, all neuroses evolve around fears of impending danger, a reaction to existing danger or a carry over from dangers faced in the past. The term danger as used here, may refer to threats to the person's life, sexual abuse or even guilt concerning something the person did or wanted to do. In most cases, an individual afflicted with a neurosis does not come into contact with the police because of his or her behaviour. However, there are certain types, which can be a problem.

Obsessive-Compulsive disorders

Occasionally, the obsession involves some form of sex related conduct, such as:

- Exhibitionism
- Voyeurism (peeping toms)
- Certain types of rapes
- Pedophilia (child molesters)
- Pyromania (a type of arsonist)
- Necrophilia (Love of the dead)

- Fetishism (Love of certain objects, such as ladies high heeled shoes etc.)

The secret to identifying individuals who are obsessively engaged in this type of behaviour is in the fact that the crime is always committed in exactly the same manner.

Personality disorders

The third group of disorders is quite different. Usually referred to as Personality Disorders, these problems appear to be part of the basic personality of the person. There seems to be a flaw in the persons emotional adjustment. Many of these disorders are never treated and are not a problem for police. However, several do tend to commit crimes and can be quite dangerous.

The inadequate personality

People with this type of personality are poor workers, drifters, often on welfare. If married, they are the most likely to be the source of most family fights. They are true followers and often get involved in petty crimes because it is easy to talk them into anything.

The hysterical personality

This is the personality disorder most commonly encountered by police. Persons with this disorder frequently overreact to stress and generally "make a scene" when they are upset. When making a report they seem to be "blowing it all out of proportion." Understand and let them react. They are really trying to get control of themselves and others by the scene. It is usually quicker to let them overreact than to argue with them.

The explosive personality

While normal in other ways, this person tends to lose control when under stress. Unfortunately, in many cases there does not appear to be any cause for the outburst. Since the most common reaction is shouting or fighting, most Constables soon learn of the explosive personalities in their area.

The psychopathic personality

This personality type is capable of anything. They have no loyalties to anyone, no respect for the law and no conscience. They are the "con-men", the swindlers, the pathological liars, and often the "hard" criminals. They are also the informants and the police "Buffs." Interestingly enough they usually have a very likeable way about them, they are often intelligent and easy to talk to.

They have wit and charm but it is all a front. Behind the front they have no feeling for others at all. When the psychopath does not get his way he is capable of the most extreme forms of crime.

MENTAL RETARDATION

Mental retardation and mentally disordered are totally different conditions. Mental retardation is a permanent developmental disability involving significantly lower intellectual functioning.

While there are several levels of retardation, you as a Constable, are most likely to come in contact with the mildly retarded individual. There are 4 general indicators for recognizing mental retardation.

They have problems communicating. The person may have difficulty understanding or answering questions

The inability to perform simple tasks such as reading, identifying money, making change or telling the time

Manner of dress and physical features somewhat different than the average

Very easily influenced, very trusting and willing to please

The most important thing to remember in regards to a person who is mentally retarded is that even if they are very large and strong,

THE MENTALLY RETARDED ARE SELDOM VIOLENT OR DANGEROUS

The most likely forms of contact with retarded persons are in situations where they have been victimized in some way or they are lost. The mentally retarded are very vulnerable to attack and should be assisted whenever possible.

When interviewing a mentally retarded person the most important thing is to take your time, do not ask long complex questions, do not use "jargon" or large words and give them time to answer.

DEAF PEOPLE

The first and most obvious point to be made here is that being deaf does not mean that the person is in anyway disturbed or unbalanced.

Most deaf people are very easy to communicate with. Almost without exception, they are quite capable of writing out their complaints or any information they may wish you to have.

Once it is determined that the person is deaf, simply supply them with a pencil and paper and they will make their desires known.

Any questions you may wish to ask can easily be asked in writing.

CRISIS BEHAVIOUR

Any person in a crisis situation may exhibit signs of some type of emotional disorder. This is usually due to a temporary inability to handle the stress of the situation. The crisis can be anything from being a victim or witnessing a crime to being arrested. Under such circumstances the person may react in number of different ways. It is important that you be prepared for any of these possibilities.

They may become hysterical and attack you.

They may become completely withdrawn and despondent.

They may attempt suicide

Since you cannot really always be ready for an attack, you must develop a method of dealing with people which takes these possibilities into consideration. This involves your stance when talking to people, your manner of talking, where you stand in relation to the doors, and how you watch a person who has just received a shock or been placed under arrest.

SUICIDAL BEHAVIOUR

Some mentally disordered individuals do attempt to commit suicide. However, not all people who commit suicide have a mental illness. People who commit suicide are usually in a mental turmoil and are unable to think of alternatives.

An arrest of upstanding citizens for sexual misconduct is an example of the type of sudden shock, which will induce suicidal behaviour. Others will be entering a depressed period and be unable or unwilling to face another such episode. For some suicide will be a way out of their problems or a way of avoiding the pain of disease. While not all suicides are preventable, many of those thinking of suicide have not yet made up their minds. Some indicators of possible suicidal behaviour are:

Advance warning, planning or past attempts. Many individuals give warnings of their intentions either verbally or through hints.

Prolonged severe depression or despair

Dramatic unexplainable changes in behaviour or lifestyle

Deliberate physical and emotional isolation

Comments concerning worthlessness, hopelessness or the inability to see beyond a particular problem or circumstance

If you suspect that a person is considering suicide, ask him. If the answer is yes, take the necessary steps to get him professional help. Do not disregard a comment about suicide.

If you encounter a suicidal person use the guidelines set out below. They are:

When dealing with a person attempting suicide, try to get them to talk.

DO NOT TELL THEM EVERY THING IS FINE OR THAT EVERYTHING WILL BE ALL RIGHT.

Try to learn their motivation and discuss their problem. Suggest that there may be alternative ways of handling a problem or that they might be mistaken in their assessment of a situation.

Try to call them by name, show an interest in them, and suggest that they delay their decision
So that they can re-examine alternatives, talk about the inability to change their mind after the
act.

Take your time, do not attempt to give orders or use your authority to make them stop.

If possible try to remove the means to committing suicide.

COMMUNITY RELATIONS

INTRODUCTION

Over the years, the role of the Force has become almost solely a reactive one. We take complaints, conduct investigations and record the facts or we respond to citizen's calls for assistance and record the facts. The Constable in the field now has less time to get to know the people on his or her beat on a personal basis and the citizens seldom know him as an individual.

Unfortunately, it has been proven that when the amount of routine contact with concerned and responsible members of the community becomes less frequent, the citizens increasingly begin to perceive the Police as enforcers of rules rather than people they know and trust.

This is an extremely serious problem because it tends to separate the police from the citizen. With this separation come reduced trust and understanding, a **WE VERSUS THEY** attitude and reduced co-operation. You are all part of the community. You were a member of the community before you became a Constable and you will probably live in the community where you will be assigned. Becoming a Constable should not change that.

You must always remember that ***your authority is actually little more than that of the average citizen but your responsibilities are far greater.*** In a very real sense, you were hired by the citizens to protect them from the criminal element. Your job is to be constantly alert and take decisive action whenever a criminal violation comes to your attention. To be successful in your job, you must maintain close friendly relations with the community—in some cases the same people who will commit the violations. There is no other way. ***It is virtually impossible to perform your sworn duty without the co-operation and assistance of the public.***

Sir Robert Peel first suggested the idea that the police must be closely associated with the public in his 1829 rules and regulations for the London Metropolitan Police. He stated, "The police are the public and the public are the police."

The secret is to develop and maintain close ties with all elements of the community and to be totally professional in carrying out your duties.

DEFINITION

Community relations refer to the joint problem-solving efforts by police and citizens to control crime and disorder, thereby improving the quality of life in neighbourhood and communities. Community relations is something of an "umbrella" term in that it includes but is not limited to such areas as:

- Crime prevention
- Public relations
- Media relations
- Human relations

PURPOSE OF COMMUNITY RELATIONS

The original purpose of maintaining good community relations was, "To encourage police-citizen partnership in the cause of crime prevention."

Originally this was little more than a method of gathering information about criminals from the members of the community. It now extends to positive crime prevention and public awareness programs which allow for much greater input and involvement by both the police and the public.

SPECIALIST RESPONSIBILITY FOR COMMUNITY RELATIONS PROGRAMS

The primary responsibility for developing community relations programs rests with every police officer. However the specialist function is vested in the Community Relations and Welfare Branch, which are currently structured into 5 separate areas.

Community Relations Section, which deals with related programs and projects.

- Neighbourhood watch
- Choir
- Youth clubs
- Cops for Christ

Complaints Section, which deals with complaints by the public against members of the Force

Rape Investigation Unit, to specialize in the investigation of Rape cases

Tourism Liaison Section

Juvenile Unit, which manages and co-ordinates all matters concerning juveniles coming to police notice

Each Division also has a Divisional Community Relations Coordinator whose job is to assist the Divisional Officer to foster and improve communication between the police and the community. Specifically, the Coordinators job consists of coordinating and reporting in the following areas.

- Crime prevention
- Neighbourhood watch
- Drug abuse
- Complaints against the police
- Tourism
- Welfare of police personnel

RESPONSIBILITY OF ALL PERSONNEL IN COMMUNITY RELATIONS

The fact that there is a Community Relations Branch does not relieve other personnel of the responsibility to further community relations at every opportunity.

The Commissioner has said:

"It shall be the responsibility of all personnel to actively participate in community relations programs and to conduct themselves in such manner which will enhance the image of the Police and thereby assist in the realization of objectives."

The Divisional Community Relations Co-ordinator will initiate training programs, continually seek new and different approaches for communicating with the public and foster police professionalism among all personnel.

You will be expected to support and participate in the various community relations programs in every manner possible.

THE CONSTABLES ARE THE MAIN FACTOR IN COMMUNITY RELATIONS

A Community Relations Program must receive full support by the personnel on the street.

You must function as a Community Relations specialist every time you come in contact with a member of the public.

Sixty (60 %) to Seventy (70 %) of your duties should be of a social service nature. It is in these areas that the attitude of the Constable is so important to community relations. Some examples of occurrences that police officers are frequently involved in are: -

- Finding lost children
- Barking dogs (and finding lost pets or checking on endangered pets)
- Assisting motorists

- Directing or assisting people who need medical treatment, shelter, food or welfare services
- Obtaining assistance and protection for abused children and women.
- Reporting on streets, street lights, buildings, equipment, electrical wiring, plumbing, or waste or other items which are potentially hazardous to citizens

PREJUDICE AND STEREOTYPING

One of the most common problems, which a new Constable must overcome, is prejudice. Although most people will say they have no prejudices, everyone has some. As used here, the term simply means a dislike of some people because they have different values or customs.

As a Constable, you will frequently be in contact with individuals whose values or customs differ from yours. For instance:

- Their normal way of life or life style will be seen as bad or wrong to you.
- Their manner of talking or their level of eye contact will be irritating.
- Their manner of dress will offend your ideas of what is appropriate and accepted.
- Their eating habits, attitudes towards working, sexual habits, music preferences or even the way they adorn their cars will offend your sense of right and wrong.
- Their lack of acceptance of you as a person (or as a Constable) and the way in which they avoid you or are overly polite or keep you at arms length is irritating and threatening.

Because of the way in which values become part of you at an early age these differences in values and behaviour are seen as somehow threatening to you and you will tend to become prejudiced against the individuals who behave in this manner. Moreover, you will form stereotypes of such people and extend your prejudice to anyone who fits the stereotype. (Irrespective of their individual actions or attitudes toward you)

IF YOU ALLOW YOUR PREJUDICES TO INFLUENCE YOUR ACTIONS, YOU WILL BE DEALING WITH STEREOTYPES RATHER THAN INDIVIDUALS

When this happens, you can no longer be objective in your approach to people. At this point,

YOU WILL NO LONGER BE ABLE TO SEPARATE TRUTH FROM DECEIT, COOPERATION FROM RESISTANCE OR FRIEND FROM FOE

A major problem in police work world-wide is often referred to as the "John Wayne Syndrome." The John Wayne syndrome refers to the strong hatred and prejudice, which Constables develop against criminals and anyone else who is not a member of a police organization. It is based on the lack of trust and suspiciousness which develops while dealing with the mostly criminal element, the making of frequent arrests in public and the pressure of being constantly watched by the public, many of whom do not seem friendly. It is the extreme US versus THEM attitude and is quite common in police with between 1 and 5 years on the job.

At its height many police personnel are so distrusting of the public that they cannot tell whether a person is telling the truth or not. They normally assume he is lying.

IN MOST PLACES IT IS SO COMMON THAT WHEN IT DOES NOT OCCUR THE PERSON IS SUSPECTED OF NOT DOING THE JOB CORRECTLY

It is actually caused by a combination of ;

Exposure to different values (and thus not knowing what to expect)

A reaction to people not accepting you

The inability to determine who is and who is not dangerous

The development of this type of prejudice actually causes people to further pull away from you and thereby it starts a vicious circle of increasing distrust between you as a Constable and the public.

The best way to deal with this problem is to recognize that it exists and understand it for what it is.

Constantly remind yourself that the public has not changed its attitudes toward police or you personally, you have changed your attitude toward them.

Your job is not to regulate customs and practices, which are within the law, but to accept them as normal for the individual groups.

You are not employed to instill values in others. Their values are as much a part of them as yours are part of you. You must seek to understand their values so that you can better protect them.

THE NEIGHBOURHOOD WATCH PROGRAM

The primary community relations - crime prevention program operated by the Force is the Neighbourhood Watch Program. This is also discussed briefly in the lesson on **CRIME PREVENTION**.

- Is organized as an association of neighbours on a block and includes both sides of the street from intersection to intersection.
- Usually there are one or more Captains or co-leaders.
- The association works with members of the Force to educate residents about crime prevention, improve relations with the police, serve as a mini-station contact, help represent the neighbourhood at meetings and increase the level of surveillance through a block watch system.
- Watchers should be equipped with maps and directories to pinpoint trouble, a telephone to report crimes and suspicious activity immediately to the nearest station, suspect identification aids, and log sheets or a diary .

The purpose of the neighbourhood watch program is:

- To obtain immediate information on possible criminal activity
- To identify the criminals
- To identify areas of need

It is extremely important that Constables on beats covering areas with a neighbourhood watch program know the particulars of the program in their area. They should know the Captain or co-leaders of the program, the hours of operation, who the watchers are and their schedules. Contacting the Captain of the group and the watcher on duty periodically is of great assistance to the program as a whole and significantly increases its effectiveness.

The program as it matures can expand to include a number of other areas. These are to be encouraged whenever possible.

- Tenants organizations (Work much like block watches but deal with apartment grounds, landlord tenant disputes, unruly or undesirable tenants etc.)
- Apartment watches (works like a block watch but is confined to apartment entrances, stairways, halls and other public areas in apartment complexes).
- Citizen patrols (within limits and closely monitored)
- Escort services
- Blockhouses or Safe houses (refuges for children or elderly people who feel threatened on the street)

- Home security surveys (Examination of homes to determine the level of security - done by members of the Force or trained citizens)
- Victim/witness assistance programs (programs set up to help reduce the fear and injury resulting from recent crime victims and programs to assist, accompany and protect witnesses who are willing to testify in court)
- Neighbourhood clean-ups (Removal of trash, turning vacant lots into mini-parks for the children or flower gardens, painting over graffiti on walls and buildings).

APPEARANCES BEFORE CHILDREN'S CLASSES AT SCHOOLS

Constables can have a major influence on children by speaking to the various classes at schools. **HOWEVER, THE SAME RULES APPLY WHEN TALKING TO CHILDREN ON THE STREET.**

Pre- School and Kindergarten (ages 2-5)

Mostly Non-readers

Leave charts and visual aids at home. Let them gather around you. Make your presentation informal and friendly - use personal experiences. Try to say hello to each one individually - Smile a lot.

Expect them to climb on you so do not bring gun.

Be prepared to answer questions like, "How many people have you shot?"

Give them something to colour or some other similar project to do.

First two grades (ages 5-6)

Use the simplest of charts.

Use story form to give talk - a story with a moral.

They have a lot of energy and a short attention span - you may wish to incorporate movement into the story.

Third and fourth grades (ages 7-10)

These ages are rowdy and loud, so have them participate in the telling of the story.

At this age, the children listen more carefully than you suspect. Be careful of what you say.

Fifth and sixth grades (ages 9-12)

This is the ideal age to contact.

They will be listening closely. Include moral with any stories. Include the philosophy of the police to protect and to serve.

They are willing to listen to laws if you do not spend too much time on them. Be sure to include the reason for the laws and how people are victimized when the laws are broken.

Be prepared to talk about drugs, even if that was not the topic of your presentation

Seventh and eighth grades (ages 11-15)

This age is hard to work with.

They will listen to an authority figure, but do not try tell them what they can and can not do. Explain the laws and why they exist.

They will have a wide range of questions to ask during the question and answer period.

They are very interested in what other children their ages (and slightly older) are doing, both in Jamaica and around the world.

Ages 14 through 19

Will need a good sense of humour to get along with this group

They are primarily concerned with the opposite sex.

Wear civilian clothes instead of a uniform.

Be prepared to handle negative attitude questions.

This group is on the verge of adulthood and contains some of the most frequent offenders. We need as many on our side as possible.

CHECKING ON THE WELFARE AND SECURITY OF THE ELDERLY

Another area in which the Constable can make a significant impact from both the crime prevention and community relations point of view is the elderly.

Due to the nature of crimes against the elderly, crimes can often be prevented by a security check of the home.

The elderly are much more likely to be victimized at or near their own home than younger victims.

The elderly are much less likely to take self-protective measures than younger victims.

The potential effect of a financial loss is more significant for the elderly.

The security precautions taken by the elderly are often inconsistent.

While they may be worried about someone breaking in, they will tend to leave a poorly operating rear door unlocked

They may put expensive locks on the doors and windows but anchor them to a fragile base.

Elderly people tend to develop poor eating habits, and are more prone to injuries than the average citizen. This is a particularly serious situation if they are living alone.

Periodic visits provide a source of comfort and confidence (You must be careful that the person does not become dependant upon you, however).

A Constable should take it upon himself to determine if there are elderly couples or elderly people living alone within their beat jurisdiction.

- When located, each should be contacted and their circumstances should be determined, assistance should be provided in correcting any serious problems and they should be listed for periodic contact
- This and all similar activity should of course be recorded in the daily diary

MEDIA RELATIONS

The relationship between the media and the Force has not always been a positive one. This is probably because of the different goals of each organization.

The Force is in business to protect life and property. On occasion, this involves maintaining confidential files and not making all aspects of an incident public.

The media are in business to sell knowledge and the product is one, which the public, for the most part, has a right to know.

The most spectacular, intriguing, shocking and damaging knowledge sells best.

This sometimes-adversarial relationship between the media and the Force is good.

It works as a kind of check and balance system for the techniques used by the Force.

IF YOU ARE FEARFUL ABOUT THE MEDIA GETTING HOLD OF HOW YOU DID SOMETHING - YOU PROBABLY SHOULDN'T HAVE DONE IT.

It works as a source of information for both the police and the public concerning crimes, criminal activities and the location of criminals.

The media provides people who do not trust the police an alternate way of giving information about crimes or criminal activities.

Investigative reporters can obtain information, which is unavailable to you.

The media can be very helpful when it is necessary or desirable to inform the public about a problem or a need for additional information.

All members of the Force shall extend every courtesy to accredited news media representatives within the limits of the policy on public information. The primary regulations contained in the policy are as follows:

No employee shall release any official information to the news media without prior authorization from one of the following.

The Commissioner of Police

The Deputy Commissioner of Police
The Officer in charge of the Public Information Center

Individuals especially designated by the above

AS A RULE, ALL REQUESTS FOR INFORMATION SHOULD BE DIRECTED TO THE PUBLIC INFORMATION CENTER.

In incidents resulting in death, no release of information shall be made until the deceased has been identified and the next of kin notified

(If, after a reasonable time the next of kin has not been located, one of the above may release the information if appropriate).

Members of the Force will take no action to either discourage or encourage the media in photographing or televising anything within their view at a crime scene or the scene of any police operation.

Evidence may be covered or removed, witnesses may be removed and other precautions taken to preserve the scene or protect the integrity of the investigation.

News media personnel shall not be permitted to interview a person in police custody.

Members of the news media may not enter any area closed because of a menace to the public health or safety. Moreover, it is not the duty of the Force to provide for the safety of media personnel who choose to expose themselves to danger after due warning.

There are circumstances where you may be asked to speak to the news media. If this occurs, it is important to remember the following:

ALL PRESS RELEASES SHOULD BE IN WRITING AND APPROVED BY PERSONNEL AUTHORIZED TO GIVE PRESS RELEASES.

The information concerning the modus operandi of a criminal and the contents of all records maintained by the Central Records function are classified.

Identities of witnesses, juveniles, rape victims are normally not given to the media or to anyone not employed by the Force.

The identities of informants and other sources of information are classified and must never be revealed even to other members of the Force except ***ON A NEED TO KNOW BASIS.***

STRIKE AND LABOUR DISPUTE

STRIKES

Means a concentrated stoppage of work by a group of workers in contemplation or furtherance of an industrial dispute, whether it is carried out during on or termination of their employment. (Section 2 of the Labour Relation and Industrial Dispute Act)

TRADE DISPUTE

Means any dispute or difference between employers and workmen, or between workmen and workmen connected with the employment or non employment, or the terms or the employment or with the conditions of labour of any person

LOCK OUT

Means action which in contemplation or furtherance of an industrial dispute is taken by one or more employers whether parties to the dispute or not, and which consist of the exclusion of workers and the suspension of work in one or more places of employment, or the collective termination or suspension or employment of a group of workers. (Section 2 of the Labour Relation and Industrial Dispute Act)

SECTION (5)

PICKETING

Means attendance at or near any house or place in contemplation or furtherance of a trade dispute for the purpose of peacefully obtaining or communicating information or of peacefully persuading any person to work or not to work

SECTION (3)

TO INTIMIDATE

Means to cause in the mind of a person a reasonable apprehension of injury to him or to any member of his family or to any of his dependants or of violence or damage to any person or property, and the expression "injury" includes injury to a person in respect of his business, occupation, employment or other source of income, and includes any actionable wrong.

SECTION (4)

Notwithstanding anything in any enactment it shall not be lawful for one or more persons, for the purpose of inducing any person to work or to abstain from working, to watch or beset a house or place where a person resides or the approach to such a house or place, and any person who acts in contravention of this subsection shall be liable on summary conviction before a Resident Magistrate to a fine not exceeding forty dollars or to imprisonment for a term not exceeding three months.

WATCHING AND BESETTING

Includes the attendance of pickets in such numbers or otherwise in such a manner as to be calculated to intimidate any person in that house or place, or to obstruct the approach thereto, or agrees there from lead to a breach of the peace.

N.B. House included where a person resided, works, carried on business or happens to be.

SECTION 32

INTIMIDATION OR ANNOYANCE

Every person who in contemplation or furtherance of a trade dispute with a view to compelling any other person to abstain from doing or to do any act which such other person has legal rights to do or to abstain from doing wrongfully and without legal authority shall be guilty of an offence.

- Use violence to or intimidating such other person or his wife or children or injures his property, or;
- Persistently follows such other persons from place to place.
- Hides any tools, clothes or other property owned or used by such other person, or deprives him or hinders him in the use thereof, or;
- Watches or besets the house or other places where such other persons resides or works or carries on business happens to be or the approach to such house or place, or;
- Follows such other person with two or more other persons in a disorderly manner in or through any street or road

SECTION 33 (1)

PEACEFUL PICKETING

It shall be lawful for one or more persons to attend at or near a house or place where a person resides or works or carries on business or happens to be, if they so attend merely for the purpose of peacefully obtaining or communicating information, or of peacefully persuading any person to work or abstain from working provided every person attending:

- *is the employer or member of the firm by or with which such trade dispute is contemplated or has occurred, or;*
- *is, or immediately before the first act of picketing in relation to such trade dispute was, a workman in employment of the employer or firm by or with which such trade was contemplated or has occurred, or;*
- *was a workman in the employment of the employer or firm by or with which such trade dispute is contemplated or has occurred during twelve months next before the first act of picketing in relation to such dispute for one or more periods aggregating not less than thirty days, or;*

e.g. Temporary Worker - was working for the company 1 yr. before the strike on and off, However, the number of days must add up to thirty for him to be present at the strike.

N.B. Must be in relation to conditions and terms of employment.

- *is an officer of a trade union registered under this Act provided not more than eight such officers are so in attendance.*

PICKETS ENTERING PRIVATE PREMISES

If picketters enter private premises contrary to the wishes or directions of the owner they are trespassers and can be expelled by the lawful occupier. To aid in ejecting a person improperly on his premises although in law that person is simply a trespasser, the Constable may, when he can place reliance on the statement of the applicant, give his assistance using no more force than is necessary for the purpose.

GENERAL DUTIES OF THE POLICE AT STRIKES AND LABOUR DISPUTES

The general duties of the Police in connection with strikes and labour disputes are preserve order and to prevent obstruction, breaches of the peace, intimidation and watching or besetting.

OFFENCES LIKELY TO ARISE AT STRIKES AND LABOUR DISPUTES

- Disorderly conduct
- Using threatening, abusive or insulting words or behaviour with intent to provoke a breach of the peace etc
- Assault
- Malicious Damage to property

POWER OF THE POLICE

Power depends on particular statute creating offence. Police to exercise great discretion, tact, forbearance and strict impartiality.

POWER OF THE POLICE

Any Constable may arrest the offender without a Warrant if the Affray happens in his presence.

UNLAWFUL ASSEMBLY (Misdemeanor at Common Law)

Any gathering of three or more persons for any unlawful purpose or with intent to carry out any common purpose in such a manner as is likely to endanger the peace as shown by the large numbers assembled or by the circumstances of the assembly.

DUTY OF THE POLICE

It is the duty of the Police to disperse and put an end to an unlawful assembly, arresting the ring leaders and persons who offer resistance either on the spot if it is possible or advisable or subsequently by Warrant. Otherwise proceedings may be taken by Summons.

NOTE:

An unchecked Unlawful Assembly may end in a riot.

ROUT

Is where three or more persons assemble with a common purpose to an unlawful act and make some advances towards doing it. A Rout is the step just previous to Riot. It is a misdemeanor at Common Law.

THE RIOT ACT

INTRODUCTION

Law enforcement officers have been grappling with the scourge of an increase in industrial disputes and demonstrations in today's society. The Riot Act seeks to equip Law enforcement officers with the necessary tool to deal effectively, with these incidents. While the constitution allows for people to demonstrate peacefully, so shall problems from time to time contribute to persons breaching the law. It is with this in mind that particular attention be paid to this act to minimize the potential of demonstrations turning into Riots.

Section (2)

Number of persons to constitute a Riot

Where **twelve** or more persons unlawfully, riotously and tumultuously assemble together to the disturbance of the public peace at any time after the passing of this act, and been commanded by one or more justice or justices of the parish or place where such assembly shall be, by proclamation to be made in the Queen's name, in the form directed and prescribed by this act, to disperse themselves, and peaceably to depart to their habitations, or to their lawful business, shall, to the number of twelve or more, notwithstanding the making of such proclamation, unlawfully, riotously and tumultuously remain or continue together by the space of one hour after such command or request made by proclamation, then such continuing together to the number of twelve or more after such command or request made by proclamation shall be adjudged felony, and the offenders therein shall, upon conviction, be liable at the discretion of the Court to be imprisoned for life with or without hard labour.

Section (3)

RIOT PROCLAMATION

The justice shall among the rioters or as near to them he can safely get with a loud voice, command silence for the making of the proclamation, and after that shall openly in a loud voice, make or cause to be made, proclamation in these words or likes in effects:

“Our Sovereign Lady the Queen chargeth and commandeth all persons being assembled immediately to disperse them selves and peaceably to depart to their habitations, or to their lawful business, upon the pains contained in the Riot Act. God Save the Queen”

Every justice within the limits of his jurisdiction, is authorized, empowered, and required, on notice or knowledge of any such unlawful, riotous, and tumultuous assembly, to resort to the place where such unlawful, assemble shall be of persons to the number of twelve or more, and there to make or cause to be made the proclamation in the manner prescribed by the Act.

Section (4)

Persons refusing to disperse within one hour after the proclamation

If persons so unlawfully, riotously, and tumultuously assembled, or twelve or more of them, after proclamation is made in the prescribed manner, shall continue together, and not disperse themselves within one hour, then it shall and may be lawful to and for every justice of the parish where such assembly shall be, and also to and for every constable within such parish. Who needs assistance, are hereby empowered and authorized to command all of Her Majesty's subjects of age and ability to assist them, to seize and apprehend such persons so unlawfully, riotously, and tumultuously continuing together after the proclamation has been made.

The persons apprehended shall forthwith be taken before one or of Her Majesty's Justices of the parish, in order for them to be dealt with according to the law.

If any of these persons are killed, maimed, or hurt, in the dispersing, seizing, or apprehending, then every such Justice or Constable and all and singular persons providing assistance to them or any of them, shall be free, indemnified, and discharged. No action can be taken against the Queen's Majesty her heirs and successors.

READING THE RIOT ACT

The effect of the reading of the riot act is to make the parties felons.

OCCASIONS WHEN RIOT ACT IS READ

Whenever twelve persons or more are unlawfully, riotously and tumultuously assembled together, to the disturbance of the peace, it is the duty of any Justice of the Parish or place where the assembly shall be, or any member of the Force not below the Rank of Assistant Superintendent of Police to proceed immediately to the scene, or as near to the rioters as he can safely come, make or cause to be made the proclamation.

Section (5)

OPPOSING OR OBSTRUCTING THE READING OF THE RIOT ACT

If any person do or shall, with force and harms, willfully and knowingly oppose, obstruct, or in any manner willfully and knowingly let hinder or hurt any person that shall begin to proclaim or go to proclaim, according to the proclamation hereby directed to be made.

If the proclamation is not made, then every such opposing, obstructing, letting, hindering, or hurting such person so beginning or going to make such proclamation as foresaid shall be adjudged felony, and the offenders shall be adjudged felons, and shall be liable to be imprisoned for life with or without hard labour.

Every person or persons so been assembled, to the number of twelve or more to whom proclamation should or ought to have been made, if same has been hindered as foresaid, shall likewise, in case they or any of them to the number twelve or more shall continue together and not disperse themselves within one hour after such let or hindrance so made, having knowledge of such let or hindrance so made, shall be adjudged guilty of felony, and shall be liable to be imprisoned for life with or without hard labour.

Elements to Constitute Riot

- The number of persons taking part, must be at least 12.
- A common purpose
- Execution or inception of the common purpose
- An intent to help one another, by force if necessary against any person who may oppose them in the execution of their common purpose
- Force of violence nor merely used in demolishing but displayed in such manner as to alarm one person of reasonable firmness and courage

Points to prove Offence

- Twelve or more person's unlawfully, riotously and tumultuously assembled together to the disturbance of the public peace.
- Proclamation was made, prevented from been made, persons obstructed or hindered from making
- Rioters remain in number of twelve or more continue together by the space of one hour after the proclamation was made, or prevented from been made, or the person hindered from making.
- If the proclamation was prevented from been made, or the person was obstructed or hindered. All the persons who remain together in number of twelve or more must have knowledge that the proclamation was prevented from been made, or there was obstruction or hindrance.
- The rioters must remain together within one hour after the proclamation was prevented from been made or the person hindered or obstructed.
- There was obstruction, opposition; hindrance to the maker was willful with force or arms.

Section (6)

This Part to be read at every Circuit Court

The proclamation shall be read openly at every Circuit Court throughout the year.

Section (7)

Limitation on the period for Prosecution

No person shall be prosecuted by virtue of this part for any offence committed contrary to this act, unless such prosecution be commence within six months after the offence was committed.

Section (8)

Compensation for Riot damage

Where any machinery, or any house, shop or building, (including any premises appurtenant to the house, shop or building) has, wholly or partly, being demolished or pulled down by persons riotously and tumultuously assembled together, compensation shall be payable subject to, and in accordance with the provision of this act.

Section (9)

Persons to whom Compensation may be paid

Compensation shall be paid to persons who prove to the satisfaction of the authority that they have sustained loss by any such demolition or pulling down.

Section 9 (2)

Without prejudice to anything in this act contained, in any case where the building which has been demolished or pulled down is either a building used for religious worship, or school or parochial building, the following shall respectively be deemed to be a the person who may claim to have sustained loss from, and to be entitled to the payment of, compensation in respect of such demolition or pulling down

- The person having the management or in whom is vested the legal estate of any building used for religious worship
- The person having the control, or in whom is vested t he legal estate of any school or parochial building.

Section 9 (3)

Payment make by the authority to any one or more of he person referred to in paragraphs (a) and (b) of subsection (2) in respect of such claims made by them shall operate as an absolute discharge of a the liability of the Authority for payment or compensation.

SECTION (10)

CONSTITUTION OF COMPENSATION AUTHORITY

There is hereby established in every parish in the island a Riot Compensation Authority (in this Act shall be referred to as “the Authority”) for the purpose of this act the Authority shall be constituted by

- The Resident Magistrate (who shall be the chairman); and
- The chairman of the Parish Council; and
- The Collector of Taxes for the parish

Provided that in the case of the parishes of Kingston and St. Andrew, the Mayor shall be substituted for the Chairman of the Parish Council:

The Minister is empowered at any time, may appoint a fit and proper person to ac for the Chairman or for a member of an Authority, when it is impossible or undesirable for such Chairman or member to exercise his functions in connection with the authority, by reason of his absence, or of his interest in any claim under this act or for any other good cause.

Section 10 (2)

The Clerk of the Court of the Resident Magistrate shall in each case be the clerk of the Authority.

Section 10 (3)

The procedure of every authority shall be governed by the provisions of this act and of any regulations made under this Act, but save where express provision is made, every Authority shall regulate its own procedure.

Section 11

Power and Liability of Authority

Section 11 (1)

Every Authority may sue or be sued under the name of the Authority.

Section 11(2)

No personal liability shall attach to any Authority (or any member thereof) and every judgement recovered against an Authority shall be satisfied in accordance with the provisions of this Act.

Section 12 (1) **Claims**

All claims for compensation under this act shall be made un writing in accordance with the provisions of this Act and of any regulation made thereunder, to the authority for the parish in which the demolition or pulling down had taken place, within twenty-one days of the loss.

Section 13 (1) **Procedure in Regards to Claims**

Every Authority to whom a claim is made under this Act, shall enquire into the truth and every circumstances of the claim and may in proper cases, award and pay such sum of money by way compensation as to a majority of the Authority may seem fit.

Section 13 (2)
Every Authority shall have the power, when enquiring into any claim, and in relation to and claim-

- To require the claimant to supply such particulars as the Authority may deem necessary
- To call for verification, by Statutory Declaration or otherwise, of statements adduced in support of any claim
- To require the production of books and documents and vouchers
- To enter upon and inspect any premises
- To take steps to obtain such information and assistance as they deem necessary for determining

Section 13 (3)
In considering the award of any compensation under this Act, the Authority, in every case, shall have regard to the conduct of the person who claims the compensation as respects-

- The precaution taken by such person to safeguard his property and
- Any provocation offered by such person to any persons riotously or tumultuously assembled and
- Such person having been a party or necessary to the riotous and tumultuous assembly

Section 13 (4)
Notwithstanding anything in this Act contained, where under the provisions of subsection (1) compensation has been awarded to any person, and it appears to the Authority that such person is entitled by way of insurance (or otherwise than by way of compensation under this act) to be recouped, I whole or part for the loss in respect of which the compensation has been awarded, the authority shall-

- Make payment of the compensation, in case where the sum in which such person is entitled to be recouped equals or exceeds the amount of the compensation awarded.
- In all other cases, before paying the amount awarded as compensation, deduct there from an amount equal to the sum in which such person is entitled to be recouped

SECTION 14 **POWER OF CLAIMANT TO SUE AUTHORITY**

Where any person who claims compensation under the provisions of this Act and of nay regulations made thereunder, is aggrieved either by-

- The refusal or failure of the Authority to award compensation on his claim; or
- The amount of the compensation so awarded, he may sue the Authority concerned for the purpose of recovering compensation in respect of the matters contained in his claim for an amount not exceeding the sum therein claimed;

Section 14 (2)

Where the amount of compensation sued for under the provisions of this section does not exceed the sum to two hundred thousand dollars, the action may be brought in the Resident Magistrate Court in the parish in which the loss took place, or in the Court of the Resident Magistrate of an adjoining parish (upon which Court jurisdiction is hereby conferred)

Section 14 (3)

Where in any action brought under the provisions of this section, the plaintiff fails to recover any compensation, or fails to recover a sum which exceeds the amount of compensation which has been awarded by the authority, the plaintiff shall pay the cost of the Authority incurred in connection with the action and in every such case, such cost shall be paid as between solicitor and client.

Section 15

All compensation payable under the provisions of this Act, (whether awarded by the Authority or the Court), and all cost awarded against an Authority in any action under this Act, shall be charged upon and made payable from the Consolidated Fund.

Section 16

The Minister may make, (and when may revoke and vary) regulations governing the practice and procedure of Authority, and prescribing the forms to be used in making claims under the provisions of this Act.

Section 17**Save in Cases of Rebellion**

Notwithstanding anything in this Act contained, none of the provisions of this part shall apply in any case where a riot, or riotous or tumultuous assembly amounts to a rebellion.

CLOSING OF LICENSED PREMISES CONSEQUENT UPON RIOTS (SPIRIT LICENSED LAW SECTION 64)

When a riot or tumult happens, or is expected to happen, a Resident Magistrate or any Justice of the Peace or the Commissioner of Police, or any Superintendent of or any Assistant Superintendent of Police may order the holder of a Retail or Tavern Licence under this Law in or near the place where the riot or tumult happens, or is expected, to close his premises during any time which the Officers aforesaid may order.

Any order under this section shall be sufficiently made if given to the person in charge of the licensed premises. It shall be lawful for the Minister, however, to alter the time during which any closing order shall operate as aforesaid.

DUTY OF THE POLICE

It is the duty of Constables not only to suppress all riots, but also to identify and lodge information against rioters. If the Police are not witnesses to riot, they should make diligent enquiries and institute prosecutions as may be necessary.

NOTE All persons encouraging, promoting or taking part in riots whether by acts, words, signs, gestures, should be regarded as principal offenders and dealt with as such.

USE OF FIREARMS BY POLICE AT RIOTS

Although it is lawful for the Police to use Firearms to suppress a riot and protect persons and property during a riot, this action should only be taken as a last measure. When other means such as the use of Batons has failed, the situation is so desperate, or the force of the Police available is so small that felonious outrage cannot otherwise be prevented without resort to firing.

THE PUBLIC ORDER ACT

INTRODUCTION:

This Act may be cited as the Public Order Act.

INTERPRETATION:- in this Act (**Section 2**)

Local Authority

Means the Kingston and Saint Andrew Corporation, any Parish Council, the Water Commission, or any other authority body declared by the Minister by order to be a local authority for the purposes of this Act

Meeting

Means any assembly or gathering of persons held for the purpose of the transaction of matters of public interest or for the discussion of such matters or of the expression of views upon such matters;

Offensive weapons includes

- Any firearm as defined in the firearms Act; and
- Any stick, rod, bar or similar implement or any stone, brick or other missiles, whether similar to the foregoing or not, or any catapult or similar implement unless it is proved to the satisfaction of the Court that it was not used or intended to be used as such by the person charged; (See Offensive Weapon Act June 2001)

Political meeting means a meeting held-

- In a constituency between nomination day and election day, both days inclusive, at an election for a member of the House of Representatives for that constituency; or
- In an electoral division between nomination day and election day, both days inclusive, at an election for a member of a Parish Council or for a Councillor of the Kingston and Saint Andrew Corporation for that electoral division,

For the purpose of furthering or criticizing the aims, objects, action or programme of any political party or for the purpose of supporting or opposing the candidature for any individual as against any other or others at such election, and if any speaker at any meeting held as aforesaid refers to or discusses the aims, objects, action or programme of any political party or the candidature of any individual at such election such meeting shall, until the contrary is proved, be deemed to be a political meeting;

Public march means-

Any march or procession in a public place comprising (whether wholly or partly) pedestrians, vehicles (however propelled or drawn), or bicycles (however propelled), except a march or procession-

- By any of Her Majesty's Forces; or
- By the Jamaica Constabulary Force; or
- Which takes place as a component part of any religious ceremony, including a wedding or funeral, not being in any way connected with any political demonstration or celebration; or
- Which is confined to the pupils and teachers of any school; or
- By any other body approved by the Minister;

Public meeting includes

Any meeting in a public place and any meeting which the public or any section thereof are permitted to attend, whether on payment or otherwise;

Public place means

Any highway, street, public park or garden, any sea beach and any public bridge, road, lane, foot-way, square, court, alley or passage, whether a thoroughfare or not, and includes any open space and any premises to which, for the time being, the public have or are permitted to have access, whether on payment or otherwise.

MARCHES AND PROCESSIONS

Section 3 - In this Part-

Daylight

Means the interval between five o'clock in the morning and the succeeding six o'clock in the evening;

Night

Means the interval between six o'clock in the evening and five o'clock in the morning of the next succeeding day;

Permit

Means a permit granted under the provision of section 8.

Section 4

It shall be unlawful for any Public March to take place in the night.

Section 5

Any member of the Jamaica Constabulary Force not below the rank of Corporal may require any person leading any public march in the night or appearing to him to be the leader or one of the leaders of such public march to call upon such public march to disperse.

Section 6

It shall be unlawful for any public march to take place in daylight unless a permit has been issued in respect thereof.

Section 7 (1)

Where any person desires to organize any public march in daylight he shall at least three (3) days before such intended public march, make application for a permit to the senior officer of the Jamaica Constabulary Force for the parish in which the public march is to take place, or to the Commissioner of Police if the application relates to the Corporate Area of Kingston and St. Andrew.

(2)

Every application made in accordance with sub-section (1) shall contain particulars of the point of departure, route and point of termination of the public march to which such application relates, the hours between which such march will take place and an estimate of the number of persons who are expected to participate in such march.

Section 8 (1)

An Officer to whom application is made in accordance with the provisions of section 7 may, in any case, refuse or grant the application.

(2)

In cases where such application is granted the Officer shall issue to the applicant a permit for the desired public march specifying the route to be followed and the times between which it shall take place.

Section 9

Any member of the Jamaica Constabulary Force not below the rank of corporal may require any person leading any public march otherwise than in the terms of a permit or appearing to him to be the leader or one of the leaders of such public march to call upon such public march to disperse.

Section 10

Any person required under the provisions of section 5 or section 9 to call upon any public march to disperse who refuses, fails or neglects forthwith to call upon such public march to disperse shall be guilty of an offence and upon summary conviction before a Resident Magistrate shall be liable to a fine not exceeding one hundred dollars or to imprisonment for a term not exceeding six months with or without hard labour or to both such fine and imprisonment.

Section 11

Any person who take part in any public march -

- Prohibited by section 4; or
- In respect of which a permit has not been obtained; or
- Otherwise than in accordance with the terms of a permit,

Shall be guilty of an offence and upon summary conviction before a Resident Magistrate shall for any term not exceeding three months.

Section 12

Any person who organizes or attempt to organize or incites any person to organize or take part in any public march in contravention of the provision of this Part shall be guilty of an offence and on summary conviction before a Resident Magistrate shall be liable to a fine not exceeding one hundred dollars or to imprisonment with or without hard labour for any term not exceeding six months or to both such fines and imprisonment.

Section 13

During any period in which an order is in force under Part III, the operation of section 6 to 9 (both inclusive) shall be suspended in any area, or in any parish, district, village or town in the island to which such order relates.

MEETINGS AND MARCHES (SPECIAL PROVISIONS)

Section 14 (1)

Notwithstanding anything contained in Part II or in any other enactment, rule or regulation, where at any time it appears to the Minister to be in the interest of good order or the public safety so to do, he may, by order, subject to such exemptions as are, or from time to time hereafter may be, included in the First Schedule, prohibited in any area, or in any parish, district, village or town in the Island-

- All public meetings and all public marches;
- All persons from organizing, holding or speaking at, or attending, any public meeting or any public march,

Save in cases where a permit is issued in accordance with the provisions of section 15.

(2) Every order under this section-

- Shall remain in force for a period of not more than one month (without prejudice to the power to issue a further order at or before the end of such period);
- Shall be published in the Jamaica Gazette;
- May at any time be varied, altered, amended or revoked by the Minister.

Section 15

Where any person desires to organize or hold in any public place to which an order under section 14 applies a public meeting, or a public march, he shall, at least twenty-four hours before such intended event, make application for a permit to the Resident Magistrate or the senior officer of The Jamaica Constabulary Force for the parish in which the event is to take place, or to the Commissioner of Police if the application relates to the Corporate Area of Kingston and St. Andrew.

Section 16 - (1)

An officer to whom application is made in accordance with the provisions of section 15 may, in any case, refuse or grant the application.

(2)

In cases where such application is granted, the officer shall issue to the applicant a permit for the desired event to take place, but every such permit shall be issued subject to such terms and conditions (to be observed by all persons organizing, speaking at or attending the event) as the officer may think necessary in order to effect the object of the order.

Section 17

Any application for a permit under section 15 who is aggrieved by the refusal of an officer to grant the permit or by the terms of the permit, may within seven days, appeal in writing to the minister.

Section 18 (1)

Any member of the Jamaica Constabulary Force not below the rank of Corporal may, in relation to any public meeting being held or any public march in progress contrary to any of the provision of this Part or of any order made or permit issued thereunder, require any person addressing or known to him to have addressed such meeting or leading such march or appearing to him to be the promoters or organizers or

one of the promoters or organizers or the leader or one of the leaders of such meeting or march to call upon such meetings or march to disperse.

(2)

Any person required under subsection (1) to call upon any public meeting or public march to disperse, who refuses, fails or neglects forthwith to call upon such meeting or march to disperse shall be guilty of an offence against this section.

Section 19

Any Person who

- Contravenes or fails to comply with any of the terms or requirements of an order under this Part; or
- Contravenes or fails to comply with any of the terms and conditions subject to or upon which a permit under section 16 has been issued; or
- Holds, organizes, speaks at, attends or takes part in any public meeting or public march contrary to any of the provisions of this Part or of any order made, or permit issued, thereunder; or
- Attempt to commit any of the previously mentioned offence or who incites, aids or abets any other person to commit such an offence,

Shall be guilty of an offence and be liable, on summary conviction before a Resident Magistrate, to a fine not exceeding one hundred dollars or to imprisonment with or without hard labour for any term not exceeding three months, or to both such fines and imprisonment.

Section 20 (1)

Nothing in this Part shall apply to any meetings or marches held or organized in connection with any of the purpose set out in the First Schedule (so long as such purpose continues to form part of such Schedule), or in connection with such other purposes as may from time to time be included in such Schedule as provided for by this section.

(2)

The Minister may, from time to time, by order amend, vary or alter such Schedule in any respect, and may add thereto or remove therefrom any purpose or name.

(3)

The powers of the Minister under subsection (2) of this section may be exercised in an order issued for the purpose of this section, or in any order issued under section 14.

PUBLIC OFFICES

Section 21

In this Part-

Official Premises means

Any premises vested in the Government of Jamaica or any local authority, or any person in trust for or on behalf of such Government or such authority, and any premises, whether so vested or not, occupied by any officer of the Government of Jamaica or of any local authority for the purposes of performing his duties as such;

Scheduled Premises means

Any official premises specified in the Second Schedule;

- Headquarters House
- Office of Kingston and St. Andrew Corporation
- The Head Offices of all Ministries
- Jamaica House
- King's House
- Gordon House
- The Cabinet Offices

Specified Distance

Means a radius of two hundred yards from any point within the curtilage of any scheduled premises.

Section 22 (1)

Any member of the Jamaica Constabulary Force not below the rank of Corporal may, in relation to either-

- Any public meeting held within the specified distance of any scheduled premises; or
- Any public march in progress which comes within the specified distance of any scheduled premises, require any person addressing or known to him to have addressed such meeting or leading such march or appearing to him to be the promoter or organizer or one of the promoters or organizers or the leader or one of the leaders of such meeting or march to call upon such meeting or march to disperse

(2)

Any person required under subsection (1) to call upon any meeting or march to disperse, who refuses, fail or neglects forthwith to call upon such meeting or march to disperse shall be guilty of an offence against this section, and upon summary conviction before a Resident Magistrate shall be liable to a fine not exceeding fifty dollars or to imprisonment with or without hard labour for any term not exceeding three months, or to both such fine and imprisonment.

Section 23

Where any person who is required under section 22 to call upon any meeting or march to disperse refuses, fails or neglects to do so any Constable of the Jamaica Constabulary Force may call upon such meeting or march to disperse.

Section 24 (1)

Every person who is present at any meeting or march which is called upon to disperse under section 22 or section 23 shall forthwith upon the meeting, or march being called upon to disperse go some place beyond the specified distance from the scheduled premises by some route no point of which is nearer to the scheduled premises than is the place at which the meeting or march was called upon to disperse.

(2)

Every person who fails or neglects to comply with the provision of section(1) shall be guilty of an offence, and upon summary conviction before a Resident Magistrate shall be liable to a fine not exceeding ten dollars or to imprisonment with or without hard labour for any term not exceeding two months, or to both such fines or imprisonment.

Section 25

Every person who incites any person to contravene the provisions of subsection (1) of section 24 shall be guilty of an offence and upon summary conviction before a Resident Magistrate shall be liable to a fine not exceeding fifty dollars or to imprisonment with or without hard labour for any term not exceeding three months, or to both such fines or imprisonment.

Section 26

The Minister may by order add to or remove from the Second Schedule any official premises.

GENERAL PROVISIONS

Section 27 (1)

Any person who at a public meeting acts in a disorderly manner likely to prevent or obstruct the transaction of the business of the meeting likely to prevent or obstruct the transaction of the business of the meeting shall be guilty of an offence against this section, and-

- If the offence is committed at a political meeting shall be liable on conviction to imprisonment with or without hard labour for a term not exceeding one year or to a fine not exceeding two hundred dollars and in default of payment thereof to imprisonment with or without hard labour for a term not exceeding twelve months; or
- In any other case shall be liable to conviction to a fine not exceeding one hundred dollars and in default of payment thereof to imprisonment with or without hard labour for a term not exceeding three months.

(2)

Any person who incites any other person to commit an offence this section shall be guilty of a like offence.

(3)

If any Constable reasonably suspects any person of committing an offence against subsection (1) or subsection (2) he may, or, if required so to do by the chairman, shall require that person to leave the meeting forthwith.

(4)

If any person having been required to leave any meeting by any Constable pursuant to the provision of subsection (3) refuses or fails forthwith to leave such meeting he shall be guilty of an offence against this subsection and liable on summary conviction before a Resident Magistrate to a fine not exceeding one hundred dollars and in default of payment thereof to imprisonment with or without hard labour for any term not exceeding three months

Section 28

Any person who in any public place or in any public meeting uses threatening, abusive or insulting words or behavior with intent to provoke a breach of the peace is likely to be occasioned, shall be guilty of an offence against this section, and-

- If the offence is committed at a political meeting or within 200 yards of any polling station at which the poll is open for the purpose of election of a member of the House of Representative or of any Parish Councillor of the Kingston and St. Andrew Corporation shall be liable on conviction thereof to imprisonment with or without hard labour for any term not exceeding one year or to a fine not exceeding two hundred dollars and in default of payment thereof to imprisonment with or without hard labour for any term not exceeding twelve months; or
- In any other case shall be liable to conviction thereof to a fine not exceeding one hundred dollars and in default of payment thereof to imprisonment with or without hard labour for any term not exceeding three months.

Section 29 (1)

Any person who, while present at any public meeting, has with him (either openly or concealed about his person) any offensive weapon otherwise than in pursuant of lawful authority shall be guilty of an offence against this subsection, and-

- If the offence is committed at a political meeting, shall be liable on conviction to imprisonment with or without hard labour for any term not exceeding one year or to a fine not exceeding two hundred dollars and in default of payment to imprisonment with or without hard labour for any term not exceeding three months.
- In any other case, shall be liable on conviction to a fine not exceeding one hundred dollars and in default of payment to imprisonment with or without hard labour for any term not exceeding three months.

(2)

Every person who at any time when any public meeting is in progress has with him any firearm upon any thoroughfare or in any public place within earshot of any speaker at such meeting shall be deemed to have had such firearm while present at such meeting until he proves affirmatively that his presence upon such thoroughfare or in such public place at such time was neither directly nor indirectly consequent upon the fact that such meeting was in progress at such time.

(3)

For the avoidance of doubt it is expressly declared that -

- The lawful possession of any license or permit to carry a firearm in any public place shall not afford a defence to any proceeding under this section; and
- A person shall be deemed to be in earshot of any speaker at any time when he is at any point at which the voice of the speaker is in fact audible, notwithstanding that it would not have been so audible but for the use of a microphone, amplifier or other apparatus or device.

(4)

Any person who on the day of any election for a member of the House of Representatives or of any Parish Councillor of the Kingston and St. Andrew Corporation at any time during the period between one hour before the hour appointed for the opening of the poll, while in any public place within the constituency or electoral division or electoral area in which the election is taking place, has with him any offensive weapon otherwise than in pursuant of lawful authority, shall be guilty of an offence against this subsection and shall be liable on conviction to imprisonment with or without hard labour for any term not exceeding one year or

to a fine not exceeding two hundred dollars and in default of payment to imprisonment with or without hard labour for any term not exceeding twelve months.

(5)

For the purpose of this section, a person shall not be deemed to be acting in pursuance of lawful authority unless-

- If the offensive weapon involved be a firearm, he is acting in the capacity as a member of the Armed Forces of the Crown or as a Constable; or
- If the offensive involved be other than a firearm, he is acting in his capacity as a servant of the Crown or of any local authority or as a Constable or as a member of the fire brigade.

Section 30 (1)

Subject to the provisions of subsection(2) and (3), where any Constable has reasonable cause to suspect that any person has concealed about his person any offensive weapon contrary to the provisions of section 29 he may search such person and, if he considers it necessary, take such person to a police station for the purpose.

(2)

No article of a person's clothing shall be removed for the purposes of any search authorized by this section unless such person is first taken to a police station.

(3)

No female shall be searched by any other than a female.

(4)

Any person who resist or obstructs any search authorized by this section or who absconds before such search is concluded shall be guilty of an offence against this section and shall be liable on conviction thereof to imprisonment with or without hard labour for any term not exceeding twelve months.

Section 31

A constable may arrest without warrant any person reasonably suspected by him to committing or to have committed any offence against this act.

Section 32

Every offence against this part may, except where otherwise expressly provided, be tried either summarily before a Resident Magistrate or on indictment before a Circuit Court.

Section 33

Upon the trial of any person charged with having committed an offence against 27, section 28 or 29 it shall be necessary to set out in the information or indictment that the offence was committed at a political meeting, but if the Court is satisfied that it was so committed such finding shall be recorded in the judgement.

REPRESENTATION OF THE PEOPLE'S ACT

DEFINITION:

Designated Police Officer

In relation to any constituency, means the Officer of the Jamaica Constabulary Force designated by the Commissioner of Police.

NB:

Any member of the J.C.F., I.S.C.F., Rural Police, and any member of the J.D.F. who is lawfully on duty at a Polling Station.

Constituency

Means any area of Jamaica having separate representation in the House of Representatives

Election Officer

Means the Director of Elections (Chief Electoral Officer), every returning Officer, Assistant Returning Officer, Presiding Officer, Poll Clerk, Enumerator or other person having any duty to perform under this act.

Elector

Means any person whose name is for the time being on any official list of electors for the House of Representatives.

Subsection (4)

Nothing in this Act shall be construed as making it obligatory for any person to be registered under this act.

Section 5

Any person who attempts to register as an elector in any polling division more than once or for more than one polling division shall be guilty of an offence and upon summary conviction before a Resident Magistrate shall be liable to a fine not exceeding **(\$20,000.00)** or to imprisonment for term not exceeding two years.

Section 5 (2)

QUALIFICATION OF ELECTORS

- ✓ If his name appears on the official list of electors for any polling division
- ✓ If he has attained the age of eighteen years
- ✓ If he is a Commonwealth Citizen residing in Jamaica for at least one year (1)

Section 5 (3)

DISQUALIFICATION OF ELECTORS

No person shall be qualified to be registered as an elector to the House of Representatives who: -

- ✓ Is the Director of Elections
- ✓ Is certified to be insane or otherwise not adjudged to be of sound mind or detained as a Criminal, Lunatic; or
- ✓ Is under sentence of death imposed on him, by a Court in any part of the Commonwealth;
- ✓ is serving the sentence of imprisonment exceeding six months whether suspended or not or;
- ✓ Is disqualified for registration because he has been convicted of any offence connected with the election of Member of the House of Representatives or of any local purposes; or
- ✓ Is disqualified from voting because of his employment for pay or reward in connection with the election in the constituency in which such person would otherwise be entitled to vote.

Provided that at an election the person who is performing the functions of a returning officer in the constituency shall, whether registered as an elector or not, vote only where there is in that constituency an equality of votes on the final count of votes or on a recount, as in this act provided.

(4)

Nothing in this Act shall be construed as making it obligatory for any person to be registered under this Act.

(5)

Notwithstanding anything to the contrary no person shall be entitled to be registered as an elector for more than one polling station.

Section 6 A

The Director of Election shall establish in each constituency a center (in this act referred to as a registration center) for the purpose of the registration of voters so, however, that he may from time to time establish such other registration centers in a constituency as he considers necessary

SECTION 15 (1)

POWERS OF ENTRY AND POWER TO QUESTION PERSONS BY ENUMERATORS

Every enumerator may enter upon any premises in the polling division in which he is appointed and make enquiries necessary for obtaining information as to the persons registered or qualified to be registered as electors. No one under the age of sixteen (16) years of age should be asked.

Sub Section 2

No enumerator shall enter any premises.

- ✓ Except between 5:00 a.m. and 9:00 p.m. unless the occupier of such premises consents, otherwise that during such hours;
- ✓ At any time when he is not, wearing an enumerator's badge supplied to him Chief Electoral Officer

Sub Section 3

Where any enumerator enters upon any premises under this section, he may ask such questions of any person upon such premises who appears to him to be of the age of 16 years and over, as in his opinion may be necessary to enable him to obtain the information referred to in subsection 1

Section 15a (1)

If a person is enumerated as an elector and loses a thumb, other finger or hand, he shall report the fact of his loss in such manner as may be authorized by the Chief Electoral Officer, at a registration centre in his polling division or nearest to his place of residence.

Sub Section 2

Where an elector makes a report pursuant to subsection (1) at a registration centre, the returning officer for the constituency in which the elector is registered shall forward a copy of the report to the Chief Electoral Officer who shall appropriately record the information contained in the report.

SECTION 16 (1)

OBSTRUCTING ENUMERATOR

- ✓ Every person who obstructs any enumerator or scrutineer in the lawful exercise of his duties or
- ✓ Refuses to permit any enumerator or scrutineer to enter upon premises under Sec. 15
- ✓ Refuses to answer any question lawfully put to him by any enumerator

Shall be guilty of an offence on summary conviction before a Resident Magistrate shall be liable to a fine not exceeding five thousand dollars **(\$5,000.00)** or to be imprisoned with hard labour for a term not exceeding twelve months or to both such fine and imprisonment.

Sub Section 2

Every person who, in answer to any question lawfully put to him by an enumerator in accordance with his powers under section 15, makes any statement which he knows or has reasonable cause to believe to be false or does not believe to be true, shall be guilty of an offence and on summary conviction before a Resident Magistrate shall be liable to a fine not exceeding twenty thousand dollars **(\$20,000.00)** or to be imprisoned with hard labour for a term not exceeding three years or to both imprisonment and fine.

SECTION 21 (A)

The day on which the poll for taking the votes of the electors is to be held, in case a poll is necessary, shall not less than sixteen (16) days nor more than twenty three (23) days after the appointed as nominations day pursuant to subsection (1) of section 21

SECTION 23

At ten o'clock in the morning on nomination day the returning officer and the assistant returning officer shall both attend at the place specified in the election notice under section 22 as the place for the nomination of candidates and shall there remain until two o'clock in the afternoon of the same day for the purpose of receiving the nominations of such candidates as the electors desire to nominate. After two o'clock in the afternoon on nomination day no further nomination shall be made.

SECTION 32 (1)

SUPPLIES OF ELECTION MATERIAL

The returning Officer shall furnish to each presiding officer at least two clear days before polling day;

- ✓ A sufficient number of ballot papers for at least the numbers of electors of such presiding officer's polling station;
- ✓ A statement showing the numbers of ballot papers so supplied, with their serial numbers;
- ✓ The necessary material for electors to mark their ballots;
- ✓ At least three copies of printed directions in the form set out in the second schedule for the guidance of electors in voting;
- ✓ A copy or excerpts from this Act;
- ✓ The official list of electors for the use at his polling station;
- ✓ A ballot box
- ✓ A blank poll book
- ✓ The several oaths to be administered to electors;
- ✓ The necessary envelopes and such other forms and supplies as may be authorized or furnished by the Chief Electoral Officer;
- ✓ A record (by way of computer printout or otherwise) of the information contained in the particulars on the registration record card concerning every elector whose name is on the official list for use at that polling station; and
- ✓ The equipment referred to in section 37 (2).

SECTION 36 (1) (B) (1)

Election Court Sect

The Election Court is approved by the Chief Justice to deal with voiding it consists of:

- a. Three Judges of the Supreme
All three can sit to make a ruling or one of them can chair the group to also make a ruling on the voiding.

GROUND FOR VOIDING

- The total number of votes cast in the constituency or Electoral division exceeds the number of voters on the official list of electors.
- Ballot boxes were stolen, destroyed or tampered with.
- The Presiding Officer under duress signed Ballots and the number of ballots signed is sufficient to cast doubt on the majority of votes counted for the candidate declared Elected.
- Votes polled were not done by bona fide electors thereby, casting doubt on the integrity of the votes counted for the candidate elected.

- There is an upsurge of violence or any irregularities during Election day in one or more polling station, polling division or electoral division or constituency which would lead to substantial distortion or subversion of the process of fair and free election.

SECTION 37 & 38

VOTING INK

Prior to voting an elector is required to dip his finger nearest to the thumb into the ink. If this finger is missing provision is made to use another. If the elector fails to dip the appropriate finger it means that the person cannot vote. The presiding officer shall destroy the ballot paper and make an entry in the poll book.

Where the elector is suffering from injury to the appropriate digit, and there is bondage on same or other digit, it shall be removed on the request of the presiding officer. The elector may also be required to take an oath in the prescribed form, to the effect of the injury. The elector shall also make one or more impression in ink with his right thumb, left thumb if right one is missing, or other finger as the case may be. Every person who applies for a ballot with electoral ink on his finger is guilty of Personation.

SECTION 40

Where a person has no hand, the presiding officer will vote for that person in of agent, poll clerk. They all have to swear not to divulge how the person votes.

SECTION 41: (1)

WHO MAY BE PRESENT AT POLLING STATION

In addition to the (1) **Presiding Officer** and the (2) **Poll Clerk**, (3) **The candidates** and (4) **One agent for each candidate** (indoor agents) (5) **Observers** (6) **Messenger** (not runners for candidates) in each polling station, and, in the absence of agents, one elector to represent each candidate on the request of such elector, and no other, shall be permitted to remain in the polling station

Provided that no candidate and his agent shall be in the same polling station at the same time for more than five consecutive minutes

NB

A Candidate can replace his agent. No agent who leaves the polling station within the last hour of the last hour of the poll can return until the poll closes, however he can return for the counting.

Sub (2)

The agent of each candidate and, in the absence of an agent, any elector representing any candidate, on being admitted to the polling station, shall take an oath in the form set out in the second schedule to keep secret the name of the candidate for whom any of the voters has marked his ballot paper in his presence.

Sub (3)

Agents of candidates or elector representing candidates may, with the permission of the presiding officers, absent themselves from and return to the polling station at any time before one hour before the closing of the polls.

Amendment

The Director of Elections may, acting on the advice of the Committee permit **Observers** to enter any polling location for the purpose of observing any procedure and the voting process carried out at that polling location and the counting of votes after the poll has closed at such polling station.

The Observer shall in each polling location, act in accordance with the terms and conditions as are agreed to with the Director of Election and shall be subject to such directions as a presiding officer at that polling location may give.

No more than Four (4) Observers shall be permitted to remain in any polling location at any one time where polling is being carried out.

SECTION 41(A)

OUTDOOR AGENTS

Every candidate in an election may appoint such persons as he thinks fit to be outdoor agents and shall issue to any such outdoor agent appointed by him a certificate of appointment in the prescribed form specifying the polling station in respect of which the agent is appointed.

The candidate may substitute one outdoor agent for another with respect to any polling station. No more than one person at any one time shall be entitled to perform the functions of outdoor agent for any candidate at any one polling station and for the purpose of monitoring the extent of voter turnout on Election Day; the agent shall be stationed not less than **twenty (20)** metres from the polling station.

SECTION 44

HALTING OF THE TAKING OF THE POLL ON POLLING DAY

There shall be established, on the issuing of an election notice by the returning officer under section 22 (1), a body to be known as the Constituted Authority, which shall continue in force for a period of six months after the day referred to in sec. 22 (2) (b)

The authority shall have the power to halt the taking of the poll in any polling station, division or constituency on polling day.

The AUTHORITY MEMBERS SHALL BE:-

- Three selected members of the committee (E.A.C.) and;
- Two other persons appointed by the Governor- General after consultation with the Prime Minister and the Leader of the Opposition-
 - One of whom shall be a retired Judge;
 - One of whom shall be a member of the Privy Council

Where a retired judge is not available for appointment, another member of the Privy Council shall be appointed. The chairman shall be the retired Judge or the member of the Privy Council. The decision to halt the poll shall be a four –fifths majority of the members of the Constituted Authority.

Grounds for Halting the Taking of the Poll;

- Polling station did not open for the taking of the poll for the first five hours after the hour fixed for the opening of the poll; and
- The number of electors on the official list of electors of those polling stations constitutes at least twenty-five per cent of the electors in the constituency;
- The occurrence of any earthquake, flood, fire or other natural disaster which could substantially prevent the holding of fair election

When the Constituted Authority Halts the poll, it shall be retaken on such day within a period of twenty-eight days from the date on which the poll was halted or any reasonable time practicable to be deemed by the Authority.

SECTION 52

VOIDING OF THE POLL

When after the taking of the poll the Constituted Authority or a candidate is of the opinion that during the taking of the poll circumstances existed which could constitute grounds as specified in section 37 of the Election Petition Act the Constituted Authority may, on its own motion or at the request of the candidate, make an application under the seal of the Election Court to have the voiding of the poll so declared.

The Constituted Authority may, before making an application under subsection (1) on its own motion, request a returning officer to furnish it with such reports as are necessary to determine that an application ought to be made and the returning officer shall furnish the Constituted Authority with such reports.

A candidate who is desirous of having the Constituted Authority make an application on his behalf to the Election Court shall, within seven days of the taking of the poll, make such request and shall furnish the Constituted Authority with such evidence on which he relies so that the Constituted Authority may determine whether an application ought to be made.

Where the Constituted Authority makes an application to the Election Court, until the determination of the matter, the returning officer shall not act in any manner contrary to section 45 (7).

During the period from which the filing of an application is made to the Election Court to the determination of the application, a candidate declared elected under Sec 45 (7) shall, subject to sections 47, 48 and 49, be entitled to become a member.

A request by a candidate pursuant of subsection (1) shall be without prejudice to any right enjoyed by that candidate under section (3) (b) of the Election Petition Act.

Where the taking of the poll is declared Void by the Election Court under section 36 (1) (b) (1) of the Election Petition Act, the poll shall be taken on such day within a period of twenty-eight days from the date of the declaration or so soon after such period as the Constituted Authority may deem reasonably practicable.

SECTION 51

CUSTODY OF BALLOT BOXES

The Returning Officer shall cause the Ballot boxes used, with their locks and keys to be deposited in the custody of the Director of Election (Chief Electoral Officer) or such other person as he may direct who shall store the ballot boxes with their locks and keys at such place as the Chief Electoral Officer may deem appropriate.

SECTION 53

AGENTS OR SUB-AGENTS

Candidates may appoint agents on or before Nomination day by written notice or through the Returning Officer. Appointment can only be revoked by the candidate or by death. Candidates are held responsible for the acts of their agents. Sub-Agents are appointed by Agents giving notice to the Returning Officer not later than one clear day before the Poll. Illegal acts by Sub-Agents will be held the responsibility of Agents and thus the Candidates.

SECTION 55

Deleting the words “one hundred thousand dollars” and inserting “Three Million”

SECTION 71

USE OF MOTOR VEHICLES ETC

It is an offence to use barrow, hire or lend or employ a Motor Vehicle, animal drawn vehicle for the purpose of conveyance to or from the polls of electors. It is presumed until the contrary is proved that the vehicle etc. was used for the purpose of support or opposing the candidate of some individual was against some or others at the election.

Electors hiring a vehicle at the joint cost or an elector using his own vehicle to convey himself and members of his household commit no offence. For this purpose he may employ vehicle or borrow one from a member of the household. This does not cover use of estate vehicles to convey labourers unless the hire at their joint cost. Provisions of the Road Traffic Law apply at all times.

N.B. Electoral vehicles are exempted under this section but must comply with the Road Traffic Law.

SECTION 72 (1)

REGISTRATION OF ELECTORIAL VEHICLES

Between Nomination day and Election day and the 5th day next before election, any nominated candidate or the election agent of such candidate may require by notice in writing require the appropriate Police in charge of the Parish to **register as electoral vehicles one vehicle for each 500 electors whose name appear on final list of Electors.**

- ✓ Notice will specify the name of the candidate,
- ✓ The constituency for which he is a candidate,
- ✓ The total number of vehicles to be registered,
- ✓ The names and addresses of the owner of the vehicles and the type, make and registration number of each vehicle

Police Officer registers vehicles and issues electoral vehicle placards. These placards are affixed to the vehicle setting out registration number, names of candidate and constituency for which it is registered.

SECTION.73 & 74

RESTRICTION ON USER OF ELECTORAL VEHICLES

Electoral vehicles must have the electoral placards exhibited on it. They should not be outside the bounds of the constituency except they are actually transporting electors and on the most direct route between two points in the Constituency. ***If a person drives permits or causes to be driven, any electoral vehicle, or is or causes any other person to be a passenger in any vehicle in contravention of the above, commits an illegal hiring or practice.***

In the rural district of Kingston and St. Andrew, vehicles may go outside the constituency provided they are actually transporting voters from point to point in the constituency by the most direct route between points practicable to Motor Traffic.

SECTION 75 (3)

CONVEYANCE OF NON-VOTERS

Nothing in this section shall prevent the conveyance in to or within any constituency of:-

- ✓ Any Election Officer
- ✓ Any Candidate at any election taking place on that day anywhere in the Island; or
- ✓ Any election agent duly appointed by a candidate in such constituency or any sub-agent duly appointed by such agent; or gents or sub-Agents or;
- ✓ A person who has reasonable grounds to believe he is a registered voter in such constituency it is an offence to use any vehicle to convey into or within any constituency

Six (6) hours before opening of the Poll and one hour after the closing on polling day any person not registered as electors in such constituency for the purpose of supporting or opposing any candidate.

SECTION 76

POWER OF POLICE

The Police can stop any vehicle or animal drawn vehicle contravention of Sec. 71, 74, or 75 and question the driver or any passenger.

It does not matter if the vehicle stopped on his instructions. If as a result of his questions the police is not satisfied that no offence is committed and if the vehicle had more than seven (7) passengers including the driver, it shall be lawful to take the vehicle to the nearest police station to continue his investigation until he is satisfied that no breach is committed, or to keep the vehicle until one hour after the polls close.

Failure to drive the vehicle to the station or failure by the driver or passenger to answer questions constitutes an offence.

Penalty – ***a fine not less than five thousand (\$5000.00) not more than twenty thousand (\$20,000.00). A fine of forty thousand (\$40,000.00)***

SECTION 77

ORDER AT POLLING STATION

When the poll is open no person shall congregate or have in his possession any weapon or noxious substance which is capable of inflicting or causing injury within one hundred (100) metres of any premises housing a Polling Station (Constable on duty to measure distance before opening of the Poll).

Sub section (2)

This section shall not apply -

- ✓ To electors waiting to poll their votes at such polling station and who obey any instructions which may be given by the presiding officer or any Constable for the purpose of forming a queue with other electors also so waiting; or
- ✓ To any person who may under the provisions of this Act lawfully enter or remain in such polling station;
- ✓ To any outdoor agent lawfully appointed and acting in conformity with section 41a;

- ✓ To any member of the Jamaica Constabulary Force, Island Special Constabulary Force, Rural Police or Jamaica Defence Force who is lawfully at a polling station in the execution of his duty.

Sub section (3)

Every person who contravenes or fails to comply with the provisions of this section shall be guilty of an offence against this section and shall be liable on summary before a Resident Magistrate-

- ✓ In the case of the person who assembles or congregates, to a fine not less than five thousand dollars **(\$500.00)** nor more than twenty thousand **(\$20,000.00)** or to imprisonment with or without hard labour not exceeding six months or to both fine and imprisonment or
- ✓ In the case of a person who has in his possession a weapon or noxious substance, to a fine not less than twenty thousand dollars **(\$20,000.00)** nor more than eighty thousand dollars **(\$80,000.00)** or to imprisonment for a term not less than two years nor more than five years or both fine and imprisonment.

Constables may require voters to form a queue. Failure to do so constitutes an offence.

SECTION 77a

Where at a polling station a presiding officer requests the assistance of a member of the Jamaica Constabulary Force, the Island Special Constabulary, the Rural Police, or the Jamaica Defence Force who is lawfully at that polling station in the execution of his duty and the member willfully fails to give such assistance, that member shall be guilty of an offence and shall be liable on summary conviction before a Resident Magistrate to a fine not exceeding thirty thousand **(\$30,000.00)** dollars or three years imprisonment.

The Magistrate may in addition to such fine or imprisonment, so order that the member be disqualified from carrying out any duties at any polling station and from being employed in any position of election officer for a period of at least seven (7) years from the date of conviction.

NB: No proceeding can commence under section one (1) without the consent of the DPP.

SECTION 78

INFLUENCE VOTERS

It is an offence to seek to influence any voter to vote for any candidate or to ascertain for which candidate an elector intends to vote or has voted for, within 100 metres of any premises housing a polling station.

Sub section 1a

No person who is a member of the Jamaica Constabulary Force, the Island Special Constabulary Force, the Rural Police or the Jamaica Defence Force shall, while acting in the execution of his duty during an election, seek to influence any elector to vote for any candidate in any manner seek to improperly influence the outcome of any election.

Sub section (2)

Every person who contravenes the provision of section (1) shall be guilty of an offence and shall be liable on summary conviction before a Resident Magistrate to a fine not less than ten thousand dollars **(\$10,000.00)** or a term not exceeding **12 twelve** months imprisonment.

Penalty – Fine not less than **\$50,000.00** nor more than **\$200,000.00** or to imprisonment for a term not exceeding **5 years** or both fine and imprisonment.

Sub section (3)

Any person who contravenes the provisions of subsection (1a) shall be guilty of an offence and shall be liable on summary conviction before a Resident Magistrate to a fine not less than fifty thousand **(\$50,000.00)** dollars nor more than two hundred thousand **(\$200,000.00)** dollars or to imprisonment for a term not exceeding five years or to both such fine and imprisonment.

SECTION 79

CORRUPT WITHDRAWAL OF A CANDIDATE

Any person who corruptly induce or procure any other person to withdraw from being a candidate, at an election, in consideration of any payment, or promise of payment shall be guilty of illegal payment, and any

person withdrawing, in pursuance of such inducement or procurement shall also be guilty of illegal payment.

SECTION 81 (1)

MEETING

No person shall, during an election call together, hold or address any election meeting in any public place-

- ✓ Unless notice of intention to do so has been given not less than eight hours before the commencement thereof to the Officer or Sub-Officer of Police in charge of the parish in which that place is situated or to the Sub-Officer of Police in charge of the Police Station nearest to that place; or

- ✓ Within twenty four (24) hours of the time fixed for the opening of the poll on Election Day.

Penalty: Not less than \$10,000.00 and not more than \$40,000.00

Sub section 2

Every notice under subsection (1) shall specify

- ✓ The person in support of whose candidature the meeting is to be held;
- ✓ The place and approximate time at which such meeting is to commence

Sub section (3)

Every person who contravenes the provisions of subsection (1) shall be guilty of an offence against this section and shall be liable on summary conviction before a Resident Magistrate to a fine not less than ten thousand (\$10,000.00) dollars nor more than forty thousand (\$40,000.00) dollars.

SECTION 82

BILLS AND PLACARDS

Every bill, placard or poster having reference to an election shall bear upon the face thereof the name and address of the printer or publisher thereof; and any person printing, publishing, or posting or causing to be printed, published or posted, any such bill, placard or poster, as aforesaid which fails to bear upon the face thereof the name and address of the printer and publisher shall be liable on conviction before a Resident Magistrate to a fine not less than ten thousand (\$10,000.00) nor more than twenty thousand (\$20,000.00) dollars.

SECTION 84 (1)

SPIRIT LICENCE PREMISES

The holder of a town retail licence or a village retail licence or a tavern licence, granted under the Spirit Licence Act, shall cause the licensed premises to be closed to the public on election day during the period beginning one hour before the appointed hour opening of the poll and ending six hours after the closing of the poll.

Sub section 2

The holder of a wholesale licence or a town off licence or a hotel licence or a special hotel licence or a club licence, granted under the Spirit Licence Act, shall not sell or cause to be sold any alcoholic liquor on election day during the period beginning one hour before the hour appointed for the opening of the poll and ending six hours after the closing of the poll.

Sub section 3

Any person who contravenes the provisions of this section shall be guilty of an offence and shall be liable on summary conviction before a Resident Magistrate to a fine not less than five thousand (\$5,000.00) dollars nor more than twenty thousand (\$20,000.00) dollars.

SECTION 91

BRIBERY AND TREATING

It is an offence:-

- For every person directly or indirectly, gives, lends, or agrees to give or lend, or offers, promises, to procure, any money or valuable consideration or in any manner induces any person to get any person to vote or refrain from voting, or corruptly does any act as aforesaid on account of such voter having voted or refrained from voting or;

- For every person directly or indirectly, gives or procures, or agrees to give or procure, or offers, promises, or promises to procure any office, place of employment to or for any voter to vote or refrain from voting, or corruptly does any act as aforesaid on account of any voter having voted or refrained from voting or;
- For every person directly or indirectly, makes any gift, loan, offer, promise, procurement or agreement as aforesaid to or for any person, in order to induce or endeavour to procure the return of any Member of the House of Representative.
- For any person who, upon the consequences of any such gift, loan, offer, promises, procurement or agreement, promises or endeavour to procure the return of any person as an elected member of the House of Representative; or
- For any person advance or pays or cause to be paid any money to or for the use of other person with the intent that such money or part thereof shall be extended in bribery at any election, or who knowingly pays or causes to be paid any money for this purpose; or
- For every person to receive before or during election any gift, money, loan, valuable consideration, place or employment for voting or refraining from voting, or inducing anyone to do likewise commits an offence;
- For any person after an election, directly or indirectly, by himself or by any other person on his behalf, receives any money or valuable consideration on account of any other person having voted or refrained from voting, or having induced any other person from voting, at any election having voted or refrain from voting, commits an offence.

Sub section 2 TREATING

Every person who corruptly, by himself or by any person either before, during or after an election gives or receives directly or indirectly any food, drink, entertainment or provision for purpose of influencing that or any other person to vote or refrain from voting is guilty of treating.

SECTION 92 UNDUE INFLUENCE

Every person who directly or indirectly by himself or by any other person on his behalf makes use of, or threatens to make use of, any force, violence, restraint, or the threat of any temporal or spiritual injury, damage or loss or harm to induce any abduction, duress or the use of a fraudulent contrivance to impede or prevent the free exercise of the franchise is an offence.

NOTE: Unless the offence committed is sight, proceed by summons.

SECTION 93 PERSONATION

Every person who at an election applies for ballot paper in the name of another person, whether that name be the name of a living or dead or of fictitious person, or who having voted once at any election at the same election for a ballot paper in his own name, shall be guilty of personation within the meaning of this Act.

Aiding, counselling, abetting, or procuring the commission of personation is also a felony.

N.B. COMMON LAW POWER TO ARREST.

SECTION 97 ILLEGAL PRACTICE

Every person who -

- Votes, or induces or procure any person to vote, at any election, knowing that he or such other person is prohibited by this Act, or by any other enactment, from voting at such election;
- Before or during the election knowingly publishes a false statement of the withdrawal of a candidate at such election for the purpose of promoting or procuring the election of another candidate;

- Before or during any election, for the purpose of affecting the return of any candidate or prospective candidate at such election, make or publishes any false statement of fact in relation to the personal character or conduct of such candidate or prospective candidate

Shall be guilty of an illegal practice, and shall be liable on summary conviction before a Resident Magistrate to a fine not less than fifty **(\$50,000.00)** dollars nor more than two hundred **(\$200,000.00)** dollars, and in default of payment to imprisonment with or without hard labour for term not less than three years.

MISDEMEANOURS SEC. 98 (1)

Every person who-

- Defaces or destroy, any ballot paper or the official mark on any ballot paper; or
- Without due authority supplies a ballot paper to any person; or
- Fraudulently puts into any ballot box any paper other than the ballot paper which he is authorized by law to put in; or
- Fraudulently takes out of the polling station any ballot paper,
- Destroy, takes, open or interferes with any ballot box or packet or ballot papers without authority.

Shall be guilty of a misdemeanour, and be liable on summary conviction before a Resident Magistrate to a fine not less than twenty thousand **(\$20,000.00)** dollars nor more than eighty thousand **(\$80,000.00)** or to imprisonment with hard labour for tem not less than three years.

SECRECY SECTION 99

Every officer, clerk or agent in attendance at a polling station shall maintain and aid in maintaining the secrecy of the voting in such station, and shall not communicate, except for some purpose authorized by law, before the poll is closed, to any person any information as to the name or number on the register of voters or any voter who has or has not applied for a ballot paper or voted at that station; and no person whosoever shall interfere with or otherwise attempt to obtain in the polling station any information as to the candidate for whom any voter in such station is about to vote or has voted, or as to the member of ballot paper is given to any voter at such station. shall maintain the secrecy of voting including the name and number of persons who have not voted. Display of ballot paper after making is prohibited and there is to be no interference with a voter when making his vote.

Sub section 2

Every officer, clerk and agent, in attendance at the counting of the voters shall maintain and aid in maintaining the secrecy of the voting and shall not attempt to ascertain at such counting the number or nay ballot paper or communicate any information obtained at such counting as to the candidate for whom ay vote is given in any particular ballot paper.

Sub section 3

No person, directly or indirectly shall, induce or any voter to display his ballot paper, after he has marked it, to make known to any person the name of the candidate for or against whom he has so marked his vote.

Sub section 4

Every person who acts in contravention of the provision of this section shall be liable on summary conviction before a Resident Magistrate to a fine not less than twenty thousand **(\$20,000.00)** nor more than eight thousand **(\$80,000.00)** or to imprisonment for a term not less than three years nor more than five years; and the Resident Magistrate may, in addition to such fine or imprisonment, order that the person be disqualified from holding any post of election officer for a period not less than seven years for the date of conviction.

RETURNING AND PRESIDING OFFICERS SECTION 102

Every returning officer or presiding officer who-

- Canvasses for votes on behalf of any candidate or political party; or
- Addresses any meeting on behalf of any candidate or political party; or

- In any way actively associates himself with the election campaign of any candidate or political party

Shall be guilty of an offence against this section and on summary conviction before a Resident Magistrate to a fine not less than twenty thousand **(\$20,000.00)** nor more than eight thousand **(\$80,000.00)** or to imprisonment for a term not less than three years nor more than five years; and the Resident Magistrate may, in addition to such fine or imprisonment, order that the person be disqualified from holding any post of election officer for a period not less than seven years for the date of conviction.

Note: It is the duty of every sub-officer and constable to see that any offence promptly dealt with.

Processions of bicycles are offences under the Public Order Act and to be so dealt with.

GENERAL:

POWERS OF ARREST: For Personation, aiding, abetting, etc

THE OFFENCE - Felonies - Common Law, Power, other offences - Section 18 of Chapter 72 upon personal knowledge of the offence,

OFFENSIVE WEAPON: Possession of - Public Order Act.

REPRESENTATION OF THE PEOPLE

FORM NO. 20 (Section 44 (10))

THE REPRESENTATION OF THE PEOPLE ACT
Oath of Messenger sent to collect Ballot Boxes or any Custodian of Ballot Boxes

I.....messenger appointed by
.....returning officer for the
constituency of.....do swear (or solemnly affirm) that the
several boxes to the number of.....which were used at
polling stations Nos.....of this constituency on polling
day now delivered by me towere
handed to me by....., that they have not
been opened by me or any other person and that they are in the same
state as they were in when they came into my possession.

.....
Signature

Sworn (or affirmed) before me at.....this.....
day of.....19...

.....
Returning Officer
(or as the case may be)

FORM NO. 20A (Section 45 (1A))

THE REPRESENTATION OF THE PEOPLE ACT

Notice of Appointment of a Candidate's Agent to act as an Observer

Constituency of.....
To the Returning Officer.....
For the pending election I have appointed.....
to act as an observer for the purposes specified in section 45 (1A) of
the Representation of the People Act on the dates and during the
periods specified below:

.....
.....
.....
.....

Dated at.....this.....day of19.....

.....
Candidate

L.N.
4/1989.

FORM NO. 20B (Section 45 (1B))

THE REPRESENTATION OF THE PEOPLE ACT

*Certificate by Returning Officer of Appointment of Candidate's
Agent to act as an Observer*

To:

THIS IS TO CERTIFY that pursuant to a notice issued by.....

.....

candidate for the election in the constituency of.....
you have been appointed as agent of the said candidate to act as an
observer for the purposes specified in section 45 (1A) of the Representa-
tion of the People Act on the dates and at the times set out below:

.....

.....

.....

.....

Dated atthis.....day of.....19.....

.....

*Returning Officer for the
Constituency of*

This certificate must be produced to the Returning Officer on request.

FORM No. 25

(Section 67 (2))

THE REPRESENTATION OF THE PEOPLE ACT

Oath of a Presiding Officer

I....., the undersigned appointed presiding officer for polling station No..... of the constituency of....., swear (or solemnly affirm) that I will act faithfully in my said capacity of Presiding Officer, according to law, without partiality, fear, favour or affection, and that I will keep secret the names of the candidates for whom any of the voters in the above-mentioned polling station marks his ballot paper in my presence at this election.

SO HELP ME GOD

.....
Presiding Officer

Sworn before me at.....
this.....day of....., 19.....

.....
Returning Officer (or as the case may be)

FORM No. 26

(Section 68 (2))

THE REPRESENTATION OF THE PEOPLE ACT

Oath of a Poll Clerk

I....., the undersigned, appointed as Poll Clerk for polling station No.....of the constituency of.....swear (or solemnly affirm) that I will act faithfully in my capacity of Poll Clerk and also in that of Presiding Officer if required to act as such, according to law, without partiality, fear, favour or affection, and that I will keep secret the names of the candidates for whom any of the voters in the above-mentioned polling station marks his ballot paper in my presence at this election.

SO HELP ME GOD

.....
Poll Clerk

Sworn (or affirmed) before me at.....
this.....day of....., 19.....

.....
Presiding Officer (or as the case may be)

OFFENSIVE WEAPONS (PROHIBITION) ACT 2001

Jamaica has been plagued with the habit of persons carrying weapons in public places. This habit has contributed to serious injuries and death to a large number of persons over time. This Act seeks to regulate the carrying of offensive weapons in public places.

Section 2 (1)

Definitions

Offensive Weapon Means

- Any articles made or adopted for use for causing injury to the person or which is intended by the person having such article with him to cause such injury
- Any dagger or
- Any sword stick, ballistic knife, butterfly knife, flick knife, knuckleduster, knuckle knife or any knife which is commonly known as switchblade, ratchet knife or Rambo knife as the Minister may prescribe by order subject to affirmative resolution.

Public Place includes –

Every highway, road or other passageway, court, parade, wharf, school premises, public garden, open place used for the purpose of sports and games; and

Any other place or premises to which, at the material time, the public has access, whether on payment or otherwise.

Ballistic Knives

Means as a device or instrument designed or adapted to fire or discharge a knife, dagger or similar instrument by mechanical, percussive or explosive means.

Butterfly Knives

Means a knife with a two piece handle which folds together to cover edges of the blade (where the blade is not serrated and exceeds seven centimeters in length).

Dagger

Means a sharp pointed stabbing instrument, ordinarily capable of being concealed on the person and having –

- A flat blade, exceeding eight centimeters in the length, with cutting edges (whether or not serrated) along the length of both sides).
- A needle-like blade, the cross-section of which is elliptical or has three or more sides.

But does not include instruments such as swords or bayonets.

Flick Knives

Means a knife designed or adapted so that the blade is concealed when folded or recessed into the handle and which opens by gravity or centrifugal force or by any pressure applied to a button, spring or device in or attached to the handle of the knife.

Knuckleduster

Means a device or instrument designed or adapted to be worn across a knuckles of the hand, finger, fingers or thumb so as to –

- Increase the force or impact of a punch or blow when striking another with that hand, finger, fingers or thumb; or
- Protect the knuckle or knuckles from injury when striking another with the hand, finger, fingers or thumb.

Sword stick

Means a cane, stick or similar article designed or adapted to hold the blade of a sword so that it is concealed from view until withdrawn from the cane, stick or article.

1 (2) Paragraph (a) of the definition of “offensive weapon” in subsection (1) does not include any of the following substances that a person has with him for personal protection, namely---

- Mace or pepper spray;
- Such other substance as the Minister may prescribe by order subject to affirmative resolution.

Section 3 (1) **OFFENCES**

Carrying an Offensive Weapon in a Public Place –

3 (1)

A person shall not, without lawful authority or reasonable excuse, knowingly have with him in public place any offensive weapon falling within paragraph (a) or (b) of the definition of “offensive weapon”.

3 (2)

A person shall not knowingly have in his possession in any public place, any offensive weapon falling within paragraph (c) of the definition of “offensive weapons”.

3 (3)

A person who contravenes subsection (1) or (2) commits an offence and is liable on summary conviction before a Resident Magistrate to a fine not exceeding four thousand dollars and in default of payment to imprisonment for a term not exceeding four months.

3 (4)

It shall be a defence for a person charged with an offence under subsection (1) to prove that he had the article with him for the purposes of any unlawful sport or the person’s lawful trade, business or occupation.

3 (5)

A constable shall –

- Seize any offensive weapon referred to subsection (2) which is found in the possession of any person in contravention of the subsection;
- Seize any other offensive weapon in respect of which he has reasonable cause to believe an offence has been committed under this section,

And that weapon shall be detained by the constable until such time as any legal proceedings in respect of the offence are finally disposed of.

3 (6)

Where any person is convicted of an offence under subsection (1) or (2) the court may under the application of the prosecution make an order for the forfeiture of any offensive weapon used in the commission of the offence.

3 (7)

A conviction under this section shall not form part of the criminal record of the person convicted.

Section 4 (1) **PROCEDURE UPON FORFEITURE OF OFFENSIVE WEAPON**

Where the prosecution proposes to apply for forfeiture of any offensive weapon under section 3 (6), notice of such intention and of the grounds thereof shall be given forthwith to any person who, to the knowledge of the prosecution, is the owner thereof:

Provided that notice shall not be required to be given under this section if the seizure was made in the presence of the owner of the offensive weapon seized.

4 (2)

Without prejudice to any other form of service, notification may, for the purpose of subsection (1), be made by two publications in a daily newspaper printed and circulated in Jamaica, the second of which publication being not later than three days after the first.

4 (3)

Any person having a claim to any offensive weapon in respect of which an application for forfeiture is made pursuant to section 3 (6) may appear before the court on the hearing of the application and show cause why an order for forfeiture should not be made.

4 (4) Where, on hearing of an application pursuant to section 3 (6) for forfeiture of any offensive weapon, no person appears before the Court to show why an order for forfeiture should not be made, the Court shall presume that such weapon has been abandoned.

4 (5)

If, upon the application of any person aggrieved by an order made by the Court under section 3 (6), the Court may revoke that order upon such terms and conditions as it deems appropriate, and, without prejudice to the generality of the foregoing, shall require the person to pay in respect of storage, maintenance, administrative expenses, security and insurance of the offensive weapon, such charges as shall be approved by the Court.

4 (6)

Application to the Court under subsection (5) for the revocation of an order shall be made within thirty days of the date of the order or within such greater time, not exceeding three months after the date of the order, as the Court may allow.

Section 5 (1) POWER TO SEARCH AND ARREST WITHOUT WARRANT

A constable may, in any public place, upon showing his proper identification as a constable, search without a warrant –

- Any person whom he has reasonable cause to believe to be in possession of any offensive weapon in contravention of section 3 or anything carried by such person;
- Any vehicle, its driver any passenger if he has reasonable cause to suspect that an offensive weapon is to be found in any such vehicle or on such driver or passenger in contravention of section 3.

5 (2)

If, in the course of any search carried out pursuant to subsection (1), an offence under section 3 appears to have been committed ----

- The constable shall give seize any offensive weapon found in course of such search;
- The person shall give his true name and address to the constable when requested to do so;
- If the person fails to give name and address the constable may, without a warrant, arrest that person.

**Section 6
REGULATION**

The Minister may make regulations generally for giving effect to the provisions of this Act and all such regulations shall be subject to affirmative resolution.

THE DOMESTIC VIOLENCE ACT

INTRODUCTION

This Act is to provide remedies for domestic violence, and for the protection of the victim through speedy and effective relief and for matters connected. Jamaica has been plagued with incidents of Domestic violence for the longest while. The enforcement of this Act will certainly reduce these incidents. It is imperative that as police officers we are conversant with this Act. This will enable us to effectively the person who contravenes this Act to justice.

DEFINITIONS:

Section 2

APPLICANT

Means any person who applies or on whose behalf application is made pursuant to this Act, for an order.

CHILD

- means a child of both spouses who resides, in or immediately preceding the application was residing, in the household residence;
- a child of either spouse who resides, or immediately preceding the date of the application was residing, in the household residence and who is or was, living in the household as a child of the family;
- a child whether or not a child of both spouses or either of them
- who has been a member of the household; or
- who resides in the household on a regular basis; or
- Of whom either spouse is the guardian.

COURT

Means the Resident Magistrate's Court of the Family Court.

DEPENDENT

Includes a member of the family of a respondent being a person who is eighteen years or over and normally reside or resides on a regular basis, with the respondent.

“EX PARTE” APPLICATION

Means an application made without notice to the respondent.

HOUSEHOLD RESIDENCE

- in relation to both spouses, the dwelling --- house that is used by both parties or either of them as the only or principal family residence together with any land building or improvement appurtenant thereto and wholly or mainly used for the purpose of the household.
- In the relation to a man or a woman who have ceased to be spouses, the dwelling house that was used by either of them, before or immediately after they ceased to be spouses, as to only or principal family residence together with any land, building, or improvement appurtenant thereto and used wholly or mainly for the purpose of the household.

OCCUPATION ORDER

Means an order made in pursuant to section 7 and includes an interim order under section 8

PRERESCRIBED PERSON

Means the spouse, a parent, a child or dependent of the respondent

PROTECTION ORDER

Means an order made pursuant to section 4 and includes an order made under that section.

RESPONDENT

Means a person who is named in an application made pursuant to this Act

SPOUSE – includes;

- A woman who cohabits with a man as if she were in Law her wife;
- A man who cohabits with a woman as if were in Law her husband;
- A former spouse.

SECTION 3**APPLICATION FOR ORDERS**

Subsection (1) The Court may, on application, grant a protection order or occupation order in accordance with this Act.

Subsection (2)**PERSONS WHO MAY MAKE APPLICATION FOR AN ORDER**

- Spouse or parent in respect of whom the alleged conduct has been, or is likely to be engaged in by the respondent;
- Where the alleged conduct is used or threatened against child or dependent –
- A person with whom the child or dependent normally resides on a regular basis;
- A parent or guardian of the child or dependent;
- A dependent who is not mentally disabled;
- A person who is approved by the Minister responsible for social welfare to carry out social work;
- A constable

Section 4(1)**PROTECTION ORDER)**

Application may be made to the Court for a protection order to prohibit the respondent –

- From entering or remaining in the household residence of any prescribed person; or
- From entering or remaining in any area specified in the order being an area in which the household residence of the prescribed person is located; or
- From entering the place of work or education of any prescribed person; or
- From entering or remaining in any particular; or
- From molesting a prescribed person by –
- Watching or besetting the household residence, or place of work or education of a prescribed person;
- Following or waylaying the prescribed person in any place;
- Making persistent telephone calls to the prescribed person; or
- Using abusive language to or behaving towards a prescribed person in any other manner which is of such nature and degree as to cause annoyance to; or result in ill- treatment of the prescribed person.

Subsection (2)

On hearing the application under subsection (1) the Court may make a protection order if it is satisfied that –

- The respondent has used or threatened to use, violence against, or caused physical or mental injury to a prescribed person and is likely to do so again; or
- Having regard to all circumstances, the order is necessary for the protection of a prescribed person.

Subsection (3)

A protection order may be made on an ex parte application if the Court is satisfied that the delay that would be caused by proceeding on motion would or might result in-

- A risk to the personal safety of a prescribed person; or
- Serious or undue hardship,

Any protection order made on an ex parte application shall be an interim order.

Subsection (4)

Where the protection is granted it shall be served personally on the respondent who may apply immediately for it to be discharged.

SECTION 5

BREACH OF PROTECTION ORDER

Where the order is interim or otherwise and it is served personally on the respondent, if it is contravened, the respondent commits an offence and is liable on conviction to a fine not exceeding ten thousand dollars or to imprisonment for a term not exceeding six months or both fine and imprisonment.

Subsection 2

POWER OF ARREST

Subject to the provision of this section, where a protection order is in force, A constable may arrest without warrant a person whom he has reasonable cause to suspect of having committed a breach of the order.

Subsection (3)

No person shall be arrested unless the Constable believes that the arrest of that person is reasonably for the protection of the prescribed person.

Subsection (4)

For the purpose of Subsections (2) and (3), the Constable shall take into account –

- The seriousness of the act which constituted the breach
- The time that has elapsed since the alleged breach; and
- The restraining effect of other persons or circumstances on the respondent

Subsection (5)

Where an arrest is made, the person arrested shall be entitled to a telephone call, this should be told to the person at his time of arrest.

The accused shall be brought before the Court within forty-eight hours beginning at the time of his arrest.

Section 6 (1)

A party to the proceedings may apply to the Court for a discharge of a protection order.

Subsection (2)

All parties to the proceedings shall be served with personally with a copy of the application to have the protection order discharged.

Section 7 (1)

OCCUPATION ORDER

An application may be made to the Court by or on behalf of a prescribed person for an occupation order granting the right to live in the household.

Subsection (2)

The period or periods, and on such terms and conditions are determined by the Court in relation to the occupation order.

Subsection (3)

The Court may make an order under subsection (2) if the Court is satisfied that such an order –

- Is necessary for the protection of the prescribed person; or
- Would be in the best interest of the child.

Section 8 (1)

An occupation order may be made on an ex parte application if the Court is satisfied that –

- The respondent used violence against or caused physical or mental injury to a prescribed person; and
- The delay would be caused by proceeding on motion could or might expose the prescribed person to physical injury.

N.B. The application shall be served personally on the respondent.

SECTION 9

EFFECT OF OCCUPATION ORDER

Where an occupation order is made the prescribed person to whom it relates shall be entitled, to the exclusion of the respondent, personally to occupy the household residence to which the order relates.

SECTION 10

VARIATION OF ORDER

The Court may, if it thinks fit, on the application of either party, vary the order by reducing the period, or change the terms and conditions.

SECTION 11

PROCEDURE RELATING TO ORDER

Before making the occupation order the Court shall direct that notice is given to any person having an interest in the property which would be affected by the order.

The person so noticed shall be entitled to appear and be heard in the matter of the application for the occupation order.

SECTION 12 (1)

POWER OF COURT TO MAKE ANCILARY ORDER

After making an occupation order, the Court may make order granting to the applicant

The use of any –

- The furniture;
- Household appliances ;and
- Household effects

In the household residence to which the occupation order relates for such period and subject to such terms and conditions as it may think fit.

SECTION 14 (1)

CONDUCT OF PROCEEDINGS

No person shall be present during the hearing of any proceedings under this Act unless such proceedings are criminal proceedings or the person is –

- A officer of the Court;

- a party to the proceedings;
- the attorney-at-Law for a party to the proceedings;
- a witness; or
- Any person permitted by the Judge to be present.

Subsection (2)

Any witness shall leave the courtroom if asked to do so by the Judge.

SECTION 16 (1)

RESTRICTION OF PUBLICATION OF PROCEEDINGS

No person shall any report of any proceedings under this Act unless he is first granted leave of the Court which heard the proceedings.

Subsection (2)

Every person who contravenes subsection (1) commits an offence and is liable on summary conviction to a fine not exceeding twenty-five thousand dollars.

Subsection (4)

This section shall not apply to the publication of any report in any publication that –

- Is a bona fide professional or technical nature; or
- Is tended for circulation among members of the legal or medical professions, officers of the public Service, psychologists, marriage counselors or social welfare workers.

SECTION 18

COUNSELLING

The Court may, on making an order under this Act, recommend that either or both parties participate in counseling of such nature as the Court may specify.

THE NATIONAL SOLID WASTE MANAGEMENT ACT 2001

This act provide for the regulation and management of solid waste. It also establishes a body to be called the National Solid Waste Authority to deal with matters connected to solid waste.

Jamaica has been having a very serious problem in effectively dealing with the proper management and disposal of solid waste. The enforcement of this Act will provide a medium through which the problem should be minimized drastically.

DEFINITIONS

Sec 2 (1)
In this Act-

“Authority”

Means the National Solid Waste Management Authority established under section 3;

“Authorized officer” means-

- any person appointed as a traffic warder under section 117 (1) of the Road Traffic Act;
- any person appointed as an authorized officer under the National Resources Conservation (Marine Parks) Regulations, 1992 or the National Resources (National Parks) Regulations, 1993 or any person duly authorizes by the Minister or by the Authority under section 20 of the National Resources Conservation Authority Act;
- a public health officer;
- any member of the Jamaica Constabulary Force or Island Special Constabulary Force;
- a person designated as an authorized officer by the Authority under section 4 (2) (k);
- an inspector,

And any person acting in aid of such person acting in the execution of his office or duty shall be deemed to be an officer acting in the execution of his duty;

“Container”

Means a respectable or portable device in which solid waste is stored, transported, treated, disposed of or otherwise handled;

“Disposal facilities”

Include motor vehicles, containers and equipment used for the management of solid waste, transfer stations, sanitary and other land fills, composting sites, recycling plants, sites and depots, dumps, and other solid waste disposal operations and sites;

“Hazardous waste” means-

Waste which, because of its chemical or other property, may cause, promote or result, directly or indirectly, in –

- Hazard or harm to human health or create a nuisance;
- Hazard to the natural living condition of plants and animals;
- Pollution of land, water, the atmosphere of the environment;
- Fire or explosion;
- Excessive sound or noise;
- The appearance and mutilation of harmful animals or plants
- The encouragement of pathogens;
- Disturbance of public order and safety

(a) such other waste as the Minister may, by order, declare to be hazardous

“litter” means solid waste in any public place and include any refuse, rubbish, bottles, glass, debris, dirt, rubble, ballast, stones, noxious, or contained substance or waste matter or any other matter likely to deface, make untidy, obstruct or cause a nuisance in a public place;

“Local authority” means-

- In relations to the parish of Kingston and St. Andrew, the Council of the St, Andrew Corporation, and
- In relation to any other parish, the Parish Council of that parish;

“Operating certificate” means a certificate issued by the Authority signifying that-

- A solid waste disposal facility;
- A provider of solid waste collection or transfer services; or
- A provider of other solid waste management services,

is licensed under this Act;

“Packaging”

Means the container in which usable goods are supplied;

“Poster”

Includes any notice, bill, graffiti and other similar publication;

“Public place” includes-

- every public highway, street, road, square, court, alley, lane, bridle way, foot way, parade, wharf, jetty, quay, bridge, side walk, verge;
- any public garden, park or opening space, theatre, stadium, place of public entertainment of any kind, or other place of general resort to which the public have or are permitted to have access with or without payment;
- any beach or foreshore or bank of any river or stream or the margin of any lake, pond, lagoon or any gully, to which the public have access with or without payment;
- any open space to which the public have access as a right without payment;
- such other place through which the public has access, as may be prescribed;

“Receptacle”

Means any container or vessel provided or approved by the Authority for the deposit therein of solid waste;

“Recycling”

Includes composting and any process by which material that would other wise become solid waste would be collected, separated, or processed and reused or returned to use in the form of raw materials or products but does not include energy or fuel production;

“Reuse”

Means the use of waste materials or product in the same or similar application without changing their identity;

“Sanitary land lifts”

Means a land disposal site employing an engineered method of solid waste disposal in a manner that minimizes environmental hazards and meet any prescribed design and operation standards;

“Solid waste” includes medical and hazardous waste and-

- refuse or sludge from a waste treatment facility, water supply plant, air pollution control facility and garbage;
- solid, semi-solid or contained gaseous or liquid matter resulting from industrial, commercial, mining, or agricultural operations or domestic activities; and

- any contained substance or object which is or is intended to be, or required by law to be, disposed of;

But does not include-

- animal manure and absorbent bedding used for soil enrichment;
- suspended solid or dissolved material in sewage; and
- industrial discharges from pipe lines conveying such waste;

“Solid waste management” includes-

- the systematic control of the generation, collection, separation, storage, recycling, transportation, transfer, treatment and disposal of solid waste; and
- the characterization and measurement of waste;

“Storage”

Means the containment of waste, on a temporary or permanent basis, so as not to constitute its disposal;

“Transfer”

Means to carry, remove, transport, or shift solid waste from one place, disposal facility or container to another;

“Transfer station”

Means a facility where solid waste is collected, aggregated, sorted, or processed for the purpose of subsequent transfer to another facility for further processing, treatment, transfer or disposal;

“Vehicle”

Means any motor vehicle, cart, dray, push cart, wagon, and any other vehicle of like nature.

Sec 2 (2)

For the purpose of carrying out its duties in relation to this Act, every authorized officer shall have the same the privileges and immunities as a constable;

Establishment of Authority.

Sec 3 (1) There is hereby established for the purposes of this Act a body to be called the National Solid Waste Management Authority which shall be a body corporate to which section 28 of the Interpretation Act shall apply.

Sec 4 (1)

Function of Authority

The Authority shall –

- take all such steps as are necessary for the effective management of solid waste in Jamaica in order to safeguard public health, ensure that the waste is collected, stored, transported, recycled, reused or disposed of, in an environmentally sound manner to promote safety standards in relation to such waste;
- promote public awareness of the importance of efficient solid waste management and foster understanding of its importance the conservation, protection, and proper use of the environment;
- advise the Minister on matters of general solid waste management.

Sec 17

Recovery of debts:

Without prejudice to any other method of recovery, all debts due to the Authority may be recovered in a Resident Magistrate’s Court as a civil debt notwithstanding any limitation as to the amount recoverable under the Judicature (R.M.) Act.

Sec 21

Appointment of Inspectors:

Inspector shall-

- Inspect disposal facilities in order to ensure compliance with the provision of this Act;

Subject to which a license is granted

And the requirements of the public Health Act and other related Acts pertaining to disposal of waste,

- Keep record of all inspections carried out and report to the authority. Perform any other functions as the authority may prescribe and authorize.

Sec 23 (1)

Application for solid waste licence;

Every person who-

- operates or proposes to operate a solid waste disposal facility;
- provides or proposes to provide solid waste collection or transfer services; or
- otherwise manages solid waste,

shall apply in the prescribed from the manner to the Authority for the appropriate licence:

Sec 24- (1)

Grant or refusal of licence:

Upon the receipt of an application for licence the Authority shall –

- cause an inspector to carry out an inspection of the facility;
- invite with comments and recommendations of the following organization-
 - ✓ the National Resources Conservation Authority
 - ✓ the Water resources Authority
 - ✓ the Ministry responsible for Health
 - ✓ the relevant Local Authority and such organization as the authority thinks appropriate.

Sec 24 (2)

The inspector shall submit a written report, based on his findings.

Sec 24 (3)

Upon the receipt of the report, comment or recommendations the Authority may, grant the license after the prescribed fee is paid or refuse to grant the license. A certificate shall be issued to the applicant after the license is granted.

Sec 25

A license granted under this Act is now transferable.

Sec 26 (1)

Grounds for refusal to issue license:

- it would not be in the public interest
- production of false information by the applicant
- applicant under the age of 18 years
- he is an undischarged bankrupt
- He has been convicted during the period of 5 years immediately preceding the application of any offense involving fraud or dishonesty.

- Applicant is not a fit person in the opinion of the Authority.

Sec 27

The License maybe renewed if the application is made not later than 30 days before the date of expiry.

The licensee complied with the terms of the license.

The applicant paid the prescribed fees.

There has been no material change of the circumstances under which the license was previously granted.

Applicant has not committed any offense under this Act.

Sec 30

The license maybe suspended if the applicant during operation breaches any of the conditions lay down.

Sec 31

The license maybe also revoked by the Authority (similar to section 30)

Sec 39

Where the licensee fails to carry out any work demanded by the Authority. The Authority may use contractors, consultants, or other persons to carry through the work. The work must be in accordance with the terms of the license.

Sec 40

The Authority may recover or fund the reasonable cost or expenses of the contractors etc. Prior to making the claim the Authority shall give to the licensee or former licensee a written notice under this section. The notice shall;

- Specify the reason for making the claim;
- State the details of the work carried out;
- State the amount that it is claiming;
- Invite the licensee or former licensee to make representation to the Authority to show why the claim should not be realized as proposed.

Sec 42 (1)

Recycling of waste:

The Authority may provide the occupier of any premises, on his request, with receptacles to be used for-

- Compostable waste which is to be recycled;
- Non-compostable waste which is to be recycled; or
- Waste which is not to be recycled

The receptacles maybe provided free of cost or on payment as the Authority may deem suitable.

Any receptacle provided in pursuant of Sub-section (1) conditions maybe given in writing by the Authority.

Sec 43

The Authority shall provide and maintain in public places such number of receptacles for the deposit of litter as the Authority considers necessary. The Authority may-

- Designate any area in any public place, or with the approval of the owner, any premises as a litter collection area;
- Designate as litter warden, for the purpose of this Act, persons so trained;
- Determine the nature and type of litter which shall be deposited in receptacles and collection areas; and
- Determine the time, place or circumstances in which litter maybe deposited in any litter collection area.

Sec 42 (7)
OFFENSES

To interfere with damage or destroy any receptacle (fine not exceeding \$1,000,000)

Sec 44

Interference with disposal facility (removes, interferes or tampers with) (not exceeding \$ 500,000) or imprisonment not exceeding 6 months.

Sec 45 (a) (b)

Operating disposal facility without a licence.

Impedes in any manner the collection and disposal of solid waste. (Fine \$ 1,000,000 / term of imprisonment not exceeding 9 months, or both fine and imprisonment.

Sec 46 (1)

Littering public place etc. (throw, deposit or leaves litter in nay public place; or erects, displays (whether by writing, marking or otherwise) deposits, affixes anything in a public place or on any building, wall, fence or structure abutting or adjoining as to contribute to the defacement.

Sec 47

Littering private place without consent

Sec 48

Breaking bottles etc in public place.

Sec 49 Making false or misleading statements (to obtain a licence) not exceeding \$ 1,000,000 or term not exceeding 1 year or both.

Sec 50

Threatening etc, an Authorized officer (willfully hinders, obstructs. Fails to comply with requirement. Fails to disclose name and address or gives false name of address).

Personates or [pretend to be an authorized officer; or assaults, threatens, intimidates, or uses threatening manner to any authorized officer in the execution of his duties. Fine not exceeding \$500,000 or 6 months or both.

Sec 52

Any offence committed where there is no special penalty (similar to 51&52 above)

Sec Punishment for offences under Sec 46, 47, & 48

Procedure before Prosecution:

- Prescribed notice is served in writing discharged liability if payment of fixed penalty is paid within twenty one days.
- If payment is not made criminal proceedings should follow.

Sec 54

Where the offense is committed by a corporate body and the negligence is attributed to the Director, Manager, Secretary or other officer of the body. The members as well as the body corporate shall be liable.

Sec 55

Power to enforce removal of litter

Without prejudice to any proceedings for an offence under Sec 46, 47, & 48, where litter is left or cause to be left in any public place or private premises in such circumstances as to cause, contribute or tend to defacement thereof, the Authority may act in accordance with Sec (2)

The Authority may, give notice (whether orally or in writing) to the offender, person occupying, having control or owning the property or premises, to remove the litter forthwith (for things dangerous to health or life, e.g. Dead animals) or in other cases within a specified time (not less than three days)

Notice may be served on a person either personally or by post to the last known address business or private, or may be posted at some conspicuous position on the premises on which the litter has been left.

If the notice is not complied with the Authority can remove the litter and recover the cost.

Sec 63

The authorized officer may for the purpose of the execution of this Act enter at all reasonable times the premises in which solid waste disposal are carried out. He may also inspect books. He may also seize and detain any equipment or other, which he believes is being used for the contravention of this act.

Sec 64

Gives the authorized officer the authority to obtain a warrant (from a R.M) and search any vehicle, aircraft, vessel, article, enclosure, container or other storage facility. If it is found that they are being used in the commission of any offence against this act, the authorized officer may seize and detain the specified equipment.

Sect 65

Permits for an application to be made for the forfeiture of the specified equipment used in the commission of any offence under this act.

DIPLOMATIC IMMUNITIES AND PRIVILEGES ACT

Diplomats who have to operate outside of their countries enjoy certain immunities and privileges. The Vienna Convention on Diplomatic Relations was agreed to and signed by a number of countries including Jamaica. This act is to be enforced to enable Diplomats to enjoy the immunities and privileges that are afforded to them. It is to be noted that the treatment of Diplomats is reciprocal by virtue of the agreement deriving from the Convention.

First we are going to look at some definitions:

Sec 2 (1)

Consular Employee - any person, not being a consular officer, who is employed in duties at a consular office by a foreign sovereign power and whom the Minister recognizes as such, but shall not include any person employed on domestic duties.

Consular Office - any building or part of a building which is exclusively occupied for the purpose of the official business of a consular.

Consular Officer – a consular- general, vice consul or consular agent representing a foreign sovereign Power and holding a valid exequatur or other authorization to act in Jamaica in that capacity.

Head of Mission - an Ambassador, High Commission or other person, by whatever title called, accredited by a sovereign Power and recognized as a head of mission to act in Jamaica in that capacity.

Member of the family – in relation to any person to whom this Act applies means –

- the spouse or any dependent of that person and
- any other person deemed by the Minister to be a member of the family in question

Minister - the minister responsible for external matters.

Personal Immunities - means immunities from suit or legal process (except in respect of things done or omitted to be done in the course of the performance of official duties) and inviolability of residence, and any exemption in respect of taxes, duties rates and fees.

Sec 2 (2)

It is hereby declared that for the purpose of this Act the expression “Sovereign Power “ includes any member of the commonwealth which is sovereign,

Sect 3

Immunities and Privileges of Heads of Mission

Subject to the provisions of this Act, a head of mission shall be entitled to such immunities and privileges, and inviolability of residence, official premises, and official archives as are by customary international law and usage accorded to a duly accredited representative of a sovereign power or as may be necessary to comply with the terms of –

- The Vienna Convention
- Any other international agreement

In the event that the country of the head of the mission and Jamaica are parties to such Convention or agreement.

Sect 4

Immunities and privileges of members of staff and of families of heads of missions

Sect 4 (1)

Subject to the provisions of this Act, a member of missions of any head of mission shall be entitled to such immunities and privileges as are by customary international Law and usage accorded to the member of mission of a duly accredited representative of a sovereign Power or as may be necessary to comply with the terms of –

- the Vienna convention ; or

- Any other international agreement, in the country of the head of mission and Jamaica are parties to such Convention or agreement.

Sect (4)

For the purpose of subsection (1) the expression “member of mission “in relation to any head of mission includes,

- a member of the official or domestic staff of the head of mission
- a member of the family of the head of mission;
- A member of the family of the domestic staff of a member of the official staff of the head of mission.

Sec 5

This section allows for Consular immunities to be made by Regulations.

Category of persons that this immunity may be conferred-

- persons in the service of the government of any Commonwealth country other than Jamaica; or
- persons in the service of government of any territory (Commonwealth countries) for whose international relations the government of any such country other than Jamaica.

The provisions of this section shall have effect in relation to the Republic of Ireland as if it were a Commonwealth country.

Sect 6

Immunities Privileges, etc, of certain International Organizations.

Sect 6 (2)

Subject to subsection (3), the Minister may from time to time by order –

- Provide that any organization to which this section applies (hereinafter referred to as “the organization “) shall, to such extent as may be specified in the order, have the immunities and privileges set out in part one of the Second Schedule and shall also have the legal capacities of a body corporate;
- Confer upon –
 - any person who are representatives (government or not) on any organ of the organization or are members of any committee of the organization or of any organization thereof;
 - all officers or classes of officers of the organization specified in the order :
 - such persons employed on mission on behalf of the organization, specified in the order.

The extent of the immunities and privileges will be specified in the order. Immunities may also be conferred on;

- other classes of officers and servants
- staff of such representatives and members as are mentioned sub-paragraph (i) of paragraph (b) of this subsection and to the families of officers of the organization.

The immunities and privileges conferred on organizations shall not be greater in extent than those in any other international agreement to which Jamaica is a part.

Sect 6 (4)

Nothing in this section shall authorize the making of nay order to confer immunity or privilege upon any person as a representative of the government of Jamaica or the member of staff of such a representative.

Sec 7

Immunities, Privileges, etc, of certain persons may be conferred

The Minister may from time to time, by order confer on Judges and Registrars of the International Court of Justice established by the Charter of the United Nations, and of any other international judicial institution approved by the Minister, also on suitors of that Court or to any such institutions and their agents, consul and advocates, such immunities, privileges and facilities as may be required.

Sec 8

Immunities and Privileges of representatives attending international conferences

- Where a conference is held in Jamaica and is attended by representative of the government of one or more sovereign Powers or of any of the territories for whose international relations any of those conferences government is responsible.
- Where it appears to the minister that doubts may arise as to the extent to which the representatives of those governments (other than the government of Jamaica) and members of their official staff are entitled to immunities and privileges.

The Minister may, by notice in the Gazette direct that every representative of any such government (except Jamaica) shall for the purpose of any enactment or rule of Law or custom relating to diplomatic immunities and privileges, be treated as if they were a head of mission, and that such of the members of his official staff as the Minister may from time to time direct.

Sec 8 (2)

For the purpose of subsection (1) the Minister may compile a list of the representative of the government (except in Jamaica) and members of their official staff as he thinks proper, and shall cause such list and any amendment to be published in the Gazette and such publication shall include a statement of the date from which the list of amendment, as the case may be, takes or took place.

Sec 9

Exemption from Taxation of persons entitled to immunities and privileges

Sec 9 (1)

The Minister responsible for finance may by order published in the Gazette, or by directions in writing –

- Make such provisions as he thinks fit in order to facilitate any exemptions from taxes, duties, rates or fees to which any person is entitled consequent on diplomatic immunities and privileges to which this act relates and may in order or directions declare the extent of such exemptions in respect of any person or class of persons and as to whether or not any particular tax, duty, rate or fee is included therein or excluded there from.
- Grant any person or class of persons to whom section 5 refers, exemption from taxes, duties and rates upon
 - The person concerned; or
 - The movable property of such person or
 - So much of income of the person concerned as is derived directly from the holding of his office, or from payment of any fee imposed law

Sec 9 (2)

No order published or directions given by the Minister responsible for finance pursuant of subsection (1) shall be construed as exemption any person from compliance with the formalities in respect of importation of goods which are prescribed in Law relating to customs

Sec 9 (3)

Any Exemptions from taxes, duties, rates or fees to which this section relates shall be subject to compliance with such conditions as the Commissioner of Inland Revenue or the Commissioner of Customs and Excise may prescribe for the protection of revenue.

Sec 10

Minister to publish list

Sec 10 (1)

The Minister shall compile a list of persons appearing to him to be entitled to immunities or privileges publish in accordance with the principles of customary international Law and usage or by under provision of this Act, except

- Children under the age of eighteen years of a person entitled;
- Any person whose name appears on a list published under the provision of subsection (2) of section 8

And he shall from time to time amend the list, and shall cause the list and any amendment of the list to be published in the Gazette.

The certificate issued by or under the authority of the Minister stating the fact to any question or proceeding shall be conclusive evidence of the fact.

Sec 11

Waiver

Any immunities or privileges conferred on any person by order under the provision of this act or any Regulation made thereunder may be waived in accordance with the principles of customary international Law and usage; or in compliance with the terms of any convention or agreement in that behalf to which Jamaica is a party.

Sec 12

Special provisions relating to customs duty

If any goods which have been imported or taken out relating to of bond without payment of customs duty by any person who has diplomatic immunities, under this Act, are sold or disposed of within three (3) years of importation or of being taken out of bond to a person who is not entitled to customs franchise privileges, the person who sell or disposes of such goods may be called upon to pay duty there from at the rate required according to the Law relating to the payment of customs.

Sec 13

Reciprocal treatment

Section 13 (1)

Nothing in this Act shall be construed as precluding treatment eluding the Minister from with drawing-

- Any immunities or privileges conferred by or under or specified in the provision of Part II in respect of any sovereign Power or any class of person employed by such Power on the grounds that such Power is failing to accord corresponding immunities or privileges in respect of Jamaica or;
- Any immunities or privileges referred in Part III or in the Second Schedule from any representatives or nationals of any sovereign Power on the grounds that such Power is failing to accord corresponding immunities or privileges in respect of Jamaica, or from declining to accord any such immunity or privileges as may be conferred by order of direction under the provision of this Act on any such grounds as aforesaid

Sec 14

Citizen of Jamaica

No person who is a citizen of Jamaica shall in Jamaica be entitled to any personal immunities of Jamaica and the members of such person's family shall not, as such, be entitled to any personal immunity unless his name is included in a list under the provisions of sec. 10 and published in the Gazette and still in force.

Sec 15

Domestic servants

No person shall be entitled to any immunities or privileges in accordance with customary international Law or usage or by or under the provision of this Act, on his account of being a domestic servant of a head of mission or any other person, unless his name is included in a list under the provision of sec. 10 and published in the Gazette and still in force

Sec 16

Provisions as to exemption from taxation

The Minister of finance may direct that such refund or payment be made from any public fund or account or from any money of any local authority, public body, or person as may in his opinion be necessary to give to any exemption granted under the provisions of this Act.

Where any loss is suffered by any local authority, public body, or person by the granting of any such exemption. The Minister may direct that the necessary reimbursement be made from the consolidated fund.

Sec 17
Regulations

The Minister may from time to time make regulations for carrying into effect the purposes of this Act, and the regulations so made shall be subject to negative resolution.

Sec 18
Saving for pending proceedings

This Act shall not affect any legal proceedings begun before the enactment thereof.

RADIO COMMUNICATION

INTRODUCTION

One of the most important tools of modern law enforcement is the two-way radio. Called the two-way radio because it can both send and receive messages, it permits the Constable on patrol to be aware of any problems, crimes or disturbances in the area. If a question of law or procedure arises, the radio provides immediate access to a superior. In the event you discover a fire or an injured person, the radio can quickly bring help. Finally, the use of the radio will bring help immediately if you are in need of assistance. In many ways, the radio has become the Constable's primary source of information and his or her lifeline as well

Because of the importance of the radio to both your work and your safety, it is extremely important that you learn to operate and maintain the radio properly. Only in this way can you depend upon it when you need it most

TYPES OF TWO-WAY RADIOS CURRENTLY IN USE

- The walkie-talkie
- The Two-way car radio
- The Control Centre

Variations in the features of each of the radios should be discussed. These would include the frequencies or channels available, three-way capabilities, and information on any standard channel assignments

- Number of frequencies available
- Three-way capabilities
- Standard channel assignments

Motorized patrol and traffic units have permanent call signs (a call sign is a number or name used to designate a particular unit)

The call signs of foot patrol units are based on a geographical name of the area(s) covered by their beat

OPERATING THE RADIOS

Using a two-way radio is a relatively simple procedure. It is only necessary to know how to adjust the volume and the squelch and to make sure you are on the correct channel

Looking at a standard walkie-talkie you will see each of the control knobs

On-off and volume controls

- Appropriate settings
- Avoiding the disruptive influence of the radio in restaurants and other businesses

The Squelch control

The squelch adjustment is a method of increasing the sensitivity of the receiver in the radio.

To achieve the greatest sensitivity, turn the control until static is heard, then back off until it stops. At this point, the receiver is most sensitive to transmissions.

To reduce sensitivity back the control knob further away from the point where static is heard. When you do this, you reduce the range of the radio and thus limit the amount of traffic received. This is often done when there is a great deal of radio traffic and you only wish to hear traffic from your partner or another team working with you.

The Channel selector

The Jamaica Constabulary Force uses a total of ____ channels. Each channel is assigned to a particular unit, division or station. Always make sure you have your radio set on the correct channel.

Batteries

A walkie-talkie can run about _____ hours on a single charge.

It takes _____ hours to recharge the batteries after use.

Occasionally it will be necessary to change radios during the shift or to replace the batteries so that the radio will continue to operate. (Demonstrate the method of changing batteries)

SENDING AND RECEIVING RANGES OF THE RADIOS

The average range of each of the radios should be explained. This should include:

- Optimal areas (flatland, line-of-sight locations).
- Problems caused by mountainous areas, valleys, tall buildings, metal structures, interiors of homes and offices, etc.
- The problem of "Dead spots" in which radios will not work Augment the talk with examples of problem areas.

PROPER RADIO PROCEDURE

In order to send and receive as many messages as possible and to ensure the highest possible accuracy, set procedures for using the radio have been developed.

- Wait for a break in the traffic before transmitting. Attempting to break in on another transmission only causes delays in the handling of the calls.
- When beginning a transmission, start with your call sign so that the dispatcher is aware of who is trying to communicate.
- Wait for your call sign to be acknowledged. Normally, the dispatcher will repeat your call sign and then say "go ahead".
- Begin your message by again repeating your call sign.
- End your message in a manner, which indicates you have completed your transmission. Such comments as, "Over", "Copy?" "Go ahead", and "10-3?" are often used.
- The dispatcher will then acknowledge your transmission.

THE USE OF POLICE RADIO CODES

Police radio codes are used for two primary reasons. First, they permit more information to be passed in less time. Two-way radios allow only one person to talk at a time. Unfortunately, there are often several people wishing to talk at the same time. The dispatcher or person in the radio control centre controls the decision as to which person will be permitted to talk. This decision is usually based on who called first or other information.

However, because of the nature of police work and the possibility of an emergency, everyone must be allowed to transmit their messages as quickly as possible. The use of a police radio code allows the Constable to send a message much more rapidly. With shorter messages, it is possible for more people to use the radio in a given amount of time.

The second reason for using police radio codes is the fact that they are more easily understood. Using codes, which have a predetermined meaning, will usually permit you to send a message much more accurately. When codes are not used, the exact meaning of the sender's words and phrases become a matter of interpretation. Moreover, if the sender is excited, the communication can be very hard to understand. The code, on the other hand, always means the same thing. Even under considerable stress, the correct meaning is usually conveyed.

A. There are many different codes in use around the world. They use different numbers and many methods of ensuring the accurate communication of letters or words. However, they are all the same. A copy of the police radio codes used by the Constabulary has been given to each of you. It is important that you

memorize the code as quickly as possible. It is extremely difficult to perform the duties of a Constable when you are unable to understand or communicate with the station or the radio control centre.

Hand out copies of the radio code so they can memorize the code as soon as possible.

You will be tested on your knowledge of the most common codes at the conclusion of the class. Let us look at the 20 most common codes now. (review the codes).

RADIO PROCEDURES FOR DISPATCHERS

You will also be expected to work as a dispatcher on occasion. Dispatchers have an extremely challenging job in that they have many responsibilities.

They must always know the status of all assignments and the location and nature of all cases being handled.

This includes communication with the units at least once every 30 minutes.

They must give assignments to the appropriate units and stations according to the priority call system.

Priority 1 calls.

This is a call of extreme emergency. It is used only in life threatening situations, pursuit driving circumstances, major incidents requiring senior or specialized staff or emergency police escorts of VIPs, critically injured persons, etc.

Priority 2 calls

Priority two calls are classified as urgent. These are situations, which are not known to be as life threatening or dangerous as priority one calls. However, a priority two call has the immediate potential of extreme danger unless contained by the availability of the on-scene personnel.

Priority 3 calls

This is a routine call following normal request procedures which does not have the character of immediate danger.

Dispatchers must keep a current record of all messages sent and received.

In emergency situations such as on notification of a motor vehicle pursuit in progress, the dispatcher will:

- Clear the channel except for vehicles involved.
- Notify other police units as necessary.

Run registration and criminal record searches as soon as possible and broadcast the results when time permits.

REQUIRED COMMUNICATIONS WITH CONTROL CENTRE OR THE STATION

According to the appendix of Force Order No. 2272 dated 20th December, 1990 page 6, there are certain times when all patrols and other similarly assigned personnel are required to communicate with the police control centre. These include:

- At least once every 30 minutes (to advise location and status)
- On arrival at an assignment or scene of an incident before leaving their vehicle.
- When you stop a vehicle or question suspects
- When an assignment is completed and you are again available for service.

JAMAICA CONSTABULARY RADIO CODES

10 – 1	Signal good	10 - 18	Wrecker needed
10 – 2	Stop transmitting	10 - 19	Ambulance needed
0 – 3	Acknowledgement	10 - 20	Intoxicated person
10 - 4	Busy – stand by unless urgent	10 - 21	Hit and run accident
10 - 5	Repeat message	10 - 22	Reply to message
10 - 6	Report of prowler	10 - 23	Message cancellation
10 - 7	Civil disturbance	10 - 24	Message received
10 - 8	Complete assignment quickly	10 - 25	En route
10 - 9	Advise your location	10 - 26	Estimated time of arrival
10 - 10	Call.... by telephone	10 - 27	Need assistance
10 - 11	Arrived at scene	10 - 28	In pursuit - Chase in progress
10 - 12	Last assignment completed	10 -29	School crossing
10 - 13	Beginning tour of duty	10 - 30	Will be late
10 - 14	Ending tour of duty	10 - 31	Officer or operator on duty
10 - 15	Request permission to leave patrol (Station report)	10 - 32	Improper parking
10 - 16	Traffic light out	10 - 33	Records indicate wanted or stolen
10 - 17	Accident		

ALPHABETIC CODE

A	Alpha
B	Bravo
C	Charlie
D	Delta
E	Echo
F	Foxtrot
G	Golf
H	Hotel
I	India
J	Juliet
K	Kilo
L	Lima
M	Mike
N	November
O	Oscar
P	Papaw
Q	Quebec
R	Romeo
S	Sierra
T	Tango
U	Uniform
V	Victor
W	Whiskey
X	X-ray
Y	Yankee
Z	Zulu

CODE 1 = Acknowledge receipt of message

CODE 2 = Out of service - Investigation

CODE 3 = Out of service – Eat

BE BRIEF, BE SPECIFIC, BE ACCURATE

INTRODUCTION TO POLICE PATROL PROCEDURE

INTRODUCTION

The patrol function is by far the most important aspect of any law enforcement organization. It is the primary method by which a police agency seeks to accomplish its objectives and is the basis upon which the public judges the organization. All other police units and services exist to assist patrol in the accomplishment of its goals and objectives. Patrol is the public's first line of defense against the criminal, various man made hazards, the ravages of nature and sometimes even the citizens themselves.

Further, Constables on patrol are constantly in the public eye, they are the most visible aspect of the government. As such, rightly or wrongly, they are the basis upon which many judge the effectiveness of the Government itself. When a Constable is seen shirking his or her duty or acting in a belligerent or an abusive manner, the citizen's attitude and respect for the Constabulary and the current government is significantly lowered. On the other hand, when a Constable appears neat and alert and is seen to function in a business-like manner, these same traits are also attributed to the rest of the Constabulary and to the government in general.

Surprisingly enough, law enforcement has found that a clean, neat appearance combined with an objective, courteous approach will often significantly increase the level of public assistance and co-operation.

For these reasons, it is most important to present yourself in a professional light. This means:

Maintain an alert appearance and a military bearing at all times.

- ✓ Do not loiter about the station, businesses, in the street or in parked cars.
- ✓ Do not become involved in long conversations about non-police matters.
- ✓ Be neatly and cleanly dressed at all times.
- ✓ Do not lean against anything or put your hands in your pockets.
- ✓ Diligently and continuously, patrol all portions of your assigned zone or beat with frequent re-checking of problem areas.
- ✓ Do not eat or drink intoxicating beverages while on duty.
- ✓ Do not smoke in public view.
- ✓ Be on the lookout for opportunities to assist people.
- ✓ Be courteous and respectful at all times (this includes dealings with suspects and prisoners).
- ✓ Be equipped at all times with your truncheon, handcuffs (subject to local procedure), pocket book, writing equipment, a torch (particularly at night but always useful), whistle and a police radio (where applicable).
- ✓ Do not reveal the boundaries of your beat, give out confidential data or other police information to unauthorized persons.

OBJECTIVES OF PATROL

The objectives of patrol are much the same as the objectives of the organization as a whole. These are to:

- ✓ Repress or prevent criminal activities.
- ✓ Investigate offenses and other reports.
- ✓ Apprehend or otherwise bring offenders to justice.
- ✓ Provide day-to-day law enforcement service (assistance and protection) to the people of the community.

RESPONSIBILITIES OF PERSONNEL ON PATROL DUTY

Preventative services, which includes enquiry and inspection activities and is oriented towards the:

- ✓ Prevention of crimes and accidents
- ✓ Identification of hazards to the public
- ✓ Dealing with acts of juvenile rebelliousness
- ✓ Identifying potential crime areas and targets
- ✓ Response to emergency calls
- ✓ Investigation of crimes
- ✓ Traffic direction and control
- ✓ Enforcing the law as it relates to businesses and other activities
- ✓ Maintenance of public order
- ✓ Provision of emergency services
- ✓ Development of good relationships between citizens and the Force
- ✓ Reporting of information to other police units and divisions as necessary

PATROL PHILOSOPHY

Preventative Patrol Based on the theory that people will be less likely to commit a crime if they know police are present.

- ✓ Patrolling is done in uniform.
- ✓ Vehicles, if used, are clearly marked.
- ✓ Patrol is done in a random manner, that is, without a pattern so that criminals cannot predict where the Constable will be at any given time.
- ✓ Frequent contacts with business people for crime prevention and community relations' purposes

ADVANTAGES

- ✓ Visible and comforting to the public
- ✓ Increases rapport with local businesses, etc
- ✓ Handles all types of crime

DISADVANTAGES

- ✓ You are always being watched (and judged) by the public
- ✓ Because you are easily recognized, you must always be on the alert.
- ✓ You must constantly work to avoid developing a pattern. (Easiest pattern is the coffee stop or the tendency to find a cool area).
- ✓ It requires constant interaction with the public.
- ✓ Emphasis is on prevention rather than apprehension so fewer arrests are made.

Apprehension Patrol

Based on the theory that criminals are less likely to commit a crime if they do not know the location of the police. Usually used to combat some problem in a specific area

- ✓ Patrolling is done in civilian clothes.
- ✓ Vehicles, if used, are unmarked.
- ✓ Movement is usually limited and restricted to the trouble area.
- ✓ Emphasis is placed on certain crimes; often other types of incidents and crimes are not handled.
- ✓ Local businesses are seldom contacted for preventive purposes.

ADVANTAGES

- ✓ Not constantly in the public eye
- ✓ Citizens are not on their best behaviour
- ✓ More likely to observe a crime being committed
- ✓ It is often easier to obtain information
- ✓ It is much easier to observe suspects

DISADVANTAGES

- ✓ Your presence is not a comfort to the public
- ✓ No rapport is built with the local businesses
- ✓ You begin to feel everyone is a criminal
- ✓ There is no positive feedback from the citizens
- ✓ You begin to specialize in certain types of crimes and lose interest in the others

TYPES OF PATROL

The Constabulary uses a number of different types of patrol to accomplish its objectives. These include the following:

- ✓ Automotive patrol
- ✓ Foot patrol
- ✓ Horse patrol
- ✓ Dog patrol
- ✓ Boat patrol
- ✓ Scooter and bicycle patrol
- ✓ Motorcycle patrol
- ✓ Ambush patrol

The circumstances and the makeup of the beat or zone determine which type of patrol is used.

INFORMATION NEEDED FOR EFFECTIVE PATROL WORK

If you are to be effective on any type of patrol, you must obtain certain types of information about your patrol beat or zone, i.e. that area in which you will be working.

You must be completely familiar with everything in your area. This includes:

- ✓ The names and locations of all streets.
- ✓ The location of all safes and whether there are lights near the safes.
- ✓ Night lights.
- ✓ All outside locks.
- ✓ Businesses, which have, people working at night.

- ✓ Known criminals residing on your beat, their cars and their friends.
- ✓ Fire hazards
- ✓ The location of all tourist attractions on or near your beat or zone.
- ✓ The location of the nearest hospitals, fire stations, service stations, ambulance service and tow trucks.

The location and layout of all potential trouble spots

The location of all possible traffic hazards and congestion areas

The hours of highest congestion

All dead-end streets

All building and road construction areas (on a daily basis)

The locations of all high-risk businesses and the level and nature of their security

- ✓ Pharmacies
- ✓ Jewellery stores
- ✓ Service stations
- ✓ Banks
- ✓ Grocery stores
- ✓ Bars and night-clubs

SOURCES OF INFORMATION

The above information is available from a variety of sources. It is the Constable's responsibility to obtain this information immediately upon receiving a beat assignment.

Beat knowledge

- ✓ Review city maps and tourist maps
- ✓ Physical examination of the beat
- ✓ Discussions with local residents and shopkeepers
- ✓ Physical check of high-risk buildings on beat
- ✓ Discussions with people who maintain the streets
- ✓ Names and addresses of criminals from CIB
- ✓ Discussions with other Constables assigned to the same beat
- ✓ Beat files at station

Beat problem areas

- ✓ Review of station diary
- ✓ Discussions with other Constables assigned to the same beat
- ✓ Discussions with patrol supervisors

Current activities

- ✓ Review of station diary
- ✓ Discussions with other Constables assigned to the same beat
- ✓ Discussions with station and headquarters CIB
- ✓ Review daily offence bulletin
- ✓ Review daily arrest information

- ✓ Review beat file
- ✓ Review missing person files
- ✓ Check pin maps
- ✓ Attend daily formations

Traffic hazards and congestion points

- ✓ Review station diary
- ✓ Review traffic accident logs
- ✓ Discussions with other Constables assigned to the same beat
- ✓ Discussions with patrol supervisors
- ✓ Personal check of streets and intersections at different times during the shift

Security of high-risk buildings and businesses

- ✓ Discussions with other Constables assigned to the same beat
- ✓ Discussions with patrol supervisors
- ✓ Discussions with shopkeepers and merchants
- ✓ Personal checks of building roof, doors and windows
- ✓ Discussions with security personnel in buildings
- ✓ Examination of building layout and the location of any safes or valuable items
- ✓ Location of any night-lights or safe lights

HOW PATROLS ARE CONDUCTED

While all patrols have the same overall objectives, each type of patrol has strengths and weaknesses. Often several types of patrol are used in a given area to increase their effectiveness. As such, it is necessary to know how to conduct the more common types.

Automobile Patrol

This is the type patrol conducted by Motorized patrol and the mobile reserve, mobile patrols in the different geographical divisions and traffic patrols. This type patrol is also used to a lesser extent by the Criminal Investigation Bureau and the Canine section.

Area

The Constable in a motor vehicle is able to cover more area and to cover it more frequently than the foot patrol. Automobile patrol is not as thorough as foot patrol however, so the area should not be too densely populated. Further, Motorized patrol is more effective if used in an area where the crime rate is not too high.

Standard procedures

Check vehicle at the beginning of your shift.

- ✓ Cleanliness
- ✓ Gasoline
- ✓ Brakes
- ✓ Oil
- ✓ Search vehicle for exhibits (from previous arrests).
- ✓ Radio

Patrol ALL areas of your beat

Patrol at a speed of 15-20 miles an hour

NEVER, NEVER, NEVER EXCEED THE SPEED LIMIT UNLESS EMERGENCY LIGHTS AND SIREN ARE ON. TO DO SO IS TO TELL THE PUBLIC YOU ARE ABOVE THE LAW AND ARE NOT CONCERNED WITH THEIR WELFARE

- ✓ Do not set up a pattern while patrolling.
- ✓ Write down the licence plate numbers of all suspicious vehicles.
- ✓ Get out of the car and patrol on foot as often as time and the area permit.
- ✓ Get to know service station attendants, custodians, maintenance personnel, window washers, newspaper vendors, paper boys, etc. with an eye to developing sources of information.
- ✓ Talk to tradesmen and shopkeepers about crime prevention, night lights etc.
- ✓ Advise radio control of your location and status at least every 30 minutes.
- ✓ At all times be prepared to direct traffic, take crime or incident reports, handle traffic accidents, administer first aid or respond to an emergency.
- ✓ Always lock the patrol car if you leave it unattended.
- ✓ Record the names and addresses of any suspicious persons.
- ✓ DO NOT LEAVE YOUR BEAT AREA unless ordered to do so by a superior.
- ✓ Periodically check on any foot patrols in your area.
- ✓ Whenever possible, check on the security of businesses in your area.
- ✓ Pay close attention to trouble spots.
- ✓ Do not engage in idle conversation with other motorized patrols or with foot patrols.
- ✓ Do not linger in restaurants, stores, or other businesses. If another patrol unit is at the location, do not stop there.

Patrolling the beat on foot

Foot patrol is the oldest and most tested form of patrol. Unfortunately, it is also the most costly in terms of workers. Nevertheless, in an urban area or any area with a dense population, it is by far the most effective means of deterring crime. The mounted patrol and to some extent the harbour patrol are attempts to keep the effectiveness of the foot patrol while increasing the Constable's ability to move about.

Area

Foot patrol is the most thorough form of patrol. It allows personal contact between the Constable and the people in his or her patrol area.

It is also the most expensive in that the Constables on patrol can only cover a relatively small area. While the criminal can usually evade foot patrols easily, it is very comforting to the public and is good public relations. It is also very good for developing crime prevention and building security procedures. It is most effective in a business or high-density housing area. It works well in locations where there is a high incidence of criminal activity.

Standard procedures

Many of the procedures for conducting foot patrols are the same as automobile patrol procedures.

- ✓ Patrol all areas of your beat
- ✓ Do not develop a pattern of any type while on patrol.
- ✓ Write down the licence plate numbers of all suspicious vehicles.

- ✓ Get to know service station attendants, custodians, maintenance personnel, window washers, newspaper vendors, paper boys, etc. with an eye to developing sources of information
- ✓ Talk to tradesmen and shopkeepers about crime prevention, night lights etc.
- ✓ Advise radio control of your location and status at least every 30 minutes
- ✓ At all times be prepared to direct traffic, take crime or incident reports, handle traffic accidents, administer first aid or respond to an emergency
- ✓ Record the names and addresses of any suspicious persons
- ✓
- ✓ DO NOT LEAVE YOUR BEAT AREA unless ordered to do so by a superior
- ✓ Whenever possible, check on the security of businesses in your area
- ✓ Pay close attention to trouble spots
- ✓ Do not engage in idle conversation with other motorized patrols or with foot patrols
- ✓ Do not linger in coffee shops or restaurants. If another Constable is at the location, do not stop there

Other procedures are specifically for foot patrol

- ✓ Check bars, cheap restaurants, pool rooms and night-clubs frequently.
- ✓ At night, periodically stop in the shadows and listen.
- ✓ Check alley and loading dock doors for signs of forced entry.
- ✓ Check for unlocked doors.
- ✓ If an unlocked door is found, call control and advise, do not enter a place of business alone.
- ✓ Check buildings for fire by feeling glass windows.

A variation of the regular foot patrol is the Resident Beat Officer concept.

Essentially a foot patrol system in which the same Constable always works the same area.

This allows the Constable and the citizens living and working in the area to become acquainted.

- ✓ It allows the Constable to learn and be more responsive to the needs of the citizens.
- ✓ It provides the citizen with a friend that he or she can talk to about various problems, crimes or inadequate government services.

Other types of patrol

The Mounted patrol, Marine patrol, motorcycle, Honda and bicycle patrols and the dog section are specialized forms of enforcement.

- The mounted patrol and the Marine patrols are the same as the automobile and foot patrols except that they work parks, beaches and in the water. With obvious exceptions, the procedures are the same.

In some Countries, Honda and bicycle patrols are used. For the most part, they are concerned with parking and some types of enforcement in the downtown areas. This does not relieve them of their basic duties however. They should remain alert to crimes and traffic problems in their area at all times.

- Motorcycle patrols when used are almost exclusively for traffic control and enforcement. The motorcycle is easier to manoeuvre in traffic and can stop a violator or reach an accident scene quicker than a 4-wheeled vehicle. Here again there is a tendency to

become specialized and not watch for other types of crimes. Members of the traffic division must always remain alert to all types of crimes and be prepared to handle any incidents they may encounter.

- In some Counties, Ambush, CIB and Canine patrols also used. These are specialized patrols for dealing with specific situations. Ambush patrols are used during raids and roadblocks to catch criminals.

CIB patrols are usually apprehension type patrols and are done in areas where a specific type of crime is occurring frequently.

Canine patrols are regular vehicle patrols which are also used to apprehend criminals hiding in buildings or to find missing persons. In some cases, depending on the dog's training, canine patrols may also be used in drug or explosive detection work.

THE OVER-RIDING RULE OF PATROL

The overriding rule for all beat patrol Constables is:

YOU ARE RESPONSIBLE FOR EVERYTHING, WHICH OCCURS, ON YOUR BEAT.

This means that while you are on duty it is your job to keep the peace, prevent all forms of crime, arrest individuals committing crimes, remove hazards, assist the public in every way possible, give aid to the injured, ensure the easy flow of traffic, and gather information about the activities of criminals.

ROBBERY INVESTIGATION

INTRODUCTION

Of all the different types of calls handled by Constables, robbery, a form of larceny in which the criminal takes another's property or money by force, is probably the most dangerous. This is because the criminal is armed with some type of weapon and has demonstrated his willingness to use it. Whenever a criminal has a weapon and has just committed a felony, he or she is particularly dangerous. In countries such as the United States where weapons are easy to obtain, responding to a robbery accounts for about 15 percent of all law enforcement deaths. Weapons are not as easily obtained here but there is still adequate reason to be extremely cautious when handling this type of complaint.

THE LAW REGARDING ROBBERY

Robbery is a felony and is committed by any person who unlawfully takes possession of the property of another from his person, or in his presence by force or violence or putting him in fear with the intent to deprive him permanently of ownership.

In effect, robbery is a larceny aggravated by violence and terror.

Types of Robbery

- ✓ Assaulting any person with intent to rob
- ✓ Simple Robbery(by putting person in fear) (having one's hand under clothes to represent knife or gun, when there is none)
- ✓ Robbery with aggravation
- ✓ Robbery with violence

Robbery using any offensive weapon or instrument with intent to rob any person (Some weapon must be used to instill the fear or threat of violence) **Considered robbery with aggravation.**

Being together with one other person or more to rob, or assault with intent to rob any person. (More than one person involved in the act of robbery).

To use any personal violence in order to rob any person immediately before, during or immediately after the act. (Some actual physical violence accompanied the robbery). **Considered robbery with violence**

Robbery 37 (1) of Larceny Act

Every person who -

- being armed with any offensive weapon or instrument, or being together with one other person or more, robs, or assaults with intent to rob, any person;
- robs any person and, at the time of or immediately before or immediately after such robbery, uses any personal violence to any person,

Shall be guilty of felony, and on conviction thereof liable to imprisonment with hard labour for any term not exceeding twenty one years.

(2)

Every person who robs any person shall be guilty of felony, and on conviction thereof liable to imprisonment with hard labour for any term not exceeding fifteen years.

(3)

Every person who assaults any person with intent to rob shall be guilty of felony, and on conviction thereof liable to imprisonment with hard labour for any term not exceeding ten years.

Sub-Section (2) of section 37 of the Larceny Act provides that;

Every person who **robs** any 'person shall be guilty of a felony and on conviction thereof liable to imprisonment with hard labour *for* any term not exceeding fifteen (15) years".

The act does not define the oral "robs". It is necessary therefore, to look to the Common Law in order to ascertain its meaning.

Sub-Section (1) (b) of section 37

In other word Robbery under the Larceny Act would be:

The taking of money or goods of any value from the person of *another* or in his presence, against his will by putting him in fear".

EVIDENCE TO PROVE ROBBERY

- Taking
- The taking must be felonious, that it must be larcenous.

Therefore there must be the same mens rea or animus furandi as in larceny.

There must be asportation

The offender must have complete possession of the property. For example, where the victim was carrying a bag and the offender told him to lay it down or he will shoot him and the victim laid it down and before the offender could take it up and remove with it he was apprehended, it was not, robbery. Also if an offender cuts the victims girdle in order to get his purse and the purse fell to the ground and before the offender could take up the purse, it is not robbery. On the other hand, where the offender snatched a lady's earring and succeeded in separating it from her ear and it was afterwards among the curls of her hair there was sufficient asportation to. Establish robbery.

N. B. It is no defence if after the felonious taking the property is delivered back to the owner.

From the person or In His presence

The property must be taken from the person of the victim or in his presence. There should be no problem in undertaking from the person. This should have the same meaning as in larceny from the person. "In his presence" means that the property was under the immediate care of the victim. Therefore in obtaining the property the victim's power to protect it must have been overcome.

It is robbery if the victim is put in fear and then the offender drives away his cattle from within his presence or if the victim, upon being assaulted, throw ' away his purse which was then taken up by the offender.

It is also robbery, where a night watchman was overpowered and taken to one room and locked inside while articles were taken from the safe in another room.

Against the will

The property must have been taken or delivered up under compulsion of fear. The offence is not committed if the victim consented with another to stage the robbery.

In Fear

The victim must have been put in actual fear or there must have been circumstances from which the Court ' will presume a degree of apprehension of danger as would induce the victim, to part with the property. For example, if goods valued at \$8 were taken from a vendor and by the use of force or threats the vendor is compelled to take \$1 in payment for the goods, this would be robbery.

The fear must not be of injury to the victim himself. It is robbery where the offender takes the victim's child and threatens to destroy the child unless the victim paid his money.

The fear must be immediately before or at the time of taking but not after.

Robbery with Violence

Paragraph (b) of sub section (1) of section 37 of the, Larceny Act provides:

Every person who robs any person and, at the time of ' or immediately before or immediately after such robbery uses any personal violence to any person, shall be guilty of a felony and on conviction thereof liable to imprisonment with hard labour for any term not exceeding one year".

Evidence to Prove Robbery with Violence

The evidence to prove Robbery with Violence is the same as that to prove Robbery but violence must be used either:

Instead of putting the victim in fear, or

In addition to putting the victim in fear, unlike Simple robbery where there the fear must be at the time of or immediately before the taking, by the special provision of the Statute, the violence may also be immediately after the taking.

Any degree of violence will suffice for example, where the offender tore the lady's ear in snatching the earring. However, the mere snatching of the article would not suffice. This would be larceny from the person.

The period of how long before or after the taking the violence should be used in a matter for the Court. However, the circumstance must be such that the violence and the taking form part of the transaction.

The violence must be personal. It is not robbery with violence where the property is obtained by inflicting injury on the victim's horse or dog.

The violence need not be to the person of the victim. It is sufficient if the person rob was forced to part with property because of the violence inflicted on another person in his presence. However there must be some connection between the surrendering of the property and the violence.

Robbery with Aggravation

Paragraph (a) sub section (j) of Section 37 of the Larceny Act provides that;

Every person who being armed with any offensive weapon or instrument, being together assaults with one other person or more robs or assaults with intent to rob, any person shall be guilty of felony and on conviction thereof liable to imprisonment with hard labour or any term not exceeding twenty one (21) years.

Evidence to Prove Robbery with aggravation, all elements of Robbery must be present

Additionally the offender must be:

- Armed with an offensive weapon or instrument
- together r with one or more persons

Where there is more than one person each may be convicted for Robbery with Aggravation. Whether Armed or not.

Offensive weapon or Instrument

Offensive weapon or instrument which can be used to induce fear of bodily injury in section 4 the Act, includes an imitation firearm.

Section 4 reads

A firearm or imitation firearm shall notwithstanding that it is not loaded or is otherwise incapable of discharging any shot, bullet or other missile, be deemed to be an offensive weapon or instrument for the purposes of paragraph (a) of subsection (1) of section 37 and paragraph (1) of section 42.

In this section -

"Firearm" means any lethal barrelled weapon of any description from which any shot, bullet or other missile can be discharged;

"Imitation firearm" means anything which has the appearance of being a firearm whether it is capable of discharging any shot, bullet or missile or not.

Assault with intent to Rob

Sub section (3) of section 37 of the Act provides that

Every person who assaults any person with intent to rob shall be guilty of felony, and on conviction thereof liable to imprisonment with hard labour for any term not exceeding ten years.

Evidence to Prove Assault with Intent to rob

The assault

The assault need not be on the person from whom it is intended to rob but there, must be some connection between the assault and the intent.

For example, if an adult and a child are together and the adult is assaulted by the offender in order to rob from the child.

The intent must be the same as the Simple Larceny.

Where there is an assault with intent to rob by ft person who is armed or is together, with one or more persons, the offence is committed under sub-section (1)

**Malicious Injury to Property Law,
Chap. 234 Police Guide
Page 357-360**

INTRODUCTION:

All damage done willfully or maliciously, to any property whether of a public or private nature is punishable.

Maliciously:

Means purposely, as distinguished from ignorance or accident. There must be a willful and intentional doing of an unlawful act in respect to the property damaged without lawful excuse.. e.g.

If "A" after fighting "B" throws a stone intending to hit "B" and unintentionally break the window of "C" that is not unlawful and malicious damage, but if it be found that the stone was recklessly thrown and "A" knew that the natural consequences of throwing it could break the window, he must be considered to have acted maliciously.

Willful and intentional: are synonymous. If the act be done willfully or wantonly it will be presumed to have been done maliciously (Stones Justice Manual page 1739)

Note: The malice need not be against the owner of the property damaged; and where it shall be necessary to allege an intent to injure or defraud, it shall not be necessary to prove an intention to defraud any particular person, but it shall be sufficient to prove that the party accused did not act with an intent to injure or defraud as the case may be (Stone 1756).

The Malicious Injury to Property Law makes provisions for the following:-

- Injuries by fires to buildings, and goods therein.
- Injuries by explosive substances to buildings and goods therein.
- Injuries to building by Rioters.
- Injuries to buildings by tenants.
- Injuries to manufacturers, machinery.
- Injuries to corn, trees, and vegetables productions.
- Injuries to fences.
- Injuries to bridges and viaducts.
- Injuries to animals.

Killing or wounding cattle;

Animals other than cattle;

- Injuries to Railways and telegraphs.
- Drugging of animals.
- Destruction of or damage to ships.
- Sending letters via) Kid to burn or destroy.

See Police Guide 358 and 359

Power of Arrest:

Any Constable or Peace Officer may take into custody, without warrant, any person whom he shall find lying or loitering in any highway, yard or other place during the night, (7:00 p.m. - 6:00 a.m.)

Any person found committing any offence against this law, whether the same is punishable upon indictment or upon summary conviction, may be immediately apprehended, without a warrant by any constable or peace officer, or the owner of the property injured, or his servant, or any person authorized by him. (See. 50).

ARSON (Police Guide Page 358)

Is the unlawful and malicious setting of fire to buildings and property, including crops, vegetable produce, coalmines and ships, and is a felony by common and statute laws.

To constitute the felony of Arson it may be proved that the act of burning was both willful and malicious, but the malice need not necessarily be against the owner of the property burnt. The person in possession of the burnt property can be guilty of Arson as his intent may be to injure or defraud some other person.

Any burning of some part of the property is sufficient. It is not necessary for flame to be seen, but there must be proof of actual burning; mere blacking of floorboards etc., with no part of wood consumed, is not sufficient.

POLICE INVESTIGATION:

In cases of fire, unless they are due to accidents, the Police should carry out careful investigation:

- Examination of the salvage should be made for traces of oil; inflammable material of all descriptions, footprints and other clues.
- It should be noted whether the premises were fired in several places and whether inside or outside.
- Inmates, owners, servants, neighbours, and any person likely to give information which may be of use should be interrogated.
- Statements should be obtained from all such persons.
- Investigating Officer should make every endeavour to discover any probable motive for setting fire to the property.

Check on the character, previous history and pecuniary circumstances of the owner, if in debt, or arrears of rent, if a drunkard or a gambler, or partial to speculating, if the property was insured, the date and amount of insurance, the name of the company, if any goods were recently removed, and the movements and endeavour of the owner, previous to, and at the time of the fire and if he was at home when the fire broke out.

ADDITIONAL POINTS:

- ✓ Protect burnt property from further injury and interference by putting a guard around it.
- ✓ Look for remains of combustible material and collect for chemical analysis.
- ✓ Arrange for photographs to be taken of the scene.

POINTS TO PROVE:

- There was burning however slight.
- The fire was willfully and maliciously set.
- Intent to injure or defraud.

NOTE: 1 Explain acts of preparation as against attempts to commit arson.

2) Sabotage.

WILD LIFE PROTECTION ACT

INTRODUCTION

This Law was introduced to give the Police and Game Warden power to deal with offenders and to preserve certain wild life such as animals, birds and fishes peculiar to us in Jamaica and make provision for the hunting of birds at a prescribed time of year.

DEFINITIONS

Authorised Trap

Means any trap authorised by the regulation of this Act.

Close Season

Means in relation to any kind of game birds the period declared in each year the Minister by order during which the hunting of game birds of that kind is prohibited

Crown Land

Means any land vested in the Commissioner of Lands of Jamaica and not leased to any person.

Fish

Means any creature, which lives wholly, or mainly in water

Fishery Inspector

Means any person appointed Fishery Division.

Forrest Reserve

Means any area declared to be a forest reserve under the Forrest Act.

Game Reserve

Has the meaning expressed by section 5 of the Act (further on in the Act)

Game Sanctuary

Means any area specified in the First Schedule (on page 5).

Game Bird

Means any bird specified in the first part of the Second Schedule.

Game Warden

Means any person appointed to be a game warden under the Act.

Hunt

Includes kill, capture of willfully molest by any method and any attempt to kill, capture or molest any animal or bird.

Noxious Material

Means any substance, which kills, injures or stupefies fish or is likely or calculated to kill, injure or stupefy fish or is otherwise injurious to fish.

Protected Animal

Means any animal specified in the Third Schedule of this Act.

Protected Bird

Means any bird (excluding birds kept in a domesticated state) other than the birds specified in the Second Schedule.

Shooting Season

In relation to any kind of game bird means as respect any year, any period not included in the close season.

Trap

Means any contrivance or structure, whether fixed or moveable, used or intended to be used for taking or facilitating the taking of fish

Water

Includes the sea and any harbour, bay, creek, lake, lagoon, pond, river, stream or canal

Hunting in Game Sanctuary - Sec 4

Every person who:-

- Hunts any animal or bird in a game sanctuary; or
- Takes the nest or egg or any bird in a game sanctuary; or
- Is found within a game sanctuary under circumstances showing that he was hunting any animal or bird; or
- Takes any dog into or knowingly permits any dog to enter or be in a game sanctuary; or
- Carries in a game sanctuary any gun, catapult or other weapon capable of being used to hunt animals or birds is guilty of an offence.

Any person found in a game sanctuary in possession of any animal, bird, bird's nest or egg shall be deemed to have hunted such animal or bird or taken such nest or egg in such game sanctuary unless the contrary be proved.

Sec. 6 (1)

No person shall hunt any protected animal or protected bird

(2) Every person who:-

- Contravenes the provision of Sub-Section 1; or
- Has in his possession the whole or any part of any protected bird is guilty of an offence.

Sec. 7 (1)

During the shooting season, game birds of any kind to which that season relates may lawfully be hunted on the first day of the season and thereafter only on such days in each week as the Minister may by order prescribe.

(2)

Every person who:-

- Hunts any game bird either
During the closed season; or
During the shooting season or any day other than the first day thereof or a day prescribed under Sub Section (i)
- Takes or has in his possession for sale, hawk, offers for sale or sells, or stores in any commercial cold storage any game bird is guilty of an offence against this act.
- Any game warden or constable who has reasonable cause to suspect that game birds are being stored in any commercial cold storage may (without prejudice to any other powers conferred on him by this act) at any reasonable time enter and search such cold storage and may seize and detain for the purpose of proceedings under this act any game bird found therein.

Sec.8

Every person who:-

- Takes or attempts to take; or
- Sells or has in his possession for the purpose of sale any turtle eggs is guilty of an offence.

Sec.9

Every person who:-

- Takes or attempts to take, or
- Knowingly kills or injures or attempts to kill or injure; or

- Knowingly buys, sells, exposes for sale or has in his possession fish which is immature shall be guilty of an offence.

(2)

Paragraph (a) of Sub-Section (1) shall not apply to any person who takes a fish accidentally and returns it to the water with the least possible delay.

(3)

For the purpose of this Section, a fish is immature if it is of a size smaller than the size prescribed by any regulation made under Section 14.

Sec.10

Every person who:-

- Uses or caused to be used, dynamite or other explosive substances with intent thereby to take, kill or injure fish in any water; or
- Place or cause to be placed any poison, lime or noxious material in any water with intent thereby to take, kill or injure fish that may then be or may thereafter be put therein; or
- Unlawfully and maliciously cut through, break down or otherwise damage or destroy any dam, floodgate or sluice with intent thereby to take, kill or injure fish; or
- Uses or causes to be used in any river, stream or canal trap other than an authorized trap shall be guilty of an offence.

Sec .11

Notwithstanding anything to the contrary every person who causes or knowingly permits to flow or puts or knowingly permits to be put whether directly or indirectly, into any harbour, river, stream, canal, lagoon or estuary, containing fish, any trade effluent or industrial waste from any factory shall be guilty of an offence.

Sec.12

Every person who knowingly buys, sells or has in his possession fish taken, killed or injured in contravention of the provision of this act or of any regulation made there under shall be guilty of an offence.

Sec.13

The Governor General may from time to time appoint Game Warders, Fishery Inspectors and such other officers, as he may deem necessary or expedient for carrying out the provisions of this act.

Sec.14 (1)

The Minister may make regulation generally for the better carrying out of the provisions of this act.

Sec.15 (1)

- Power to Enter Lands -: Any Fishery Inspector may for the purpose of Stocking any water with fish; or
- Inspecting any water containing fish at all reasonable time of the day, enter, remain upon and traverse any lands.

(2)

Any Game Warder, Fishery Inspector or Constable may where he has reason to suspect that any offence against this act or against any regulations made thereunder is being committed or is about to be committed, at any time of the day or night, enter, remain upon and traverse any land.

(3)

Every person who refuses to admit or obstructs

- Any Fishery Inspector in the exercise of any of the powers conferred by Subsection (i) or
- Any Game Warder, Fishery Inspector or Constable in the exercise of any power conferred by subsection (2) is guilty of an offence.

Sec.16**Power of Search**

Any Game Warder, Fishery Inspector or Constable may in any public place or on any Crown Lands or in any Game Sanctuary, search any person who he may have reasonable cause to suspect of having contravened any of the provision of this act or of any regulation made thereunder, and may stop and search any vehicle, boat or other conveyance in or upon which he has good cause to suspect that there is any animal, bird or fish or the nest or egg of any bird in respect of which any offence against this act or any regulation made thereunder has been committed or in or upon which he has reasonable cause to suspect that there is any gun, catapult or other weapon or any trap used in the commission of any such offence.

Sec.17**Power of Arrest without Warrant**

Where any person is found committing, or is reasonably suspected of being engaged in committing an offence against this act or any regulation made thereunder, any Game Warder, Fishery Inspector or Constable may without warrant, stop and detain him, and if his name and address are not known and he fails to give them to the satisfaction of the Game Warder etc., such Game Warder etc., may without warrant apprehend him and, where such arrest is effected by a Game Warder or Fishery Inspector, shall forthwith deliver him into custody at the nearest Police Station to be dealt with according to law.

Sec.18

Where any person is found offending against this act or against any regulation made thereunder, any other person may require the offender to give his name, description and place of abode and in case the offender does not truly give his name, description and place of abode, such offender shall, in addition to any other penalty to which he may be liable.

Conch Season begins April 7th and ends September 7th each year

Lobster Season begins April 1st and ends June 30th each year

FIRST SCHEDULE (Section 2 and 3)

Game Sanctuaries

All Forest Reserves, except the Peak Bay Forest Reserve as described in the First Schedule to the Forest (Crown Lands) Order.

The islands known as the Little Goat Island and Great Goat Island located southeast of Old Harbour Bay.

SECOND SCHEDULE (Section 2)

FIRST PART

Long-tailed Peadove	(Zenaida macroura)**
Whitewing	(Zenaida asiatica) **
Baldpate	(Columba leucocephala)**
Ground dove	(Columbigallina passerina)
Whitebelly	(Leptotila jamaicensis)
Caribbean coot	(Fulica caribaea)
American coot	(Fulica americana)
Snipe	(Charadrius wilsonia)
Plover or Lapwing	(Squatarola squatarola)
Ducks	All migratory species

Only Birds Hunted in Jamaica

SECOND PART

Jabbering Crow	(Corvus jamaicensis)
Pigeon Hawk	(Falco columbarius)
Chicken Hawk	Buteo jamaicensis)
Guiana Parrotlet	(Forpus passerinus)
Paroquet	(Aratinga nana)
Petchary	(Tyrannus dominicensis)
Starling	(Sturnus vulgaris)
Kling-Kling	(Quiscalus niger)
Peadove	(Zenaida aurita)
Water Hen	(Gallinula chloropus)

Protected Birds

THIRD SCHEDULE (Section 2)		<i>Protected Species</i>
Coney	(Geocapromys Brownii)	
Crocodile	(Crocodylus Actus)	
Iguana	(Cyclura Collei)	
Manatee	(Trichechus Manatus)	
Pedro Seal	(Monchus Tropicalis)	
Green Turtle	(Chelonia mydas)	
Hawksbill Turtle	(Eretmochelys imbricate)	
Loggerhead Turtle Dochelys Kempfii	(Caretta) Atlantic Ridley (Lepidochelys Kempfii)	
Atlantic Leatherback	(Dermochelys coriacea)	
Giant Swallowtail Butterfly	(Papilio Homerus)	
Yellow Snake	(Epicrates Subflavus)	
Black Coral	(Antipathes species)	
White Coral	(Scleractinian or Madreporarian)	

Bird Shooting Session is from the month of **August to September** each year, and the exact period for shooting is determined by the Minister with overall responsibility for the Environment.

Each year a list is published informing regular bird shooters and prospective bird shooter where Hunters Licence can be obtained. The current fee is **\$3500.00** subjected to be changed each year.

Hunters Licence is issued to people who are licenced Firearm holder as well as person who are in possession of a User's Certificate.

Hunters Licence can be obtained from the Presidents of the following Clubs, as well as other person that will be published in the Daily papers;

- P.W.D. Gun Club**
- Jackson Bay Gun and Fishing Club**
- Monymusk Gun, Rod and Tiller Club**
- Sasco Distributors**

Further information can be obtained from the National Environment and Planning Agency (NEPA) who has overall responsibility for the Environment.

Bag Limit for each shoot:

Twenty (20) birds per shoot ➡ with maximum of twelve (12) Bald Plates

Shooting Times:

Saturdays: Two (2) times ➡ Sunrise - 9 a.m.
2:30 p.m. – Sunset

Sundays: One (1) time Sunrise – 1:00 p.m.

Hunters who fail to submit their Bird Shooting Report Forms will not be issued with Licence for any upcoming season.

COUNTRY FIRES ACT

INTRODUCTION

The law was introduced to regulate and control the setting of fire to any trash and crops and to provide for the control and use of fires upon any land, also to prevent the setting of fire upon any land and to prevent the setting of fire in certain restricted areas.

Section 2

In this Act :-

Clear days

Shall, be reckoned as exclusively of the day on which any notice is served and of the day on which any act mentioned in such notice is to be done;

Crop

Means crop, tree, wood, underwood, or other produce of the soil, whether cultivated or not, which is growing in or upon the land;

Occupier

Means the person having the immediate charge or management of any land or plantation;

Forest officer

Means any forest officer appointed under the Forest Act;

Agricultural officer

Means any agricultural officer appointed for the purpose of section 7 by the Minister by notice in the Gazette, and includes any agricultural extension officer employed by the Land Authorities Act;

Trash

Includes any dried cane leaves, megass, and straw brushwood, cut plant or other inflammable material;

Adjoining land

Means any land abutting on or adjoining any other land, not occupied by the same person, on which it is intended to set fire to any trash, and include any such land notwithstanding the interposition of a road, path, interval or trace whether public or private or a river or watercourse.

Section 3

Every person who sets fire to any crop shall be guilty of an offence against this act:

Provided the fire may be set, subject to the provision of section 4 and 5, to growing sugar cane for ridding it of any vines or other pest.

Section 4 (1)

Every person who sets fire to any trash on any land, unless the occupier of such land first:-

- Serves to the Officer or Sub-officer in charge of the nearest Police Station and the occupier of all adjoining lands the nearest boundaries of which lies within half a mile of the place where it is intended to set fire to such trash, notice of his intention to set fire to such trash on the dates, not exceeding seven, specified in such notice; and
- Clears an open space of at least fifteen feet in width around such trash and remove from such open space all inflammable material or other matter likely to burn, shall be guilty of an offence against this Act.

(2)

Every notice under paragraph (a) of sub-section (1) shall be served three clear days at least before the first of the days specified in the notice. Every such notice may be served:-

- In the case of an adjoining occupier, either personally or by leaving it at the residence or the adjoining occupier with some person actually residing therein or, if no such person can be found, by affixing the notice on some clear and conspicuous place on the adjoining land; and
- In the case of an Officer or Sub-Officer of Police, either personally or by leaving it at the Station with any Constable stationed there.

Section 5

Every person who:-

- Sets fire to any trash between the hours of six in the evening and six in the morning; or
- Leaves unattended any fire he may have lit or used in the open air before it is thoroughly extinguished shall be guilty of an offence against this Act.

The Minister may by order from time to time prohibit, within such parts of the Island and for any such period as may be specified in such order, the setting of fire to any trash without a permit.

GRANTING PERMIT

Section 7 (1)

Application for such permit as is mentioned in section 6 shall be in the form set out as Form I in the schedule and may be made to either:-

- An agricultural officer; or
- A forest officer; or
- Such other person as the minister may by order appoint

(2)

For the purpose of this section the Minister may from time to time by notice in the Gazette appoint such officer of his department, as he thinks fit, to agricultural officer.

(3)

Any such person as is set out in sub-section (1) may grant such application and issue the permit, which shall be in the form set out as Form II in the schedule, if satisfied:-

- That for special reason it is necessary that the permit should be issued; and
- That the applicant has before the issue of the permit complied with the requirement of section 4

Section 4

Every such permit shall specify the period, not exceeding fourteen days at the most, within which the permit shall be in force, and the hours during which fires may be set, and the person issuing such permit shall send a copy thereof to the Officer or Sub-Officer in charge of the nearest Police Station.

Section 5

Every person who, for the purpose of obtaining a permit, gives to the person to whom application is made any information knowing it to be false, or make any statement knowing it to be false, shall be guilty of an offence against this Act.

Section 8

Every Person who sets fire to any trash:-

- Contrary to the provision of any order issued under section 6; or
- Contrary to the provision of any permit granted under section 7, shall be guilty of an offence against this Act.

EXEMPTION FROM PERMIT

Section 9

Notwithstanding the provision of this Act, it shall be lawful to set fire to:-

- Any plant or trash, subject to the provision of section 4 and 5, for the purpose of eradicating, or preventing the dissemination of, any disease within the meaning of the plants (Protection from Disease) Act.
- Any lime or charcoal kiln.

Section 10

Upon the trial of any person for any offence against this Act proof that any crop or trash on any land was or had been on fire shall be Prima Facie evidence against the occupier of such land of such fire having set by or with the consent of that occupier.

Occupier to Extinguish Fire

Section 11 (1)

Every occupier of land shall take all reasonable steps to extinguish any fire on his land which may escape or extend beyond the area to which it was set, or any fire that may come unto, or arise spontaneously on such land.

(2)

Any occupier who contravenes or fails to comply with the provision of this section shall be guilty of an offence against the Act.

Carrying Lighted Torch Insufficiently Guarded.

Section 12

Every person who carries in or upon any plantation, land or high road adjoining any plantation, any lighted torch, or other matter in a state of ignition, not sufficiently guarded so as to prevent danger from fire shall be guilty of an offence against this Act.

NEGLIGENT USE OF FIRE

Section 13

Every person who:-

- By the negligent use or management of fire in any place; or
- By smoking any pipe, cigar or cigarette, in any plantation, save and except within a dwelling house on such plantation,

Endangers any building, fence, land, cultivated plant or other property, shall be guilty of an offence against this Act.

Power to Enter Land and Extinguish Fire

Section 14 (1)

Where a fire, other than one which has been set by or with the consent of the occupier of the land in accordance with the provisions of this Act, has broken out on or come on to, any lands, any Officer or Sub-Officer of Police, or any Forrest Officer, or agricultural warden, any enter upon the land to which it is likely such fire may spread, and do all such things or acts, including the cutting of any fire trace, as may be reasonably necessary for the purpose of extinguishing, or preventing the spread of, such fire.

(2)

Such Officer or Sub-Officer of Police, or Forest Officer, or any Agricultural Warden, may also, if necessary, call upon any able bodied male person between the ages of fourteen and sixty, who may at the time be within a reasonable distance of any such fire to aid and assist him to extinguish, or prevent the spread of, that fire. Every person who so called on who omits or refuse to render all reasonable assistance shall, unless he has some reasonable excuse, be guilty of an offence against the Act.

Section 15 (2)

Every person who causes, permits, allows, or assist, any other person to commit an offence against this Act shall himself be guilty of an offence against this Act.

N.B.

This law provides no power of arrest, proceed by summon

OFFENCES

- To set fire to any trash between the hours of 6 p.m. and 6 a.m. the next succeeding day. Sec. 5
- To leave unattended any fire that may have been set or used in the open air until it has been thoroughly extinguished. Sec. 5

- Setting fire to trash without complying with serving of notice of intention to occupiers of adjoining lands or clear away open space of 15 feet around any trash and remove all inflammable material or any other matter likely to burn. Sec. 4
- Occupiers of land failing to take necessary steps to extinguish any fire on his land which may have escaped or extended beyond the area to which it was set or any fire that may have come to such land. Sec. 11
- Endangering any building, fence, cultivated lands, plant or property by :
 - Negligent case or management of fire in any place; or
 - Smoking any pipe, cigar, cigarette on any plantation, save and except within a building on such plantation. Sec. 13

Watching for possible fires in homes and businesses is part of basic police work

All Constables must remain alert for the possibility of fire in homes and businesses within their jurisdictions

- Constables on patrol should place their hands on the windows of businesses as they pass. An unusually warm window often means a fire has begun inside the building
- If a fire is suspected it is the duty of the Constable to immediately advise Control and to see that the Fire Department and the owner are contacted
- If the building is occupied, it is the duty of the Constable to alert the occupants to the possibility of fire
- After the Fire Department has been contacted the Constable is expected to remain at the scene to assist the fire personnel in locating the building and to protect and control any possible traffic or pedestrians

Police responsibilities at residential and commercial fires within urban areas involve the control of crowds and traffic during the period of the fire and inquiries into the possibility of arson after the fire has been brought under control

No one should be allowed to disconnect, move or drive over fire department water hoses while a fire is in progress

Vehicles parked in such a manner as to prevent the fire department from utilizing fire hydrants must be towed away immediately and information obtained for purposes of a summons

Constables directing traffic and handling crowds at the scene of a fire should remain alert to the possibility that ambulances and additional fire equipment will be needed. Traffic at all times is should kept moving and no parking permitted in the immediate area. Onlookers should be kept well back from the fire and should not be allowed to stand in the streets.

In the event of a major fire, barricades should be considered to assist in traffic and crowd control once the emergency is over, the Constable will be expected to provide a full report regarding the incident and his actions.

THE EMERGENCY POWERS ACT

INTRODUCTION

The emergency power regulation enacted to give particularly members of the Security Forces sweeping powers to effectively deal with eventualities that may occur from time to time in the island.

The Act is enshrined in the Jamaica Constitution at section 26 (4). It is of paramount importance that we internalize and have a practical knowledge of the contents of this Act.

It is necessary for the security the essentials of life of the community, the preservation of the Peace, securing, regulating and distributing food, water, fuel, light and other necessities.

If we are found lacking this regard it will render our authority impotent.

We should therefore begin by having a clinical look of certain terms we will encounter during the expanse of the subject.

These are:-

- ✓ Security Forces
- ✓ Period of Public Emergency
- ✓ Competent Authority
- ✓ Constable
- ✓ Authorized Person

Firstly, let us examine -

SECURITY FORCES MEANS:-

- ✓ The J.C.F.
- ✓ J.D.F.
- ✓ I.S.C.F.
- ✓ Rural Police

Now that we have an appreciation for the definition - Security Force let us move on to

PUBLIC EMERGENCY PERIOD DURING WHICH -

- ✓ Jamaica is engaged in any war; or
- ✓ There is in force a Proclamation by the Governor General declaring that a state of public emergency exists; or
- ✓ There is in force a resolution of House supported by the votes of majority of all the members of the House declaring that democratic institutions in Jamaica is threatened by subversion.

COMPETENT AUTHORITY

Means the Governor General, the Minister responsible for internal security; the chief of staff of the Jamaica Defence Force, The Commissioner of Police or the Senior Officer of Police in each parish".

In relation to any particular regulation which confers any powers upon any competent authority, includes such person as may be appointed by the Governor General as competent authority for the purposes of such regulation".

CONSTABLE

Means any member of the Jamaica Constabulary Force, any district constable, any military district constable, or any special constable".

The provisions of the regulations may be looked at cursorily, then attention be paid to the "Detention of Persons" under the regulations.

It should be noted both sections 26 (5) of the Constitutions and section 2 of the Emergency Powers Act, 1938 provided for the declaration that a state of public emergency exists if the Governor General is satisfied.

AUTHORIZED PERSON

Means any competent authority, any member of the armed forces of the Crown; and constable, any member of any fire brigade or any person authorized by any competent authority to do the act in relation to which the expression is used

POWERS OF GOVERNOR GENERAL TO DECLARE A STATE OF EMERGENCY

Is contained in Section 26 (5) of the constitution and Section 2 of the emergency powers Act, before this is done he must be satisfied that:-

- That a public emergency has arisen as a result of the occurrence of any earthquake, hurricane, flood, fire, outbreak of pestilence, outbreak of infectious disease or other calamity whether similar to the foregoing or not, or
- That action has been taken or is immediately threatened by any person or body or persons of such a nature and on so extensive a scale as to be likely to endanger the public safety or to deprive the community of supplies or services essential to life".

There is now a state of public emergency in Jamaica and there have been no earthquake, no fire, no outbreak of pestilence, infectious disease or other calamity, so what?

Section 2 (b)

Of the Emergency Powers Act provides the answer as in fact there was threatened action likely to endanger the public safety Criminal activities were increasing and other elements prejudicial to peace, order and welfare of the state were at work.

SPECIAL PROVISIONS OF THE REGULATIONS

Public Property is protected from danger, interference, impair of utility or efficiency, etc.

Prevention of trespass to premises of essential services and public premises

Essential Services are protected from danger, etc.

Power to block roads and establish cordons, is given to any competent authority if it is considered necessary providing the public is informed, **A senior Authorized Person** may for a period not exceeding three days prohibit the use of any road or pathway to either persons or vehicles, or set up cordon around any area to regulate entry and egress there from.

Note should be taken of the requirements that members of the public must be notified when any prohibition or regulation will cease.

Other Powers are:-

- ✓ To require the removal of vehicles (e.g. those with explosive or inflammable substance)
- ✓ To do work on land
- ✓ To requisition any article - e.g. ships, vehicles, etc
- ✓ To requisition essential services
- ✓ To require returns - e.g. in relation to any premises, animals, article, etc. under their control
- ✓ To require information

- ✓ Prohibition of assemblies likely to be prejudicial to public safety
- ✓ Prohibition against discharging firearms or other missiles

Special attention should be paid to Regulation 15 which restricts the publication of anything (whether true or false), whether oral or written which is likely to incite or provoke a breach of the peace.

SPECIAL POWERS OF SECURITY FORCES:

Persons may be prohibited from residing in or entering any area by the Commissioner of Police or the Officer in-charge of a parish.

Imposition of curfew by the Commissioner of Police or Officer in-charge of a parish if necessary.

Any Authorized person may search any vehicle or premises without warrant and may confiscate any literature, articles or thing found which is considered prejudicial to the public safety or likely to lead to a breach of the peace.

Any Authorized Person that is: members of the J.C.F., I.S.C.F., J.D.F. District Constables, Special Constables or members of any fire brigade may arrest without warrant any person whose behaviour is of such a nature as to give reasonable grounds for suspecting.

- ✓ That he has acted or is acting in a manner prejudicial to the public safety; or
- ✓ He has committed, or is about to commit any offence against these regulations.

Where a person is arrested, the following should be strictly adhered;

Persons below the rank of Deputy Superintendent of Police; may detain such person for not more than TWENTY FOUR HOURS i.e. **ONE DAY**.

Persons of, or above the rank of Senior Superintendent of Police or the Resident Magistrate may detain such person for a further period of not more than **FIVE DAYS**;

Persons of, or above the rank of Senior Superintendent of Police; or the Resident Magistrate may detain such person for a further of not more than FIVE DAYS; or if an application is to the Minister for a detention order, such person may be detained for further period of not more than **TEN DAYS**. In other words, the Police may detain a person for up to sixteen days.

DETENTION ORDERS

The first of these orders may be made by the Chief of Staff, J.D.F., The Commissioner of Police, The Senior Officer in each parish, The Governor General, The Minister or the Permanent Secretary, whilst the second and third may only be made by the Minister.

Where a person suspected of acting or acted or about to act in a manner prejudicial to public safety, he may be prohibited from residing in or entering any area or areas as specified in an order. The minister, if satisfied that it is necessary so to do, in order to prevent any person from acting in a manner prejudicial to public safety or public order, may make an order requiring that person subject to such conditions as may be specified in the order, to stay in the house or place where that person resides.

The minister may issue detention orders against any person who is concerned in acts prejudicial to public safety or public order.

The minister may revoke or vary the order as to its duration and may impose such restrictions as:

- Place of residence of such person.
- His association with other persons.

Prohibiting such person proceeding beyond such distance from his place or residence, etc.

Seize, take away and detain any vehicle or article which he reasonably suspects is intended to be used, or has been used, for or in connection with the commission of any offence or is or has been lawfully obtained or possessed.

Arrest any person upon reasonable suspicion of his having committed or of being about to commit an offence.

Establish a cordon around the special area or any part thereof and restrict the freedom of movement of persons and vehicles, into or out of any area so cordoned.

Enforce only curfew imposed pursuant to regulations under this act.

Finally, the Minister may make regulations in respect of the following:-

- ✓ The enforcement or exercise of power to impose a curfew and the administration thereof
- ✓ The operation of cordons
- ✓ The custody or disposal of anything-detained under section 4
- ✓ The establishment of auxiliary forces with like functions, powers and immunities as those of the Jamaica Constabulary Force.

SECTIONS OF ROAD BLOCK:

Personnel performing Road Blocks are divided into three sections viz Headquarters section, operations section and Ambush section as follows:-

Headquarters Section - consists of the following:-

Commander - Sergeant or above for general supervision

Diarist

To log all-important events including names and addresses of persons detained as well as description of property taken. He should also record, make type and registration numbers of vehicles checked. He should be in possession of an up to date list of stolen motor vehicles as well as description of wanted persons. A record of arms in possession of personnel on the Road Block should be made by him.

DOG HANDLER

If possible, a Dog Handler should stand by with dog as a deterrent also to give chase in case of attempts to escape.

MOTOR – CYCLIST

To chase motor vehicles which may try to turn around or break through the Road Block.

DRIVER

To transport personnel also to operate radio spot light etc.

OPERATIONS SECTION

BARRIER SENTRIES

One for each set of barriers to stop and direct vehicles into the Search area. At nights he should be dressed in white tunic or luminous jacket and wear white glove. He should give proper stop signals in sufficient time to be obeyed. He should if possible be covered by an armed escort.

SEARCHERS

There should be a sufficient number of searchers of either side of the road into the search area. There should be at least one detective and one woman Police among the searchers.

AMBUSH OR CUT OFF SECTION

This Section consists of one or more armed men in ambush on either side of the roadblock near to where the motorist would first see the obstruction. They should have walkie-talkie to communicate with the H.Q. Section and their job is to ensure that no motorist turns around and pull out of the road block.

BRIEFING

Personnel going on Road Block operations should first be briefed by the Commander as to the aims of the particular operation, who or what they will be searching for, the section to which each man will be attached exactly, what is expected of him and his general attitude towards his responsibilities. Unnecessary delay to legitimate traffic will be avoided when personnel know their job thoroughly and act quickly and methodically.

COMMUNICATION:

Besides walkie talkie communication with the different sections of the Road Block there should also be radio communication with the Divisional Headquarters and if possible the Police stations nearest to each end of the Road Block. Divisional Headquarters should always know the location of the Road Block so that revised instructions and new information might be communicated to personnel.

PRELIMINARY INVESTIGATIONS

INTRODUCTION

One of the law enforcement profession's most basic skills is that of conducting a preliminary investigation. This skill is an absolute necessity for effective police operations. Much time can be wasted investigating an incident which turns out not to be a crime. Early information concerning the nature of an incident, where and when it occurred and whether it is a crime, can save countless hours of investigative time. A major portion of all accident and criminal investigation is based on information obtained from the circumstances, articles and exhibits found at the scene. A crime or accident scene, which has been handled badly, contaminated, or where something may have been moved or removed, will not provide reliable information. Potential witnesses to the incident may never be identified. Exhibits will be of little or no value because it is not known who touched, moved or placed them where they were located. When a scene has been compromised, the accident investigator or detective cannot depend on the information suggested by the presence (or absence) of an exhibit either during the investigation or in court. Often a poor preliminary investigation of a crime will remove all possibility of identifying or convicting the person responsible

OBJECTIVES OF THE PRELIMINARY INVESTIGATION

The preliminary investigation has several objectives. These include: (See Force Order No. 2230 dated March 1, 1990 appendix "C" for further details)

- Determining if a crime has actually occurred
- Determining the nature of any immediate action which must be taken
- Identifying the victim(s), the location of the crime and when it occurred
- Identifying and arresting the person(s) who committed the crime
- Identifying any witnesses to the incident
- Communicating information concerning the crime and those who are suspected of committing it
- Protecting the scene of the incident, accident or crime

RESPONSIBILITY

In conducting the preliminary investigation, time and personal contact are critical. Because of the importance of time and the fact that the person must be at the site to gather the necessary information, the responsibility for conducting the preliminary investigation is not fixed by rank or function

RESPONSIBILITY FOR THE PRELIMINARY INVESTIGATION IS GIVEN TO THE FIRST CONSTABLE TO ARRIVE AT THE SCENE

Proceed to the scene promptly and safely Place some sort of barricade or rope across all entrances to the scene. If nothing else is available, use other Constables

Do not let unauthorized persons enter, view or take pictures of the scene. This includes reporters, public officials, and even unassigned police personnel. Record the names of all personnel who do enter the scene

Protect exhibits from wind, water and other forms of contamination. If necessary, place boxes over exhibits to protect from rain or wind

Do not touch exhibits unless necessary. Keep track of what you have touched

Do not walk around the scene more than is necessary. Keep track of where you have walked

Locate and identify victims and witnesses

Use courtesy and tact

Keep the witnesses separated if possible, if not ask them not to discuss the crime among themselves

Get complete names and addresses of each witness

Conduct preliminary interview of victim and witnesses if possible

Focus your questions on:

- Whether a crime was committed and when
- An overview of what happened
- Name and/or physical description of person(s) who committed the crime
- Where the suspect went, if not at the site
- What kind of vehicle the suspect is using
- What kind of marks, scratches, exhibits or other items will the suspect have
- Was the suspect armed when last seen?

Give the Control Centre a description of suspect and/or vehicle

If appropriate, ask control to broadcast the description of the suspect and/or vehicle and ask all personnel to watch for suspect

Indicate whether suspect should be arrested, stopped for questioning or followed

Place some sort of barricade or rope across all entrances to the scene. If nothing else is available, use other Constables

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- What kind of marks, scratches, exhibits or other items will the suspect have
- Was the suspect armed when last seen?

Give the Control Centre a description of suspect and/or vehicle

If appropriate, ask control to broadcast the description of the suspect and/or vehicle and ask all personnel to watch for suspect, indicate whether suspect should be arrested, stopped for questioning or followed save control advise all personnel the nature of the crime and if the suspect should be considered armed and dangerous

Have control advise your station and/or superior of the situation and the actions you have taken

Request investigative personnel be sent to the scene

Arrange for the collection of exhibits

Request crime scene personnel be sent to the scene

Advise them of any exhibits requiring special care or equipment

Conduct interviews of victim and witnesses

If you are not relieved by your superior or a detective, it will be necessary to interview all victims and witnesses

Remember, courtesy, tact and concern. The victim and sometimes the witnesses are sometimes in a mild state of shock. Be patient and allow them to tell the story in their own way

- Signed statements should be obtained if possible
- Complete names and addresses
- Include questions, which will establish that a crime was committed
- Elements of the crime
- Include what, when, where, who, how, why
- Prepare personal notes concerning your activities as soon as possible

Include a rough sketch of the crime scene with the locations of all exhibits

Include the name of the superior or detective who took over the crime scene and the investigation

If you gave all your information to a detective or were interviewed by a detective, include his or her name

Prepare a complete written report of the incident as soon as you can.

REVIEW TRIBUNAL

This consists of three persons and is chaired by an Attorney -at - Law. The Chief Justice and the other two members by the Governor General appoint the Attorney. Any person against whom an order is made as at (1), (11) and (111) under Detention Orders above may make objection against the order to the Tribunal.

It should be noted that the Minister has the scale discretion as to whether the recommendation of the Tribunal should be implemented.

Legal Principles Governing Orders Under Emergency Regulations

Since the role of the Police is the foundation of obtaining a detention order it is necessary for the police to be aware of the legal principles governing persons in detention.

"A person has been arrested and the minister issues a detention order - the person applies to the Review Tribunal and after considering the Tribunal's Report, the minister maintains the detention order; what is next?"

A person should be in detention lawfully if he is served with the following documents:-

Notice required under section 39 (8) of the Emergency Powers Regulations, 1976

Notice required under Regulations 40 of the Emergency Powers Regulations, 1976

"The Emergency Powers John Lawrence Order, 1976"

Particulars required by Regulations 39 (9) of the Emergency Powers Regulations, 1976

DETAINEE APPLYING TO HIGH COURT

A person who is in detention may say that his detention is unlawful and unjustifiable and move the High Court for immediate discharge from detention or in the alternative that an order of Habeas Corpus be issued directing the production of their bodies before the court to show cause why they should not be discharged from custody.

An order of Habeas Corpus may not run to grant relief if the detention is lawful. The court may consider such conditions precedent as:

- ✓ The identity of the detainee i.e. whether the facts or information supplied to the minister relates to that detained;
- ✓ That there is in existence a state of emergency
- ✓ If the order is bad on its face
- ✓ That the regulations are strictly complied with

POWER OF MINISTER TO DECLARE SPECIAL AREAS

The minister may declare special areas for period of 30 days during which the Security Forces may apply the provisions of the act as they may without warrant;

Undertake a search of any premises, place, vehicle, person or thing.

MISCELLANEOUS CRIMES AND PROCEDURES

INTRODUCTION

There are numerous types of crimes, procedures and duties, which are not difficult to learn and/or are not frequently encountered. For this reason we have grouped them together. In this lesson, we will discuss such matters as vagrants, street hawkers and peddlers, firearm violations, responsibilities at fires, spirit license establishments, missing persons and death messages.

STREET ACTIVITIES

Two of the more common problems in our streets today is the street merchant and the vagrant. Over the last few years, their numbers have increased significantly and their activities are believed to have a significant effect on the tourist trade. While in most cases, they are doing nothing illegal, they occasionally engage in an assortment of illegal behaviours.

THE OFFENCES LISTED UNDER THE VAGRANCY ACT CONSTITUTE SOME OF THE MOST EFFECTIVE LAWS FOR DEALING WITH CRIMINALS ON A DAY TO DAY BASIS

SUSPECTED PERSONS

A person whose actions have been under police observation and are suspicious, thus giving rise to the opinion of the police concerned that the person intends to commit a crime.

Laws available under the Town and Communities Act

Section 3 of the Town and Communities Act includes prohibitions against:

- Indecently exposing his or her person in a public thoroughfare or public place
- To loiter in any public place and solicit any person for the purpose of prostitution.
- To use any indecent language in any public place or to use any abusive calumnious language
- To disturb any inhabitant or passenger while drunk or to lie or loiter in any highway, piazza or open place between the hours of 9:00 pm and 6:00 am without giving a satisfactory account of himself.
- To conduct himself in a noisy or disorderly manner to the disturbance of the peace and good order, or to the annoyance, discomfort or construction of members of the public. Under Section 12 music and other noises in commercial areas must on request be reduced to the point it cannot be heard over 100 yards from the source between the hours of 6:00 am and 9:30 pm. In residential areas the same limits apply between the hours of 9:30 pm and 6:00 am.
- For street musicians, dancers, actors or showmen to refuse to depart from the neighbourhood when so requested.
- Various offences such as allowing offensive substances to leak on to a public street or to abuse animals are also covered by this act.

DEATH MESSAGES

A frequent duty of Constables on patrol is to deliver death messages. Such messages evoke extreme emotions in many people and when handled improperly can cause undue pain and suffering.

Many Constables find death notification to be one of the most difficult of all police tasks. The following are some suggestions which might help in performing the task in a more humane manner.

Never take or send death information concerning a named individual over the police radio. Ask the dispatcher to call by telephone.

When you receive a call to make a death notification, make sure you have a positive identification of the victim.

Obtain as much information as possible--what, when, how, where. Disregard the "WHY" of the incident. When the question is asked, simply tell the person, "I don't know".

Do not deliver death messages by telephone.

Making a death notification or contacting a person to transport them to make an identification of a dead body is not an emergency call. Do not use emergency equipment. Keep a low profile.

Do not take any personal items of the victim with you for identification purposes. Leave all property at the morgue or funeral home. If there is a need to identify some article as a method of determining the identity of the body, make a drawing and write a description of it.

Try to assess the stability of the individual to whom the message will be given. If in your judgement the person may well require emergency medical assistance, it may be better to use some pretext to get the person to a hospital before you deliver the message.

Do not deliver the death message while standing at the door. Go inside the residence or business, try to obtain some type of privacy, sit down. Be alert for a possible medical emergency. Many Constables find it advantageous to first stop at a neighbour or a relatives home and have them assist in delivering the message. It may be helpful in some instances to have them actually deliver the death message. If this is done, ensure that the person is willing to stay for a time. If there is a police chaplain, by all means use him.

Do not try to hint at the facts. Use a direct approach. "Your (son, daughter, husband, father, mother, etc.) has been involved in an accident; -- has been the victim of a crime; -- has had a heart attack, "He or she has been killed." There is no way to soften the blow of this reality. The message should be very clear on the first hearing with no room for false hope. Don't try to soften it with jargon such as "fatally injured" or "did not survive the accident" or "did not recover" or "did not regain consciousness".

If the person is alone, ask them to call someone, a friend or relative to be with them. If they cannot call, you call for them. Make sure someone is there and willing to remain for a time.

When they ask for details be specific but tactful and try to avoid police jargon. Use plain language. Avoid words, which may give rise to false hope. Don't get involved in discussions about future actions.

Be prepared to spend a few minutes with the person or family. Do not just deliver the message and leave. Try to assess the situation, they will let you know verbally or emotionally that they are handling it and will cue you in some way that it is alright to leave.

STRESS MANAGEMENT

INTRODUCTION

It has long been recognized that police work can be most stressful. The nature of the job has been cited as the reason for the high frequencies of family problems, divorce, alcoholism, heart trouble and suicides found among people in law enforcement. Police personnel are routinely confronted with the worst examples of human behaviour. We are expected to deal objectively with senseless beatings, homicides and mutilated bodies, to be calm when dealing with belligerent, sometimes dangerous people and to be sensitive to the needs of the victims of all manner of horrible crimes and accidents. Moreover, we are required to remain respectful, courteous and considerate to all even when faced with severe provocation. For many, living up to these expectations requires considerable emotional constraint and adjustment. Recent research suggests it may be this stifling of an emotion which causes police stress. Whatever the cause, many police do suffer from stress related problems and steps must be taken to reduce this problem as much as possible.

Education and training in the causes and methods of coping with law enforcement stress has been shown to significantly reduce the problem. As such, it is important that you as a member of the law enforcement community learn to recognize and deal with stress early in your career. In so doing you can avoid the potential behavioural, physical and emotional damage of law enforcement stress.

THE CONCEPT OF STRESS

Stress has been defined by Dr. Hans Selye in his book, *Stress without Distress*. He says stress is the "non-specific response to the body to ANY DEMAND placed upon it".

- All behaviour is an attempt to satisfy certain needs. These needs may be physical, psychological, social or emotional. (Discuss Maslow's hierarchy of needs).
- "ANY DEMAND" refers to the fact that all behaviour is an attempt by the body to respond to some internal or external desire and that stress problems can result from both pleasant and unpleasant demands.
- A "stressor" is any event, object, circumstance or situation which may evoke such a demand.
- Negative or "bad" stress is called "distress" and refers to unpleasant demands.
- Positive or "good" stress is called "eustress" and refers to demands which are defined by most people as pleasing or pleasant.
- Basically, stress occurs when an individual becomes aware of a situation where his or her usual methods of behaving are not adequate and the consequences are perceived as mentally or physically serious.
- Stress is not always bad. In fact, a person will quickly die without some level of stress. He or she would not breathe or eat or move. Stress only becomes a problem if it is intense, prolonged or unmanageable.

STRESS AND PERCEPTION

According to many authorities, police work is one of the most emotionally demanding jobs in the world.

All stress is caused by our reaction to the presence of specific stressors. These same stressors may or may not be perceived as stressful by all who are confronted by them.

Stressors which are not perceived have no affect on the person. For instance, say you were asked to deliver a package to the local hospital:

You delivered the package and went on your way. The package contained a vial filled with deadly bacteria.

The vial had broken and the bacteria were in the process of leaking out of the package. Fortunately, you had delivered the package moments before the deadly germs reached the outside of the wrappings and the catastrophe was averted. A situation which would be most stressful for anyone, yet, because you were unaware of the contents or their condition you were not concerned.

There are many types of work which are more dangerous than law enforcement, underwater salvage, high steel construction, driving race cars, racehorse jockey and deep tunnel mining to name just a few.

These jobs deal with things rather than people and while they are perceived as dangerous they are not considered stressful by those who do them. They are looked upon as a prestigious and profitable activity which involves overcoming a specific set of dangers. Personal danger is perceived only if the person begins to question his or her ability to deal with the specific hazards. If that happens, the job becomes stressful and it is usually necessary to change jobs.

In law enforcement, there is not a single set of dangers, the job is dealing with people and they constitute an infinite, unpredictable variety of hazards. Further, there is seldom any real reward other than a personal sense of satisfaction. Even so, perception is still the key to stress.

Training and education has been found to significantly lower stress levels.

- It gives you a better understanding of the types of situations you will be expected to handle.
- The training allows you to define the work as a specific set of dangers which you can safely overcome with set procedures.

THE MODEL OF STRESS

There are numerous concepts about how stress develops. One of the most informative is called the "model of stress." Using this approach, we can see stress develop and affect the person. The model consists of: (draw on board).

A stimuli (Something which causes an action or reaction) In this case the stressor.

- Frustration (Not getting what you want)
- Fear (not able to control future events)
- Guilt (For actions or thoughts which are believed to be wrong)
- Shock (finding conditions which are not expected)

Appraisal (Perception of the stressor).

- Place emphasis here
- Person cannot control many of the stimuli in the environment (War in Gulf, devaluation of the dollar, etc.).

Reaction (Psychological or physiological)

- This is often the only part the person can control.
- How you react to a crime scene, scene of a death, etc.

Behaviour (actions taken to cope with the stressor)

- Become sick at the sight of blood.
- Strike out at a person who provokes you.

What can the person do about it

Conditioning, preparation, practice

All stressors have one thing in common. They increase the demand for coping with the problem

Some stressors are always around and the human body has become used to adjusting to the needs.

Other stressors are rarely encountered and require major adjustments to successfully handle.

RESPONSES TO STRESS

Physiological Responses

The "general adaptation syndrome, often called the "fight or flight" response

- Energies are gathered for fighting or running away
- Involves all major parts of the body
- Increases the ability to handle injury
- Co-ordinates all functions for survival
- Divided into 3 phases

Alarm reaction

Body prepares for defense through the autonomic nervous system. Adrenaline is released.

Resistance stage

Body is prepared and systems are stimulated to repair any damage caused by the arousal or the stressor.

Exhaustion stage

The defenses begin to collapse

Once invoked, the General Adaptation Syndrome requires vigorous physical activity.

Regular exercise will keep the problem from becoming serious.

Psychological responses

The main problem at the time of the incident involves changes in the emotion-reason scale.

During the time the G.A.S. is in operation in the body the mind is also working to defend itself.

At the conscious level, the individual reacts to stress in one or a combination of three ways.

- Attack the source of the stress (Stressor)
- Compromise in some way
- Withdraw

At the unconscious level, defense mechanisms, "mental defenders of the mind" are brought into play whenever the "self" is threatened.

- Denial - Denies perception, seeks to disregard or disclaim the existence of the source of the stress.
- Rationalization - Seeking to make something more reasonable or acceptable by deceiving itself as to the real nature of the stressor.
- Isolation of Affect - Removing the emotional aspects of a stressor.
- Projection - Placing the blame for unacceptable feelings or shortcomings on others.
- Repression - Removing unacceptable knowledge or thoughts from the conscious mind by forcing them into the unconscious.
- Some 19 or 20 others have been identified

Chronic Stress problems

When the individual has been under severe stress for a prolonged period of time, the body begins to break down in one of several ways.

The onset of behavioural problems

- Alcoholism
- Promiscuity
- Gambling
- Bragging, discipline problems
- Procrastination
- Other Irrational activities
- Illegal activities, graft, corruption

The onset of emotional problems

- Anxiety disorders and neuroses
- Depression
- Burnout

The onset of physical problems

- Ulcers
- Diarrhea
- Headaches
- Gastro-intestinal disorders
- Cardio-vascular disorders
- Ticks and other similar disorders

WARNING SIGNS

You have been given a list of the warning signs associated with stress problems. Please get it out and we will go over each of the signs.

A significant increase in drinking or drug use
 The initiation of a sexual relationship with a member of the criminal element
 An increase in risk taking behaviour or an unrealistic "carefree" feeling towards work

Always preferring to be completely alone.

Feeling helpless

A dramatic increase in feelings of exhaustion; going without sleep for more than 3 days; or averaging less than 4 hours sleep a night for an extended period.

An inability to imagine or look forward to promotions or different assignments in the future

Feelings of liking or preferring the company of members of the criminal element to your colleagues or family.

Constant or persistent headaches, indigestion or diarrhea without apparent cause

Remaining mentally "on duty" when at home with family or friends

Becoming depressed or overly pessimistic about your work, the Constabulary, or the criminal justice system

Feeling the need to strike out or hit someone to relieve your frustrations.

STRESS MANAGEMENT

Stress management is the responsibility of the individual.

You can learn to manage stress.

You can learn to monitor your own stress reactions and how to reduce them.

Basically, stress management emphasizes 3 techniques:

Exercise and diet
Relaxation
Training

Exercise and diet

- Eat 3 meals each day.
- Avoid sugar, salt, animal fats and processed white flour.
- Pursue a regular course of exercises.
- Aerobic exercises are preferred. At least 20 minutes every other day.
- Get enough sleep (6 to 8 hours per night).
- Practice abdominal breathing and relaxation.
- Do not smoke.
- Limit your caffeine and alcohol intake.
- Pace yourself.
- Identify and accept your emotional needs (and limits).
- Look for the warning signs of stress.
- Take appropriate dietary supplements if needed.
- Avoid self-medication.
- Do not dwell on things you cannot change.
- Give in once in awhile.
- Talk about your worries.

Relaxation

Allocate your life into three categories with adequate time for each area. Do not neglect one for the other.

- Occupational time
- Family time
- Personal time

Training

Prepare yourself to handle different types of problems.

- Read books on the subject
- Talk to older personnel to determine their methods
- Take all training offered.
- Seek out information on other law enforcement agencies and how they handle similar problems.
- Become familiar with stress reduction techniques and which ones would be most effective for you.
 - ✓ Progressive relaxation
 - ✓ Self-hypnosis
 - ✓ Bio-feedback
 - ✓ Exercise
 - ✓ Hobbies
 - ✓ Religious activities
 - ✓ Nutritional approaches

CONSTABLE SURVIVAL TECHNIQUES

INTRODUCTION

Most of your duties will be of a routine nature. While the many police oriented television programs and movies would suggest that the police are frequently involved in gunfights and other altercations, this is not true. The use of firearms is seldom justified and the probability of being assaulted is very low. In fact, many Constables have completed a career of service without firing a shot or fighting with a suspect.

This does not mean that there is no danger in performing police duties. The potential is always there. What it does mean is that when the proper procedures are used, the probability of armed resistance or physical resistance is very low.

The key to avoiding problems is to always follow proper procedures. This can be a problem. The work can become so routine that it is easy to forget that the potential for injury is always there. Police work is in many ways like working with caustic acids. As long as you follow the rules for handling them there is little danger. Often they are easy to handle, many are colourless and all seem quite non-threatening when viewed. Yet, violate proper procedures even once, and they will scar you for life.

In these notes we are going to discuss the proper procedures for dealing with some of the more dangerous situations. These include basic survival techniques, street confrontations, high-risk vehicle stops, building searches for suspects and fugitives, and barricaded suspects.

TACTICAL THINKING

One of the first steps to keeping yourself out of serious trouble is called tactical thinking. Often police will happen on to a dangerous, wanted criminal or a serious crime in progress. Without a plan or consideration for their own safety or the safety of those around them, they will confront the criminals. When they are successful, they are commended for their bravery and initiative. When it does not work out they are given a hero's funeral. Whatever the outcome, they have needlessly endangered not only their own lives, but also the lives of all the civilians in the vicinity.

Such actions are thoughtless and foolhardy. But even more important, they are unprofessional and contrary to the mission of the Force. No matter how severe the circumstances, you must always remember.

*****YOUR FIRST DUTY IS PROTECT THE LIVES OF THE CITIZENS*****

If this means that you must put yourself in danger, then so be it. That is the job. That is why we have been hired by the public. In fact, depending upon your assignment, your primary job may be to place your body between an assassin's bullet and his target. Let there be no misunderstanding on this point, your job is to protect the public.

*****IF YOU ARE NOT WILLING TO PUT YOURSELF IN HARMS WAY TO PROTECT OTHERS, YOU SHOULD NOT BE A MEMBER OF THE FORCE*****

Once your priorities are clear on this and you fully understand that catching criminals is not as important as protecting the public, you are ready for the next step. This next step is learning how to protect you from the dangers of putting yourself in harms way.

To a great extent, protecting yourself is a matter of common sense and an understanding that law enforcement is not a test of courage or manhood or daring. It is simply a job, and like in other jobs, it is only the results that count--not the intent, not the effort, not even the reputation.

The secret to survival as a Constable on the street is the consistent utilization and employment of tactical thinking.

*****TACTICAL THINKING IS SELF-PROTECTIVE THINKING. IT INCLUDES ANALYZING THE SITUATION, ANTICIPATING THE PROBLEM AREAS AND DECIDING WHAT TO DO OR SAY AS PART OF AN OVERALL PLAN FOR CONTROLLING THE SITUATION *****

Over the years, a number of "do's and don'ts" have evolved. These methods of working have protected law enforcement personnel from injury or death time and time again. They are as follows:

- You must remain constantly alert to what is going on around you. Use all your senses.

*****DO NOT LISTEN TO RADIO COMMERCIALS OR READ MAGAZINES WHILE ON DUTY*****

They are distracting, they reduce your ability to hear what is going on around you and they take your mind off the job.

- Watch for anything unusual, people avoiding eye contact, unusual expressions, sudden movements, unexplained running, individuals leaving an area where a crowd is gathering, people dressed in an unusual manner, etc.
- When you are on duty, always stand or sit in a position which allows you to observe anyone approaching.
- Always seek the most advantageous position when talking with others, higher ground, back to the wall, curb, etc.
- When talking with people who are in any way suspicious, do not get closer than about 15 feet. Do not allow yourself to remain seated in a vehicle or a chair while talking to people on the street or in their homes until you are satisfied that they do not pose a threat.
- Do not stand in front of windows or doors when answering calls for assistance or when conducting security checks of buildings.
- Never allow a suspect or a person with unknown intentions to get behind you. (Unless your partner is watching them).
- Always protect your weapon, keep it out of reach and away from suspects and prisoners at all times.
- When approaching vehicles be particularly careful to check the rear seat. Remain close to the vehicle and to the rear of the driver's door when talking to the driver.
- When answering calls which may involve an armed criminal, do not enter the building or business without first checking to see if the suspect is still inside.
- When answering disturbance calls, determine the locations of all participants as soon as possible.
- When your first inspection reveals that a burglar or robber may still be present, do not attempt the arrest yourself, cover all exits and call for assistance.
- Always tell Control where you are when you stop a vehicle, conduct a building investigation or arrive at the scene of an incident.
- When making a planned arrest, always take enough people to eliminate the probability of resistance. Even so, always plan for resistance and/or flight on the part of the suspect.

When you are confronted with a dangerous situation, whether on routine patrol, answering a call or as part of a planned arrest, you should automatically.

Assess all potential danger areas e.g. persons, buildings, ditches, etc.

Evaluate the level of danger associated with each and determine what priority should be given to controlling or neutralizing it.

- Usually the greatest danger will be from the person to whom you are talking. However, it may also be from another person (or persons) who are out of sight. (For example, in a domestic dispute you may be talking to the person who made the complaint, while the husband or offending person remains at some other location inside the house).
- Do not use an approach or technique which will protect you but expose bystanders or innocent citizens to possible danger.

****ALWAYS REMEMBER WHO IS SUPPOSED TO BE PROTECTING WHOM****

Determine the various possible locations from where you or others might be attacked.

- When you are talking to a suspect on the street, this might be his hands and feet, or a covered area which might contain a weapon.
- On a vehicle this might mean the window, the trunk, one of the rear doors, etc.
- On a house this might include the front door (particularly if it is a hollow door), windows, a shuttered area that you cannot see into, etc.

Determine which of the areas you can watch or control and which you cannot control.

How can you control or neutralize these areas?

- Do not stand in front of the car door in a vehicle stop.
- Do not stand in front of a door to a home when knocking.
- Place your patrol vehicle between you and a suspect or a building, etc.

Walk close to the buildings when on foot patrol at night.

When confronted with a problem, determine if there is a CLEAR AND PRESENT THREAT WHICH MUST BE CONTROLLED in order to protect yourself or others. This is usually a weapon of some type in the hands of the suspect.

Direct all your attention to the primary threat, how to neutralize it or protect against it.

- When a person is holding a gun on you, attempting to use your own weapon is in effect focusing your attention on the body of the suspect and away from his weapon. (Unless you intend to disarm him by shooting the weapon out of his hand). Few people are fast and accurate enough to draw and shoot a person who is already holding a gun on them.
- If the weapon is the hands and feet of a suspect, it does little good to try to choke him. You are better advised to neutralize his weapons. (Deflect any blows, use a come-along, summon assistance, handcuff him, etc.).

Even if fired upon or attacked with a deadly weapon,

****YOU MUST NOT TAKE ANY ACTIONS WHICH WOULD PUT INNOCENT CITIZENS AT RISK****

You must never fire toward a crowd or on a bus or in the vicinity of the suspect, etc.). This is true, even if you are being fired upon.

CONFRONTATIONS WITH POSSIBLE SUSPECTS

Talking to people is one of the most common activities of a Constable. Taking complaints, gathering facts, giving directions, checking identifications, checking driver's licences, explaining laws and other regulations take up much of the average day. However, you will also be talking to individuals who you suspect may have committed a crime or who may be in a very emotional state. When talking to such people it is important that you learn to take certain basic precautions.

- ✓ NEVER use a domineering, insulting, abrasive or belittling manner when dealing with a possible suspect.
- ✓ NEVER attempt to make him look weak or cowardly in front of others, particularly his girlfriend, other females or his male friends.
- ✓ Do not use the TV stance of leaning close to the suspect with your feet spread and your arms across your chest while facing him squarely, your face very close to his face - it is a threatening stance and you are very vulnerable.

THE OPEN STANCE

The most effective distance for persuasion is approximately 10 feet. At this distance you can use what is known as the **OPEN STANCE**. In the open stance you are facing the suspect with your weak side slightly forward, your arms are lowered to at least the waist and any attempts to persuade the person should be accompanied by arm movements which show open palms (with fingers down) toward the suspect.

- This is the beginning position and the position from which you can make judgement as to the whether the person poses a danger to you.
- Your body and your actions should convey openness, fairness and lack of hostility.

THE READY STANCE

If it is necessary to come closer to the suspect, you must change to what is called the **READY STANCE**. In this position your weak side is further extended toward the suspect, your arms at shoulder level, palms toward the suspect (fingers pointing up) and whenever possible standing slightly to the strong side of the suspect.

- You will appear to be using your hands to talk and that is fine. Your arms will be up in case the suspect suddenly attempts to strike. Your forward leg can block any unexpected kicks.
- Your body, your actions and your voice should still convey openness, fairness and a lack of hostility.

THE DEFENSIVE STANCE

When you find it necessary to come within less than 5 feet of the suspect, you should again change your stance. When operating at close range you should use the DEFENSIVE STANCE. In this position your weak side is further extended and your hands are just below face level, still with the palms toward the suspect and the fingers up. Always attempt to move toward his strong side, it limits his ability to use his strong arm effectively.

Do not get closer than 5 feet from the suspect if you do not feel you can control him (or her) with empty-handed tactics. If the suspect has a knife or gun, **YOU WILL NOT BE ABLE TO ACT QUICKLY ENOUGH TO EFFECTIVELY BRING YOUR WEAPON INTO ACTION AT THIS DISTANCE.**

HIGH-RISK VEHICLE STOPS

As we learned in the lesson on routine patrol procedures, one of the more common tasks performed by Constables on the street is that of stopping vehicles. This might be for a traffic violation, erratic driving, and equipment violations, as part of a search for criminals or any other of a number of possible reasons.

Stopping vehicles is a hazardous undertaking because the occupants of the vehicle may have just committed a major crime. While you have no way of knowing this, the occupant may assume you do and that is why he is being stopped.

Not only is it hazardous to confront the occupants, but the whole vehicle interception process offers a number of potentially serious problems.

This includes;

- Choosing a safe place for the vehicle to pull over;
- Using the emergency equipment to make the stop and;
- Making sure no other vehicles are involved in a collision while the suspect vehicle is pulling over to the side of the street as well as;
- Dealing with the occupants, once you locate a vehicle containing possible suspects, considerable planning must take place.

The concept of stopping a suspect safely involves stopping at some distance behind the vehicle and, while remaining at a distance, remove the suspects from the vehicle and into an arrest position. The key here is that,

****YOU MUST NOT APPROACH THE VEHICLE UNTIL THE OCCUPANTS ARE OUT****

The first question is, "should you attempt to make the stop without additional assistance?" This will depend on a number of circumstances. The nature of the crime, whether you are on foot or in a vehicle, how many Constables are with you, etc.

- If you are on a walking beat with your partner and the only method of stopping the vehicle is to hold up your right hand while standing in front of the vehicle, you are taking a serious risk.

- If you are in a vehicle with several partners or assistance is very close, it may be possible to do so without undue risk. This is particularly true if:

The person is obviously alone in the vehicle.

- The person is suspected of a non-violent type of crime.
- The person is known to you and a certain rapport has been developed between you.
- The person is alone on a motorcycle and there is no cover opportunity in the immediate area.

Once you have decided to stop the vehicle the following areas should be considered:

Stop the suspect at a location to your advantage

- Always consider possible dangers to the public.
- Consideration should be given to stopping the suspect at a location where escape routes are limited. (Along side the wall of a large building, a fence, closely parked cars, etc.).
- Stop at some distance behind the vehicle, (25 - 35 feet) remembering to use the position of your car to protect you from both the traffic and a possible attack by the suspect.

Illuminate the suspect vehicle

Even in daylight, it is effective to place your high beams on the suspect vehicle since it blinds him when looking back at you or watching your actions in the rear view mirror.

Get behind cover

It is usually best to use your vehicle for cover, either behind the doors or if the vehicle is at an angle, behind the car itself. However, if there is better cover in the immediate area, a tree or the corner of a building, use it.

Announce your purpose in stopping the vehicle.

If you are going to arrest them, tell them they are under arrest and state the charge.

Tell the driver to "turn off the motor" of the vehicle and put on the emergency brake.

Tell all occupants to stay in the vehicle.

You may wish to have all occupants stick their hands out the windows of the vehicle.

You may prefer to have everyone interlock the fingers of both hands behind their heads.

Order ONE PERSON AT A TIME to get out of the car, facing away from you and slowly lie on the ground face down in a spread eagled position with their hands straight out away from their bodies or interlocked behind their heads.

Be sure you have enough personnel to forestall an escape attempt and to prevent a suspect from trying to shoot you.

Designate which person you wish to leave the car by their location (driver, person sitting behind the driver, passenger in front seat etc.).

Make sure the Force personnel are not in positions which could endanger citizens or other personnel if shots are fired. Do not let them bunch up.

When all suspects have been removed from the vehicle and are on the ground under guard, briefly search the vehicle. This search is primarily for additional occupants and weapons. Do not forget the trunk. Have one of the suspects observe your search.

When the search of the vehicle is complete, carefully handcuff and conduct a preliminary search of each suspect. Do not step between the Constable guarding the suspect when handcuffing or searching

the individuals. Once the suspects are handcuffed, you may wish to conduct a detailed search of the vehicle. Have a suspect observe if you do.

As you complete the searching procedure on each suspect place him in a vehicle under guard of another Constable.

BUILDING SEARCHES

When in pursuit of a suspect or as part of a raid, it is often necessary to search a building. This can be quite dangerous. Obviously your greatest hazard is that a suspect can hide and wait for you almost anywhere in the building and it is almost impossible to surprise him.

IF YOU KNOW A SUSPECT IS IN THE BUILDING you should call for a unit which specializes in locating and arresting suspects under these conditions. You should not attempt to make an arrest of an armed suspect alone or with only your partner when his location in a building is unknown. Inevitably someone, you, your partner or the suspect will be injured or killed.

*****IF THERE ARE OTHER OPTIONS, SUCH AS CANINE UNITS OR A GOOD METHOD OF ISOLATING THE BUILDING DO NOT GO IN*****

In most cases, when you elect to go into a building, you are fairly sure that the suspect has left. Under these circumstances, you are probably looking for possible exhibits which may further identify the suspect, additional crime scenes or just being complete in making sure he did not stop to hide. Whatever the reason, you must use extreme caution.

Do not try to search a building alone as well make sure you have proper equipment.

- Powerful light source
- Flashlight
- Wedges to hold doors open
- String
- Mirror
- Information regarding the inside of the building
- Do not let civilians assist you nor let them pressure you into conducting a search before you are ready.

Make sure your entry point is a safe entrance.

- It is accessible
- It will not lock after you go in
- The suspect is not beyond the entrance waiting for you to try to get in.

Attempt to contact the suspect verbally before entering.

- Order the suspect to come out. Tell him to walk backwards with his hands up. Tell him if he doesn't come out now he will be considered armed and dangerous and HE MAY BE SHOT.
- Wait for any reactions to your verbal command.

On occasion, even when the suspect is in the building and doesn't surrender, other occupants who are not involved may come forward and can be removed from possible danger.

Search the main floor first

Usually the most efficient method of conducting a search is to start with the main floor.

DO NOT ATTEMPT TO SEARCH MORE THAN ONE FLOOR AT A TIME

After the main floor is secure, leave a guard on the floor and start at the uppermost floor. Work your way down slowly. Do not get in a hurry and do not forget to check the attic or roof. If there is a basement, search it last

When searching a building, make a habit of walking near the wall and at an angle so that your back points slightly toward the wall. Do not touch the wall

Work in pairs with one of you watching while the other moves and then the other watching while you move. In this way, you are always to some extent protected by your partner

Do not stand in doorways or in front of windows. Move quickly when passing these areas because you are easily seen and an excellent target during this time

When you are concerned about opening a door, tie string on it and pull it open from a distance.

If you find something which appears to be out of place, do not touch it

Use mirrors to check around corners and before entering crawl spaces in the attic

BARRICADED SUSPECTS

While it is not a common occurrence, emotionally deranged people and fugitives occasionally elect to make a stand in a house or other structure. Usually they are armed and in many cases they expect to be killed. This attitude and their willingness to shoot, make this type of a situation particularly dangerous.

The Force has a unit which is trained to deal with this type of problem and when you see this type of situation, they should be called immediately.

As a Constable, your primary job is to secure the area. That is, to protect the lives of the citizens and to block any possible exits in case the criminal tries to run. Your secondary job is to obtain as much information as possible about the suspects and the situation.

*****ABOVE ALL, DO NOT WALK INTO THE SUSPECTS LINE OF FIRE AND DEMAND HE SURRENDER OR THAT HE DISCUSS THE PROBLEM WITH YOU*****

If you talk to the suspect at all, do it from a location which provides you adequate cover. Remember however, that your primary duty is to secure the area and protect the lives of the citizens. You will be expected to:

Immediately contact Control and advise them of the situation. Tell them what you have done and request assistance to ensure all entrances and exits are blocked. If there are residents in the houses near the suspect's location, advise Control of that fact.

Close off any streets which are visible from the suspect's location. Many criminals have fired on passing motorists in the past.

Stop all people from walking into range or possible view of the suspect. Stop anyone from entering the building where the suspect is located.

If possible, while keeping the public at a safe distance, determine who the suspect is and if he lives in the area. Pass this and any other pertinent information on to Control.

If you can do it without allowing pedestrians and vehicles into the danger area, try to get local residents to leave the area for the time being. Try to determine who will have to be evacuated after assistance arrives.

To the extent possible, determine the number of suspects, their exact location, the types of weapons they have, whether there are other people in the building and if there are hostages. Be sure to pass this information on to Control.

- String
- Mirror
- Information regarding the inside of the building.
- Do not let civilians assist you nor let them pressure you into conducting a search before you are ready.

Make sure your entry point is a safe entrance.

It is accessible

It will not lock after you go in

The suspect is not beyond the entrance waiting for you to try to get in.

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Order the suspect to come out. Tell him to walk backwards with his hands up. Tell him if he doesn't come out now he will be considered armed and dangerous and HE MAY BE SHOT.

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When you are concerned about opening a door, tie string on it and pull it open from a distance.

If you find something which appears to be out of place, do not touch it.

Use mirrors to check around corners and before entering crawl spaces in the attic.

MURDER (ABNORMAL DEATHS)

INTRODUCTION

The investigation of unexplained death is still looked upon as the most severe test of the abilities of an investigator and an agency. The primary reason the investigation of death is included in the training program is because it permits a discussion on how the full resources of the scientific process can be used to solve crimes. Virtually all investigative procedures are used to resolve unexplained deaths. This is because the range of possible exhibits, their analysis, the search for motives and the actions taken by a possible offender to evade capture are sometimes considerable. As such, examining the procedures used in these cases make this excellent method of learning the full investigative abilities of the Force.

THE LAWS DEFINED

Homicide:

The killing of a human being by a human being, it may be lawful (non-felonious) or unlawful (felonious).

Non-felonious homicide includes **justifiable homicide** and **excusable homicide**.

Justifiable - Homicide where there is no blame attached. (Committed as:

- ✓ A legal execution - when a court of law finds a person guilty of murder; the person appeals the sentence and the court of appeal disallowed the appeal.
- ✓ When Homicide is committed to prevent another homicide or to prevent rape, or in the protection of ones property, i.e. two hold up men were shot by a patron of a nightclub.
- ✓ An Officer of the law whilst performing his duties in a lawful manner has of necessity to kill someone i.e. while trying to apprehend an offender he came under attack whereby he thought his personal safety was endangered.

NB: *****This does not give the Police the right to kill a man who is running so as to escape being apprehended*****

Excusable - Homicide where there is some blame attached but it is not punishable for example.

Should a boxer during a bout of boxing hit his opponent and the opponent dies as a result of that blow.

Where a person believes he or his family was being attacked with deadly force.

NB. ***** Deadly force means force that can result in the death of someone*****

Three (3) Common Factors in Considering Homicide

- ✓ Person killed is a reasonable creature in being
- ✓ Person dead must be in Queens Peace – Any person killed outside of the Act of War declared by Queen.
- ✓ Death of deceased occurred within one (1) year and a day.

Felonious homicide - includes murder, manslaughter, infanticide and suicide

Murder - Where a person of *****sound memory *****and **discretion** unlawfully killeth any reasonable creature in being and under the queens peace with malice aforethought either expressed or implied, death following within a year and a day.

(The killing must have been unlawful and without justification or excuse and the death caused or accelerated by some act or omission on the part of the perpetrator).

*****Any person to whom criminal liability may be attached. This does not include any child under 12, idiot, imbecile or lunatic*****

Person who are abnormal or suffers from ***** diminish responsibility***** (is argument for defence) cannot be convicted of murder but involuntary manslaughter.

****Diminish Responsibility** (must be proven under Mc Norton Rule)

McNaughten Rule

It must be clearly proven that at the time of committing the act, that accused was labouring under such defect of reason of disease of the mind and he did not know the nature of quality of his act / or if he did know he did not know what he was doing is wrong.

Three (3) classes of Young Person

- ✓ 12 years and under – “Irrebuttable Presumption” – presumption in law that child under 12 cannot commit a crime.
- ✓ 12 years but under 14 years – Rebuttable but must prove that a child knew what he did was wrong. “ Mischievous Discretion” i.e his conduct, character, intelligence
- ✓ 14 – 17 treat as adult – If gun involved – gun Court. Other cases Juvenile Court except charged with adult⁴.

There are two (2) Categories of Murder

Section 2 (1)

Capital Murder

Murder committed in the following cases

- A member of the security forces acting in the execution of his duties or of a person assisting a member so acting
- A correction officer in the execution of his duties or of a person assisting a correction officer
- A judicial officer in the execution of his duties or any person acting in the execution of his duties, being a person who, for the purpose of carrying out those duties, is vested under the provisions of any Law in force for the time being with the same powers, authorities and privilege as are given by law to member of the Jamaica Constabulary Force, or murder of any such member of the security forces, correctional officer, judicial officer or person for any reason directly attributable to the nature of his occupation.
- Where a person is murdered for any reason directly attributed to, the status of that person as a witness or party in a pending or concluded Civil or in any criminal proceedings; or the service or past service of that person as a Juror in any criminal trial.
- The murder of a Justice of the Peace acting in the execution of his judicial functions;
- Any murder committed in the course or furtherance of
 - Robbery
 - Burglary or house breaking
 - Arson in relation to a dwelling house
 - Any sexual offence
- Any murder committed pursuant to an arrangement whereby money or anything of value –
 - Passes or intended to pass from one person to another or to a third party at the request or direction of that other person; or
 - Is promised by one person to another or to a third person at the request or direction of that other person.

As consideration for that other person causing or assisting in causing the death of any person or counseling or procuring any person to do any act causing or assisting in causing death.

- Any murder committed by a person in the course or furtherance of an act of terrorism, i.e. an act of violence which is by its nature and extent, is calculated to create a state of fear in the public.

Sub- Section 2

If, in the case of any murder referred to in subsection (1) (not being a murder referred to at paragraph (vii) above two or more person are guilty of that murder, it shall be capital murder in the case of any of them by his own act caused the death of, or inflicted or attempted to inflict bodily harm on, the murdered, or who himself used violence on that person in the course or furtherance of an attack on that person; the murder shall not be capital murder in the case of any person guilty of it.

Non-Capital Murder

Sub-Section (3)

Murder not falling within subsection (1) mentioned above is Non-Capital murder

Sub-Section (4)

Where a person is accused of murder and the circumstances point to Capital murder the offence shall be charged as capital murder in the indictment.

Sub-section (5)

In this section-

Correctional Officer has the same meaning as in the Corrections Act.

Judicial Officer means

- Judge (Supreme or Court of Appeal), Master in Chambers or any person performing these functions
- The Registrar or Deputy Registrar of the Supreme Court, the Revenue Court or the Court of Appeal or persons performing these functions;
- The Resident Magistrate or person performing the functions of a R.M.
- A person employed in a court's office who carries out prosecution of offences or in the D.P.P. or engaged to carry out functions on behalf of the D.P.P.

Members of the security forces mean

- The Jamaica Constabulary Force
- The Jamaica Defence force to the extent that such member has been assigned to act in aid of the police
- The Island Special Constabulary Force
- The Rural Police

THE ELEMENTS OF THE CRIME OF MURDER

Memory and discretion

Someone who is not senile and is in a position to foresee the result of his action, someone who can reason to the extent that they would not go and sit on the railway tracks when the train is coming. He or she would know that the train would not be able to break up in time to prevent crushing him or her.

Unlawfully kills

No reason lawful or otherwise for doing the act of killing. Example someone kills another because the money he had sent from the UK to complete his house was used for other purposes.

Reasonable creature in being

Someone who can survive by himself; not attached to the mother by means of an umbilical cord; has an independent circulation

Malice aforethought (Expressed or implied)

Malice aforethought has a long history. It is a concept of common law. It is safe to conclude that it consist in –

Essence of murder- without malice the offence would be something else.

Implied Malice (not spoken)

Express (opposite of implied)

Transferred (Faith fired a gun at Sonia, missed and shot Jeffrey instead)

Example: Faith intended to murder Sonia, shoots at Sonia but misses and kills Patryc, who unknown to Faith was standing near by. Faith would be guilty of murder.

It should be noted however, that in the example, if Faith had fired at a dog not knowing that person was standing nearby could not be guilty of murder. She could not be charged with murder of the dog therefore the malice could not be transferred from the dog to the person.

Universal (no specific person – suicide bombings – World Trade Centre 11.9.2002)

Death within a year and a day

Deceased was hit on head with a hammer on 1st. day of January 2002. Died as a result of the blow on the 2nd day of January 2003, would have to produce the result of medical evidence.

NB.

Nolle Prosequere (died in year and day)

Change charge to murder if case is still before the court for charge of wounding or even if convicted for wounding, charged can be laid and time spent in incarceration taken into consideration.

Actus Reus (the guilty act forbidden by law)

In murder is the death of the victim and not the means that was used.

POINTS TO PROVE MURDER

- ✓ That some definite person is dead that is establishing the identity of the deceased (unless the act of killing was witnessed then the murderer could be tried and convicted although the name of the victim was unknown.)
- ✓ That death was otherwise than in the course of nature. That is not due to illness or old age. Some thing that was brought on by the act of someone or the non-action of someone.
- ✓ That death took place within a year and a day from the commission of the fatal act. See example.
- ✓ By whom death was caused or accelerated. That is the identity of the person whom is thought to have caused the death.
- ✓ That death was caused by the felonious act or the omission of the accused and of malice aforethought.

CAUSATION

The action of the person accused need not be the sole cause of death, but there must be some definite and direction connection to the cause of death.

Child Destruction

If pregnancy is over seven (7) months and the act done is to solely discontinue the life of child.

Pregnancy under 7 months is abortion once the act done is not to save the life of the mother, not due to any risk that my involves which threatened the survival of the mother.

Attempted murder

Any person who with intent to commit murder, poisons, wounds, causes grievous bodily harm to any person or who damages any building, damages or sets fire to any ship, or otherwise attempts to commit the act.

Threat to murder

Anyone who maliciously and knowingly sends delivers or utters any letter or writing threatening to kill or murder any person.

Manslaughter

The unlawful and felonious killing of another person without murderous malice either expressed or implied. Manslaughter may be voluntary or involuntary in nature.

- Voluntary
The result of provocation at the time of the act e.g. Tom provokes John by telling him that his mother is also his sister. Immediately without any delay, within that instant John used a hammer to hit Tom on the head. Tom died as a result of the blow some four days later or on the spot.
- Involuntary
The act occurs in the course of some non-felonious but illegal activity or the death is a result of a perpetrator's negligence in his duty e.g. Tom is a non-swimmer and he knows this, he was half way across the bridge at Morant Bay. A car was coming towards the bridge from the town. The manner in which the car was being driven caused Tom to panic and jumped in the river. He drowned.
- Another example is the man who is driving at 40 M.P.H. in the 30 M.P.H. zones and hits a child killing same. The child had run across the road to retrieve a ball.

PROVOCATION

Section 6

Where on a charge of murder there is evidence on which the jury can find that the person charged was provoked (whether by things done or things said or by both together) to lose his self control, the question whether the provocation was enough to make a reasonable man do as he did shall be left to be determined by the jury; and in determining that question the jury shall take into account everything both done and said according to the effect which, in their opinion, it would have on a reasonable man.

An act or series of acts which when done to accused caused him to lose temporary self control rendering him for the moment not to be the master of his mind.

POINTS TO PROVE MANSLAUGHTER

That some definite person is dead: that is the identity of the deceased (unless the act of killing was witnessed then the murderer could be tried and convicted although the name of the victim was unknown.

That death was due to unnatural causes: that is brought on by the action or non-action of someone.

- By whom death was caused that is the identity of the accused.
- That the cause of death was due to:
 - A criminal act i.e. hit on the head with a hammer; or
 - Omitting to do some act which should legally have been done i.e. is not giving the child medication for a particular illness or

By doing some act which was quite legal, but with wicked negligence and therefore unlawful i.e. driving at 50 M.P.H. in the 30 M.P.H. zone.

INFANTICIDE

Where a woman, by any willful act or omission causes the death of her child less than 12 months of age. However, at the time of the act or omission, the balance of her mind was disturbed by reason of not being fully recovered from the effect of giving birth to the child or by the effect of lactation (not producing sufficient milk) consequent upon the birth of the child. (Post-partum psychosis). Under these circumstances, the woman is dealt with as though the crime were manslaughter rather than murder.

POINTS TO PROVE INFANTICIDE

That the person charged for the crime of the infant is the mother of the child in question and that she was responsible for the child's death. (Medical record such as a birth certificate would make the connection).

- The age of the child in question must be at the time of the child's death 12 month or under.
- The willful act or omission that is, what was done that resulted in the child's death.
- That the balance of the woman's minds (i.e. the mother of the child in question) was disturbed at the time of the act or omission. For this you will need the opinion of a Medical Officer; will take form of a certificate.
- The cause of death was put forward in the Post Mortem examination result.

SUICIDE

Where a person kills himself and is therefore the perpetrator of a murder of one of Her Majesty's subjects. This was a felony, but as the perpetrator is beyond the reach of human justice, no criminal consequence is followed. (must be proven)

THIS LAW WAS CHANGED BY THE SUICIDE ACT OF 1961 AND NOW NEITHER SUICIDE NOR ATTEMPTED SUICIDE IS A CRIME

To aid, abet, counsel or procure the suicide or attempted suicide of another is a crime.

Suicide pact

Section 7 (1)

It shall be manslaughter, and shall not be murder, for a person acting in pursuance of a suicide pact between him and another to kill the other or be party to the other killing himself or being killed by a third person.

Section 7 (2)

Where it is shown that a person charged with the murder of another killed the other or was party to his killing himself or being killed, it shall be for the defence to prove that the person charged was acting in pursuance of a suicide pact between him and the other.

Section 7 (3)

For the purpose of this section "Suicide Pact" means a common agreement between two or more persons having for its object the death of all of them, whether or not each is to take his own life. (But nothing done by a person who enters into a suicide pact is to be treated as done by him unless it is done while he has the settled intention of dying in pursuance of the pact). (Andrew and Everton decided to die by shooting, Andrew shoot Everton, but did not shoot himself) (Murder)

Other associated laws and acts included in the Offences against the Person Act and commonly encountered when investigating attempted murder.

Section 13

Administering Poison, Wounding with Intent to Murder

Whosoever shall administer to, cause to be administered to, or taken by any person or other destructive thing, or shall by any means whatsoever, wound or cause any grievous bodily harm to any person, with intent, in any of the cases aforesaid, to commit murder shall be guilty of a felony. – Penalty Life Imprisonment.

Section 14

Destroying or Damaging any Building with Intent to Murder

Whosoever, by the explosion of gunpowder or other explosive substance. Shall destroy or damage any building, with intent to commit murder, shall be guilty of a felony.- Penalty Life Imprisonment

Other Offences

Section 15

Setting fire to ship etc., with intent to Murder

Section 16

Attempting to Administer Poison, etc., with intent to Murder

Section 17

By other means Attempting to Commit Murder

Section 18
Letters Threatening to Murder

Section 19
Preventing Person Endeavouring to save his life in Shipwreck

Section 20
Shooting or attempting to shoot or wounding with Intent to do Grievous Bodily harm

Section 33

Genocide

Acts committed with intent to destroy, in whole or part any national, ethnical, Racial or religious group,

- Killing members of the group
- Causing serious bodily harm to members of the group
- Deliberately inflicting on the group conditions calculated to bring about its physical destruction in whole or part
- Imposing measures intended to prevent births in the groups
- Forcibly transferring children of the group to another

Penalty terms not exceeding ten years.

Wounding with Intent

Section 21

Whosoever shall unlawfully and maliciously, by any means whatsoever, wound, or cause grievous bodily harm to any person, or shoot at any person, or, by drawing a trigger, or in any other manner attempt to discharge any kind of loaded arms at any person, with intent in any of the cases aforesaid, to maim, disfigure or disable any person, or to do some other grievous bodily harm to any person, or with intent to resist or prevent the lawful apprehension or detaining of any person shall be guilty of a felony.

Unlawful Wounding

Section 22

Whosoever shall unlawfully and maliciously wound or inflict any grievous bodily harm upon any other person, with or without any weapon or instrument, shall be guilty of a misdemeanour, and, being convicted thereof, shall be liable to be imprisoned for a term not exceeding three years, with or without hard labour.

To unlawfully and maliciously wound or inflict any grievous bodily harm upon any other person with or without any weapon or instrument. A misdemeanour.

PROCEDURE IN DEALING WITH UNLAWFUL WOUNDING

- Send complainant to a Government Medical Officer with the prescribed form. i.e. asking that the complainant be examined and a report as to the findings made.
- Collect statement from complainant.
- Arrest accused if possible if not submit statement to J.P. or clerk of the courts with a view of obtaining a warrant of arrest. N.B. after 48 hours.
- Collect Medical report from the Institution/Hospital concerned; this must be in duplicate. Have the Clerk of the Court put in the accused name, complainants name and sign same in duplicate.
- Serve a copy on the accused before the court date or at least before the trial.
- Endorse as you would other process and attach to file.

Additional definitions

ACTUAL BODILY HARM	Any hurt which interferes with the health or comfort, to any considerable degree.
DISABLE	Inflicting a permanent disability.
DISFIGURE	Inflicting an external injury detracting from the person's appearance.
GRIEVOUS BODILY HARM	Serious bodily harm.
MAIM	Any hurt rendering a person less capable of defending himself.
MALICE	Actual intention to do the particular kind of harm that in fact was done or attempted (or heedless as to whether such harm should occur or not).
WOUND	There must be a breaking of the skin

HAWKER AND PEDDLERS LICENCES

Objective of the Act

Travelling from door to door with articles for sale can provide unusual opportunities to commit crimes and to dispose of stolen goods as well as fair excuse for being found on property. For this reason the act was made to allow the Police to exercise a degree of control on such persons

Licences are obtained by submitting a written application to the chief police authority for the Parish in which the person desires to conduct business. Based on inquiries as to the person's suitability, a certificate is issued.

DEFINITIONS: Hawk and Peddler

Is the term applied to any person who goes from place to place and or from house to house selling or offering for sale any goods, wares, merchandise or other articles of traffic

HAWKERS A hawker is defined as an itinerant peddler of goods

PEDDLERS A peddler is one who travels from place to place or from house to house on foot (without beast of burden) selling or offering for sale any goods, wares, merchandise or other articles.

Peddler (A hawker who trades on foot)

Every hawker, peddler or other person trading in any goods, wares, merchandise or other articles of traffic should be licensed except when selling certain goods exempted by the act.

Certain articles exempt for licence

Persons trading in basic foods are exempt from licensing. These include bread, milk, fish, fruit, vegetables, ground provisions, roots or other vegetables commonly known by the name of bread or similar foods, pickled, salted, preserved or smoked and manufactured in the Island and sold by the manufacturer, the grower or his children.

Class A licence

Permits a street merchant to hawk and peddle goods of a value up to \$10.00 at a time. Under the terms of the licence, he should not carry goods of more than that value at any one time and only in the Parish where issued.

Class B licence

Permits the holder to trade with goods to any value at any one time but only in the Parish in which the licence relates.

Trading without a licence constitutes an offence. The hawker or peddler is required to produce a current valid licence on demand of any Constable.

HOW LICENCES ARE OBTAINED

A person requiring a Hawk and Peddlers licence should make an application in writing to the chief Police Officer for the parish in which the person desires to do business, stating the class of licence he wants whether class A or B.

The officer on receipt of the application will cause enquiries to be made as to whether the applicant is considered suitable. If suitable the officer will issue the applicant with a certificate. The applicant should then take the certificate to the collector of taxes, pay the prescribed fee and receive the licence.

A licence granted in Kingston or St. Andrew is valid for both parishes.

EXPIRATION OF LICENCE

Every licence issued under this act expires on the 31st December of the year it was granted. Provided that where any person applies for a licence under this act within 10 days

UNLAWFUL POSSESSION OF PROPERTY ACT

Because of their locations, Hawkers and Peddlers are often offered stolen merchandise and property. Suspicions of activity of this type can best be handled by using the laws under the Unlawful Possession of Property Act (Chapter 401). Under this act are the following useful statutes:

Suspected persons under this Act include anyone who has in his possession or under his control any article or agricultural produce under circumstances as shall reasonably cause a Constable to believe that the items were stolen or unlawfully obtained.

- Discuss the arrest and trial characteristics when dealing with a suspected person
- Discuss the issuance of warrants in the event of an escape of a suspected person

Whenever a Constable has reasonable cause to believe that any person has in his possession or under his control anything which has been stolen or illegally obtained, he may require that person to disclose and allow him to inspect the contents of any sack, basket, bundle, package, vehicle or other receptacle. Refusal is an offence.

FIREARMS ACT

INTRODUCTION

The purpose of the Firearm Act is to regulate and control the importation, exportation, manufacture, possession and use of firearm and ammunition.

DEFINITIONS: (Section 2)

Firearm

Means any lethal barreled weapon from which a shot, bullet or other missiles can be discharged. It also included any restricted weapons; any component part or accessory to any such weapons design or adapted to diminish the noise or flash caused by firing such weapon. It however does not include any air gun, air pistol, or air rifle of a type and caliber prescribed by the Minister.

Automatic Firearm

Means any firearm so designed and adopted so that when pressure is applied to the trigger, missiles continue to discharge until either the pressure is released or the magazine is empty.

Ammunition

Means ammunition for any firearm and includes restricted ammunition.

Prohibited Weapon

Means any artillery or automatic firearm or any grenade, bomb or other missiles. N.B. (no licence certificate or permit shall be granted in respect of any prohibited weapon unless to a person who had a licence for the same before the commencement of this law). Except for a juvenile anyone convicted of any offence in respect of a prohibited weapon must be sentenced to imprisonment.

Restricted Weapons

Means any weapon design or adapted for the discharge of noxious liquid, gas or any other thing.

N.B (no licence shall be granted in relation to any restricted weapon except with prior written approval of the Minister of National Security)

Restricted Ammunition

Means any ammunition containing or design to contain any noxious liquid, gas or other thing N.B. (no licence, certificate or permit shall be granted in respect of any restricted ammunition except with the prior written approval of the Minister on National Security).

Restricted Person

Means any person who is a registered habitual criminal who has been so declared by a court or any person who has been convicted of any offence involving violence and sentenced to a term of imprisonment not exceeding three months with or without hard labour.

N.B. No licence, certificate of permit shall be granted to a restricted except a disposal permit

Imitation Firearm

Means anything which has the appearance of being a firearm whether it is capable of discharging any shot, bullet or missile or not. (Section 2 **Larceny Act**)

Traveller

Means any person who arrives in Jamaica as an Officer or member of the crew or passenger or stowaway upon any vessel or aircraft

LICENCES, PERMITS AND CERTIFICATES

TYPES OF LICENCES:-

- *Firearm Manufacturer Licence*
This is granted by the Minister of National Security. It entitles the holder to make, buy and sell firearm and ammunition prescribed therein and only on the premises specified therein.
- *Firearm Dealers Licence*
This licence is granted by the Commissioner of Police. It entitles the holder to buy and sell firearm and ammunition prescribed therein and only on the premises mentioned therein.
- *Gunsmiths Licence*

This is granted by the Commissioner of Police. It entitles the holder to carry on the business of repairing, testing or proving firearms and ammunition but only on the premises mentioned therein.

- *Firearm Users Licence*
This is granted by the Chief Police Officer for the parish where the applicant resides or carries on business. It entitles the holder to be in possession of the firearm or ammunition specified therein or to any restriction order made by the Minister (Section 22)

TYPES OF PERMITS

- **Firearm Import Permit**
This is granted by the Commissioner of Police. It entitles the holder to import into Jamaica the arms or ammunition specified therein.
- **Firearm users (Special) Permit**
This is granted by the Commissioner of Police or Chief Police Officer for the parish when so authorized in writing by the Commissioner. It entitles the holder to take the firearm and ammunition specified therein into any area, parish, district, town or village specified in any restriction order in force.
- **Firearm Export Permit**
This is granted by the Commissioner of Police. It entitles the holder to export from Jamaica the arms or ammunition specified therein.
- **Firearm Transshipment Permit**
This is granted by the Collector General. It entitles the holder to transship from one vessel to another the arms and ammunition specified therein.
- **Firearm Disposal Permit**
This is granted by the Chief Police Officer for the parish. It entitles the holder to dispose of the firearm or ammunition mentioned therein and in accordance with the terms specified therein and within 30 days. The owner or any person acting with his bona-fide consent may apply for a disposal permit.

CERTIFICATES

- **Firearm User's (Employees) Certificate**
This is granted by the Chief Police Officer for the parish. It entitles the holder to keep, carry and use his employer's firearm which is specified therein but only in connection with the business of such employer. The employer must first have a firearms user's licence in respect of that firearm.
- **Firearm Users (Occasional)**
This is not named by the Act but sec. 20 (3) states that the Minister of National Security or a Police Officer authorized by him, may issue on request a certificate allowing any of the following persons to have in their possession firearms and ammunition specified therein for the period so specified.

WHO MAY BE GRANTED FIREARM USERS (OCASSIONAL) CERTIFICATE SEC. 30 (3)

- Any person taking part in a theatrical performance, or any rehearsal, or in the production of a cinematography television film.
- Any person present at an athletic meeting for the person of starting of races at that meeting.
- Any person conducting or carrying on a miniature rifle range (whether for a rifle club or otherwise) or shooting gallery, in respect miniature rifle not exceeding 0.23 caliber and ammunition thereof used at such rifle range or shooting gallery.
- Any other person prescribed under section 48.

APPLICATION FOR LICENCES, CERTIFICATES AND PERMITS SEC. 28

Every application for licences, certificate or permit shall:

- Be addresses to the appropriate authority.

- Be on the prescribed form.
- Contain the prescribed particular.
- Be accompanied by the prescribed number (if any) of photographs of the prescribed size of the application.
- If prescribed, bear upon photograph a specimen of signature of the applicant.
- Be signed by the applicant
- Be accompanied by the receipt for the prescribed application fee (\$3000) (if any) and such other documents that may be prescribed.

N.B The fee will be refunded if the licence is not granted.

POINTS TO BE CONSIDERED BEFORE GRANTING LICENCES, CERTIFICATE OF PERMIT (EXCEPT DISPOSAL PERMIT)

- That the applicant has a good reason for wishing to import, purchase, acquire, or possess the firearm or ammunition.
- That the applicant can be permitted to have in his possession that firearm and ammunition without danger to the public safety or to the peace.
- That the applicant is not of intemperate habits.
- That the applicant is of sound mind.
- That, generally speaking, the applicant is not for any reasons unfit to be entrusted with a firearm and ammunition.

PARTICULARS OF LICENCES, CERTIFICATES, AND PERMITS

- Must be in the prescribed form and contain the prescribed particulars.
- Must bear if necessary, photographs of the prescribed dimension of the holder.
- Must bear the signature of the holder
- Must specify conditions, if any under which same is granted.

N.B. Licences, certificates and permits are subject to the terms and conditions which the Minister or appropriate authority may prescribe therein.

DURATION OF LICENCES, CERTIFICATES AND PERMITS

Licences

Every licence, unless revoked shall continue in force for five years from the date of issue. The appropriate duty however shall be paid at the end of each financial year and not later than 30th April.

Certificates

Every certificate shall continue in force until appropriately revoked or until the Act authorized thereby is done.

Permits

Every permit, (except firearm user's special) shall continue in force until the Act authorized to be done by such permit, has been done, or the expiration of the period specified therein, which ever is the earlier.

N.B. Firearm user's (special) permit continues in force until the revocation or expiration of the order.

OBLIGATION OF MANUFACTURER, DEALER AND GUNSMITH

Manufacturer

- Must not manufacture arms and ammunition without licence

- Must not manufacture firearm and ammunition elsewhere other than on the premises specified on the licence.
- Must not manufacture prohibited weapons.
- Must affix and keep affix over one of the principal entrance of the licenced premises a notice board with his full name and the words “ Licenced as a Firearms Manufacturer “ in letters at least two inches high.
- Must provide and keep a register of all transaction. All entries therein must be made within 24 hours of each transaction.
- Must require any purchaser or transferee, if not known to him, to furnish sufficient particulars of his identity and make a record of such particulars.
- Must on demand, allow any member of the Force of and above the rank of inspector, or any custom officer or any Constable authorized in writing by the Chief Police Officer for the parish to inspect register and stock on hand. If the manufacturer requires to see the Constable written authority, it must be produced.

Dealer

- Must not deal in firearm and ammunition without a licence.
- Must not deal in any prohibited weapons.
- Must not deal in firearm and ammunition elsewhere other than on the premises specified in the licence.
- Must not sell or transfer firearm and ammunition to any person whom he knows or has reasonable cause to believe is a restricted person, or drunk, or of unsound mind, or (at the time) otherwise unfit to be entrusted with such a firearm and ammunition.
- Must provide and keep register of all transaction, All entries therein must be done within 24 hours of such transaction.
- Must require any purchaser or transferee, if not known to him, to furnish sufficient particulars of his identity and to make record of such particulars.
- Must on demand allow any member of the Force of or above the rank of inspector, or custom officer, or any Constable authorized in writing by the Chief Police Officer for the **parish to inspect** register and stock on hand. If the dealer requires to see the Constable's authority it must be produced.

Gunsmith

- Must not repair, test prove firearm and ammunition of another without a licence.
- Must not accept for alteration or repair etc, firearm or ammunition except on the premises specified in the licence.
- Must not repair, test, or prove firearm and ammunition for any person whom he knows or has reasonable cause to believe to be a restricted person, or to be drunk, of unsound mind or (at the time) otherwise unfit to be entrusted with such firearm.
- Must affix and keep affix over one of the principal entrance of the licenced premises a notice board with his full name and words “Licenced as a Gunsmith “ in letters at least two inches in height,
- Must provide and keep a register of all transaction. All entries must be made therein within 24 hours of such transaction.
- Must not do any of the following without the prior written approval of the Commissioner of Police:
 - Shorten the barrel of any smooth bore gun to a length of less than 20 inches.

- Convert into a fire, prohibited weapon or restricted weapon anything which is not a firearm, prohibited weapon or restricted weapon.

Courts Declaration of Restricted Person Sec. 3

A court before which a person is convicted under this Act, (other than an offence against sec. 4) or under any Act in force before the appointed day in respect of importation, exportation, possession or use in Jamaica of any firearm or ammunition, may declare that person a restricted person for the purpose of this Act.

Exemption from Law section 52

- Firearm which belong to the Government of Jamaica
- Person authorized by Government to use Government firearm in connection with such authority
- Firearms (Slaughtering Instruments) property of the K.S.A.C., Parish Council or J.S.P.C.A. Persons authorized by the K.S.A.C., Parish Council or J.S.P.C.A. to use that organization's firearm (Slaughtering Instruments) in connection with such authority.

N.B. Slaughtering Instruments means firearm means firearm specially designed or adapted for the instantaneous slaughtering or stunning of animals before being slaughtered.

- Firearm forming part of any ship, aircraft or airdrome when at or when on such aerodrome, ship or aircraft or when being used by any employee thereat.
- Firearm and or ammunition forming part of the collection in the Institute of Jamaica for museum purposes.
- Members of the Jamaica Constabulary Force, Army and Air Cadet Force, Island Special Constabulary Force or Parish Special Constable when in possession of firearm or ammunition pursuant to that authority.
- Firearm and ammunition which is the property of another country when in possession of representatives of Government of such other countries under circumstances specified by the Minister.

Exemption from licence section 20 (2)

- Holders of Manufacturer's, Dealer's or Gunsmith's licences in respect of the firearm which they make, deal or repair etc.
- Executors or administrators of deceased person's property during the administration of the affairs of such person.
- Trustee in bankruptcy or liquidator for insolvent persons or company during the administration of the affairs of such persons.
- Auctioneers, Court Bailiff or Landlord Bailiff during the period of thirty days after coming into possession.
- Customs Officers or Constable handling any firearm or ammunition in accordance with this Act.
- Any person to whom a firearm, in sealed package, is entrusted by the Constable for transportation from one place to another.
- Any person who has a firearm user's licence for a firearm for which he is not the owner may keep the firearm on request of the owner who is leaving Jamaica but he can only keep same for the duration of the owner's absence plus two (2) weeks or twelve months whichever is the shorter.
- Person who have been duly issued with firearm user's (occasional) permit (as defined by these notes).

Offences

JCF National Police College of Jamaica Faculty of Initial and Probationer Training Manual - Precis
JCF/NPCJ-FIPT/MAN/SFs/0022/2022

- Having prohibited weapons in one's possession except he had a licence for same before the commencement of this Act.
- Having any other firearm or ammunition in one's possession without a licence.
- Pawnbrokers taking firearm and ammunition in pawn from any person. (**Sec. 19.**)
- Purchasing or acquiring any firearm or ammunition from any other person whom he knows or has reasonable cause to believe to be under 17 years.
- To sell or transfer any firearm or ammunition to any other person whom he has reasonable cause to believe to be under 17 years.
- Manufacturer, dealer or gunsmith making false return or false entries in the register.
- Carrying firearm or ammunition in any public place without having relevant licence, certificates or permit upon his person **Sec. 21 (1)**
- Carrying firearm and ammunition into any area without a firearm user's (special) permit if there is an order in force against firearm in the area **Sec. 23 (3).**
- Having in one's possession any firearm or ammunition with intent by means thereof to endanger life or cause serious injury to property or intent to enable any other person to do so. Felony (Sec. 24)
- Making or attempting to make use of any firearm or imitation firearm with intent to commit or to aid in the commission of a felony. **Sec 25 (1).**
- Making or attempting to make a firearm or imitation firearm with intent to resist or prevent the lawful apprehension or detention of himself or some other prisoner.
- Having in one's possession any firearm or imitation firearm at the time of commission or apprehension for any offence mentioned in the first schedule of this Act. **Sec 25. (2)**
- Contravening any of the terms or conditions of any licence, permit or certificate issued under this Law.
- Failing to produce licence, certificate or permit (unless exempted) or fails to permit a Constable to read licence, certificate or permit or to examine firearm or ammunition. **Sec 39 (2)**
- Failing to give name and address or gives false name and address. **Sec 39 (3)**
- Holder of any licence, certificate or permit to lose his firearm to which such licence, certificate or permits applies.
- Contravening any of the terms or conditions of any licence, certificate or permit under this Act.

POWERS OF POLICE INSPECTION:

Of Records and Stocks

It shall be lawful for any member of the Force of and above the rank of Inspector or any Custom Officer or any Constable to authorize in writing by the Chief Police for the parish to inspect the register required to be kept by this Act.

Also any Stock on hand of any Manufacturer, Dealer or Gunsmith. If, however the Constable is required to produce his written authority he must do so. Sec 17 (3)

- It shall be lawful for any Constable seeing any person carrying firearm or ammunition in any public place to require such person to produce his licence, certificate or permit in respect thereof. If he fails to produce same or to permit the Constable to read or examine the firearm or ammunition he shall be guilty of an offence and the Constable should seize the firearm and ammunition until the case is disposed of. Sec 39 (2) (b).

SEARCH AND SEIZURE

Person

It shall be lawful for any Constable to seize and retain the firearm and ammunition of any person who without firearms user's (special) permit is found with same in any area prohibited by an order of the Minister. The firearm must be seized whether the person is arrested or prosecuted. Sec. 82.

It shall be lawful for any Constable who suspects that any person is carrying any firearm and ammunition concealed about his person, to ask such person if he is carrying a firearm and if he admits, to request his licence, certificate or permit. If he fails to produce the relevant document or to permit the Constable to inspect the firearm and ammunition or documents, he shall be guilty of an offence and the Constable shall demand his name and address and seize same until the case is disposed of. If he denies that he is carrying such firearm and ammunition, the Constable shall search him and seize and detain arms and / or ammunition. **Sec 40 (1)**

Premises

It shall be lawful for any Justice of the Peace or Constable to enter and search without any warrant premises consequent upon the unlawful discharge of any firearm within forty (40) yards of any public road or place and seize any firearm or ammunition found thereon providing he has reasonable cause to suspect that such contravention relates to such premises and that the arms seized are involved or about to be involved in any such contravention. Such arms and ammunition should be kept for the duration of the investigation or where necessary until disposal of any case resulting there from. **Sec 23 (2)**

Vehicles

It shall be lawful for any Constable to stop and search any vehicle he has cause to suspect that firearm and ammunition is being unlawfully conveyed therein also to search the occupant. Failure to stop, intimidating or preventing the driver from stopping, escaping or attempting to escape from such vehicle, constitutes an offence. **Sec 42 (1) (2)**

Arrest

It shall be lawful for any Constable to arrest without warrant any person who is carrying firearm in any public place and fails to produce licence. Etc. and weapon for inspection, fails to give name and address or gives false name and address or if there is reason to believe he will abscond. It shall be lawful to arrest anyone found with firearm concealed upon his person after he denies that he is carrying same, and it is subsequently found on him if he fails to give his true name and address or there is reason to believe he will abscond.

Forfeiture

It shall be lawful for any Police to forfeit to the Crown Firearm and ammunition surrendered for a period of twelve (12) months, if the owner neglects to pay the prescribed storage fee within six months at the expiry of twelve months. **Sec 45 (5) (b)**

Search Warrant

It shall be lawful for any Justice of the Peace being satisfied on information on oath that there is reasonable cause to suspect that any offence about this Act is committed or about to be committed upon any premises to grant a Search warrant authorizing any Constable to enter by force if necessary; and search the premises or place, and every person found therein and,

- To seize any firearm or ammunition which may be found on the premises or in the place , or on any person, in respect of which or in connection with which he has reasonable grounds for suspecting that an offence under this act has been, or about to be committed and to retain such firearm or ammunition for so long as may be necessary for the purpose of any investigation in relation thereto, and where such investigation results in legal proceedings against any person any such offence, until such legal proceedings are firmly disposed of.

The Constable making the search may arrest without warrant any person found on the premises or in the place whom he has reason to believe to be guilty of an offence under this act other than an offence against section 41.

Procedure Re:- delivery of firearm vendor to purchase (when neither is manufacturer or dealer)
section 11

Both must furnish the Chief Police Officer in charge of the parish in writing:-

- Particulars of the purchasers name and address.
- Particulars of the vendors name and address
- Particulars of the firearm and ammunition.

The Chief Police Officer for the parish must furnish in writing both vendor and purchaser with particulars of the term and conditions under which delivery will be permitted.

The firearm and ammunition will be delivered to the purchaser when both himself and the vendor have fully complied with all the term and conditions specified by the Police Officer.

Circumstances under which a firearm can be lawfully discharged within forty (40) yards of any public road or place. Sec 23 (1)

- In the lawful protection of person or property of self or another.
- In the lawful shooting of trespassing animals.
- Under the direction of some civil or military authority, authorized to give such direction.
- With permission of the Minister

Revocation, variation etc. of Licences, Certificates and permits.

Dealers Licences may be revoked by the appropriate authority if he is convicted for any offence under the Custom Act in relation to the importation or exportation of firearm and ammunition.

The appropriate authority, after giving not less than three days notice in writing to the holder of any licence, certificate or permit may vary the condition under which same was issued. Such notice must contain the nature of the proposed variation also the date by which the licence must be produced for the variation also the date by which the licence must be produced for the variation to be noted therein.
Sec 35

The appropriate authority, after giving not less than three days notice in writing to the holder of any licence, certificate or permit may revoke same if he is satisfied that he is unfit to be entrusted or has fail, on request to produce same for variation.

The appropriate authority may, on the Courts Certificate of Conviction of any person revoke the Licence, Certificate, or permit of any such person. The court should supply such a certificate when such a person is:-

- Convicted for any breach of this act.
- Convicted for any crime for which he is sentenced to penal servitude or imprisonment with or without hard labour.
- Placed under Police supervision with the condition that he should not possess, use or carry a firearm or ammunition.
- Bound to keep the peace and to be of good behaviour with the condition that he should not possess, use or carry a firearm or ammunition.

N.B. The Court's certificate only relates to persons issued with licences, permits or certificates under this Act.

Report of loss or theft of firearm or ammunition

41 (1)

The holder of a licence, certificate or permit in respect of any firearm or ammunition and any other person lawfully in possession of any firearm or ammunition by virtue of subsection (2) of section 20 shall, within forty-eight hours after he discovers the loss or theft of such firearm or ammunition, report the loss or theft at a police station.

(2)

Any person who contravenes subsection (1) shall be guilty of an offence and shall be liable on summary conviction before a Resident Magistrate to a fine not exceeding five hundred dollars or to imprisonment with or without hard labour for a term not exceeding twelve months.

APPENDIX 'B' TO FORCE ORDERS 2125 DATED FEBRUARY 25, 1981

USE OF FIREARMS BY MEMBER OF THE JAMAICA CONSTABULARY FORCE AND AUXILIARIES

FIREARM IN POLICE CUSTODY (force orders 1609)

The provision of Police Orders 88 dated 27th May 1949 and subsequent reproduction thereof and amendments dealing with the issue, use and safe keeping of firearms and ammunitions are again brought to the attention of all ranks.

Paragraph 2 and 5 of the order under reference states:

“2 “

The station Officer at certain larger stations and elsewhere , the Sub-officer in charge of each station is responsible, under the directions of the Divisional officer, for the safe keeping and custody and issue , when necessary, of revolvers or pistols and ammunition.

“5 “

On completion of the duty, the Constable will return the revolver or pistol to the Station after extracting the ammunition and (Station Officer or Sub-Officer) will make an entry in the Station Diary of the condition in which they are delivered to him.

Despite repeated production of these very important instructions, it appears that no proper supervision are being maintained at many Police Stations; consequently firearms are being lost or stolen from Police custody and the loss is not discovered and reported immediately to Headquarters , nor are sufficient steps being taken to place responsibility and take disciplinary action against the person (s) responsible.

In future, whenever a firearm whether a service firearm or otherwise disappear from police custody, a report must be forwarded immediately to headquarters and steps taken to place responsibility and commence necessary action.

It is also clearly understood that branch, area and divisional Officers are held responsible for firearms (whether owned by the police or not) in Police Custody under their command and will be held responsible for there safe keeping.

CARE IN THE HANDLING AND USE OF FIREARMS – FORCE ORDERS 1631

It is alarming to note the frequency with which “accidental” discharge of firearms are reported by members of the Force.

All members of the Force are trained in the use, handling and care of the .38 revolvers and charged to the department and are expected to adhere to the principles laid down in the training.

If all necessary precautions are taken, it is virtually impossible to have incidents as reoffered to above occurring. Most Auxiliaries (Special Constables and District Constables) are also trained in the use of firearm.

With effect from the date of this order, no member of the Force who has not been trained and qualified in the use of a particular type of firearm will be issued with such a firearm for duty.

It is appreciated that some Divisions and Sections have on charge semi-automatic shotguns, rifles and sub-machines guns in addition to the standard .38 revolvers. These weapons must not be issued to any member of the Force who has not been formally trained in their handling, care and use.

Officers and Sub-Officers are to take a special interest in the safe handling of arms and are to lecture the personnel under their command on this vital subject.

All rank are reminded of the provision of the Police Order 88 on the subject, which has been re-published from time to time.

INDISCRIANTE USE OF FIREARMS – (FORCE ORDER 7116)

Force Order, serial No. 1631, part 1, sub, No. 2 dated 7th September 1978, refers to the care in handling and use of firearms by member of the Force and to the frequent reports of “accidental discharge of revolver and other weapons”

On the subject the director of Public Prosecutions in reviewing statements submitted to his office in connection with a fatal shooting by the Police had this to say:

“It appears to me that accidents are sometimes made to happen and though it is not a matter for this department perhaps those in charge might seek to take some remedial action to avoid the amount of fatal accidents which originate from the barrel of a service revolver”.

The foregoing is published for information and to give all ranks an insight into the thinking of others on the subject.

I am also concerned about frequents reports made to members of the Force discharging firearms in to the air at scenes of incidents and disturbances.

This practice contravenes the provisions of Police Orders # 88 as amended and published in Force Orders No. 1668, dated may 24, 1979 and should cease.

ISSUE AND USE OF FIREARMS (FORCE ORDERS 1976)

It has become necessary to once again remind all members of the Force of the instruction in Force Order relative to the issue and use of firearms.

Despite re-publication of the said instructions, frequent reports reaching me indicate that there are still members who seem to use firearms in indiscriminate manner and with gay abandon.

These complaints may and may not be grossly exaggerated in some instances, and this observation is not intended to limit Police in the drive against crime but it is imperative to point out *that member of the Force should only use their firearms in case of absolute necessity, for example if he/she is attacked by a person with a firearm or other deadly weapon and can not otherwise reasonably protect himself/herself. Only then should such member resort to firearm as a means of self defence.*

Recent report in the press and on the electronic media can only serve to tarnish our image in the eye of the public and this is a luxury we can ill afford.

Specimens

Constabulary Station
Spanish Town
St. Catherine

Date:

To whom it may Concern

This is to certify that Mr./ Ms./ Miss.....
..... of.....
.....St. Catherine, holder of Firearms Licence No.....
and a Hunters Licence No.....has satisfied me that he/she
is an annual bird shooter and is authorized in addition to the amount stated in his booklet to
acquire.....
for the purpose of bird shooting during the forthcoming season.....
.....to.....

This authority is not general or transferable.

.....
Superintendent of Police
i/c St. Catherine North

Specimen

Constabulary Station
Spanish Town
St. Catherine

Date:

To whom it may Concern

This to say that.....of
.....is the licensed Holder
of.....Firearm Booklet
is at the Spanish Town Police being renewed.

Permission is given for holder to keep and carry firearm (s) quoted above until Booklet is renewed.

.....
Supt. of Police i/c St. Catherine

Constabulary Station
Spanish Town
St. Catherine

Date:

Refund of three thousand dollars (\$3000.00)

I have to inform you that.....of.....
.....paid the fee of three thousand (\$3000.00) vide Tax
Receipt No.....dated.....

His / Her application is refused.

I recommend that the amount of Three thousand dollars (\$3000.00) be refunded to him / her.

.....
Superintendent of Police
i/c St. Catherine North Division.

THE FIREARMS ACT 1967

(Act 1 of 1967)

FORM OF APPLICATION FOR FIREARM USER'S LICENSE, FIREARM USERS (SPECIAL)
PERMIT AND ANY CERTIFICATE

To.....
(Appropriate authority)

I.....of.....
(Name of applicant) (Address and occupation of applicant)

.....in the parish of.....do hereby apply for the grant of a

.....
(Type of license, permit or certificate)

License

Permit in respect of a.....

Certificate (Make, type, caliber, and identification number of firearm)

.....

2. I hereby declare –

- (a) That I have not previously been refused any licence, permit or certificate to possess
nor has any license, permit or certificate previously granted me been revoked
except

.....
(Particulars of application refused or license, etc., revoked)

- (b) That I have not been convicted during the five years next preceding the date of this
application of any offence in respect of the importation, exportation, purchase, sale,
possession or use of any firearm except

.....
(Previous conviction, if any)

- (c) That I have not during the five years next before the date of this application been
sentenced to any term of imprisonment except;

.....
(Details of imprisonment)

- (d) That I have not during the period of five years next before the date of this
application been detained in any mental Hospital

- (e) That the purpose for which I desire to possess such firearm are as follows-

.....
.....
.....

Dated this.....day of2

Signed.....
(Applicant)

Form of Firearms User's (Employee's) Certificate

Pursuant to an application dated.....

Here insert full name of applicant (a).....

Here insert full residential address of applicant (b).....

Here insert occupation of applicant (c)

Employed to

Here insert full name of employer (d).....

Here insert occupation of employer (e).....

Here insert full business address of employer (f).....

Engage in the business of

Here insert type of business of employer (g).....

Is hereby authorized to be in possession of

Here insert make, type, caliber, and (h).....

Identification number, if any, of
Firearm and ammunition to which
Certificate relates

in connection with the business of the said

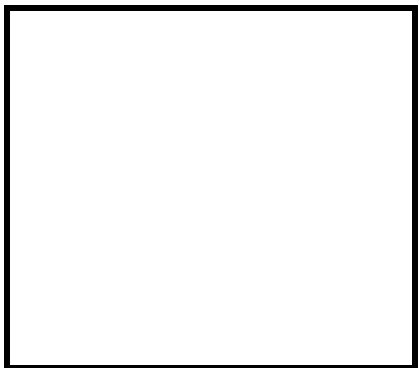
Name of employee

Who is authorized to be in possession of the
said firearm and ammunition by virtue.

Here give date and particulars of (i).....
Employer's Firearm User's Licence

The authority hereby conferred is subject to the
following conditions.

Here insert conditions subject to which (j).....
Applicant may be in possession of
Firearm and ammunition



Dated thisday of.....2

THE FIREARMS LAW, CHAPTER 129

Form of Application for Firearm Disposal Permit in Respect of such Firearm

To the Superintendent of Police for the Parish of.....

(a) Here insert name of parish in which application is made

(a).....

(b) Here insert full name of applicant

(b).....

(c) here insert occupation of applicant

(c)

(d) Here insert full residential address of applicant

(d).....

(e) Here insert the make, type, caliber and identification

No. if any of the firearm to which applicant relates,

(e) being the owner.....

.....

Hereby apply for a Firearm Disposal Permit authorizing me to dispose of the Firearm described above.

Dated this.....day of2

Signed.....

Constabulary Station
Spanish Town
St. Catherine

Date:

Collector of taxes,

Re: Firearm of.....

Please be informed that I have today inspected the firearm of.....

and found same bearing make and serial number as indicated in Booklet No.....

Renewal Recommended

.....

Superintendent of Police
i/c St. Catherine North Division



THE JAMAICA CONSTABULARY

P.O. Box 50

Spanish Town

St. Catherine

Any reply or subsequent reference to this Communication should be address to the Commissioner of Police and **not to any officer by name** and the following reference quoted

North

No.....-2

.....
.....
.....
.....

Dear Sir/ Madam

I refer to your application dated.....
for a firearm User’s Licence.

I am to inform you that your application was considered and has been refused under section 29 (4) of the Firearm’s Act of 1967.

I also wish to inform you further that Section 37(1) of the Firearm’s Act 1967 published in the Jamaica Gazette Supplement No. 26 (Proclamation Rules and Regulation) dated march 1967 reads as follows:

“Every appeal shall be commence by Notice in writing addressed to the Minster of National Security and filed within twenty one (21) days of the date on which the decision from which such longer period as Minister may in particular case allows.”

The applicant shall state in his/her notice his/her grounds of appeal and shall forward a copy of such notice to the appropriate authority.

Your three (3) photographs and recommendation are returned.

Yours faithfully

.....

Superintendent of Police

i/c charge St. Catherine North

JAMAICA CONSTABULARY

THE FIREARM LAW -1967 SEC. 1 OF 1967

NOTICE OF REVOCATION OF FIREARMS LICENCE

To.....

Take Notice that ISuperintendent of Police for the parish of Saint Catherine and appropriate officer in accordance with section 38 (5) of the firearm Law 1967 hereby revoke your firearms User's Licence No.....in respect ofNo.....under the provisions of section 36 (1) of the Firearms law 1967.

You are hereby directed in accordance with section 35 (1) of the Firearms law, 1967 to hand over that said firearm Booklet.....and all ammunition in your possession within five (5) days of the receipt of this notice to the.....Police Station in the parish of Saint Catherine.

Date at Spanish Town in the parish of Saint Catherine this.....day of.....

.....
Superintendent of Police i/c
St. Catherine North
Appropriate Officer

Served personally by me onat.....

On theday of.....2.....at.....

.....
Signature and Date

You may appeal

Every appeal shall be commenced by notice in writing, addressed to the Minister and filed within twenty one (21) days of date on which the decision form which the applicant is appealing is communicated to him, or within such longer period as the Minister may in any particular case allow.

The applicant shall state in his notice his grounds of appeal and shall forward a copy of such notice to the appropriate authority.

.....
Superintendent of Police i/c
St. Catherine North

FIREARMS TAKEN INTO POLICE CUSTODY

(Force Orders 2901 - 2003/01/09)

PURPOSE

The purpose of these instructions is to outline procedures to be followed whenever a Firearm comes into Police Custody and also to set out administrative matters pertaining to firearms.

PROCEDURES

- The procedures area to be followed with respect to all firearms which comes into police custody regardless of the nature of the incident;
- Once taken into custody, all firearms shall be unloaded and rendered safe.
- The appropriate report (crime, incident, etc) detailing all circumstances leading to the custody of the firearm, shall be completed.
- The member who takes custody of the firearm shall cause a police records check to be conducted to determine if the weapon was stolen and who the owner may be.
- A Jamaica Constabulary Force property card shall be filled out and attached to the weapon. The firearm shall be fully described, including, make, model, serial number, caliber/gauge, barrel length and type.
- In the event that the firearm is in police custody as a result of its use in a crime and is to be held as exhibit and must be submitted for examination by ballistic unit of the Police Forensic Laboratory, the following procedures shall be followed;
 - The weapon shall be placed in a clean, sanitary plastic bag. This shall be done with care not to contaminate its evidentiary value.
 - A Jamaica Constabulary Force "Exhibits for Police Forensic Laboratory" form shall be attached to the evidence bag.
 - Any and all bullets shall be placed in a separate plastic bag.
 - In order to maintain clear chain of custody, the member who is assigned investigation of the case shall transport the exhibits (s) to the Police Forensic laboratory. This shall be done in all cases with the exception of those instances when Forensic laboratory Personnel collected the evidence themselves.
 - Once the exhibits (s) have been examined and ballistics results have been determined, the member assigned to the case shall then retrieve the exhibits (s) and deliver same to the Station Exhibit Store for safekeeping pending a court trial. He shall also ensure that all information regarding the exhibits is registered in the exhibit register.
 - The firearm exhibit shall remain in the secured Exhibit Store until such time as the case is scheduled for trial. The member assigned to the case shall in order to maintain a continuous chain of custody, retrieve the exhibit from the store, sign the Exhibit Book and personally transport the firearm exhibit to court or presentation at trial.
 - It shall be the responsibility of that member to notify the ballistic examiner of the trial date once it is known.

Police Forensic Laboratory ballistic section shall:

- Be responsible for test firing firearms.
- Make ballistics comparisons when required
- Advise the investigator when examination is concluded

- Provide the investigator with one copy of laboratory report for the Director of Public Prosecution (DPP) and one copy for the investigator

The Exhibit Store Keeper shall:

- Not accept any firearm without all required forms and/or incident reports
- Secure all firearms in the exhibit store
- Ensure that he has logged the firearm in the exhibit store register or the firearm register

FIREARM REGISTERS

The following are the official Firearm Register to be maintained in the Force;

- Divisional Civilian Firearm Register
- Central Firearm Register (CIB HQ)
- Firearm Licence Register (Divisions)
- Firearms Users' Employee's Certificate Register
- Firearm Stock Book
- Ammunition Stock Book
- Police Personnel Firearm Register
- Lost or Stolen Firearm Register

DIVISIONAL CIVILIAN FIREARM REGISTER

A firearm register will be maintained in each divisional headquarters for the purpose of recording firearms and ammunitions that come into police possession. It shall be under the direct control of the divisional officer who;

- Personally oversees and authorizes all transfers or deliveries
- Personally oversees all entries and initial same or direct his deputy to do so
- Once each quarter, check firearms in custody against the record and certifies the register accordingly.
- Ensure that Assistant Commissioner, Criminal Investigation Branch is notified of all weapons taken into custody.
- Ensure that the necessary entries are made in Station Diary and General Property Book

The register that shall be prepared with the following headings:

- Consecutive register number
- Date of entry
- Make, model, serial number, caliber/gauge, barrel length and type
- Owner's name and address
- Comment on how weapon came into police custody
- Signature of person turning in firearm
- Signature of store clerk
- Authority for transfer or disposal
- Signature of person receiving weapon and date

Firearms seized or surrendered by the court and or/ forfeited to the Government of Jamaica or Authorized by the owner to be destroyed, shall be forwarded to the Police Armoury at Elletson Road, Kingston. A transfer of property receipt form shall be filled out in each of these cases.

CENTRAL FIREARM REGISTER

A central firearm register shall be maintained at Criminal Investigation Branch Headquarters. It shall be under the direct control of the Officer incharge Criminal Investigation Branch. The register shall contain;

- All information on all firearms that have come into police custody at any division of the Jamaica Constabulary Force. The Divisional Officer in each division shall provide this information and an update on the weapon's status.
- All information on the granting of new firearm licences as outlined in Force Order 913

The register shall be prepared with the following heading

- Consecutive register number
- Name of owner/licensee
- Address of licensee
- Caliber/make/model
- Type of weapon
- Serial number
- Type of license
- Date of entry

FIREARM LICENSE REGISTER

The register shall be kept at all divisional headquarter and be in accordance with the Firearms Act. It shall be maintained for the purpose of recording all information regarding people who own and are licensed to have firearms in that Division. The register shall be prepared with the following headings;

- Consecutive register number
- Name of owner
- Address of owner
- Caliber/make/model/ serial number
- Date license was issued and number
- Date tax was paid

FIREARMS USERS EMPLOYER'S CERTIFICATE REGISTER

The register shall be maintained at all divisional headquarter and be in accordance with the Firearms. Any individual, company or organization, such as Security Company which has employees to be licensed to use its firearms must be recorded in this register. The register shall be prepared with the following headings;

- Consecutive register number
- Name of person to carry firearm
- Address
- make/model/ serial number
- Name of owner
- Address
- Type of license was and number
- Date certificate is issued
- Date tax was paid

AMMUNITION STOCK BOOK

This stock book shall be maintained by the Police Headquarters Armourer at Elletson Road, Kingston. It shall be maintained for the purpose of having an inventory of and accountability for all ammunition assigned to the Jamaica Constabulary Force and any of its stations. This book shall specify the amount, by caliber that is assigned to all branches, divisions and stations.

FIREARM STOCK BOOK

This stock book shall be maintained by the Police Armourer at Elletson Road, Kingston. It shall be maintained for the purpose of having an inventory of and accountability for all firearms assigned to the Jamaica Constabulary Force and any of its stations. This book shall specify the number of firearms by brand name, caliber, model and serial number that are assigned to all branches, divisions and stations.

LOST OR STOLEN FIREARMS REGISTER

This register shall be maintained at all Jamaica Constabulary Force divisional headquarters. It shall be maintained for the purpose of recording information on firearms that are reported lost or stolen. The register shall be prepared with the following headings;

- Consecutive register number
- Date of entry
- Name of Citizen
- Address of citizen
- Make, model, serial number
- Date lost or stole
- Investigator assigned to case
- Date recovered

FIREARMS HANDED OVER BY CUSTOMS

The Minister of Finance may direct the firearms and / or ammunition seized by Customs be turned over to the Police if they have not been disposed of. These firearms shall be stored at the Armoury, Elletson Road, Kingston, pending any court trial or disposal orders.

JAMAICA CONSTABULARY FORCE ARMOURY

The following shall be the responsibilities of Headquarters Armoury with regards to firearms:

- **General responsibilities** - to order, receive, maintain, repair and keep an inventory of all weapons and ammunition assigned to the Jamaica Constabulary Force.
- **Court ordered destruction** – when a court orders destruction of a weapon, said weapon shall be delivered to the armoury, Elletson Road, Kingston. The Armoury shall:
 - Render the weapon immobilized.
 - File a certification of destruction.
 - Oversee its dumping at sea.
 - File a certificate that the weapon was in fact dumped at sea returning a copy to the authority ordering the destruction.
- **Board of survey** – when the suitability of a service firearm for retention in service is in question, the Armourer shall request in writing through the Deputy Commission of Police or services, that a Board of Survey be convened. The board shall consist of representatives determined by the Ministry of Finance. The findings or recommendations of the board shall be strictly implemented.
- **Safekeeping** – at the direction of the Government, the Commission of Police, or the courts, weapons from time to time are ordered to be held at the Armoury, Elletson Road, Kingston for safekeeping. A separate record shall be kept of all weapons held for safekeeping. In January of each year, the officer incharge of Armoury shall provide the Commission of Police with a report of all weapons being held for safekeeping, the date each weapon was received, by whose authority and if the weapon is serviceable or not.

Nothing in this Order supersedes the provisions of the Firearms Act, but rather complements the Act which also shall be followed.

JAMAICA

CERTIFICATE

For the purpose of The Firearms Act, Act 1 of 1967- Subsection 4 of Section 46A

I, the undersigned, a Government Analyst for Jamaica, do hereby certify that I received on
the 2 from
one envelope

Sealed

Unsealed

}

On delivery, the undermentioned articles

I have analysed the same and find as follows:-

As witness my hand this day of 2

At the Forensic Laboratory, Kingston Jamaica
2^{1/2} Hope Road Boulevard
Kingston 6

.....

Government Analyst
Forensic Laboratory

LOCK-UP ADMINISTRATION POLICY AND PROCEDURES

APPENDIX 'A' TO FORCE ORDERS 2898 DATED 2002-12-19

PURPOSE AND OBJECTIVE

The Force is responsible for the proper management of all police lock-ups and the safety and welfare of all prisoners in police custody.

The police lock-up is the recognized place provided for the safe custody of persons in police custody.

Lock-up is a place provided for the confinement of persons:

- Awaiting trial;
- Remanded in custody
- Sentenced to a short term imprisonment
- Detained otherwise by due process of Law.

The purpose of this Order is to regulate the administration and management of police lock-ups.

RESPONSIBILITIES AND DUTIES

The Divisional Officer is responsible for all lock-ups in his Division.

The **Sub-officer** in charge **Detention** and Courts in each Division is responsible to the divisional Officer for efficient management of these police facilities. His duties include:

- Visiting and inspecting lockups within the Divisions on a regular schedule and report on conditions
- Checking all records pertaining to adults and juveniles in custody and report on cases which do not conform to lay down practices.
- Ensuring that established procedures are maintained in Police administration of lock-ups.
- Liaising with relevant agencies concern and ensure that maximum health and security standards are maintained in lock-ups.
- Ensuring that appropriate diet are ordered and recorded for all prisoners and they are fed on time.

Where the station office administration is a distinct entity apart from the lock-ups, the Divisional Officer will make suitable arrangement. The Divisional officer shall ensure that the personnel who are assigned lock-ups duties are trained in the operations of a lock-up with emphasis on safety and security of staff and prisoners, security of the building, the use of physical restraining devices etc.

Those persons who do not work in direct contact with prisoners shall receive general lectures on the operations of the lock-ups and their roles.

It shall be the responsibility of the Sub- officer in charge of lock-ups or the Station Officer/Guard to remove all articles

/items in prisoner's possession after arrest ensure that these items are properly tagged there after secured in storage receptacle provided for prisoner's property.

Exhibits shall be stored in the exhibit store room.

The police have a responsibility to secure all property taken from prisoners in police custody until their release or such case is disposed of by the court.

ADMISSION OF PRISONERS

The Sub-officer or other police personnel receiving a prisoner at any police station shall ensure that the prisoner is properly committed or detained under the law, examining all commitments, warrants or other documents on which a prisoner is committed and be satisfied that the papers are genuine and complete for this process.

Whenever a prisoner is brought to a station for admission the following information shall be recorded in the appropriate registers, wither at the station or lock-ups:

- The date and time of each entry, the name, rank, number and signature of the person who brought the prisoner into custody.
- Name, age, sex, address, occupation of the person in custody.
- The date, time and place of arrest.
- The offence or suspected offense for which the person is arrested.
- A summary of the circumstances of the arrest.
- The physical condition of the person at the time when he is brought to the lock-up including any marks, bruises or other signs of injury observed or complained of by such person.
- The condition of the clothing of the person when brought to the lock-up.
- Any property taken from the prisoner.
- The name, rank, and number of the person who made the arrest.

The following station registers will record arrest or detention:

Station Diary

- Name of the arresting Constables, station;
- Name, age, sex, address and occupation of the person arrested;
- Day, date, time and place of occurrence;
- Offence for which arrested or reason for detention;
- How the offence was committed;
- Physical condition of the person arrested;
- Any complaint made by the person arrested;
- Arrival at station or other movements of the prisoner;
- Complaints made by or concerning person detained;
- Reports made by Sub-officer in charge lock-ups to visiting Officer. (Section 6 Prisoners, Lock-ups Regulations 1980)
- Daily inspection by "visiting Officer" to lock-ups.

Charge and Prisoners' Property Book

To record names of all persons charged and placed into custody (Force Orders No. 1809, part I dated 4.2.82 and Appendix refer).

Visitors' Register

- Names, addresses, relationship and occupations of persons visiting detainee.
- If visit is not permitted – reason to be recorded.
- Articles taken to be given to detainee to be listed wither accepted or refused. If refused- reason to be stated.

Prisoners' Medical Journal;

The Sub-officer in charge of station will ensure that all relevant records are completed.

The Sub-officer or constables recording this information shall endeavour to obtain the truth from the prisoners as this will help to establish his identity in order to prevent the risk of mistaken identity whenever the question of bail or discharge is contemplated. The procedure out lined in the prisoner (lock-ups) Regulation dated 10.9.80 shall be followed.

Every prisoner received in custody shall be thoroughly searched before being placed in lock-up.

A female must only be searched by another female.

All personal property including cash taken from a prisoner shall be carefully checked and properly recorded in the appropriate register. Cash shall be recorded in the same denominations as received e.g. one five dollar note, serial number, four ten cents etc. This entry shall be signed by the prisoner and witnessed by two police personnel.

Where a prisoner is searched before arriving at the lock-ups, particulars of every article taken from such prisoner shall be checked in his presence and recorded in the station registers as soon as practicable and signed accordingly.

Where any property is taken from a prisoner and retained for evidentiary purpose same shall be sealed in the prisoners' presence where practicable and tagged using the J.C.F Property/Exhibit Card (See Force Order # 2247 dated 28.06.90 with instructions on its use.)

All members are reminded to be extremely careful when taking possession of prisoners' property, not only to avoid against articles being used in causing injury to themselves and others but to guard against destruction of irreplaceable evidence.

DETAINEE RECORD, IDENTIFICATION AND PROPERTY

The Sub-officer in charge of lock-ups will maintain records securely with the confidentiality necessary. This function includes prisoner and or detainee records.

To ensure confidentiality of such records, the following procedure shall be adopted:

- The record of a prisoner or detainee shall not be improperly disseminated to any person or group or persons;
- It shall be the responsibility of the Sub-officer in charge lock-up to secure the Registers and other documents used for a proper administration of lock-ups, as they form a part of the station Records;
- Access to these records shall be limited and on a need-to-know basis, same may be verbal or written and shall be channeled through the Sub-officer in charge of Detention and Courts or the Sub-officer in charge lock-ups;
- The procedures outlined in Force Orders 2274 dated 3.1.91 on Station Records, Policy and Procedure for Records Management are relevant.

The force receives from outside agencies:

- Person or persons detained;
- Prisoners already confined to penal institutions but required by a court of law or tribunal to give evidence;

(Outside agencies include Prisons, places of safety, the Military or employees of Metropolitan Parks and Market (M.P.M) etc.

To facilitate positive identification and accountability of detainees and agencies representatives during this exercise, the following procedures shall be adopted:

Whenever an inmate is removed from a penal institution and or a Place of Safety and handed over to the police, it shall be the responsibility of the police receiving such inmate to establish a positive identification of both inmate and escort by examining accompanying documents, identification badge card or booklet record appropriate entries in relevant registers noting vehicle registration, etc.;

Where a private citizen apprehends any person found committing, attempting to commit or who has reasonable cause to believe that such person has committed an offense hand over such person to the police, it shall be the responsibility of the police personnel receiving such person to:

- Enquire in the circumstances for veracity;
- Establish identity of the apprehending party;
- Collect statements for court procedures;
- Carry out any other police action relevant to such investigation e.g. visiting the scene, collecting physical evidence to be used as exhibits.

The release of prisoners from custody is a daily activity by the police. To ensure that the right person is released at all times the following procedures shall be adopted:

The Sub-officer in charge lock-ups will ensure that a positive identification is made of all prisoners by way of :

- Checking with the investigator or contact members of cell staff;
- Interviewing and examining prisoner for marks, scars, complexion, colour of hair, eyes, or any deformity observed as recorded at the time he was received into the lock-up

The personal property of each prisoner shall be returned to him upon the release from custody;

The prisoner's personal property will accompany him/her to another lock-up or agency provided that property is not the subject of police investigation;

The Sub-officer in charge lock-ups, after establishing proper identity of prisoner to be released from him/her custody, shall check station records for an inventory of such prisoner's property and ensure that the prisoner signs for his/her property in the appropriate column of the relevant Station Register and witnessed by two other persons;

If such prisoner is unable to sign his/her name, the Sub-officer shall instruct such prisoner to make his/her mark in the appropriate column which shall be witnessed by two other persons and an entry made in the Station Diary to the effect.

The Prisons (Lock-ups) Regulations, 1980 make provision for the police to accept articles from visitors for prisoners in police custody so long as the security of the lock-ups is not threatened by this activity. It shall be necessary therefore, to establish a procedure to inspect all incoming articles including letters/emails to intercept unauthorized items/contraband. To facilitate a proper process of inspection the following procedure shall be followed.

- All letters, packages, food, clothing, etc. taken to any police station/ lock-up for prisoners in custody shall be handed over to the station officer/ guard or the Sub-officer in charge lock-ups for inspection;
- It shall be the responsibility of the station officer/ guard or the Sub-officer in charge lock-ups to receive, open and inspect all incoming letters, packages, food, clothing, etc. for prisoners in the presence of the bearer and police witnesses;
- Any cash, cheque or money orders received during such exercise shall be recorded in the appropriate Station registers, e.g. Station Diary, Prisoners' Property Register and a receipt given to the bearer. The prisoner shall be informed, and then asked to sign or make his/her mark in the appropriate column and same witnessed by two police personnel. The property shall be labeled/ tagged and secured with prisoner's property already in police custody;
- Unauthorized items including cutlery- knife fork, spoon, glass ware including bottles with drinks, alcoholic beverages, matches, cigarette, drugs, back saw blade or any article not conducive to lock-up for personal security;
- Any unauthorized items/contraband found concealed in any letter, package or food shall be confiscated, the matter investigated with a view of preferring criminal charge(s) against the bearer or sender and the article(s) disposed of as outlined in Force Orders on Custody, Security and Disposal of Property in Police Custody.

CELL SECURITY

Personnel in charge lock-ups are charged with the responsibility for the cleanliness and security of the cells, and the safety of all prisoners in custody.

To minimize the opportunity for escape of prisoners from police lock-ups it shall be the responsibility of the Sub-officer in charge lock-ups to ensure that the following precautionary measures are taken:

- No cell shall be entered without the knowledge of a Sub-officer in charge lock-ups;
- No single member of staff shall enter an occupied staff;
- Where the police have to enter an occupied cell the Sub-officer in charge lock-ups shall ensure that adequate personnel are deployed to control the number of inmates in that particular cell;
- No prisoner shall be appointed orderly and allowed to let out prisoners from their cells;
- No prisoner shall remain in the passage of the cell block without reasonable cause;
- The Sub-officer in charge Detention and Courts shall have possession of all duplicate keys or a master key, for the lock-ups which shall be accessible or readily available in emergency;
- All doors leading to vacant unit, unoccupied cell, or storage rooms inside the lock-ups shall be locked when not in use. Doors shall be tested for vulnerability after they are secured;
- All keys for the lock-ups shall be properly labeled and secured;

- A twenty-four hour (24) duty forecast shall be posted on a daily basis to identify the various duties each day in other than proper arrangements can be made as to the cell doors that are to be secured;
- All unoccupied cells and passages are to be searched for weapons or other contraband before prisoners are placed in them;
- Lock-up staff are required to exhibit maximum alertness at all times, well as the highest level of observation, being mindful always of the sensitive area in which they are deployed;
- Any unusual conditions or occurrence observed in the cell should immediately be reported to the Sub-officer in charge lock-ups either verbally or in writing depending on the nature of the occurrence for appropriate action to be taken;
- The Sub-officer in charge lock-ups shall endeavour to record in the appropriate register any incident reported to him that may threaten the facility or persons therein and prepare a documented report forwarding same to the appropriate channel;
- In case of emergency situation the Sub-officer in charge lock-ups may communicate verbally to the Sub-officer in charge Detentions and Courts or Divisional Officer depending on the nature of the emergency but in any event as soon as possible thereafter a comprehensive report shall be submitted by him through the proper channel for administrative review.

To achieve proper administrative control and to ensure the security of lock-ups a documented security inspection of the physical facilities should be carried out at regular intervals, but at least once weekly. Such exercise will help to ensure the safety of police and prisoners and minimize opportunity for escape.

All steel bars, locks, windows, walls, floors, ventilator covers, glass panels, access blades, protective screen, and other security devices shall be checked carefully for operational wear and inmate tampering.

It shall be the responsibility of each sub-officer in charge Detention and Courts to submit in writing the results of these inspections clearly indicating all defects to their Divisional Officers to be channeled to the officer in charge Detention and Courts to the Divisional Officer.

Sub-officers in charge station with lock-ups shall channel their reports through their Sub-officer in charge Detention and Courts to their Divisional officer.

It shall be the responsibility of the Sub-officer in charge Detention and Courts Division to forward a comprehensive report on all lock-ups or holding facilities island wide to the Assistant Commissioner, services on a monthly basis.

The following procedure shall be adapted to gain access to lock-ups:

- The lock-ups or cell shall be out of bounds to all personnel not required for duty ;
- Any person desirous of entering the lock-ups shall first seek the permission of the Sub-officer in charge Detention and Courts or the Sub-officer in charge lock-ups, giving a valid reason;
- Where any person is granted access to the lock-ups the Sub-officer in charge lock-ups shall ensure that such person is thoroughly searched, before entering, in addition the person shall be escorted in and out by a member of the lock-ups staff;
- Where any person is entering the lock-ups to effect repairs, the Sub-officer in charge lock-ups shall make a list of the tools such person is taking inside and ensure that such person is accompanied by members of the lock-ups staff. On completion of repairs the tools taken out shall be tallied with this list to ensure that none is left inside. On completion of any repair, all debris or dangerous materials must be removed before any person is placed in the cell. Similarly all utensils taken into lock-ups must be checked to ensure that they are removed from there from.
- The Sub-officer in charge lock-ups shall ensure that the presence of persons in the lock-ups do not :
 - Violate the prisoners' privacy, especially female prisoners;
 - Impede the administration and operation of the lock-ups;
 - Prejudice criminal investigation;

Force members or other persons with firearms are strictly prohibited from taking or introducing firearms into lock-ups or cells.

No member of the lock up staff or any other member of the force shall be armed with a firearm whilst performing duties inside the cell block.

Personnel performing perimeter patrol duties shall be properly armed at all times if possible equipped with two way radio – communication system to communicate with Cell Block, Guard Room, and Control.

Other personnel whether in uniform or plain clothes that may wish to interview an inmate, visit cells, make preparation for identification parade or other legitimate purpose shall hand over at the Guard Room any firearm in their possession before proceeding into the cells.

To maintain proper supervision of lockups with an accurate accountability of prisoners within, the following procedure shall be followed.

- a. the sub-officer in charge lockups and or the Station Guard shall be responsible for the security of the cell, the safety and welfare of all prisoners in custody.
- b. The sub-officer in charge lock ups or Station Guard on taking over duty shall physically check all cells and prisoners and ensure that the cells are secured and that all prisoners are present and accounted for as per station records.
- c. Prisoners shall be visited and visually observed at least once in each hour. In cases of “drunks” lunatics or other exceptional cases once in each half hour and at least three times every hour between 7.00 p.m. and 5.00 a.m. each day. Each visit shall be recorded in the Station diary or Cell Diary as appropriate.

A fire is a serious threat to human life and Government property in and around the lock-ups or cell block. The sub-officer in charge lockups shall ensure the following anti-smoking measure.

That there is no smoking in and around the cell block, whether by police personnel or prisoner

That no naked light is taken into the cell block

That no inflammable matter is taken into or stored near the cell block

Ensure that no rubbish is burnt near the cell block, if this activity is inevitable same shall not be left unattended:

In case of fire in the cell block the Sub-Officer in charge lock-ups shall:

Mobilize the lockup staff and spare no effort in saving life and property

Summon the fire brigade

Inform the station officer who will the Divisional Officer and Control

Render first aid to the injury if any

Use equipment/ resources at disposal to contain or extinguish fire until the fire unit arrives

Remove prisoners from affected areas

If the fire is threatening the security of the prisoners, Divisional Officer or his deputy shall arrange alternate accommodation and ensure their safe removal.

CELL BLOCK CAPACITY

There are instances where the police carry out Police Operation resulting in the arrest or detention of a number of persons which exceeds the maximum capacity of the cell block area for the zone where such operation took place. Whenever such a situation exists the following procedure shall be followed:

- It shall be the responsibility of the Divisional Officer or the Officer in charge of the Operation to provide adequate personnel to ensure safe custody of the persons arrested;

- It shall be the responsibility of the Sub-officer in charge lock-ups to examine the charge(s) against each person arrested, with a view of granting bail to those persons who can be released on recognizance or bond with or without surety, observing the points to be considered before granting bail
- Where the process of bail has been exhausted and there remains a problem of accommodating the remaining prisoners, the Divisional Officer shall arrange for their transfer to other holding facilities within the Division;
- Where there is no more available accommodation within the Division the Divisional Officer shall notify the Area Officer of the situation who will make arrangements to have these prisoners accommodated in another Division within the area.

ANTI - ESCAPE PROCEDURES

It shall be the responsibility of the entire cell staff at all times to exercise vigilance in preventing escape.

In the event a prisoner escapes from custody (lock-ups), it shall be the responsibility of the member who has information of the escape immediately to report the matter verbally to the Sub-officer in charge of the lock-ups.

It shall be the responsibility of the Sub-officer in charge lock-ups to communicate to the Sub-officer in charge Detention and Courts, Divisional Officer and Police Control Centre by radio, telephone or other means.

The following information shall be made available to the receiver;

- Name, age, address and occupation of prisoner;
- Type of clothing being worn by prisoner;
- Personal description of the prisoner;
- Offence(s) for which charged;
- Exact location where prisoner escaped;
- Whether or not the prisoner was handcuffed.

It shall be the responsibility of the Divisional Officer to initiate action to recapture the prisoner by alerting C.I.B. staff, patrol units and mobilizing resource personnel.

It shall be the responsibility of the Sub-officer in charge lock-ups to submit a written preliminary report through the Sub-officer in charge Detention and Courts to the Divisional Officer within twenty-four (24) hours for information and appropriate action. The completed file (including all statements) shall be submitted to the Divisional Officer within five (5) days of the occurrence.

The Divisional Officer shall submit the completed file along with his recommendation to the Commissioner of Police through the Area Officer within seven (7) days of escapes.

The Commissioner of Police shall take administrative and other actions as he deems necessary.

FEMALE AND JUVENILE PRISONERS

The supervision of female prisoners by lock-up staff of opposite sex is a sensitive task bearing in mind that their privacy must not be violated. To ensure a smooth lock-up supervision of female prisoners the following procedure shall be followed:

- It shall be the responsibility of the Sub-officer in charge head station and the Sub-officer in charge other stations with lock-ups facility to ensure that at least one female attendant is detailed on each shift for lock-ups or cell duties on a daily basis to attend to female prisoners;
- Whenever a female attendant is not available to work on a particular shift due to the exigencies of the services or otherwise, the Sub-officer in charge lock-ups for that shift shall inform the senior person on duty at the station and record and entry in the Station Dairy to the effect;
- It shall be the responsibility of the senior person mentioned at "2" to:
 - Contact out/head stations and arrange for female police personnel to be temporarily assigned to the lock-ups staff to supervise female prisoners;

- Instruct the Sub-officer in charge lock-ups and one other of the lock-ups 's staff to supervise the female prisoner and report accordingly. An entry shall be recorded in the Station Diary as soon as practicable after such activity.
- Monitor the actions of these male attendants in relation to female prisoners and ensure that they are in accordance with the rules governing lock-ups;
- Visit the lock-ups himself during the shift and ascertain from the male and female prisoners if there is a complaint and if any initiate investigation without delay.

To ensure separation of male and female prisoners in custody, the following procedure shall be adopted:

Female prisoners shall be separated by sight and sound from male prisoners although both may be in the same cell block;

Where both male and female prisoners have to use the dame bathroom facilities, the Sub-officer in charge lock-ups shall ensure:

- Alternate use of the facility by both sex;
- The privacy of each sex is not violated during such activity

Force Orders # 1628 Part 1 Sub. No. 3 dated 17.8.79 dealing with Juveniles in Police Custody stipulates the following:

Juveniles should not be taken in custody for petty offences but should be cautioned and sent or taken home to parents or guardians; a record of which must also be made in the Caution Register kept at the stations;

With effect fro 4th August, 1978 all juvenile offender taken in custody shall not be placed in by the police lock-ups. On arrival at the police station the shall be processed and without delay taken to a Place of Safety;

Where possible a special vehicle and driver with an escort party shall be on Stand-by Duty both day and night at every police station to take these juveniles to Place of Safety;

In view of this a holding area shall be provided at the station where the juveniles shall be held and guarded by the escort party;

Male juveniles charged with offences of a serious nature or those detained on suspicion for the committal of serious offences shall be taken to the Maximum Security Section at Stony Hill;

The arresting Constable /Sub-officer shall use his/her discretion to consider bail when practicable before departure to the Place of Safety

The procedure where the Court makes an order for a juvenile to remanded at a specific Place of Safety shall continue.

PRISONERS' MEALS OR OTHER SUPPLIES

- Meals are supplies to all prisoners in police custody three (3) times daily.
- Diets are supplied to prisoners at the rate/in accordance with orders issued by the Government from time to time.
- Diets shall not be supplied by any member of the Force or by a person connected in anyway to such member
- No intoxicating liquor shall be allowed to prisoners.
- The Divisional Officer or his nominee shall inspect diets supplied to prisoners at being reasonable intervals to ensure that satisfactory meals are/provides within the cost allowed.
- Sub-officers in charge stations shall make these inspections once per week and an entry to the effect shall be made in the Station Diary.

- While breakfast, lunch and supper are normally served, no more than fourteen (14) hours shall elapse between meals, except when a different dietary is recommended by Government Medical Practitioner,
- Rule 7 (4) of Jamaica Constabulary Force Book of Rules stated: Whenever a prisoner in being escorted by a member over a long period of time or distance, every effort must be taken to have such prisoner supplied with his/her regular diet as though was confined to an institution.
- Before a prisoner is released from custody after serving a short term or before being sent off to prison, diet is to be ordered. Diet ordered before a prisoner is released should be served before released.

PRISONERS UNDER THE INFLUENCE OF DRUGS OR ALCOHOL

There instances where a person or persons appear to be under the influence of alcohol or other drugs and are violent or self destructive to such an extent that they pose a danger to the public or themselves.

Whenever such a situation exists and warrants police action the following procedure shall be adopted:

Section 34 (3) of the Road Traffic Act

- empowers the police to arrest without warrant any person who when driving or attempting to drive or when in charge of a motor vehicle on a road or other public place is under the influence of drink or drug to such an extent as to be incapable of having proper control of the vehicle. Arising from this instrument the following instructions published in Force Orders #342 dated March 18, 1954 is republished for the information and guidance of all ranks:
- Whenever an accused person is taken into custody by the police for driving under the influence of alcohol contrary to Section 34 of the Road Traffic Act the following procedures shall be adopted.
- The accused shall be charged and cautioned in the usual manner by the police the accused should be informed that a medical doctor will be sent for to examine him;
- the accused should be informed that, if he wishes he may have present a doctor of his own choice and he should be asked to give the name of a doctor who would come;
- The police should summon the medical doctor mentioned in paragraph 2, who should proceed to examine the accused, unless he objects. This examination need not be delayed until the medical doctor mentioned in paragraph 3 arrives;
- If the accused refuses to be examined by the police medical doctor, he should not be forced;
- The medical doctor may, however, persuade him to consent to an examination;
- where the police medical doctor proposes to do anything of a drastic nature to the accused e.g. administering an injection, taking the accused (s) blood or urine for determining the alcohol contents, during the course of his examination, this should not be done without the specific consent of the accused;
- If the accused objects to being examined the medical doctor may nevertheless observe him (without actually touching him) and give evidence what he is able to find.
- When a person other than a motorist is under the influence of drink or drugs, is self-destructive and endangering the public, the police may take such person into custody;
- In handling such person the police shall be courteous, using patience and good judgement at all times;
- No person arrested (at 1 and 4) shall be placed in a cell with other prisoners. Where there is a temporary holding facility separate and apart from the cell block, such person or persons shall be placed therein under close supervision of the cell staff and Guard Room Personnel,

PRISONERS COURT APPEARANCE

The fundamental rights and freedoms of an individual are of paramount importance in any democratic society. It shall be necessary therefore, to establish a procedure to ensure the timely court appearance of any person arrested and ensure the constitutional rights of such person.

To facilitate the timely court appearance of any person arrested the following procedures shall be adopted:

Where a person is arrested and charged with a crime or other breach of the peace, the investigator shall carry out his/her investigation accurately and intelligently in the highest traditions of the Force in accordance with the principles of the Constitution and Laws of Jamaica and ensure the appearance of such person before a court of Law as soon as practicable;

Section 20 of the Constitution of Jamaica requires that an accused shall be given a fair hearing within a reasonable time by an independent and impartial court established by law,

To prevent undue delay in compliance with Section 20 of the Constitution, an investigator shall promptly prepare his/her case, have same vetted by a senior Sub-officer and thereafter submitted to the court for the initiation of the legal process;

Where any person is arrested and charged by the police under Section 5 (a) of the Unlawful Possession of Property Act the police shall take such person before a Resident Magistrate sitting in court along with anything found in his possession or under his control,

Section 5 (b) of the Unlawful Possession of Property Act states: "If the Resident Magistrate is not sitting in court within forty eight (48) hours after the arrest, the arresting officer or authorized person shall take the accused before a Justice of the Peace who may grant bail or remand in custody to appear at the earliest convenient date before a Resident Magistrate sitting in court."

Dangerous Drugs

INTRODUCTION

Throughout history man has always sought ways of changing his situation and relieving the monotony of his existence. This need for change ranges from increasing his level of pleasure to seeking ways of forgetting his problems. He has done this with music and dancing and with drama and literature. He has also done this through the use of various plants and chemicals.

The use of opium and opium derivatives as a means of forgetting the presenter caring for the sick dates far back into history. In the mid - 1800s in England Godfrey's Cordial a mixture of opium, molasses and sassafras was a common tonic for both adult and children. It was a legal drug and stocked by most grocery stores. In the United States, morphine, the active part of opium was once prescribed for alcoholism.

Cocaine, a stimulant and much different from depressive opiates, was used by Indians in Central America to give them energy and strength. Records of their chewing the leave or the cocoa shrub to obtain euphoria and other desirable effects go back some two thousand (2000) years. In fact when the Spanish learned that the right to chew the cocoa leave was prized above silver or gold, they took possession of the leaves and gave them out freely to the Indians in order to control them. The practice worked so well, cocaine is considered a significant factor in the Spanish conquest of Central America. In the United States, like Britain and most other European countries cocaine was a commonly used drug before the turn of the century. In 1886, a tonic called "Coca Cola" was produced in the United States. Containing cocaine and an extract from the African Kola nut (which contained caffeine, another stimulant) it proved to be a most popular drink. The cocaine was not removed until 1903. Cocoa - Cola still contain caffeine.

The use of Ganja, a plant containing yet a different kind of mind altering drug, can also be traced back for thousands of years. It is referred to in Chinese writing as far back as 2700 BC with similar references in Indian and as works. Use of the plant by African tribes was common very early and used for such things as assistance in childbirth and in the infant weaning process. Ganja is somewhat unique in that it also provides a material called hemp which was valuable in the making of ropes. This use of ganja was common in Europe as early as the 13th century.

Eventually these drugs came to be associated with moral degeneration and criminality. In the case of opium and cocaine, the difficulty associated with quitting suggested that the drugs contributed to a weakening of the mind.

Soon all three types of drugs (including alcohol) were considered dangerous in that they led to a relaxation of the moral conscience and unpredictable changes in emotions and were declared illegal.

Unfortunately, many people still wanted the drugs. This led to a black market and with the increase in enforcement came greater risk and higher prices. At the present time the trade continues.

Reactions of individuals using Narcotics

Individuals using narcotics all have very similar reactions:

They appear drowsy, listless and tend not to move around unless forced to. An important characteristic is that the pupils of their eyes become very small like pin holes. With continual use they also become constipated.

- With longer doses many will become sick to their stomach and will go to sleep. When sleeping or in a coma from an overdose, they tend to breathe in a very slow, shallow manner.
- Their body will be very limp and their skin cold and clammy. Since the jaw is relaxed there is also the chance that the tongue will block the air passage. If the dose is further increased they tend to stop breathing. ***If this happens, they can only be maintained by artificial respiration and/or a respirator.***
- Addicts *who* have been using the drugs for some time *usually begins* to neglect themselves and may suffer from malnutrition, infections and unattended diseases

or injuries. Those who use narcotics by injection, the most common method, often will develop abscesses, blood poisoning, and hepatitis as well as **AIDS (Acquired Immune Deficiency Syndrome)** as a result of sharing dirty needles.

- As a group narcotic addicts are not co on in Jamaica. In most cases, the price of the drugs is too high and the drug is not always available on the streets. There is some illegal use of the drug in this category, however, and we must be constantly on the lookout for both the user and the dealer.

Memorandum of Object or Reasons

This Act amends the previous dangerous drugs Act;

To give the Resident Magistrates, where appropriate, jurisdiction to deal with offences under the Act *pertaining to cocaine and other hard drugs.*

To increase the maximum penalties which may be imposed under the act by the circuit court, on summary convictions in the Resident Magistrate Court, and in the case of ganja, to provide for the imposition by the courts, of minimum fines which are to be based on the weight of the ganja for which the accused person is convicted.

The list also contains no provisions to permit forfeiture of a conveyance used in the commission of an offence under the list where the conveyance appears to have abandoned and there is reasonable cause to suspect from all circumstances, that the conveyance was being used in the commission of an offence against this act.

In addition special provisions are now made to deal more harshly with offences committed in school premises or at prescribed ports or similar places, or involving the use of the mail.

The Dangerous Drugs Act

The Dangerous Drug Act was introduced to control and restrict the importation, exportation, transit, production, possession, sales, distribution and use of certain dangerous drug such as opium, morphine, cocaine and ganja.

N.B

Ganja and Cocaine are the most popular of the group of dangerous drugs used in Jamaica. Ganja is cultivated extensively in the mountainous regions of Clarendon, St. Catherine, St. Ann, St. Elizabeth, Portland and St. Thomas. Cocaine is not manufactured in Jamaica, but is transported here from South American Countries.

IMPORTATION OF DANGEROUS DRUGS

An import authorization permitting the importation into the island of any dangerous drugs specified therein may be given by the Chief Medical Officer to any person who may lawfully import drugs.

No dangerous drugs shall be imported into the island unless the person to whom the drug is confined is in possession of a valid and subsisting import authorization granted by the C.M.O.

IMPORT AUTHORIZATION
FORM C (Section 14 (1))

Authorization No.....
File No.....

THE DANGEROUS DRUGS ACT
IMPORT AUTHORIZATION

In pursuance of the Dangerous Drugs Act (hereinafter called "the Act") the Chief Medical Officer hereby authorizes

..... (Hereinafter called "the importer") to import the
drugs specified in the Schedule hereto, from

This authorization is issued subject to the following conditions

1. The drugs shall be imported before (date)
2. This authorization is not a licence to be in possession of or to supply the drug imported.
3. This authorization does not relieve the importer from compliance with any Customs regulations in force for the time being relating to the importation of goods into or transshipment of goods in Jamaica, or any Post Office regulations for the time being in force in Jamaica.
4. This authorization is valid only for the importer and may be revoked at any time by the Chief Medical Officer to whom it shall in that event be immediately surrendered. It shall be produced for inspection when required by any duly authorized person.
5. This authorization unless sooner revoked shall be produced to the Customs Officer at the time of importation and shall be surrendered to the Customs Officer at the time when the last consignment of drugs is imported.
6. If the importation of all drugs specified in the Schedule is not effected before the date specified in condition No. 1 this authorization shall immediately after that date be surrendered to the Chief Medical Officer.
7. The copy of the export authorization, if any, which accompanied the drugs shall be forwarded to the Chief Medical Officer immediately the importation of the drugs has been effected.

.....
(Signature) Chief Medical Officer.

(Date)

This authorization is not to leave the possession of the importer until it is surrendered to the Chief Medical Officer or to the Customs Officer, who will complete the certificate on the back and return the authorization to the Chief Medical Officer.

Definitions

Section 2 (1)

GANJA

Ganja includes all part of the plant known as Canibas Sativa from which the resin has not been extracted and include any resin obtained from that plant, but does not include medicinal preparation made from that plant.

N.B. Resin is the sticky substance formed in certain plants.

COCAINE

Cocaine is a bitter crystalline alkaloid substance obtained from the leaf of the cocoa shrub. These shrubs are native of the Indian Islands in South America.

MEDICAL OPIUM

means raw opium which has undergone the process necessary to adapt it for medicinal use in accordance with the requirements of the British Pharmacopoeia, whether it is in the form of power or is granulated or is in any other form, and whether it is or is not mixed with neutral materials;

PREPARED OPIUM

Prepared Opium means Opium prepared for smoking and includes dust and any other residue remaining after opium has been smoked.

N.B

These, three drugs possess harmful effects physically, mentally and' morally also special emphasis is placed on offences related to them.

CONVEYANCE

This includes ship, aircraft and any other means of transport by which goods may be brought into or taken from the island.

POWER OF INSPECTION

Any Constable or any person authorized by the Commissioner of Police shall have the power to enter the premises of person carrying on the business of a producer, manufacturer, seller or distributor of any drugs under this act, and to demand production of and to inspect any books, documents relating to dealing in any such drugs and to inspect any stock of any such drugs.

SECTION 7a

Export or Import ganja

Every person who imports or exports or take any steps preparatory to exporting ganja shall be guilty of an offence and -

On conviction before a Circuit Court, shall be sentenced to a fine of not less than **five hundred** dollars for **each ounce** of ganja which the Court is satisfied is the subject matter of the offence or to imprisonment for a term not exceeding thirty five years or to both such fine and imprisonment; or

On summary conviction before a Resident Magistrate, notwithstanding section 44 of the Interpretation Act, shall be liable -

- To a fine which shall not be less than three hundred dollars, nor more than five hundred dollars, for each ounce of ganja which the Resident Magistrate is satisfied is the subject matter of the offence, so, however, that any such fine shall not exceed five hundred thousand dollars; or
- To imprisonment for a term not exceeding three years; or
- To both such fine and imprisonment.

Where there is evidence -

- That the ganja for which an accused person has been charged under this section is packaged in such a way as to make it reasonably suitable for exporting; or
- That the ganja for which a person is charged was found to be in or at any prescribed port or place, that evidence shall be *prima facie* evidence of steps being taken preparatory to the exporting of the ganja by the person charged.

Section 7b

Cultivating; selling or dealing in, or transporting ganja

Every person who

- Cultivates, gathers, produces, sells or otherwise deals in ganja; or
- Being the owner or occupier of any premises, uses such premises for the cultivation or storage of ganja or the selling or otherwise dealing in ganja or knowingly permits such premises to be so used; or
- Uses any conveyance for carrying ganja or for the purpose of selling or otherwise dealing in ganja, or being the owner or person in charge of any conveyance, knowingly permits it to be so used, shall be guilty of an offence and -

On conviction before a Circuit Court, shall be sentenced to a fine of not less than **two hundred** dollars for **each ounce** of ganja which the Court is satisfied is the subject matter of the offence or to imprisonment for a term not exceeding twenty five years or to both such fine and imprisonment; or

On summary conviction before a Resident Magistrate, notwithstanding section 44 of the Interpretation Act, shall be liable -

- To a fine which shall not be less than one hundred dollars, nor more than two hundred dollars, for each ounce of ganja which the Resident Magistrate is satisfied is the subject

matter of the offence, so, however, that any such fine shall not exceed fifty thousand dollars;
or

- To imprisonment for a term not exceeding three years; or
- To both such fine and imprisonment.

Section 7c

Possession of ganja

Every person who has in his possession any ganja shall be guilty of an offence and -

On conviction before a Circuit Court, shall be sentenced to a fine or to imprisonment for a term not exceeding five years or to both such fine and imprisonment; or

On summary conviction before a Resident Magistrate, shall be liable -

- To a fine not exceeding one hundred dollars for each ounce of ganja which the Resident Magistrate is satisfied is the subject matter of the offence, so, however, that any such fine shall not exceed fifteen thousand dollars; or
- To imprisonment for a term not exceeding three years; or
- To both such fine and imprisonment

Section 7d

Smoking Ganja

Every person who -

- Being the occupier of any premises knowingly permits those premises to be used for the smoking of ganja; or
- Is concerned in the management of any premises which he knows is being used for such purpose as set out in paragraph (a); or
- Has in his possession any pipes or other utensils for use in connection with the smoking of ganja; or
- Smokes or otherwise uses ganja, shall be guilty of an offence and shall be liable on summary conviction before a Resident Magistrate, in the case of a first conviction for such offence, to a fine not exceeding five thousand dollars or to imprisonment for a term not exceeding twelve months, or to both such fine and imprisonment, and in the case of a second or subsequent conviction for such offence, to a fine not exceeding ten thousand dollars or to imprisonment for a term not exceeding two years or to both such fine and imprisonment.

Section 22 (7)

Person found with Drugs

A person, other than a person lawfully authorized, found in possession of more than -

- one -tenth of an ounce of diacetyl -morphine (heroin);
- one-tenth of an ounce of cocaine;
- one-tenth of an ounce of morphine;
- one ounce of opium; or
- eight ounces of ganja,

Is deemed to have such drug for the purpose of selling or otherwise dealing therein, unless the contrary is proved by him.

Section 21a

Offence of using the postal service for drugs

Every person who without lawful excuse -

- encloses in or with any letter, parcel, packet or other matter sent by post, or posts any cocaine, opium, ganja or drug to which Part IV applies; or

- uses any mailbag or mail van or other vehicle used for the carrying of mail for the transportation of any cocaine, opium, ganja or drug to which Part IV applies, shall be guilty of an offence and shall be liable -

On conviction before a Circuit Court to imprisonment for a term not exceeding fifteen years; or

On summary conviction before a Resident Magistrate, in the case of a first conviction for such offence, to a fine not exceeding fifty thousand dollars or to imprisonment for a term not exceeding three years, or to both such fine and imprisonment and in the case of a second or subsequent conviction for such offence, to a fine not exceeding one hundred thousand dollars or to imprisonment for a term not exceeding five years or to both such fine and imprisonment.

Drugs in School Premises

A person, other than a person lawfully authorized is found on any school premises in possession of any cocaine, opium, ganja or any drug is deemed to have such cocaine, opium, ganja or drug for the purpose of selling or otherwise dealing therein.

Definition “School”

School includes any educational institution, Technical Institution, Training Center or Teacher's College, but does not include the University of the West Indies or the College of Agriculture or such other institutions as may be prescribed.

School Premises includes

- Any buildings, playing fields or other premises established or maintained for the benefit of the pupils of a school whether or not such buildings, playing fields or other premises are within the curtilage of the school;
- Any premises for the time being used for the keeping of a school

Section 23

Powers of Arrest

Any constable may arrest without warrant any person who has committed, or attempted to commit, or is reasonably suspected by such constable of having committed or attempted to commit, an offence against this Act, if he has reasonable ground for believing that that person will abscond unless arrested, or if the name and address of that person are unknown to and cannot be ascertained by him.

N.B

of the J.C.F. Act also gives power.

Power of Search

If any member of the force of and above the rank of Sergeant is satisfied that there is reasonable cause to believe that an offence against this act has been committed in any premises he may give directions in writing to any constable to enter such premises and search, seize and detain any drug to which the act applies. Or if anything in which such constable reasonable suspects is being concealed or any other thing by means of which such constable reasonable believes an offence against this act has been committed, (>r which there may be evidence of the commission of such offence, such constable has the power to carry out direction. It shall be the duty of the constable in the execution of such directions to produce the document containing same to the owner of any premises intended or pertaining to such directions if required to do so by such owner or produce whether at the time of entering or . Searching such premises or at any time afterwards. The documents should be in the custody of the Constable

If a Justice of the Peace is satisfied upon Oath that there is reasonable grounds for suspecting that any offence against this act is being committed upon any premises may grant a Search Warrant authorizing any Constable named in the Warrant to enter and search Such premises at any time within the month from the date of the warrant.

Section 24

Seizure and Forfeiture of Vehicle

If any constable has reasonable cause to suspect that any conveyance is being used or has been used for the commission of any offence against this Act, he may without a warrant search and, if such search reveals evidence that the conveyance is being used or has been used for the commission of any offence as aforesaid, seize and detain such conveyance.

Where any conveyance is seized pursuant to this section and -

- Any person is convicted of an offence against this Act; and
- The Court is satisfied that -
 - That person owns the conveyance used in the commission of the offence; or
 - That the owner of the conveyance permitted it to be so used; or
 - That the circumstances are otherwise such that it is just so to do,

The Court shall, upon the application of the prosecution, order the forfeiture of the conveyance.

Procedure when Dealing with Exhibits

The nature and potential of dangerous drugs, is so serious that certain special policies have been developed to protect personnel.

When making an arrest of a person who you believe to be in possession of dangerous drugs, take the person before a Justice of the Peace to be searched. (it is preferable to ask the person to take everything out of his pocket rather than to put your hands in his pockets. However, care must be taken to pat the areas down before asking to ensure there are no weapons concealed). Whenever possible it is recommended that medical gloves be worn when searching prisoners.

At no time should a constable taste or smell a substance in an effort to determine if it is an illegal drug.

Exhibits should at all time be kept in view of the defendant from the time it was taken from him until it has been sealed by the arresting Constables. The sealing should be done in the presence of the accused. Exhibits in these cases should be kept in the possession of the arresting Constable until it reaches the Government Analyst and certificate received.

- Ensure that the suspected material is protected and secured in the natural state in which it was found.
- If the material is of the appropriate quantity, it shall be immediately placed in a JCF drug evidence envelope and sealed in the presence of the defendant. All information required on the envelope shall be filled out by the arresting Constables. If the material is of substantial or bulky quantity, it shall be retained in the container in which it was found or placed in an appropriate container. A J.C.F. -drug evidence envelope should be filled out and attached to the container.

The exhibit should remain in the possession of the arresting Constables and be taken forthwith to the Police Laboratory/Government Analyst.

- If that is not possible it should be immediately taken to the station/district exhibit store.
- The arresting Constables should not relinquish possession of the exhibits until a certificate is received (a copy should be retained by the arresting constable).

All material submitted to the Police Laboratory/Government Analyst for examination shall be accompanied by an "Exhibit for the Police Forensic Laboratory" form which shall include prior custody information such as:

- Name of last person having custody of the material

- Date and time of submission and method used for transmission
- Date and time of receipt in the Laboratory and name and signature of Laboratory person receiving the material
- Reason for transfer (Laboratory analysis, etc
- Brief description of incident and/or arrest
- Type of examination -requested

The arresting constables are required to prepare a complete report covering the incident and detailing all facts pertaining to the material placed in custody. This report should be forwarded to the Sub-Officer in charge for transmission to his commanding Officer.

The Divisional Officer shall be notified to the circumstances surrounding the seizure and disposition of any dangerous drugs by way of a written report. This report must contain arrangement for storage of the drug when it is returned from the Laboratory.

Following analysis, the arresting constables shall obtain a copy of the analysis and retrieve the material. They should immediately transport same to the station exhibit store for safe keeping pending trial.

Any money seized in drug related cases

Any money seized shall be counted and sealed in a JCF property envelope in full view of the defendant or if that is not possible, a witness.

The property envelope should be filled out completely.

- A description of the money should be taken and should include the individual denominations of the total currency along with serial numbers and country of origin.
 - This listing should be forwarded to the investigative file.
 - If possible a photocopy of the currency should also be made and maintained in the investigation file.

Force Commitment to Suppression of Drugs

The appendix of force order 2250 dated July 19th, 1990 sets out the overall commitment of the force to the suppression of drugs. It stated in part:

THE JAMAICA CONSTABULARY FORCE IS COMMITTED TO THE SUPPRESSION OF DRUG TRAFFICKING AND THE ILLICIT USE AND DISTRIBUTION OF ALL DRUGS. TOWARDS THIS END, ALL MEMBERS OF THE FORCE SHALL DILIGENTLY PERFORM THEIR DUTY. ENSURING THEIR INDIVIDUAL INTEGRITY AND THAT OF THE FORCE AT ALL TIMES AND BE BOUND BY THE SPIRIT AND LETTER OF THIS ORDER

The force order number 2288 dated April 11TH April 1991 and force order number 2289 dated April 18th. 1991 set out the structure and objectives of the N.F.D.I.C. and the J.I.C.C.

THE CENTRE IS STAFFED JOINTLY BY THE JAMAICA CONSTABULARY FORCE. THE JAMAICA DEFENCE FORCE AND CUSTOM SERVICE UNDER THE COMMAND OF A DIRECTOR."

General Information

There can be no case without exhibits.

Where the exhibit is swallowed the stomach should be tested.

In case of smoking and exhibit thrown away, saliva should be tested.

Sediments in tins and pockets are equally valuable.

Never carry out preliminary search by putting hands in defendant's pocket.

N.B. Persons seen or suspected to be in possession of Dangerous Drugs should be taken before a Justice of the Peace to be searched. Material submitted for examination shall be accompanied by an "Exhibit for the Police Forensic Laboratory" form.

JAMAICA

CERTIFICATE

For the purpose of The Dangerous Drugs (Amendment) Act

I, the undersigned, a Government Analyst for Jamaica, do hereby certify that I
received on the 2 from
one envelope

Sealed }
Unsealed } On delivery, the undermentioned articles

I have analysed the same and find as follows:-

As witness my hand this day of 2

At the Forensic Laboratory, Kingston Jamaica
2^{1/2} Hope Road Boulevard
Kingston 6

EXHIBIT FOR POLICE FORENSIC LABORATORY

Division..... Regina vs.....
Station..... Offence.....
Date..... Complainant or Dec'd.....
Case Register No..... Escort.....

PARTICULARS OF EXHIBITS

[illegible]

Essential facts of case and Examination requested

(FOR LABORATORY USE ONLY)

Date and time received

Ref. No. F.L. _____

Remarks

Date and time returned

Received

Signature of Escort

Government Analysis

Note: This copy is to be held by Escort in Case File and be taken to laboratory for return of exhibits.

THIS PAGE FOR ADDITION

Exhibits.....

.....

Remarks: Brief History of Case, Information, etc., if necessary.....

.....

.....

.....

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.....

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.....

JCF/NPCJ-FIPT/MAN/SFs/0022/2022

EVIDENCE HANDLING IN DRUG CASES

Introduction

There are important rules to be followed in the care and preservation of exhibits. The rules, if adhered to, facilitate proper sample collection, preparation and subsequent delivery of the exhibit to the laboratory and/or Court, ensuring the integrity of the evidence. You must remember that you can never over document the evidence and there is only one chance to perform the job properly. Further details of the 'processing sequence is provided at Appendix 1 of these notes.

The question invariably arises as to whether an object is or is not evidence. If a doubt exists, then the object is secured and processed as evidence. Subsequent re-evaluation will determine the real worth of such evidence to the investigator. The officer must demonstrate to the court's satisfaction that the integrity of the evidence was not compromised in any way and that it can be positively identified from all other items that may have similar appearance.

There are three important stages in the 'evidence handling' process. They are

- 'Collection',
- 'Packaging' and
- 'Submission'

At Each Of These Stages, 'Recording' Is A Crucial Factor.

Many instances occur when officers make 'good' or important findings of evidence but because of flaws in the way that evidence has been recorded, collected, packaged and submitted, in other words handled overall, its value is reduced and on occasions rendered worthless. Where this occurs, otherwise strong cases have been so weakened that the case is either too weak to proceed to a court hearing or if heard in court the offender is acquitted.

Before examining these three stages in more detail there is a need to examine and fully comprehend one of the most important concepts in processing evidence of any kind. This is commonly referred to as 'The Chain of Custody.

Chain of Custody

The total history of an item of evidence from the point of recovery to its eventual production in court is known as the 'chain of possession' or the 'chain of custody'. This chain is made up of all those individuals who have had custody of the evidence since its recovery into the possession of the law enforcement agency. Each individual in the chain of custody is responsible for a particular piece of evidence to include its care, safekeeping, and preservation while it is under his control. The chain of possession is established by adhering to the following guidelines:

- That the number of persons handling the evidence from its initial recovery to the time it is safely stored should be limited.
- If the evidence leaves the possession of an officer, he should record in his notes, details to whom the evidence was given, the date and time of the transfer and reason it was turned over.
- Individuals who handle the evidence should affix their names, and assignment to the package containing evidence.
- A signed receipt should be obtained from the person accepting the evidence. In turn the investigator should sign a receipt log when the item is returned to him.

- When an item of evidence is returned, the investigator should check his identification mark on it to ensure that it is the same item.
- The investigator, after an item has been returned to him, should determine if the item is in the same condition as when it was discovered. Any change in the physical appearance of the evidence should be called to the attention of the court.

The judiciary has held repeatedly that all evidence must be identified with the place of discovery and must show a complete chain of custody. The investigator must be in a position to prove the continuous possession of the evidence from the time of discovery, until its introduction as evidence at the trial of the case.

Procedures for acceptance or rejection of specimens arriving at the laboratory are important in order to maintain chain of custody that will be legally supportable in court proceedings.

Such procedures are focused on assessing the adequacy of 'chain of custody' documentation accompanying the specimens, with the assessment of clarity of labeling on the exhibits, and on the possible tampering with the samples prior to receipt in the laboratory.

Having addressed the crucial concept of 'chain of custody' let us return to the three important stages in the 'evidence handling' process.

Collection

Step 1:

In more simple and routine cases the recording of the initial 'collection' process may require no more than an appropriately detailed entry in your notebook or other journal used for routine documentation. The value of this entry may be enhanced by the inclusion of a brief sketch indicating the position of the item(s). However in more serious or complex cases one should consider the use of photography or video recording

The notes that are taken here should contain, the number of packages, all outer characteristics of the packages e.g. colour, markings etc.

In simpler drug cases, which do not involve large amounts of drug, the entire exhibit may be sent for forensic examination. However in those cases involving considerable amounts of drug or large numbers of suspect packages there is a need to obtain representative samples. This addressed in step 3

Step 2:

The weights of all the packages should be recorded. The investigator should be aware of the difference between gross weight and net weight. Gross weight is the weight with all outer packaging included. The net is void of all packaging.

Step 3:

When implementing a sampling procedure especially when dealing with suspected drugs, measures must be put in place to ensure that those samples of evidence removed must be indicative of the whole and permit a correct and meaningful chemical analysis.

There are a number of rules and techniques for achieving this objective. They depend upon the type, volume and number of items found. Some guidance in conducting the sampling process is provided in Appendix 2. Further advice should be sought from your supervisor, colleagues from specialist drug units or from the Forensic Science Department.

Packaging of the Exhibit

- Use the following point list to ensure correct packaging technique:

- The condition of the physical evidence must be preserved and maintained at all times.
- Avoid cross contamination on collection.
- Be systematic. Record all information at point of collection.
- Package exhibit to retain its evidentiary value.
- Follow rules of packaging specific to the class of exhibit. (See Appendix 1)
- Let items dry carefully before packaging.
- Seal all containers and envelopes with evidence tape. DO NOT USE STAPLES.
- Label and identify all containers carefully.
- Prepare chain of custody and submission documentation before delivery to the laboratory.

NOTE:

It is especially important to be careful of items that may be contaminated with body fluids as these can be potentially hazardous avenues for tuberculosis, hepatitis and HIV infections. (See section on Universal Precautions that are set out in Appendix 3 to these notes)

Submission of Exhibits to The Forensic Laboratory

The forensic laboratory would usually provide the submission forms necessary for presentation and request for analysis relating to drugs, trace evidence and other areas of investigation. See Appendices 4, 5 and 6 at the end of this chapter.

It is imperative that the documentation is filled out correctly, as accountability of the exhibit must be traceable at all times.

The Processing Sequence
(Narcotic and Dangerous Drug Evidence)

Marking the Evidence

All evidence should be properly marked for identification as soon as it is collected, or as soon as possible thereafter. **UNDER NO CIRCUMSTANCES** should anything be written or marked directly on the surface of the items as this may detract from the evidential value of the item. If the item is large enough to affix a label (tied not stuck) then this should be done and all the relevant details written on the label. However, if for any reason it is not possible to affix a label then the item should be placed in a suitable container and the container marked. Liquids, if possible, should be retained in their original containers, sealed securely, and marked for identification.

Counting and Weighing

The most positive method for providing a later means of determining the current status (amount or quantity) of evidentiary accumulations is requiring all evidence to be weighed soon after it is seized. Certain types of evidence (capsules, pills) should also be counted. Counting should be performed in addition to, not in lieu of, weighing.

The seizing officer should express the weight of the evidence in gross proportions. The gross weight includes the container or other packaging material used to enclose or hold the evidence, i.e., box,

balloon, bottle, or similar item. The items weighed and their gross weights should be noted on the inventory and chain of custody forms or evidence vouchers.

Liquid Type Evidence

Liquid volume should be estimated in metric units. If the container in which it was found has no stopper or method of sealing itself, the liquid should be transferred to a clean, glass-stopper bottle and sealed with adhesive tape.

Bulk Evidence

Marijuana, in packaged form, should be reported in the gross weight of the entire exhibit.

Marijuana in bulk form should be given in gross weight and in metric units.

Plant Material

When plants that are few in numbers are found growing, they should be counted. If they are numerous and in a large area, they should be photographed. The areas should be measured, in approximate figures if need be, and the plants pulled or burned. If no criminal violation is involved, the plants should be reported on an investigative or evidence report and either destroyed or submitted to a laboratory for destruction.

Sealing and Labeling Evidence

Once the narcotics evidence has been counted and weighed, it must be properly preserved, sealed, and labelled. All exhibits should be packed in such a way as to minimize breakage and loss in transit. Laboratories frequently receive broken tablets and capsules that have been shipped loosely. This makes recovery for analysis difficult. Cotton or some other soft, non-contaminating material should be placed in all containers to immobilize tablets and capsules. Moreover, tablets, capsules, or other small items should never be put in contact with pressure-sensitive tape (e.g. scotch tape). In the case of tablets, the surface in contact with the tape is destroyed for forensic purposes. Also, an interaction may occur between the samples and the coating on the tape.

Powder, pills, and capsules should not be placed within an evidence container such as an envelope unless they have first been provided with some form of immediate primary protection, known as an "interior" container. This would be, for example, a polyester bag, bottle, or pillbox. Plastic vials, used as containers for small items, must also be protected against damage. They are brittle and are frequently broken with attendant damage to the evidence. Caps of all containers should be secured so that they do not work loose in transit. The fit and suitability of the closure should also be considered.

When dealing with liquids, consideration should be given to whether or not there will be any danger of interaction between the liquid and the container and or the type of closure. Sticky materials (opium, hashish, etc.) should not be put in contact with materials such as an unglazed paper. Contamination of the sample can occur and the entire sample is seldom recovered. Also, wet material such as plant material should be dried before packaging. If shipped before drying, such material will often decompose before it can be examined. This destroys the microscopic features, which are necessary for identification. Also the decomposition and mould growth produce volatile amines and other substances, which can give misleading analytical results.

The proper sealing of evidence is important to preserve the integrity of the evidence. It ensures the court and the investigators that the evidence container has not been opened and the evidence tampered with. Such sealing can be done by using heat-sealed envelopes or an evidence seal tape. Each type of evidence should be placed in a separate container. The investigator should seal pillboxes, envelopes, test tubes, jars, bottles, and cartons containing evidence in such a manner that they cannot be opened without breaking the seal. If an officer breaks the seal affixed to the container, he should write his name or number across the sealed flap of the evidence envelope.

After the physical evidence is marked, counted, weighed, and placed securely within a sealed container, a label is affixed which contains identifying information. The following details should be listed on the label:

- Case number

- Exhibit number (when a number of items are seized)
- Date and time the evidence was found
- Name and description of the articles
- Location at time of discovery
- Signature or initials of investigator who made the discovery
- Name or initials of witnesses to the discovery

Other types of information may be called for, depending on departmental procedure. As a practical consideration, when the exhibit is a small item, space may only allow for the case number, exhibit number, date and time, and the initials of the police officer. If needed, all other information will be on the evidence report.

Consideration should be given to photographing the exhibits, as this provides support to the chain of custody. When taking any photograph for evidential purposes, officers should ensure that ruler or some other suitable indicator is placed by the item being photographed in order to enable persons viewing it to judge the relative size of the item(s) photographed.

Receipt Forms

Most law enforcement agencies have existing policies and forms for the receipt, storage, and handling of evidence. Emphasis should be made to ensure that these forms are accurately and fully completed.

Transmittal to Laboratory

The method of transmittal, obviously, is dependent on the type of evidence to be transmitted, the distance from the laboratory, and the urgency in receiving the results of the laboratory analysis. The ideal might be for the investigator who is requesting the laboratory examination to personally turn over the evidence to the laboratory. Express companies should be used if registered mail is not possible due to size or weight. If express companies are used, shipping records and receipts should be maintained in the case file. If evidence is mailed to the laboratory for analysis, it should go by registered mail with return receipt requested, and the original register receipt should be included in the case file or affixed to the original copy of the report. If the evidence is hand-carried to an evidence technician, the transferring officer should get a receipt that includes the following data:

- Description of the evidence
- Case number
- Name of accused
- Date and time the evidence was submitted for analysis
- Signature of the person receiving the evidence

Sampling Techniques

APPENDIX 2

Sampling of the packages is conducted in two categories.

This is the simplest sampling situation - a single package containing the suspected drug.

- Take at least three samples from the package, one from each of the three planes. (See figure 1). Use a clean spatula/utensil for each sample.
- Package in separate containers. Seal containers with sealing tape and mark containers clearly. Place in evidence bags.

Besides ensuring proper representative sampling, this technique also ensures the detection of any hidden items in the package.

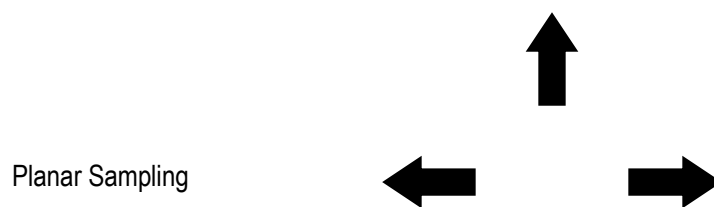


Fig 1

Multiple Packages in a Seizure

An outer physical/visual examination of the packages is performed to determine:

- If all packages contain a similar looking substance e.g. vegetable matter or white powder and/or
- If one or more packages contain material different to that of the majority of packages, the simplest indicator is the physical appearance of the powder or substance. If one or more packages are obviously different in content, these should be segregated and subjected to separate analysis.

Planar sampling is also used here with the following additional directives:

- If there are less than ten (10) packages, all should be sampled.
- If there are 10 -100 packages, you randomly select 10 for sampling.
- If there are more than 100 packages, randomly select a number of packages equal to the square root of the total number of packages rounded to the next highest integer.

UNIVERSAL PRECAUTIONS

The use of universal precautions is based upon the fact that it is impossible to determine just by looking at a person or an object if it is contaminated with an infectious disease or pathogen. Neither can you look at any biological fluid and say that is uninfected. To deal with this situation you apply the following strategy.

In response to the threat posed by the transmission of several potentially fatal diseases specific work practices (e.g. use of personal protective equipment and basic hygiene) and engineering controls (methods of containment) have been adopted,

The word 'universal' means that every patient, blood sample and contaminated item is assumed to be infected and should be handled accordingly.

Therefore, every suspect and blood sample or other biological specimen submitted for analysis is to be considered infected.

The drill entails wearing protective clothing and latex gloves. Be sure to inspect your hands to determine whether you have cuts or scratches and cover these with a plaster. If the contamination of the object being worked with is extensive, then double layer your gloves (put two pairs on at a time). In addition a mask and eye goggles or a face shield should be worn.

On packaging the items, after sealing a biohazard label should be placed on the package to warn others of the contents.

On completion of collection and packaging, clean all used surfaces with a one part of liquid bleach to nine parts of water. This solution is effective against HIV.

Limit access to areas where the potentially infectious material is being held and never allow food or drink in the area. Remove all protective clothing after use, bag and dispose (if non-reusable items were worn) or wash and disinfect with a concentrated bleach solution.

Always remember to wash your hands with a disinfectant soap and water after handling evidence.

RECOMMENDED GUIDELINES FOR SUBMISSION OF DRUG EXHIBITS TO THE LABORATORY

- | | | |
|----|-----------|--|
| 3. | Packaging | Safe
Secure
Sealed |
| 2. | Sealing | Seal the exhibit bag as soon as practical after seizure. The seal must incorporate the sealing officers signature and the actual date and time of <u>sealing</u> (the sealing time would normally be different from the seizing time). |
| 3. | Label | Label details should be brief and accurate including the date and time of seizure. Label must be signed by the seizing officer and the sealing officer (may be one and the same). Only persons who can speak directly to the items may sign the label. The accused, if present, may be encouraged to sign the label. |
| 4. | | Items Each item should be secured and contained (individual items may be packaged in self-sealing plastic bags). Items seized from the same location may be sealed in one evidence bag. Items seized from different locations must not be placed in the same evidence bag. |
| 5. | | Submission The submission form must be completed as fully as possible. The bag number(s) and an accurate description of the item(s) being submitted must be included. The laboratory may not accept the item(s) if required information is not documented on the form. |

GROUND S FOR SPECIMEN REJECTION

The laboratory has the right to refuse any exhibit submissions if the correct protocols are not followed. Listed below are the grounds for specimen rejection. **If the exhibits meet anyone of these criteria the laboratory will not accept them.**

- Error in name, identification number, labelling information.
- Missing sample in batch submitted.
- Missing or torn specimen container seal.
- Item not listed in accompanying documentation.
- Damaged labels.
- No identifying marks on the exhibits.
- Excessive leakage/breakage of the exhibit.
- No documentation.

FORENSIC SUBMISSION FORM

The undermentioned articles are submitted for examination to determine the presence (or absence) of any substance cited in *The Drugs (name of legal statute)* and its subsequent amendments.

TO BE COMPLETED IN DUPLICATE (PLEASE PRINT)

SUMBISSION DATE:.....STATION ID

SUBMITTING OFFICER.....

Larceny Investigations

INTRODUCTION

Larceny is probably the world's most common crime. While in most cases the amount involved is relatively small, the total losses due to larceny each year are staggering. Every year in Jamaica there are approximately 3 reported larceny thefts for every 100 people. Since each reported larceny represents a loss of about \$500 dollars, this amounts to a total annual loss of around 40 million dollars. Moreover, this ratio is similar to many other countries. Unfortunately, these numbers are very low and not really representative of the problem because most people do not bother to report the crime unless it is fairly serious.

Larceny is defined as:

" A felony and is committed by any person who without the consent of the owner, fraudulently and without a claim of right made in good faith, takes and carries away anything capable of being stolen with intent at the time of such taking permanently to deprive the owner thereof.

Providing that a person might be guilty of stealing such thing notwithstanding that he has possession thereof, he fraudulently converts the same to his own use or the use of any person other than the owner.

Simple larceny

Section 5 of the Larceny Act provides:

Stealing for which no special punishment is provided; this or any other enactment for the time being in force shall be Simple Larceny and a felony punishable with imprisonment with hard labour for any term not exceeding five (5) years.

Definition

Simple Larceny is defined by Sub Section (1) of Section 3 of the act as follows:

A person who steals without the Consent of the owner, fraudulently and without a claim of right made in good, **TAKE** and carries **AWAY** any thing capable of being stolen with intent, at the time of such taking, permanently to deprive the owner thereof.

Provided that the person may be guilty of stealing any such thing notwithstanding that he has lawful possession thereof if, being a Bailee or part owner thereof, he fraudulently converts it to his own use of to the of any person other than the owner.

Sub-Section (2)

Further explains the meaning of the words "Takes, carries away "and "Owner" and provides:-

"Takes include obtaining the possession:

- by a y trick
- by intimidation
- Under mistake on the part of the owner with the knowledge on the part of the taker that possession has being so obtained.
- By finding where at the time of the finding the finde1 believes that the owner may be discovered by taking reasonable steps.

(d)

"Carries away" includes removal of anything from the place which it occupies, but in the case of the thing attached, only if it has been completely detached.

"Ownne" includes any part owner, or person having possession, control of, or a special property in, anything capable of being stolen.

Sub-Section (3)

Defines what is **capable of being stolen** and states that:
Everything which has value and is the property of any person and adhering to the reality then after severance there from shall be capable of being stolen.

PROVIDED THAT:
Save as hereinafter expressly provided with respect to fixture, growing things, or from mines, and mineral oils, anything attached to, or forming part of the reality, unless after severance, he has abandoned possession thereof, and

The carcase of a creature wild by nature and not reduced into possession while living, shall not be capable of being stolen by the person who severs it from the reality, unless after severance, he has abandoned possession thereof, and.

The carcase of a creature wild by nature and not reduced into possession while living, shall not be capable of being stolen by the person who killed such creature unless after killing it he has abandoned possession of the carcase.

EVIDENCE TO PROVE SIMPLE LARCENY

When is an offence Simple Larceny

P	If the property is not specially provided for
P	If the place from which property is stolen is not specially provided for
M	If the method of stealing is not specially provided for
V	If the value of property stolen is not specially for
S	If the status of the offender is not specially provided for.

TAKING:
There must be an appropriation of the articles. A person cannot take what he does not know is in his possession. The taking 'away can be either of the 2 Actual or Constructive.

CARRYING AWAY (Asportation)

- There must be a complete removal of the property from its original possession. Mere grasping is insufficient.
- The slightest removal of the property will suffice.
- The thief must for an instant at least, have complete possession of the property.
- Anything attached must be completely severed.

WITHOUT CONSENT OF THE OWNER
It must be proved that the property was taken without the consent of the owner. Evidence will also assist in providing that there was fraudulent intent.

FRAUDULENTLY
Means dishonestly - The word emphasizes that the taking must be without a claim of right made in good faith.

WITHOUT A CLAIM OF RIGHT MADE IN GOOD FAITH
The right claimed need not exist in fact or lawful. It is sufficient if the person honestly believes the right exists even though such belief may be unbounded in fact or law. However, the claim must be a honest one made in good faith.

INTENT, PERMANENTLY, TO DEPRIVE (Animus Furandi):

- The intent must be formed at the time of taking.
- The intent must be permanently depriving the owner of the property.
- "Intent permanently to deprive" is satisfied if money is taken with a mere hope or expectation to return it.

CAPABLE OF BEING STOLEN:

- Everything which is **not adhering to the realty** and which is of value and has an owner is capable of being stolen.
- For things adhering to the realty and carcase of any creature wild by nature see Sub-section 3 of section 3 of the Larceny Act.

SIMPLE LARCENY

Sub-Section 2 of section 3 of the Act defines "takes to include obtaining possession:

- By **trick**
- By **intimidation**
- Under a **mistake** on the part of the owner with knowledge on. The part of the taker that possession has been so obtained.
- By **finding** where at the time of the finding the finder believes that the owner may be discovered by taking reasonable steps.

Larceny by trick

The 'offence will be given adequate treatment in a later lecture when it will be compared with "Obtaining goods by means of false pretence"

Larceny by Trick may be defined:

"Where a person, having the intent fraudulently to permanently deprive another of his goods obtains possession of the goods in pursuance thereof by some trick or artifice, the owner not intending to part with his right of property, but with temporary possession only"

The main points to be borne in mind are:

- The owner parts with *POSSESSION* of the goods but retains *PROPERTY* (or *OWNERSHIP*) in them.
- Unlike Larceny as a Bailee the thief was not entrusted with the goods but induced the owner to part with possession of them by utilizing some trick or artifice.

Larceny as Servant and Embezzlement Section 22 (1)

Being a clerk or servant or a person employed in the capacity of a clerk or servant –

- Steals any chattel, money or valuable security belonging to or in the possession or power of his master or employee; or
- Fraudulently embezzles the whole or part or any chattel, money, or valuable security, delivered to or received or taken into possession by him for or in the name or on the account of his master or employer.

Larceny as a Bailee

The second paragraph of the definition of Larceny includes larceny by a Bailee. Larceny as a Bailee is also larceny for which no Special punishment is provided and by virtue of Section 5 of the Act, is also Simple Larceny.

BAILEE

A Bailee may be defined as a person to whom goods are entrusted for a specific purpose without any intention of transferring the ownership to such person, for example, a person to whom an article is given to be repaired.

Larceny as a Bailee will be compared with Fraudulent Conversion in a subsequent lecture at which time it shall be more fully understood. The main points to remember here are:

- Larceny as a Bailee is Simple Larceny
- In the case of Larceny as a Bailee the property is entrusted to the Bailee. There "taking WITHOUT the consent of the owner is not a constituent of the offence.

Fraudulent Conversion Section 24 (1)

Every person who -

- being entrusted either solely or jointly with any other person with any power of attorney for the sale or transfer of any property fraudulently sells, transfers, or otherwise converts the property or any part thereof to his own use or benefit, or the use or benefit of any person other than the person by whom he was so entrusted; or
- being a director, member, or officer, of any body corporate or public company, fraudulently takes or applies for his own use or benefit, or for any use or purposes other than the use or purposes of such body corporate or public company, any of the property of such body corporate or public company; or

(iii) (a)

being entrusted either solely or jointly with any other person with any property in order that he may retain in safe custody or apply, pay, or deliver, for any purpose or to any person, the property or any part thereof or any proceeds thereof; or

(b)

having either solely or jointly with any other person received any property for or on account of any other person, fraudulently converts to his own use or benefit, or the use or benefit of any other person, the property or any part thereof or any proceeds thereof, shall be guilty of a misdemeanour, and on conviction thereof liable to imprisonment with hard labour for any term not exceeding seven years.

Larceny by False Pretence Section 35 (1)

With intent to defraud, obtain from any other person any chattel, money or valuable security, or causes or procures any money to be paid, or delivered to himself or to any other person for the use or benefit or on account of himself or any other person.

Larceny by Intimidation

Means that the goods were obtained by putting the owner in fear, the points to remember are:

- The animus furandi must be present - intention to steal.
- The same fact which constitutes Larceny by Intimidation may also constitute the graver offence of Robbery. For example, where two or more persons intimidate or where the intimidator is armed with a dangerous or offensive weapon.

Larceny by Mistake

The provision of the Act is clear. It states that

- There must be a mistake on the part of the owner.
- The thief must have knowledge that he has possession of the article.

The difficulty arises where the person did not know that he has possession of the article at the time he was receiving it, but subsequently, on realizing that he is in possession of the article decide to appropriate it to his own use.

The points to bear in mind are:

- A person cannot take that which he does not know that he has in his possession. Therefore "Taking" cannot precede "knowledge of possession"
- If the animus furandi is formed at the time of taking i.e. when there is knowledge of possession it amounts to Larceny.

If the animus furandi is found subsequent to the time of taking, there is no Larceny.

Larceny by Finding

This is also clearly defined by the Act. It is necessary to prove that the offender believes at the time the property was found that the owner may be discovered by taking reasonable steps. It is not larceny if he had no such belief at the time of finding but subsequently, and even before converting the property, he discovered the owner.

PUNISHMENT FOR SIMPLE LARCENY

Where the value of the property stolen amounts to \$1 or more, imprisonment for not more than five (5) years

Where the value of the property stolen is less than \$1, section 55 of the Act provided that:

- If the value does not exceed 50 cents or,
- If the value exceeds 50 cents, but does not exceed \$1, and the person charged consents to such trial.

The person may be tried summarily and on conviction, shall be liable to imprisonment with hard labour for any term not exceeding three (3) months.

Section 60 provides for punishment for Simple Larceny after previously being convicted for felony or breach of the Larceny Act.

Larceny from the Person

Section 19 of the Act provides that:

"Every person who steals any chattels, money or valuables security from the person of another shall be guilty of felony and on conviction thereof liable to imprisonment with hard labour for a term not exceeding ten (10) years".

All the elements of Simple Larceny must be present except that the taking must be actual and not constructive.

The taking must be complete removal or severance from the body of person for example:

Where an offender in the process of taking out a book from the victim's coat was surprised and the book fell from his fingers, into its original position. It was not Larceny from the person, but was Simple Larceny. For the offence to be Larceny from the Person the Offender had to completely remove the book from the victim's pocket.

When the offender snatched a lady's earring and succeeded in separating it from her ear but the earring was later found in the curls of her hair the offender was guilty of Larceny from the person.

Larceny in the Dwelling

Section 18 of the Act provides that:

"Every person who steals in any dwelling house, any chattel, money or valuable security, shall:

- If the value of the property stolen amounts to ten dollars or
- if the by any menace or threat puts any person being in such dwelling house in bodily fear, be guilty of felony, and on conviction thereof: liable to imprisonment with hard labour for any term not exceeding ten years.

DEFINITION DWELLING:

The expression 'dwelling house' does not include a building, although within the same curtilage-with any dwelling house and occupied there with unless there is communication between such building and

dwelling house either immediate or by means of a covered and enclosed passage leading from one to the other.

LARCENY BY TENANTS OR BY LODGERS

Every person who being a tenant or lodger or the husband or wife of any tenant or lodger, steals any chattel or fixture ~~let~~ to be used by such person on or with any house or lodging, shall be guilty of a felony and on conviction thereof liable

- If the value of such chattel or fixture exceeds the sum of Ten Dollars (\$10.00) to imprisonment with hard labour for any term not exceeding two (2) years.

Burglary Investigations

INTRODUCTION

Burglary is the most common of all – more serious property crimes. It is also one of the more difficult crimes to solve. The frequency with which it occurs and the feelings of insecurity it causes makes it a fearful crime to the citizen. Unfortunately, because of the fear engendered, the public often rates the efficiency of a law enforcement organization on its ability to stop burglaries. It is unlikely that we will ever be able to stop criminals from committing burglaries. However, there are areas in which we can be effective. By understanding the nature of the crime and the types of people who commit it, we can take actions which will reduce the number of burglaries. Very few experienced burglars are caught at the scene, however, an alert Constable will occasionally see a burglar entering or leaving a building. Furthermore, we can carefully investigate each and every burglary to the best of our ability. Since burglars tend to commit a number of crimes and do each one in roughly the way, a careful investigation will often provide considerable information about the offender. Eventually, the information gathered may be enough to identify the offender. Finally, conducting a careful investigation, preparing a complete report and keeping the victim up to date on the case will help promote a positive image of the police.

BURGLARY

Section 39 of the Larceny Act provides that:

Every person who in the night:

- breaks and enters the dwelling house of another with intent to commit any felony therein; or
- breaks out of the dwelling house of another, having
 - entered such dwelling house with intent to commit any felony therein; or
 - committed any felony in such dwelling house, shall be guilty of felony called Burglary, and on conviction thereof;

Where the felony 'committed in the dwelling house is rape, shall be liable to imprisonment, for life, and

In any other case shall be liable to imprisonment for a term not exceeding twenty-one years.

{ A burglary is a felony which is committed by any person who, in the night, breaks and enters, the dwelling house of another with intent to commit a felony therein, or breaks out of the dwelling house of another, having entered the said dwelling house with intent to commit a felony therein, or committed any felony in the said house. **}**

Explanation of the Terms used in the Provision

Night - Section 2 (1) of the Act provides that '**night**' means the interval between **seven o'clock** in the evening and **six o'clock** in the morning of the next succeeding day.

Dwelling House - Section 2 (2) provides that dwelling house does not include building, although within the same curtilage with any dwelling house and occupied there with, **unless there is communication** (attached to) between such building and dwelling house either immediate or by means of a covered and enclosed passage leading from one to the other.

It should be noted that the above provision merely state what is not included in the meaning of the term "dwelling house" but does not describe the meaning of the term.

At Common Law, dwelling house means a permanent structure in which a person or persons habitually reside.

The item would not include a tent used for sleeping on a picnic because of the non-permanency of that structure. On the other hand, the term includes a dwelling which is temporarily unoccupied, e.g. where the occupants are away on holidays.

Note also that as a corollary to the provision of section 2 (2) a dwelling house includes a building within the same curtilage as the dwelling house and occupied there with if there is a communication between the two, either immediate or by means of an enclosed passage leading from one to the other.

The breaking may be **actual** or **constructive**

Actual Breaking is where the offenders physically disturb the security of the building in order to gain entry.

The following are examples of actual

- To break open a door or window
- To break a hole in a wall or the house
- To pick the lock of a door or window or to use a key or to open a door or to unloose any other fastening
- To take out or break out glass pane
- To push hand through and opening and unfastening a door or window
- To undo the catch of a door or window already partly open in order to further open it.

It is also breaking within the meaning of the Act if the offender enters through an open door and breaks an inner door, to gain entry into a room.

Constructive - is where the offender gains admission by some artificial trick or threat.

The following are examples of constructive breaking:-

- To knock on a door and rush in as soon as it is opened
- To pretend to be a workman from the Telephone Company etc. thereby gaining entry into the dwelling house
- To threaten the occupier or servant of the house with a gun as a result of which the occupier or servant opens the door and let the offender in
- If a servant conspires with the offender and opens a door for him, if at night, the servant would also be guilty of burglary. If during the day, the servant would be an accessory before the fact and the offence would be House Breaking.

Enter

In Burglary there must be an entry. Where there is a breaking and there is no entry, if the intent can be proved, the offence is **Attempt Burglary**. However, the least degree of entry is sufficient. For example, if the offender broke a pane of glass in a window and introduced his hand or even a finger through the pane to unloose the latch of the window, it is entry.

There need not be entry of any part of the body. It is entry if the offender inserted an instrument through the broken pane, in order to commit the felony. For example, where he inserted an instrument for removing an article, or where he pointed a gun through the broken pane for shooting someone inside the dwelling house.

It is to be noted that where a person commits burglary by breaking out, the fact that he was lawfully in the dwelling is not significant.

Intent

There must be intent to commit a felony. If the intent was to commit a misdemeanor, it is not burglary.

There may be the tendency to associate burglary with stealing but the felony need not be a breach of the Larceny Act. It may be any felony whatsoever e.g. murder, rape, treason etc.

The best evidence of the intent is the actual commission of the felony. Where the felony is not committed, the intent may be proven from the circumstance.

Four points to prove burglary

- Time 7 p.m. - 6 a.m.

- Place Dwelling house of another
- Manner Break and Entering
- Intent Commits a Felony

Another

A person cannot commit a burglary in his own house. However, within this meaning of this Act, a building may consist of several dwelling houses if separately occupied. In such circumstances, the titled owner of the house would be guilty of burglary, if he broke and entered the section of the house occupied by a tenant or a lodger. Similarly a lodger may be guilty of the burglary if he broke an entered with felonious intent, any section of the dwelling house not occupied by him. Also a servant, if with similar intent he broke and entered a room or section of the house not placed under his trust.

Evidence

- ✓ Night - Burglary must be committed in the night. However, the breaking and the entering need not be o the same night
- ✓ Dwelling House - there must be breaking and entering or entering and subsequently breaking out of a dwelling house

The term dwelling house is not confined to private dwelling and buildings with the curtilage thereof but also includes hotels, inns and lodging houses. In the case of hotels etc. each room or apartment is separate dwelling house.

Breaking and Entering

Note that breaking may be actual or constructive and that the breaking may be subsequent to the entering.

Ownership or Occupation

The dwelling house must be the dwelling house of another. It is sufficient to prove that the dwelling house was occupied by a particular person.

Intent unless the felony is actually committed the intention to commit the felony must be proved.

Housebreaking

Section 40 of the Larceny Act provide: Every person who:-

(1)

Breaks and enter any dwelling house or any building within the curtilage thereof and occupied therewith, or any school-house, shop, warehouse, counting house, office, store, garage, pavillion, factory, or workshop or any building belonging to Her Majesty's or to any Government Department or to any municipal or other public authority, and commits any felony therein or

(2)

Breaks out of any such place, having committed any felony therein, shall be guilty of felony, and on conviction thereof:-

- ✓ Where the felony committed in any such place is rape shall be liable to imprisonment for life and
- ✓ In any other case shall be liable to imprisonment for term not exceeding 10 years.

Section 41 of the Larceny Act further provides: Every person who **with intent** to commit any felony therein:-

- Enters the dwelling house in the night or
- Breaks and enters any dwelling house, place of divine worship or any building within the curtilage thereof and occupied therewith, or any school-house, shop, warehouse, counting house, office, store, garage, pavilion, factory, or workshop or any building belonging to Her Majesty's or to any Government Department or to any municipal or other public authority.

Not in the night

Shall be guilty of a felony, and on conviction there of liable to imprisonment with hard labour for any term not exceeding 7 years.

Note:

That where the term “or any building” with the curtilage thereof is used, it is not necessary to prove any communication passage between the dwelling house etc. and that building. The provision is section 2 (2) relates to the meaning of this term dwelling house. Section 40 and 41 deliberately includes such other building in addition to dwelling house. Whether or not there is any communication door passage.

Evidence

Section 40

- The building - The building must be one which is covered by the section. However except for place of divine worship which is especially provided for by section 38, it is different to imagine a type of building that is not covered by this section.
- Breaking and entering - Same as in burglary except that neither the breaking nor the entering need be in the night. The breaking may precede or may be subsequent to the entering.
- The commission of a felony - Under this section the felony must have been committed. Where there is evidence or intent only the offence is a breach of section 41 (b)

Section 41 (a)

- Dwelling house. Same as in burglary.
- Night. Same as in burglary
- Intent. Mere intent to commit a felony is sufficient. Where the felony is actually committed, the proper charge is not house breaking, but the particular felony is committed.

Section 41 (b)

The building - Same as section 40 as well as a place of divine worship

Breaking and entering - Unlike in the case of burglary and house breaking under section 40, the breaking must precede and cannot be subsequent to the entering. As in both, the breaking and entering need not be on the same day.

Intent - The mere intent to commit a felony is sufficient

Powers of Arrest

Any person may arrest without warrant any person found committing any of the above mentioned offences.

Any Constable may arrest without warrant any person he finds lying loitering in any highway, yard or other place during the night whom he has good cause to suspect of having committed or being about to commit a felony.

Sacrilege

Section 38 of the Larceny Act provides every person who:-

- Breaks and enters any place of divine worship and commits and felony there in or
- Breaks out of any place of divine worship, having committed any felony therein, shall be guilty of felony called **Sacrilege**, and on conviction thereof liable to imprisonment with hard labour for term not exceeding 10 years.

The Act does not define "place of worship" but the term breaks and enters suggest that the place must be a **permanent structure** in which people habitually worship. The term would not therefore include a temporary tent used as a church.

Evidence

- The building, must be a place of divine worship.
- Breaks and enters. Same as burglary
- Commission of felony. If the felony is not actually committed and there is mere intent, the offence is House Breaking under section 41 (b)

Sacrilege may be committed in the day or night.

Powers of Arrest

Any Constable has power to arrest without warrant any person found committing this felony.

OFFENCE AKIN TO BURGLARY

Section 42 of the Larceny Act provides every person who is found by night:-

- Entering a dwelling house at night with intent to commit a felony but not breaking in (Felony)
- Being found at night armed with any dangerous or offensive weapon or instrument with intent to break or enter into any building and to commit any felony therein (Misdemeanor).
- Being found by night having in possession without lawful excuse any key, pick lock, crowbar, jack, bit or other housebreaking implement (Misdemeanor).
- Being found by night with face blackened or disguised with intent to commit any felony (Misdemeanor)
- Being found by night in any building with intent to commit any felony therein (Misdemeanor)

If he has been previously convicted of any such misdemeanour or of any felony, to imprisonment with hard labour for any term not exceeding ten years; and

In all other cases, to imprisonment with hard labour for any term not exceeding five years

Unlawful Possession

The present law governing Unlawful Possession of property is to be found in the Unlawful Possession of Property Act (volume 18 of the Laws of Jamaica Revised Edition 1973)

The purpose of the Law is to complement and assist the Larceny Act in bringing to Justice persons who come into possession of goods dishonestly in circumstances where the owner of such good cannot be traced. Accordingly, it has been urged that the Unlawful Possession of Property Act should be resorted to where it is really impossible to trace the ownership of the goods discovered in the possession of the suspected person.

Definitions

Section 2

Article of agricultural produce

Means any article of agricultural produce for the time being specified in the Schedule;

Authorized person

Means any person authorized and appointed to arrest suspected persons;

Suspected person

Means any person who -

- Has had in his possession or under his control in any place any thing being an article of agricultural produce; or
- has in his possession or under his control in any place any thing including an article of agricultural produce,

Under such circumstances as shall reasonably cause any constable or authorized person to suspect that that thing has been stolen or unlawfully obtained.

Certain elements arise from the definition of a “suspected person” which must be clearly understood

In the case of an article of agricultural produce the person suspected;

- May be in possession or control of it.
- In the case of any other goods (i.e. goods not being an article of agricultural produce listed in index), the person suspected must be 'found in possession or control of it.

The importance of the above distinction is that in the case of 'goods' (not being agricultural produce) the person must be found in possession or control of it by the arresting Constable.

In the Case of an article of agricultural produce the Constable or authorized person may act on the information of some other person who has seen the person suspected in possession or control of the article.

- It is clear from the definition that the person suspected need not be in actual possession of the goods. It is sufficient in each case if he has them under his control.
- The arresting Constable or authorized person must have reasonable cause to suspect that the thing had been stolen or unlawfully obtained

Section 3

Selection of authorized persons

(1)

The Board or Committee of Management of the Jamaica Agricultural Society or of any agricultural society affiliated to the Jamaica Agricultural Society may nominate any person to the Commissioner of Police to be an authorized person.

(2)

It shall be lawful for the Commissioner of Police on the nomination of any person as provided in subsection (1), to appoint the person so nominated to be a person authorized to arrest and deal with suspected persons in accordance with the provisions of section 5.

(3)

The Commissioner of Police may at any time revoke any appointment made under subsection (2).

(4)

Every appointment or revocation of an appointment under this section shall be published in the *Gazette*.

(5)

Production of the *Gazette* containing a notice of an appointment under this section shall be *prima facie* evidence in all courts and for all purposes of such appointment.

Section 4

Remuneration of authorized persons

The Minister may make regulations providing for the circumstances in which and the rates at which authorized persons appointed under section 3 shall be remunerated in respect of their services under this Act.

Section 5

Arrest and trial of suspected persons

(1)

Subject to the provisions of section 7, any constable or authorized person may arrest a suspected person without a warrant.

(2)

Subject to the provisions of section 14 of the Praedial Larceny (Prevention) Act (which relates to perishable goods), as soon as possible after the arrest of a suspected person, the constable or authorized person making the arrest shall bring the suspected person, together with anything found in his possession or under his control which is reasonably suspected to have been stolen or unlawfully obtained, before a Resident Magistrate sitting in Court.

(3)

If a Resident Magistrate is not sitting in Court within forty-eight hours after the arrest of a suspected person, the constable or authorized person shall take the suspected person before a Justice who may bail the suspected person to appear at the earliest convenient date before a Resident Magistrate sitting in Court, or may remand the suspected person in custody to be brought at the earliest convenient date before a Resident Magistrate sitting in Court.

(4)

If the suspected person does not, within a reasonable time to be assigned by the Resident Magistrate, give an account to the satisfaction of the Resident Magistrate by what lawful means he came by the same, he shall be guilty of an offence against this Act and shall, on summary conviction before a Resident Magistrate, be liable to a fine not exceeding two thousand dollars or to imprisonment with or without hard labour for a term not exceeding one year, and upon a subsequent conviction on a similar charge, to imprisonment with or without hard labour for a term not exceeding three years.

(5)

If any suspected person escapes from any constable or authorized person attempting to arrest him, or lets fall or throws away anything reasonably suspected to have been stolen or unlawfully obtained, it shall be lawful for any Resident Magistrate or Justice, upon application, to issue his assault for the arrest of that person, and upon his arrest that person shall be deemed to have been arrested within the meaning of subsection (1) and may be dealt with in the manner laid down in subsections (2), (3) and (4).

It cannot be over emphasized that the person arrested under section 5 must be a suspected person and that evidence to that effect must be given before he can be called upon to account.

Reasonable grounds of suspicion may be derived from a number of factors such as;

- The arresting Constable's knowledge of the person
- The type of article or articles in the person's possession
- The circumstances in which the person was found in possession of the articles such as time of day and place
- Concealment of, or attempt to conceal the articles
- The conduct of the person when accosted

- The explanation given as to how the person came into possession of the articles.

It follows from the foregoing that the arresting Constable or authorized person should carefully note any of the above or any other factor which caused him to become suspicious.

Since a dishonest person can be in lawful possession of almost any (or probably any) property it follows also that in every case the arresting Constable or authorized person should ask the person suspected to explain his possession of the property.

Where an explanation is given the arresting Constable or authorized person should make a thorough investigation to establish whether or not the explanation is true or false.

Where the person was not in actual possession of the article or articles there must be sufficient evidence to establish that they were under his control.

Section 6

Power of constable or authorized person on reasonable cause for belief

Whenever a constable or authorized person has reasonable cause to believe that any person has in his possession or under his control anything which the constable or authorized person has reasonable cause to suspect has been stolen or unlawfully obtained such constable or authorized person may require such person to disclose and permit him to inspect the contents of any sack, basket, bundle, package, vehicle or other receptacle in possession or under the control of such person and if any person refuses or neglects to disclose and permit the constable or authorized person to inspect such contents he shall be guilty of an offence against this Act and shall on summary conviction be liable to a fine not exceeding two thousand dollars and in default of payment to imprisonment with or without hard labour for a term not exceeding one year.

Section 7

Powers of authorized person extend only to agricultural produce

The powers conferred by sections 5 and 6 shall be exercisable by authorized persons only in cases in which the thing reasonably suspected to have been stolen or unlawfully obtained is an article of agricultural produce.

Section 8

Search warrant

(1)

If information is given on oath to any Resident Magistrate or Justice that there is reasonable cause for suspecting that anything stolen or unlawfully obtained is concealed or lodged in any house, store, yard or other place, or on any land (whether enclosed or not) or in any vessel, the Resident Magistrate or Justice may, by warrant under his hand directed to any constable, cause the house, store, yard, place, land or vessel to be entered and searched at any time of day or, if the warrant so authorizes, by night.

(2)

A Resident Magistrate or Justice issuing a warrant under subsection (1) may, by such warrant, if it shall appear necessary to him, give authority to the constable, with such assistance as may be found necessary, to use force for the purpose of effecting an entry, whether by breaking open doors or otherwise, but before using force for the purpose aforesaid the constable shall make known his authority.

(3)

If upon search made in accordance with the provisions of subsections (1) and (2), anything which the constable has reasonable cause to suspect to have been stolen or unlawfully obtained is found, the constable shall arrest and bring before a Resident Magistrate -

- The person in whose house, store, yard, place or vessel or on whose land such thing is found; and
- Any other person found in such house, store, yard, place or vessel or on such land,

If the constable has reasonable cause to suspect that such person placed or was privy to the placing of the thing in such house, store, yard, place or vessel or on such land knowing or having reasonable cause to suspect the same to have been stolen or unlawfully obtained.

(4)

If a constable fails or is for any reason whatsoever unable to arrest any person mentioned in paragraphs (a) and (b) of subsection (3), a Resident Magistrate or Justice may issue -

- A warrant for the arrest of such person; or
- A summons requiring such person to appear before a Resident Magistrate at a time and place to be mentioned in the summons.

Section 9

Power to board vessel, etc.

(1)

Any constable may go on board a vessel in any harbour, bay, roadstead or river and remain on board the vessel for such reasonable time as he deems expedient. If he has reasonable ground to suspect that there is on board the vessel anything stolen or unlawfully obtained, he may search, with any assistants, any and every part of the vessel, and, after demand and refusal of the keys, break open any receptacle. Upon discovery of anything which he may reasonably suspect to have been stolen or unlawfully obtained, the constable may take such thing and the person in whose possession it is found before a Resident Magistrate.

(2)

A constable may pursue and detain any person in the act of conveying away from any vessel anything which the constable may reasonably suspect to have been stolen or unlawfully obtained, whether that person has landed or not, together with anything so conveyed away or found in his possession.

Section 10

Trial of person brought before Resident Magistrate under sections 8 and 9.

A Resident Magistrate may call upon any person brought or appearing before him under the provisions of section 8 or 9 to give an account to the satisfaction of the Resident Magistrate -

- by what lawful means anything reasonably suspected to have been stolen or unlawfully obtained came to be in the house, store, yard, place or vessel or on the land where it was found; or
- that he was not privy to the placing of the thing in such house, store, yard, place or vessel or on such land knowing or having reasonable cause to suspect the same to have been stolen or unlawfully obtained,

and any person who fails, within a reasonable time to be assigned by the Resident Magistrate, so to satisfy the Resident Magistrate shall be guilty of an offence against this Act and shall, on summary conviction before the Resident Magistrate, be liable to a fine not exceeding two thousand dollars or to imprisonment with or without hard labour for a term not exceeding one year, and, upon a subsequent conviction on a similar charge, to imprisonment with or without hard labour for a term not exceeding three years.

Section 11

Tracing possession

(1)

If any person brought or appearing before a Resident Magistrate under the provisions of section 5, 8 or 9 declares that he received anything reasonably suspected to have been stolen or unlawfully obtained from some other person, or that he was employed as a carrier, agent, or servant to convey that thing for some other person, the Resident Magistrate may cause every such other person, and also any other person through whose possession that thing shall previously have passed, to be brought before him either by summons, or by warrant, as the Resident Magistrate shall in each case deem fit.

(2)

Upon any such person as is in subsection (1) mentioned being brought before him, the Resident Magistrate may examine that person on oath as to whether he has been in possession or control of the thing reasonably suspected to have been stolen or unlawfully obtained, and, upon his admitting such possession or control, or upon it being proved to the satisfaction of the Resident Magistrate that that person has been in possession or control of that thing, the Resident Magistrate may call upon that person to give an account to the satisfaction of the Resident Magistrate by what lawful means he came by that thing, and, if that person fails, within a reasonable time to be assigned by the Resident Magistrate, to give such account, he shall be guilty of an offence against this Act and shall, on summary conviction before the Resident Magistrate, be liable to a fine not exceeding two thousand dollars or to imprisonment with or without hard labour for a term not exceeding one year, and upon a subsequent conviction on a similar charge, to imprisonment with or without hard labour for a term not exceeding three years.

(3)

For the purposes of this section, the possession of a carrier, agent, or servant shall be deemed to be the possession of the person who employed the carrier, agent or servant to convey the thing reasonably suspected to have been stolen or unlawfully obtained.

Section 12
Power of constables and authorized persons to summon assistance

A constable or authorized person may call upon any person to aid and assist him in the execution of his duties under this Act, and if any person so called upon neglects or refuses without lawful excuse to aid and assist the constable or authorized person he shall be guilty of an offence against this Act and shall, on summary conviction before a Resident Magistrate be liable to a fine not exceeding two hundred dollars and in default of payment thereof to imprisonment for a term not exceeding three months.

Section 13
Penalty for assaulting, etc., constables, authorized persons and their assistants

If any person shall assault, obstruct, hinder or resist any constable or authorized person in the execution of his duties under this Act, or any person acting in the aid of such constable or authorized person, every such offender shall be guilty of an offence against this Act and shall, on summary conviction before a Resident Magistrate, be liable to a fine not exceeding one hundred dollars or to imprisonment with or without hard labour for a term not exceeding six months.

Section 14
Power to vary Schedule

The Minister may, if he considers it expedient so to do, by order published in the *Gazette*, delete from or add to the Schedule any article of agricultural produce.

SCHEDULE (Sections 2,14)

Annatto	Jippi-jappa
Apples of any kind	Lancewood
Arrowroot	Kola
Avocado Pears	Lignum-vitae
Badoos	Logwood
Bamboo	Mahoe
Bananas	Mahogany
Bitter damsel wood	Mahogany bark
Bitterwood spars	Mangoes
Breadfruit	Mangrove bark, red and white
Broadleaf	Nutmeg
Bullet tree, black red and white	Orange sticks
Paddy	
Burn-nose or Wild Ackee	Peas, Beans
Cacao or chocolate	Pepper-leaf sweetwood
Canes	Pimento
Cashew nuts	Pimento sticks
Cassava	Pineapples
Cedar	Plantains
Potatoes and sweet potatoes	Citrus oils of any kind
Coconut oil	Prickly yellow wood
Coconuts	Pumpkins
Breadnut trees	Ramoon and Cocoas, and head of cocoas
Sarsaparilla	Coffee
Satin wood	Ebony
Seed cotton	Fanbroom
Sweet peppers	Fodder grass of any kind
Thatch or thatch head	Forbidden fruit
Tobacco	Fustic
Tomatoes	Garden vegetables
Yams of any kind, and heads of yams	Ginger
Toyas	Grapes
Guinea corn	Indian corn or maize
Plants or suckers of any of the above	

Receiving Stolen Property

Larceny Law

Receiving means receiving property stolen or obtained under circumstances which amounts to Felony or Misdemeanor knowing at the time of its receipt that it was stolen or so obtained.

Section 46 Receiving

(1)

Every person who receives any property knowing it to have been stolen or obtained in any way whatsoever under circumstances which amount to felony or misdemeanour, shall be guilty of an offence of the like degree (whether felony or misdemeanour), and on conviction thereof liable -

- In the case of felony, to imprisonment with hard labour for any term not exceeding ten years;
- In the case of misdemeanour, to imprisonment with hard labour for any term not exceeding five years.

(2)

Every person who receives any mail bag, or any postal article, or any chattel, or money, or valuable security, the stealing, or taking, or embezzling, or secreting, whereof amounts to a felony under this Act knowing it to have been so feloniously stolen, taken, embezzled, or secreted, and to have been sent or to have been intended to be sent by post, shall be guilty of felony, and on conviction thereof liable to the same punishment as if he had stolen, taken, embezzled, or secreted it.

(3)

Every such person may be indicted and convicted, whether the principal offender has or has not been previously convicted, or is or is not amenable to justice.

(4)

Every person who, without lawful excuse, receives or has in his possession any property stolen or obtained outside the Island, knowing it to have been stolen or obtained in any way whatsoever under such circumstances that if the act had been committed in the Island the person committing it would have been guilty of felony or misdemeanour, shall be guilty of an offence of the like degree (whether felony or misdemeanour), and on conviction thereof liable to imprisonment with hard labour for any term not exceeding seven years.

Points to Establish Receiving

- The Larceny, the felony or the fraud
- Possession (either actual or constructive)
- Guilty Knowledge at the time of receipt

The circumstances in which a person receives goods may of themselves be sufficient to prove that the goods are stolen and also that at the time the person received them he knew they were stolen. It is not a rule of law that there must be other evidence of the theft. The offence is complete as soon as the Offender obtained control of the property.

Guilty Knowledge May:

Direct Evidence: admission of accused and evidence of principal offender

Circumstantial Evidence: e.g. Concealment of property, denial of receipt, removal of identification marks etc.

Evidence of Recent Possession: Possession of property recently stolen raises a presumption that possessor is either the thief or the guilty receiver according to the circumstances

Where the only evidence against the accused is that he was in possession of property recently stolen guilty knowledge may be inferred:

- If the prisoner has offered no explanation (if any) is untrue
- If the jury is satisfied that the explanation (if any) is untrue
- Special evidence:

- The fact that other property stolen within the 12 months proceeding the date of the offence charged was found or had been in his possession
- That he has within 5 years before the date of the offence charged and convicted of theft or receiving.

The last mentioned fact may only be proved when:

Seven days noticed in writing has been given to the accused that it is intended to prove any such conviction.

Evidence must have been given that the property in respect of which the offender is being tried was found or had been in his possession before (1 & 2) becomes admissible.

Husband and Wife

A husband can be convicted of knowingly receiving property stolen by his wife.

A wife who acts independently of her husband, not under his control can be convicted of receiving with the husband.

Statutory Declaration

In proceeding for the theft of any thing in course of transmission by post or otherwise or for receiving stolen goods from such theft, a statutory declaration as to;

- Dispatch
- Receipt
- Or Non receipt of the property is admissible in evidence, but only if;

A copy of the declaration has been given to the accused at least seven days before the hearing

The accused has not at least three (3) days before the hearing given the Court in writing, a notice, requiring the attendance of the witness.

Section 63

Authorities to Search

(1)

If it is made to appear by information on oath before a Resident Magistrate or Justice that there is reasonable cause to believe that any person has in his custody or possession or on his premises any property whatsoever, with respect to which any offence against this Act has been committed, such Magistrate or Justice may grant a warrant to search for and seize such property.

**** A Warrant may be issued by a R.M. or J.P. to search for property obtained as a result of an offence against this law** "The warrant must specify the property".**

(2) (a)

Any constable may, if authorized in writing by an officer of Constabulary not below the rank of Superintendent, enter any house, shop, warehouse, yard, or other premises, and search for and seize any property he believes to have been stolen, and, where any property is seized under this section, the person on whose premises it was at the time of seizure or the person from whom it was taken shall, unless previously charged with receiving it knowing it to have been stolen, be summoned before a Resident Magistrate to account for his possession of such property, and such Resident Magistrate shall make such order respecting the disposal of such property and may award such costs as the justice of the case may require.

****Such authority need not specify property seize any goods believed to be stolen even if not the suspected property stolen****

(b)

It shall be lawful for any such officer of Constabulary to give such authority -

- when the premises to be searched are, or within the preceding twelve months have been, in the occupation of any person who has been convicted of receiving stolen property or of harbouring thieves; or
- when the premises to be searched are in the occupation of any person who has been convicted of any offence involving fraud or dishonesty and punishable with imprisonment.

(c)

It shall not be necessary for such officer of Constabulary on giving such authority to specify any particular property, but he may give such authority if he has reason to believe generally that such premises are being made a receptacle for stolen goods.

Power of Arrest

Any person may arrest without warrant any person found committing the offence of receiving.

Receiving

Proof of Larceny (R vs. Sarra (1918))

The circumstance in which a person receives goods may of themselves be sufficient to prove that the goods are stolen and also that at the time the person received them he knew they were stolen. It is not a rule of law that there MUST be other evidence of the theft.

See R. vs. Fushillo (1940)

Untruths: (Cohen vs. March 1931)

No substantial evidence of receiving. This was a case in which there had been conviction for receiving razor blades. On appeal it was held that an untruth told to the Police Officer when he first interviewed Cohen did not justify, in itself an inference that the blades were stolen. Conviction quashed.

Inference of Larceny (R. vs. Spiers & Young 1952)

The ruling in this case underlines once again that the circumstantial evidence may be quite sufficient to prove that goods, the subject of offence to offer some story in explanation if the jury decides not to accept it. The appellants in the case relied in vain on Cohen vs. March. Lord Goddard, C.J. said, "The case quoted did not lay down any principle law. There is ample evidence in the present case to justify the conviction, but here again we are not laying down any point of Law. Appeal dismissed.

No Control by Alleged Receiver (Hawes vs. Edwards 1947)

Railway servants took a parcel of stolen property to the Hawes. Police found Hawes and the thieves examining the contents. Hawes was convicted of receiving and appealed. Lord Goddard, C.J. held where offering to transfers possession to Hawes who did not make up his mind at the time of the arrest, and therefore, there being no evidence of control the conviction must be quashed.

Resumption of Possession by Condor his Agent (R. vs. Schmidt 1886)

In this case stolen goods were sent by the thief, in a parcel by railway addressed to Schmidt. A railway officer, acting on information examined the parcel and stopped delivery. The next day a porter was directed by the officer to take to the address designated by the thief and it was there received by Schmidt. It was held that the accused could not be convicted of receiving as the goods had ceased to be stolen at the time of receipt.

Possession by Police (R. vs. King 1938)

Police visited the flat of a man named Burns who admitted that the theft of a fur coat and handed the Police a parcel containing the coat. At that moment the telephone rang and Burns told the caller – King to "come along as arranged". Police secreted themselves and heard King asked for the coat which was handed to him, in the parcel by Burns. King was convicted was convicted for receiving, but appealed.

Humphreys J. said "the coat had not been reduced into possession of the owner or the Police, although but for the telephone call it would have been within moments". Appeal dismissed.

Proceeds of Felony (D'Andrea vs. Woods (1939))

D'Andrea was convicted of receiving \$4.10 knowing the same to be stolen. It was in fact part proceeds of the sale of stolen savings stamps. He appealed on the grounds that the money was proceeds of larceny and not, in itself stolen. Held that the conviction was right as the money came into the definition into or for which was stolen.

Innocent Receipt (R vs. Mathew 1949)

If property is received innocently, the fact that the person who has possession subsequently changes his mind and misappropriates the goods in question, such action does not make the original receipts felonious or the taking either receiving or larceny.

Doctrine of Recent Possession (R. vs. Aves 1959)

Where the only evidence is that the prisoner is in possession of property recently stolen, a jury may infer guilty knowledge (a) if he offers no explanation of his possession, or (b) the jury are satisfied that his jury

are satisfied that his jury in doubt they should acquit. If there is any other evidence this must be considered TOGETHER with the above ruling.

R. vs. Marcus (1923)

Guilty Knowledge

Sec. 61 (1) Larceny Law

Whenever a person is being proceeded against for receiving STOLEN PROPERTY, or for possessing STOLEN PROPERTY, it may given in evidence at any stage:

- The fact that other property STOLEN WITHIN THE 12 MONTHS proceeding the date of the offence charged was found or had been in his possession.
- The fact that he within five years proceeding that date of the offence charged he was convicted of any offence involving fraud or dishonesty

The last mentioned fact may not be proved unless

- Seven days notice in writing has been given to the accused that it is intended to prove any such conviction;
- Evidence has been given that the property in respect of which the offender is being tried found or had been in his possession.

R. vs. Davies (1933)

If the prosecution include in an indictment for receiving a count for some other offence. i.e. being an accessory after the fact to larceny, they must refrain from giving evidence of a previous conviction under Sec. 43 (1) Larceny Law, for such evidence is admissible only where the charge is receiving only.

Property Stolen by A Child under eight (8) years

Walter V. Lunt and another (1931)

In this case the Lord Chief Justice stated that goods taken by a child under the age of eight years could NOT be regarded as STOLEN or even obtained under circumstances amounting to felony or misdemeanour, therefore no person could be convicted of receiving stolen goods. It may well be that the person in question could be convicted of stealing as a bailee or larceny or by finding.

Whether Larceny or Receiving

R. vs. Seymour (1954)

In the case where the evidence is as consistent with Larceny as it is with receiving the indictment should contain counts for BOTH OFFENCES. The jury should be directed that it is for them to decide whether the prisoner was the thief or whether he received the property from the thief and should be reminded that a man cannot receive the property from himself. If a jury convicts on one of these alternative counts, they should be discharged from giving a verdict on the other.

The Praedial Larceny (Prevention Act) Act of 1982

Large scale act of Praedial Larceny and larceny of Agricultural and fish is having a negative effect on the development of agricultural and fisheries are acting as a disincentive to agricultural expansion. Farmers for sometime now have been experiencing considerable losses as a result of larceny of this kind. The present legislation that governs these offences and their detection are now inadequate to deal with the problem.

The bill therefore seeks to introduce new comprehensive legislation governing offences of praedial larceny and larceny of livestock and fish. It provides:-

- For the appointment of agricultural wardens to act in aid of the Police in the prevention and detection of such offences;
- For amendments of the relevant provision of the judicature (Resident Magistrate) Act, the Larceny Act and the Unlawful Possession of Property Act to increase the penalties for the commission of such offence and;
- For amendments of the relevant provisions of the Malicious Injuries to Property Act and the Trespass Act to increase the penalties for offences that may be committed prior to or concurrent with praedial larceny of livestock

Section 2 Interpretation

In this Act -

- "Agricultural produce"
Means any article specified in the Schedule to the Unlawful Possession of Property Act and any other article which is the produce of agriculture;
- "Agricultural warden"
Means an agricultural warden appointed under this Act;
- "Commissioner"
Means the Commissioner of Police;
- "Constable"
Means a constable of the Jamaica Constabulary Force constituted under the Constabulary Force Act;
- "Fish,"
Includes crab, crayfish, lobster, oyster or turtle;
- "Livestock"
Includes dogs, birds and poultry;
- "Officer"
Has the meaning given to it in section 2 of the Constabulary Force Act;
- "Praedial larceny"
Means the felony created by section 13 of the Larceny Act;
- "Sub Officer"
Has the meaning given to it by section 2 of the Constabulary Force Act.

Section 3 Agricultural wardens

The Governor General may appoint such number of persons to be known as agricultural wardens as the Minister may from time to time approve.

Section 4 Agricultural wardens under command of Commissioner

(1)

Agricultural wardens shall be under the command of the Commissioner.

(2)

The Commissioner may, if he thinks fit, assign an agricultural warden to any police station.

Section 5

Subordination of agricultural wardens

Every agricultural warden shall be subject to the orders of the Officers and Sub Officers of the Jamaica Constabulary Force and, when assigned to a police station pursuant to section 4 (2), shall also be subject to the orders of the member of the Force in charge of that police station.

Section 6

Duties and powers of agricultural wardens

(1)

The duties of agricultural wardens under this Act shall be to detect the commission of any offence under this Act or the enactments specified in the First Schedule, to apprehend or summon before a Justice persons found committing any such offence or whom they reasonably suspect of having committed such offence or who may be charged with having committed the offence and to do and perform all duties appertaining to the office of an agricultural warden by virtue of this Act.

(2)

Every agricultural warden shall exercise his office at all times when required to do so by any Officer or Sub-Officer to whom he is by this Act made subordinate and whenever in his judgment it is required in the interest of justice, public safety or welfare.

(3)

For the purpose of carrying out his duties in relation to this Act and the Acts specified in the First Schedule, every agricultural warden shall have the same powers, authorities, privileges and immunities as a constable.

(4)

An agricultural warden shall be deemed to be on duty in the capacity as an agricultural warden -

- when investigating any offence under this Act or any enactment specified in the First Schedule;
- while he is required to be on duty by the Commissioner or an Officer or sub Officer of the Constabulary Force.

Section 7

Mode of enrolment

An agricultural warden shall be enrolled in such form as may be prescribed.

Section 8

Period of service

(1)

Every agricultural warden shall be engaged for a period of three years from the date of his enrolment as an agricultural warden.

(2)

Notwithstanding subsection (1), an agricultural warden -

- may apply for his release during his period of service;
- shall be released on attaining the prescribed age;
- may be released from his engagement by the Commissioner if he does not perform the duties which he undertakes or is for any other reason considered unsuitable;
- may be re-engaged for further periods not exceeding three years.

Section 9

Swearing in and form of oath

Every agricultural warden on being enrolled shall take an oath in the form set out in the Second Schedule or may make a solemn declaration and affirmation to the same effect.

Section 10

Regulations

(1)

The Minister may make regulations generally for giving effect to the provisions of this Act.

(2)

Without prejudice to the generality of the power conferred by subsection (1), regulations made under that subsection may provide for-

- The organization of agricultural wardens;
- The establishment of different grades and the precedence and command to be had or exercised by the holders of such grades;
- The conditions of service, enrolment, promotion, demotion, resignation, dismissal or suspension of agricultural wardens;
- The training of agricultural wardens;
- The discipline and guidance of agricultural wardens;
- The setting up of Disciplinary Boards to investigate breaches of discipline and to award punishment if necessary and the powers and duties of such Disciplinary Boards;
- The appointment of Boards of Enquiry and the powers and duties of such Boards of Enquiry;
- Ensuring the compulsory attendance of witnesses and the production of documents before any Disciplinary Board or Board of Enquiry;
- The payment of wages and of subsistence allowances, travelling allowances and out of pocket expenses to agricultural wardens and the rates at which and conditions upon which such wages or allowances or both shall be paid to different grades of agricultural wardens;
- Medical attention and examination of any agricultural warden who sustains injury while on duty;
- The grant to agricultural wardens who are injured in the execution of their duty as agricultural wardens of sick benefits and the conditions upon which and the rates at which such benefit shall be payable to agricultural wardens of different grades;
- The grant to agricultural wardens who, consequent upon injuries received in the course of their duty as such are permanently incapacitated, of pensions or gratuities and the conditions upon which and the rates at which such pensions or gratuities may be granted to different grades of agricultural wardens;
- The grant, subject to the following conditions and such other conditions as may be prescribed, at such rates as may be prescribed, of a pension or gratuity to the widow and child or children, or mother, of any agricultural warden who dies as a result of injuries received -
 - (i) In the execution of his duty as an agricultural warden; and
 - (ii) Without his own default; and
 - (iii) On account of circumstances specifically attributable to the nature of his duty;
- Supplies, accommodation and uniform of agricultural wardens;
- Controlling the use of transport for the carrying out of duties of agricultural wardens.

(3)

For the purpose of this section the word "child" includes a posthumous child.

(4)

Regulations made under paragraphs (f), (k), (l) and (m) of subsection (2) shall be subject to affirmative resolution of the House of Representatives.

Section 11

Powers of search

(1)

If any member of the Constabulary Force of or above the rank of corporal is satisfied that there is reasonable cause to believe that any stolen agricultural produce, livestock or fish is concealed in any house, premises, land or building he may give directions in writing to an agricultural warden or a constable to enter and search such house, premises, land or building, and any person who refuses to permit such entry or search shall be guilty of an offence and shall be liable on summary conviction in a Resident Magistrate's Court to a fine not exceeding two thousand dollars and in default of payment thereof to imprisonment for a term not exceeding three years.

(2)

Where an agricultural warden or a constable carries out any directions issued in accordance with subsection (1), he shall produce the instrument containing the same to the owner or occupier of the house, premises, land or building identified pursuant to such directions, if required by such owner or occupier to do so, and permit a copy thereof to be taken by or on behalf of such owner or occupier either at the time of the entering and search or at any time afterwards while the instrument remains in the custody of the agricultural warden or constable.

(3)

Any agricultural warden or constable may, without warrant, stop any person or vehicle suspected to be carrying stolen agricultural produce, livestock or fish and search such person or vehicle and the driver or any person conveyed therein, and any person who refuses to permit such a search shall be guilty of an offence and shall be liable on summary conviction in a Resident Magistrate's Court to a fine not exceeding two thousand dollars and in default of payment thereof to imprisonment for a term not exceeding three years.

Section 12

Forfeiture of property used for commission of offence

(1)

Where a person convicted of an offence under this Act or any offence listed in the First Schedule punishable, on indictment or summarily, with imprisonment for a term of two years or more and the court before which he is convicted is satisfied that any property which was in his possession or under his control at the time of his apprehension -

- has been used for the purpose of committing, or facilitating the commission of the offence; or
- was intended by him to be used for that purpose, the court may make an order of forfeiture of the property to the Crown.

(2)

In this section "facilitating the commission of an offence" shall include the taking of any steps after the offence has been committed for the purpose of disposing of any property to which it relates or of avoiding apprehension or detection; and the reference to an offence "punishable on indictment or summarily, with imprisonment" shall be construed without regard to any prohibition or restriction imposed by law on the imprisonment of an offender under the age of eighteen years.

(3)

An order under this section shall operate to deprive the offender of his rights, if any, in the property to which it relates, and the property shall (if not already in the custody of the police) be taken into custody by the police

(4)

Where any property is forfeited by an order under this section, any claimant may within a period of six months from the date of the determination of the case make an application before the court which made such order, and thereupon the court, if satisfied that-

- He is the lawful owner; and

- He had not consented to the offender having possession or did not know or had no reason to believe or suspect that the property was likely to be used for the commission of such offence,

May upon such terms and conditions (if any) as it deems just, order that the property be restored to the claimant.

Section 13

Assaulting, obstructing or threatening an agricultural warden

Every person who assaults obstructs or threatens an agricultural warden in the execution of his duty as an agricultural warden or incites or encourages any other person to do so, shall be punishable as assaulting, obstructing or threatening a constable in the execution of his duty is or may be punishable.

Disposal of perishable agricultural produce, livestock and fish

Section 14

(1)

Where as a result of the commission or suspected commission of any offence under this Act or the enactments specified in the First Schedule any perishable agricultural produce, livestock or fish (hereinafter in this section referred to as "perishable goods") are in the custody of an agricultural warden or a constable, the agricultural warden or constable, shall, notwithstanding anything contained in the unlawful Possession of Property Act, forthwith apply to a justice for a written record of the perishable goods.

(2)

Upon receipt of an application pursuant to subsection (1) the Justice shall -

- Examine the perishable goods (where practicable) and prepare in the prescribed form a written record of such goods; and
- Carry out such summary investigation as he thinks fit to identify the person who appears to him to be the rightful owner of the goods; and-
- If he is able to identify such a person make an order for the return of the goods to that person; or
- If he is not able to identify such a person, make an order for the sale of the goods.

(3)

In any proceedings against any person for an offence in relation to such goods the written record prepared by a justice pursuant to this section shall, in lieu of such goods, be sufficient evidence of all the matters stated therein and such a written record

- Shall be admitted in evidence and received as such, without the justice being called upon to attend and to give evidence on oath;
- If purporting to be such a written record signed by the justice, shall be deemed to be such a record, unless the contrary is proved.

(4)

Upon receipt of an order for the sale of perishable goods the warden or constable shall take the perishable goods before the Officer or Sub Officer of the most convenient police station and such Officer or Sub Officer shall forthwith-

- Sell such perishable goods in such manner as he thinks suitable with a view to obtaining the best price that can reasonably be obtained therefore; and
- Endorse upon the written record all relevant details with respect to the price obtained for the perishable goods specified in the order.

(5)

For the purposes of a trial steps shall be taken, in such manner and subject to such terms and conditions (if any) as may be prescribed, to make available to the accused or his attorney-at-law a copy of the written record.

- The proceeds of any sale under subsection (4) shall be placed in the custody of the Officer in charge of the parish in which the police station is situated and such Officer shall-
- Where the owner of the perishable goods is ascertained within three months of the sale thereof, pay the sum to that person; or
- Where, at the expiration of a period of three months after the sale, the owner of the perishable goods cannot be ascertained, pay the sum to the Accountant General.

(7)

No order for the return of goods under subsection (2) (b) (i) or payment of the proceeds of sale under subsection (6) (b) shall prevent a claimant bringing an action within twelve months from the date of such order or payment, against the person in receipt of the goods or the proceeds of sale.

(8)

Any person who falsely claims ownership over any perishable goods or willfully misleads or attempts to mislead any Justice as to the ownership of such goods shall be guilty of an offence and shall be liable on summary conviction in a Resident Magistrate's Court to a fine not exceeding two thousand dollars or three times the value of the goods claimed whichever is greater, and in default of payment thereof to imprisonment for a term not exceeding three years.

(9)

Nothing in this section shall affect the provisions in respect of the disposal of stolen non-perishable agricultural produce, livestock or fish as provided in sections 44 to 47 of the Constabulary Force Act.

Section 15

Penalty on possession of clothing etc., by person's not agricultural wardens.

Any person who -

- Has in his possession any clothing, accouterment or other appointments furnished for the use of agricultural wardens and cannot satisfactorily account for his possession thereof; or
- Puts on, or assumes the dress, name, designation, or description of, and assumes to act as, or to personae an agricultural warden,
- Shall be guilty of an offence and shall be liable on summary conviction in a Resident Magistrate's Court to a penalty not exceeding one thousand dollars or to imprisonment for a term not exceeding one year.

Section 16

Penalty on unauthorized use of agricultural warden uniform

Any person who, not being an agricultural warden, wears without the permission of the Commissioner the uniform of an agricultural warden, or any dress having the appearance or bearing any distinctive marks of that uniform shall be guilty of an offence and shall be liable on summary conviction in a Resident Magistrate's Court to a fine not exceeding one thousand dollars and in default of payment to imprisonment for a term not exceeding one year.

Section 17

Power of court to order special police supervision

(1)

Where any person is convicted of any offence under this Act or any offence listed in the First Schedule, the court before which such person is convicted may order him to be placed under special police supervision for a period to be specified in the order not exceeding one year and may in addition, require that such person remain within his residence from sunset until sunrise during each night of the period or such portion thereof as the court may specify in the order.

(2)

An order placing a person under special police supervision under the provisions of this section may be made in addition to any other punishment to which such person may be liable and when such an order is made in addition to any sentence of imprisonment placed upon such person, the period during which he shall be under special police supervision shall commence immediately after the expiration of such sentence.

Section 18

Duties of persons ordered to be placed under special police supervision

(1)

A person ordered in accordance with the provision of section 17 to be placed under special police supervision, shall, during the period specified in such order, comply with the following provisions-

- He shall forthwith upon the commencement of such period notify the Officer or Sub Officer in charge of the police station nearest to his residence of the house or place in which he resides;
- He shall, when called upon so to do by the Officer or Sub Officer in charge of the police station nearest to his residence, present himself at such police station;
- He shall not transfer his residence without the written authority of the Officer or Sub Officer in charge of such police station;
- If the court so orders, he shall remain within his residence from sunset until sunrise during each night in accordance with the order of the court unless excused from so doing on any particular occasion by the Officer or Sub Officer in charge of the police station nearest to his residence.

(2)

Where such person is authorized in accordance with the provisions of paragraph (c) of subsection (1) to transfer his residence, he shall notify the Officer or Sub-Officer in charge of the police station nearest to the place in which he will reside of the house or place in which he will reside.

(3)

A person ordered in accordance with the provisions of section 17 to be placed under special police supervision may be visited at his residence by the police from time to time during the period specified in such order.

Section 19

Penalty

Any person subject to restrictions specified in subsection (1) of section 18 who fails to comply with the provisions of that section shall be guilty of an offence and on summary conviction in a Resident Magistrate's Court shall be liable to a fine not exceeding one thousand dollars and in default of payment thereof to imprisonment for a term not exceeding one year.

Section 20

Actions against agricultural warden to be in tort

Every action to be brought against any agricultural warden for any act done by him in the execution of his office, shall be an action on the case as for a tort; and in the declaration it shall be expressly alleged that such act was done either maliciously or without reasonable or probable cause; and if at the trial of any such action the plaintiff fails to prove such allegation he shall be non-suited or a verdict shall be given for the defendant.

FIRST SCHEDULE

Enactments and Short Indication of Offences

The Country Fires Act

Sections 3, 4, 5, 8, 11, 12 and 13.

Setting fire to corp. Setting fire to trash. Fire during night or unattended. Setting fire contrary to order or permit. Occupier to extinguish fire. Carrying lighted torch insufficiently guarded. Negligent use of fire.

The Larceny Act

Sections 5, 6, 7, 8, 13, 48, 49, 50 and 51

Simple larceny.

Larceny of cattle. Killing animals with intent to steal. Larceny etc., of dogs. Praedial larceny. Larceny etc., of dogs etc., punishable summarily. Taking or destroying fish. Taking animal without consent of owner. Stealing, rooting up, breaking etc., fences, posts, gates etc.

The Malicious Injuries to Property Act

Sections 20, 21, 22, 23, 24, 25, 30, 31, 32, 42 and 43

Destroying or damaging trees in garden etc. Destroying or damaging trees elsewhere than in garden. Destroying or damaging trees where injury done amounts to at least one dollar. Destroying or damaging plants in garden etc. Injury to cultivated roots or plants. Injuries to fences, walls etc. Killing or wounding cattle. Killing or wounding animals other than cattle. Administering drugs to animals in certain cases. Injury to property to amount exceeding ten dollars. Injury to property for which no punishment yet provided.

The Trespass Act
Sections 2, 4, 5, 6 and 10

Trespassers on enclosed or cultivated land. Trespassers may be required to quit premises, etc. Trespass for the purpose of destroying trees etc. Passing along private road during night with a gun without consent of owner. Entering on land with firearms for purpose of hunting etc.

The Unlawful Possession of Property Act
Sections 2, 5, 6 and 13

Being a suspected person liable to be brought before a Resident Magistrate. Refusal or neglect to disclose or permit inspection of articles. Assaulting etc., constables, authorized persons and their assistants.

SECOND SCHEDULE (Section 6)

I _____ A.B. _____
do swear that I will well and truly serve as an agricultural warden. So help me God.

JAMAICA CONSTABULARY FORCE CITIZEN'S CHARTER

Our Promise

Our promise is to concentrate all our efforts on continually improving the quality of service we offer to our customers.

Value Statement

The Jamaica Constabulary Force is committed to the quality of its service delivery and the satisfaction of its internal and external customers.

We value:

- Our members as our most important resource
- Open and positive communication that encourages teamwork
- Respect and equitable treatment of all individuals
- Provision of **Quality Service** to all communities
- The need of the country in all respect of social and economic development
- The input of all citizens in the development and training of our members
- The needs of victims of crime and
- The example we set for the citizens of this country in the upholding of Law and Order.

You can expect us to:

- Uphold the Laws of Jamaica firmly and fairly within available resources and in accordance with our works
- Be professional, impartial, fair, honest and **reasonable** in our dealing with you
- Provide you with sound advice and timely information on which you can rely
- Be accountable for our work and answerable for the outcomes within our control
- Strive to satisfy citizens in a way that will exceed their expectations
- Be analytical in problem solving and spare no effort in trying to solve problems; and
- Be prudent in all our dealing with a high level of transparency in our relationships with the public.

What the Police expect from you:

It is only by working together that we can have a safer and more agreeable community in which to live and work.

We need you to:

- Abide by the laws
- Come forward if you witness or know of a crime committed against anyone
- Report suspicious circumstances to us
- Work with us to protect public property, so as to save revenue and cut government expenditure and
- Be honest and reasonable when dealing with us.

We welcome your feedback so that we can measure whether or not we are performing at the standards set out in this charter.

The Citizen's Charter represents a commitment to the highest possible standards of service. It set out the standards of service we aim to deliver in order to keep **Our Promise**. It also details how you can bring to our attention instances when we fail to meet your expectations.

(1)

Dealing With Request for Help

We will deal promptly, courteously and efficiently with your requests whether you speak to a member of the Force on patrol, visit a police station, telephone or write to us.

When you speak to a member of the Force on Patrol

Any request you make for assistance will be dealt with in a calm, helpful, reassuring and professional way.

When you visit a Police Station

Seeking help or information or to make a report;

- Some one will speak with you within five minutes or
- Make someone available if you need to speak in private.

Emergency Telephone Calls

In an emergency, you should dial **119**. If you do, we will:

- Answer your call within 15 seconds
- Arrive at the scene of emergency with 10 minutes in urban areas and with 20 minutes in the rural areas.
- If you don not consider the matter an emergency, we will explain to you what action we will be taking.

Non-Emergency Telephone Calls

The telephone numbers of the main Police Stations have been provided in the Charter for you information, but you will find the numbers of all other stations in the Cable and Wireless telephone directory. If you telephone us we will:

- Answer your call within 15 seconds
- We will explain to you what action we will be taking.
- Tell you what is happening if you have to be put on hold, and if we pass on the call, tell you the number or name of the person to whom you are being transferred.

When you write to us

We will:

- Reply to your correspondence within 10 working days from receipt. If the matter is a complex one, we will acknowledge it within 5 working days.
- Included in our reply will be the name and telephone number of the person responding to you.
- Write clear and concise language.

(2)

Your Rights

Here are some of your basic rights.

Questioning

Police investigators may seek information from anyone about any offence, so long as the latter has not been charged or informed that he may be prosecuted.

When reasonable grounds exist for suspecting that a person has committed an offence, the police investigator must, before questioning further, issue the following cautions: ***“you are not obliged to say anything unless you wish to do so, but what you say may be put in writing and given in evidence”***

Arrest

If a member arrests you, he/she must tell you the reason for the arrest. Unless you are arrested, you cannot be compelled to accompany the member to a police station or to remain there. However, if you have been arrested and taken to a police station, you will be clearly informed of your rights. We will assist you to make contact with a person of your choice by telephone or other appropriate means.

If you are taken into custody the police are responsible for your safety and the Arresting Officer or Officer detaining you shall inform you of your rights to legal aid and to representation by an attorney. You may be seen by visitors during the prescribed hours and your attorney will be able to visit you at any reasonable time. (Each station has its own prescribed visiting hour).

Search

Once you have been arrested, the member is entitled to search you. Any item taken from you will be carefully recorded and kept in a safe place in the police station. Items not connected with the case will be returned to you when you are released.

Sometimes it will be necessary for the police to search premises and take away Property. In such instances, the police must show a search warrant to the person whose premises are to be searched and in such circumstances you must be present.

If you are Charged

If you are charged with an offence, you must thereafter be cautioned by the police in

The following terms:

“Do you wish to say anything? You are not obligated to say anything unless you wish to do so, but whatever you say will be taken down in writing and may be given in evidence”.

Bail

A person should not be refused bail unless the police, the Justice of the Peace or The Judge has good reason for doing so.

Factors which may prevent Bail

- The seriousness of the offence.
- The likelihood of the offence being repeated or any other offence will be committed if the person is released.
- The accused persons character, antecedent, association and community ties.
- If he/she was granted bail before and he/she absconded.
- Whether the accused person has a fixed address and can be found.
- Whether the person poses a treat to the community, or to the witness.
- Whether the individual is safe in custody.

Who may Grant Bail?

- Police
- Justice of the Peace (JP)
- Resident Magistrates and Judges of Superior Courts
- In case of treason only a judge of a Superior Court may grant bail.

If You Give a Statement to the Police

When you give a statement to the police, your statement must be signed by you, unless you cannot read or write. If this is so, you will be required to “Mark an X” Which must be witnessed.

Demonstrations

Every citizen has the right to demonstrate peacefully without breaking the law. Roadways must not be blocked by persons, vehicles or debris of any kind. You render yourself liable to prosecution if you do this. It is advisable to seek the advice of the police if you intend to demonstrate.

Identification

A member of the Force, whether in uniform or plain clothes carries an identification booklet? This booklet contains the members photograph, thumb print, name, and the signature of the Commissioner of Police or his representative. You are entitled to ask the member to produce the booklet if you wish to satisfy yourself as to the identity of the member.

When You Apply for a Passport

Jamaicans apply for passport; Basic requirements:

- Certified copy of Birth Certificate;
- Two recent photographs – (must be certified as prescribed on the application form).
- A completed passport application form;
- Prescribed fee for a passport payable at the Passport Office;
- **NB – There are two types of passport application forms.**
- Under eighteen years; and
- Over eighteen years and upwards.
- **NB – Persons under eighteen years old must get consent from parents in order to obtain their passport, if the parent(s) is in Jamaica he/she will be required to visit the passport office with proper identification, if not, the applicants must show a letter of authorization signed by a notary public.**
- First time applicants must present themselves to the Passport Officer in person.
- **Service available island wide at the main Police Station in each parish except for Kingston and St. Andrew.**

(3)

If You are a Witness

If you witness a crime or offence, we urge you to come forward and give a statement to the police. We understand that you may be reluctant to become involved but without your evidence we would find it very difficult to bring the accused to justice. If you do give a statement we will:

- Provide you with information about giving information in court;
- Give you adequate notice when the case is to be heard in court;
- If you are a vulnerable witness, we will refer you to other agencies which can provide you with support and assistance.

(4)

If you are a Road User

If you are driving a vehicle or riding a motor cycle you must obey the the directions of a police officer or traffic warden and should keep all relevant documents in respect of self and the vehicle in the unit.

If you are stopped by the police you should show the following documents if Requested:-

- Driver's Licence
- Certificate of Insurance
- Registration Certificate
- Certificate of Fitness
- Road Licence (where applicable)
- Any other document in relation to your use of the vehicle or motor cycle

If you are unable to produce any of them at the time you will be given **FIVE (5) days** in which to produce them at the most convenient police station to you.

If you are involved in an accident, you must:

- **STOP**

Sufficiently long to exchange particulars with the other party - unless stopping will pose a threat to your safety. If this occurs, drive to the nearest police station within the prescribed 24 hour period.

* Give your name, address, particulars of your Insurance Certificate to any one

else involved or the police.

- * **NB.** One month **grace period** is allotted to licensing of a motor vehicle after the expiry date and **to no other** documents relevant to your vehicle.

Power to Seizure of Motor Vehicle

It shall be lawful for any Constable to seize any motor vehicle or trailer used on any Public road under the following circumstances.

- Not being licensed or registered.
- Operating contrary to the terms of its License.
- If any Registration plates or License is obscured or not easy distinguishable.
- If any Registration plates is not affixed or kept affixed.
- P.P.V or C.M.C operating without Road License or Carriers License. (Use discretion and prosecute). Vehicle seized under the Road Traffic Act kept by the police until the act is complied with.

NB. Vehicles operating without Insurance Coverage should not be seized, but the owner or driver should be prosecuted.

(5)

If You are a Victim of Crime

If you report the crime to the police, we will:

- Be sympathetic and understanding
- Provide you with support and practical advice on how to prevent a recurrence
- Investigate your report thoroughly and promptly
- Keep you informed of the progress or status of the investigation
- Put you in touch with the Victim Support Service if you wish

Additionally, if you are the victim of a sexual offence, specially trained members of the Force are available to talk with you. They will:

- Respect your confidentiality
- Provide initial support and counseling to you and any close member of your family
- Refer you to additional professional counseling if you think it is necessary
- Arrange for medical treatment and examination

Contact can be made with the Sexual Offence and Juvenile Unit
3 Ruthven Road 10.
Tel. No. 926-4079 or 9267318.

or

At the Head Station in any Parish Island wide

(6)

If You are Bereaved

If you are responsible for any person who dies suddenly, we are required to ask you for medical and other information concerning the deceased. We Will:

- Be sensitive to your grief
- Explain why we are asking for those details and why our inquiries are necessary
- Help you contact relatives or friends
- Provide as much support as possible

The fact of the death may have to be reported to the Coroner where a Post Mortem is required. If this does happen we may have to arrange for the body to be removed to a mortuary to establish the cause(s) of death.

We understand that this will be a stressful time for you but we will:

- Explain the procedures which have to be followed
- Tell you where the body is to be kept
- Inform you when the body will be returned to you
- Inform you of the cause(s) of death

(7)

Customer Care

We place great importance on **COURTESY AND FAIRNESS**, and getting your views on how well we are doing. We will consult you on the standard of service we Provide by conducting public surveys, and by having meetings with individuals and Groups aimed at finding out what you think of our service. We welcome suggestions on how we may improve our daily service delivery. If you are not satisfied with the standard of service we are providing, please let us know. You Should either:

- Telephone us Visit or write to your local Police Station
- E-mail us at pncc@cwjamaica.com
- Write to the Commissioner of Police at

**The Jamaica Constabulary Force
The Office of the Commissioner
101-105 Old Hope Road
Kingston 6
Jamaica**

When you contact us, we will:

- Reply to you within 10 working days of receipt of your suggestion or complaint
- Do our best to put matters right as quickly as Possible
- Consider and implement where practicable any suggestion you may make to improve our services

(8)

Conduct of Members of the Force

Members of the Force are expected to act with professionalism, integrity and due regard to the right of all citizens, but if you feel that the conduct of any member is unsatisfactory, you should immediately contact us by using any of the methods listed at Section 7. You can write or telephone us at any of the undermentioned department.

**Complaints Division
34 Duke Street
Kingston
Telephone: - 922-3552 or 967-0611**

**Office of Professional Responsibility
34 Duke Street
Kingston
Tel: - 967-4347**

**Bureau of Special Investigations
Office Centre Building
5th Floor
12 Ocean Boulevard
Tel: - 922-3359 or 922 9479**

We will:

- * Ensure that it is investigated thoroughly;
- * Respect any confidentiality
- * Keep you up dated on our progress if it is a protracted investigation;
- * Advice you of the out come of the investigation.

Alternately, if you wish, you may address your complaint directly to the Police Public Complaints Authority which is an **independent** body set up to investigate complaints against members of the Force. The Authority can be contacted at:

4th Floor
Office Centre Building
12 Ocean Boulevard
Kingston - Tel: 967 4063

5 King Street
Montego Bay Tel: 940 2310

6 ½ Gordon Street
May Pen – Tel: 904 4169

(9)

Force Code of Ethics

As a law enforcement Officer, my fundamental duty is to serve mankind; Safeguard life and property; to protect the innocent against deception, the weak against oppression or intimidation, and the peaceful against violence or disorder; and to respect the constitutional rights of all people to liberty; equality and justice.

I will never act unofficially or permit personal feelings, prejudices, animosities, friendship to influence my decisions. With no compromise for crime and with relentless prosecution of criminals, I will enforce the laws courteously and appropriately without fear or favour, malice or ill will, never employing unnecessary force or violence and never accepting gratuities.

I recognize the badge of my office as a symbol of public faith, and I accept it as a public trust to be held so long as I am true to the ethics of the police service. I will constantly strive to achieve these objectives and ideas, dedicating myself before God to my chosen profession..... law enforcement.

I will keep my private life unsullied as an example to all; maintain courageous calm in the face of danger, scorn, or ridicule; develop self restraint and be constantly mindful of the welfare of others. Honest in thought and deed in both my personal and official life. I will be exemplary in obeying the laws of the land and the regulation of my department. Whatever I see or hear of a confident nature or that is confident to me in my official capacity will be kept ever secret unless revelation is necessary in the performance of my duty.

THE INTERVIEWING OF WITNESSES AND SUSPECTS

T

he following notes are guide to:

1. The taking of witness statements.
2. Contemporaneous note taking and questioning of suspects.
3. The taking of voluntary statements
4. Interviewing children and young persons
5. Interviewing foreign nationals, using an interpreter
6. Dying declarations.

WITNESS STATEMENTS

The ability to take accurate, concise and factual witness statements is one of the most important skills of any investigator. Such statements are relied upon to decide on prosecutions and if poorly recorded and left begging for further questions to be asked, then it is unlikely that further action will be taken or if it is, then the strength of the case will never be known until the witness in question gives evidence and at that stage it is too late.

It is vitally important for the statement taker to be fully aware of the crime he is investigating and the points needed to prove the commission of such an offence. One of the most important duties of an investigator is to satisfy himself that an offence has been committed and that the evidence collected from the witnesses proves precisely what offence under the Criminal Code it is. If there is a suspect or suspects, what information places that person/s in this category and can that information be transformed into evidence, which can be produced in Court to prove the identified offence against the suspect(s).

It must be remembered that the Prosecution in all Criminal Trials must prove their case beyond all reasonable doubt. This places a heavy burden on the investigator and he/she can ill afford to be exposed at such a trail of inaccuracy or bias in recording witness statements. It must be always borne in mind that witnesses are likely to be subject to strong cross-examination at court and will expose the investigator if he/she has not acted honestly and professionally. When taking statements this situation must be foremost in the investigator's mind and the type of question likely to be put to the witness in cross-examination at court should be put to them at the time of the interview so that only accurate and factual information will be recorded, thus lessening like the likelihood of some unwelcome surprises at all trial.

Most witnesses are not aware of the rules of evidence and are totally reliant on the investigator to identify the area of their testimony that will prove or disprove an offence. The majority wants to be as helpful as possible and there is a danger to them being open to suggestions, which can lead to inaccuracies. It is important for the investigator to be aware of this, especially in the preliminary interview. It is always a wise precaution to allow the witness to talk freely at this time and not put questions, which may suggest a favorable reply. (E.g. tell me every thing you saw when you were selling papers at Matildas Corner between 8 a.m. on the morning of 11th November 1998. **NOT:** Did you see John Smith firing a gun at 8:35 a.m. on the morning on the morning of 11th November 1998 at Matildas Corner). The latter question suggests John Smith is the man firing the gun and witness is in danger of putting that name to the man he saw without actually knowing John Smith. Witnesses must feel free to identify persons they know and be prepared to support such knowledge or attend identification parades. Stating in court that 'I know that man as a John Smith because the Policeman said that's who he was' will destroy the case.

The latter advice is particularly important when dealing with child witnesses and or victims of sexual abuse. They are very open to suggestions and will reply in the affirmative to question put to them to shorten the ordeal of the interview. The investigator must also be aware of suggestions made to victims by others in authority, such as parents or teachers and details of any questioning by such people must always be examined. (e.g. Mother to child- he has been touching you between the legs likely to continue the story. It is the investigator's duty to discover the truth and to avoid being misled by witnesses who say what they think the policeman/woman or person in authority wants to hear, rather than what actually happened.

THE TAKING OF STATEMENTS

Great care must be taken when recording statements that they are written in the language normally used by the witness and not interpreted into the more formal language of the taker. Expressions like last Monday last June or last Christmas should be avoided and the precise dates if known entered.

If a witness knows both the Christian and Surname of another person, both should be included at the first reference together with any nickname or alias, by which usually knows him by the witness. Thereafter with the Christian or nickname or alias may be used on its own although it is preferable to add the surname throughout.

If the witness only knows another by his Christian or nickname, the investigator's covering report should indicate the person who he believed to be referring. Often, in such cases, it is useful to include in the statement the witnesses' description of the person clothing, accent or other distinguishing features.

All statements should be in the active voice (e.g. I posted a letter rather than 'A letter was posted') so that the prosecutor may know whether the witness can prove of his own knowledge a particular fact.

It is most important that witness should be specific as to whether an accused was present when something material was done or said.

Where the witness identifies the accused he should state:

1. How long he has had the accused under observation and at what distance.
2. The quality of the light.
3. Whether the observation was impeded in any way and, if so, how.
4. Whether the witness knows the accused and, if so, how long and in what circumstances.
5. Whether the witness has any special reason for remembering the accused.
6. How long elapsed between the incident and the subsequent identification of the accused.
7. Whether there is any discrepancy if the witness gave more than one description of the accused and, if so, how the witness explains it.
8. No attempt should be made to exclude hearsay it is assists in the understanding of what actually happened and why it happened. If, however, the hearsay is in any prejudicial, it is better to include it in a separate statement. Every effort should be made to ensure that it is clear from a reading of the statement whether the witness is speaking of what he/she personally saw, heard or did or of what he was told by some one else
9. If the witness is a woman, her statement should show whether she is married or single.
10. Statements of investigating officers should always be submitted even if the effect of their evidence is quite fully explained in the covering report. If two officers are present at an interview, a statement by one that he is able, if required, to corroborate the evidence of the other in not sufficient.
11. If a husband or wife is a competent witness of the prosecution, his or her statement should always end with an expression of willingness or unwillingness to give evidence.
12. Even if the spouse in not competent, a statement is often useful if he or she is believed to be in possession of material information and one should be obtained unless there is some special reason for not doing so.

Witness Statement format.

The words 'Witness Statement' should be printed on the top page followed by;

Full name of witness.....(if married woman show maiden name).

Age.....D.O.B.....Occupation.....

Address.....Tel. No. (home).....Work.....

Dates to be avoided.....(in case of witnesses going on holiday abroad etc and not available to attend Court on specific dates).

States:

The witness should then give his/her account of the events in question and the statement taker in the language used by the witness should record this. It is good practice to commence s statement by a short paragraph about the witness, (e.g. I am a married man living with my wife and three children at the above address). I work shift work at the D&G factory at 250 Spanish Town Rd. on Monday 3rd November 1995 I left my home about 9:30 p.m. and began riding my bicycle along Spanish Town Road in order to get to the factory for my night shift which starts at 10 p.m. I have been traveling for about 15 minutes and was just passing the junction with the Industrial Road when etc.

No gaps should be left in the statement and any mistakes should be neatly crossed out and initialed by the witness and the statement taker.

At the bottom of each page the witness should sign his/her name to rule out any allegation that a sheet has been substituted and each page should be numbered.

After the last word written the witness should again sign his/her name to avoid allegations of further entries.

Makers Certificate

This certification should follow on immediately after the last line of the statement;

On Monday 13th June 1995, at 10 a.m., I attended the Flying Squad Office, CIB HQ where I gave this statement. It was read over to or by the make who signed it as true and correct.

Signed.....(witness)

Date.....

Declaration

This follows immediately after the Maker's certificate. If the witness can write then the declaration should be written by him/her at the takers dictation. If they are unable to write, or choose not to, then the taker will write out the following declaration.

This statement consisting of pages, each signed by me, is true to the best of my knowledge and belief and I make it knowing that if it is tendered in evidence, I shall be liable for prosecution if I have willfully stated in it, anything which I know to be false or do not believe to true.

Signed.....(witness)

Date.....

Taker's Certificate

Immediately after the declaration as shown above, the taker completes his certification as follows;

Taken by me this 19 at . The declaration was read over by /to the maker who indicated that he/she understood the meaning of it. The statement was read over by/to him/her who signed the declaration and statement as true and correct tot he best of his/her knowledge and belief.

Signed.....(witness)

Date.....

Further Statements

Frequently further statements are required from witnesses to clear up ambiguity or because they have held back information and now want to "tell all". In such an event the same format as above should be followed but the statement itself can starts as follows;

Further to my statements given to Constable on the 13th June 1995 at the Flying Squad Office, CIB HQ. I wish to add that (if the witness has withheld information when making his first statement, then the reasons for doing so should be entered in the further statement. Equally there should be an explanation if he/she has given facts in the first statement, which now have to be altered. (e.g. In my first statement I said I left my home at 9:30 p/m/ on Monday 3rd November 1995 to go to work at D&G, 250 Spanish Town Road. When I arrived home after giving my statement I realized that I had visitors that night and was delayed so it would have been nearer 10 p.m. when I started out).

Confessions

Fundamental principles exist to govern Police procedure when dealing with persons suspected of crime. These principles are to be found in the 1964 edition of the Administrative rules of the Queens Bench Judges, commonly referred to as the Judges Rules.

Confessions by suspects of crime has and will continue to be excellent evidence as long as the rules are observed and evidence exists that the investigator is fully aware of them and had clearly exercised this knowledge in his interview and taking of the voluntary statement.

All Police Officers should be conversant with the following:

- 1. When a Police Officer is trying to discover whether, or by whom, and offence has been committed he is entitled to question any person, whether suspected or not, from whom he thinks that useful information may be obtained. This is so whether or not the person in question taken in to custody so long as he has not been charged with offence or informed that he may be prosecuted for it. (exemptions, see later).***
- 2. As soon as a Police Officer has evidence which would afford reasonable grounds for suspecting that a person has committed an offence, he shall caution that person of cause him to be so cautioned before putting to him any questions, or further questions relating to that offence. The caution shall be in the following terms;***

You are not obliged to say anything unless you wish to so, but what you say may be put in writing and given evidence.

When after be cautioned a person is being questioned or elected to make a statement, a record shall be kept of the time and place at which any such questioning or statement began

and ended and of the person/s present. ***(full pocket book entry and written statement from the investigator and other Police personnel present.)***

3. ***Police personnel, other than by arrest, cannot compel any person against his will to come to or remain in any Police Station.***
4. ***That any person at any stage of an investigation should be able to communicate and to consult with a solicitor. This is so even if he/she is in custody provided that in such a case no unreasonable delay or hindrance is caused to the process of investigation or the administration of justice by his doing so (the offer should always be made and recorded in the investigators note book with the date and time). The suspect if he declines should endorse such and entry e.g. I do not wish to consult with a solicitor. Signed date
time.***
4. ***It is a fundamental condition of the admissibility in evidence against any person, equally of an oral answer given by that person to a question put by a Police Officer and of any statement made by that person, that it shall have been voluntarily, in the sense that it has not been obtained from him by fear of prejudice or hope of advantage, exercised or held out by any person in authority or by oppression. Frequently suspected will put questions to the investigator such as "will I get bail if I tell the truth?" This should be recorded, as it is a reasonable request, which a jury would readily accept as genuine from someone in such circumstances. An investigator should reply, I am not in a position to grant bail, that is a matter for consideration by my superiors after I have completed my investigation. Denying such a request was made can throw doubt in the credibility of the investigator and this must always be preserved at such times.*** Remember it is for the prosecution to prove the confession was voluntary and any doubt about the investigator's actions will threaten admissibility. Suspects rarely make a confession without some demand, it is expected, so it is unwise not to record them and give reasons why they cannot be met and be prepared to give evidence to this effect. Care must always be taken when interviewing children or young persons in the presence of parent or teachers. They will frequently interject with threats such as "tell the policeman the truth or I will beat you when I get home". Such a threat must be retracted before the interview can continue and details recorded, if the parent or teacher continues to threaten then they must be removed from the interview and another responsible adult found to be present during the interview.
5. ***When a person is being questioned or elects to make statement, a record should be kept of the time or times at which during the questioning or making of a statement there were intervals of refreshment was taken. The nature of the refreshment should be noted. In no circumstances should alcoholic drink be given. It is demanded that a record should be kept of the following:***

When after being cautioned in accordance with rule 2 the person is being questioned or elects to make a statement of the time and place at which questioning began and ended and of the persons present. The time or times at which cautions were taken and of the time of arrest and charge. If two or more Policemen/women are present when the questions are being put or the statement made, they should countersign the records made.
7. ***Reasonable arrangements should be made for the comfort and refreshment of persons being questioned. Whenever practicable both the person being questioned or making a statement and the Policeman/woman asking the questions or taking the statement should be seated.***

Contemporaneous note taking

This is the ideal method of conducting an interview but it is laborious and has the disadvantage of giving the suspect time to think between questions and both questions and answers have to be hand-written at the time they are asked and replied to.

Whenever possible the investigator should make a list of the questions he wants to put to the suspect and keeps them by his side in the interview as an aide memoir. He will always require another Policeman/woman to act as note taker as it is extremely difficult and cumbersome to ask questions and record them and the answers at the same time

recording the fact that they were present at the interview. The interrogator must include in the statement the time the interview commenced, and finished. The time the caution was administered any breaks in the interview and for what reason and the fact that the offer of a solicitor being present was made.

Voluntary Statements

During the course of questioning, a suspect may elect to make a statement indicating that he wishes to confess to the crime/s alleged. A record must be made of the time such an election is made and the place where the suspect is being questioned named.

At this stage it is as well for the investigator to consider the likely attacks on a confession and prepare to counter all possible grounds that defense counsel may use to have it declared inadmissible in court.

- a. *Is the suspect making the confession fully aware of what he is doing?, i.e. are you satisfied that he is not mentally sub-normal or of such low intellect that he does not fully understand the questions or procedure being outlined to him? If in doubt obtain professional advice from a medical practitioner qualified in this field and have them present at the interview or whilst the statement is being taken. Either choice can certify by statement that the suspect was fully aware of the questions put and that any subsequent confession was made voluntarily and in full knowledge of the facts.*
- b. *The Judges Rules make it mandatory that the suspect be offered the services of a Solicitor for consultation before questioning and to sit on any subsequent interrogation or the taking of a voluntary statement. A Justice of the Peace can be called upon in serious cases where the services of a solicitor is declined to avoid allegations of unfairness or threats.*
- c. *Confession must be shown to be authentic and the best means of showing this is for the suspect to include details of the crime, which only he/she, the victim and the investigator would know. Repeating details that have been published in the press or show or broadcast on other medias without expanding on them can be highly suspicious. Even the smallest details can help show authenticity. It is also very helpful if the suspect can point out where weapon or property are hidden and the investigator can recover the same as a result of this information given in a confession.*
- d. *If the suspect is injured or has marks or bruising to his body at the time of arrest then he should be offered medical assistance before interview and this should be recorded. If he/she declines then details of the injuries and how and when they were received should be recorded in the Investigators pocket book and countersigned by the suspect before questioning begins. The purpose of this is to avoid allegations of beating to extract the confession.*
- e. *During the course of an interview or the taking of a statement, it is wise to make the offer of refreshment to the suspect and record time a date. This should be done at reasonable intervals to ensure no allegations are made of deprivation of food and drink to obtain in confession.*

Format of Voluntary Statement

Name.....Age.....D.O.B.....
Police Station.....Div.....Name of statement Taker.....
Date.....Time Commenced.....Date.....Time completed.....
Persons present.....

The suspect must always be asked whether he wishes to write down himself what he wants to say, if the says that he cannot write or that he would like someone to write it for him a Police man/ woman may offer to write the statement for him. If the accepts the offer the policeman/woman shall, before starting, ask the person making the statement to sign, or make his/her **mark to the following:**

I.....wish to make a statement. I want to someone to write down what I say. I have be told that I need not say anything unless I wish to do so and that whatever I say may be given in evidence.
Signed.....(suspect).

If the suspect wants to write his own statement, he shall be asked to write out the following certificate before writing out his confession;

I.....make this statement of my own free will. I have be told that I need not say anything unless I wish to do so and that whatever I say may be given in evidence. Signed (suspect)

When suspect writes his/her own statement they should be allowed to do so without any prompting as distinct from indicating to him/her what matters are material.

When Policeman/woman writes the statement, he/she shall take down the exact words spoken by the suspect making the statement, without putting any questions other than such as may be needed to make the statement coherent, intelligible and relevant to the material matters; he/she shall not be prompt him/her.

When he/she has finished reading it he/she shall be asked to write and sign or make his/her mark on the following certificate at the end of the statement:

I have read the above statement and I have been told I can correct, alter or add anything I wish. This statement is true. I have made it of mine own free will. Signed.....(**suspect**).

If the person who has made the statement refuses to read it or write the above mentioned certificate at the end of it or sign it, the senior police man/woman present shall record on the statement itself and in the presence of the person making it, what has happened if the person making the statement cannot read, or refuses to read it. The policeman/woman taking the statement shall read it over to him/her and ask him/her whether he/she would like it corrected, alter or add anything and out his/her signature or make his/her mark at the end. The policeman/woman shall then certify on the statement itself what he/she has done.

Service of Voluntary Statement on Co-accused

If at anytime after a person has been charged with, or has been informed that he may be prosecuted for an offence a police man/woman wished to bring to the notice of that person any written statement made by another person who is respect of the same offence has also been charged or informed that may be prosecuted, he shall hand to the person a true copy of such statement, but nothing shall be said to invite any reply or comment. If that person says that he would like to make a statement in reply, or starts to say something, he shall be at once cautioned or further cautioned and a full note must be taken of the action taken, the time and date of the caution and reply.

Further questioning a suspect already charge

It is only exceptional cases that questions relating to the offence should be put to an accused person after he has been charged or informed that he/she will be prosecuted for that offence. Such question may be put where they are necessary for the purposes of preventing or minimizing harm or loss to some other person or to the public of for clearing up an ambiguity in a previous answer of statement.

Before any such questions are put the accused should be cautioned in the following terms:

I wish to put some question to you about the offence, which you have been charged (or about offence for which you may be prosecuted). You are not obliged to answer any of these questions, but if you do, the questions and answer will be taken down in writing and may be given in evidence.

Any questions put and answers given relating to the offence must be contemporaneously recorded in full and the record signed by that person or if the person refuses by the interrogating police man/woman. (See recording of contemporaneous notes).

When such a person is being questioned, or elects to make a statement, a record shall be kept of the time and place at which any questioning or statement began and ended and of the person present.

Interrogation of children and young person

As far as practicable children (whether suspected of a crime or not) should only be interviewed in the presence of a parent or guardian, or in their absence, some person who is not a police man/woman and is of the same sex as the child. A child or young person should not be arrested, nor even interviewed, at school if such action can possibly be avoided. Where it is found essential to conduct the interview at school, this should be done only with the consent, and in the presence of the Head Teacher, or his nominee.

Every must be taken to ensure any child or young person taken in to custody and interviewed is afforded the utmost care in respect of food and comfort. Any interviews should be carried out at a reasonable hour and preferably in the daytime. Full checks should be carried out to ensure the child or young person fully understand the questions being put to them and in cases of doubt expert help from a senior child welfare officer or someone in a position of responsibility who knows the child. A frequent defence in such cases is that the child did not understand the question or was too tired or too hungry to care and gave answers he thought the interrogator wanted to hear, to end the ordeal.

Interrogation of foreigners

A foreign national who is unable to speak English or fully understand the language should be interviewed through a competent interpreter. The same rules apply as above.

If a statement is taken then the interpreter should write the statement in the language in which it is made. The foreign national should sign this statement and the interpreter should endorse it. The interpreter will then complete his/her own statement outlining what has taken place.

An official English translation should then be made and be proved as an exhibit with the original statement by the interpreter.

Dying Declarations

A dying declaration is a statement made by an injured and dying person as to the facts and circumstances, which caused his injuries. It should give in the actual words of the injured person what has happened to him/her; it should contained his/her opinion that he/she is dying and has no hope of recovery; it need not be an oath; it may be signed by the injured person if he/she id able to sign it; the person suspected of causing the injuries need not be present, though he/she may be; and the person taking it should sign and date it and get it signed also by all the person (if any) present who have heard it being made by the injured person.

- Any person may take a dying declaration.
- The injured person should not be sworn as it is considered that any person in such a serious position will feel bound to speak the truth.
- There is no particular format of a dying declaration and if questions are put to the injured person the questions as well as the answers should be written down and will form part of the declaration.
- If the person accused of causing the injuries is present, the injured person should be given the opportunity of identifying him/her and everything said by both parties should be written down.

Dying declarations are admissible in evidence in cases where the death of the injured person is the subject of the charge, i.e. charges of murder and manslaughter;

Before a judge will receive a dying declaration in evidence he/she must be satisfied:

1. That at the time it was made the Declarant was in actual danger of death.
2. That he/she at that time realized their condition and had no hope of recovery.
3. That he/she died and that the cause of death was the subject of the dying declaration.

If the accused person is available, and if it is at all possible, a Justice of the Peace should be procured so that a deposition may be taken in the presence and hearing of the accused.

An injured person who has been hospitalized and has no hope of recovery may offer the opportunity to make a deposition as above. If the accused is in custody then arrangements should be made to take him/her to the hospital with a J.P. to carry out this procedure.

Corruption (Prevention) Act 2000

& Regulation 2002

What is Corruption?

A simple definition of corruption is the misuse of public office for private gain for the benefit of the holder of the office or some third party.

What is the Corruption (Prevention) Act 2002?

The Corruption (Prevention) Act 2000 was established to eliminate bribery and corruption within the government services. The act requires that certain categories of public servant make statutory declarations of their assets, liabilities and income. It makes provisions for the investigations of those government employees whose declared assets are not in keeping with their total emoluments.

The Act is administered and enforced by the Commission for the Prevention of Corruption.

Who files Statutory Declarations?

All public servants who fall outside of the Parliamentary (Integrity of Members) Act whose total emoluments are Two Million Dollars or above, or those whose posts are listed in the regulations to file statutory declarations. Also any public servant or category of public servants, which the Commission requests in writing or by notice published in the Gazette.

Who are considered as Public Servants?

Under the Act "Public Servant" means any person:

- *Employed – In the public, municipal or parochial service of Jamaica;*
 - *In the service of a statutory body or authority or government company.*
- *Who is an official of the state or any of its agencies*
- *Appointed, elected, selected or otherwise engaged to perform a **public function***

"Public Function" means any activity performed a single time or continually, whether or not payment is received therefore, which is carried out by-

- *a person for, or on behalf of or under the direction of a Ministry, Department or Government, a statutory body or authority, a parish Council, the Kingston and St. Andrew Corporation or a government company;*
- *a body, whether public or private, providing public services;*
- *a member of the House of Representatives or of the Senate in that capacity.*

When are the Declarations to be filed?

All statutory declarations become due three months after the Regulation comes into effect, or three months after the date of appointment of the public servant to a post, which requires the filing of a declaration. Also within three months after a public servant's emoluments increase to two million dollars or more.

NB. The Regulation became effective 31st January 2003.

Each successive declaration should cover the year ending December 31st and must be filed by the 31st March of the following year.

A statutory declaration is also required whenever a public servant demits office. This is due at the end of twelve months from the last day in office.

Where are Declarations to be filed?

All declarations must be delivered to the Office of the Commission during normal office hours.

Declarations may also be submitted by registered mail, post dated before the final filing date.

What is to be filed in the Declarations?

The statutory declarations should include information on all assets, liabilities and income of the Declarant, his/her spouse and children if they live with the Declarant at any time during the period of declaration and should include all assets whether held **locally or abroad**. In addition all assets held on behalf of the Declarant by his/her spouse or children who were not living with him/her during the period of the declaration.

The declaration should not include information in relation to any gift received from relatives of the Declarant, valuing less than \$20,000.00

What happens if: a Declaration is not filed or if false statements are made on the Declarations?

Any intentional violation of the Corruption (Prevention) Act with regards to the failure to file or a misstatement is a offence under the Act, and is punishable by imprisonment of not more than two years or by a fine of up to two hundred thousand dollars or both.

Intentional violations will also be reported to the appropriate Service Commission, Board or Authority for disciplinary action.

Can the Public see the Declarations?

The statutory declarations, letters and other documents submitted with them are regarded as secret and confidential under the Act.

Any communication or attempted communication of a Declarants' information to an unauthorized person is punishable by imprisonment for not more than three years or by a fine up to five hundred thousand dollars or both.

These materials are intended as a general guide and should not be considered as a part of the Corruption (Prevention) Act or Regulation.

Jamaica Constabulary Force Human Rights and Police Use of Force and Firearms Policy

Introduction

1. This document represents the Commissioner's policy in respect of the use of force by members of the Jamaica Constabulary Force (JCF). These instructions replace all previous instructions on the Use of Force and Firearms.
2. These instructions contained in this document incorporate the fundamental rights and obligations enshrined in the Jamaican Constitution and international human rights instruments. In Particular it reflects the principles set out in:

United Nations Code of Conduct for Law Enforcement Officials, 9GA res. 34/169, annex, 34 U.N. GAOR Supp. (No. 46) at 186, U.N. Doc. A/34/46 – 1979); and

UN Basic Principles on the Use of Force and Firearms by Law Enforcement Officials, (Eighth United Nations Congress on the Prevention of Crime and the Treatment of Offenders, Havana, 27 August to 7 September 1990, U.N. Doc. A/CONF. 144/28/Rev.1 at 112-1990).
3. The principles of "Public Safety" and "Police Officer Safety" are of equal and paramount importance and inform the concepts set out in this policy document.
4. This document for ease of reading is divided into two parts, the first applies generally to all use of force, the second part deal with specifically with the use of firearms. This document should, however, be read as a whole.
5. All references to members of the JCF shall also include auxiliary members of the JCF.

HUMAN RIGHTS AND THE USE OF FORCE

6. It is the aim of the JCF to uphold and protect the human rights of all the people in Jamaica by providing a high quality, effective policing service in partnership with the community and in co-operation with other agencies. In carrying out our duties, members of the JCF shall, as far as possible, apply non-violent means before resorting to the use of force. Members of the JCF will only resort to the use of force if other means remain ineffective and there is no realistic promise of achieving the lawful objective without exposing police officers, or anyone who it is their duty to protect, to a real risk of harm or injury.
7. This policy recognizes that the use of force by the JCF members requires constant evaluation. Even at the lowest level, the use of force is a serious responsibility. The purpose of this policy is to provide members of the JCF with guidelines on the appropriate use of force. While there is no way to specify the exact amount or type of force to be applied in any given situation, each member is expected to make such decisions in a professional, impartial and safe manner.

Philosophy

8. The use of force by police personnel is a matter of critical concern both to the public and the JCF. Members of the JCF are involved on a daily basis in numerous and varied human encounters and, when warranted, may use force in carrying out their duties.
9. Members of the JCF must have an understanding of, and true appreciation for, the limitations of their authority. This is especially true with respect to officers overcoming resistance while engaged in the performance of their duties.
10. The JCF recognizes and respects the value of all human life and dignity.

Policy

11. It is the policy of the JCF that its members shall use only that amount of force that is strictly necessary, given the facts and circumstances perceived by the officer at the time of the event, to effectively bring an incident under control.
12. Any consideration of the appropriateness of a given action must allow for the fact that members of the police service are often required to make split-second decisions – in circumstances that are

tense, uncertain and rapidly evolving.

13. Whenever members of the JCF resort to the lawful use of force they shall:-

- Minimize any interference with human rights
- Exercise restraint in such use and act in proportion to the seriousness of the offence and the lawful objective to be achieved;
- Minimize damage and injury;
- Ensure that medical aid is secured for any person requiring it at the earliest opportunity

14. The use of force by members of the JCF must accord with the principles of proportionality (i.e. the anticipated injury or harm to be prevented is equal to or greater than the harm which is likely to be caused by the use of force and that the objective can not be achieved by a lesser degree of force). In no case should the use of force, which is disproportionate to the legitimate objective to be achieved, be used or authorised.

15. The arbitrary or abusive use of force by members of the JCF will result in both criminal and disciplinary investigation.

16. In accordance with Article 3 of the United Nations Code of Conduct for Law Enforcement, members of the JCF will apply the test using force only when strictly necessary and to the extent required for the performance of their duty.

The commentary to article 3 states:

- *This provision emphasizes that the use of force by law enforcement officials should be exceptional; while it implies that law enforcement officials may be authorized to use force as is reasonably necessary under the circumstance for the prevention of crime or in effecting or assisting in the lawful arrest of offenders or suspected offenders, no force going beyond that may be used.*
- *National law ordinarily restricts the use of force by law enforcement officials in accordance with a principle of proportionality. It is to be understood that such national principles of proportionality are to be respected in the interpretation of this provision. In no case should this provision be interpreted to authorize the use of force which is disproportionate to the legitimate objective to be achieved*

17. When police are required to use force to achieve a lawful objective (such as making lawful arrest, acting in self defence or protecting others) the method of applying force should be in accordance with force instruction and training.

18. When determining whether or not to apply any level of force and in evaluating whether an officer has used appropriate force, a number of factors should be taken into consideration. These factors include, but are not limited to:

- *The conduct of the individual being confronted (as reasonably perceived by the officer at the time).*
- *Officer/subject factor (age, size, relative strength, skill level, injury/exhaustion and number of officer vs. subjects).*
- *Influence of drugs/alcohol (mental capacity)*
- *Proximity of weapons*
- *Availability of other options (what resources are reasonably available to the officer under the circumstances).*
- *Seriousness of the suspected or reason for contact with the individual.*
- *Training and experience of the officer.*
- *Potential for injury to citizens, officers and suspects*
- *Risk of escape.*
- *Other exigent circumstances*

19. Each member of the JCF is provided with equipment, training and skill to assist in the apprehension and control of suspects as well as protection of colleagues and the public.

20. Individual members of the JCF are required to use well-reasoned discretion in determining the appropriate use of force in every incident. It is not possible to predict every possible operational situation that members of the JCF may encounter.

Right to Self Defence

21. While it is the ultimate objective to minimize injury to everyone involved, nothing in this policy requires officers to actually sustain physical injury before using appropriate force, or to expose themselves to unnecessary violence.
22. Members of the JCF have the right to defend themselves from unlawful physical violence and, where appropriate, to take pre-emptive action to diffuse or avert violence.

Obligation to Protect Others

23. If members of the JCF do not take appropriate and proportionate action to protect other from harm they may be violating human rights and be in breach of their duty as a police officer.
24. In making these important and often timely decisions members of the JCF are reminded that they are accountable through the law for their actions. Apart from the criminal law, there may follow a civil suit, complaints may be made against individual officers and, in cases where death has resulted, a public inquest or other inquiry will be held by the Coroner.

Obedience to the Orders

25. Obedience to the orders of a supervisor shall be no defence if a police officer knew that the order to use force was unlawful and had a reasonable opportunity to refuse to obey it. Responsibility will also rest with the supervisor who gave the unlawful order.

Personal Responsibility

26. The primary responsibility for using force rests with the individual officer, who is accountable ultimately to the law and also to the Commissioner of Police.
27. Individual officers are accountable and responsible for whatever force they use and must be in a position to justify their action in the light of their legal responsibility and powers.
28. Any police officer who has reason to believe that improper force had been used or is about to be used by another police officer, shall, to the best of his/her ability, prevent and rigorously oppose any such use of force. This officer shall at the earliest opportunity, report the matter to his/her supervisor and, where necessary, to other appropriate authorities vested with responsibility for investigation such matters.
29. Supervisory members will be held responsible if they know, or should have known, through the proper discharge of their, that officers under their command are resorting, or have resorted, to the unlawful use of force, and they did not take all measures in their power to prevent, suppress or report such use.

Medical Assistance

30. Medical assistance will be obtained for any person(s) who has sustained visible injury, expressed a complaint of pain, or who has been rendered unconscious.

Records and Reports

31. Members of the JCF will verbally report any use of force to their immediate supervisor as soon as practicable. Any use of physical force by a member must be documented completely and accurately in an appropriate report, depending on the nature of the incident.
32. Notification to a supervisor will be made as soon as practicable following the application of physical force, under any of the following circumstances:
 - *Where the application of force appears to have caused physical injury*
 - *The individual has expressed a complaint of pain*
 - *Any application of a less lethal control device*
 - *Where the individual has been rendered unconscious.*
33. Supervisors will check that a pocket book entry has been completed by the officer(s) involved and that each pocket book entry is inspected and signed by that supervisory officer.

34. Members of the JCF must fully document the circumstances in which they found themselves, the

reasons for their actions and the details of the supervisor to whom they subsequently reported.

Role of the Police Public Complaint Authority and the Office of Professional Responsibility

35. Where a complaint is made by a member of the public against a police officer regarding that officer's use of force, this will be investigated by the Police Public Complaint Authority and the Office of Professional Responsibility.
36. The Police Public Complaint Authority and the Office of Professional Responsibility also have the authority to investigate a wide range of matters surrounding the conduct of police officers. This may include situations in which a police officer has used force, regardless of whether or not a complaint has been made. It is therefore important that officers can show that non-violent methods have been considered before resorting to force and that their actions were proportionate.

Managing Conflict

37. It is intended that this instruction will be the principal reference document on which all application of force are based. It will become an integral part of police response to situations of conflict and will provide a standard to be attained by all police officers.
38. Members of the JCF are frequently required to deal with situations of conflict. The careful use of well-chosen and appropriate words and the management of human interaction will resolve many situations. Other situations will necessarily involve the application of varying degrees of physical force.
39. The use of an appropriate and "graduated response" to conflict, including disorder and violence will help to ensure a balanced and proportionate use of force.
40. The primary responsibility of police officer is the protection of life. Members of the JCF are not required to wait until they have been assaulted before they take action and there are occasions when pre-emptive action will be appropriated to defuse a situation which may otherwise escalate and result in greater violence.
41. Every effort should be made to resolve conflict without resorting to the use of force. Members of the JCF who are able to resolve conflict through effective use of interpersonal skills are to be commended.

Policing Unlawful Assemblies and Serious Disorder

42. Police unlawful assemblies and serious public disorder raises specific issue of command and control, and requires all members to act in a discipline and effective manner.
43. Everyone is entitled under the Constitution of Jamaica to participate in lawful and peaceful assemblies. Force and firearms may be used only in accordance with principles 13 and 14 of the UN Basic Principles on the Use of Force and Firearms by Law Enforcement Officials, which states:
 - *In the dispersal of assemblies that are unlawful but non-violent, law enforcement officials shall avoid the use of force or, where that is not practicable, shall restrict such force to the minimum extent necessary.*
 - *In the dispersal of violent assemblies, law enforcement officials may use firearms only when less dangerous means are not practicable and only to the minimum extent necessary.*
44. Members of the JCF shall not use firearms in such cases, except in self defence or defence of others against the imminent threat of death or serious injury, to prevent the perpetration of a particularly serious crime involving grave threat to life, to arrest a person presenting such a danger and resisting their authority, or to prevent his or her escape, and only when less extreme means are insufficient to achieve these objectives. In any event, the use of a conventional firearm may only be made when strictly necessary in order to protect life.

Less Lethal Options

45. The term 'less lethal options' is employed to indicate weapons, devices and tactics, the design and intention of which, is to induce compliance in pursuit of a legitimate aim by the police without a substantial risk of serious or permanent injury or death to the subject on whom they are applied. In other words, the desired effect is to control and then neutralise a threat without recourse to lethal use of force. Whilst the actual outcome may, on occasions, be lethal, this is less likely than as the

result of the use of firearms.

46. It is necessary to ensure that any force used is proportionate to the seriousness of the apparent threat, and appropriate options in this area assist adherence to that principle.
47. Members of the JCF are equipped with various types of weapons and ammunition that would allow for a differentiated use of force and firearms. These include less lethal weapons for use in appropriate situations.
48. In addition to firearms, officers are issued with batons and incapacitant chemicals sprays.
49. A range of less lethal weapons are also available for use, by trained personnel in dealing with violent individuals in situations that would otherwise require the use of conventional firearms. These weapons include:
 - 12 Gauge, non penetrating rounds (bean bags)
 - 37 mm baton rounds and
 - CS/CN devices
50. The JCF will continually monitor international developments in respect of 'less lethal options' and, wherever possible, ensure that appropriate technologies are issued to officers trained in their use.

Human Rights and Police Use of Firearms

51. Any use of firearms must be in accordance with force instructions and training. Only in the most extreme circumstances, where life is endangered or there is risk of serious injury, may the use of lethal force be justifiable.
52. The circumstances in which lethal force can be used within the terms of Jamaican law are limited, being restricted to situations involving self-defence or defence of others and then only where strictly necessary.
53. The purpose of these instructions is:-
 - To highlight the principles and provisions of the Jamaican Constitution
 - To promote an understanding and to provide practical guidance concerning the legal implication surrounding the use of firearms.
 - To outline Force Policy concerning the issue, deployment and training of members of the JCF issued with firearms.
 - Provide for a system of reporting whenever JCF members use firearms.
54. The 'right to life' as set out in Chapter 3, Section 14 of the Jamaican Constitution may be violated if a person dies as a result of the force used against them. Section 14 states:-
 - *No person shall intentionally be deprived of his protection to life save in execution of the sentence of a court in respect of a criminal offence of which he has been convicted.*
 - *Without prejudice to any liability for a contravention of any other law with respect to the use of force in such cases as are hereafter mentioned, a person shall not be regarded as having been deprived of his life in contravention of this section if he dies as the result of the use of force to such extent as it reasonably justifiable in the circumstance of the case –*
 - a. *For the defence of any person from violence or the defence of property, in order to effect a lawful arrest or to prevent escape of person lawfully detained.*
 - b. *For the purpose of suppressing a riot, insurrection or mutiny; or*
 - c. *In order to lawfully prevent the commission by that person of a criminal offence, or if he dies as the result of a lawful act of war.*

55. JCF members carrying out their duty, shall, as far as possible, apply non-violent means before

resorting to the use of force or firearms.

56. Whenever the lawful use of force and firearms is avoidable, JCF members will:

- *Exercise restraint in such use and act in proportion to the seriousness of the offence and the legitimate objective to be achieved;*
- *Minimize damage and injury, and respect and preserve human life.*
- *Ensure that assistance and medical aid are rendered to any injured or affected persons at the earliest possible moment*
- *Ensure tht relatives or close friends of the injured or affected person are notified at the earliest possible moment.*
- *Where injury or death is caused by the use of force and firearms by any members of the JCF, they shall report the incident promptly to their superiors.*

57. In determining whether the use of firearms is strictly necessary the following questions should be asked:

- *Is the use of firearms proportionate, in the given circumstances, bearing in mind the dangers to the lives of all persons involved?*
- *Is the degree of force used strictly necessary in order to achieve a lawful objective?*
- *Have other options been considered before resorting to the use of firearm?*
- *Why were these options discounted?*

58. Firearms are only to be fired by members of the JCF when their use is strictly necessary, after conventional methods have been tried and failed, or must from the nature of the circumstances be unlikely to succeed if tried.

59. Public confidence in the police is of the utmost importance. It is essential that in their approach and conduct members of the JCf are seen to be well-trained and disciplined in handling firearms.

Training and Qualification in Firearms

60. Firearms' training is obligatory for all members of the JCF who are to be issued with or carry firearms operationally as part of their duties.

61. A system has been established to ensure that all members are allocated annual firearms training and they will be informed of their allotted refresher training dates. A database of attendance and qualification scores will be maintained centrally, providing a record of all firearms training provided. This will provide a reference point in any post-shooting investigation, providing evidence of the members' competence and qualification to carry a specific firearm.

62. A record will also be maintained in the Division to which the member is assigned, showing details of which weapons the member is authorised to carry and of required re-qualification dates.

63. All members of the JCf are reminded of their personal responsibility to identify their training needs and to bring these to the attention of their immediate supervisor. Members of the JCf are also required to maintain a high level of competence in the weapon use and knowledge in relation to Force Policy and current legislation in respect of firearms.

64. Firearms may only be issued to and carried for operational duties by members of the JCf who have successfully completed an initial firearms training course in the particular weapon and who have successfully re-qualified in its use during the last 12 months.

65. Divisional Commander/Heads of Department will ensure that all officers, for whom they have responsibility, attend firearms re-qualification training at least once per year, in respect of all weapons that they are to carry.

66. Where a member fails to re-qualify in a particular weapon, the Senior Firearm Instructor on duty will inform that member's Divisional Commander. The Divisional Commander will then make an assessment as to the duties that that officer will be required to perform pending further training.

67. Where a member does not successfully complete refresher training, he/she will attend a remedial training course as devised by Firearms Training Unit, in order to achieve the required standard. Where necessary, a member will be provided with 'one-to-one' tuition at the earliest possible opportunity. If a member continues to be unable to achieve the required standard, the matter will be referred to the Senior Director of Human Resources for direction as to the future role and

deployment of that member.

68. Supervisory officers will, in accordance with Force and Divisional Police, decide which firearms members will carry on duty, ensuring that appropriate training has been afforded and qualification attained. Firearms carried on duty must always be loaded with live rounds in accordance with Force Instructions.

Firearms and ancillary equipment

69. The Commissioner had approved a range of weapons, ammunitions and associated equipment for issue to JCf members.

70. The weapon types approved for issue are as follows:

- *Revolvers: capable of firing .38 special +P ammunition or 357 magnum. Trigger pressure (measured by the suspended weight method) should be as follows: Single Action between 1.5kg (3lbs 6oz) and 2.2kg (4lb 15oz) Double Action between 4.1kg (9lb 0oz) and 5.9kg (13lb 6oz)*
- *Self-loading Pistols: capable of firing 9mm caliber ammunition. Trigger pressure recommended are as follows: Single Action between 1.3kg (lb) and 3.7kg (8lb) Double Action should not exceed 5.15kg (11lb)*
- *Shotgun: 12 gauge shotguns (pump action or self-loading) with appropriate sighting system and bored true cylinder to enable specialist ammunitions to be used (e.g. Bean bag, CS and breaching rounds)*
- *Submachine guns: capable of firing up to 9mm calibre ammunition*
- *Rifle/Carbines: capable of firing 5.5 calibre ammunition*
- *Specialist sniper rifles up to 7.62/308 ammunition*
- *Baton Guns: Baton Round Launchers as approved for use by the JCF, which may be considered for use as a less lethal option.*
- *Grenade Launcher for CS/CN ammunition*
- *Smooth bore signal pistol for CS/CN ammunition*

71. Members will ensure that firearms carried by them are clean and functioning properly.

72. These instructions, including the re-qualification criteria, will also apply to any member of the JCf, who has been authorised in writing to purchase a personally owned firearm.

73. Members authorised to carry privately owned firearms will comply with these instructions both on and off duty. They will, prior to carrying the weapon on duty, complete a JCf firearms course where they will demonstrate awareness of the characteristics of the weapon, safe and proper handling techniques, and competency in the firing of the weapon to the standard required of officers equipped with operational weapons.

74. The individual officer will be responsible to ensure that the weapon is properly maintained, submitted for inspection to a competent JCf Armourer and will use the weapon when completing range qualification courses.

75. Members who carry privately owned firearm on duty must be authorised by the Divisional Commander in writing. The authorization must be carried on his person until the end of the assigned duty.

Holster and accoutrements

76. Approved holster and ancillary equipment, including ammunition, magazines, holster and pouches are issued to the Force for both overt and covert carriage of handguns. This equipment is provided on the basis of detailed and agreed specifications standards. Only holster designed for the model of weapon carried should be used. For safety reasons holster should cover the trigger guard.

77. These detailed specifications includes issues of suitability of purpose, security of the weapon/ammunition, and the ability to draw and replace the weapon, magazine or ammunition with safety and in accordance with training instructions.

- *Members are reminded that the use of 'unofficial' holster and equipment could leave them personally in the event of loss or damage to weapons.*

Ammunition

78. The use of 'hollow point' or ammunition designed to expand on impact so as to cause greater wound capacity are specifically prohibited.
79. Only ammunition subject to strict factory quality control should be issued for operational purposes.
80. The type of ammunition issued must be appropriate for the particular weapon type.
81. A proof house pressure certificate, giving detail of the mean service pressure' of each ammunition batch, should accompany all ammunition purchased.
82. Suitable provision should be made to facilitate the safe carriage of personal issue ammunition. This includes the use of magazines, magazine pouches and similar devices for other ammunition types.

Weapons Maintenance

83. An effective maintenance programme has been established to ensure that weapons and ammunition used by the JCF officers are in a serviceable condition.
84. The primary responsibility for inspection servicing and repair regime of firearms lies with the Chief Armourer of the JCF.
85. A nominated officer within each division/station/department will be responsible for checking firearms and ammunitions held and ensuring routine cleaning and inspection of firearms.

Issues and Carriage of Firearms

86. Members of the JCF will only be issued with and carry weapons for which they are currently qualified, and in accordance with force policy.
87. The regulation, control, storage and procedures for issuing of firearms, ammunition and specialist ammunitions is paramount in ensuring tht officers are accountable for the firearms and ammunitions issued.
88. All weapons and ammunition will be issued and returned against signature. The procedures to be followed in relations to all issues and return of weapons and ammunitions are set out at annex A.

Policy/ Management Issue

89. *Divisional Commanders will ensure that an appropriate number of officers are trained in order to meet locally identified needs, based upon an evaluation of the prevailing security situation and risk assessment. Commanders will be required to maintain a minimum level of XXX percent of all uniform, beat and patrol personnel trained in M16 rifles, carbines and shotguns appropriate to the local and Force needs.*

Firearms and Specialist Munitions

90. The selection of weapons to be used is a tactical decision which is made taking various factors into consideration. These factors are listed below:-
 - *The level of force required to meet the threat*
 - *The type of situation to be dealt with*
 - *The likely distance between the armed members of the JCF and the threat*
 - *Information received as to the weapons(s) used by threat*
 - *The operational environment, including the range and penetration capabilities of the weapon/ammunition*
 - *The training and experience of the officers involved*
91. Specialist units also have a range of munitions, which can be used when carrying out specific tasks. It is important to realize tht Specialist Munitions have the potential to cause injury even when used correctly. In some cases the danger in minimal but in others the injury could prove fatal. Members handling or using these devices must therefore be trained in there characteristics and proper use. In particular, they should be aware of the danger from secondary fragments that may be potentially injurious.

Temporary Unfitness to Carry Firearms

92. The consumption of alcohol or the use of drugs in medical treatment or otherwise may reduce the alertness and performance of a member. Members of the JCf carrying firearms should not consume or be under the influence of alcohol. Any member who is receiving a course of drug treatment should seek the advice of their doctor concerning the possible side effects. Any concerns or medical advice given to a member should be brought to the attention of his/her immediate supervisor, who should take appropriate action.
93. When it is considered absolutely necessary to open fire on a subject, members of the JCF will only 'shoot to stop' and thereby neutralise the immediate threat.
94. Research has indicated that only shots hitting the central nervous system (which is largely located in the central body mass) are likely to be effective in achieving rapid incapacitation. Shots which strike other parts of the body cannot be depended upon to achieve this.
95. The accuracy of shots fired under training conditions is generally greater than in operational circumstances. Members of the JCf are therefore normally trained to fire at the largest part of the target they can see which in most cases will be the central body mass.
96. Members should constantly reassesses the need for nay further action, using no more force than is absolutely necessary and relative to the threat posed.
97. The ultimate responsibility for firing a weapon rest with the individual member, who is answerable ultimately to the law in the courts. Individual members are accountable and responsible for all rounds they fire and must be in a position to justify them h the light of there legal responsibilities and powers.
98. Any discharge of a firearm, other than in training, whether intentional or otherwise, must be reported by the member concerned.

Definition of 'Use'

99. The issuing of a firearm to a police officer does not, itself, constitute a use of force. A police officer is deemed to have used a firearm when the weapon is;
 - *Pointed at another person, or*
 - *Fired at another person in self-defence or in defence of another, whether or not injury or death results*
 - *Discharged in any other operational circumstances, including unintentional discharge.*

Oral Warning

100. Members of the JCF shall identify themselves as such and give a clear warning of their intent to use firearms, with sufficient time for the warning to be observed, unless to do so would unduly place the member at risk or would create a risk of death or serious harm to other persons, or would be clearly inappropriate or pointless in the circumstances of the incident.

Firing at or From a Moving Vehicle

101. Members of the JCf will not, in normal circumstances, fire at or from moving vehicle. However, there may be circumstances where the life of an officer or member of the public is at risk and the only course of action available is to engage subject in, or from, a moving vehicle. If such a course of action is deemed absolutely necessary, the following matters must be borne in mind and officers must be aware of the potential consequences and their responsibilities to protect the right to life of innocent bystanders;
 - *Due to the construction of modern vehicles, shots are likely to be ineffective in immobilizing the vehicle and cause a very real danger of ricochet. Rounds may also over-penetrate the vehicle to the danger of innocent persons.*
 - *If the driver is killed or injured, there is a high risk of the vehicle going out of control*
 - *Shots fired from a moving vehicle are unlikely to be accurate because of the movements of the shooter or subject*
 - *Research has established that when bullets, especially those from high velocity weapons, strike the windows or bodyworks or a motor vehicle, a flash is produce which produced which may resemble the muzzle flash of some weapon. The same effect could be produce when a high velocity bullet strikes the windowpane of a building. These findings are of real significance and must be borne in mind by officers engaged in operational*

firearms duties.

102. Firearms will **NOT** be discharged at a vehicle. Simply because it has failed to stop for a signal at a road block, or to immobilized the vehicle.

Warning Shots

103. Police should not fire warning shots. There are serious risks associated with the firing of such shots, which have the potential to cause unintentional death or injury. They may also lead a subject or other officer to believe that they are under fire.
104. An officer will only be justified in resorting to the discharge of a warning shot(s) in the most serious and exceptional of circumstances, where failure to do so would result in the loss of life or serious injury. Members of the JCF who discharge a firearm under any circumstances must give full consideration to public safety.

Planned Operations

105. The principle of upholding the 'right to life' should be central to all armed operations, hence proper planning is essential.
106. The European Court of Human Rights ruling, against the Government of the United Kingdom, in the case of McCann vs. UK (1995) considered whether or not the actions of a public authority were appropriate, and applied the principle that the force used on behalf of the State should be 'no more than absolutely necessary'. They determined that force is absolutely necessary if it is strictly proportionate to the achievement of the permitted purpose.
107. The European Court of Human Rights asserted that the State must provide appropriate training, institutions and briefing to those who are placed in particular operation/incident was planned and controlled by the authorities, it must be done so as to 'minimize, to the greatest extent possible, recourse to lethal force'. (McCann vs. U.K. 1995-21).

Planning

108. The planning of armed operations requires attention to detail to ensure that the operations are undertaken safely and appropriately. In spontaneous incidents the amount of planning undertaken will be commensurate with the level of threat and the time available.

In order to discharge this duty of care and to comply with human rights principles the operation must:

- *Have a legitimate aim*
- *Be lawful*
- *Be proportionate*
- *Be justified*
- *Be the least intrusive or damaging to the rights of individuals*

109. Firearms operations must be planned and controlled so as to minimize, to the greatest extent possible, the need to resort to potentially lethal force (i.e. it must be strictly necessary).
110. Plans should be the subject of constant review. Intelligence updates may lead to variations in the assessed level of threat which will, in turn, require the modification of the plan (and a further corresponding briefing of operational officers).
111. All plans should be recorded, this will include the consideration of options rejected or progressed together with the reason why such conclusions were drawn and by whom.
112. A full assessment of all available information, intelligence and the setting of an appropriate strategy and tactical plan are essential. The Commander should ensure that officers are briefed by available means of communication.

Briefings

113. The briefing given by officers is of great significance in ensuring effective command of an operation. In operations conducted jointly with other agencies, the joint briefing should cover the aims and objectives of the operation and, where appropriate, the nature of the

anticipated threat.

114. Commanders should be mindful that the content of the briefing may directly affect the response of armed officers to any subsequent perceived threat from the subject.
115. Officers providing briefing should stress the aim of any operation including specifically the individual responsibility of officers and the legal powers anticipated to be used in all aspect of the operation.
116. Commanders should confirm their lines of communication to officers, once they have been deployed. It is imperative that, as the circumstances and the intelligence, they are updated and further briefed where necessary.

Command and Control

117. Command is an integral and immediate consideration within any police response. The possibility of firearms being used by the police service places an obligation on them to ensure that an operation is controlled through effective command.
118. The rank of the person exercising command will depend on the seriousness of the incident, the retraining received and the time available for structures to be put in place. A Gazetted officer will at the earliest opportunity take command of serious and protracted incidents.
119. A -coordinated, control and proportionate response, using established tactic, will ensure that unnecessary risk are avoided and successful outcomes are obtained. Success will be measured not only in upholding the criminal law, but also in the maximizing of public safety by the managing of conflict and the balancing of rights of all those involved.
120. The use of Community Impact Assessment and pro-active engagement, where appropriate, with community representative will assist in minimizing community tensions.
121. It is the responsibility of the officer authorizing an armed operation to ensure that an appropriate command structure is instigated.

Command Structure

122. In normal circumstance and effective command structure has three levels; Strategic, Tactical and Operational;
 - Strategy – The overall intention to combine resources towards managing and resolving an event or incident.
 - Tactic- The way tht resources are used to achieve the strategic intentions within the range of approved tactical options.
 - Operational - Action designed to implement the tactical plan and the direction of resources.
123. This approach can be used for both pre-planned events and spontaneous incidents and can offer the degree of flexibility required to cope with a varied and developing range of circumstances,. It relies on the paramount principle of flexibility.
124. Command protocols reduce risk and inform and direct decision-making by allowing commanders to know what they are expected to achieve and how they will combine with others to achieve these objectives.
125. A command protocol will identify:
 - The designed outcome of the operation
 - Who is responsible for achieving each of the aims
 - Who is responsible for minimizing each risk identified
 - Who controls each of the resources
 - Who commands each separate geographic or functional area (if appropriate)
 - How the individual aims are dependent on each other
 - What instigates the transfer of command from one commander to another? This should include how this is defined, communicated and recorded.

126. All tactical options for resolving the situation require to be considered. Documentation of tactical

options should include those options that were discounted, as well as the approach to be adopted, the reason for selecting and discounting the various tactical options. All such records should be dated and timed.

- 127. As well as assisting decision-making, this process will enable commanders to demonstrate the rationale for their decisions, relevant to information available at the particular time.
- 128. All decision and policy considerations should be recorded in a Command Log/Incident Record. The records will assist in any subsequent inquiries.
- 129. The recording of key actions should continue throughout the lifetime of the incident, including the initial and post incident phase.

Medical Assistance

- 130. In pre-planned operations or in protracted incidents such as a siege situation where it is considered that there is a significant risk of casualties, contingency plans should ensure that early medical attention will be provided for any casualties, whether they be the police officers, the subject or any other member of the public.
- 131. The duty to protect life includes those who have been injured as a result of positive police action. Medical assistance should always be rendered at the earliest possible opportunity.
- 132. The provision of appropriate facilities should always be considered at the earliest possible stage. This might involve the availability of officers trained in relevant First Aid measures and/or the placing of an ambulance on standby.
- 133. Supervisors should ensure that relatives or close friends of the injured or affected person, subject to their agreement, are notified at the earliest opportunity.

Debriefing

- 134. All armed operations should be the subject of a report and analysis of events.
- 135. The planning of operations should include arrangements for a de-briefing session, which should include any outstanding or follow up actions required in relation to the incident.
- 136. The aim is to identify any aspect of the planning, command; tactics or equipment used which demonstrated good practice or requires attention.
- 137. Where as a result of armed confrontation police have killed or injured a suspect or other person, it is essential that 'integrity of purpose' can be demonstrated in respect of any debrief which is held. This may be accomplished by ensuring an independent record of debrief.
- 138. Unless there is an operational imperative which requires an immediate debrief session to elicit vital information relevant to an ongoing incident, debrief should not occur without the agreement of the investigating authority. (The SIO/OPR/PPCA/BSI).

Records and Reports

- 139. Members of the JCf will verbally report when a firearm is operationally drawn from the holster and any use of firearms (including where a shoulder-controlled weapon is made ready for firing) to their immediate supervisor as soon as practicable. Immediately following the discharge of any firearms (other than in training or as part of research programme) an initial report will be faxed/to the Office of Professional Responsibility, copied to the Divisional Commander and the Commissioner's Office.
- 140. Supervisor will ensure that a pocket book entry has been completed by the officer (s) involved and that each pocket book entry is inspected and signed by that supervisory officer. Initial notes should be made as soon as practicable, subject to any individual legal advice received to the contrary. The entry should be timed, dated and signed.
- 141. Members of the JCf must fully document the circumstances in which they found themselves, the reasons for their actions and the details of the supervisor to whom they subsequently reported.
- 142. in the event of a police officer discharging a firearm, the Police Public Complaint Authority, the Office of Professional Responsibility, and the bureau of Special Investigations are required

to be informed immediately (this is a statutory obligation)

Post-Incident Procedures

143. It is essential that the procedures evoked immediately following the operational discharge of
- Immediate follow up to the incident to be pursued
 - An immediate post-shooting investigation commenced
 - Officers to be provided with support
144. In implementing these procedures it is essential that the evidential trail is not jeopardized or officer safety compromised.
145. Incidents involving the discharged of a firearm by a police officer are, by their very nature, highly emotive and stressful for all involved. As a consequence, both investigative and welfare considerations are to be afforded a high priority.
146. The professional standing of the JCf will be strongly influenced by the way in which it responds to such incidents.
147. The welfare needs of those involved must be attended to whilst maintaining the accuracy and the integrity of the investigation.
148. It should be borne in mind officers may be affected whether or not they fired a weapon, and indeed even when in operations when shots are not fired.
149. The police service must address two distinct responsibilities when dealing with such cases. The first is a duty in law to ensure a full investigation into the shooting incident. This will be undertaken by the Bureau of Special Investigations, in conjunction with the Police Public Complaint Authority.
150. ***Details of the statutory referral requirements to be included on receipt of notification.***
151. The second duty is a legal responsibility of care towards staff. It is intended to ensure that these responsibilities are appropriately addressed and all involved, regardless of status (public or police) are afforded the same consideration.
152. Operational issues which require to be addresses in the immediate stages following an incident where, as a result of police action, some one has been killed or seriously injured includes:
- Management and preservation of the scene
 - Commencement of the investigative stage
 - Securing of weapons, ammunition and exhibits (including police weaponry)
 - Withdrawal from the scene of principle officers
 - Welfare consideration
 - Notification of the coroner and the pathologist
 - Appointment of an initial investigation officer
 - Transfer of command of the scene
 - Media strategy determined
 - Defusing of community tension
 - Appointment of Family Liaison Officer (where a potential fatality has occurred)
 - Liaison with PPCA
153. The finding of the post shooting investigations may be placed before a coroner's court or, in the case of negligence or an unlawful act, before a civil or a criminal court (or the Public Service Commission)

Administrative Review and Investigation

154. When death is occasioned by the use of force, an administrative and criminal investigation of the incident will immediately take place.
155. The scope of the investigation is likely to be wide ranging. It will not only include the circumstances of any injury to, or death of any person who may have been shot, but also the circumstance leading up to a shooting and all the surrounding issues such as the management of the incident, personnel beyond the immediate scene, e.g. in the force control room. An incident involving the use of firearm by members of the JCf may affect those involved

differently and it is not possible, nor should it be attempted to say who may be affected and what extent. Both research and experience have shown that officers who have not discharged weapons or suffered injury may be traumatized. A guide to the issues to be considered during a post shooting investigation is provided at Annex B.

156. Administrative Review and Investigation will determine whether

- Force rules, policy or procedure were breached
- The force order/policy was clear and effective to cover the situation
- Force training is currently adequate
- Supervision and direction have been applied properly

157. The out come of the Administrative Review should:
- Determine policy violations and /or training inadequacies and will report to the appropriate authority recommending remedial and /or disciplinary action
 - Provide documentation for an annual review at assessment by the Commissioner of Police.
158. The administrative Review is a separate and distinct enquiry from the criminal investigation of an incident.
159. Although the criminal investigation may require some time to reach a conclusion, the administrative investigation shall be of short duration, reaching a preliminary judgement within forty-eight hours of the incident. In each case when a member uses deadly force the following procedure will be followed:
- The Commanding Officer of the member involved shall relieve the member from duties in any operational assignment.
 - The Commanding Officer in charge may either assign the member to some administrative duty or relieve the member from all police duties pending the outcome of the administrative review
 - The Divisional Officer in charge or his designate and one member of the Complaint Section shall conduct a preliminary investigation to determine:
 1. If the shooting seem justified or not
 2. Force Orders and procedures were followed or not and that the member's physical and emotional state is such that he/she is capable of resuming normal police duties.
 3. Submit a written report embodying all available facts through the Area/Brach Officer to reach the Commissioner of Police as early as possible and, in any event, within 48 hours of the occurrence.
 4. Where the member's Commanding Officer is not the Officer in charge of the Division in which the incident occurred it shall be the responsibility of the officer in command of the Division where the incident occurred to forward the report required by (3)above.
 5. The Commissioner shall reserve the right in all case to determine the return of the member to operational duties within 48 eight hours.

Criminal Investigation

160. The procedures below apply to all situations in which a member of discharges a firearm for the purpose of employing deadly forces against a human being.
- The Divisional Officer in charge of the area where the shooting takes place shall promptly notify the Deputy Commissioner of Police in charge Crime, the Bureau of Special Investigation and the Police Public Complaints Authority of the incident, as well as the Constabulary Communication Network.
 - The officer incharge of the Bureau of Special Investigation shall assign a competent investigator to take over and complete the investigation under his/her direction
 - The detective assigned shall conduct the investigation as he/she would any other serious investigation
 - With the exception of the rare extenuating circumstances, all investigations shall be completed and the file submitted to the Deputy Commissioner of Police for Crime within 30 days of the incident
 - After review of the Deputy Commissioner of Police for Crime shall promptly submit the investigation report file to the Director of Public Prosecution for his review and findings, and the administrative review file to the Commissioner.

Annex A

All weapons and ammunition will be issued and returned against signature. The following procedures will be adopted in relation to all issue and return of weapons and ammunition:

- a. No member of the Force while on duty shall carry weapon other than one which has been issued and /or authorised by the Force.
- b. Firearms and ammunition are kept at all Divisional Headquarters and Stations for issue in cases of necessity. They will only be issued to members of the Force who are currently qualified in that weapon.
- c. The Station Officer and the Sub-Officer in charge of each station is responsible under the directions of the Divisional Officer, for the safe custody and issue, when necessary, of firearms and ammunition.
- d. When a firearm is issued to a member it shall be loaded by him/her and in the case of a revolver or pistol, placed in the holster in the presence of the Station Officer or Sub-Officer in charge of the Station.
- e. An entry will be made in the Station Diary noting to whom it is issued and the firearm register signed by the officer receiving the weapon and ammunition.
- f. Magazines for self-loading weapons will be **charged** in accordance with firearms training instructions for that weapon. Rounds will not normally be placed in the breach unless action is imminent
- g. On completion of the duty, the member will return the firearm to the Station Officer or Sub-Officer in charge of the Station, and will account in his presence for all ammunition issued.
- h. The latter will carefully examine both the weapon and ammunition and make an entry in the Station Diary of the condition in which they are returned to him. The relevant entry in the Firearm Register must be completed.
- i. A member returning firearms must report any instance in which he has had occasion to draw it operationally from the holster, whether it was discharged during the period of duty. Such report will be dealt with as "Urgent" and submitted to the Divisional Officer.
- j. When a firearm has been discharged, other than in training, a report of the circumstances will be submitted by the member concerned to the sub-officer of the station. All such reports will be marked "Urgent".

Humane Destruction of Animals

163. The humane destruction of animals is a duty which may fall to the police if the animal represents a danger to lives or property, or if the animal is in such a condition that it must be killed to avoid unnecessary suffering, and no veterinary surgeon or licensed surgeon is available to perform the task, or they are unable to do so. In carrying out this duty, the police should be cognizant of public safety, for some big game the use of special weapons and ammunition may be required.

Annex B

Issued to consider when investigating shooting by Police

This list is not intended to be exhaustive, but represents an indication of many of the areas that will normally be investigated following the discharge of a police firearm in operational circumstances.

1. Intelligence – what intelligence or evidence was available before the operation and who was in possession of it? What decisions were taken as a result and why? What steps were taken to verify the information?
2. Briefing – was the information available accurately relayed at the briefing? Or subsequently as events unfolded?
3. Who authorised the operation?
4. Threat/Risk Assessment, Detailed of any carried out.
5. Was this a joint JDF operation
6. Specialist Unit – what use was made of Specialist Units and what were their terms of reference in the operational plan?
7. Specialist Munitions – were any used – shotgun CS rounds, distractions devices, shot gun breaching round – and what internal Force instruction exist for their use?
8. Command Structure – who occupied which positions within the structure?

9. Strategy – what was the strategic intention of the Commander?
10. Tactical Parameters – were any set by the Commander, and what were they?
11. Tactical Plan – what tactical options did the Commander consider, and what was their reasoning for decisions made?
12. Negotiator – was one used and what was their input?
13. Rendezvous Points – where were they?
14. Communications – what arrangements were made?
15. Records – is there any video footage/photograph of the incidents?
16. Firearms Training – were the officers authorised for the particular weapons (s) they were carrying /fired? What records relating to firearms training given to officers are available?
17. What service records of police weapons used exist – trigger pressure, zeroing etc?
18. Medical – what were the ambulance / first aid training arrangements? How was the police duty of care to the injured person met?
19. Scene Management – what steps were taken to preserve public safety / cordons?
20. Tours of Duty – what were their lengths?

Basic Principles on the Use of Force and Firearms by Law Enforcement Officials, Eight United Nations Congress on the Prevention of Crime and the Treatment of Offenders, Havana 27 August to 7 September 1990, U.N. Doc. A/CONF.144/28/Rev.1 at 112 (1990)

Whereas the work of law enforcement officials is a social service of great importance and there is, therefore a need to maintain and, whenever necessary, to improve the working conditions and status of these officials,

Whereas a threat to the life and safety of law enforcement officials must be seen as a threat to the stability of society as a whole,

Whereas law enforcement officials have a vital role in the protection of the right to life, liberty and security of the person, as guaranteed in the Universal Declaration of Human Rights and reaffirmed in the International Covenant on Civil and Political Rights,

Whereas the Standard Minimum Rules for the Treatment of Prisoners provide for the circumstances in which prison officials may use force in the course of their duties,

Whereas the preparatory meeting for the Seventh United Nations Congress on the Prevention of Crime and the Treatment of Offenders, held at Vienna, Italy, agreed on elements to be considered in the course of further work on restraints on the use of force and firearms by law enforcement officials,

Whereas the Seventh Congress, in its Resolution 1986/10, section IX, of 21 MAY 1986, Invited Members States to pay particular attention in the implementation of the Code to the use of force and firearms by law enforcement officials, and the General Assembly, in its Resolution 41/149 of 4 December 1986, inter alia, welcomed this recommendation made by the Council,

Whereas it is appropriate that, with due regard to their personal safety, consideration be given to the role of law enforcement officials in relation to the administration of justice, to the protection of the right to life, liberty and security of the person, to their responsibility to maintain public safety and social peace and to the importance of their qualifications, training and conduct,

The basic principles set forth below, which have been formulated to assist Member States in their task of ensuring and promoting the proper role of law enforcement officials, should be taken into account and respected by Governments within the framework of their national legislation and practice, and be brought to the attention of law enforcement officials as well as other persons, such as judges, prosecutors, lawyers, members of the executive branch and the legislature, and the public.

General Provisions

1. Government and law enforcement agencies shall adopt and implement rules and regulations on the use of force and firearms against person by law enforcement officials. In developing such rules and regulation, Governments and law enforcement agencies shall keep the ethical issues associated with the use of force and firearms constantly under review.
2. Governments and law enforcement agencies should develop a range of mean as broad as possible and equip law enforcement officials with various types of weapons and ammunition that would allow for a differentiated use of force and firearms. These should include the development of non-lethal incapacitating weapons for use in appropriate situations, with a view to increasingly restraining the application of mean capable of causing death or injury to persons. For the purpose, it should also be possible for law enforcement officials to be equipped with self-defensive equipment such as shields, helmets, bullet-proof vest and bullet proof means of transportation, in order to decrease the need to use weapons of any kind.
3. The development and deployment of non-lethal incapacitating weapons should be carefully evaluating in order to minimize the risk of endangering uninvolved person, and the use of such weapons should be carefully controlled.
4. Law enforcement officials, in carrying out their duty, shall, as far as possible, applying non-violent means before resorting to the use of force and firearms. They may use force and firearms only if other means remain ineffective or without any promise of achieving the intended result.
5. Whenever the lawful use of force and firearms is unavoidable, law enforcement officials shall:
 - Exercise restraint in such use and act in proportion to the seriousness of the offence and the legitimate objective to be achieved.
 - Minimize damage and injury, and respect and preserve human life;
 - Ensure that assistance and medical aid are rendered to any injured or affected persons at the earliest possible moment;
 - Ensure that relatives or close friends of the injured or affected person are notified at the earliest possible moment.
6. Where the injury or death is caused by the use of force and firearms by law enforcement officials, they shall report the incident promptly to their superiors, in accordance with principle 22.
7. Governments shall ensure that arbitrary or abusive use of force and firearms by law enforcement officials is punished as a criminal offence under law.
8. Exceptional circumstances such as internal political instability or any other public emergency may not be invoked to justify any departure from these basic principles.

Special Provisions

9. Law enforcement officials shall not use firearms against persons except in self-defence or defence of others against the imminent threat of death or serious injury, to prevent the perpetration of a particularly serious crime involving grave threat to life, to arrest a person presenting such a danger and resisting their authority, or to prevent his or her escape, and only when less extreme means are insufficient to achieve these objectives. In any event, intentional lethal use of firearms may only be made when strictly unavoidable in order to protect life.
10. In the circumstances provided for under Principle 9, law enforcement officials shall identify themselves as such and give clear warning of their intent to use firearms, with sufficient time for the warning to be observed, unless to do so would unduly place the law enforcement officials at risk or would create a risk of death or serious harm to other persons, or would be clearly inappropriate or pointless in the circumstance of the incident.
11. Rules and Regulations on the use of firearms by law enforcement officials should include guidelines that:
 - Specify the circumstances under which law enforcement officials are authorized to carry firearms and prescribe the types of weapon and ammunition permitted;
 - Ensure that firearms are used only in appropriate circumstances and in a manner likely to decrease the risk of unnecessary harm;
 - Prohibit the use of those firearms and ammunition that cause unwarranted

- injury or present an unwanted risk
- Regulate the control storage and issuing of firearms, including procedures for ensuring that law enforcement officials are accountable for the firearms and ammunition issued to them;
- Provide for warning to be given, if appropriate, when firearms are to be discharged;
- Provide a system of reporting whenever law enforcement officials use firearms in the performance of their duty.

Policing Unlawful Assemblies

12. As everyone is allowed to participate in lawful and peaceful assemblies, in accordance with the principles embodied in the Universal Declaration of Human Rights and the International Covenant on Civil and Political Rights, Governments and law enforcement agencies and officials shall recognize that force and firearms may be used on in accordance with Principles 13 and 14.
13. In the dispersal of assemblies that are unlawful but non-violent, law enforcement officials shall avoid the use of force or, where that is not practicable, shall restrict such force to the minimum extent necessary.
14. In dispersal of violent assemblies, law enforcement officials may use firearms only when less dangerous means are not practicable and only to the minimum extent necessary. Law enforcement officials shall not use firearms in such cases, except under the conditions stipulated in Principle 9.

Police persons in custody or detention

15. Law enforcement officials, in their relations with person in custody or detention, shall not use force, except when strictly necessary for the maintenance of security and order within the institution, or when personal safety is threatened.
16. Law enforcement official, in their relations with person in custody or detention, shall not use firearms, except in self defence or in the defence of others against the immediate threat of death or serious injury, or when strictly necessary to prevent the escape of a person in custody or detention presenting the danger referred to in Principle 9.
17. The preceding principles are without prejudice to the rights, duties and responsibilities of prison officials, as set out in the Standard Minimum Rules for the Treatment of Prisoners, particularly Rules 33,34, and 54.

Qualification, training and counselling

18. Government and law enforcement agencies shall ensure that all law enforcement officials are selected by proper screening procedures, have appropriate moral, psychological and physical qualities for the effective exercise of their functions and receive continuous and thorough professional training. Their continued fitness to perform these functions should be subject to periodic review.
19. Government and law enforcement agencies shall ensure that all law enforcement officials are provided with training and are tested in accordance with appropriate proficiency responsibility in the use of force. Those law enforcement officials who are required to carry firearms should be authorised to do so only upon completion of special training in their use.
20. In the training of law enforcement officials, Governments and law enforcement agencies shall give special attention to issues of police ethics and human rights, especially in the investigative process, to alternative to the use of force and firearms, including the peaceful settlement of conflicts, the understanding of crowd behaviour, and the methods of persuasions, negotiation and mediation, as well as to technical means, with a view to limiting the use of force and firearms. Law enforcement agencies should review their training programmes and operational procedures in the light of particular incidents.
21. Government and law enforcement agencies shall make stress counselling available to law enforcement officials who are involved in situation where force and firearms are used.

Reporting and review procedures

22. Government and law enforcement agencies shall establish effective reporting and review procedures for all incidents referred to in Principles 6 and 11 (f). For incidents reported pursuant to

these Principles, Government and law enforcement agencies shall ensure that an effective review process is available and that independent administrative or prosecutorial authorities are in a position to exercise jurisdiction in appropriate circumstances. In cases of death and serious injury or other grave consequences, a detailed report shall be sent promptly to the competent authorities responsible for administrative review and judicial control.

23. Persons affected by the use force and firearms or their legal representatives shall have access to an independent process, including a judicial process. In the event of the death of such persons, this provision shall apply to their dependents accordingly.
24. Governments and law enforcement agencies shall ensure that superior officers are held responsible if they know, or should have known, that law enforcement officials under their command are resorting, or have resorted, to the unlawful use of force and firearms, and they did not take all measures in their power to prevent, suppress or report such use.
25. Government and law enforcement agencies shall ensure that no criminal or disciplinary sanction is imposed on law enforcement officials who, in compliance with the Code of Conduct for Law Enforcement Officials and these basic principles, refuse to carry out an order to use force and firearms, or who report such use by other officials.
26. Obedience to superior orders shall be no defence if law enforcement officials knew that an order to use force and firearms resulting in the death or serious injury of a person was manifestly unlawful and had a reasonable opportunity to refuse to follow it. In any case responsibility also rests on the superiors who gave the unlawful orders.

Foot notes

In accordance with the commentary to Article 1 of the Code of Conduct for Law Enforcement Officials, the term “law enforcement officials” includes all officers of the law whether appointed or elected, who exercise police powers, especially the powers of arrest or detention. In countries where police powers are exercised by military authorities, whether uniformed or not, or by state security forces, the definition of law enforcement officials shall be regarded as including officers of such services.